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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker pro tempore (Mr. CUELLAR).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
September 22, 2020.

I hereby appoint the Honorable HENRY CUELLAR to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 7, 2020, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 10:50 a.m.

INEQUALITIES IN COVID–19 ASSISTANCE DISTRIBUTION

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, I rise today to highlight the inequalities that persist in COVID–19 assistance distribution.

Back in March, House Democrats recognized the global health crisis was causing an economic crisis. As Americans struggled, we provided them with stimulus checks to help them make ends meet during these uncertain times.

However, not everyone who was entitled to these checks received them. The Senate wrongfully included a provision in the CARES Act that prevented families with only one American citizen parent and another who is a tax-paying immigrant with an ITIN from receiving this financial assistance.

Let me repeat this. Citizens of the United States are being prevented from receiving stimulus checks because of whom they love.

This blatant discrimination must be corrected. We need to help people like Lacey, an amazing, hardworking citizen who works for the State government and isn't able to receive a stimulus check. Lacey and her spouse have been together for 14 years and were married in 2010. They have raised six beautiful children, all of whom are U.S. citizens.

For the past 7 years, Lacey has worked at the Illinois Veterans Home in Quincy, Illinois. She works long hours to make sure her veteran residents are safe, healthy, and happy, and in March, this job made her an essential, frontline worker.

Lacey loves her job and loves her residents like they are her own family. Since the onset of COVID, she has continued her hard work and dedication to her job. Lacey has picked up overtime shifts to cover for coworkers who are sick and has worked hard to ensure the standards of care at the facility remain high. She is a United States citizen who works every day to care for our Nation's veterans.

Despite her service to our country and the fact that she and her children are American citizens, her family did not receive a check, all because her spouse is an immigrant using an ITIN and they file their taxes jointly.

She has done everything in her power to speak out and advocate for herself and has connected with others like her in the Facebook group Mixed-Status Families United.

She told me: ''I am being punished for who I married. My husband and I work and we pay our taxes. Why are we being treated like second-class citizens?''

Her words resonate, because she is right. She is being treated like a second-class citizen.

I ask you, during a period of unprecedented challenges, when Americans are facing more than one crisis, when we are depending on essential workers more than ever, is it right for our country to treat people differently based on the immigration status of their loved ones?

As a country, I believe we can and should do better. There is no scenario in which citizens should be denied the help they are entitled to. Likewise, tax-paying immigrants who are paying their fair share should not be denied assistance, left out on their own.

I am pleased that the HEROES Act, which the House passed more than 100 days ago, rectifies this issue and makes all tax-paying individuals eligible for a check.

While I believe all taxpayers should receive a stimulus check regardless of their citizenship status, at the very least, we need to ensure that all U.S. citizens receive a check regardless of who their spouses are, and underscore the necessity of including a fix that corrects this provision retroactively and for any additional stimulus checks provided moving forward.

We must stand with mixed-status families and continue to fight for them and their rights. Now, more than ever, we need to provide for people who are suffering due to this pandemic.

I urge my colleagues to join me in taking swift action to resolve this issue.

FINDINGS OF THE CHINA TASK FORCE

The SPEAKER pro tempore. The Chair recognizes the gentleman from

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Pennsylvania (Mr. JOYCE) for 5 minutes.

Mr. JOYCE of Pennsylvania. Mr. Speaker, after too long, Americans are waking up to the dangers of the Chinese Communist Party. As we combat the economic and the health ramifications of the coronavirus, it has never been more important that we take on this hostile regime.

It has been my honor to serve on the China Task Force and help expose the threats that the Chinese Communist Party poses to our national security and to the American people.

Just yesterday, Congressman MICHAEL MCCAUL released the House Foreign Affairs Committee's report into the origins of the coronavirus pandemic. Their evidence clearly confirms that the Chinese Communists covered up the coronavirus, enabling a local outbreak to become a pandemic.

The Chinese Communist Party knew that the coronavirus could be spread by human-to-human transmission, and yet this regime hid findings from global leaders, public health experts, and even the World Health Organization.

Leaders in the Chinese Communist Party knew that this virus could be catastrophic, and yet they deliberately chose to cover up their missteps rather than sound an alarm and warn the world that this virus was being unleashed.

Their lies cost American livelihoods. Their lies cost American lives. This pandemic's destruction could have been prevented. This didn't have to happen.

Now Americans are facing a choice. If we do not act now, who will stop the Chinese Communist Party from simply repeating this coverup?

Inaction is not an option. America must prevent another pandemic from reaching our shores.

And our work cannot stop there. Sadly, the Chinese Government's malicious acts extend far beyond the coronavirus pandemic. From cyberattacks on American citizens and blatant overreach into our virtual networks, to espionage in our academic institutions and illicit fentanyl that kills on American streets, we cannot ignore the Chinese Government's pervasive threats to our Nation.

Mr. Speaker, this is no distraction; this is reality. For the safety of the American people, for the future of our Nation, the Chinese Communist Party must be held accountable.

For months, the China Task Force has focused on researching these issues and exploring legislative solutions. We are currently working on a final report that will detail our findings and recommend a pragmatic path forward. While our work on this report is coming to a close, our commitment to the cause will continue.

During these busy days, I recognize that many issues are competing for America's time; but to be fair, these threats require our action. The Chinese Government's coverup of the coronavirus pandemic requires action. The Chinese Government's persecution of Uighurs requires action. The Chinese Government's monopoly of the medical supply chain requires action. The Chinese Government's attempts to control the world's network requires action.

Despite the challenges that we are facing at home, the American people must stand together against the Chinese Communist Party. Our national security should never be a partisan issue. The health of the American people should never be a partisan issue. By working together, we can strengthen our defenses, defend human rights, spur innovation, and equip Americans to lead the way in global innovation.

Moving forward, it is imperative that America continues to strengthen our supply chain, to pursue fair trade deals with China, and, ultimately, to hold the Chinese Communist Party accountable for its actions.

Once again, it has been my privilege to serve the American people as a member of the China Task Force. I thank Leader MCCARTHY for the opportunity to serve, and I am grateful to Chairman MICHAEL MCCAUL for his leadership.

This is a long road, but it is worth the fight. And as I always believe, America will win that fight.

ALOPECIA AREATA AWARENESS MONTH

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Massachusetts (Ms. PRESSLEY) for 5 minutes.

Ms. PRESSLEY. Mr. Speaker, I rise today in solidarity with my fellow Americans with alopecia in recognition of September as Alopecia Areata Awareness Month.

Today, like nearly 7 million Americans, I live with alopecia, an autoimmune disease that attacks the hair follicles. This common condition is highly unpredictable and cyclical. Hair can grow back in or fall out again at any time, and the course is different for each person.

Alopecia areata disproportionately affects children and Black Americans, and particularly Black women.

Some people may say that it is just hair, but for me and for many people living with alopecia, hair is intrinsically linked to our identity and our cultural expression.

We all have our own unique stories with our alopecia diagnosis. Mine began nearly a year ago as my braider noticed a small patch of baldness. Very soon after, I was waking up to sinks full of hair. What started as a few small patches quickly spread.

I remember the moment vividly. I was alone in my D.C. apartment, separated from my family, on the same day that would have been my mother's 72nd birthday and on the eve of an impeachment vote. I was standing in the bathroom, staring at my reflection in the mirror, and for the first time I was completely bald.

For months, I had dreaded the moment when it would be all gone; but looking at myself in the mirror that night, I felt relief, peace, and acceptance. It was a moment of grace, and I thank God for that.

In a matter of weeks, I would lose my eyelashes, eyebrows, and the rest of my hair and be diagnosed with alopecia universalis, one of three forms of alopecia.

I am still coming to terms with my new alopecia reality and the impact of my traumatic hair loss. Every day, thanks to the support of my family, my staff, the broader alopecia community, and others who have experienced hair loss, I am making progress.

I am making progress despite the hateful comments, the cruel and constant online harassment about my baldness, the intrusive and ignorant questions on the elevators, the unsolicited advice, and the stares, lots of stares.

No doubt about it, a bald woman entering a room or entering the floor of the U.S. House of Representatives makes people uncomfortable. Visually, it challenges every antiquated cultural norm about what is professional, what is pretty, what is feminine.

But in the loss, the hurt, and the ache of it all, I have never lost sight of the following: I am Sandy and Martin's daughter; I am Conan's wife; I am Cora's stepmom; and I am the Congresswoman for the Massachusetts Seventh Congressional District.

Mr. Speaker, I am now bald, but I am in good health and in incredible company. I have received an outpouring of love from people across the globe who are living with alopecia.

Early on, I received a note from an elementary school-aged girl with alopecia. She wanted to give me some tips in navigating this new normal. She told me about the first time she walked into school after her diagnosis, ''Just walk right up to your friends and tell them, 'I'm still me,' '' she wrote.

Who couldn't use a reminder like that as they navigate the world? Those little acts of kindness and solidarity have defined this experience, too.

I am proud to be in the good company of those fighting for people living with alopecia. There is an entire community that has been working tirelessly to share their stories and to educate the public on the impact of alopecia areata.

For three decades, the National Alopecia Areata Foundation has been working to garner congressional support for research and treatment development. My longtime friend and partner in good, Congressman MCGOVERN, introduced legislation to allow medical wigs to be covered under the Medicare program so that every senior living with alopecia can afford wigs and other head coverings.

This year, the House passed my amendment to provide an additional $5 million in next year's funding for the National Institutes of Health, which

will fund research to increase our understanding of the causes, impacts, and possible treatments of alopecia areata.

I know that our work is far from over, and I will continue to fight. I will take my seat at the table. I will take up space, and I will create it, too; and with this space, we will make change.

Every single person deserves to show up in the world exactly as they are without fear or discrimination. To my fellow alopecians wherever you may be, today I bring our story to the floor of the people's House to say that we belong, our stories deserve to be heard, and we are absolutely beautiful and worthy.

□ 0915

THE REPUBLICAN COMMITMENT TO AMERICA

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. FOXX) for 5 minutes.

Ms. FOXX of North Carolina. Mr. Speaker, maligned policies from Democrats that seek to defund, destroy, and dismantle our country are dangerous. Quite frankly, these policies pose a threat to the liberties and freedoms that define the American dream as we know it. Republicans understand this threat, and we refuse to sit idly on the sidelines.

That is why we have developed our Commitment to America. The message is simple. Restoring, renewing, and rebuilding America is a mandate that we must work every day to uphold. We are fighting for families, for generations of Americans to come, and for a country that has always served as a beacon of hope to the world.

In short, it is a blueprint that gets our country back on track. The American people deserve leaders who fight for freedom, the values that we hold dear, and the promise of the American Dream.

Mr. Speaker, at such a pivotal moment in the history of our country, we must work to advance policies that are pro-growth, pro-family, and pro-America. Anything less is unacceptable.

Time and time again Democrats have turned their backs on the American people with a ''my way or the highway'' approach to legislating.

This year alone, the House of Representatives has taken up a myriad of bipartisan messaging bills that do nothing to help our country. If anything, these bills send a concerning message about the Democrat vision for America.

Substantive legislation has been pushed to the back burner, the spirit of bipartisanship has been rendered virtually nonexistent, and political posturing has replaced meaningful conversations on pressing issues. We have had ample opportunities to work together, but Democrats have taken it upon themselves to prolong a partisan blockade that stifles progress.

Mr. Speaker, that is wrong and that is not leadership. Leadership is fighting for the American people at every turn. Leadership is defending the promises of the American Dream. Leadership is advancing policies that raise America to new heights.

I am proud to stand alongside Leader MCCARTHY and my Republican colleagues as we chart a meaningful pathway forward. The road ahead may seem uncertain, or even arduous, but we are confident that with steadfast leadership and commonsense policies, America will flourish.

BIRTH OF THE HERO ACT

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. BERA) for 5 minutes.

Mr. BERA. Mr. Speaker, I rise today to celebrate the passage of my bipartisan measure, H.R. 1646, the Helping Emergency Responders Overcome Act, or the HERO Act.

The HERO Act is the best of what we do in this people's House, which is accessible to our constituents and others, and that is why we love the House of Representatives.

Over 2½ years ago, two of my fire chiefs, Mike McLaughlin and Maurice Johnson, visited my office here in Washington to talk about some issues. In passing, they also talked about the number of firefighters and first responders that succumb to suicide, and the stresses of the job.

We talked about it and we started to do a little bit of research. We realized we didn't have good statistics on the actual incidence of firefighters or first responders that were succumbing to suicide.

We started to talk to others, the International Association of Firefighters, and we talked to law enforcement. We realized the stresses that these individuals, men and women, who are out there protecting our communities every day, face. They see untold challenges that normal human beings don't see. So we started talking about this.

We looked for those statistics, talked to the Firefighter Behavioral Health Alliance founder, Jeff Dill, and again, realized we ought to challenge the CDC to collect these statistics, and we ought to do something about it. We ought to help relieve the suffering of these first responders, firefighters, law enforcement individuals.

So we went about writing a bill and working with our partners. That was before the COVID–19 pandemic hit. What we have seen since the pandemic is untold pressures on our frontline healthcare workers, our nurses, the folks in the hospitals. And I want to applaud a fellow doctor, a Republican Member, MIKE BURGESS, who is the ranking member on the Energy and Commerce Healthcare Subcommittee, he realized this fact. And working together with our staff, we amended the HERO Act to include and recognize the unique stresses that these frontline healthcare workers are facing.

We talked about how they don't need to suffer by themselves, how we could put in place peer-to-peer contacts where folks could reach out, create a space for some of these individuals that might be suffering alone to talk about what was going on.

Mr. Speaker, I also want to thank Chairman PALLONE and Ranking Member WALDEN on the Energy and Commerce Committee, as well as the chairwoman of the Energy and Commerce Health Subcommittee, Ms. ESHOO, for helping get this bill to the floor and getting it passed yesterday evening.

Again, the HERO Act demonstrates what we can do when we come together as Democrats and Republicans, when we listen to our constituents, and we work with those folks that are out there.

I, again, want to applaud the frontline healthcare workers, the firefighters, the law enforcement individuals, and emergency responders that are out there keeping us safe every day. You have got our back, we have got your back. So thank you to all of them.

RECOGNIZING THE SCHEDULER

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. Mr. Speaker, I rise today to thank a group of courageous Federal employees: Matt Nordquist; Janet Hartman, now Schmautz; Jake Gibson; Carren Crossley; Virginia Mueller, now Partridge; Jordan Haverly; Joy Henrichs; Perry Ford Stamp; and Molly Mackenzie Harris.

There is no more difficult job in Washington than that of a congressional scheduler. My thanks and apologies go to those who served in my office these past 24 years.

For me, being away from home was the worst part of the job. Who booked the flight and told me I had to get back to D.C.? The scheduler did. Who would meet me in the office at 7:30 a.m. to get me to a breakfast meeting at 8 a.m.? Who would hang around to pick me up at 9 a.m., just to race me to the Hill for a 9 a.m. meeting? The scheduler did. Who received an irate call from me wondering why no one was at the meeting in HC–5, only to be told that if I had looked at my schedule, I would have seen that the meeting location had changed to the Capitol Hill Club? The scheduler did.

Who took the frustrating call asking how I can be in a meeting in the Capitol from 10:30 a.m. to 11 a.m., and then in my office in the Rayburn Building for an 11 a.m. meeting? The scheduler did. Who took the blame when I finally cried out that I needed a bathroom break after consecutive 30-minute meetings? The scheduler did. Who picked me up after votes at 6:30 p.m. to hit a reception at 6:45 p.m., another

one at 7 p.m., and then dinner at another location at 7:30 p.m.? The scheduler did.

Who scheduled the flight to get me home, and then had to sweat as to whether I could make the early flight or not? Who received my continuous calls asking them if I thought I could make it? The scheduler did. Who waited in the car for that final vote just to see me run down the stairs and tell them, let's go, just to get caught in traffic in the plaza, traffic on Independence Avenue, and traffic on Interstate 395? The scheduler did.

Who had to put up with the worst backseat driver in Washington, D.C.? The scheduler did. My schedulers took the brunt of my frustration as we tried to fit 36 hours of work into a 24-hour day. They took the barbs of criticism when I missed my family.

If there was ever a single group that I need to apologize to, it is them. Having said this, this group of workers professionally conducted their job with poise, confidence, efficiency, and compassion. I can say without hesitation that because of me, the toughest job in my office is that of the scheduler. Matt, Janet, Jake Carren, Virginia, Jordan, Joy, Perry, and Molly, I thank you.

WE MUST ADVANCE URGENTLY NEEDED CORONAVIRUS ASSISTANCE

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. TONKO) for 5 minutes.

Mr. TONKO. Mr. Speaker, this body must advance urgently needed coronavirus assistance.

Secretary of Health and Human Services Alex Azar said, ''Every death we experience is a tragedy.'' When he said it, the United States had just hit the grim milestone of 100,000 souls lost from the COVID pandemic. That was mid-May, around the same time Democrats advanced the HEROES Act in the House. In the 4 months that followed, 100,000 more Americans have died as the epidemic has spiraled out of control, and chaos has continued to reign from the White House.

We have reached the breaking point. Plain and simple, it is time for the Senate to pass our comprehensive rescue package or offer a real alternative of their own. No more waiting. No more excuses.

Throughout this crisis, the Senate majority has abdicated responsibility to this President's insufficient leadership and papered over his deadly shortcomings. For the lives and livelihood of every one of my constituents, I beg my colleagues on the other side of the Capitol to seize this moment to follow a new guide.

Let that guide be science. Let it be truth, because politics, really, truly bad politics, has brought America low in the face of this crisis. But it is not too late.

On January 22, President Trump tweeted ''China has been working very hard to contain the coronavirus. The United States greatly appreciates their efforts and transparency.'' He made similar remarks again on January 30 and on February 7. The very same day President Trump was privately admitting to journalist Bob Woodward that the coronavirus is an airborne pathogen more deadly than the flu.

Despite his full awareness of the danger, he kept going, praising China and publicly downplaying the coronavirus threat. Politico has found at least 15 examples of President Trump publicly praising China's coronavirus response during this period, including on February 10, 13, 18, 23, 26, 27, and 29. He said it over and over.

In the following weeks and months, he would repeatedly downplay the danger and suggest, fully aware of his deception, that this virus was comparable to a seasonal flu.

President Trump's deception on these matters is not opinion, he was recorded. He is literally on the record saying that he intended to downplay this disease and deny the American people the information we would need to make vital decisions for ourselves, our families, our communities, and indeed, our Nation.

Every death that resulted from this was a tragedy. In February, President Trump said, ''It is going to disappear one day. It is like a miracle, it will disappear.'' He knew better.

At this point the virus had been given nearly 2 months to circulate unchecked. Americans were still going about our daily lives, flocking to movie theaters, churches, synagogues, going to Mardi Gras, going on spring break, unaware of the true extent of the threats spreading all around us.

On March 11, President Trump took only his second major national step, another travel ban. It was around this time that Congress stepped up the scale of our response to this threat. We moved quickly to pass the CARES Act, including delivering emergency funds for America's hospital and staff, small business owners, laid off workers, and everyday Americans facing unprecedented fear and uncertainty.

The CARES Act was a rescue plan. It wasn't perfect, but it was America's first real effort to stem the tide. That rescue was powerful, but it was no substitute for executive leadership. Sadly, we are still waiting for executive leadership.

Between March and May, America saw its death toll skyrocket past 100,000. The Members of this Chamber again moved swiftly to advance another rescue package, the HEROES Act. Since the House passed the HEROES Act on May 15, more than 110,000 Americans have died of COVID–19.

For comparison, this is the equivalent of losing every soul living in Albany, New York, our State capital, that I represent. And that is just the recorded death toll since mid-May.

Senate Majority Leader MITCH MCCONNELL responded that States should file for bankruptcy instead, and the Senate would wait and see. Wait for what? Haven't we seen? We have waited 4 months and paid dearly for it. Enough of this craven politics.

Senators, consider your oath to the people you serve. What will you say when they ask what you did to stop this disease from stealing their loved ones; from destroying their small business? What will you say to the teachers that are being laid off as States and cities drastically cut their budgets? From undermining America's standing in the world?

To my colleagues, I say this: We have a plan. Join us. Let's invest heavily in research and follow science and public health guidance. They are the fastest route to get us to the other side of this crisis. Our HEROES Act gets it done.

Let's deliver emergency funding to sustain local essential services, and the salaries of first responders, nurses, teachers, infrastructure maintenance workers, and many more. The HEROES Act gets that done, too. Let's save lives and turn the corner on this crisis with a coordinated national plan for testing and tracing. The HEROES Act gets it done.

Let's deliver the financial support our essential workers, unemployed workers, and financially strained Americans need to weather the storm. The HEROES Act gets it done. Let's rescue our schools, our healthcare providers, our first responders, our hungriest families. The Republican skinny bill just doesn't get it done. I say pass the HEROES Act.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

□ 0930

HONORING HAROLD LEE DICK

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Missouri (Mrs. HARTZLER) for 5 minutes.

Mrs. HARTZLER. Mr. Speaker, I rise today to honor the life of Harold Lee Dick, Gunner's Mate Second Class, who was one of 43 brave men who paid the ultimate sacrifice on July 24, 1944, aboard the USS *Colorado*.

While serving aboard the USS *Colorado*, Gunner's Mate Second Class Dick supported landings on Tarawa, the Marshall Islands, Saigon, Guam, and Tinian, where he ultimately lost his life.

Although he was initially listed as missing in action, his body and those of his deceased shipmates were recovered and preserved in the 4th Marine Division Cemetery on Saipan. Once the war had ended, Dick's remains were preserved for identification and transportation back to the United States.

Unfortunately, Gunner's Mate Second Class Dick's remains were unable to be identified, so he was buried as unknown at the Manila American Cemetery in the Philippines. However,

thanks to modern forensic techniques, Gunner's Mate Second Class Harold Dick was identified on November 26, 2018.

Now, after 76 years, Harold Lee Dick will finally be returning to his hometown of Tipton, Missouri, on October 10 to be laid to rest next to his parents and his sister.

Please join me in honoring Gunner's Mate Second Class Harold Lee Dick's ultimate sacrifice as he finally returns home.

CONGRATULATING ERNIE CECIL

Mrs. HARTZLER. Mr. Speaker, I rise today to congratulate my good friend Ernie Cecil on his retirement after serving nearly 28 years as senior pastor at Antioch Southern Baptist Church.

Ernie impacted the lives of so many through his weekly services and through the pivotal role he played in our community as a spiritual leader. During his time at Antioch, Ernie expanded the reach of the church by using modern technology during services, a revamped website, and social media pages.

During the pandemic, Ernie was instrumental in establishing a drive-in worship service even though it prolonged his retirement. These virtual services, complete with live music, united our community during these difficult times.

Through his love for his community, his leadership, and his dedication to his faith, Ernie touched the lives of many people during his time at Antioch Southern Baptist. His legacy of love and service will be felt into eternity. Missouri's Fourth Congressional District is blessed to have Cecil serving others and the Lord.

Mr. Speaker, let us wish Ernie the best and God's richest blessings in his well-deserved retirement.

RECOGNIZING KEN AND SUE MOLZAHN

Mrs. HARTZLER. Mr. Speaker, I rise today to give recognition to Ken and Sue Molzahn, the owners of the world's largest display of American Revolutionary War-era flags.

Recently, I visited their collection in Collins, Missouri, and was able to see over 315 replica flags used by American colonists and their allies from 1764 to 1781. I was very impressed by their extensive collection and their knowledge of the history behind each individual flag.

During his high school teaching career, Ken began researching Revolutionary War-era flags and re-creating them for his students. Eventually, Sue, a skilled seamstress, joined his efforts and has contributed hand-sewn, museum-quality replica flags to the collection.

Today, Ken and Sue's prominent collection of flags serves as an incredible learning tool and an interactive way of keeping history alive.

I greatly appreciate Ken and Sue for taking time to show me their flag collection. It is a unique educational experience that highlights the courage and sacrifice of our first patriots.

HONORING BLAKE HURST

Mrs. HARTZLER. Mr. Speaker, I rise today to honor and thank Mr. Blake Hurst.

Blake has led the Missouri Farm Bureau as president since 2010 with compassion, family values, fierce support for his members' needs, and a dose of creative humor.

Blake understands agriculture is a family affair as he raises row crops with his father, brothers, nephews, and sons-in-law, while also operating a greenhouse business with his wife, daughter, and sons-in-law.

As Blake prepares to retire at the end of this year, his legacy will continue to serve as an inspiration for those of us who have worked alongside him as he aggressively advanced Farm Bureau's priorities for the past 25 years.

It has been an absolute honor to work with Blake and his team throughout the years, and Missouri's agriculture industry is better because of his leadership.

I sincerely hope Blake will be able to enjoy a well-deserved retirement amid the farm, the greenhouse, and the grandkids, and I wish him the best.

HONORING SCOTT PHILLIPS

Mrs. HARTZLER. Mr. Speaker, I rise today to honor Mr. Scott Phillips as the recipient of the annual Chairman's Award during the 2020 Missouri Pork Expo.

I first met Scott when we were children and his dad wanted to talk to my dad about raising hogs. Scott's dad had served in the Air Force and wanted to try his hand at farming.

Scott followed in his dad's footsteps, serving his Nation flying A10 jets in the Air Force and then returning to his lifelong passion of farming, expanding the operation and now operating two hog farms with his brother and nephew.

Scott's dedication to producers and his positive influence on the pork industry can be seen throughout his leadership roles, from the local level to the national level.

I wish Scott the best and am proud to represent him.

COMMEMORATING NATIVE AMERICAN HERITAGE MONTH BY HONORING THE PONCA TRIBE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Nebraska (Mr. BACON) for 5 minutes.

Mr. BACON. Mr. Speaker, I rise today to commemorate Native American Heritage Month by honoring the Ponca Tribe of Nebraska on their 30th anniversary of restoration as a federally recognized Tribe.

The Ponca Tribe was originally part of the Omaha Tribe and settled near the Niobrara River of Nebraska in 1793. In 1877, the Ponca Tribe was forcibly removed from their beloved Niobrara River homeland and sent to Indian territory in central Oklahoma.

During their first year in Oklahoma, 25 percent of the Ponca Tribe died from malaria and starvation. Among the dead was Chief Standing Bear's eldest son Bear Shield, who had pleaded to be laid to rest in their sacred burial grounds. A few weeks later, in January of 1879, Chief Standing Bear began the 600-mile trek to their Niobrara homeland.

Just 2 days shy of their homeland, during a brief stop at the Omaha reservation, the group was stopped and arrested for leaving Oklahoma. The arrest led to the landmark case of Standing Bear v. Crook, which established the precedent of recognizing ''Indian'' as an equal person under the law, including the constitutional guarantee of fair treatment during trial.

At the end of the trial, Chief Standing Bear delivered a speech demanding equality, with the famous words: ''That hand is not the color of yours, but if I prick it, the blood will flow, and I shall feel pain. The blood is the same color as yours. God made me, and I am a man.'' After the trial, Chief Standing Bear and his companions were allowed to return to their Niobrara homeland.

However, in 1962, Congress decided the Ponca Tribe would be among the Tribes no longer recognized. Two decades later, in 1986, the Northern Ponca Restoration Committee was created by Fred LeRoy, a veteran and a Ponca himself. Within 2 years, LeRoy drafted the petition for restoration, and the Ponca Tribe met the requirements of the Bureau of Indian Affairs for Federal recognition.

On October 31, 1990, the legislation was signed into law, and the Ponca were once again recognized by the Federal Government. Fred LeRoy was then named chairman of the Ponca Tribe of Nebraska.

Although the Ponca Tribe will still be without a reservation, they have established service delivery areas throughout Nebraska, Iowa, and South Dakota. These areas have centers offering health, social, domestic violence, and education services. One such center was aptly named the Fred LeRoy Health and Wellness Center.

Through the tremendous efforts of Chairman LeRoy and subsequent leaders, the Ponca have not only preserved but further cultivated their heritage. Current Chairman Larry Wright, Jr., considers his proudest accomplishments to be the purchase of 1,800 acres of the original homeland, including Chief Standing Bear's burial site.

Chairman WRIGHT, Jr., illustrated the belief that because their ancestors are buried in the Niobrara River Valley, Ponca DNA is infused within the land, water, animals, and everything that grows there, completing the circle of life.

Today, three different statues pay tribute to the fearless leader Chief Standing Bear. One statue resides in Centennial Mall of Lincoln, Nebraska, and another overlooks the Niobrara homeland. Finally, a bronze statue of Chief Standing Bear stands in its rightful place in Statuary Hall in the U.S.

Capitol, representing the State of Nebraska. With these three monuments, thousands of Nebraskans and millions from around the world will come now to know the Poncas and their story.

Unfortunately, social disconnects of racial disparity and basic human rights still exist in our country. In recognizing the Ponca Tribe's abundant history, we highlight a story of oppression, despair, struggle, and perseverance.

Today, we honor and celebrate the Ponca Tribe of Nebraska and every Native American once considered a half person. American author and civil rights activist Audre Lorde once said: ''It is not our differences that divide us. It is our inability to recognize, accept, and celebrate those differences.'' Now more than ever, we must unite as Americans and celebrate our diversity to heal the wounds of social injustice.

BIODEFENSE MUST BE BIPARTISAN

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Indiana (Mrs. BROOKS) for 5 minutes.

Mrs. BROOKS of Indiana. Mr. Speaker, today, I rise in recognition of the passage of H.R. 7574, the Strengthening America's Strategic National Stockpile Act, which builds on the bipartisan work done by the Energy and Commerce Committee on pandemic preparedness issues.

I am honored to have co-led this bipartisan bill with my colleague Congresswoman SLOTKIN from Michigan. I also thank Ranking Member BURGESS and Chairwoman ESHOO, who has been a longtime champion on biodefense issues, and importantly, the Energy and Commerce Committee staff for their tireless bipartisan work on this legislation.

I think all of us can agree that biodefense must be a bipartisan issue. COVID–19 has clearly exposed weaknesses in our Nation's public health infrastructure.

I have spent a good part of my career in Congress focused on biodefense and pandemic response legislation.

I became a U.S. attorney back in 2001, just one month after the 9/11 attacks on our country. Shortly after that were the anthrax attacks here on our Nation's Capitol. In my U.S. Attorney's Office, we actually received a hoax anthrax attack, which served as a stark reminder of the importance of staying vigilant and the threat that even a single individual can pose.

As former chairwoman of the House Homeland Security Subcommittee on Emergency Preparedness, Response, and Communications, we worked on things like Project BioShield.

When we talk about biodefense, people often think about things more commonly known: chemical, biological, radiological, or nuclear threats. Pandemic threats though are yet, as we are learning, some of the most dangerous threats to everyday Americans.

Every bit as complex as cyber threats, more of an imminent threat in the 21st century than even conventional conflicts, biothreats can come from anywhere. Bad actors, malicious organizations or nation-states, random industrial accidents, or even an act of nature can be the original source. And once events like this begin to unfold, they can be extremely hard to predict and respond to.

That is why I am glad that we continue to focus on this and have been proud to have been part of coleading the package, which we hope will dramatically improve our Nation's ability to respond to these threats. I am very proud that Congress came together to get this done.

The Strategic National Stockpile is a cornerstone of our Nation's biodefense infrastructure. It is responsible for keeping large quantities of pharmaceuticals, medical countermeasures, personal protective equipment, and other lifesaving products for rapid deployment in the event of an emergency.

This bill builds on the bipartisan work done by the Energy and Commerce Committee when last year, in June 2019, the Pandemic All-Hazards Preparedness Act was reauthorized and signed into law by President Trump. Our committee's work has continued to improve our Nation's response to pandemic events.

I commend Ranking Member WALDEN and Ranking Member GUTHRIE of the Oversight and Investigations Subcommittee for their incredible work on Energy and Commerce Committee's Second Wave Preparedness Project. This critical report will serve as the most detailed analysis thus far of our Nation's public health response to date, and some of their recommendations were in this legislative package.

The Strengthening America's Strategic National Stockpile Act addresses these shortcomings and will improve the ability of the SNS to manage and maintain its inventory, empower it to partner with industry to reshore some of our most critical manufacturing infrastructure, dramatically increase transparency of the stockpile, and create innovative new programs to help States create their own stockpiles.

I thank all the Members of the House for their unanimous support of this important legislation because biodefense must be bipartisan to keep this country safe.

□ 0945

UNLEASHING THE SPIRIT OF THE AMERICAN DREAM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Kentucky (Mr. BARR) for 5 minutes.

Mr. BARR. Mr. Speaker, I rise today as the chairman of the Republican Study Committee's American Worker Task Force. This task force was established to provide policy recommendations to empower millions of American workers to reclaim their version of the American Dream.

This task force, really, Mr. Speaker, is all about the American Dream, which is the idea that the condition of your birth should not determine the outcome of your life and that, in America, because of the blessings of freedom that we are given, anyone, regardless of race, color, creed, gender, or any station in life, through hard work, persistence, and determination, can achieve upward mobility, can achieve his or her God-given potential, and can realize that American Dream.

This afternoon, the American Worker Task Force will unveil its report to change flawed policies from Washington, D.C., to unleash the spirit of the American Dream and to give workers their opportunity at upward mobility.

First, we are going to propose policy changes that will refocus labor policy to unleash American workers and allow them to realize their God-given potential. This includes increasing opportunities for apprenticeships, not just Department of Labor, Washington-directed, centrally planned registered apprenticeships, apprenticeships that may or may not yield fruitful careers in in-demand jobs in the labor market, in the real world, but, instead, also recognizing apprenticeships that are industry-recognized, industry-driven, and that meet the jobs that are actually available in the labor market.

We are going to be proposing ideas about eliminating overly restrictive occupational licensing requirements and giving workers greater flexibility in the way they are compensated, to choose comp time as opposed to just overtime.

Secondly, we want to reimagine our failed welfare policies to remove the trap of government dependency and, instead, create a system that propels American individuals and families to extraordinary success and prosperity.

This includes providing alternatives to the failed Housing First policies: to provide Americans access in housing assistance with wraparound services to actually meet those individuals where they are; to provide them with career counseling and perhaps, if needed, addiction recovery services and financial literacy.

We want second-chance employees to have access to the labor market. Whether they have been incarcerated before, whether they are struggling with an addiction, whether they have failed to get the skills that they need, we believe that second-chance and third-chance employees are desperately needed in America's economy today.

We also want work incentives for able-bodied, work-capable adults, especially those without dependents, because we know that work is a blessing; work is not a punishment.

And, third, we want to refine our education system to debunk the bachelors-

or-bust mentality, to encourage innovative careers and better equip American workers with the skills they need to adapt and thrive in the ever-changing 21st century economy. That means in preparing people for higher education, it is not just about a 4-year degree; it is also about career and technical education, skills-based education.

We believe that there should be deductibility for up-skilling so that employers can give workers the skills that are needed for them to move and advance in their careers.

We think there should be transparency outcomes in higher education. And we think, to deal with the student loan debt crisis, we need to recognize that the return on investment is very important, and career and technical education can provide that opportunity.

We believe in income-sharing agreements as an alternative to the debt trap of Federal student loans.

The policies that constitute these three key policy platforms are the result of over a year and a half of deliberations by task force members. We conducted listening sessions with think tanks and policy experts, small business owners, and workers from across our districts.

Mr. Speaker, in the Sixth Congressional District of Kentucky, which I represent in Congress, I have already seen the benefits of investing in career and technical education and job training.

The Kentucky Welding Institute in Fleming County, Kentucky, graduates students in less than 6 months, readying them for careers in welding that can earn them over $100,000 a year.

In Estill County, Kentucky, the Estill County Area Technical Center, currently under construction, will be a state-of-the-art job training facility that is scheduled to open in August of 2021. Kentuckians will train for jobs in advanced manufacturing, in diesel mechanics, health sciences, information technology and science technology, engineering and math, in addition to many other industries.

I am proud to have supported a $4 million grant from the Economic Development Administration that will yield a return on investment in just a few months, graduating taxpayers.

Mr. Speaker, this report could not be a more timely endeavor in the face of the COVID–19 pandemic and the ensuing economic uncertainty that has followed.

Although progrowth tax, regulatory, and trade policies have enabled unemployment to come back down to single digits and the stock market to rebound, Americans still need Congress to take up a bold, comprehensive agenda to pave the way for more jobs.

Mr. Speaker, I encourage everyone to consider these very important pro-worker recommendations.

HONORING KELLY KREEGER

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. LAMALFA) for 5 minutes.

Mr. LAMALFA. Mr. Speaker, sadly, I rise today to honor a friend, Ms. KELLY Kreeger, who lost her life this past summer on July 5.

Kelly was killed in a midair collision above the lake at Coeur d'Alene, Idaho. She was, indeed, doing what she loved as a flier, as an aviation enthusiast, and as a pilot.

Her loss is felt throughout our district by her friends, her family, and even, very personally, our office. We have one of our offices at the Auburn Airport, so our interactions with her and other aviators was quite frequent.

Like many in Placer County in northern California, we are mourning the loss of this friend, a patriot. She was such a good, genuine person, whom I got to know personally through our many interactions.

She devoted much of her time to our community, to our veterans, and it is through Kelly, of course, that I met and formed a friendship with a great, great veteran, Colonel Bud Anderson, who is a World War II triple ace fighter pilot. It was just this summer she organized an event for him at his home to honor him for his birthday.

I am very grateful to Kelly for the introduction to Colonel Anderson, of course, a man I am honored to call my friend as well.

She frequently staffed and organized the events in the community for Colonel Bud that were certainly befitting his World War II accomplishments. They had a street naming for him near the airfield, just so many ways that he was to be honored properly. What a great man he is, and so their association was certainly a natural one.

My staff and I are blessed, of course, to be part of the many events that Kelly was famous for. Included were several P–51 Mustang flyovers, which anybody who loves aircraft loves those; the Never Forget series; road dedications, as I mentioned, at the Auburn Airport named for Colonel Bud; birthday parties for Colonel Bud; and, of course, honoring the men and women of World War II, the Greatest Generation.

Whenever Kelly would call, you knew that something wonderful was about to happen that she had planned. It was the sort of thing that could make you stand up a little taller and get your red, white, and blue out.

Kelly, of course, being a great patriot, loved the United States of America, from her American flag cowgirl boots to the infectious smile she shared with all she met. Indeed, that captures who she is right there in that photo. You wouldn't hardly see her without a smile, especially when she was taking part in her much-greater-than-a-hobby love for aircraft, aviation, and the people and the veterans associated.

As I mentioned, it was my privilege to be part of the Flag Day Parade for Colonel Bud in Auburn as well. She brought together children, Jeeps, classic cars, and even a flyover to bring Colonel Bud that much more joy.

During this time of pandemic when everybody is shut in, of course, we all shared that same joy. It brought a sense of community, a sense of remembering who America is, even though we have all been pent up for all this time that, indeed, this virus is temporary and we will be together as a community once again.

Our Nation and its people are strong, and nothing will stop us from celebrating our heroes. Kelly embodied that.

Kelly was known to like loud, fast cars, indeed, after my own heart there as well. She was able to rebuild an engine herself and was not afraid of any hard work.

She is survived by her mother, Nancy, and two sisters; her brother, David; many nieces and nephews; and her lifelong best friend, Vicki.

Mr. Speaker, I ask that Members please join me in prayers for Kelly's family and friends in this difficult time. Join with my office as we personally feel this pain of her loss.

At this time, we just ask blessings on Kelly and those closest to her. God bless her.

We will never forget you.

WE SHOULD NEVER AGAIN DEPEND ON FOREIGN SUPPLIERS FOR SUPPLIES WE NEED TO KEEP AMERICANS SAFE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Michigan (Ms. SLOTKIN) for 5 minutes.

Ms. SLOTKIN. Mr. Speaker, I rise today to commend and thank my colleagues in the House for passing my bill, the Strengthening America's Strategic National Stockpile Act, with bipartisan, unanimous consent to ensure we never again depend on foreign suppliers for supplies we need to keep Americans safe.

This bill was truly a bipartisan effort: 10 Democrats and 10 Republicans joined me in introducing the bill. It was endorsed by the bipartisan Problem Solvers Caucus and passed out of the Energy and Commerce Committee on a similar unanimous, bipartisan vote.

At a time when divisions in Congress can seem insurmountable, this bill is an example of what we can accomplish, even in our country's most challenging moments, when we focus on the mission.

In this bill, we are responding to the mission to ensure that we never repeat what we went through in the early days of the COVID outbreak.

Amidst uncertainty and fear, my office received frantic calls and emails day after day in March and April from essential workers begging for help. As cases of COVID surged, our hospitals and frontline workers simply did not have the protective equipment necessary to keep themselves safe.

I heard from a physician in Brighton who compared his job to being a soldier

on the front lines wearing a T-shirt and a baseball cap instead of body armor and a helmet.

I heard from nurses in Mason who had to share one gown—not per person, but per entire staff.

I heard from doctors, nurses, and first responders who were bravely answering the call to serve their country, yet they were battling this deadly disease with improvised face shields and homemade solutions.

In my home State of Michigan, we requested millions of medical supplies from the Federal Strategic National Stockpile. Michigan needed millions of masks, gowns, face shields, and ventilators. It quickly became clear that the aid we sought from our national stockpile was delayed and insufficient. The supplies we did receive were woefully inadequate to meet the moment. Some masks arrived so far beyond their expiration date that they were starting to mold.

I found myself doing anything and everything I could to secure personal protective equipment for Michigan, calling dozens of mask manufacturers, negotiating with suppliers in China, and fighting for each and every shipment. My staff remembers some sleepless nights on the phone working to get doctors and nurses in Michigan enough supplies for just a few more days' work in the hospital.

At the same time, manufacturers across my district stepped up to help fill the void and started retooling their businesses to manufacture personal protective equipment for our frontline workers.

In Oxford, Michigan, Vaughn Hockey jumped into action, taking the specialized nylon that they used to make hockey pads and turning it into washable hospital gowns.

Magna International, in my town of Holly, Michigan, retooled their car seat fabric assembly line to make masks for workers and suppliers.

It was American ingenuity and Michigan grit at its finest.

This experience shook me to my core, and I immediately got to work with my colleagues on both sides of the aisle to draft legislation to ensure that America is better prepared for the next pandemic or the next phase of COVID.

Our bill, the Strengthening America's National Stockpile Act, was the product of our bipartisan collaboration and makes important fixes to our national stockpile for medical supplies so that it is fully stocked, maintained, and ready whenever Michigan and other States across the country need it.

□ 1000

This is even more important as we see the number of COVID cases across the country continue to increase. This bill requires constant upkeep to make sure that the items in the stockpile aren't expired. It infuses transparency into how supplies are distributed from the stockpile, and it helps States create their own stockpiles.

Second, it strengthens the stockpile's finances. It makes efficient use of taxpayer dollars and prevents waste by allowing the stockpile to sell excess supplies to other agencies. It also ensures that taxpayers are properly compensated for the use of stockpile products and boosts its funding.

Critically, it helps reduce our overall dependence on foreign suppliers by incentivizing production of critical medical supplies here in America. It creates a $500 million pilot program that will allow the stockpile to work directly with American manufacturers to replenish existing supplies, expand our manufacturing capacity, and strengthen these critical supply chains.

Over the next few weeks, I will be visiting a bunch of Michigan companies who could directly benefit from this portion of the bill.

Here in Congress, we have a responsibility to respond to the way this crisis is shaking our communities; to protect our healthcare workers and support the businesses who are adapting to this once-in-a-generation event. Our communities are stepping up and so should we. Passing this bill to better arm our doctors and nurses against this deadly disease is an important way to do that.

I thank my colleagues on both sides of the aisle for passing this legislation with overwhelming, bipartisan support, and I look forward to working together to help keep our fellow Americans safe.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Byrd, one of its clerks, announced that the Senate has passed bills of the following titles in which the concurrence of the House is requested:

S. 924. An act to amend the Child Abuse Prevention and Treatment Act to require training and education to teachers and other school employees, students, and the community about how to prevent, recognize, respond to, and report child sexual abuse in primary and secondary education.

S. 1160. An act to amend the Child Abuse Prevention and Treatment Act to increase support for mental health.

S. 1646. An act to designate the community-based outpatient clinic of the Department of Veterans Affairs in St. Angustine, Florida, as the ''Leo C. Chase Jr. Department of Veterans Affairs Clinic''.

S. 4072. An act to designate the clinic of the Department of Veterans Affairs in Bend, Oregon, as the ''Robert D. Maxwell Department of Veterans Affairs Clinic''.

The message also announced that the Senate has agreed to a concurrent resolution of the following title in which the concurrence of the House is requested:

S. Con. Res. 45. Concurrent Resolution providing for the use of the catafalque situated in the crypt beneath the Rotunda of the Capitol in connection with memorial services to be conducted in the Supreme Court Building and the Capitol for the late honorable Ruth Bader Ginsburg, Associate Justice of the United States Supreme Court.

VALUABLE ROLE FOOD BANKS PLAY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, earlier this month we celebrated National Food Bank Day. Each year on the first Friday in September, we have an opportunity to recognize the valuable role that food banks play in our communities and offer thanks to the tireless volunteers who help feed hunger-challenged families nationwide.

No matter the time of the year, food banks and food pantries support our neighbors in need with access to food, and throughout the pandemic, we have seen just how critical this access can be.

In 2018, more than 37 million Americans were considered food insecure, including 11 million children. The Department of Agriculture, defines food insecurity as ''a lack of consistent access to enough food for an active, healthy life.''

Healthy families need access to quality, nutritious food. As a former chairman of the Committee on Agriculture Subcommittee on Nutrition, Oversight, and Department Operations, this is an issue that I feel very passionately about.

I am pleased to see the success of USDA's Farmers to Families Food Box program and have heard a lot of positive feedback from volunteers and food bank staff in my district.

Through the Coronavirus Food Assistance Program, or CFAP, the USDA has delivered more than 90 million boxes of fresh, delicious, nutritious food to families in need. Fresh fruits and vegetables, milk and dairy products, meat and more have been distributed by food banks, community centers, and churches nationwide.

I would be remiss if I didn't mention how helpful this has been for our farmers and ranchers as well. Earlier in the pandemic, we heard too many stories of dairy farmers dumping their milk and crops going to waste. The Farmers to Families Food Box program allows farmers to sell their products and crops to be used in the boxes which has reduced waste.

John, from the Christian Food Bank of Elk County in my district, called the boxes a ''Godsend,'' noting that recipients were deeply appreciative and amazed by the quality and variety of the food.

Mel Curtis, director of the Centre County YMCA, said the boxes have been extremely helpful for families because the boxes provide goods that individuals and families with limited income may have to forego at the grocery store.

I would like to give a special shoutout to Mel Curtis and all of the other hardworking people at the Centre County YMCA. I have been particularly impressed with their high energy, can-

do spirit, and constant commitment to serving families in the Centre region. Mel and his team are always innovating and thinking of new ways to reach out to the community.

I was pleased to join the Centre County YMCA this summer for a Travelin' Table event to collect donations of food and to pack grab-and-go lunches for local students. Travelin' Table is a mobile feeding bus. Typically, the bus makes six to eight stops a day delivering food, but operations have been kicked into high gear during the pandemic thanks to the YMCA team.

Mr. Speaker, that Travelin' Table, that mobile feeding bus, was made possible largely through a grant from USDA with rural economic development, and just a tremendous impact that that has had at a critical time that all of our families across this Nation are facing.

This kind of attitude and commitment to service is a beacon of hope during these times, Mr. Speaker.

I thank the Centre County YMCA, the Christian Food Bank of Elk County, and all of our other food bank staff and volunteers who are helping families in their communities.

A special shout-out also to Patti Long, for her volunteer efforts in my own home community of Howard.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until 11 a.m. today.

Accordingly (at 10 o'clock and 5 minutes a.m.), the House stood in recess.

□ 1100

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. LEE of California) at 11 a.m.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Lord, merciful God, we give You thanks for giving us another day.

During the deliberations of this day, send Your spirit of wisdom and good judgment upon the Members of the people's House, that the appropriation provisions they must address would redound to the benefit of all Americans.

Bless those throughout our Nation who are suffering from disease and natural disaster, and protect those who labor to assist them. Lord, have mercy.

May all that is done today be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. Pursuant to section 4(a) of House Resolution 967, the Journal of the last day's proceedings is approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Arizona (Mr. O'HALLERAN) come forward and lead the House in the Pledge of Allegiance.

Mr. O'HALLERAN led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

CELEBRATING THE EFFORTS OF THE GILA RIVER INDIAN COMMUNITY

(Mr. O'HALLERAN asked and was given permission to address the House for 1 minute.)

Mr. O'HALLERAN. Madam Speaker, I rise today to speak in support of my Blackwater Trading Post Land Transfer Act, which passed the House of Representatives by voice vote yesterday.

I would like to thank Chairman GRIJALVA and Ranking Member BISHOP for moving this bill through regular order. My bill is a commonsense fix that will bring the Blackwater Trading Post, which the Gila River Indian Community owns, into trust status. The Blackwater Trading Post is a culturally and historically significant place.

As Members of Congress, we are able to restore Tribal homelands. I am honored that we did so yesterday. During these difficult times, I am glad that we are able to advance legislation that serves our constituents.

I thank my colleagues on both sides of the aisle for helping me move this initiative across the finish line. The Gila River Indian Community has worked hard to acquire this land, and passing this bill today is a celebration of their effort.

RECOGNIZING NATIONAL RECOVERY MONTH

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Madam Speaker, I rise today to recognize September as National Recovery Month, an opportunity to raise awareness about substance abuse and mental health, and to shed light on the resources available to help those on the road to recovery.

Before my time in Congress, I spent 28 years as a therapist and rehabilitation services manager. I have seen firsthand how substance abuse and mental health disorders can impact an individual and their loved ones.

Substance abuse and mental health disorders do not discriminate. They do not see race, gender, or socioeconomic status. This is a particularly difficult time to be struggling with a substance abuse problem or mental health disorder. COVID–19 has put an enormous strain on the American people over the last several months, and mental health has been undoubtedly impacted.

We can all play a part in helping those who are struggling. I would like to encourage anyone in need to take advantage of the resources available through the Substance Abuse and Mental Health Services Administration by visiting their website or calling 1–800–662–HELP. Sometimes just a phone call can be a big step on the road to recovery.

RECOGNIZING THE SEVERITY OF COVID–19

(Mr. CARSON of Indiana asked and was given permission to address the House for 1 minute.)

Mr. CARSON of Indiana. Madam Speaker, I rise today to honor the 200,000 Americans, including the 3,500 Hoosiers who have lost their lives to COVID–19. We won't forget those we lost, our family, friends, neighbors, coworkers, teachers, spiritual leaders, and much more.

I also want to remember my cousins, who passed away from the virus earlier this year. Who knows how many lives could have been saved if our leaders had been honest about the severity of COVID–19 from the start? Who knows how many millions could have avoided this illness and possible lifetime complications from it, if those leaders had not made them make the impossible choice between their health and their livelihoods?

I introduced H.R. 7161, the COVID–19 Memorial Quilt Act of 2020, to create a national memorial, Madam Speaker, to everyone we have lost. We can't change the past, but we can impact the future.

The Senate must pass the HEROES Act, which we passed in May, to provide strong relief from COVID–19. We can save countless lives if we put partisanship aside and work together.

CELEBRATING NATIONAL SMALL BUSINESS WEEK

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Madam Speaker, I rise to celebrate National Small Business Week, which recognizes the contributions small business owners and entrepreneurs make to our great society.

More than half of Americans either own or work for a small business, and they create nearly two out of three

jobs in the U.S. every year. Unfortunately, our small businesses have been through the wringer this year. With coronavirus and overreaching government regulations, especially in States like California, now more than ever they are relying on us to help them through this difficult time.

If we want to get America's economy back on track to be the greatest in the world, it starts with support for our small businesses. They are the key to propelling America's prosperity forward.

RECOGNIZING AFFORDABLE INTERIOR SYSTEMS

(Mr. MCGOVERN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCGOVERN. Madam Speaker, I rise today to recognize Affordable Interior Systems, or AIS, of Leominster, Massachusetts, a company that normally manufactures office furniture, but which has organized volunteers from across the United States to create an amazing new initiative called Sew the Masks.

Like so many other patriotic Americans, when the AIS team began to see the terrible toll the coronavirus pandemic was inflicting on our country, they jumped into action. Affectionately drawing on the inspiration of World War II icon Rosie the Riveter, AIS leveraged their expertise and retrofitted a chair production line to produce high-quality, reusable masks.

Then they mobilized their own employees, as well as volunteers from across the country, affectionately known as Rosies, to sew high-quality reusable masks for first responders and other essential employees.

Madam Speaker, I find their dedication to helping their neighbors in the fight against COVID–19 nothing short of awe-inspiring, and I hope you will join me in recognizing the amazing work of AIS and their volunteers from across the country.

PRESIDENT TRUMP'S SUPREME COURT PICK

(Ms. FOXX of North Carolina asked and was given permission to address the House for 1 minute.)

Ms. FOXX of North Carolina. Madam Speaker, Democrats love to throw around the term ''constitutional crisis'' to distract the American people from the facts.

Was it a constitutional crisis when 22 past Presidents made Supreme Court nominations in election years? We didn't hear Democrats harping then, but we sure do now.

Democrats believe that the vacancy on the Supreme Court is theirs for the taking, and they claim it would be illegal for President Trump to appoint a Justice this year. It is absurd to say that a duly-elected President fulfilling his constitutional duty is illegal.

Democrats aren't respecting the Constitution; they are using their distorted interpretation of it to justify attacking President Trump for simply doing his job. The seat must be filled without delay.

CONSIDERING JUSTICE GINSBURG'S REPLACEMENT BEFORE THE ELECTION

(Mr. BUTTERFIELD asked and was given permission to address the House for 1 minute.)

Mr. BUTTERFIELD. Madam Speaker, on Friday night, a great American, Justice Ruth Bader Ginsburg, passed from labor to reward. Moments after her passing, the Senate Republican Leader announced that Republicans will confirm any name that President Trump will send over, whether it is before or after the election.

It was in February of 2016, 9 months before the election, that Justice Scalia unexpectedly passed away, and Senate Republicans announced they would wait until the election of the new President to consider the replacement. Because of this obstruction, President Obama was denied an opportunity to replace Justice Scalia. Republicans then took control and packed the Court with the confirmation of Justice Gorsuch.

And now this is 2016 in reverse. The Senate Republican Leader and LINDSEY GRAHAM are determined to confirm a replacement before the election. This is the height of hypocrisy. It places the integrity of our judiciary in a place where it should not be. We will not tolerate a second court packing. Do it at your peril.

A GREAT VICTORY FOR OUR FIRST RESPONDERS

(Mr. ZELDIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ZELDIN. Madam Speaker, as early as today, the House will be voting to pass the Don't Break Up the T-Band Act, of which I am proud to be an original cosponsor.

This would mark a great victory for our first responders who use the T-Band spectrum and bravely and selflessly put their lives on the line each and every day to protect our communities.

From hurricanes to fires, the T-Band spectrum provides critical communication between first responders. Even when cell phones, internet, and electricity cease to function, T-Band is the last line of defense.

However, the T-Band spectrum is mandated to be sold. According to the GAO, this misguided sale and the relocation of users would actually cost taxpayers $5 billion to $6 billion.

Thankfully, this bipartisan legislation would preserve the spectrum, and help ensure our first responders have the resources to do their jobs safely and effectively.

I urge the Senate to follow suit and move forward on this vital bill.

TRIBUTE TO TEGAN ROOBOL

(Ms. SLOTKIN asked and was given permission to address the House for 1 minute.)

Ms. SLOTKIN. Madam Speaker, today I rise to honor Tegan Roobol of Howell, Michigan.

Ms. Roobol has dedicated her career to helping others overcome obstacles. As a physical therapist who works with children with disabilities and those who have suffered traumatic injuries through the Livingston Educational Service Agency, Ms. Roobol has helped hundreds of children learn to walk, master basic motor skills, and gain independence.

Recently, the inspiring mother of two had the chance to try out some obstacles of her own when she competed on the popular TV series ''American Ninja Warrior.''

Frustrated with the lack of recreation opportunities for those with disabilities, she developed a unique, adaptive ninja warrior program for children with special needs, and founded a non-profit organization to reach even more kids.

Roobol has worked to overcome the obstacles of the stigma around mental illness, and bravely shared her own battle with depression in a book she authored.

Regardless of what happens on the obstacle course, Ms. Roobol is a real-life warrior, fighting to make a difference for some of the most vulnerable members of our community.

RECOGNIZING WORLD WAR II VETERAN GEORGE BEAM

(Mr. MCKINLEY asked and was given permission to address the House for 1 minute.)

Mr. MCKINLEY. Madam Speaker, I rise today to honor George Beam of Fort Ashby, West Virginia, who will be celebrating his 100th birthday next month.

George Beam's life is one of exemplary service to his community and his country. During the height of World War II, he enlisted and served in the United States Army, leaving behind his wife and newborn baby. Mr. Beam sensed the call of duty and he knew serving his country was the right thing to do.

For his service, he received numerous recognitions, including a Purple Heart for his injury at the infamous Battle of the Bulge.

After the war, Beam returned home to West Virginia where he operated several businesses in Fort Ashby.

George Beam, we wish you a happy 100th birthday. You truly are a great American.

REPUBLICANS ARE SUPPORTING THE INVESTOR CLASS WHILE DEMOCRATS ARE FIGHTING FOR THE WORKING CLASS

(Ms. PLASKETT asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. PLASKETT. Madam Speaker, while Senator MCCONNELL works fervently to confirm a Supreme Court Justice, he continues to block the relief that Americans need, holding a failed vote on a bill that refuses to crush the virus, abandons our heroes in State and local government, ignores families facing hunger and homelessness, and contains poison pills that Democrats cannot support.

As families suffer, Republicans continue to refuse to acknowledge the funding levels that experts, scientists, and the American people know is needed. They reject robust support for State, local, Tribal and territorial governments. They want to bully many schools into reopening before it is safe to do so, endangering children, educators, and creating new vectors for the virus to spread.

Republicans are ignoring the crisis of food insecurity, providing zero funds for nutrition assistance, and insufficient funds to our farmers.

Originally, our side, the Democrats, were willing to compromise and cut a trillion from the HEROES Act if the White House would add a trillion to the failed and anemic Senate bill. We wanted to negotiate and meet in the middle at $2.2 trillion. Yet, Senate Republicans and the White House continue to reject a compromise, and instead, the Senate GOP continues to move further away from what is needed.

While Republicans fail to take the catastrophe facing families seriously, our health and economy are crumbling. Republicans are supporting the investor class while Democrats are fighting for the working class.

□ 1115

LEADERS MUST CONDEMN VIOLENCE

(Mr. MEUSER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MEUSER. Madam Speaker, those who are placed in positions of leadership, particularly those elected by the people, have a responsibility to put their short-term interests aside for the greater collective good.

We have a problem in America with violence in our streets, destruction of property, and hateful rhetoric toward police and innocent bystanders every day. As a result, people are fleeing our cities in droves, yet many so-called leaders have tacitly condoned the destruction with phrases like: ''People will do what they do,'' and, ''There needs to be unrest in the streets for as long as there is unrest in our lives.'' ''No justice, no peace.'' We have all heard it.

If such indirect encouragement is not bad enough, continued silence from certain leaders may be even worse.

The idea that, after an assassination attempt of two sheriffs in California, the former attorney general, the top cop, and current Senator of the State remaining silent on this issue is outrageous.

Just this week, as a response to the President's constitutional duty to nominate a Supreme Court Justice, the far left immediately stated: ''Let this moment radicalize you.'' They later stated: ''Nothing is off the table.'' Just now, it was stated: ''Do so at your peril.'' That is a threat. This incites lawlessness and has nothing to do with national unity.

We can disagree on policy, but now, more than ever, we need new leaders who aspire to follow in the heroic footsteps of Martin Luther King and call out those who fail to do so.

CONGRESS NEEDS MORE COOPERATION

(Mr. BLUMENAUER asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BLUMENAUER. Madam Speaker, the shock of the loss of Justice Ginsburg and the stunning hypocrisy of Republicans who denied Judge Garland even a hearing because a year was not enough time rush to jam through another Trump appointment.

The devastating national disasters of the Oregon and California fires and Trump's failure to respond to the COVID health and economic disasters are a stunning backdrop to the work we have before us.

We have a chance to take steps in this Congress that in normal times would be historic reforms working with you, Madam Speaker on legislation to reform our hopelessly outdated marijuana legislation.

We have a chance to pass legislation that would rescue 500,000 independent restaurants, who are at risk of going out of business if we don't take steps now. And these are bipartisan initiatives.

Congress ought to do what it can moving forward where it can cooperate. Who knows, it might become habit forming.

HONORING 200,000 LIVES LOST WITH ACTION

(Ms. UNDERWOOD asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. UNDERWOOD. Madam Speaker, I rise today in solemn recognition of the grave milestone our Nation soon will be reaching: 200,000 lives lost to the COVID–19 pandemic—among them, 8,457 Illinoisans.

They were our nurses and doctors, our heroes on the front lines of the fight against this virus.

They were our grandparents who were forced to spend their final moments alone.

They were our essential workers, our vulnerable neighbors, our closest friends.

Their families have been devastated with grief, made worse by the painful reality that we cannot gather safely to mourn our losses together.

To every American who has lost someone to the coronavirus, I extend my deepest condolences, and I grieve with you.

I commit to you that I will continue to honor the lives lost with action through making investments in health and our economy to ensure that America recovers from COVID–19 stronger than ever.

HONORING THOSE WHO DON CROWNS OF ALL TYPES

(Ms. PRESSLEY asked and was given permission to address the House for 1 minute.)

Ms. PRESSLEY. Madam Speaker, I rise in strong support of the CROWN Act, which will move us one step closer to ending the centuries of discrimination against Black hair, discrimination that has rejected the dignity and beauty of my people.

From personnel handbooks to school dress code policies, Afros, locs, and twists have been codified as proxies for our Black skin and manifestations of anti-Black racism.

Many, especially Black women, grow up hearing that our natural coils and kinks are distracting, ghetto, ugly, and unprofessional. From as early as grade school, Black girls are pushed out of school for wearing their hair naturally. As we grow up, we are taught to straighten our hair if we want to get a job or simply live our lives in peace.

When I first joined Congress, I proudly chose to wear my hair in Senegalese twists because I sought to intentionally create space for all of us to show up in the world as our authentic selves.

Today, I navigate the world a little differently. My beautiful twists were taken from me due to the autoimmune disease known as alopecia universalis.

But today, I stand in honor of those who don crowns of all types. May they continue to shine.

IN HONOR OF JUSTICE RUTH BADER GINSBURG

(Mr. DOGGETT asked and was given permission to address the House for 1 minute.)

Mr. DOGGETT. Madam Speaker, Saturday Libby and I joined many at the Supreme Court to honor Justice Ruth Bader Ginsburg, a true defender of our most fundamental rights at a time when this President and his enablers increasingly threaten the very preservation of our democracy.

Having fought her entire professional life against double standards, it is essential that a double standard not apply to her replacement.

When Justice Scalia died 8 months before a Presidential election, Republicans blocked any consideration of President Obama's nomination to the Court. Only total hypocrisy would permit Republicans to name a replacement after voting for President has already begun in a number of States.

Why Trump's big rush? Because he wants this court packed with judges that will take away healthcare and protection for preexisting conditions for millions of Americans. And just in case, when he loses the popular vote once again, he needs some judges to help him cling to power. The best tribute to Justice Ginsburg is demanding consistency and then replacing a President who shares absolutely none of her values.

With everything at stake, we need to give it everything we have got. Let's protect the equality and justice she worked a lifetime to defend.

AMERICAN PEOPLE DESERVE BETTER

(Mr. CICILLINE asked and was given permission to address the House for 1 minute.)

Mr. CICILLINE. America will soon pass 200,000 deaths from COVID–19. This pandemic is now the second leading cause of death in our country, only behind heart disease.

This year, it will kill more Americans than lung cancer, stroke, Alzheimer's, diabetes, and the flu, and it didn't have to be this way.

President Trump knew the dangers in January. His Deputy National Security Advisor told him to cut off travel from China, but he didn't do that.

The next month, the President told a reporter that COVID–19 was more deadly than even your most strenuous flus, but he didn't tell the American people. He did what he always does when he faces a crisis. He failed the American people.

Just yesterday, he told a crowd of his own supporters in Ohio that the disease ''affects virtually nobody.'' Yet, 200,000 have died of this disease.

He is not up to his job. He never was. It is too big for him.

The American people deserve a President who will take this deadly virus seriously and has a plan to defeat it.

REPUBLICANS PUT THEMSELVES FIRST

(Ms. FUDGE asked and was given permission to address the House for 1 minute.)

Ms. FUDGE. Madam Speaker, on Friday, we lost an honorable and decent woman, Justice Ginsburg, a person who changed the world.

But for all her successes, those who are bent on choosing her successor have no decency. They have no honor. They have no integrity. It is a shame that they did not learn the lessons of Justice Ginsburg, which were decency and honesty and integrity, one who fought for others.

All they want to do is fight for themselves. They want to take away our healthcare. They don't want to help people who are in trouble. They don't care about people who are unemployed. All they want to do is win.

But what do they win? What have they won for this Nation? They just want to benefit themselves.

We are not here for ourselves. We are here for the people who sent us here. We are here to represent the people.

When you lose sight of that, what a shame, what an absolute shame. They are a disgrace to this Nation.

CONGRESS MUST WORK TO SAVE LIVES, PROTECT LIVELIHOODS

(Ms. LEE of California asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. LEE of California. Mr. Speaker, this pandemic has taken over 200,000 lives, bankrupted State and local governments, and destroyed our economy, not to mention nearly 20 million people have lost their jobs as a result of this devastating public health and economic crisis. Communities of color have been hit the hardest.

My condolences go out to those who have lost loved ones.

Over 4 months ago, House Democrats passed the HEROES Act, which reflects the needs of the American people and allocates the resources to save lives and to boost the economy. It has been over 130 days since we passed the HEROES Act.

Since that time, the other body and the White House have done nothing to help the American people. Instead, this administration and Senate Republicans muzzled scientists and refused to compromise.

Let me be clear: The White House intentionally downplayed the severity of the virus, and now the COVID pandemic has taken lives that could have been saved.

Time is of the essence. I urge my colleagues across the aisle to work with Democrats to save lives and protect livelihoods now more than ever.

□ 1130

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Ms. LEE of California). Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which the yeas and nays are ordered.

The House will resume proceedings on postponed questions at a later time.

EXTENSION OF THE CARIBBEAN BASIN ECONOMIC RECOVERY ACT

Mr. BLUMENAUER. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 991) to extend certain provisions of the Caribbean Basin Economic Recovery Act until September 30, 2030, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 991

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Extension of the Caribbean Basin Economic Recovery Act''.

SEC. 2. EXTENSION OF THE CARIBBEAN BASIN ECONOMIC RECOVERY ACT.

Section 213 of the Caribbean Basin Economic Recovery Act (19 U.S.C. 2703) is amended as follows:

(1) EXTENSION FOR CERTAIN KNIT APPAREL ARTICLES.—In clause (iii) of subsection (b)(2)(A)—

(A) in subclause (II)(cc), by striking ''September 30, 2020'' and inserting ''September 30, 2030''; and

(B) in subclause (IV)(dd), by striking ''September 30, 2020'' and inserting ''September 30, 2030''.

(2) EXTENSION OF LIMITATION WITH RESPECT TO CERTAIN OTHER APPAREL ARTICLES.—In clause (iv)(II) of such subsection, by striking ''18'' and inserting ''28''.

(3) EXTENSION OF TRANSITION PERIOD.—In subsection (b)(5)(D)(i), by striking ''September 30, 2020'' and inserting ''September 30, 2030''.

SEC. 3. CUSTOMS USER FEES.

(a) IN GENERAL.—Section 13031(j)(3) of the Consolidated Omnibus Budget Reconciliation Act of 1985 (19 U.S.C. 58c(j)(3)) is amended—

(1) in subparagraph (A), by striking ''September 30, 2029'' and inserting ''October 21, 2029''; and

(2) in subparagraph (B)(i), by striking ''September 30, 2029'' and inserting ''October 21, 2029''.

(b) RATE FOR MERCHANDISE PROCESSING FEES.—Section 503 of the United States–Korea Free Trade Agreement Implementation Act (Public Law 112–41; 19 U.S.C. 3805 note) is amended by striking ''September 30, 2029'' and inserting ''October 21, 2029''.

SEC. 4. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Oregon (Mr. BLUMENAUER) and the gentleman from Ohio (Mr. WENSTRUP) each will control 20 minutes.

The Chair recognizes the gentleman from Oregon.

GENERAL LEAVE

Mr. BLUMENAUER. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oregon?

There was no objection.

Mr. BLUMENAUER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, let me begin by commending Representatives SEWELL and WENSTRUP for taking a leadership role on this program. Last year, they introduced this bill to reauthorize the Caribbean Basin Trade Partnership Act, which expires at the end of the month. They helped organize a terrific hearing before the Ways and Means Trade Subcommittee to be able to focus on this.

It is imperative that the Senate act quickly on this bill and that we get it done before September 30.

In today's political climate, it is important to highlight those few areas of bipartisan consensus. The CBTPA has historically enjoyed that bipartisan and bicameral support, in part because of the shared history and close ties to the United States with the Caribbean Basin region.

There are about 13 million Americans who have Caribbean ancestors. They represent 4 percent of the American population.

The Caribbean, in particular Haiti, played a critical role in the American Revolutionary War, where hundreds of Haitians fought for America's independence.

Years later, Haiti would defend the French and become the first Black republic, influencing the rise of abolitionist and anti-colonial movements all over the world, especially here in the United States. Haiti's sacrifices and unyielding resolve continue to inspire millions.

Sadly, the United States, under the influence of slave-holding interests, actively worked against this fledgling new republic. They were threatened by the specter of a slave uprising and Black independent government.

The United States was hostile to Haiti for years, and worked to undermine its success. Rather than be a constructive partner to help this fledgling republic, the United States interfered, and more importantly, failed to embrace the emergence of the first Black republic.

Now, there are some admitted problems of governance, poverty, and corruption in Haiti and in the region. I personally strongly believe that some of those difficulties that Haiti experiences to this day are the result of failures of American policy.

That is why this Caribbean Basin Initiative is so important. It is an opportunity to continue to strengthen Haiti's economy and our working relationship.

In 2001, after that devastating earthquake in Haiti, I joined a bipartisan, bicameral delegation to Port-au-Prince to demonstrate the ongoing support in Congress to the Haitian people, to understand the challenges they face, and demonstrate our commitment to work with the Haitian Government to assist with reconstruction efforts.

Haiti, by design, is the primary beneficiary of the textile and apparel preferences under CBTPA, more important now than ever.

Recently, we heard firsthand at our hearing from witnesses and some of our colleagues, including Congresswoman SEWELL, about the development challenges that persist in the region.

Like any good trading relationship, we will continue to work to improve labor conditions, political stability, and expand economic development to all countries in the region.

Passing this reauthorization is an important step toward those goals.

Madam Speaker, I urge my colleagues to support this important legislation and I urge the Senate to act quickly to extend the bipartisan program without delay. It is an opportunity for us to demonstrate to the country and to ourselves that despite many of the challenges, there are things we can do working together to improve the conditions.

Madam Speaker, I reserve the balance of my time.

Mr. WENSTRUP. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in support of H.R. 991, which extends the Caribbean Basin Trade Partnership Act through 2030. This legislation enjoys wide bipartisan support, and I want to thank Congresswoman TERRI SEWELL for partnering with me to get this done.

Madam Speaker, I also thank Ranking Member BRADY and Chairman NEAL for their cooperation and support of this legislation as well.

As a Member of the House Ways and Means Committee, I am proud to support our Nation's trade preference programs, which bolster further economic expansion in truly developing nations and support jobs here in America. It is a true win-win scenario.

In particular, the Caribbean Basin Trade Partnership Act, or CBTPA, accomplishes that goal in the Caribbean, providing trade benefits to eight Caribbean nations, most notably, Haiti.

Furthermore, the program also benefits American businesses and workers, a number of whom have created strong, reliable partnerships with suppliers in the Caribbean. This partnership helps to add value for customers and supports American jobs.

Also of note, the program requires the use of U.S. yarn, which boosts jobs in our cotton and textile industry.

In my district, Cintas Corporation, which is headquartered in Cincinnati, utilizes a strong partnership with Haitian suppliers as part of their North American supply chain.

Finally, as we step back and look at the bigger picture: The CBTPA helps American stewardship of the Western Hemisphere, where we want to support budding democracies on our doorstep and create mutually beneficial economic stability with our neighbors. Our overall trade agenda is well served by agreements like the recently passed USMCA, as well as these important trade preference programs like the CBTPA.

Again, I want to thank Congresswoman SEWELL for her partnership on this issue, as well as Ranking Member BRADY and Chairman NEAL for their support.

Madam Speaker, this is good, sound policy which stands to benefit both Americans and our friendly neighbors in the Caribbean. I urge my colleagues to support its passage, and I reserve the balance of my time.

Mr. BLUMENAUER. Madam Speaker, I yield such time as she may consume to the gentlewoman from Alabama (Ms. SEWELL), who has played an instrumental role in this legislation.

Ms. SEWELL of Alabama. Madam Speaker, I thank Chairman BLUMENAUER for yielding me the time.

I rise today in support of H.R. 991, my legislation to reauthorize the Caribbean Basin Trade Promotion Act.

Madam Speaker, I thank my Republican colleague, BRAD WENSTRUP, for his leadership on this bill. I also want to thank Chairman NEAL and Ranking Member BRADY for all of their help.

Madam Speaker, I especially want to acknowledge my chairman of the Subcommittee on Trade, Mr. BLUMENAUER, for hosting a very meaningful hearing on the Caribbean Basin Trade Promotion Agreement and its importance of being reauthorized by September 30 of this year.

For two decades, the Caribbean Basin Trade Promotion Agreement has been a critical tool to expand our diplomatic and economic relationship with countries throughout the Caribbean Basin region. This agreement has allowed for duty- and quota-free treatment of products made with U.S. goods.

The liberalization of our trade relationship with these countries has strengthened Western Hemisphere supply chains, while providing economic development and job creation in the region.

In 2018, United States exports to CBI countries totalled $13.4 billion, while imports totaled $6 billion, creating a $7.4 billion goods trade surplus for the United States.

One of those Caribbean Basin countries, Haiti, has had tremendous economic benefits by the Caribbean Basin Trade Promotion Act. The economic benefits of the CBTPA are essential, with over 90 percent of their nearly $1 billion in exports entering the United States with the CBTPA or HOPE duty-free treatment. Moreover, the Association of Haitian Industries has estimated that the CBTPA, along with the HOPE and HELP programs, has created over 50,000 jobs in Haiti, alone.

The reauthorization of this program ahead of the September 30 deadline will allow us to continue to strengthen the foundation for long-term economic stability, while contributing to our diplomatic and security interests.

Continued economic development in the region is a goal that we should all share, and the passage of this legislation will reaffirm the commitment of the United States to this objective.

The importance of our diplomatic and economic ties with the Caribbean Basin countries is highlighted by the strong support for this legislation that we receive from the Congressional Black Caucus.

In a letter of support for H.R. 991 to congressional leadership, the CBC aptly pointed out: Millions of Americans have Caribbean ancestry and make up important segments of the United States population. Haiti is the first Black republic, influencing the rise of abolitionist and anticolonial movements all across the world, especially in the United States.

The history and the future for millions of Americans is directly tied to the economic prosperity of Caribbean Basin countries, and our relationship must reflect this reality.

Within this context, we also must continue to push our trading partners for compliance with key eligibility criteria under the agreement, including upholding the rights of workers and combating corruption. A lapse in this agreement would jeopardize the economic and social well-being of workers in the region.

Today's step forward to reauthorize this very important trade promotion program will allow for continued cooperation and enforcement on these critical issues. I look forward to remaining engaged with all of the stakeholders to support these goals, including expanding human rights and economic prosperity for all.

Madam Speaker, I want to thank the Ambassador of Haiti, Ambassador Denis, who testified before the subcommittee, for his eloquence on the importance of the Caribbean Basin Trade Promotion Agreement for Haiti, in particular.

Madam Speaker, I also want to thank all of the representatives from the eight Caribbean Basin countries that have come to my office and talked to us ad nauseam about how important it is that we extend the Caribbean Basin reauthorization.

As well, Madam Speaker, I would like to also thank Charlie Rangel, who was the member of the House Ways and Means Committee who really championed this initially, two decades ago. When I took Charlie's position on the Ways and Means Committee, he sat me down and told me how important it was that we not only reauthorize, but we strengthen the Caribbean Basin Trade Promotion Agreement.

So this is an important step in reauthorizing this very important trade agreement before its September 30 deadline.

Madam Speaker, I again want to say how proud I am that this agreement has huge bipartisan support. The reauthorization of this program would not be possible if it had not been for the bipartisan support that my colleague from Ohio, Congressman WENSTRUP, has so ably provided, a partnership in this agreement.

While debate over U.S. trade policy is often rigorous, the reauthorization of the Caribbean Basin Trade Promotion Agreement should be something that we can all support.

Madam Speaker, I am proud that this important issue is before us for a vote, and I urge all of my colleagues to vote in favor of this very important legislation.

Again, Madam Speaker, I want to thank Chairman BLUMENAUER for allowing me to speak on this very important measure.

□ 1145

Mr. WENSTRUP. Madam Speaker, I yield 4 minutes to the gentleman from Arizona (Mr. SCHWEIKERT), a distinguished member of the Ways and Means Committee.

Mr. SCHWEIKERT. Madam Speaker, I thank Ms. SEWELL and Dr. WENSTRUP for taking this on.

My reason for being here behind the microphone is more than Arizona grows an amazingly high-quality cotton and this is one of our markets. I think, actually, it is part of a vision a number of us have, and I thank Chairman BLUMENAUER for hopefully sharing this vision, and that is thinking of the world post the change of NAFTA, USMCA.

How do we start to become more hemispheric-centric? Our neighbors, particularly our neighbors who do truly still have overwhelming poverty, how do we engage in pieces of legislation that make it so we can trade with our neighbors, trade with those who are right around us? That is what is so powerful about what is being done here.

Being someone who has spent, not a lot of time but a little time in Haiti, you see things that are optimistic, hopeful, and heartbreaking at the same time. But these are parts of the building blocks of how we build an economic circle of virtue in our region.

So I am hopeful that we move this forward and the Senate takes it up quickly, but I am also hopeful that we start to see this in a more holistic vision of we now have a change in our trade agreement with Mexico, Canada.

Now, if we can update our trade agreements with the Caribbean Basin, what else can we do to make our region economically prosperous, economically fair, economically something that the rest of the world will look forward to and say: This is what trade, when it is done properly, can bring to people who have actually had really rough times, when you think of earthquakes and of hurricanes in the region.

These are some of the good things, as a country, we can do to our brothers and sisters who are our neighbors.

Mr. BLUMENAUER. Madam Speaker, I am prepared to close so I will defer to my colleague from Ohio. I reserve the balance of my time.

Mr. WENSTRUP. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, I just want to make one final comment. It has been a pleasure with this particular issue to work in a bipartisan fashion, not only with my friend Congresswoman SEWELL, but really with the entire committee. I think that we really came together and saw the benefits to America and to developing nations as we move forward.

Madam Speaker, I include in the RECORD a letter in support of this legislation from the textile, apparel, and footwear industry as well as the broader business community.

SEPTEMBER 22, 2020.

DEAR MEMBERS OF THE U.S. HOUSE OF REPRESENTATIVES: On behalf of the undersigned organizations—representing the full spectrum of the textile, apparel, and footwear industry, as well as the broader business community—we urge you to vote YES on H.R. 991—Extension of the Caribbean Basin Economic Recovery Act.

By extending the Caribbean Basin Economic Recovery Act to September 30, 2030, the Caribbean Basin Trade Partnership Act (CBTPA) will also be extended. Since its inception in 2000, CBTPA has become an important element of the effort to develop and facilitate trade within the Caribbean Basin region, most notably with Haiti. Overall, CBTPA is structured in a fashion that reasonably balances the interests of U.S. textile manufacturers with those of textile and apparel manufacturers in the region. The CBTPA requires the use of U.S. or CBTPA-regional yarns and fabrics, which means Haiti, as the main country still participating in the CBTPA, has become an important export market for U.S. textiles.

Along with the Haitian Hemispheric Opportunity through Partnership Encouragement (HOPE) Act, and the Haiti Economic Lift Program (HELP) Act, the CBTPA now increases U.S. exports to strategic allies in the Caribbean Basin. Not only have these programs supported numerous U.S. textile, apparel, and footwear jobs, but they have also supported economic development in the region, advancing key U.S. foreign, security, and immigration policy goals.

Specifically, the CBTPA continues to play a direct and critical role in advancing the industry partnership that currently exists between the United States and Haiti. In 2019, 100 percent (by volume) of apparel that was imported into the United States under the CBTPA was imported from Haiti. And U.S. apparel imports from Haiti continue to grow. In fact, total U.S. garment imports from Haiti grew 13.4% in 2019. Because the rules of origin for these programs generally require the use of U.S. fabrics and yarns, these U.S. garment imports incorporate prior U.S. textile exports.

Those benefits are now threatened because of questions surrounding the renewal of the CBTPA. These concerns come on top of the considerable pain, costs, and uncertainty the industry is already trying to manage as a result of COVID–19 and the accompanying economic crisis. Orders have already been placed for goods that will arrive well after September 30. Companies must increasingly assume that these orders will be fully dutiable—even if using U.S. inputs—putting our Haitian customers and partners, and our U.S. textile manufacturers and exporters at a disadvantage.

The CBTPA offers a great opportunity for companies looking to diversify their supply chains close to home, but it is set to expire on September 30, 2020. We urge you to vote YES on H.R. 991—Extension of the Caribbean Basin Economic Recovery Act and extend it another ten years.

Thank you for your consideration.

Sincerely,

Accessories Council; American Apparel & Footwear Association (AAFA); Council of

Fashion Designers of America (CFDA); Footwear Distributors & Retailers of America (FDRA); INDA, Association of the Nonwoven Fabrics Industry; National Retail Federation (NRF); North American Association of Uniform Manufacturers and Distributors; Outdoor Industry Association (OIA); Retail Industry Leaders Association (RILA); Sports & Fitness Industry Association (SFIA); Travel Goods Association (TGA); United States Fashion Industry Association (USFIA); U.S. Chamber of Commerce.

Mr. WENSTRUP. Madam Speaker, I yield back the balance of my time.

Mr. BLUMENAUER. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, I thank the good doctor, and Ms. SEWELL for helping us facilitate the movement of this legislation and make it possible for us to actually maybe even get it enacted in this Congress before the deadline expires at the end of the month.

As I referenced, this, I think, is very, very important. The region is home to these eight countries that have provided some 13 million Americans with a country of origin. It is in our neighborhood and it is an area where the United States has been involved from the beginning.

As I mentioned in my opening comments, we have not always distinguished ourselves with honor but this is an opportunity for us to do the right thing: to build on this existing legislation; to not have it expire; to demonstrate broad, bipartisan commitment and then get back to the hard work of implementing it.

It provides a framework but it is not self-executing. It is something that we need to do with policy, with our actions and words, being able to build on this as a foundation for progress in this critical region.

I thank Madam Speaker for the opportunity to advance it, and I strongly urge all of my colleagues to approve this legislation and be able to keep it in force before it expires at the end of the month.

Madam Speaker, I yield back the balance of my time.

Mr. BRADY. Madam Speaker, I want to thank Dr. BRAD WENSTRUP for yielding time to me, and I want to congratulate him and Ms. SEWELL for their strong, bipartisan leadership on this important bill.

I rise today in support of this legislation. The Caribbean Basin Trade Partnership creates jobs, promotes American values abroad, and incentivizes beneficiary countries to comply with the economic rule of law, bolstering their development.

The CBTPA helps these nations grow and create opportunities for their workers, farmers, and innovators. And in return, it creates a strong market for us to sell our U.S.-produced yarn and fabrics to apparel manufacturers in the Caribbean. The program strengthens our hemispheric manufacturing integration and allows us to compete against China, whose manufacturers certainly don't care about using U.S. inputs. As a result, we can sell our goods to more customers, keep prices here lower, and promote the spirit of free enterprise.

The Caribbean countries are our neighbors, and we should work together to improve our region's competitiveness.

But we should be here today voting on two trade extensions: the Caribbean Basin Trade Partnership and the Generalized System of Preferences.

Both of these programs have bipartisan support. Both of them are set to expire this year. And if we extend both of them today, our manufacturers, producers, and consumers would have more certainty right now.

In the midst of a pandemic, we should be doing everything we can to offer our job creators certainty, yet Democrats are not including an extension of GSP in today's vote.

The GSP program reduces tariffs on thousands of products from around the world. This program saves American families money on everyday products and boosts America's economy. And in my state of Texas, GSP brought our consumers and small businesses over $76 million in cost savings in 2018 alone.

The remainder of the Congressional schedule until GSP expires at the end of the year is completely unpredictable. We should not leave GSP on the cutting room floor. GSP deserves to be a bipartisan priority, and I continue to urge House Democrats to act.

I strongly support today's bill, and I urge bipartisan passage. But we must continue to work together to get GSP's extension across the finish line without further delay. Our American businesses cannot afford to wait.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Oregon (Mr. BLUMENAUER) that the House suspend the rules and pass the bill, H.R. 991, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period of less than 15 minutes.

Accordingly (at 11 o'clock and 50 minutes a.m.), the House stood in recess.

□ 1159

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. LEE of California) at 11 o'clock and 59 minutes a.m.

UYGHUR FORCED LABOR PREVENTION ACT

Mr. CASTRO of Texas. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 6210) ensuring that goods made with forced labor in the Xinjiang Uyghur Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6210

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Uyghur Forced Labor Prevention Act''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) In the Xinjiang Uyghur Autonomous Region of China, the Government of the People's Republic of China has, since 2017, arbitrarily detained as many as 1.8 million Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in a system of extrajudicial mass internment camps, and has subjected detainees to forced labor, torture, political indoctrination, and other severe human rights abuses.

(2) Forced labor exists within the Xinjiang Uyghur Autonomous Region's system of mass internment camps, and throughout the region, and is confirmed by the testimony of former camp detainees, satellite imagery, and official leaked documents from the Government of the People's Republic of China as part of a targeted campaign of repression of Muslim ethnic minorities.

(3) In addition to reports from researchers and civil society groups documenting evidence that many factories and other suppliers in the Xinjiang Uyghur Autonomous Region are exploiting forced labor, the Department of Commerce's Bureau of Industry and Security on July 22, 2020, added eleven entities to the entity list after determining the entities had been ''implicated in human rights violations and abuses in the implementation of China's campaign of repression, mass arbitrary detention, forced labor and high-technology surveillance against Uyghurs, Kazakhs, and other members of Muslim minority groups in the Xinjiang Uyghur Autonomous Region''.

(4) Audits and efforts to vet products and supply chains in the Xinjiang Uyghur Autonomous Region are unreliable due to the extent forced labor has been integrated into the regional economy, the mixing of involuntary labor with voluntary labor, the inability of witnesses to speak freely about working conditions given government surveillance and coercion, and the incentive of government officials to conceal government-sponsored forced labor.

(5) The Department of State's June 2019 Trafficking in Persons Report found that ''Authorities offer subsidies incentivizing Chinese companies to open factories in close proximity to the internment camps, and local governments receive additional funds for each inmate forced to work in these sites at a fraction of minimum wage or without any compensation.''.

(6) U.S. Customs and Border Protection has issued eight ''Withhold Release Orders'' on certain garments, hair products, cotton, processed cotton, and computer parts suspected to be produced with prison or forced labor in the Xinjiang Uyghur Autonomous Region.

(7) In its 2019 Annual Report, the Congressional-Executive Commission on China (CECC) found that products reportedly produced with forced labor by current and former mass internment camp detainees included textiles, electronics, food products, shoes, tea, and handicrafts.

(8) Section 307 of the Tariff Act of 1930 (19 U.S.C. 1307) states that it is illegal to import into the United States ''goods, wares, articles, and merchandise mined, produced, or manufactured wholly or in part'' by forced labor. Such merchandise is subject to exclusion or seizure and may lead to criminal investigation of the importer.

(9) The policies of the Government of the People's Republic of China are in contravention of international human rights instruments signed by that government, including—

(A) the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights, which the People's Republic of China has signed but not yet ratified;

(B) the International Covenant on Economic, Social, and Cultural Rights, ratified by the People's Republic of China in 2001; and

(C) the United Nations Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children (Palermo Protocol), to which the People's Republic of China has been a state party since February 2010.

SEC. 3. STATEMENT OF POLICY.

It is the policy of the United States—

(1) to prohibit the import of all goods, wares, articles, or merchandise mined, produced, or manufactured, wholly or in part, by forced labor from the People's Republic of China and particularly any such goods, wares, articles, or merchandise produced in the Xinjiang Uyghur Autonomous Region of China;

(2) to encourage the international community to reduce the import of any goods made with forced labor from the People's Republic of China, particularly those goods mined, manufactured, or produced in the Xinjiang Uyghur Autonomous Region;

(3) to coordinate with Mexico and Canada to effectively implement Article 23.6 of the United States-Mexico-Canada Agreement to prohibit the importation of goods produced in whole or in part by forced or compulsory labor, which includes goods produced in whole or in part by forced or compulsory labor in the People's Republic of China;

(4) to actively work to prevent, publicly denounce, and end human trafficking as a horrific assault on human dignity and to restore the lives of those affected by human trafficking, a modern form of slavery;

(5) to regard the prevention of atrocities as in its national interest, including efforts to prevent torture, enforced disappearances, severe deprivation of liberty, including mass internment, arbitrary detention, and widespread and systematic use of forced labor, and persecution targeting any identifiable ethnic or religious group; and

(6) to address gross violations of human rights in the Xinjiang Uyghur Autonomous Region through bilateral diplomatic channels and multilateral institutions where both the United States and the People's Republic of China are members and with all the authorities available to the United States Government, including visa and financial sanctions, export restrictions, and import controls.

SEC. 4. PROHIBITION ON IMPORTATION OF GOODS MADE IN THE XINJIANG UYGHUR AUTONOMOUS REGION.

(a) IN GENERAL.—Except as provided in subsection (b), all goods, wares, articles, and merchandise mined, produced, or manufactured wholly or in part in the Xinjiang Uyghur Autonomous Region of China, or by persons working with the Xinjiang Uyghur Autonomous Region government for purposes of the ''poverty alleviation'' program or the ''pairing-assistance'' program which subsidizes the establishment of manufacturing facilities in the Xinjiang Uyghur Autonomous Region, shall be deemed to be goods, wares, articles, and merchandise described in section 307 of the Tariff Act of 1930 (19 U.S.C. 1307) and shall not be entitled to entry at any of the ports of the United States.

(b) EXCEPTION.—The prohibition described in subsection (a) shall not apply if the Commissioner of U.S. Customs and Border Protection—

(1) determines, by clear and convincing evidence, that any specific goods, wares, articles, or merchandise described in subsection (a) were not produced wholly or in part by convict labor, forced labor, or indentured labor under penal sanctions; and

(2) submits to the appropriate congressional committees and makes available to the public a report that contains such determination.

(c) EFFECTIVE DATE.—This section shall take effect on the date that is 120 days after the date of the enactment of this Act.

SEC. 5. ENFORCEMENT STRATEGY TO ADDRESS FORCED LABOR IN THE XINJIANG UYGHUR AUTONOMOUS REGION.

(a) IN GENERAL.—Not later than 120 days after the date of the enactment of this Act, the Forced Labor Enforcement Task Force, established under section 741 of the United States-Mexico-Canada Agreement Implementation Act (19 U.S.C. 4681), shall submit to the appropriate congressional committees a report that contains an enforcement strategy to effectively address forced labor in the Xinjiang Uyghur Autonomous Region of China. The enforcement strategy shall describe the specific enforcement plans of the United States Government regarding—

(1) goods, wares, articles, and merchandise described in section 4(a) that are imported into the United States directly from the Xinjiang Uyghur Autonomous Region;

(2) goods, wares, articles, and merchandise described in section 4(a) that are imported into the United States from the People's Republic of China and are mined, produced, or manufactured in part in the Xinjiang Uyghur Autonomous Region or by persons working with the Xinjiang Uyghur Autonomous Region government for purposes of the ''poverty alleviation'' program or the ''pairing-assistance'' program; and

(3) goods, wares, articles, and merchandise described in section 4(a) that are imported into the United States from third countries and are mined, produced, or manufactured in part in the Xinjiang Uyghur Autonomous Region or by persons working with the Xinjiang Uyghur Autonomous Region government for purposes of the ''poverty alleviation'' program or the ''pairing-assistance'' program.

(b) MATTERS TO BE INCLUDED.—The strategy required by subsection (a) shall include the following:

(1) A description of the actions taken by the United States Government to address forced labor in the Xinjiang Uyghur Autonomous Region under section 307 of the Tariff Act of 1930 (19 U.S.C. 1307), including a description of all Withhold Release Orders issued, goods detained, and fines issued.

(2) A list of products made wholly or in part by forced or involuntary labor in the Xinjiang Uyghur Autonomous Region and a list of businesses that sold products in the United States made wholly or in part by forced or involuntary labor in the Xinjiang Uyghur Autonomous Region.

(3) A list of facilities and entities, including the Xinjiang Production and Construction Corps, that source material from the Xinjiang Uyghur Autonomous Region or by persons working with the Xinjiang Uyghur Autonomous Region government for purposes of the ''poverty alleviation'' program or the ''pairing-assistance'' program, a plan for identifying additional such facilities and entities, and facility- and entity-specific enforcement plans, including issuing specific Withhold Release Orders to support enforcement of section 4, with regard to each listed facility or entity.

(4) A list of high-priority sectors for enforcement, which shall include cotton and tomatoes, and a sector-specific enforcement plan for each high-priority sector.

(5) A description of the additional resources necessary for U.S. Customs and Border Protection to effectively implement the enforcement strategy.

(6) A plan to coordinate and collaborate with appropriate nongovernmental organizations and private sector entities to discuss the enforcement strategy for products made in the Xinjiang Uyghur Autonomous Region.

(c) FORM.—The report required by subsection (a) shall be submitted in unclassified form, but may include a classified annex, if necessary.

(d) UPDATES.—The Forced Labor Enforcement Task Force shall provide briefings to the appropriate congressional committees on a quarterly basis and, as applicable, on any updates to the strategy required by subsection (a) or any additional actions taken to address forced labor in the Xinjiang Uyghur Autonomous Region, including actions described in this Act.

(e) SUNSET.—This section shall cease to have effect on the earlier of—

(1) the date that is 8 years after the date of the enactment of this Act; or

(2) the date on which the President submits to the appropriate congressional committees a determination that the Government of the People's Republic of China has ended mass internment, forced labor, and any other gross violations of human rights experienced by Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in the Xinjiang Uyghur Autonomous Region.

SEC. 6. DETERMINATION RELATING TO CRIMES AGAINST HUMANITY OR GENOCIDE IN THE XINJIANG UYGHUR AUTONOMOUS REGION.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of State shall—

(1) determine if the practice of forced labor or other crimes against Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in the Xinjiang Uyghur Autonomous Region of China can be considered systematic and widespread and therefore constitutes crimes against humanity or constitutes genocide as defined in subsection (a) of section 1091 of title 18, United States Code; and

(2) submit to the appropriate congressional committees and make available to the public a report that contains such determination.

(b) FORM.—The report required by subsection (a)—

(1) shall be submitted in unclassified form but may include a classified annex, if necessary; and

(2) may be included in the report required by section 7.

SEC. 7. DIPLOMATIC STRATEGY TO ADDRESS FORCED LABOR IN THE XINJIANG UYGHUR AUTONOMOUS REGION.

(a) IN GENERAL.—Not later than 90 days after the date of the enactment of this Act, the Secretary of State, in coordination with the heads of other appropriate Federal departments and agencies, shall submit to the appropriate congressional committees a report that contains a United States strategy to promote initiatives to enhance international awareness of and to address forced labor in the Xinjiang Uyghur Autonomous Region of China.

(b) MATTERS TO BE INCLUDED.—The strategy required by subsection (a) shall include—

(1) a plan to enhance bilateral and multilateral coordination, including sustained engagement with the governments of United States partners and allies, to end forced labor of Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in the Xinjiang Uyghur Autonomous Region;

(2) public affairs, public diplomacy, and counter-messaging efforts to promote awareness of the human rights situation, including forced labor in the Xinjiang Uyghur Autonomous Region; and

(3) opportunities to coordinate and collaborate with appropriate nongovernmental organizations and private sector entities to raise awareness about forced labor made products from the Xinjiang Uyghur Autonomous Region and to provide assistance to Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups, including those formerly detained in mass internment camps in the region.

(c) ADDITIONAL MATTERS TO BE INCLUDED.—The report required by subsection (a) shall also include—

(1) to the extent practicable, a list of—

(A) entities in the People's Republic of China or affiliates of such entities that directly or indirectly use forced or involuntary labor in the Xinjiang Uyghur Autonomous Region; and

(B) Foreign persons that acted as agents of the entities or affiliates of entities described in subparagraph (A) to import goods into the United States; and

(2) a description of actions taken by the United States Government to address forced labor in the Xinjiang Uyghur Autonomous Region under existing authorities, including—

(A) the Trafficking Victims Protection Act of 2000 (Public Law 106–386; 22 U.S.C. 7101 et seq.);

(B) the Ellie Wiesel Genocide and Atrocities Prevention Act of 2018 (Public Law 115–441; 22 U.S.C. 2656 note); and

(C) the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 2656 note).

(d) FORM.—The report required by subsection (a) shall be submitted in unclassified form, but may include a classified annex, if necessary.

(e) UPDATES.—The Secretary of State shall include any updates to the strategy required by subsection (a) in the annual Trafficking in Persons report required by section 110(b) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)).

(f) SUNSET.—This section shall cease to have effect the earlier of—

(1) the date that is 8 years after the date of the enactment of this Act; or

(2) the date on which the President submits to the appropriate congressional committees a determination that the Government of the People's Republic of China has ended mass internment, forced labor, and any other gross violations of human rights experienced by Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in the Xinjiang Uyghur Autonomous Region.

SEC. 8. IMPOSITION OF SANCTIONS RELATING TO FORCED LABOR IN THE XINJIANG UYGHUR AUTONOMOUS REGION.

(a) REPORT REQUIRED.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, and not less frequently than annually thereafter, the President shall submit to the appropriate congressional committees a report that identifies each foreign person, including any official of the Government of the People's Republic of China, that the President determines—

(A) knowingly engages in, is responsible for, or facilitates the forced labor of Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in the Xinjiang Uyghur Autonomous Region of China; and

(B) knowingly engages in, contributes to, assists, or provides financial, material or technological support for efforts to contravene United States law regarding the importation of forced labor goods from the Xinjiang Uyghur Autonomous Region.

(2) FORM.—The report required under paragraph (1) shall be submitted in unclassified form, but may contain a classified annex.

(b) IMPOSITION OF SANCTIONS.—The President shall impose the sanctions described in subsection (c) with respect to each foreign person identified in the report required under subsection (a)(1).

(c) SANCTIONS DESCRIBED.—The sanctions described in this subsection are the following:

(1) ASSET BLOCKING.—The President shall exercise all of the powers granted to the President under the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) to the extent necessary to block and prohibit all transactions in property and interests in property of a foreign person identified in the report required under subsection (a)(1) if such property and interests in property—

(A) are in the United States;

(B) come within the United States; or

(C) come within the possession or control of a United States person.

(2) INELIGIBILITY FOR VISAS, ADMISSION, OR PAROLE.—

(A) VISAS, ADMISSION, OR PAROLE.—An alien described in subsection (a)(1) is—

(i) inadmissible to the United States;

(ii) ineligible to receive a visa or other documentation to enter the United States; and

(iii) otherwise ineligible to be admitted or paroled into the United States or to receive any other benefit under the Immigration and Nationality Act (8 U.S.C. 1101 et seq.).

(B) CURRENT VISAS REVOKED.—

(i) IN GENERAL.—An alien described in subsection (a)(1) is subject to revocation of any visa or other entry documentation regardless of when the visa or other entry documentation is or was issued.

(ii) IMMEDIATE EFFECT.—A revocation under clause (i) shall—

(I) take effect immediately; and

(II) automatically cancel any other valid visa or entry documentation that is in the alien's possession.

(d) IMPLEMENTATION; PENALTIES.—

(1) IMPLEMENTATION.—The President may exercise all authorities provided under sections 203 and 205 of the International Emergency Economic Powers Act (50 U.S.C. 1702 and 1704) to carry out this section.

(2) PENALTIES.—The penalties provided for in subsections (b) and (c) of section 206 of the International Emergency Economic Powers Act (50 U.S.C. 1705) shall apply to a foreign person that violates, attempts to violate, conspires to violate, or causes a violation of paragraph (1) to the same extent that such penalties apply to a person that commits an unlawful act described in subsection (a) of such section 206.

(e) WAIVER.—The President may waive the application of sanctions under this section with respect to a foreign person identified in the report required under subsection (a)(1) if the President determines and certifies to the appropriate congressional committees that such a waiver is in the national interest of the United States.

(f) EXCEPTIONS.—

(1) EXCEPTION FOR INTELLIGENCE ACTIVITIES.—Sanctions under this section shall not apply to any activity subject to the reporting requirements under title V of the National Security Act of 1947 (50 U.S.C. 3091 et seq.) or any authorized intelligence activities of the United States.

(2) EXCEPTION TO COMPLY WITH INTERNATIONAL OBLIGATIONS AND FOR LAW ENFORCEMENT ACTIVITIES.—Sanctions under subsection (c)(2) shall not apply with respect to an alien if admitting or paroling the alien into the United States is necessary—

(A) to permit the United States to comply with the Agreement regarding the Headquarters of the United Nations, signed at Lake Success June 26, 1947, and entered into force November 21, 1947, between the United Nations and the United States, or other applicable international obligations; or

(B) to carry out or assist law enforcement activity in the United States.

(g) TERMINATION OF SANCTIONS.—The President may terminate the application of sanctions under this section with respect to a foreign person if the President determines and reports to the appropriate congressional committees not less than 15 days before the termination takes effect that—

(1) information exists that the person did not engage in the activity for which sanctions were imposed;

(2) the person has been prosecuted appropriately for the activity for which sanctions were imposed;

(3) the person has credibly demonstrated a significant change in behavior, has paid an appropriate consequence for the activity for which sanctions were imposed, and has credibly committed to not engage in an activity described in subsection (a)(1) in the future; or

(4) the termination of the sanctions is in the national security interests of the United States.

(h) SUNSET.—This section, and any sanctions imposed under this section, shall terminate on the date that is 5 years after the date of the enactment of this Act.

(i) DEFINITIONS OF ADMISSION; ADMITTED; ALIEN.—In this section, the terms ''admission'', ''admitted'', and ''alien'' have the meanings given those terms in section 101 of the Immigration and Nationality Act (8 U.S.C. 1101).

SEC. 9. DISCLOSURES TO THE SECURITIES AND EXCHANGE COMMISSION OF CERTAIN ACTIVITIES RELATED TO THE XINJIANG UYGHUR AUTONOMOUS REGION.

(a) POLICY STATEMENT.—It is the policy of the United States to protect American investors, through stronger disclosure requirements, alerting them to the presence of Chinese and other companies complicit in gross violations of human rights in United States capital markets, including American and foreign companies listed on United States exchanges that enable the mass internment and population surveillance of Uyghurs, Kazakhs, Kyrgyz, and other Muslim minorities and source products made with forced labor in the Xinjiang Uyghur Autonomous Region of China. Such involvements represent clear, material risks to the share values and corporate reputations of certain of these companies and hence to prospective American investors, particularly given that the United States Government has employed sanctions and export restrictions to target individuals and entities contributing to human rights abuses in the People's Republic of China.

(b) DISCLOSURE OF CERTAIN ACTIVITIES RELATING TO THE XINJIANG UYGHUR AUTONOMOUS REGION.—

(1) IN GENERAL.—Section 13 of the Securities Exchange Act of 1934 (15 U.S.C. 78m) is amended by adding at the end the following new subsection:

''(s) DISCLOSURE OF CERTAIN ACTIVITIES RELATING TO THE XINJIANG UYGHUR AUTONOMOUS REGION.—

''(1) IN GENERAL.—Each issuer required to file an annual or quarterly report under subsection (a) shall disclose in that report the information required by paragraph (2) if, during the period covered by the report, the issuer or any affiliate of the issuer—

''(A) knowingly engaged in an activity with an entity or the affiliate of an entity engaged in creating or providing technology or other assistance to create mass population surveillance systems in the Xinjiang

Uyghur Autonomous Region of China, including any entity included on the Department of Commerce's 'Entity List' in the Xinjiang Uyghur Autonomous Region;

''(B) knowingly engaged in an activity with an entity or an affiliate of an entity building and running detention facilities for Uyghurs, Kazakhs, Kyrgyz, and other members of Muslim minority groups in the Xinjiang Uyghur Autonomous Region;

''(C) knowingly engaged in an activity with an entity or an affiliate of an entity described in section 7(c)(1) of the Uyghur Forced Labor Prevention Act, including—

''(i) any entity engaged in the 'pairing-assistance' program which subsidizes the establishment of manufacturing facilities in the Xinjiang Uyghur Autonomous Region; or

''(ii) any entity for which the Department of Homeland Security has issued a 'Withhold Release Order' under section 307 of the Tariff Act of 1930 (19 U.S.C. 1307); or

''(D) knowingly conducted any transaction or had dealings with—

''(i) any person the property and interests in property of which were sanctioned by the Secretary of State for the detention or abuse of Uyghurs, Kazakhs, Kyrgyz, or other members of Muslim minority groups in the Xinjiang Uyghur Autonomous Region;

''(ii) any person the property and interests in property of which are sanctioned pursuant to the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 2656 note); or

''(iii) any person or entity responsible for, or complicit in, committing atrocities in the Xinjiang Uyghur Autonomous Region.

''(2) INFORMATION REQUIRED.—

''(A) IN GENERAL.—If an issuer described under paragraph (1) or an affiliate of the issuer has engaged in any activity described in paragraph (1), the information required by this paragraph is a detailed description of each such activity, including—

''(i) the nature and extent of the activity;

''(ii) the gross revenues and net profits, if any, attributable to the activity; and

''(iii) whether the issuer or the affiliate of the issuer (as the case may be) intends to continue the activity.

''(B) EXCEPTION.—The requirement to disclose information under this paragraph shall not include information on activities of the issuer or any affiliate of the issuer activities relating to—

''(i) the import of manufactured goods, including electronics, food products, textiles, shoes, and teas, that originated in the Xinjiang Uyghur Autonomous Region; or

''(ii) manufactured goods containing materials that originated or are sourced in the Xinjiang Uyghur Autonomous Region.

''(3) NOTICE OF DISCLOSURES.—If an issuer reports under paragraph (1) that the issuer or an affiliate of the issuer has knowingly engaged in any activity described in that paragraph, the issuer shall separately file with the Commission, concurrently with the annual or quarterly report under subsection (a), a notice that the disclosure of that activity has been included in that annual or quarterly report that identifies the issuer and contains the information required by paragraph (2).

''(4) PUBLIC DISCLOSURE OF INFORMATION.—Upon receiving a notice under paragraph (3) that an annual or quarterly report includes a disclosure of an activity described in paragraph (1), the Commission shall promptly—

''(A) transmit the report to—

''(i) the President;

''(ii) the Committee on Foreign Affairs and the Committee on Financial Services of the House of Representatives; and

''(iii) the Committee on Foreign Relations and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

''(B) make the information provided in the disclosure and the notice available to the public by posting the information on the Internet website of the Commission.

''(5) INVESTIGATIONS.—Upon receiving a report under paragraph (4) that includes a disclosure of an activity described in paragraph (1), the President shall—

''(A) make a determination with respect to whether any investigation is needed into the possible imposition of sanctions under the Global Magnitsky Human Rights Accountability Act (22 U.S.C. 2656 note) or section 8 of the Uyghur Forced Labor Prevention Act or whether criminal investigations are warranted under statutes intended to hold accountable individuals or entities involved in the importation of goods produced by forced labor, including under section 545, 1589, or 1761 of title 18, United States Code; and

''(B) not later than 180 days after initiating any such investigation, make a determination with respect to whether a sanction should be imposed or criminal investigations initiated with respect to the issuer or the affiliate of the issuer (as the case may be).

''(6) ATROCITIES DEFINED.—In this subsection, the term 'atrocities' has the meaning given the term in section 6(2) of the Elie Wiesel Genocide and Atrocities Prevention Act of 2018 (Public Law 115–441; 22 U.S.C. 2656 note).''.

(c) SUNSET.—Section 13(s) of the Securities Exchange Act of 1934, as added by subsection (b), is repealed on the earlier of—

(1) the date that is 8 years after the date of the enactment of this Act; or

(2) the date on which the President submits to the appropriate congressional committees a determination that the Government of the People's Republic of China has ended mass internment, forced labor, and any other gross violations of human rights experienced by Uyghurs, Kazakhs, Kyrgyz, and members of other Muslim minority groups in the Xinjiang Uyghur Autonomous Region.

(d) EFFECTIVE DATE.—The amendment made by subsection (b) shall take effect with respect to reports required to be filed with the Securities and Exchange Commission after the date that is 180 days after the date of the enactment of this Act.

SEC. 10. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Affairs, the Committee on Financial Services, and the Committee on Ways and Means of the House of Representatives; and

(B) the Committee on Foreign Relations, the Committee on Banking, Housing, and Urban Affairs, and the Committee on Finance of the Senate.

(2) ATROCITIES.—The term ''atrocities'' has the meaning given the term in section 6(2) of the Elie Wiesel Genocide and Atrocities Prevention Act of 2018 (Public Law 115–441; 22 U.S.C. 2656 note).

(3) CRIMES AGAINST HUMANITY.—The term ''crimes against humanity'' includes, when committed as part of a widespread or systematic attack directed against any civilian population, with knowledge of the attack—

(A) murder;

(B) deportation or forcible transfer of population;

(C) torture;

(D) extermination;

(E) enslavement;

(F) rape, sexual slavery, or any other form of sexual violence of comparable severity;

(G) persecution against any identifiable group or collectivity on political, racial, national, ethnic, cultural, religious, gender, or other grounds that are universally recognized as impermissible under international law; and

(H) enforced disappearance of persons.

(4) FORCED LABOR.—The term ''forced labor'' has the meaning given the term in section 307 of the Tariff Act of 1930 (19 U.S.C. 1307).

(5) FOREIGN PERSON.—The term ''foreign person'' means a person that is not a United States person.

(6) PERSON.—The term ''person'' means an individual or entity.

(7) MASS POPULATION SURVEILLANCE SYSTEM.—The term ''mass population surveillance system'' means installation and integration of facial recognition cameras, biometric data collection, cell phone surveillance, and artificial intelligence technology with the ''Sharp Eyes'' and ''Integrated Joint Operations Platform'' or other technologies that are used by Chinese security forces for surveillance and big-data predictive policing.

(8) UNITED STATES PERSON.—The term ''United States person'' means—

(A) a United States citizen or an alien lawfully admitted for permanent residence to the United States; or

(B) an entity organized under the laws of the United States or any jurisdiction within the United States, including a foreign branch of such an entity.

SEC. 11. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. CASTRO) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from Texas (Mr. CASTRO).

GENERAL LEAVE

Mr. CASTRO of Texas. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include in the RECORD extraneous material on H.R. 6210.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. CASTRO of Texas. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in support of the Uyghur Forced Labor Prevention Act. The human rights atrocities the Chinese Government is perpetuating in Xinjiang are now well-known. More than 1 million Uyghur and Muslim ethnic minorities have been thrown in detention camps, where they face torture, brainwashing, sexual abuse, and even forced sterilization.

These atrocities are horrific, and the Congress has acted to hold perpetrators of these crimes accountable by passing the Uyghur Human Rights Policy Act. But we must not stop there.

The legislation we are considering today focuses on a specific form of

abuse in Xinjiang: forced labor, an abuse of human rights which also has grave implications for supply chains and consumers worldwide. Importing goods made from forced labor violates U.S. law, and Americans certainly would not want to contribute to the PRC Government's human rights abuses by unwittingly purchasing apparel or hair products made by a detained Uyghur.

Among other things, this legislation reaffirms U.S. policy to reduce the number and types of goods made from forced labor, mandates reports surrounding the U.S. Government's strategy to spread awareness of forced labor in Xinjiang and address that challenge, and requires the Secretary of State to determine whether the practice of forced labor in Xinjiang constitutes crimes against humanity or even genocide.

This measure builds on what Congress has already done to hold the Chinese Government accountable and to end the mass detention, repression, and surveillance of minorities in Xinjiang.

I thank Chairman MCGOVERN, Mr. SMITH, and other bipartisan champions for their consistent leadership on these issues, and I hope Congress can, as we have before, take a strong stand against Beijing and its crimes.

Madam Speaker, I urge my colleagues to join me in support of the bill. This is a good measure. I am pleased to support it, and I am also pleased that it has, I believe, bipartisan support.

Madam Speaker, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE JUDICIARY,
Washington, DC, September 17, 2020.

Hon. ELIOT ENGEL,
Chairman, Committee on Foreign Affairs, House of Representatives, Washington, DC.

DEAR CHAIRMAN ENGEL: This is to advise you that the Committee on the Judiciary has now had an opportunity to review the provisions in H.R. 6210, the ''Uyghur Forced Labor Prevention Act,'' that fall within our Rule X jurisdiction. I appreciate your consulting with us on those provisions. The Judiciary Committee has no objection to your including them in the bill for consideration on the House floor, and to expedite that consideration is willing to forgo action on H.R. 6210, with the understanding that we do not thereby waive any future jurisdictional claim over those provisions or their subject matters.

In the event a House-Senate conference on this or similar legislation is convened, the Judiciary Committee reserves the right to request an appropriate number of conferees to address any concerns with these or similar provisions that may arise in conference.

Please place this letter into the Congressional Record during consideration of the measure on the House floor. Thank you for the cooperative spirit in which you have worked regarding this matter and others between our committees.

Sincerely,

JERROLD NADLER,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, September 17, 2020.

Hon. JERROLD NADLER,
Chairman, Committee on the Judiciary, House of Representatives, Washington, DC.

DEAR CHAIRMAN NADLER: I am writing to you concerning H.R. 6210, the Uyghur Forced Labor Prevention Act. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the House Committee on the Judiciary under House Rule X, and that your Committee will forgo action on H.R. 6210 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I will also support the appointment of Committee on the Judiciary conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL,
Chairman.

COMMITTEE ON WAYS AND MEANS,
HOUSE OF REPRESENTATIVES,
Washington, DC, September 21, 2020.

Hon. ELIOT L. ENGEL,
Chairman, Committee on Foreign Affairs, Washington, DC.

DEAR CHAIRMAN ENGEL: In recognition of the desire to expedite consideration of H.R. 6210, the Uyghur Forced Labor Prevention Act, the Committee on Ways and Means agrees to waive formal consideration of the bill as to provisions that fall within the rule X jurisdiction of the Committee on Ways and Means.

The Committee on Ways and Means takes this action with the mutual understanding that we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and the Committee will be appropriately consulted and involved as the bill or similar legislation moves forward so that we may address any remaining issues within our jurisdiction. The Committee also reserves the right to seek appointment of an appropriate number of conferees to any House-Senate conference involving this or similar legislation.

Finally, I would appreciate your response to this letter confirming this understanding and would ask that a copy of our exchange of letter on this matter be included in the Congressional Record during floor consideration of H.R. 6210.

Sincerely,

RICHARD E. NEAL,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, September 21, 2020.

Hon. RICHARD E. NEAL,
Chairman, Committee on Ways and Means, House of Representatives, Washington, DC.

DEAR CHAIRMAN NEAL: I am writing to you concerning H.R. 6210, the Uyghur Forced Labor Prevention Act. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the Committee on Ways and Means under House Rule X, and that your Committee will forgo action on H.R. 6210 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I will also support the appointment of Committee on Ways and Means conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, September 21, 2020.

Hon. MAXINE WATERS,
Chairwoman, Committee on Financial Services, House of Representatives, Washington, DC.

DEAR CHAIRWOMAN WATERS: I am writing to you concerning H.R. 6210, the Uyghur Forced Labor Prevention Act. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the Committee on Financial Services under House Rule X, and that your Committee will forgo action on H.R. 6210 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I also acknowledge that your Committee will be appropriately consulted and involved as this or similar legislation moves forward, and will support the appointment of Committee on Financial Services conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FINANCIAL SERVICES,
Washington, DC, September 22, 2020.

Hon. ELIOT L. ENGEL,
Chairman, Committee on Foreign Affairs, House of Representatives, Washington, DC.

DEAR MR. CHAIRMAN: I am writing concerning H.R. 6210, the ''Uyghur Forced Labor Prevention Act.'' In order to permit H.R. 6210 to proceed expeditiously to the House Floor, I agree to forgo formal consideration of the bill.

The Committee on Financial Services takes this action to forego formal consideration of H.R. 6210 in light of the mutually agreed changes to provisions within the jurisdiction of the Committee on Financial Services. We are also doing so based on our mutual understanding that, by foregoing formal consideration of H.R. 6210 at this time, we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and that our Committee will be appropriately consulted and involved as this or similar legislation moves forward with regard to any matters in the Committee's jurisdiction. The Committee also reserves the right to seek appointment of an appropriate number of conferees to any House-Senate

conference involving this or similar legislation that involves the Committee's jurisdiction and request your support for any such request.

Finally, I would appreciate your response to this letter confirming this understanding, and I would ask that a copy of our exchange of letters on this matter be included in the Congressional Record during Floor consideration of H.R. 6210.

Sincerely,

MAXINE WATERS,
Chairman.

Mr. MCCAUL. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I want to start this debate with a simple truth that we cannot afford to forget: Truly free trade cannot involve slave labor.

Today, the Chinese Community Party is using the forced labor of the Uyghurs and other minorities to help bankroll its cultural genocide against those very same groups. The repression taking place right now in Xinjiang is breathtaking in its scope and in its brutality.

It involves the detention of 1 to 3 million people in concentration camps, Madam Speaker. It involves surveillance and attempted brainwashing on a massive scale. It involves breaking up families and taking children from their parents. It involves forced sterilization and, Madam Speaker, forced abortions.

This should be a terrifying warning to the world, to China's neighbors, and to the American people that the Chinese Communist Party is fundamentally focused on expanding its power, its control, and its authoritarian style of government. It views things that it does not control, like religion, cultural identity, and the yearning of all people for freedom, as threats that must be destroyed.

Because we have drawn the CCP into our most essential supply chains, it can hold our national security hostage while it uses U.S. consumers to subsidize its atrocities.

As many as one in five cotton garments globally could be tainted with Uyghur slave labor. In July, U.S. Customs and Border Protection seized a 13-ton shipment of human hair—Madam Speaker, human hair—that originated in Xinjiang's forced labor system. We haven't heard about human hair since the Nazis and the concentration camps of the war that my father fought in, World War II.

It is brazen, and it is sickening. We must refuse to be complicit, financially or otherwise, in the CCP's crimes against the Muslim Uyghur.

For that reason, I support this bill before us today.

I must also point out the abuses in this province are not only one small part of the grave and growing threat that the Chinese Communist Party poses to the interests, the values, and the security of the United States. That threat is global and has military, economic, public health, and philosophical aspects.

I know that many on the other side of the aisle share my concerns. I, unfortunately, regret that, during this Congress, the majority has not given the CCP threat even one-tenth of the time they have put into their partisan efforts to bring down this President.

We were told that the China Task Force was going to be bipartisan, Madam Speaker, and at the last minute, the majority pulled out. For the past 4 months, I have served as chairman of the China Task Force. This task force, again, was supposed to be bipartisan because I believe this is not a Republican or Democrat issue.

Confronting the generational threat that the CCP poses should be a bipartisan issue. It is an American issue against the greatest national security threat to the United States of America.

I believe this failure of perspective needs to change. In our work on the China Task Force, we have met with 125 people from both sides of the aisle to gain better insight into our relationship and our foreign policy, as we speak here from the Foreign Affairs Committee, how we need to treat the Chinese Communist Party from a foreign policy standpoint.

This, again, is an American issue, not Republican or Democrat. This report coming out October 1 will include 400 recommendations, including 100 pieces of legislation that have bipartisan support like the bill before us today.

So, Madam Speaker, I strongly urge my colleagues to support this legislation. Then, once we get past this election, Madam Speaker, let us come together on both sides and analyze objectively our foreign policy with the Chinese Communist Party and address the bipartisan bills that will be recommended by the task force to address the Chinese Communist Party's malign activities throughout the world.

Madam Speaker, I reserve the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I yield 6 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), who is the author of this important bill and co-chair of the Human Rights Commission and chairman of the Rules Committee.

Mr. MCGOVERN. Madam Speaker, I want to thank my friend from Texas (Mr. CASTRO) for yielding, but also for his commitment to human rights, not only with regard to the repression that is going on in China, but all around the world.

Madam Speaker, I rise in strong support of H.R. 6210, the Uyghur Forced Labor Prevention Act. I am proud to have authored this legislation to address human rights and forced labor abuses against Uyghur and other Muslim groups in China.

There is strong, diverse, bipartisan, and bicameral support for this legislation, including from my colleagues on the Congressional-Executive Commission on China. Senator MARCO RUBIO, Representative CHRIS SMITH, and Representative TOM SUOZZI all helped draft this legislation. I thank Speaker NANCY PELOSI for her longtime advocacy for human rights in China and for her leadership in getting this bill to the House floor. I thank Chairman ENGEL, as well as Ranking Member MCCAUL, Chairman NEAL, and Chairwoman WATERS for the support of their committees.

The Congressional-Executive Commission on China, of which I serve as the chair, held the first congressional hearing on this topic a year ago, followed up with a groundbreaking staff report, and then held an expert roundtable event on this issue. We found that the evidence of systematic and widespread forced labor in Xinjiang is astounding and irrefutable and includes evidence from camp detainees, satellite imagery of factories being built at internment camps, and public and leaked Chinese Government documents. All the evidence we accumulated led to the introduction of this bipartisan, bicameral legislation in March 2020.

It is time for Congress to act. Over the past several years, we have watched in horror as the Chinese Government first created and then expanded a system of extrajudicial mass internment camps. As many as 1.8 million Uyghurs and members of other predominantly Muslim ethnic minority groups have been arbitrarily detained in the camps and subjected to forced labor, torture, political indoctrination, and other severe human rights abuses.

Reports published during the past year detailed an expansive and systematic policy of forcibly separating ethnic minority children from their families. A Chinese Government policy document stated that nearly half a million schoolchildren were attending boarding schools. The forcible displacement of children is in violation of the Chinese Government's law on the protection of minors and the U.N. Convention on the Rights of the Child.

Investigations during the past year detailed a policy of forcibly separating ethnic minority children from their families and the use of forced birth control and sterilization, which may be in contravention of the U.N. Convention on Genocide to which it is a party. The United States Holocaust Memorial Museum had already determined that crimes against humanity may have been committed.

In July, I joined a bipartisan letter signed by over 75 Members calling on the Trump administration to make an official determination as to whether atrocity crimes, including genocide and crimes against humanity, are being committed. We have yet to hear back from the administration.

It is time for Congress to act. We know forced labor is widespread and systematic, and it exists both within and outside the mass internment camps. These facts are confirmed by the testimony of former camp detainees, satellite imagery, and official leaked documents from the Chinese Government. We know that many U.S., international, and Chinese companies

are complicit in the exploitation of forced labor and specific products include textiles, electronics, and food products.

Audits of supply chains are simply not possible because workers cannot speak freely and honestly about working conditions, given heavy surveillance and intimidation.

Current U.S. law states that it is illegal to import into the United States ''goods, wares, articles, and merchandise mined, produced, or manufactured wholly or in part'' by forced labor. Unfortunately, products made with forced labor are still making their way into global supply chains and our country.

The Trump administration has taken some actions, including sending out a business advisory and placing withhold release orders on some businesses and entities in China. But these piecemeal actions fall far short of addressing a regional economic system that is built upon a foundation of forced labor and repression.

Further, we should all be disturbed by reports that President Trump gave a green light to President Xi by telling him that building the camps was ''the right thing to do.'' Ending forced labor was not even discussed as part of the ''Phase One'' trade deal.

It is time for Congress to act. The Uyghur Forced Labor Prevention Act prohibits imports from Xinjiang to the U.S. by creating a ''rebuttal presumption'' that all goods produced in the region are made with forced labor unless U.S. Customs and Border Protection certifies by ''clear and convincing evidence'' that goods were not produced with forced labor.

The legislation also authorizes targeted sanctions, requires financial disclosures about involvement in the region, and requires a State Department determination about whether crimes against humanity or genocide are occurring.

For more than 2 years, U.S. and international companies have been aware of forced labor throughout the Xinjiang region. It is long past time for these companies to reassess their supply chains and find alternatives that do not exploit labor and violate human rights.

Their failure to do so has led U.S. consumers to unwittingly purchase goods made with forced labor. That must end.

Effective enforcement would mean that workers and farmers would no longer have to compete against forced labor from Xinjiang. For too long, the world has been silent while Uyghurs and other Muslim groups suffered under severe repression.

The SPEAKER pro tempore. The time of the gentleman has expired.

□ 1215

Mr. CASTRO of Texas. Madam Speaker, I yield an additional 30 seconds to the gentleman.

Mr. MCGOVERN. Madam Speaker, I believe the lack of any international response for so long allowed the Chinese Government the space to impose this extreme system of repression. But now the world has woken up.

Today, the U.S. House of Representatives is taking the strongest action yet. I am proud to stand in solidarity with the Uyghur people and, indeed, all the people living under the rule of the Chinese Government, in their struggle to live freely, practice their religious beliefs freely, and speak their own languages freely.

Madam Speaker, I look forward to the passage of this legislation, continuing our bipartisan work together to support human rights in China.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Members are advised to not traffic the well.

Mr. MCCAUL. Madam Speaker, I commend the gentleman from Massachusetts (Mr. MCGOVERN), the chairman, for his steadfast support for human rights across the world. The gentleman and the next speaker have been on this issue, really, as visionary leaders, I would say, the two strongest in the House of Representatives representing both sides of the aisle, and I thank him for that.

Mr. Speaker, I yield such time as he may consume to the gentleman from New Jersey (Mr. SMITH), the ranking member of the Subcommittee on Human Rights, who has been working on these issues along with Chairman MCGOVERN for decades.

Mr. SMITH of New Jersey. Madam Speaker, I thank my good friend, Mr. MCCAUL, the ranking member, for his leadership, for his very, very strong and passionate statement today. I thank my good friend and colleague, Mr. MCGOVERN, the chairman of both the China Commission, as well as the Lantos Commission—and I serve as cochair with him on the Lantos Commission and as ranking member on the China Commission. And I am very pleased to be the principal Republican cosponsor of this bill. I see Mr. SUOZZI over there, who has been a great leader as well. We have been teaming up for years on this issue, and I thank him for his leadership as well. And ELIOT ENGEL, our chairman, for his work on this as well.

Madam Speaker, at a 2018 Congressional hearing I cochaired, Mihrigul Tursun recounted her ordeal of torture, sexual abuse, and detention in one of China's mass internment camps in Xinjiang. She broke down weeping, telling us that she pleaded with God to end her life. Her Chinese jailers restrained her to a table, actually increased the electrical currents coursing through her body, and mocked her belief in God. She was tortured simply for being an ethnic Uyghur and a Muslim in China.

Madam Speaker, there are millions of stories like this waiting to be told. Nightmarish accounts of President Xi Jinping's genocide. And make no mistake about it, this is Xi Jinping's genocide. I point out to my colleagues that this includes the mass internment of millions. An estimated 1.8 million victims in concentration camps, children ripped from the warm embrace of their families, to be indoctrinated in Communist ideology and forced to renounce their religion, their culture, and their language.

Rape and sexual abuse of women being held in internment camps, forced abortion and involuntary sterilization to prevent the birth of Uyghur children, a direct violation of Article II(d) of the U.N. Genocide Convention, which states, in part, that genocide includes imposing measures intended to prevent births within a group. Forced labor on a massive scale that allows Chinese companies to profit, and profit big time, from modern-day slavery.

Chinese authorities initially denied the existence of mass internment camps and tried to portray them as vocational training. The Chinese Communist Party employed the big lie, censorship and economic coercion to stifle any discussion of their crimes. However, documents obtained by the New York Times and the International Consortium of Investigative Journalists have exposed beyond any reasonable doubt the brutality behind Beijing's plans to radically and coercively transform the culture and religion of ethnic Uyghurs, Kazakhs, and other Muslims in China.

The leaked papers showed detailed plans—this is back years ago now—of looking to intern between 1 and 3 million Uyghurs in these concentration camps and imposing Orwellian indoctrination efforts for those ''whose thinking has been infected.'' In other words, if you are a Muslim, your thinking is infected.

At the same time, Beijing instituted plans to erase the influence of Islam in all of western China—bulldozing mosques and shrines, severely restricting religious practice, and forcing detainees in the camps to renounce their faith.

The leaked documents also show that Xi Jinping himself directed the crackdown, saying the Communist Party must put the ''organs of dictatorship'' to work and show ''absolutely no mercy'' in dealing with the Uyghurs and other Muslims.

In one speech, President Xi said: ''The weapons of the people's democratic dictatorship, must be wielded without any hesitation or wavering.''

In 2017, February, the documents show he told thousands of police officers and troops standing at attention in the vast square in Urumqi to prepare for a ''smashing, obliterating offensive.'' Secret teams even went out—because some of the cops didn't want to do this—and they expunged them from their ranks.

Madam Speaker, we know that goods produced with forced labor find their way into U.S. markets. An estimated 22 percent of U.S. cotton goods come from the region, and the U.S. Customs and Border Protection Agency has prohibited companies from importing

some textiles, electronics, and hair products. As my good friend from Texas pointed out about the hair, the last time we talked about the buying and selling of hair was with the Nazi concentration camps. It is happening today in Xinjiang.

Over the past year, the Trump administration has matched strong rhetoric condemning abuses and actions to protect U.S. national security and punish Chinese authorities and corporations complicit in these human rights abuses.

Since last October, the Commerce Department has placed over 40 Chinese companies and government entities on its Entity List, restricting exports because of their complicity in human rights abuses and enabling high-tech surveillance.

In July, the Treasury Department issued Global Magnitsky sanctions against six senior Chinese officials; however, we want more. There are other people that are complicit. They need to be on the list.

Treasury has also sanctioned the Xinjiang Production Construction Corps, a paramilitary that reports directly to the CCP. This summer, U.S. Customs and Border Protection banned eight other Chinese companies from importing textiles, hair, and electronic parts from Xinjiang. We welcome these steps, but more needs to be done.

The Uyghur Forced Labor Prevention Act prohibits imports from Xinjiang to the U.S. by creating a ''rebuttable presumption.'' And that is the core of this bill, that all goods produced in the region are made with forced labor unless U.S. Customs and Border Protection certifies by clear and convincing evidence that goods were not produced with forced labor. So the rebuttable presumption is the key to this legislation.

It also carries other provisions, important ones, but, again, that is the most important one.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCCAUL. Madam Speaker, I yield an additional 1 minute to the gentleman.

Mr. SMITH of New Jersey. Madam Speaker, the legislation also authorizes targeted sanctions on any person responsible for labor tracking; protects U.S. investors and consumers by requiring financial disclosure from U.S. traded businesses about their engagement with Chinese companies and other entities engaged in serious human rights abuses; directs the Secretary of State to determine whether forced labor or other crimes against Uyghurs constitute crimes against humanity or genocide. I think it couldn't be clear. Read the Genocide Convention. One item after the other articulated in that convention is being met, sadly, by Xi Jinping's horrible genocide against his own people.

Madam Speaker, I urge support for the bill. It is a bipartisan bill—67 cosponsors in all. Republicans and Democrats joined saying, ''we want this stopped.''

Mr. CASTRO of Texas. Madam Speaker, I yield 2 minutes to the gentleman from New York (Mr. SUOZZI).

Mr. SUOZZI. Madam Speaker, I thank Mr. CASTRO for yielding. I thank Mr. SMITH for his great work on this, and Chairman BLUMENAUER for the work of the Committee of Ways and Means. And I thank Chairman MCGOVERN as well.

Madam Speaker, I rise in strong support of this bipartisan Uyghur Forced Labor Prevention Act. We really need to wake people out of their torpor. It has been reported in the newspapers often, but I don't think most Americans realize exactly what is going on in China.

It was almost 50 years ago when Nixon first went to China. And we always believed, as Americans, that the more they are exposed to our way of life, our democracy, our economic system, the more they would become like us. That simply has not happened.

We have had hearings on the China Commission. We had a hearing the other day of the Committee on Ways and Means, and the witnesses testified not only about forced labor, which is clear, but they talked about crimes against humanity. They talked about forced sterilization. They talked about forcing people to eat pork, even though it violates their religion. They talked about prohibiting people from practicing their faith, attending religious ceremonies, observing fasts.

It is hard to imagine that in today's world that forced labor is happening and we know about it. We need to recognize that China has to be held accountable. We have rules in place now that say you can't use forced labor, but this bill is going a big step further in saying everything that comes out of the Xinjiang region will be presumed to be using forced labor. This is going to have a big impact. A lot of the cotton in the world comes from China; 84 percent of that cotton from China comes from the Xinjiang region. This will have an impact. We will have to support other countries to produce cotton. We will have to work to get the Northern Triangle, for example, to produce cotton so we can try and address those issues where our friends are. But we need to hold China and the Chinese Communist Party accountable for these violative acts of our very conscience. We have to do everything we can do to stand up for our values and to say this is simply unacceptable.

Madam Speaker, I ask my colleagues for their support.

Mr. MCCAUL. Madam Speaker, I yield 3 minutes to the gentleman from Florida (Mr. YOHO), the ranking member of the Foreign Affairs Subcommittee on Asia and the Pacific.

Mr. YOHO. Madam Speaker, I thank the chairman and the leaders on the Democrat side.

Since 2017, the CCP has systemically targeted and rounded up over a million people comprised of Uyghurs and other East Turkic minorities and put them in concentration camps where they were subject to inhumane living conditions, forced cultural brainwashing, rape, and torture.

Just this week, the CCP released a white paper regarding its detention of Uyghurs. They admitted to incarcerating up to 1.3 million Uyghurs per year from 2014 to 2019. That is up to 8 million innocent people in prison, brainwashed, tortured, raped, in their so-called reeducation, which are really concentration camps. If they will admit to that, how many more are there really that have been interned?

The Chinese State is not only complicit but responsible for activity supporting the genocidal campaign targeting vulnerable populations based on everything from religious beliefs, their language, their hairstyle and even their diet. This is not even to mention the horrific practices of forced sterilization and ''marriages'' to Han Chinese men.

Many of these people have now been forced into manufacturing jobs under harsh conditions, which we have heard—Mr. SMITH and Chairman MCCAUL have pointed out—these products benefitting from forced labor have found their ways into our supply chains through major brands and corporations as it becomes increasingly difficult for companies to conduct due diligence investigations in China.

Further, we must recognize that the Chinese diplomatic presence globally is also engaged in this effort. A wealth of evidence is available to suggest that Chinese embassies and consulates around the world are actively seeking to force Chinese Uyghurs to return to mainland China, often to renew their passports, only to be abducted immediately and sent to one of the camps.

As Members of Congress, we have a moral obligation to ensure that the state-sponsored campaign of ethnic cleansing and forced labor—reminiscent of the concentration camps of the Nazi regime, when we swore as a world community, ''never again''—are shut down and punished to the full extent of U.S. and international law.

The business community of America also has a moral obligation, from manufacturing to Hollywood, to not appease China in the name of profit.

Madam Speaker, as an original cosponsor of this bill, I support its passage in the House and encourage its timely consideration in the Senate.

Mr. CASTRO of Texas. Madam Speaker, I yield 1 minute to the gentlewoman from California (Ms. PELOSI), our distinguished Speaker of the House.

Ms. PELOSI. Madam Speaker, I thank the gentleman from Texas (Mr. CASTRO) for yielding, and for bringing this important legislation to the floor and giving us a chance to honor our values in the most bipartisan way.

One of the saddest things of all of this is how many people are suffering.

One of the joys of it is that it has enabled us to work together over the years.

Madam Speaker, I would ask the gentleman from New Jersey (Mr. SMITH) how many years—at least, 30, working together on this subject.

Madam Speaker, I rise in support of the Uyghur Forced Labor Prevention Act and the Uyghur Forced Labor Disclosure Act, two strong bipartisan bills to send a strong message to Beijing and to the world that the U.S. Congress will not allow human rights to be sacrificed for commercial interest.

As I have said many times, if America does not speak out for human rights in China because of commercial interest, we lose all moral authority to speak out about human rights anywhere in the world.

□ 1230

I salute Chairman JIM MCGOVERN, chair of the Congressional-Executive Commission on China and chair of the Tom Lantos Human Rights Commission, a leading voice in the country and in the Congress for human rights.

I thank Congresswoman JENNIFER WEXTON, one of our new freshmen, for her early leadership and dedication she has brought to this priority.

I thank, also, Mr. SMITH, and I acknowledge our working together over the years. He is now the ranking member of the Congressional-Executive Commission on China and co-chair of the Lantos Commission.

I salute our chairman of the Foreign Affairs Committee, Mr. ENGEL, and our leaders in the Senate, Senator RUBIO and Senator MERKLEY.

I thank our chairman, again, for this opportunity and so many of our Members who have spoken on this issue.

Beijing's barbarous actions targeting the Uyghur people continue to be an outrage to the collective conscience of the world. Across the Xinjiang Uyghur Autonomous Region, the Uyghur people and other Muslim majorities are brutally repressed in a pervasive state of mass surveillance and predictive policing used to discriminate against and violate the human rights of minorities: incidents of mass shootings, extrajudicial killings, intimidation and suppression of journalists courageously exposing the truth, and the mass incarceration of more than—and this is a lower figure; I think it is higher, but it is a conservative figure—1 million innocent people with beatings, solitary confinement, deprivation of food and medical treatment, and extensively documented programs of forced labor.

So if you are out there watching the Congress, know what this means to you. The exploitation of people in China has a direct impact on our trade policy and on our values, first and foremost.

Tragically, the products of the forced labor often end up here in American stores and homes. In fact, roughly one in five cotton garments sold globally contains cotton or yarn from the Xinjiang region, the Uyghur region.

We must shine a light on the inhumane practice of forced labor, hold the perpetrators accountable, and stop this exploitation. And we must send a clear message to Beijing: These abuses must end now.

I remember years ago when Mr. SMITH and Frank Wolf visited forced labor—I don't know if you call them prisons or whatever—in China. Their courage to go there was so overwhelming to the rest of us. They were able to document what we needed to know.

Unfortunately, the challenge to the conscience that they brought to us was not heeded by all here. We could overwhelmingly win in the House and even in the Senate but not be able to override a veto, whether it was a Democrat or a Republican in the White House.

But I remember how brave they were and how brave those prisoners were to show them the evidence of the forced labor so we could make the case to workers in America: You have been subjected to the exploitation of workers there; that is an exploitation of workers here.

Again, we were proud, in May, to pass the Uyghur Human Rights Policy Act, which uncovers the truth of China's abuses and ensures that those supporting labor camps, and urges the application of targeted sanctions against those involved in the oppression of the Uyghur people.

Today, we build on that overwhelmingly bipartisan legislation with these two bills which, together, will ensure that goods made in the Xinjiang region and imported to the United States are not made with forced labor.

Congress must and will continue to speak out against Beijing's other human rights abuses, like the decades-long abuse faced by the Tibetan people—the Chinese are there to crush their culture, eliminate their language, and suppress their religion; their assault on the honor of His Holiness the Dalai Lama by saying they will choose his successor goes beyond the pale and it is a challenge to the conscience of the world—the Hong Kong fight for democracy and the rule of law, which they oppress; and the jailing of journalists, human rights lawyers, Christians, and democracy advocates on the mainland.

That is why the House is proud to have passed legislation, including the Hong Kong Human Rights and Democracy Act, the Hong Kong Autonomy Act, and the Tibet Policy and Support Act, which we urge the Senate to take up immediately. All of this was passed in an overwhelmingly bipartisan way because we respect the dignity and worth of every person.

We have always said that we cannot look the other way when this oppression of millions of people is taking place, and we are acting upon those values and those beliefs that we have.

In honor of the millions fighting for their dignity, safety, and rights in China and around the world, I urge a strong bipartisan vote for the Uyghur Forced Labor Protection Act and the Uyghur Forced Labor Disclosure Act.

Madam Speaker, I thank, again, Mr. MCCAUL, ranking member on the committee of jurisdiction, and everyone for their support.

Mr. MCCAUL. Madam Speaker, let me thank Speaker PELOSI. She actually came to our committee markup of this bill. It is very rare for a Speaker of the House to show up to a committee markup, and yet this issue is so important to her that she honored us with her presence in that markup. This is where we come together in the Congress, and I want to thank you for your support, Madam Speaker.

And I thank Mr. SMITH, who has been dealing for decades with this.

I yield 2 minutes to the gentleman from New York (Mr. JACOBS).

Mr. JACOBS. Madam Speaker, I want to first acknowledge an individual from my district, Dr. Sean Roberts.

I grew up with Sean Roberts in Buffalo, New York. Sean is a professor now at George Washington University. He has studied the Uyghur people for over 30 years and recently released a book, entitled, ''The War on the Uyghurs: China's Internal Campaign Against a Muslim Minority.'' It is a book that has a depth of research about the atrocities against these people for a long, long time, and I want to commend him for his leadership.

Madam Speaker, long before China endangered the global community with their lies and failures in response to the coronavirus, we knew of the threats they posed, but many ignored them. We can no longer allow them a free pass. Today, we are here to condemn yet another of China's Communist regime's crimes, the atrocious record on human rights, specifically, the persecution and forced labor of the Uyghur people.

The actions of the Chinese Communist regime are appalling, a threat to freedom everywhere, and must be condemned in unwavering terms. It is our duty as the strongest beacon of freedom in the world to shine a light upon these atrocities, sanction those who condone it, and eradicate such evil.

Freedom is not based on just the ideals you hold; rather, it is based on your ability to hold those ideals without fear. I urge every one of my colleagues to support these measures and send a resolute and strong message to the Chinese Communist Party that we will not tolerate their human rights violations.

No more should they be able to act as a rogue nation, a bully, and a manipulator that disregards their own citizens' lives and puts the entire global community in danger. Until China changes its ways, ends the torture of the Uyghur people, and acts as a responsible global citizen, we will not weaken our pressure. With one voice, let's condemn the atrocities committed against the Uyghur people.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MCCAUL. Madam Speaker, I yield an additional 30 seconds to the gentleman from New York (Mr. JACOBS).

Mr. JACOBS. Madam Speaker, let's work towards ending our foreign dependence on the Communist regime and hold them accountable for the lives of every individual their lies have killed.

I look forward to working with the Senate to refine and improve this bill and endorse the strong measures it will take to hold the Chinese regime accountable.

Mr. CASTRO of Texas. Madam Speaker, I yield 2 minutes to the gentleman from Rhode Island (Mr. CICILLINE), a valued member of the Foreign Affairs Committee.

Mr. CICILLINE. Madam Speaker, I am proud to cosponsor the Uyghur Forced Labor Prevention Act, legislation that bans products of forced labor by Uyghurs to the United States.

I want to acknowledge and thank Chairman MCGOVERN, Chairman BLUMENAUER, Ranking Member MCCAUL, Mr. SMITH, and others who have led this effort.

As members of the Foreign Affairs Committee, we work every day to ensure that America stands up for freedom around the world, and we take action to promote freedom in human rights around the globe. So, in that vein, we must ensure that the exploitation of the Uyghurs and other ethnic minorities does not continue.

Most Americans would be shocked to learn that, for years, Uyghurs have been interned, tortured, interrogated, and brutally forced into labor by the Chinese Government, and then products they manufacture make their way into the U.S. market. This bill will stop these practices.

We must pass this legislation to crack down on China's abhorrent human rights practices. We must continue to be a force for democratic values and human rights in our own country and around the world.

This is an example of working together in a bipartisan way to make it clear that the United States of America will not remain silent while these gross human rights violations continue, and we will do all that we can to bring the attention of the world to the important practices of the Chinese Communist Government by passing these two pieces of legislation.

Mr. MCCAUL. Madam Speaker, I reserve the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I yield 2 minutes to the gentleman from Oregon (Mr. BLUMENAUER).

Mr. BLUMENAUER. Madam Speaker, last week our subcommittee held a hearing on the Chinese Government's use of forced labor for the production of all kinds of goods through a concerted program of oppression and coerced assimilation of China's Uyghur population.

You have heard the horrible details that we had expressed in our committee. We have had a long history of grappling with the depravity of forced labor and ensuring that goods produced under such conditions do not eventually make their way into our grocery stores and shopping malls across the country.

We passed a law a century ago prohibiting importation of such goods. But, unfortunately, the ban—founded on principles of morality, human rights, worker rights, as well principles of fair competition—has, to be charitable, a history of spotty implementation.

We don't pretend that it is going to be easy to stop this. Global supply chains now are complex and interrelated. It is going to require the concerted efforts of us all. But we should not allow complex supply chains to justify the chains of oppression on the Uyghur populations now.

I look forward to working with my colleagues in the aftermath of the passage of this legislation, that we work to actually implement it, we work with the expressions that have been positive from the private sector and NGOs, and other partners, to make sure that it is real. It is going to require concerted effort. It is going to require some dislocation. We may even pay a dime or two more for a pair of socks or a T-shirt.

But I do think not being complicit with this horrific oppression of over a million—and I agree with Mr. SMITH, it may well be more than that. It is time for us to make sure that we take a stand. Make it real.

I deeply appreciate the sentiment on both sides of the aisle that we are committed to stop it now. In an era of, shall we say, a little conflict, this could be a bright spot for us going forward.

Mr. MCCAUL. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, in recent years, the world has stood by idly as the Chinese Communist Party rounded up more than a million—probably a lot more than that—ethnic minorities into concentration camps where they are tortured, brainwashed, and forced into labor. This is all part of a deliberate program by the CCP to wipe out their ethnic identity, their religion, their culture, anything that might compete with the Communist Party for their loyalties and affection.

We have a moral duty today to speak out against these horrifying crimes against humanity and against the Uyghurs and, as the Speaker mentioned, against the Tibetans and Christians as well, who are persecuted in the Chinese Communist regime.

But we have an even greater duty to avoid funding this genocide by paying for slave labor in Xinjiang. There can no longer be business as usual with China.

Madam Speaker, the world is watching. I urge my colleagues to vote ''yes.''

Madam Speaker, I yield back the balance of my time.

□ 1245

Mr. CASTRO of Texas. Madam Speaker, I yield myself such time as I may consume for the purposes of closing.

Madam Speaker, this is a matter of whether the United States, as it has for generations, will remain a north star around the world when it comes to things like freedom, human rights, democracy, and rooting out corruption.

This is an issue of human rights. Millions of people are being subjugated right now by the Chinese Government. And despite international contamination, atrocities continue in Xinjiang, and China shows no signs of changing course, including recently releasing a white paper defending these ''vocational training centers.''

The United States should use its unique position in the global trading system to advance workers' rights and the freedom and dignity of all people, and to signal other like-minded countries to act accordingly.

I am very pleased to support this measure. I am glad that it has strong bipartisan support, and I urge all the Members to do the same.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. CASTRO) that the House suspend the rules and pass the bill, H.R. 6210, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. CASTRO of Texas. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this motion are postponed.

RESIGNATIONS AS MEMBER OF COMMITTEE ON THE JUDICIARY AND COMMITTEE ON HOMELAND SECURITY

The SPEAKER pro tempore laid before the House the following resignations as a member of the Committee on the Judiciary and the Committee on Homeland Security:

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, September 22, 2020.

Hon. NANCY PELOSI,
Speaker,
Washington, DC.

DEAR SPEAKER PELOSI: Pursuant to my nomination to the House Committee on Ways and Means, I am writing to formally offer my resignation from both the House Committee on Judiciary and House Committee on Homeland Security. Thank you.

Sincerely,

CEDRIC L. RICHMOND.

The SPEAKER pro tempore. Without objection, the resignations are accepted.

There was no objection.

GLOBAL HEALTH SECURITY ACT OF 2020

Mr. CASTRO of Texas. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 2166) to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to strengthen global health security, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2166

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Global Health Security Act of 2020''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) In December 2009, President Obama released the National Strategy for Countering Biological Threats, which listed as one of seven objectives ''Promote global health security: Increase the availability of and access to knowledge and products of the life sciences that can help reduce the impact from outbreaks of infectious disease whether of natural, accidental, or deliberate origin''.

(2) In February 2014, the United States and nearly 30 other nations launched the Global Health Security Agenda (GHSA) to address several high-priority, global infectious disease threats. The GHSA is a multi-faceted, multi-country initiative intended to accelerate partner countries' measurable capabilities to achieve specific targets to prevent, detect, and respond to infectious disease threats, whether naturally occurring, deliberate, or accidental.

(3) In 2015, the United Nations adopted the Sustainable Development Goals (SDGs), which include specific reference to the importance of global health security as part of SDG 3 ''ensure healthy lives and promote well-being for all at all ages'' as follows: ''strengthen the capacity of all countries, in particular developing countries, for early warning, risk reduction and management of national and global health risks''.

(4) On November 4, 2016, President Obama signed Executive Order 13747, ''Advancing the Global Health Security Agenda to Achieve a World Safe and Secure from Infectious Disease Threats''.

(5) In October 2017 at the GHSA Ministerial Meeting in Uganda, the United States and more than 40 GHSA member countries supported the ''Kampala Declaration'' to extend the GHSA for an additional 5 years to 2024.

(6) In December 2017, President Trump released the National Security Strategy, which includes the priority action: ''Detect and contain biothreats at their source: We will work with other countries to detect and mitigate outbreaks early to prevent the spread of disease. We will encourage other countries to invest in basic health care systems and to strengthen global health security across the intersection of human and animal health to prevent infectious disease outbreaks''.

(7) In September 2018, President Trump released the National Biodefense Strategy, which includes objectives to ''strengthen global health security capacities to prevent local bioincidents from becoming epidemics'', and ''strengthen international preparedness to support international response and recovery capabilities''.

SEC. 3. STATEMENT OF POLICY.

It is the policy of the United States to—

(1) promote global health security as a core national security interest;

(2) advance the aims of the Global Health Security Agenda;

(3) collaborate with other countries to detect and mitigate outbreaks early to prevent the spread of disease;

(4) encourage other countries to invest in basic resilient and sustainable health care systems; and

(5) strengthen global health security across the intersection of human and animal health to prevent infectious disease outbreaks and combat the growing threat of antimicrobial resistance.

SEC. 4. GLOBAL HEALTH SECURITY AGENDA INTERAGENCY REVIEW COUNCIL.

(a) ESTABLISHMENT.—The President shall establish a Global Health Security Agenda Interagency Review Council (in this section referred to as the ''Council'') to perform the general responsibilities described in subsection (c) and the specific roles and responsibilities described in subsection (e).

(b) MEETINGS.—The Council shall meet not less than four times per year to advance its mission and fulfill its responsibilities.

(c) GENERAL RESPONSIBILITIES.—The Council shall be responsible for the following activities:

(1) Provide policy-level recommendations to participating agencies on Global Health Security Agenda (GHSA) goals, objectives, and implementation.

(2) Facilitate interagency, multi-sectoral engagement to carry out GHSA implementation.

(3) Provide a forum for raising and working to resolve interagency disagreements concerning the GHSA.

(4)(A) Review the progress toward and work to resolve challenges in achieving United States commitments under the GHSA, including commitments to assist other countries in achieving the GHSA targets.

(B) The Council shall consider, among other issues, the following:

(i) The status of United States financial commitments to the GHSA in the context of commitments by other donors, and the contributions of partner countries to achieve the GHSA targets.

(ii) The progress toward the milestones outlined in GHSA national plans for those countries where the United States Government has committed to assist in implementing the GHSA and in annual work-plans outlining agency priorities for implementing the GHSA.

(iii) The external evaluations of United States and partner country capabilities to address infectious disease threats, including the ability to achieve the targets outlined within the WHO Joint External Evaluation (JEE) tool, as well as gaps identified by such external evaluations.

(d) PARTICIPATION.—The Council shall consist of representatives, serving at the Assistant Secretary level or higher, from the following agencies:

(1) The Department of State.

(2) The Department of Defense.

(3) The Department of Justice.

(4) The Department of Agriculture.

(5) The Department of Health and Human Services.

(6) The Department of Labor.

(7) The Department of Homeland Security.

(8) The Office of Management and Budget.

(9) The United States Agency for International Development.

(10) The Environmental Protection Agency.

(11) The Centers for Disease Control and Prevention.

(12) The Office of Science and Technology Policy.

(13) The National Institutes of Health.

(14) The National Institute of Allergy and Infectious Diseases.

(15) Such other agencies as the Council determines to be appropriate.

(e) SPECIFIC ROLES AND RESPONSIBILITIES.—

(1) IN GENERAL.—The heads of agencies described in subsection (d) shall—

(A) make the GHSA and its implementation a high priority within their respective agencies, and include GHSA-related activities within their respective agencies' strategic planning and budget processes;

(B) designate a senior-level official to be responsible for the implementation of this Act;

(C) designate, in accordance with subsection (d), an appropriate representative at the Assistant Secretary level or higher to participate on the Council;

(D) keep the Council apprised of GHSA-related activities undertaken within their respective agencies;

(E) maintain responsibility for agency-related programmatic functions in coordination with host governments, country teams, and GHSA in-country teams, and in conjunction with other relevant agencies;

(F) coordinate with other agencies that are identified in this section to satisfy programmatic goals, and further facilitate coordination of country teams, implementers, and donors in host countries; and

(G) coordinate across GHSA national plans and with GHSA partners to which the United States is providing assistance.

(2) ADDITIONAL ROLES AND RESPONSIBILITIES.—In addition to the roles and responsibilities described in paragraph (1), the heads of agencies described in subsection (d) shall carry out their respective roles and responsibilities described in subsections (b) through (i) of section 3 of Executive Order 13747 (81 Fed. Reg. 78701; relating to Advancing the Global Health Security Agenda to Achieve a World Safe and Secure from Infectious Disease Threats), as in effect on the day before the date of the enactment of this Act.

SEC. 5. UNITED STATES COORDINATOR FOR GLOBAL HEALTH SECURITY.

(a) IN GENERAL.—The President shall appoint an individual to the position of United States Coordinator for Global Health Security, who shall be responsible for the coordination of the interagency process for responding to global health security emergencies. As appropriate, the designee shall coordinate with the President's Special Coordinator for International Disaster Assistance.

(b) CONGRESSIONAL BRIEFING.—Not less frequently than twice each year, the employee designated under this section shall provide to the appropriate congressional committees a briefing on the responsibilities and activities of the individual under this section.

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this subsection, the term ''appropriate congressional committees'' has the meaning given such term in section 8 of the Global Health Security Act of 2019.

SEC. 6. SENSE OF CONGRESS.

It is the sense of the Congress that, given the complex and multisectoral nature of global health threats to the United States, the President—

(1) should consider appointing an individual with significant background and expertise in public health or emergency response management to the position of United

States Coordinator for Global Health Security, as required by section 5(a), who is an employee of the National Security Council at the level of Deputy Assistant to the President or higher; and

(2) in providing assistance to implement the strategy required under section 7(a), should—

(A) coordinate, through a whole-of-government approach, the efforts of relevant Federal departments and agencies to implement the strategy;

(B) seek to fully utilize the unique capabilities of each relevant Federal department and agency while collaborating with and leveraging the contributions of other key stakeholders; and

(C) utilize open and streamlined solicitations to allow for the participation of a wide range of implementing partners through the most appropriate procurement mechanisms, which may include grants, contracts, cooperative agreements, and other instruments as necessary and appropriate.

SEC. 7. STRATEGY AND REPORTS.

(a) STRATEGY.—The United States Coordinator for Global Health Security (appointed under section 5(a)) shall coordinate the development and implementation of a strategy to implement the policy aims described in section 3, which shall—

(1) set specific and measurable goals, benchmarks, timetables, performance metrics, and monitoring and evaluation plans that reflect international best practices relating to transparency, accountability, and global health security;

(2) support and be aligned with country-owned global health security policy and investment plans developed with input from key stakeholders, as appropriate;

(3) facilitate communication and collaboration, as appropriate, among local stakeholders in support of a multi-sectoral approach to global health security;

(4) support the long-term success of programs by building the capacity of local organizations and institutions in target countries and communities;

(5) develop community resilience to infectious disease threats and emergencies;

(6) leverage resources and expertise through partnerships with the private sector, health organizations, civil society, nongovernmental organizations, and health research and academic institutions; and

(7) support collaboration, as appropriate, between United States universities, and public and private institutions in target countries and communities to promote health security and innovation.

(b) COORDINATION.—The President, acting through the United States Coordinator for Global Health Security, shall coordinate, through a whole-of-government approach, the efforts of relevant Federal departments and agencies in the implementation of the strategy required under subsection (a) by—

(1) establishing monitoring and evaluation systems, coherence, and coordination across relevant Federal departments and agencies; and

(2) establishing platforms for regular consultation and collaboration with key stakeholders and the appropriate congressional committees.

(c) STRATEGY SUBMISSION.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the President, in consultation with the head of each relevant Federal department and agency, shall submit to the appropriate congressional committees the strategy required under subsection (a) that provides a detailed description of how the United States intends to advance the policy set forth in section 3 and the agency-specific plans described in paragraph (2).

(2) AGENCY-SPECIFIC PLANS.—The strategy required under subsection (a) shall include specific implementation plans from each relevant Federal department and agency that describes—

(A) the anticipated contributions of the department or agency, including technical, financial, and in-kind contributions, to implement the strategy; and

(B) the efforts of the department or agency to ensure that the activities and programs carried out pursuant to the strategy are designed to achieve maximum impact and long-term sustainability.

(d) REPORT.—

(1) IN GENERAL.—Not later than 1 year after the date on which the strategy required under subsection (a) is submitted to the appropriate congressional committees under subsection (c), and not later than October 1 of each year thereafter, the President shall submit to the appropriate congressional committees a report that describes the status of the implementation of the strategy.

(2) CONTENTS.—The report required under paragraph (1) shall—

(A) identify any substantial changes made in the strategy during the preceding calendar year;

(B) describe the progress made in implementing the strategy;

(C) identify the indicators used to establish benchmarks and measure results over time, as well as the mechanisms for reporting such results in an open and transparent manner;

(D) contain a transparent, open, and detailed accounting of expenditures by relevant Federal departments and agencies to implement the strategy, including, to the extent practicable, for each Federal department and agency, the statutory source of expenditures, amounts expended, partners, targeted populations, and types of activities supported;

(E) describe how the strategy leverages other United States global health and development assistance programs;

(F) assess efforts to coordinate United States global health security programs, activities, and initiatives with key stakeholders;

(G) incorporate a plan for regularly reviewing and updating strategies, partnerships, and programs and sharing lessons learned with a wide range of stakeholders, including key stakeholders, in an open, transparent manner; and

(H) describe the progress achieved and challenges concerning the United States Government's ability to advance the Global Health Security Agenda across priority countries, including data disaggregated by priority country using indicators that are consistent on a year-to-year basis and recommendations to resolve, mitigate, or otherwise address the challenges identified therein.

(e) FORM.—The strategy required under subsection (a) and the report required under subsection (d) shall be submitted in unclassified form but may contain a classified annex.

SEC. 8. COMPLIANCE WITH THE FOREIGN AID TRANSPARENCY AND ACCOUNTABILITY ACT OF 2016.

Section 2(3) of the Foreign Aid Transparency and Accountability Act of 2016 (Public Law 114–191; 22 U.S.C. 2394c note) is amended—

(1) in subparagraph (C), by striking ''and'' at the end;

(2) in subparagraph (D), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(E) the Global Health Security Act of 2020.''.

SEC. 9. DEFINITIONS.

In this Act:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives; and

(B) the Committee on Foreign Relations and the Committee on Appropriations of the Senate.

(2) GLOBAL HEALTH SECURITY.—The term ''global health security'' means activities supporting epidemic and pandemic preparedness and capabilities at the country and global levels in order to minimize vulnerability to acute public health events that can endanger the health of populations across geographical regions and international boundaries.

SEC. 10. SUNSET.

This Act, and the amendments made by this Act, (other than section 5) shall cease to be effective on December 31, 2024.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. CASTRO) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from Texas (Mr. CASTRO).

GENERAL LEAVE

Mr. CASTRO of Texas. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 2166.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. CASTRO of Texas. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, pandemics don't respect borders and they don't care about nationalities. We have witnessed that this year with the spread of the coronavirus. That is why this bill comes before us at a critical time. I want to say a very big thank you to GERRY CONNOLLY from Virginia for authoring this important legislation.

In the last 8 months, we have watched this pandemic spread around the world, upending the global economy, disrupting our lives and creating grave uncertainty about what happens next. Unfortunately, the administration's catastrophic response to the current COVID–19 pandemic has led to nearly 200,000 American deaths.

Madam Speaker, I reserve the balance of my time.

COMMITTEE ON ARMED SERVICES,
HOUSE OF REPRESENTATIVES,
Washington, DC, July 30, 2020.

Hon. ELIOT L. ENGEL,
Chairman, Committee on Foreign Affairs, House of Representatives, Washington, DC.

DEAR CHAIRMAN ENGEL: I am writing to you concerning H.R. 2166, the ''Global Health Security Act of 2020.'' There are certain provisions in this legislation that fall within the Rule X jurisdiction of the Armed Services Committee.

In the interest of permitting your Committee to proceed expeditiously to floor consideration of this important bill, we will not formally consider H.R. 2166. We do so with the understanding that by waiving consideration of the bill, the Committee on Armed

Services does not waive any future jurisdictional claims over the subject matters contained in the bill which fall within its Rule X jurisdiction.

Please ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you for the cooperative spirit in which you have worked regarding this matter and others between our respective Committees.

Sincerely,

ADAM SMITH,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, July 31, 2020.

Hon. ADAM SMITH,
Chairman, Committee on Armed Services, House of Representatives, Washington, DC.

DEAR CHAIRMAN SMITH: I am writing to you concerning H.R. 2166, the Global Health Security Act. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the House Committee on Armed Services under House Rule X, and that your Committee will forgo action on H.R. 2166 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I will also support the appointment of House Armed Services Committee conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, July 31, 2020.

Hon. ADAM B. SCHIFF,
House Permanent Select Committee on Intelligence, House of Representatives, Washington, DC.

DEAR CHAIRMAN SCHIFF: I am writing to you concerning H.R. 2166, the Global Health Security Act. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the House Permanent Select Committee on Intelligence under House Rule X, and that your Committee will forgo action on H.R. 2166 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I will also support the appointment of House Permanent Select Committee on Intelligence conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL
Chairman.

PERMANENT SELECT COMMITTEE ON INTELLIGENCE, HOUSE OF REPRESENTATIVES,
August 24, 2020.

Hon. ELIOT ENGEL,
Committee on Foreign Affairs, House of Representatives, Washington, DC.

DEAR CHAIRMAN ENGEL: I am writing to you concerning H.R. 2166, the Global Health Security Act. Certain provisions in the legislation fall within the jurisdiction of the House Permanent Select Committee on Intelligence (HPSCI), as set forth in Rule X of the House of Representatives for the 116th Congress.

In the interest of permitting your committee to proceed expeditiously to floor consideration of this important bill, I am willing to waive this committee's right to sequential referral. By waiving consideration of H.R. 2166, HPSCI does not waive any future jurisdictional claim over the subjects contained in the bill which fall within HPSCJ's Rule X jurisdiction. I further request that you urge the Speaker to appoint members of HP SCI to any conference committee which is named to consider provisions addressing such subjects.

Finally, I ask that our exchange of letters be included in the Congressional Record during consideration of the measure on the House floor.

I continue to be grateful for the cooperative spirit in which you have worked regarding this matter and others between our respective committees, and look forward to a prompt floor vote on H.R. 2166.

Sincerely,

ADAM B. SCHIFF,
Chairman.

Mr. MCCAUL. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, as this painful year has hammered home: viruses and pandemics know no borders. The bipartisan Global Health Security Act reaffirms our commitment to promoting global health security as a core issue of national security.

This bill—and I want to thank my friend, GERRY CONNOLLY and STEVE CHABOT, who, I am not sure if he will be able to speak or not—but I want to thank them for bringing this bill forward.

This bill directs the President to establish an interagency review council that will support our executive branch agencies and ensure coordination between their efforts. It also requires the designation of a lead official as the United States coordinator for Global Health Security, who will be responsible for coordinating the U.S. response to global health crises across agencies.

As our country continues to fight COVID–19 and this pandemic, we must make sure our preparations to fight future threats to the health and security of Americans are as efficient and effective as they can be.

Madam Speaker, I want to thank the sponsors of the bill, Mr. CONNOLLY and Mr. CHABOT, for their leadership in supporting and introducing this bill.

I reserve the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I yield 5 minutes to the gentleman from Virginia (Mr. CONNOLLY).

Mr. CONNOLLY. Madam Speaker, I thank my good friend from Texas (Mr. CASTRO) and my other good friend from Texas (Mr. MCCAUL) for their leadership and generosity in allowing us to bring this bipartisan bill before the floor.

Madam Speaker, I rise, of course, in support of H.R. 2166, the Global Health Security Act, which reaffirms the United States' commitment in promoting global health security.

I first introduced this bill in partnership with my colleague, STEVE CHABOT of Ohio, 2 years ago, before the pandemic, when we identified a dearth of leadership and strategy around U.S. planning for a global health security emergency.

Tragically, the global COVID–19 pandemic has underscored not only the need for a robust Federal response to such a crisis, but also the importance of investing in global health security around the world because viruses and diseases do not respect national borders. We are truly in this together.

Amid concerns about the response to COVID–19, I welcome the fact that the House Foreign Affairs Committee coalesced around a bipartisan solution that addresses deficiencies in the current response as well as to demonstrate a commitment to a comprehensive and sustainable approach to global health security.

One of the critical lessons learned during the U.S. response to the 2014 Ebola outbreak in West Africa was the need for a permanent designated official responsible for coordinating the interagency response to a global health security emergency in the event of a pandemic.

In fact, the primary recommendation of the recent CSIS report on Strengthening America's Health Security is to restore the health security leadership at the White House National Security Council by naming a senior level leader in charge of coordinating U.S. efforts to anticipate, to prevent, and to respond to biological crises.

Despite bipartisan support, sadly, the administration eliminated the previous NSC position responsible for just such a crisis 2 years ago.

At a time when decisive leadership and robust Federal coordination is sorely needed to combat the global COVID–19 pandemic, our Global Health Security Act would reestablish the government-wide lead for pandemic response by creating a U.S. coordinator.

This legislation also establishes an interagency review council, as Mr. MCCAUL indicated, charged with implementing U.S. commitments around a Global Health Security Agenda and sets important metrics for global health security planning.

And the bill requires a global health security strategy that helps other countries, as well as our own, to strengthen their healthcare systems in order to detect, prevent and mitigate outbreaks early.

Republican and Democratic Presidents have recognized the critical importance of global health security,

from President Obama's role in launching the Global Health Security Agenda to President Trump's National Security Strategy and National Biodefense Strategy.

Whether it is the current COVID–19 pandemic or the next crisis, it is clear these threats are going to be ongoing and perhaps increasing. Saving lives from the next global pandemic starts with investing in preparedness before it strikes. As we have seen time and again, diseases don't respect borders, and global health crises have immense security, economic, and humanitarian consequences, as we are seeing now.

Our Global Health Security Act recognizes the critical role of U.S. leadership in international health security and enshrines U.S. global health security policy in statute.

I am proud that this bill passed the House Foreign Affairs Committee unanimously and was included in both the House-passed HEROES Act and the House-passed National Defense Authorization Act.

The Global Health Security Act is endorsed by ChildFund International, Global Health Council, International Medical Corps, IntraHealth International, the Johns Hopkins Center for Health Security, Nuclear Threat Initiative, the ONE Campaign, PATH, the American Society of Tropical Medicine and Hygiene, Management Sciences for Health, Sabin Vaccine Institute, The Borgen Project, and the American Society for Microbiology, among others.

Madam Speaker, I want to thank my colleagues on a bipartisan basis, my friend from Ohio, STEVE CHABOT, RICK LARSEN from Washington, BRIAN FITZPATRICK from Pennsylvania, AMI BERA from California, and ANN WAGNER from Missouri, for serving as original cosponsors on this bipartisan bill.

I urge my colleagues to adopt it as a prudent measure in response to this pandemic.

Mr. MCCAUL. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I reiterate the vision of both Mr. CONNOLLY and Mr. CHABOT for introducing this bill, and the discussions I believe, as the gentleman stated from Virginia, took place 2 years ago, well before the COVID–19 pandemic.

Madam Speaker, I yield 5 minutes to the gentleman from Ohio (Mr. CHABOT), who introduced the bill and is the coauthor.

Mr. CHABOT. Madam Speaker, I want to thank the ranking member for yielding. And I want to thank the gentleman from Virginia (Mr. CONNOLLY) for his leadership on this.

Madam Speaker, I rise in support of H.R. 2166, the Global Health Security Act. And this was already stated, it was bipartisan legislation offered by my good friend, Mr. CONNOLLY. We have worked on a whole range of issues in a bipartisan manner over the years. He is a Democrat and I am a Republican, but we actually worked together. He and I introduced it at the beginning of last year. So this was early 2019 to strengthen U.S. and global preparedness for and capacity to respond to pandemics like the coronavirus.

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This legislation was not born out of the coronavirus. It was born out of a bipartisan vision for strengthening global health systems around the world in case a disease like the coronavirus emerged. And as we know, it did, catching the whole world really flat-footed.

Congressman CONNOLLY and I introduced this legislation in April 2019, well before anyone had ever heard the term ''COVID–19.'' When the Foreign Affairs Committee considered this legislation in March of this year, there were 100,000 coronavirus cases worldwide. That number has now risen, as we know, to over 30 million that we know of.

The Global Health Security Act has two main objectives.

First, it codifies bipartisan support for the Global Health Security Agenda. This multilateral partnership started under the Obama administration and was embraced by the Trump administration. It aims to strengthen health systems and laboratories in countries across the globe so that they meet International Health Regulation standards.

Many of our constituents may wonder why we should support health systems abroad when there are so many needs here at home. Well, the coronavirus pandemic clearly shows that a weak and opaque health system in another country—in this case, China—can directly threaten us right here in America. That is why we must remain vigilant, so we can contain future emergent deadly diseases where they originate before they have a chance to become a pandemic and affect us here at home.

Second, our bill makes sure that we have the personnel in place to prepare and respond to pandemics like the coronavirus. We need someone to coordinate our government's response since that response inevitably involves several agencies across the government, from the State Department to the CDC, et cetera.

Several Republicans, including then-Chairman Ed Royce, called on the Obama administration to appoint a single point person with a health background during the Ebola outbreak back in 2014. President Obama's team got it half right by choosing a single person, who was a political appointee. The Trump administration appointed Dr. Debbie Birx, this time a universally respected health expert, as White House Coronavirus Response Coordinator under Vice President MIKE PENCE.

In any event, our bill would make this position permanent so that when the next pandemic comes, America and the world are fully prepared to address that crisis.

Witnessing the death toll and the economic devastation that the coronavirus has brought, I think all Americans will agree that protecting our Nation's health from future pandemics must be seen as a national security priority. We need to take this opportunity to recommit to leadership on global health security and prepare the world to face and defeat the next pandemic.

I urge my colleagues to support this bill. I again thank the gentleman from Virginia (Mr. CONNOLLY) for his leadership on this bill.

Mr. CASTRO of Texas. Madam Speaker, I reserve the balance of my time.

Mr. MCCAUL. Madam Speaker, I yield 3 minutes to the gentlewoman from Missouri (Mrs. WAGNER), an esteemed member of the Foreign Affairs Committee, the vice chairwoman of the Foreign Affairs Committee, and also a cosponsor of this bill.

Mrs. WAGNER. Madam Speaker, I thank the ranking member for yielding.

Madam Speaker, I rise today in support of H.R. 2166, the bipartisan Global Health Security Act. This very important bill will greatly bolster the United States' ability to prevent and respond to global health threats like the coronavirus pandemic.

As we have seen during this tragedy, infectious diseases can spread across borders and oceans with deadly speed. Improving nations' abilities to address public health threats before they spin out of control is, in fact, a matter of national security.

The United States must lead the way in strengthening international health security measures. Investing in multilateral initiatives that reduce the threat of global health catastrophes is a bipartisan priority, and I am proud to colead this landmark bill with Representatives CONNOLLY, CHABOT, BERA, FITZPATRICK, and LARSEN.

The Global Health Security Act establishes a special adviser for global health security at the National Security Council, ensuring that U.S. efforts to respond to public health emergencies are efficient and well-coordinated.

It also requires the United States to proactively strategize for future crises and strengthens our ability to help our partners fight and contain outbreaks within their own borders.

The Global Health Security Act will save lives by helping us prepare for or prevent the next pandemic. I urge my colleagues to support this bill.

Mr. CASTRO of Texas. Madam Speaker, I reserve the balance of my time.

Mr. MCCAUL. Madam Speaker, I yield myself the balance of my time.

The thing I really enjoy about the Foreign Affairs Committee, as I know the Speaker would agree with me, is that it is bipartisan. I would say that the majority of bills passed out of our committee—in fact, I would say no

other committee has passed more bipartisan bills than the House Committee on Foreign Affairs, as it should be.

I thank my good friend JOAQUIN CASTRO from Texas.

Of course, Madam Speaker, you are from Texas. We seem to have a trifecta here today from Texas.

But I will say Chairman ENGEL has been a great partner to me, working together as a chairman and ranking member should on a national security committee. We should put the interests of the Nation above partisan politics, and that has been our charge and our duty.

I am, quite frankly, proud to say that is how we have conducted ourselves in this Congress. It is very gratifying, Madam Speaker, to close out this session of Congress, before this very tumultuous election cycle and very divisive time in our politics and our American history, but for me to be able to close this out in a very bipartisan way, that, I think, is what most Americans out there want from their leaders in the Congress.

I thank the gentleman from Texas and the Speaker from Texas for your bipartisan support. I urge my colleagues to support this bill, and I yield back the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I yield myself the balance of my time for the purpose of closing.

As the saying goes, an ounce of prevention is worth a pound of cure, and that is undoubtedly true in global health. We have seen firsthand the dangers of a lack of preparedness.

Today's legislation will prepare a coordinated response for future pandemics. I give a special thank you to Mr. CONNOLLY for authoring this important legislation and, of course, I thank Mr. MCCAUL of Texas and the others who have worked in a bipartisan way to get this bill to the floor today.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Ms. JACKSON LEE). The question is on the motion offered by the gentleman from Texas (Mr. CASTRO) that the House suspend the rules and pass the bill, H.R. 2166, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

ELECTING CERTAIN MEMBERS TO CERTAIN STANDING COMMITTEES OF THE HOUSE OF REPRESENTATIVES

Mr. JEFFRIES. Madam Speaker, by direction of the Democratic Caucus, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 1135

Resolved, That the following named Members be, and are hereby, elected to the following standing committees of the House of Representatives:

COMMITTEE ON NATURAL RESOURCES: Ms. Barragán (to rank immediately after Mr. García of Illinois).

COMMITTEE ON WAYS AND MEANS: Mr. Richmond (to rank immediately after Mr. Horsford).

Mr. JEFFRIES (during the reading). Madam Speaker, I ask unanimous consent that the resolution be considered as read and printed in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New York?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

GLOBAL CHILD THRIVE ACT OF 2020

Mr. CASTRO of Texas. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 4864) to develop and implement policies to advance early childhood development, to provide assistance for orphans and other vulnerable children in developing countries, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4864

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Global Child Thrive Act of 2020''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) According to a 2019 report from the United Nations Inter-Agency Group for Child Mortality Estimation entitled ''Levels & Trends in Child Mortality'', the annual number of deaths among children younger than 15 years of age dropped by 56 percent between 1990 and 2018, from approximately 14,200,000 to approximately 6,200,000.

(2) According to a 2016 article published in The Lancet entitled ''Early childhood development: the foundation of sustainable development''—

(A) an estimated 250,000,000 children in low-income and middle-income countries suffer suboptimal development due to poverty and stunting alone; and

(B) children who do not meet developmental milestones are expected to lose about 25 percent of their average yearly income once they become adults.

(3) According to a report from the United Nations Children's Fund (UNICEF), entitled ''The State of the World's Children 2016: A fair chance for every child'', nearly 250,000,000 of the world's 650,000,000 primary school age children do not master basic literacy and numeracy.

(4) According to a 2018 report from the World Health Organization entitled ''Nurturing Care for early childhood development''—

(A) the environment in which a child grows has a profound impact on future learning, behavior, and health; and

(B) a country's economic diversity and growth could be improved by investment in early childhood development.

(5) According to a 2017 UNICEF report entitled ''UNICEF's Programme Guidance for Early Childhood Development'', nurturing care, which is key to early childhood development, consists of a core set of interrelated components, including—

(A) behaviors, attitudes, and knowledge about caregiving, including health, hygiene care, and feeding;

(B) stimulation, such as talking, singing, and playing;

(C) responsiveness, such as early bonding, secure attachment, trust, and sensitive communication; and

(D) safety, including routines, protection from violence, abuse, neglect, harm, and environmental pollution.

(6) According to a 2016 report published in The Lancet entitled ''Advancing Early Childhood Development: From Science to Scale''—

(A) nurturing care from parents, relatives, and other caregivers and services are formative experiences for young children;

(B) programs promoting nurturing care can improve early childhood development outcomes; and

(C) children who do not receive nurturing care display negative development outcomes, such as greater sensitivity to the effects of stress or behavioral problems, especially children who do not receive nurturing care before their second birthday.

(7) According to the ''Advancing Protection and Care for Children in Adversity 2019–2023: A U.S. Government Strategy for International Assistance'', children who live without protective family care, in abusive households, on the streets, or in institutions, or who are trafficked, are participating in armed groups, or are being exploited for their labor are more likely to be exposed to violence, exploitation, abuse, and neglect.

(8) According to a 2017 UNICEF report entitled ''Early Moments Matter for every child'', violence, abuse, neglect, and traumatic experiences produce toxic stress that limits neural connectivity in developing brains.

(9) According to a 2014 working paper from the National Scientific Council on the Developing Child at Harvard University entitled ''Excessive Stress Disrupts the Architecture of the Developing Brain''—

(A) situations that produce toxic stress increase the production of cortisol in a child's brain, which disrupts its healthy development; and

(B) chronic stress can potentially affect the expression of genes that regulate the stress response across the life course.

(10) According to a 2018 article in the North Carolina Medical Journal entitled ''Adverse Childhood Experiences (ACEs): An Important Element of a Comprehensive Approach to the Opioid Crisis'', adverse childhood experiences (ACEs) are traumatic or stressful experiences, including emotional, physical, or sexual abuse, domestic violence, household substance abuse, household mental illness, parental separation or divorce, and the incarceration of a household family member.

(11) According to a 2016 report in Development and Psychopathology entitled ''Childhood Adversity and Epigenetic Regulation of Glucocorticoid Signaling Genes: Associations in Children and Adults''—

(A) children and adults are at risk of developing psychiatric disorders and other medical conditions if they have had an adverse childhood experience; and

(B) adults who have had numerous ACEs die nearly 20 years earlier, on average, than adults who have not had numerous ACEs.

SEC. 3. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) the United States Government should continue efforts to reduce child mortality rates and increase attention on prevention efforts and early childhood development programs;

(2) investments in early childhood development ensure healthy and well-developed future generations that contribute to a country's stability, security and economic prosperity;

(3) efforts to provide training and education on nurturing care could result in improved early childhood development outcomes and support healthy brain development; and

(4) integration and cross-sector coordination of early childhood development programs is critical to ensure the efficiency, effectiveness, and continued implementation of such programs.

SEC. 4. ASSISTANCE TO IMPROVE EARLY CHILDHOOD OUTCOMES GLOBALLY.

(a) AUTHORIZATION OF ASSISTANCE.—Amounts authorized to be appropriated to carry out section 135 in chapter 1 of part 1 of the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) for each of the fiscal years 2021 through 2025 are authorized to be made available to support early childhood development activities in conjunction with relevant, existing programming, such as water, sanitation and hygiene, maternal and child health, basic education, nutrition and child protection.

(b) ASSISTANCE TO IMPROVE EARLY CHILDHOOD OUTCOMES GLOBALLY.—Chapter 1 of part I of the Foreign Assistance Act of 1961 (22 U.S.C. 2151 et seq.) is amended by adding at the end the following:

"SEC. 137. ASSISTANCE TO IMPROVE EARLY CHILDHOOD OUTCOMES GLOBALLY.

''(a) DEFINITIONS.—In this section:

''(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term 'appropriate congressional committees' means—

''(A) the Committee on Appropriations of the Senate;

''(B) the Committee on Foreign Relations of the Senate;

''(C) the Committee on Appropriations of the House of Representatives; and

''(D) the Committee on Foreign Affairs of the House of Representatives.

''(2) EARLY CHILDHOOD DEVELOPMENT.—The term 'early childhood development' means the development and learning of a child younger than 8 years of age, including physical, cognitive, social, and emotional development and approaches to learning that allow a child to reach his or her full developmental potential.

''(3) EARLY CHILDHOOD DEVELOPMENT PROGRAM.—The term 'early childhood development program' means a program that ensures that every child has the conditions for healthy growth, nurturing family-based care, development and learning, and protection from violence, exploitation, abuse, and neglect, which may include—

''(A) a health, clean water, sanitation, and hygiene program that serves pregnant women, children younger than 5 years of age, and the parents of such children;

''(B) a nutrition program, combined with stimulating child development activity;

''(C) age appropriate cognitive stimulation, especially for newborns, infants, and toddlers, including an early childhood intervention program for children experiencing at-risk situations, developmental delays, disabilities, and behavioral and mental health conditions;

''(D) an early learning (36 months and younger), preschool, and basic education program for children until they reach 8 years of age or complete primary school; or

''(E) a child protection program, with an emphasis on the promotion of permanent, safe, and nurturing families, rather than placement in residential care or institutions, including for children with disabilities.

''(4) FEDERAL DEPARTMENTS AND AGENCIES.—The term 'Federal departments and agencies' means—

''(A) the Department of State;

''(B) the United States Agency for International Development;

''(C) the Department of the Treasury;

''(D) the Department of Labor;

''(E) the Department of Education;

''(F) the Department of Agriculture;

''(G) the Department of Defense;

''(H) the Department of Health and Human Services, including—

''(i) the Centers for Disease Control and Prevention; and

''(ii) the National Institutes of Health;

''(I) the Millennium Challenge Corporation;

''(J) the Peace Corps; and

''(K) any other department or agency specified by the President for the purposes of this section.

''(5) RESIDENTIAL CARE.—The term 'residential care' means care provided in any non-family-based group setting, including orphanages, transit or interim care centers, children's homes, children's villages or cottage complexes, group homes, and boarding schools used primarily for care purposes as an alternative to a children's home.

''(b) STATEMENT OF POLICY.—It is the policy of the United States—

''(1) to support early childhood development in relevant foreign assistance programs, including by integrating evidence-based, efficient, and effective interventions into relevant strategies and programs, in coordination with partner countries, other donors, international organizations, international financial institutions, local and international nongovernmental organizations, private sector partners, civil society, and faith-based and community-based organizations; and

''(2) to encourage partner countries to lead early childhood development initiatives that include incentives for building local capacity for continued implementation and measurable results, by—

''(A) scaling up the most effective, evidence-based, national interventions, including for the most vulnerable populations and children with disabilities and developmental delays, with a focus on adaptation to country resources, cultures, and languages;

''(B) designing, implementing, monitoring, and evaluating programs in a manner that enhances their quality, transparency, equity, accountability, efficiency and effectiveness in improving child and family outcomes in partner countries; and

''(C) utilizing and expanding innovative public-private financing mechanisms.

''(c) IMPLEMENTATION.—

''(1) IN GENERAL.—Not later than 1 year after the date of the enactment of this section, the Administrator of the United States Agency for International Development, in coordination with the Secretary of State, shall direct relevant Federal departments and agencies—

''(A) to incorporate, to the extent practical and relevant, early childhood development into foreign assistance programs to be carried out during the following 5 fiscal years; and

''(B) to promote inclusive early childhood development in partner countries.

''(2) ELEMENTS.—In carrying out paragraph (1), the Administrator, the Secretary, and the heads of other relevant Federal departments and agencies as appropriate shall—

''(A) build on the evidence and priorities outlined in 'Advancing Protection and Care for Children in Adversity: A U.S. Government Strategy for International Assistance 2019–2023', published in June 2019 (referred to in this section as 'APCCA');

''(B) to the extent practicable, identify evidence-based strategic priorities, indicators, outcomes, and targets, particularly emphasizing the most vulnerable populations and children with disabilities and developmental delays, to support inclusive early childhood development;

''(C) support the design, implementation, and evaluation of pilot projects in partner countries, with the goal of taking such projects to scale;

''(D) support inclusive early childhood development within all relevant sector strategies and public laws, including—

''(i) the Global Water Strategy required under section 136(j);

''(ii) the whole-of-government strategy required under section 5 of the Global Food Security Act of 2016 (22 U.S.C. 9304 note);

''(iii) the Basic Education Strategy set forth in section 105(c);

''(iv) the U.S. Government Global Nutrition Coordination Plan, 2016–2021; and

''(v) APCCA; and others as appropriate;

''(E) improve coordination with foreign governments and international and regional organizations with respect to official country policies and plans to improve early childhood development, maternal, newborn, and child health and nutrition care, basic education, water, sanitation and hygiene, and child protection plans which promote nurturing, appropriate, protective, and permanent family care, while reducing the percentage of children living in residential care or on the street; and

''(F) consult with partner countries, other donors, international organizations, international financial institutions, local and international nongovernmental organizations, private sector partners and faith-based and community-based organizations, as appropriate.

''(d) ANNUAL REPORT ON THE IMPLEMENTATION OF THE STRATEGY.—The Special Advisor for Children in Adversity shall include, in the annual report required under section 5 of the Assistance for Orphans and Other Vulnerable Children in Developing Countries Act of 2005 (22 U.S.C. 2152g), which shall be submitted to the appropriate congressional committees and made publicly available, a description of—

''(1) the progress made toward integrating early childhood development interventions into relevant strategies and programs;

''(2) the efforts made by relevant Federal departments and agencies to implement subsection (c), with a particular focus on the activities described in such subsection;

''(3) the progress achieved during the reporting period toward meeting the goals, objectives, benchmarks, described in subsection (c); and

''(4) the progress achieved during the reporting period toward meeting the goals, objectives, benchmarks, and timeframes described in subsection (c) at the program level, along with specific challenges or gaps that may require shifts in targeting or financing in the following fiscal year.

''(e) INTERAGENCY TASK FORCE.—The Special Advisor for Assistance to Orphans and Vulnerable Children should regularly convene an interagency task force, to coordinate—

''(1) intergovernmental and interagency monitoring, evaluation, and reporting of the activities carried out pursuant to this section;

''(2) early childhood development initiatives that include children with a variety of needs and circumstances; and

''(3) United States Government early childhood development programs, strategies, and partnerships across relevant Federal departments and agencies.''.

SEC. 5. SPECIAL ADVISOR FOR ASSISTANCE TO ORPHANS AND VULNERABLE CHILDREN.

Section 135(e)(2) of the Foreign Assistance Act of 1961 (22 U.S.C. 2152f(e)(2)) is amended—

(1) by amending subparagraph (A) to read as follows:

''(A) Coordinate assistance to orphans and other vulnerable children among the relevant Executive branch agencies and officials.''; and

(2) in subparagraph (B), by striking ''the various offices, bureaus, and field missions within the United States Agency for International Development'' and inserting ''the relevant Executive branch agencies and officials''.

SEC. 6. RULE OF CONSTRUCTION.

Nothing in the amendments made by this Act may be construed to restrict or abrogate any other authorization for United States Agency for International Development activities or programs.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. CASTRO) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from Texas (Mr. CASTRO).

GENERAL LEAVE

Mr. CASTRO of Texas. Madam Chair, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include in the RECORD extraneous material on H.R. 4864.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. CASTRO of Texas. Madam Speaker, I yield myself such time as I may consume.

As I begin, I express deep gratitude to Chairman ENGEL for his strong and steady leadership on the House Foreign Affairs Committee and specifically, with respect to this bill, for working with me to move important legislation through the committee and the Congress.

I also thank Representative BRIAN FITZPATRICK for working with me on this legislation that enjoys wide bipartisan support in both the House and the Senate.

Finally, I recognize USAID as the country's lead agency to provide humanitarian assistance and lead in international development. The tireless efforts of its staff helped millions of vulnerable people every year and advanced core United States interests.

The Global Child Thrive Act shows that the leadership in Congress is concerned about future generations in developing countries, and we are concerned that they be empowered to survive and succeed.

I would like to speak to the importance of this bill that we are considering here today in the House of Representatives.

Over 250 million children worldwide are at risk of stunted growth and damage to their brains due to the long-lasting impacts of poverty, conflict, and displacement. Research indicates that poor health, stress, and lack of learning impairs a child's growth and development, with lifelong negative effects.

The Global Child Thrive Act is designed to reduce the devastating effects of poverty through early childhood development programming. Early childhood development, or ECD, provides for the care and nurturing that restores a child's prospects for success in the future. ECD interventions build a brain architecture that is necessary for growth through reading, singing, play activities with shape and color, and responsive interaction.

The benefits of ECD are particularly critical during this coronavirus pandemic when children face severe disruptions in development. Hundreds of thousands of children have already lost a family member, and quarantines and school closures have led to isolation and increased child protection concerns.

With so much at stake, we need to take action now.

This bill is not just my bill or a Democratic bill, but a bipartisan bill that has garnered widespread support because saving children's lives is not a partisan measure but a human imperative.

The Global Child Thrive Act shows that the United States is there for the world's most vulnerable and precious possession, its children. It also shows that we are serious about combating poverty as one of the greatest scourges that affects human dignity.

This leadership is critical because we, as a nation, need to demonstrate to the world that we are still the North Star of freedom, democracy, and human rights.

We need to show that the world can trust and follow our lead in welcoming those seeking refuge and helping marginalized populations around the world who just want the chance not only to survive but to thrive.

I have spoken about the need to build up what I call an infrastructure of diplomacy. The work of USAID and international development, and our partnerships with NGOs that implement these programs, is an important component of that infrastructure that enables our Nation's leadership on the world's stage.

Foreign affairs issues need the attention of our Nation because the truth is, foreign affairs touches all aspects of our lives, including national security, personal health, and access to essential goods. It determines how we trust and look at the goodness of our neighbors, not only across borders but across our own streets.

This is a good measure. It has bipartisan support, and I hope that my colleagues will support it.

Madam Speaker, I reserve the balance of my time.

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Mr. MCCAUL. Madam Speaker, I yield myself as much time as I may consume.

Madam Speaker, I thank Representative CASTRO and Representative FITZPATRICK for their leading efforts on the Global Child Thrive Act, which we are considering here today.

Although children have not faced as many direct health effects from COVID–19, the follow-on effects of the pandemic endanger the welfare of countless vulnerable children around the world. Over the summer, the U.N. estimated that an additional 10,000 children are dying every month due to hunger caused by COVID–19.

This pandemic is also reversing hard-fought gains we have made in combating other diseases, increasing access to education, and reducing extreme poverty.

This legislation supports efforts to integrate early childhood development into existing interventions on nutrition, education, maternal health, and water, sanitation, and hygiene.

It also expands the role of the Special Advisor for Assistance to Orphans and Vulnerable Children in coordinating U.S. assistance and improving interagency cooperation.

This bill, in short, Madam Speaker, protects the most vulnerable in our society, our children, from hunger and disease, and I urge my colleagues to support it.

Madam Speaker, I reserve the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I reserve the balance of my time.

Mr. MCCAUL. Madam Speaker, I yield 5 minutes to the gentleman from Pennsylvania (Mr. FITZPATRICK), the coauthor of the bill. An esteemed member of the Committee on Foreign Affairs, the gentleman, again, working with my good friend, Congressman CASTRO, has brought this measure forward today.

Mr. FITZPATRICK. Madam Speaker, I thank Ranking Member MCCAUL for yielding me time to speak on the Global Child Thrive Act.

Madam Speaker, as a lifelong FBI special agent, one of my greatest concerns has always been the welfare of children, not just children in the United States, but children across the globe.

Last year, as the ranking member indicated, I partnered with my colleague, Congressman CASTRO, to introduce H.R. 4864, the Global Child Thrive Act. This legislation was written to support young children and their families across the globe.

Our bill has wide bipartisan and bicameral support. Our bill passed unanimously out of the House Foreign Affairs Committee in December. We have over 60 bipartisan cosponsors. It is also supported by over 50 civil society groups working in child and international development.

Madam Speaker, I want to particularly thank Catholic Relief Services, whose constituent advocates in my home district have championed these issues.

Madam Speaker, the Global Child Thrive Act would update our foreign

aid programs to increase their effectiveness and multiply developmental outcomes for young children. Currently, less than 1 percent of our U.S. budget goes towards international aid programs, so it is critical that those limited dollars do as much good as possible.

Today, the need for the enactment of our bill into law is more pressing than ever, as experts agree that the secondary impacts of COVID–19, such as increased food insecurity, malnutrition, and violence, will fall most heavily on vulnerable children. The Global Child Thrive Act will support the most vulnerable children to withstand the secondary impacts of the coronavirus, as well as future deadly pandemics.

Moreover, this act is crucial, since children around the globe are continuously affected by widespread poverty and the lack of adequate childcare. According to UNICEF, extreme poverty in low- and middle-income countries is the reason why 250 million children 5 years old and younger may not achieve their full developmental potential.

Moreover, UNICEF reports that at least ''75 million children under age five live in areas affected by conflict.'' Conflict increases a child's ''risk of toxic stress'' and ''can inhibit brain cell connections.''

Finally, Madam Speaker, I thank Congressman CASTRO for his bipartisanship and his hard work on this legislation. I also thank Chairman ENGEL and Ranking Member MCCAUL, all fine colleagues of mine, for their cooperation and support on our legislation.

As we all know, Madam Speaker, focusing on children is focusing on our future, and I urge all of my colleagues, Democrat and Republican, to vote ''yes'' on H.R. 4864, the Global Child Thrive Act.

Mr. CASTRO of Texas. Madam Speaker, I reserve the balance of my time.

Mr. MCCAUL. Madam Speaker, I yield myself such time as I may consume. I am prepared to close.

Madam Speaker, I thank my good friend, BRIAN FITZPATRICK, for his work in the FBI. I thought it was very compelling, the testimony about putting children's lives as the highest priority as he served as a very distinguished special agent in the Bureau and now serves in this Congress. I think Georgetown University ranked him as the most bipartisan Member of this body, of the House. I take pride in being on the top of the list, but Mr. FITZPATRICK's service in this House has been to issues of importance to Americans.

Most Americans don't want us bickering. Most Americans want us working across the aisle to get good things done for the people of this country. The gentleman has demonstrated that every day I have witnessed him in office in this Congress and since he has served in office.

Madam Speaker, I thank Congressman CASTRO for his leadership.

Finally, Madam Speaker, being a Catholic myself, I do want to thank Catholic Relief Services and the development community for their work on this bill, working so hard to get to this point where we are now on the floor of the House of Representatives in the United States Congress getting ready to pass such an important bill that will save so many children's lives.

Madam Speaker, I yield back the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I yield myself as much time as I may consume.

It is now up to us to pass this bill that is before us today and to send a strong signal to the Senate that passing the Global Child Thrive Act into law is urgent.

I also, Madam Speaker, as folks have said, want to thank Catholic Relief Services for all of their work and the work of their members and different chapters throughout the country in helping to shepherd this bill.

As the world toils through a devastating pandemic, now more than ever, we must keep child welfare and the elimination of poverty front and center if we are to lead our country and the world to a stronger, healthier, and more resilient condition. We must stand united and be the acting conscience of the country. It is our job to do so.

I, therefore, Madam Speaker, urge my colleagues in the House to support this measure so we can get it to the President's desk and have it signed into law.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. CASTRO) that the House suspend the rules and pass the bill, H.R. 4864, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

LEVERAGING INFORMATION ON FOREIGN TRAFFICKERS ACT

Mr. CASTRO of Texas. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 5664) to amend the Trafficking Victims Protection Act of 2000 to ensure adequate time for the preparation of the annual Trafficking in Persons Report, require the timely provision of information to the Office to Monitor and Combat Trafficking in Persons and the Bureau of Diplomatic Security of the Department of State regarding the number and location of visa denials based, in whole or in part, on grounds related to human trafficking, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5664

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Leveraging Information on Foreign Traffickers Act'' or the ''LIFT Act''.

SEC. 2. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) the annual Trafficking In Persons Report prepared by the Department of State pursuant to the Trafficking Victims Protection Act of 2000 (the ''TIP Report'') remains one of the most comprehensive, timely, and important sources of information on human trafficking in the world, and currently includes 187 individual country narratives;

(2) in January 2019, the statute mandating the TIP Report was amended to require that each report must cover efforts and activities occurring within the period from April 1 of the prior year through March 31 of the current year, which necessarily requires the collection and transmission of information after March 31;

(3) ensuring that the Department of State has adequate time to receive, analyze, and incorporate trafficking-related information into its annual Trafficking In Persons Report is important to the quality and comprehensiveness of that report;

(4) information regarding prevalence and patterns of human trafficking is important for understanding the scourge of modern slavery and making effective decisions about where and how to combat it; and

(5) United States officials responsible for monitoring and combating trafficking in persons around the world should receive available information regarding where and how often United States diplomatic and consular officials encounter persons who are responsible for, or who knowingly benefit from, severe forms of trafficking in persons.

SEC. 3. ANNUAL DEADLINE FOR TRAFFICKING IN PERSONS REPORT.

Section 110(b)(1) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107(b)(1)) is amended by striking ''June 1'' and inserting ''June 30''.

SEC. 4. UNITED STATES ADVISORY COUNCIL ON HUMAN TRAFFICKING.

(a) EXTENSION.—Section 115(h) of the Justice for Victims of Trafficking Act of 2015 (Public Law 114–22; 129 Stat. 243) is amended by striking ''September 30, 2021'' and inserting ''September 30, 2025''.

(b) COMPENSATION.—Section 115(f) of the Justice for Victims of Trafficking Act of 2015 (Public Law 114–22; 129 Stat. 243) is amended—

(1) in paragraph (1), by striking ''and'' after the semicolon at the end;

(2) in paragraph (2), by striking the period at end and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(3) may each receive compensation for each day such member is engaged in the actual performance of the duties of the Council.''.

(c) COMPENSATION REPORT.—Not later than 120 days after the date of the enactment of this Act, the Secretary of State shall provide to the relevant congressional committees a plan to implement compensation for members of the United States Advisory Council on Human Trafficking pursuant to paragraph (3) of section 115(f) of the Justice for Victims of Trafficking Act of 2015 (Public Law 114–22; 129 Stat. 243), as added by subsection (b).

SEC. 5. TIMELY PROVISION OF INFORMATION TO THE OFFICE TO MONITOR AND COMBAT TRAFFICKING IN PERSONS OF THE DEPARTMENT OF STATE.

(a) IN GENERAL.—Section 106 of the Trafficking Victims Protection Act of 2000 (22

U.S.C. 7104) is amended by adding at the end the following new subsection:

''(l) INFORMATION REGARDING HUMAN TRAFFICKING-RELATED VISA DENIALS.—

''(1) IN GENERAL.—The Secretary of State shall ensure that the Office to Monitor and Combat Trafficking in Persons and the Bureau of Diplomatic Security of the Department of State receive timely and regular information regarding United States visa denials based, in whole or in part, on grounds related to human trafficking.

''(2) DECISIONS REGARDING ALLOCATION.—The Secretary of State shall ensure that decisions regarding the allocation of resources of the Department of State related to combating human trafficking and to law enforcement presence at United States diplomatic and consular posts appropriately take into account—

''(A) the information described in paragraph (1); and

''(B) the information included in the most recent report submitted in accordance with section 110(b).''.

(b) CONFORMING AMENDMENT.—Section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102) is amended by adding at the end the following new paragraphs:

''(18) GROUNDS RELATED TO HUMAN TRAFFICKING.—The term 'grounds related to human trafficking' means grounds related to the criteria for inadmissibility to the United States described in subsection (a)(2)(H) of section 212 of the Immigration and Nationality Act (8 U.S.C. 1182).''.

SEC. 6. REPORTS TO CONGRESS.

(a) INITIAL REPORT.—Not later than 90 days after the date of the enactment of this Act, the Secretary of State shall provide to the relevant congressional committees a report that—

(1) describes the actions that have been taken and that are planned to implement subsection (l) of section 106 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7104), as added by section 5 of this Act; and

(2) identifies by country and by United States diplomatic and consular post the number of visa applications denied during the previous calendar year with respect to which the basis for such denial, included grounds related to human trafficking (as such term is defined in section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102) (as amended by section 5(b))).

(b) ANNUAL REPORT.—Beginning with the first annual anti-trafficking report required under subsection (b)(1) of section 110 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7107; enacted as division A of the Victims of Trafficking and Violence Protection Act of 2000) that is submitted after the date of the enactment of this Act and concurrent with each such subsequent submission for the following seven years, the Secretary of State shall submit to the relevant congressional committees a report that contains information relating to the number and the locations of United States visa denials based, in whole or in part, on grounds related to human trafficking (as such term is defined in section 103 of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102) (as amended by section 5(b))) during the period covered by each such annual anti-trafficking report.

SEC. 7. DEFINITIONS.

In this Act:

(1) LOCATIONS OF UNITED STATES VISA DENIALS.—The term ''location of United States visa denials'' means—

(A) the United States diplomatic or consular post at which a denied United States visa application was adjudicated; and

(B) the city or locality of residence of the applicant whose visa application was so denied.

(2) RELEVANT CONGRESSIONAL COMMITTEES.—The term ''relevant congressional committees'' means—

(A) the Committee on Foreign Affairs and the Committee on the Judiciary of the House of Representatives; and

(B) the Committee on Foreign Relations and the Committee on the Judiciary of the Senate.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. CASTRO) and the gentleman from Texas (Mr. MCCAUL) each will control 20 minutes.

The Chair recognizes the gentleman from Texas (Mr. CASTRO).

GENERAL LEAVE

Mr. CASTRO of Texas. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 5664.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. CASTRO of Texas. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, human trafficking, better termed modern-day slavery, has grown into a sprawling and complex billion-dollar criminal enterprise. An estimated 25 million people are currently victims of trafficking, having been forced into abusive situations involving forced labor, sex exploitation, and involuntary domestic servitude.

The House Foreign Affairs Committee has a long history of confronting modern-day slavery, and the LIFT Act continues that legacy for this committee.

Madam Speaker, I thank my good friend and the ranking member of the committee, Mr. MCCAUL, for authoring this bill, and Mr. SMITH for his leadership on this issue for over two decades.

In 2000, President Clinton signed into law the Victims of Trafficking and Violence Prevention Act, now hailed as the most comprehensive legislation on human trafficking to date. That landmark piece of legislation came out of the Foreign Affairs Committee and was authored by our colleague, CHRIS SMITH.

That legislation gave the State Department the responsibility of drafting the annual Trafficking Report, which has been a critical resource in pushing countries to take action to combat human trafficking.

The bill before us ensures that the State Department has adequate time to prepare the annual Trafficking Report. It streamlines data sharing among bureaus on visa denials for human traffickers and engages trafficking survivors in our policymaking process.

We must continue to fight modern-day slavery and work to enact legislation that brings us to a brighter future free of this horrific injustice. Today's measure is a step in that direction, and I hope all of my colleagues, Republican and Democrat, will join me in supporting it.

Madam Speaker, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON JUDICIARY,
Washington, DC, July 30, 2020.

Hon. ELIOT L. ENGEL,
Chairman, Committee on Foreign Affairs, House of Representatives, Washington, DC.

DEAR CHAIRMAN ENGEL: This is to advise you that the Committee on the Judiciary has now had an opportunity to review the provisions in H.R. 5664, the LIFT Act, that fall within our Rule X jurisdiction. I appreciate your consulting with us on those provisions. The Judiciary Committee has no objection to your including them in the bill for consideration on the House floor, and to expedite that consideration is willing to waive sequential referral, with the understanding that we do not thereby waive any future jurisdictional claim over those provisions or their subject matters.

In the event a House-Senate conference on this or similar legislation is convened, the Judiciary Committee reserves the right to request an appropriate number of conferees to address any concerns with these or similar provisions that may arise in conference.

Please place this letter into the Congressional Record during consideration of the measure on the House floor. Thank you for the cooperative spirit in which you have worked regarding this matter and others between our committees.

Sincerely,

JERROLD NADLER,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, July 31, 2020.

Hon. JERROLD NADLER,
Chairman, Committee on the Judiciary, House of Representatives, Washington, DC.

DEAR CHAIRMAN NADLER: I am writing to you concerning H.R. 5664, the LIFT Act. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that provisions of the bill fall within the jurisdiction of the House Committee on the Judiciary under House Rule X, and that your Committee will forgo action on H.R. 5664 to expedite floor consideration. I further acknowledge that the inaction of your Committee with respect to the bill does not waive any future jurisdictional claim over the matters contained in the bill that fall within your jurisdiction. I will also support the appointment of Committee on the Judiciary conferees during any House-Senate conference convened on this legislation.

Lastly, I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of the bill. Thank you again for your cooperation regarding the legislation. I look forward to continuing to work with you as the measure moves through the legislative process.

Sincerely,

ELIOT L. ENGEL,
Chairman.

Mr. MCCAUL. Madam Speaker, I yield myself as much time as I may consume.

Madam Speaker, the trafficking of people, whether for sexual exploitation or forced labor, is an affront to human dignity. It is, as the gentleman from Texas said, a modern-day form of slavery that oppresses nearly 25 million people around the world, including

right here in the United States and in my home State of Texas.

A few years ago, a mother from Katy, Texas, in my district, reached out to me with one request: ''Please help me bring my daughter home, my daughter, Courtney.''

Courtney was a junior in high school. She was on the swim team and attended church regularly. She was groomed, unfortunately, by traffickers. She was groomed at her high school.

Many parents think, ''This can't happen to my child,'' and not in suburbia in Houston, but just ask Courtney's family that question.

The traffickers embedded themselves in the high school. They operated through Courtney's classmates. Like leeches, they latched onto Courtney's vulnerabilities, and they used them against her. It was then that she was swept up into this nightmare and used like property.

We may expect things like this out of foreign countries, but not in our backyards.

Thankfully, after several months of work with law enforcement, Courtney returned home to her family. I was there when she came home. She had battle scars. She had lost so much weight. She had just about died. It was quite a reunion with a mother and father and their daughter who had been gone for almost 2 years.

She now dedicates her time to raising awareness and educating others on the signs of human trafficking. Her work earned her a spot on the U.S. Advisory Council on Human Trafficking. I cannot be more proud of her work and her inspiration to me and her contributions to the council.

It is because of survivors like Courtney and the countless others that Chairman ENGEL and I introduced the LIFT Act to continue our committee's 20-year commitment to combating human trafficking.

□ 1330

The LIFT Act will help our law enforcement officers and diplomatic officials communicate better so we can then root out more human traffickers and bring them to justice.

I was surprised to find out that when someone applies for a visa at an embassy or a consulate and they are denied on human trafficking grounds, that that information is not currently given to our law enforcement officers, to the FBI.

The LIFT Act also gives a voice to survivors of human trafficking so that brave people like Courtney will remain a central part of the policy discussion.

By reauthorizing the survivor-led U.S. Advisory Council on Human Trafficking through 2025, which is what this bill does, we are empowering survivors and sharpening our tools to counter traffickers.

I am very grateful for the support this bill has received from the Alliance to End Slavery and Trafficking, and the U.S. Conference of Catholic Bishops.

Madam Speaker, the evil of slavery was abolished in this country many years ago. We are still living up to the principles of our Founding Fathers that all men are created equal. We are still bringing this country to racial and social justice. It is still something we strive for. We must end this form of human slavery today, and this bill is a start.

We have a lot more work to do but the numbers are very perplexing. In fact, the numbers are very disturbing, the numbers of young children, both little girls and boys, who are swept up into this awful system.

I have worked most of my life as a Federal prosecutor on these issues and now in Congress. I put the worst of the worst behind bars for these crimes where they deserve to spend a very long time in our prison system. They are the lowest of the low.

So with this bill today, we renew and strengthen our commitment to stand with the exploited and the children against their oppressors.

Madam Speaker, I reserve the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I reserve the balance of my time.

Mr. MCCAUL. Madam Speaker, I yield 4 minutes to the gentleman from Florida (Mr. YOHO).

Mr. YOHO. Madam Speaker, I would like to commend Chairmen MCCAUL, ENGEL, and my colleague Mr. CASTRO for bringing up this strong bipartisan bill.

Human trafficking is an issue which is still alive and well today, unfortunately. It is modern-day slavery.

The International Labour Organization estimates that there are 40.3 million victims of human trafficking worldwide today. The global human trafficking market is estimated to be a $150 billion per year industry, and I hate to call it an industry. The profits from these nefarious and heinous acts only go to fund corrupt governments and organizations to rain more terror, pain, organ harvesting, and suffering on the world's most vulnerable populations.

As of 2020, the Counter Trafficking Data Collaborative shows globally 108,613 individual cases of human trafficking; 164 countries of exploitation; and 175 nationalities.

The LIFT Act will ensure adequate time for preparation of the State Department's annual Trafficking in Persons Report. It will also require timely provisions on information to the State Department on the number and location of visa denials based wholly or partially on grounds related to human trafficking.

One of the greatest challenges in developing targeted counter-traffic responses and measuring their impact is the lack of reliable, high-quality data related to the scale of human trafficking and the profile of the victims.

The LIFT Act will help to provide this global data on human trafficking through its insurance of thorough preparation of the State Department's Trafficking in Persons Report. In these times of hyper-partisanship, combating human trafficking is a worldwide scourge on societies that we should, we can, and we do tackle in a bipartisan fashion here.

In order to combat human trafficking, we must all continue to work together.

I will, and I encourage all others to support the LIFT Act.

Mr. CASTRO of Texas. Madam Speaker, I reserve the balance of my time.

Mr. MCCAUL. Madam Speaker, I am prepared to close, and I yield myself such time as I may consume.

Madam Speaker, in 2002, I formed the Internet Crimes Against Children unit in the attorney general's office in the State of Texas to stop internet trafficking and stop the exploitation of children online.

Since that day, we have put thousands behind bars. This is a worldwide scourge. It happens on an international level.

But what is, again, most disturbing, is it is happening now in our backyards. It is happening in suburbia America.

A case like Courtney's is so compelling because you never thought it would be possible in a town like Katy, Texas, but it happens, and it is happening all over this Nation. The numbers from the FBI are revealing and it is an industry. It is a sick industry that is run by businessmen; that is run by lawyers, an industry that exploits our children.

I have talked to many veterans with PTSD, but I can't imagine the post-traumatic stress of a victim of human trafficking who has been violated over and over and over again, offending the deepest ounce of human dignity where there is no dignity left, where they had to put their mind in such a place—almost like Stockholm syndrome—where they can survive the horrors that they are living in day in and day out.

Madam Speaker, this has to stop. This bill will help, but this Congress and the next Congress, we really need to ramp up our efforts to take this issue square on, to put these monsters out of their business and say they are closed forever, and to put them behind bars for a very, very long time.

Madam Speaker, I would like to thank many in my district who have worked hard on this issue: Houston 20's Jenn Hohman, and Austin 20's Lisa Knapp. These women are warriors for the cause against human trafficking. I also want to thank the Harris County human trafficking task force for their great work on this effort. They are truly one of the models for the Nation.

When the officials from Homeland Security came down from the Blue Campaign, they told me this is one of the most effective operations we have seen in the United States, and it is a model for the Nation.

Madam Speaker, I urge my colleagues to support this meaningful, necessary legislation, and I yield back the balance of my time.

Mr. CASTRO of Texas. Madam Speaker, I yield myself such time as I may consume for the purpose of closing.

Combating human trafficking is a global challenge, and we are proud of the State Department's critical role in that effort. This legislation will ensure that the Department has the tools and resources necessary to counter these heinous human rights abuses.

I would like to thank the ranking member, Mr. MCCAUL, for his work on this important issue. This is a strong bill that I am pleased to support, and I urge my colleagues, Democrat and Republican, to do the same.

Madam Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. CASTRO) that the House suspend the rules and pass the bill, H.R. 5664, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. MCCAUL. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this motion are postponed.

HONORING ALL VETERANS ACT

Mr. TAKANO. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 3010) to amend title 38, United States Code, to establish a mission statement of the Department of Veterans Affairs.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3010

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Honoring All Veterans Act''.

SEC. 2. MISSION STATEMENT OF DEPARTMENT OF VETERANS AFFAIRS.

(a) REQUIRED MISSION STATEMENT.—Section 301 of title 38, United States Code, is amended by adding at the end the following new subsection:

''(d) The mission statement of the Department shall be as follows: 'To fulfill President Lincoln's promise to care for those ''who shall have borne the battle'' and for their families, caregivers, and survivors.'.''.

(b) NOTIFICATION.—Not later than 30 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall—

(1) publish in the Federal Register and on the internet website of the Department of Veterans Affairs a notification explaining the mission statement of the Department as specified in subsection (d) of section 301 of title 38, United States Code, as added by subsection (a) of this section; and

(2) update each internet website of the Department of Veterans Affairs and other electronic references that use a previous mission statement.

(c) GUIDANCE.—Not later than 30 days after the date of the enactment of the this Act, the Secretary shall develop and issue guidance to all elements of the Department regarding the mission statement of the Department as specified in subsection (d) of section 301 of title 38, United States Code, as added by subsection (a) of this section. The guidance shall include the following:

(1) A notification explaining the mission statement.

(2) Instructions and a timeline for updating all previous mission statement references at each such element.

(3) A method to monitor and evaluate the compliance by facilities of the Department with the guidance, including a reporting mechanism for such facilities to report back to the Secretary on the progress made in updating all non-electronic mission statement references.

(4) Any other information that the Secretary determines necessary to ensure timely compliance with the guidance.

(d) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to Congress a report containing a review and assessment of the progress of each element of the Department in complying with the guidance under subsection (c), including—

(1) any reasons explaining why an element of the Department has failed to implement the guidance; and

(2) a plan to address any such failure to implement the guidance and ensure that each element of the Department fully implements and complies with the guidance.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to insert extraneous material on H.R. 3010.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, H.R. 3010 establishes an inclusive VA mission statement or motto as follows: ''To fulfill President Lincoln's promise to care for those 'who shall have borne the battle' and for their families, caregivers, and survivors.'' Congresswoman RICE introduced this bill to establish a model at VA that includes all who VA is mandated to serve.

Since its creation in 1861, only one woman, Dr. Mary Walker, has received the Medal of Honor. Her citation recognized her for devoting ''herself with much patriotic zeal to the sick and wounded soldiers, both in the field and in hospitals, to the detriment of her own health,'' and enduring ''hardships as a prisoner of war.''

She received the Medal of Honor in 1866 for her service to the U.S. Army throughout the American Civil War.

The current VA mission statement, a line from President Lincoln's second inaugural address delivered in 1865, uses only male pronouns and excludes women and lesbian, gay, bisexual, transgender, and queer veterans, as well as the diversity of their families, caregivers and survivors.

For years, this committee has heard from veterans and their supporters that both the gender-exclusive motto and the VA's refusal to changes it are reflective of a culture that does not prioritize or value them.

□ 1345

The current model was unilaterally selected by the Administrator of what was then the Veterans Administration in 1959.

By passing this bill to create a new mission statement, we are demonstrating the will of the American people for VA's motto to be inclusive. In the original context, President Lincoln expressed an intent of inclusion and an obligation to care for all who had endured conflict.

Madam Speaker, H.R. 3010 both honors the original spirit of President Lincoln's words while reflecting the full scope of VA's mission and whom they must serve. As Dr. Mary Walker said: ''Let the generations know that women in uniform also guaranteed their freedom.''

I, again, thank Miss RICE from the State of New York for sponsoring this bill and for her tireless work on behalf of America's veterans, their families, caregivers, and survivors.

I thank Dr. ROE and the minority Members who made bringing this bill to the floor a fully bipartisan effort, and I hope the Senate will take this on swiftly so that it will pass into law before the end of the 116th Congress.

Madam Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in support of H.R. 3010, the Honoring All Veterans Act, which is sponsored by my friend, Congresswoman KATHLEEN RICE from New York.

This bill would establish a mission statement in the statute for the Department of Veterans Affairs. That mission statement would read: ''To fulfill President Lincoln's promise to care for those 'who shall have borne the battle' and for their families, caregivers, and survivors.''

This is in homage to President Lincoln's immortal words in his second inaugural address, which state, in full: ''With malice toward none; with charity for all; with firmness in the right, as God gives us to see the right, let us strive on to finish the work we are in; to bind up the Nation's wounds; to care for him who shall have borne the battle, and for his widow, and his orphan,

to do all which may achieve and cherish a just and lasting peace among ourselves and with all nations.''

Those words, which were delivered in 1865, remain some of the most important in our country's history, and they continue to reverberate even now.

For one, they inspired the creation of the Department of Veterans Affairs as we know it. That is why VA has been using them as a motto since 1959. However, in the last several years, veterans service organizations and others have rightly noted that the use of the male pronoun in President Lincoln's statement can inadvertently ostracize the increasing number of women in the military and veteran communities.

Women are the fastest growing cohort of servicemembers and veterans. They play critical roles in the battlefield and in the VA healthcare system where their numbers have tripled in the last two decades alone. VA has made great strides in the last few years with respect to improving care for women and, as a result, women veterans now express greater trust in VA than ever before.

Enacting the Honoring All Veterans Act would go one step further in making VA a more inclusive and welcoming place of care for them and future generations of veterans, whoever they may be, while preserving in statute the spirit of President Lincoln's charge to forever honor and care for those who have served.

The bill would also be more inclusive of many caregivers, survivors, and family members of veterans who are vitally important sources of ongoing love and support of veterans in need across the country.

Madam Speaker, I appreciate Congresswoman RICE's leadership on this bill. I am proud to sponsor it and support it today, and I reserve the balance of my time.

Mr. TAKANO. Madam Speaker, I yield 5 minutes to the gentlewoman from New York (Miss RICE), who is my good friend and who is the sponsor of H.R. 3010.

Miss RICE of New York. Madam Speaker, I rise today in support of my bipartisan bill, the Honoring All Veterans Act.

This bill would finally require the Department of Veterans Affairs to replace its outdated motto with a more inclusive statement. The words of the original motto would be updated to read: ''To fulfill President Lincoln's promise to care for those 'who shall have borne the battle' and for their families, caregivers, and survivors.''

For far too long, the VA's gender-exclusive motto hasn't properly acknowledged the service of women and LGBT veterans. This is simply wrong, and it is long overdue that we change it. Women and LGBT servicemembers have sacrificed so much for our country. They have always answered the call of duty, and they should know that we are just as grateful for their service and sacrifice as we are for anyone who serves this country.

That is why we must make this change. We need a VA motto that properly recognizes and honors the service of all veterans, regardless of their gender or sexual orientation.

Changing the motto won't solve every issue facing women and LGBT veterans, of course, but it is a start, and it is the right thing to do. It would say in no uncertain terms that all veterans are seen equally in the eyes of the agency that exists solely to serve them.

I want to thank Chairman TAKANO for his support for me getting this bill to where it is today. And it is simply that, as Chairman TAKANO said, we would not be here if it were not for the ranking member, Dr. ROE. I want to thank him personally so much for supporting this bill and for helping to bring it to the floor today.

I also want to thank my Republican colead, Representative BRIAN MAST, the Iraq and Afghanistan Veterans of America, and all the veterans whom I have heard from in support of this bill.

Madam Speaker, I urge my colleagues to vote for the Honoring All Veterans Act today. It is time every veteran who served our country receives the respect and recognition they deserve.

Mr. DAVID P. ROE of Tennessee. Madam Speaker, in closing, I appreciate the opportunity to be here, and I appreciate Congresswoman RICE's and the chairman's leadership on this.

It seems to me it is past time to do this. It is the right thing to do. I encourage my colleagues to support that, and I yield back the balance of my time.

Mr. TAKANO. Madam Speaker, I thank H.R. 3010's sponsor, Representative KATHLEEN RICE from New York. It is long past due for us to recognize the contributions of all veterans, regardless of gender, sexual orientation, or gender identity.

Madam Speaker, I urge my colleagues to vote in favor of H.R. 3010, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. TAKANO) that the House suspend the rules and pass the bill, H.R. 3010.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

NATIVE AMERICAN VETERAN PARITY IN ACCESS TO CARE TODAY ACT

Mr. TAKANO. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 4908) to amend title 38, United States Code, to prohibit the collection of a health care copayment by the Secretary of Veterans Affairs from a veteran who is a member of an Indian tribe, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4908

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Native American Veteran Parity in Access to Care Today Act'' or ''Native American PACT Act''.

SEC. 2. PROHIBITION ON COLLECTION OF A HEALTH CARE COPAYMENT BY THE SECRETARY OF VETERANS AFFAIRS FROM A VETERAN WHO IS A MEMBER OF AN INDIAN TRIBE.

(a) IN GENERAL.—Section 1730A of title 38, United States Code, is amended—

*(1) in the heading, by striking ''**catastrophically disabled**'' and inserting ''**certain**'';*

(2) by inserting ''(a) PROHIBITION.—'' before ''Notwithstanding'';

(3) by striking ''a veteran who is catastrophically disabled, as defined by the Secretary,'' and inserting ''a covered veteran''; and

(4) by adding at the end the following new subsection:

''(b) COVERED VETERAN DEFINED.—In this section, the term 'covered veteran' means a veteran who—

''(1) is catastrophically disabled, as defined by the Secretary; or

''(2) is an Indian or urban Indian, as those terms are defined in section 4 of the Indian Health Care Improvement Act (Public Law 94–437; 25 U.S.C. 1603).''.

(b) TECHNICAL AMENDMENT.—The table of sections at the beginning of chapter 17 of such title is amended by striking the item relating to section 1730A and inserting the following:

''1730A. Prohibition on collection of copayments from certain veterans.''.

(c) DELAYED EFFECTIVE DATE.—The amendments made by this section shall take effect on the day that is one year after the date of the enactment of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and insert extraneous material on H.R. 3908, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in support of H.R. 4908, as amended, the Native American PACT Act.

The Federal Government has a legal and moral obligation to uphold its treaty obligations to Tribal nations, which include the provision of healthcare. Our responsibility to ensure care is compounded when American Indians and Alaska Natives serve this country in uniform.

While largely provided by the Indian Health Service and Tribal Health Programs, the healthcare obligations of the United States do not start and stop

with one agency. For decades, VA has not recognized the unique status of Native veterans and has charged them copays for care provided at VA.

For far too many Native Americans, particularly those in rural areas, the copay burden is a barrier to care. These veterans, who may be unable to access specialty care from their Tribal health systems, are then unable to access VA due to cost.

Eliminating the copay burden is a step toward upholding the treaties between the United States and Tribal nations while also bringing immediate relief to veterans unable to access care during these distressing times.

Madam Speaker, I want to thank Congressman GALLEGO for his steadfast leadership on this issue. I encourage all of my colleagues to support H.R. 4908, as amended, and I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in support of H.R. 4908, the Native American Veteran Parity in Access to Care Today Act, or PACT Act.

The care that the Department of Veterans Affairs provides to veterans for conditions that are related to military service are always provided at no cost to the veteran. Veterans being cared for by VA for conditions that are unrelated to their military service may be charged a copayment to offset the cost of care and encourage appropriate use of the VA healthcare system.

According to the Government Accountability Office and the National Council of American Indians, approximately one-third of American Indian and Alaska Native veterans were charged copayments from VA in fiscal year 2017. Those copayments averaged just under $300 per veteran.

However, almost a century ago, Congress passed the Snyder Act, which guaranteed healthcare to Native Americans free of charge. In recognition of that, the Native American PACT Act would prohibit VA from charging copayments to Native American veterans regardless of whether the care they receive from the VA is for a service-connected condition or not.

There is no ethnic group that volunteers to defend the United States in uniform at a higher rate than Native Americans whose history of service to this country dates back to the Revolutionary War. This bill would increase access to care for those brave veterans and create parity between the care provided to them through the VA, the Centers for Medicare and Medicaid Services, and the Indian Health Service. It would also uphold the United States Government's longstanding trust and treaty responsibilities to the Native American community.

The Native American PACT Act is sponsored by my colleague and fellow veteran, Congressman RUBEN GALLEGO from Arizona. I am glad to stand with him in support of its passage today.

Madam Speaker, I encourage all of my colleagues to support this bill, and I yield back the balance of my time.

Mr. TAKANO. Madam Speaker, I too ask all of my colleagues to join me in passing H.R. 4908, as amended, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. TAKANO) that the House suspend the rules and pass the bill, H.R. 4908, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

□ 1400

CFO AUTHORITY AND COLLABORATION ACT OF 2020

Mr. TAKANO. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 6589) to direct the Secretary of Veterans Affairs to develop and submit to Congress a plan to address the material weakness of the Department of Veterans Affairs, and for other purposes.

The SPEAKER pro tempore. Does the gentleman call for the bill, as amended?

Mr. TAKANO. I am checking. I do not have ''as amended.'' Madam Speaker, I stand by the motion that I made that we suspend the rules and pass H.R. 6589.

The SPEAKER pro tempore. The Clerk will report the title of the bill.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6589

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''CFO Authority and Collaboration Act of 2020''.

SEC. 2. PLAN TO ADDRESS MATERIAL WEAKNESS OF DEPARTMENT OF VETERANS AFFAIRS.

Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall—

(1) develop a plan, including steps and related timelines, for fully addressing—

(A) the repeated material weakness of the Department of Veterans Affairs; and

(B) the recommendations of the auditor related to entity level controls, including the organizational structure of the office of the Chief Financial Officer of the Department; and

(2) submit to the Committees on Veterans' Affairs of the Senate and the House of Representatives a report containing a description of—

(A) the plan developed under paragraph (1); and

(B) the steps the Secretary plans to take to provide sufficient authority to the Chief Financial Officer of the Department to carry out the requirements of section 902 of title 31, United States Code.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to insert extraneous material on H.R. 6589.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise in support of H.R. 6589, the CFO Authority and Collaboration Act of 2020, which addresses the sometimes arcane but also very important need for strong financial management and accountability at the Department of Veterans Affairs.

Madam Speaker, each year, VA spends billions of dollars in support of our Nation's veterans. Taxpayers deserve to know that each dollar is spent wisely and that each dollar is properly accounted for in order to avoid waste, fraud, and abuse.

Madam Speaker, the VA inspector general has determined what is called a ''material weakness'' in how the Office of the Chief Financial Officer is structured. This was a topic examined during hearings and through oversight by our Subcommittee on Oversight and Investigations.

Mrs. LEE's legislation requires a small but important fix to ensure strong financial accountability. I thank Mrs. LEE for sponsoring this bipartisan legislation, and I urge my colleagues to support H.R. 6589.

Madam Speaker, I wish to, at this point, withdraw the motion.

The SPEAKER pro tempore. The motion is withdrawn.

DEPARTMENT OF VETERANS AFFAIRS CHIEF FINANCIAL OFFICER AUTHORITY AND COLLABORATION ACT OF 2020

Mr. TAKANO. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 6589) to direct the Secretary of Veterans Affairs to develop and submit to Congress a plan to address the material weakness of the Department of Veterans Affairs, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6589

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Department of Veterans Affairs Chief Financial Officer Authority and Collaboration Act of 2020''.

SEC. 2. PLANS FOR ADDRESSING MATERIAL WEAKNESSES AND PROVIDING SUFFICIENT AUTHORITY TO CHIEF FINANCIAL OFFICER OF DEPARTMENT OF VETERANS AFFAIRS.

Not later than 180 days after the date of the enactment of this Act, and annually thereafter for each of the three subsequent years, the Secretary of Veterans Affairs, acting through the Chief Financial Officer of the Department of Veterans Affairs, shall submit to the appropriate congressional committees—

(1) an action plan, including steps, related timelines, costs, progress, status of implementation, and any updates for fully addressing the material weaknesses of the Department discussed in the Management's Discussion and Analysis section of the financial statements of the Department submitted to Congress under section 3515 of title 31, United States Code for the year preceding the year during which the report is submitted; and

(2) a plan outlining the steps the Secretary plans to take to address the recommendations of auditors related to entity-level internal controls and to provide sufficient authority to the Chief Financial Officer of the Department to carry out the requirements of section 902 of title 31, United States Code.

SEC. 3. CHIEF FINANCIAL OFFICER ATTESTATION.

Concurrent with the submittal to Congress of the President's budget request under section 1105 of title 31, United States Code, for fiscal year 2022 and each of the next three subsequent fiscal years, the Chief Financial Officer of the Department of Veterans affairs shall submit to the appropriate congressional committees each of the following:

(1) A certification of the responsibility of the Chief Financial Officer for internal financial controls of the Department.

(2) An attestation that the Chief Financial Officer has collaborated sufficiently with the subordinate chief financial officers of the Department to be confident in the financial projections included the budget request and supporting materials.

SEC. 4. CHIEF FINANCIAL OFFICER RESPONSIBILITY FOR SUBORDINATE CHIEF FINANCIAL OFFICERS.

(a) IN GENERAL.—In accordance with the responsibilities of the Chief Financial Officer of the Department of Veterans Affairs for the recruitment, selection, and training of personnel to carry out agency financial management functions pursuant to section 902(a)(5)(C) of title 31, United States Code, the Chief Financial Officer or the designee of the Chief Financial Officer within the Office of Management of the Department shall—

(1) participate in the interview and selection panels of all subordinate chief financial officers; and

(2) give input into the performance plans and performance evaluations of all subordinate chief financial officers.

(b) TERMINATION.—The requirements under subsection (a) shall terminate on the date that is five years after the date of the enactment of this Act.

SEC. 5. DEFINITIONS.

In this Act:

(1) The term ''appropriate congressional committees'' means the Committees on Veterans' Affairs of the Senate and the House of Representatives and the Committees on Appropriations of the Senate and the House of Representatives.

(2) The term ''subordinate chief financial officer''—

(A) includes—

(i) the chief financial officer of the Veterans Health Administration, the chief financial officer of the Office of Community Care within the Veterans Health Administration, and all chief financial officers of Veterans Integrated Service Networks within the Veterans Health Administration;

(ii) the chief financial officer of the Veterans Benefits Administration and all chief financial officers of organizational subdivisions representing business lines within the Veterans Benefits Administration;

(iii) the chief financial officer of the National Cemetery Administration; and

(iv) the chief financial officer of the Office of Information and Technology; and

(B) does not include the Inspector General.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Madam Speaker, I ask unanimous consent that the comments that I made on my previous motion that I withdrew be inserted in the RECORD in conjunction with my motion to pass H.R. 6589, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Madam Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in support of H.R. 6589, the VA Chief Financial Officer Authority and Collaboration Act.

Each year, the Department of Veterans Affairs manages to pass its financial statement audit despite a number of persistent material weaknesses in what appears to be a stalemate. VA never quite loses its unqualified audit opinion but never materially improves either. We should expect more, especially with VA's budget approaching $250 billion and its total liabilities reaching near $3.3 trillion.

Madam Speaker, I thank Congresswoman SUSIE LEE from Nevada and General JACK BERGMAN from Michigan for sponsoring this bill to address the root cause of the problem, the VA's Chief Financial Officer's lack of operational authority over the dozens of lower level chief financial officers throughout VA.

This bill would direct VA to develop a detailed action plan to resolve material weaknesses and require VA's Chief Financial Officer to attest to the Department's financial projections and internal controls in VA's annual budget submission.

It would also strengthen VA's Chief Financial Officer's operational authority by involving them or their designee in the hiring and performance evaluations of subordinate chief financial officers.

All of these reforms are consistent with the Chief Financial Officer Act of 1990.

I support this legislation because it is a carefully crafted solution to an old problem with escalating consequences.

Mr. Speaker, I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I encourage all of my colleagues to support this bill, and I yield back the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank Mrs. LEE and Dr. ROE for helping me bring this legislation to the floor. I ask all of my colleagues to join me in passing this very important piece of legislation, H.R. 6589.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore (Mr. CLEAVER). The question is on the motion offered by the gentleman from California (Mr. TAKANO) that the House suspend the rules and pass the bill, H.R. 6589, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

VA MISSION TELEHEALTH CLARIFICATION ACT

Mr. TAKANO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3228) to amend title 38, United States Code, to authorize health professional trainees to provide treatment via telemedicine, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3228

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''VA Mission Telehealth Clarification Act''.

SEC. 2. LICENSURE OF HEALTH CARE PROFESSIONALS PROVIDING TREATMENT VIA TELEMEDICINE.

Section 1730C(b) of title 38, United States Code, is amended to read as follows:

''(b) COVERED HEALTH CARE PROFESSIONALS.—For purposes of this section, a covered health care professional is any of the following individuals:

''(1) A health care professional who—

''(A) is an employee of the Department appointed under section 7306, 7401, 7405, 7406, or 7408 of this title, or under title 5;

''(B) is authorized by the Secretary to provide health care under this chapter;

''(C) is required to adhere to all standards for quality relating to the provision of health care in accordance with applicable policies of the Department; and

''(D) has—

''(i) an active, current, full, and unrestricted license, registration, or certification in a State to practice the health care profession of the health care professional;

''(ii) qualifications prescribed by the Secretary under section 7402(b) of this title for an appointment to a position in the Veterans Health Administration; or

''(iii) other authorization from the Secretary to provide health care.

''(2) A health professions trainee who—

''(A) is appointed under section 7405 or 7406 of this title; and

''(B) is under the clinical supervision of a health care professional described in paragraph (1).

''(3) A health care professional who—

''(A) is appointed to a position described in paragraph (1) or (3) of section 7401 of this title under—

''(i) section 7401 of this title;

''(ii) section 7405 of this title; or

''(iii) title 5;

''(B) is in the process of obtaining, within a timeframe prescribed by the Secretary—

''(i) a license, registration, or certification described in paragraph (1)(D)(i);

''(ii) qualifications described in paragraph (1)(D)(ii); or

''(iii) authorization described in subparagraph (B) or (D)(iii) of paragraph (1); and

''(C) is under the clinical supervision of a health care professional described in paragraph (1).''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Mr. Speaker, I ask that all Members may have 5 legislative days in which to revise and extend their remarks and to insert extraneous material on H.R. 3228, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 3228, as amended, the VA Mission Telehealth Clarification Act.

The John S. McCain III, Daniel K. Akaka, and Samuel R. Johnson VA Maintaining Internal Systems and Strengthening Integrated Outside Networks Act of 2018, or the VA MISSION Act, as it is more commonly known, expanded VA's ability to provide telehealth to veterans across State lines.

The legislation before us builds on those enhancements by allowing healthcare professionals in training to provide tele-healthcare to veterans with clinical supervision.

As we have seen over the course of this pandemic, tele-healthcare is becoming more and more a staple of Americans' healthcare experience. As this virus will be with us for some time to come, the value and reliance on telehealth will continue. It is critical that during this time, VA has the authorities necessary to keep veterans healthy and safe in their homes.

This is particularly important for our rural and aging veterans whose access to in-person care was already a challenge. We need to do everything possible to ensure veterans' access to safe distant care whenever it is appropriate.

Mr. Speaker, I thank Congressman CARTER for his dogged work to see veterans have what they need during this time. I encourage all of my colleagues to support H.R. 3228, as amended.

Mr. Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 3228, the Department of Veterans Affairs Mission Telehealth Clarification Act.

The VA healthcare system is our country's largest integrated healthcare system, with responsibility for delivering care to approximately 7 million veteran patients. The VA healthcare system is also the country's largest provider of healthcare education, with responsibility for supporting the training of approximately 45,000 medical and dental residents and thousands more healthcare professional trainees every year. I happened to be one of them many years ago.

The VA Mission Telehealth Clarification Act would authorize VA residents and trainees to provide care to veteran patients virtually using telehealth, regardless of that resident or trainee's State licensure, so long as they are working under the clinical supervision of a VA healthcare professional.

While face-to-face visits between patients and providers are irreplaceable in many respects, telehealth is an increasingly important tool in the delivery of modern healthcare. That was true even before the COVID–19 pandemic created a skyrocketing demand for telehealth services.

In the MISSION Act passed last Congress, we authorized VA providers to provide telehealth across State lines in an effort to increase access to telehealth to veteran patients, particularly those in rural or remote areas or for those whose travel to a medical facility is otherwise difficult. However, the law inadvertently exempted VA residents, trainees, and certain others from that authority. This bill would fix that oversight.

In doing so, it would further expand veteran access to telehealth, which has been critical to ensuring continuity of care throughout the last several months. It would also ensure that the medical education VA provides to the next generation of healthcare professionals includes valuable training and needed experience in the delivery of care via telephone, video, and other virtual modalities.

This bill is sponsored by my good friend, Congressman BUDDY CARTER from Georgia. I am grateful to him for recognizing early on the benefits that a well-rounded medical education will have on access and quality of care for veterans and all Americans and working so hard to give aspiring providers and others working within the VA the ability to practice telehealth across State lines, within appropriate parameters.

Mr. Speaker, I urge all of my colleagues to join me in supporting this bill, and I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield 4 minutes to the gentleman from Georgia (Mr. CARTER), my good friend.

I have had the privilege of visiting his beautiful district, and I really appreciate his work on this extremely important issue.

Mr. CARTER of Georgia. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, I rise today in support of the VA Mission Telehealth Clarification Act, which I am proud to have introduced.

H.R. 3228, the VA Mission Telehealth Clarification Act, is a simple bill that builds on the VA MISSION Act's historic expansion of the veterans health system.

One of the most significant parts of the VA MISSION Act was the authorization for the VA to use telehealth and provide care across State lines. The bill began as the result of a visit I had to a VA facility before the current pandemic, as they laid out some of the issues they were trying to overcome. But now with the COVID–19 pandemic, we are seeing how extremely beneficial these technologies can be for our veterans.

In fact, the VA Medical Center in Charleston, South Carolina, which serves part of my district along Georgia's coast, had an over 200 percent increase in telehealth medical services during the pandemic when we spoke in May.

Even more incredibly, the VA announced it had a 1,000 percent increase in telehealth video appointments using its VA Video Connect Program during the first months of the pandemic. This is an extremely important ability for the VA to have. However, the law did not authorize trainees within the VA to use telehealth technologies, only practitioners with a full license.

As telehealth medicine grows in prevalence, we need for interns, residents, and fellows to gain experience using these services, especially considering that many of these trainees later go on to work as doctors at the VA, bringing with them a wealth of experience.

Rather than depending on doctors to learn while on the job, which could delay the rollout of care, this bill would allow trainees to gain experience on telehealth systems while properly supervised by credentialed VA staff.

Mr. Speaker, I am pleased to say that the bill was further improved through the committee process after input from my colleagues in the VA. The bill will not only allow for trainees to participate in telehealth, but it will also expand the ability to practice telemedicine to all appropriately qualified healthcare professionals at the VA, fixing the issue once and for all.

While Congress intended for trainees and others to be included from the beginning, the VA's reading of the law did not include them, although they have expressed their desire to include them in telehealth services.

□ 1415

The VA Mission Telehealth Clarification Act will give VA the certainty to provide essential telehealth programs

to our veterans, improving the quality and timeliness of their care.

Again, this is a commonsense bill with bipartisan support and has received the support from the American Legion, Veterans of Foreign Wars, AMVETS, and Paralyzed Veterans of America, among others.

Mr. TAKANO. Mr. Speaker, I have no further speakers. I am prepared to close, and I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I want to thank the gentleman from Georgia (Mr. CARTER), my good friend who serves on the Doctors Caucus with me, for bringing this important piece of legislation up.

Mr. Speaker, this pandemic actually has done one good thing, and that is to advance telehealth. Just to give you some scope of this, the VA went from tens of thousands of mental health visits—and we know that people have been isolated. Certainly, many of our elderly have been confined; they can't visit people. They have gone from tens of thousands of mental health visits per month to hundreds of thousands of visits. So we are able to stay in touch with patients in need.

I know in my own medical practice in Tennessee, it has been extremely helpful for patients to access their physicians through telehealth. I think we are going to continue this, and I think the next Congress is going to have to address how Medicare and Medicaid funds these telehealth visits outside the VA, it is that important for care.

If you live in a rural area in rural Appalachia like I do, the only way we are going to get specialty care for our patients in need—and in many cases, in our cities—is via telehealth, because these specialists are so hard to find and there are so few of them. And especially in cases like neurology and pediatrics, these are very difficult people to see.

So I really am appreciative of this. I appreciate Dr. Carter bringing it up, and I certainly thank the chairman for putting this on the agenda.

Mr. Speaker, I encourage all of my colleagues to support this, and I yield back the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I want to thank the ranking member for his comments about the VA really being a pioneer in this moment, that the expansion of tele-mental health, especially, has seen a logarithmic increase, and it has implications for Medicare and Medicaid. I am hearing from the civilian medical sector about the need to follow the VA's example.

I am very proud of the work the VA has done to respond to this pandemic moment by making sure that our veterans, no matter where they live, have access to medical care through telehealth and tele-mental health, especially.

I want to thank, again, the sponsor of this legislation, and I want to urge all of my colleagues to join me in passing this important legislation, H.R. 3228, as amended.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. TAKANO) that the House suspend the rules and pass the bill, H.R. 3228, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

VETERAN'S PROSTATE CANCER TREATMENT AND RESEARCH ACT

Mr. TAKANO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6092) to direct the Secretary of Veterans Affairs to establish a national clinical pathway for prostate cancer, access to life-saving extending precision clinical trials and research, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6092

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Veteran's Prostate Cancer Treatment and Research Act''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) Prostate cancer is the number one cancer diagnosed in the Veterans Health Administration.

(2) A 1996 report published by the National Academy of Sciences, Engineering, and Medicine established a link between prostate cancer and exposure to herbicides, such as Agent Orange.

(3) It is essential to acknowledge that due to these circumstances, certain veterans are made aware that they are high-risk individuals when it comes to the potential to develop prostate cancer.

(4) In being designated as ''high risk'', it is essential that veterans are proactive in seeking earlier preventative clinical services for the early detection and successful treatment of prostate cancer, whether that be through the Veterans Health Administration or through a community provider.

(5) Clinical preventative services and initial detection are some of the most important components in the early detection of prostate cancer for veterans at high risk of prostate cancer.

(6) For veterans with prostate cancer, including prostate cancer that has metastasized, precision oncology, including biomarker-driven clinical trials and innovations underway through the Prostate Cancer Foundation and Department of Veterans Affairs partnership, represents one of the most promising areas of interventions, treatments, and cures for such veterans and their families.

SEC. 3. DEPARTMENT OF VETERANS AFFAIRS TREATMENT AND RESEARCH OF PROSTATE CANCER.

(a) ESTABLISHMENT OF CLINICAL PATHWAY.—

(1) IN GENERAL.—Not later than 365 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall establish in the National Surgery Office of the Department of Veterans Affairs a national clinical pathway for all stages of prostate cancer, from early detection to end-of-life care including recommendations regarding the use of transformative innovations, research, and uniform clinical data.

(2) ELEMENTS.—The national clinical pathway established under this subsection shall include the following elements:

(A) A multi-disciplinary plan for the early detection, diagnosis, and treatment of prostate cancer that includes, as appropriate, both Department medical facilities and community-based partners and providers and research centers specializing in prostate cancer, especially such centers that have entered into partnerships with the Department.

(B) A suggested, but not mandatory, protocol for screening, diagnosis, and treatment or care for subpopulations with evidence-based risk factors (including race, ethnicity, socioeconomic status, geographic location, exposure risks, and genetic risks, including family history).

(C) A suggested treatment protocol timeframe for each point of care based on severity and stage of cancer.

(3) PUBLIC COMMENT PERIOD.—Upon the establishment of a proposed clinical pathway as required under this subsection, the Secretary shall publish the proposed clinical pathway in the Federal Register and provide for a 45-day period for public comments. The Secretary—

(A) may make any such public comments publicly available; and

(B) make changes to the proposed clinical pathway in response to any such comments received using the same process and criteria used to establish the proposed clinical pathway.

(4) COLLABORATION AND COORDINATION.—In establishing the clinical pathway required under this section, the Secretary shall—

(A) provide for consideration of other clinical pathways and research findings of other departments and agencies, including guidelines that are widely recognized and guidelines that are used as the standard for clinical policy in oncology care, such as National Comprehensive Cancer Network guidelines; and

(B) collaborate and coordinate with—

(i) the National Institutes of Health;

(ii) the National Cancer Institute;

(iii) the National Institute on Minority Health and Health Disparities;

(iv) other Institutes and Centers as the Secretary determines necessary;

(v) the Centers for Disease Control and Prevention;

(vi) the Department of Defense;

(vii) the Centers for Medicare and Medicaid Services;

(viii) the Patient-Centered Outcomes Research Institute; and

(ix) the Food and Drug Administration.

(5) PUBLICATION.—The Secretary shall—

(A) publish the clinical pathway established under this subsection on a publicly available Department website; and

(B) regularly update the clinical pathway as needed by review of the medical literature and available evidence-based guidelines at least annually, in accordance with the criteria under paragraph (2).

(b) DEVELOPMENT OF NATIONAL CANCER OF THE PROSTATE CLINICAL CARE IMPLEMENTATION PROGRAM.—

(1) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary shall submit to Congress a

plan to establish a comprehensive prostate cancer program.

(2) PROGRAM REQUIREMENTS.—The comprehensive prostate cancer program shall—

(A) be multidisciplinary and include the authority to work across clinical care lines, specialties, and the organizational divisions of the Veterans Health Administration;

(B) receive direct oversight from the Deputy Undersecretary for Health of the Department of Veterans Affairs;

(C) include a yearly program implementation evaluation to facilitate replication for other disease states or in other healthcare institutions;

(D) be metric driven and include the development of quarterly reports on the quality of prostate cancer care, which shall be provided to the leadership of the Department, medical centers, and providers and made publicly available in an electronic form;

(E) made available as national decision support tools in the electronic medical record;

(F) include an education plan for patients and providers; and

(G) be funded appropriately to accomplish the objectives of this Act.

(3) PROGRAM IMPLEMENTATION EVALUATION.—The Secretary shall establish a program evaluation tool as an integral component to learn best practices of multidisciplinary disease-based implementation and to inform the Department and Congress regarding further use of the disease specific model of care delivery.

(4) PROSTATE CANCER RESEARCH.—The Secretary shall submit to Congress a plan that provides for continual funding through the Office of Research and Development of the Department of Veterans Affairs for supporting prostate cancer research designed to position the Department as a national resource for quality reporting metrics, practice-based evidence, comparative effectiveness, precision oncology, and clinical trials in prostate cancer.

(5) PROSTATE CANCER REAL TIME REGISTRY PROGRAM.—The Secretary, in collaboration with data stewards of the Department of Veterans Affairs, scientists, and the heads of other Departments, agencies, and non-governmental organizations, such as foundations and non-profit organizations focused on prostate cancer research and care, shall establish a real-time, actionable, national prostate cancer registry. Such registry shall be designed—

(A) to establish a systematic and standardized database that enables intra-agency collaboration by which to track veteran patient progress, enable population management programs, facilitate best outcomes, and encourage future research and further development of clinical pathways, including patient access to precision resources and treatments and access to life-extending precision clinical trials;

(B) to employ novel methods of structuring data, including natural language processing, artificial intelligence, structured data clinical notes, patient reported outcome instruments, and other tools, to ensure that all clinically meaningful data is included; and

(C) to be accessible to—

(i) clinicians treating veterans diagnosed with prostate cancer and being treated for prostate cancer in conjunction with Department medical facilities; and

(ii) researchers.

(c) CLINICAL PATHWAY DEFINED.—In this section, the term ''clinical pathway'' means a health care management tool designed around research and evidence-backed practices that provides direction for the clinical care and treatment of a specific episode of a condition or ailment.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on H.R. 6092.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 6092, the Veteran's Prostate Cancer Treatment and Research Act.

The number one cancer diagnosed by the Veterans Health Administration is prostate cancer. Nearly half a million veterans are currently undergoing treatment, with disproportionate diagnoses of this disease impacting Black veterans and those exposed to Agent Orange.

This legislation would create a national clinical pathway and standardized system of care for treatment of prostate cancer at all stages. This will ensure more widespread early detection efforts, increase access to clinical trials, and create a registry and research program.

Mr. Speaker, our veterans battle prostate cancer at twice the rate of their civilian counterparts. A unified systems-wide approach that builds on the incredible work of the Department's research efforts is essential.

I want to thank Dr. DUNN for his steadfast leadership and his passion on this matter.

Mr. Speaker, I also encourage all of my colleagues to support H.R. 6092, and I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 6092, the Veteran's Prostate Cancer Treatment and Research Act. This bill is sponsored by my good friend and ranking member of the Subcommittee on Health, Congressman NEAL DUNN of Florida.

Like me, Dr. DUNN is an Army veteran and a physician. During his many years in private practice, he helped to found the Advanced Urology Institute and the Bay Regional Cancer Center, where he specialized in treating advanced prostate cancer.

Suffice it to say, improving care for prostate cancer is a personal one for him. It is also a personal one for me.

A few years ago, when I was chairman of the Veterans' Affairs Committee, I was diagnosed with prostate cancer. Early detection and effective treatment helped save my life, and I know that it will do the same for many of my fellow veterans.

Veterans are diagnosed with prostate cancer, as the chairman said, at twice the rate of the general population, making prostate cancer the most commonly diagnosed cancer in male veterans. An estimated one in five male veterans is expected to be diagnosed with prostate cancer in their lifetime, compared to one in nine American men, generally.

The Veteran's Prostate Cancer Treatment and Research Act would require the VA to establish a national clinical pathway for prostate cancer and to update that clinical pathway every year to reflect the latest and greatest and best practices for, and the medical understanding of, this deadly disease. It would also require the VA to establish a comprehensive prostate cancer program and a national prostate cancer registry.

Together, these provisions would make the VA a national leader with respect to prostate cancer.

Most importantly, it would give veterans with prostate cancer the very best chance of making a full recovery and going on to lead long, healthy lives after their diagnosis.

Mr. Speaker, it is fitting that the House advance this important bill today in the final week of Prostate Cancer Month. I urge all of my colleagues to join me in supporting it, and I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I also want to acknowledge the leadership of the gentleman from South Carolina (Mr. CUNNINGHAM), who worked with the subcommittee ranking member, Dr. NEAL DUNN.

Mr. Speaker, I yield 5 minutes to the gentleman from South Carolina (Mr. CUNNINGHAM), my good friend.

Mr. CUNNINGHAM. Mr. Speaker, I rise in support of this bipartisan legislation introduced by my colleague, Representative DUNN, and myself, which would ensure that lifesaving research and clinical trials are made available to reduce the rate of prostate cancer for our Nation's veterans.

Prostate cancer is the number one cancer diagnosed in the Veterans Health Administration, and numerous reports have established a link between cancer and military service, including exposure to certain herbicides like Agent Orange.

Early detection of this disease is critical, and veterans deserve a health system that provides both early detection and successful treatment. This bill will do just that.

It is our job to ensure that, when our brave men and women return home from their service, the VA is there to rehabilitate them and reintegrate them back into civilian life. They deserve our unconditional support, which is why I urge my colleagues to join me in honoring our obligation to our veterans and vote in support of this bipartisan legislation.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, Dr. DUNN, because of travel restrictions, couldn't make it to this debate.

Mr. Speaker, I yield 3 minutes to the gentleman from North Carolina (Mr. MURPHY), with whom I serve on the Education and Labor Committee and the Doctors Caucus.

Mr. MURPHY of North Carolina. Mr. Speaker, I rise today in support of H.R. 6092, the Veteran's Prostate Cancer Treatment and Research Act.

Prostate cancer is the most common cancer diagnosis amongst U.S. veterans. I speak in two roles: one as a practicing urologist who has, for over 30 years, taken care of prostate cancer patients, and then also as a Congressman, too, to the Third District of North Carolina, which is home to roughly 95,000 veterans, the third most in the country. So this bill is especially important to me.

This legislation requires the Department of Veterans Affairs to establish a national clinical pathway and a national registry related to the diagnosis, research, and treatment of prostate cancer. This information will be critical to help ensure our VA's prostate cancer patients have the best opportunity for early diagnosis and treatment.

Prostate cancer often sneaks up silently, without symptoms, and, thus, early detection is the key. Early diagnosis leads to a much greater chance for cure.

Also, very important is this bill's requirements for the VA to develop a real-time, actional national prostate cancer registry online. The more we can keep the VA up to date with the medical advances of the 21st century, the more veterans' lives we will save.

I want to thank my colleague and fellow urologist, Congressman NEAL DUNN, for leading this initiative in the House. Bills like this one are the reason more and more veterans are surviving this horrible disease. I am proud to be a cosponsor and look forward to its passage.

Mr. Speaker, I urge my colleagues to vote for this legislation.

Mr. TAKANO. Mr. Speaker, I have no further speakers. I am prepared to close, and I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I strongly encourage my colleagues to support this very important bill. I am surprised, over the years, that the VA hasn't had an active registry.

I want to thank Dr. DUNN and the other sponsors of this bill. I think it will help save lives in the VA.

Mr. Speaker, I urge my colleagues to support this bill, and I yield back the balance of my time.

Mr. TAKANO. Mr. Speaker, I would like to withdraw my motion to suspend the rules and pass H.R. 6092.

The SPEAKER pro tempore. The motion is withdrawn.

VETERAN'S PROSTATE CANCER TREATMENT AND RESEARCH ACT

Mr. TAKANO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6092) to direct the Secretary of Veterans Affairs to establish a national clinical pathway for prostate cancer, access to life-saving extending precision clinical trials and research, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6092

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Veteran's Prostate Cancer Treatment and Research Act''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) Prostate cancer is the number one cancer diagnosed in the Veterans Health Administration.

(2) A 1996 report published by the National Academy of Sciences, Engineering, and Medicine established a link between prostate cancer and exposure to herbicides, such as Agent Orange.

(3) It is essential to acknowledge that due to these circumstances, certain veterans are made aware that they are high-risk individuals when it comes to the potential to develop prostate cancer.

(4) In being designated as ''high risk'', it is essential that veterans are proactive in seeking earlier preventative clinical services for the early detection and successful treatment of prostate cancer, whether that be through the Veterans Health Administration or through a community provider.

(5) Clinical preventative services and initial detection are some of the most important components in the early detection of prostate cancer for veterans at high risk of prostate cancer.

(6) For veterans with prostate cancer, including prostate cancer that has metastasized, precision oncology, including biomarker-driven clinical trials and innovations underway through the Prostate Cancer Foundation and Department of Veterans Affairs partnership, represents one of the most promising areas of interventions, treatments, and cures for such veterans and their families.

SEC. 3. DEPARTMENT OF VETERANS AFFAIRS TREATMENT AND RESEARCH OF PROSTATE CANCER.

(a) ESTABLISHMENT OF CLINICAL PATHWAY.—

(1) IN GENERAL.—Not later than 365 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall establish in the National Surgery Office of the Department of Veterans Affairs a national clinical pathway for all stages of prostate cancer, from early detection to end-of-life care including recommendations regarding the use of transformative innovations, research, and uniform clinical data.

(2) ELEMENTS.—The national clinical pathway established under this subsection shall include the following elements:

(A) A multi-disciplinary plan for the early detection, diagnosis, and treatment of prostate cancer that includes, as appropriate, both Department medical facilities and community-based partners and providers and research centers specializing in prostate cancer, especially such centers that have entered into partnerships with the Department.

(B) A suggested, but not mandatory, protocol for screening, diagnosis, and treatment or care for subpopulations with evidence-based risk factors (including race, ethnicity, socioeconomic status, geographic location, exposure risks, and genetic risks, including family history).

(C) A suggested treatment protocol timeframe for each point of care based on severity and stage of cancer.

(3) PUBLIC COMMENT PERIOD.—Upon the establishment of a proposed clinical pathway as required under this subsection, the Secretary shall publish the proposed clinical pathway in the Federal Register and provide for a 45-day period for public comments. The Secretary—

(A) may make any such public comments publicly available; and

(B) make changes to the proposed clinical pathway in response to any such comments received using the same process and criteria used to establish the proposed clinical pathway.

(4) COLLABORATION AND COORDINATION.—In establishing the clinical pathway required under this section, the Secretary shall—

(A) provide for consideration of other clinical pathways and research findings of other departments and agencies, including guidelines that are widely recognized and guidelines that are used as the standard for clinical policy in oncology care, such as National Comprehensive Cancer Network guidelines; and

(B) collaborate and coordinate with—

(i) the National Institutes of Health;

(ii) the National Cancer Institute;

(iii) the National Institute on Minority Health and Health Disparities;

(iv) other Institutes and Centers as the Secretary determines necessary;

(v) the Centers for Disease Control and Prevention;

(vi) the Department of Defense;

(vii) the Centers for Medicare and Medicaid Services;

(viii) the Patient-Centered Outcomes Research Institute; and

(ix) the Food and Drug Administration.

(5) PUBLICATION.—The Secretary shall—

(A) publish the clinical pathway established under this subsection on a publicly available Department website; and

(B) regularly update the clinical pathway as needed by review of the medical literature and available evidence-based guidelines at least annually, in accordance with the criteria under paragraph (2).

(b) DEVELOPMENT OF NATIONAL CANCER OF THE PROSTATE CLINICAL CARE IMPLEMENTATION PROGRAM.—

(1) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of this Act, the Secretary shall submit to Congress a plan to establish a comprehensive prostate cancer program.

(2) PROGRAM REQUIREMENTS.—The comprehensive prostate cancer program shall—

(A) be multidisciplinary and include the authority to work across clinical care lines, specialties, and the organizational divisions of the Veterans Health Administration;

(B) receive direct oversight from the Deputy Undersecretary for Health of the Department of Veterans Affairs;

(C) include a yearly program implementation evaluation to facilitate replication for other disease states or in other healthcare institutions;

(D) be metric driven and include the development of quarterly reports on the quality of prostate cancer care, which shall be provided to the leadership of the Department, medical centers, and providers and made publicly available in an electronic form;

(E) made available as national decision support tools in the electronic medical record; and

(F) include an education plan for patients and providers.

(3) PROGRAM IMPLEMENTATION EVALUATION.—The Secretary shall establish a program evaluation tool as an integral component to learn best practices of multidisciplinary disease-based implementation and to inform the Department and Congress regarding further use of the disease specific model of care delivery.

(4) PROSTATE CANCER RESEARCH.—The Secretary shall submit to Congress a plan that provides for continual funding through the Office of Research and Development of the Department of Veterans Affairs for supporting prostate cancer research designed to position the Department as a national resource for quality reporting metrics, practice-based evidence, comparative effectiveness, precision oncology, and clinical trials in prostate cancer.

(5) PROSTATE CANCER REAL TIME REGISTRY PROGRAM.—The Secretary, in collaboration with data stewards of the Department of Veterans Affairs, scientists, and the heads of other Departments, agencies, and non-governmental organizations, such as foundations and non-profit organizations focused on prostate cancer research and care, shall establish a real-time, actionable, national prostate cancer registry. Such registry shall be designed—

(A) to establish a systematic and standardized database that enables intra-agency collaboration by which to track veteran patient progress, enable population management programs, facilitate best outcomes, and encourage future research and further development of clinical pathways, including patient access to precision resources and treatments and access to life-extending precision clinical trials;

(B) to employ novel methods of structuring data, including natural language processing, artificial intelligence, structured data clinical notes, patient reported outcome instruments, and other tools, to ensure that all clinically meaningful data is included; and

(C) to be accessible to—

(i) clinicians treating veterans diagnosed with prostate cancer and being treated for prostate cancer in conjunction with Department medical facilities; and

(ii) researchers.

(c) CLINICAL PATHWAY DEFINED.—In this section, the term ''clinical pathway'' means a health care management tool designed around research and evidence-backed practices that provides direction for the clinical care and treatment of a specific episode of a condition or ailment.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on H.R. 6092, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Mr. Speaker, I yield back the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. TAKANO) that the House suspend the rules and pass the bill, H.R. 6092, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

□ 1430

VETERANS BENEFITS FAIRNESS AND TRANSPARENCY ACT OF 2020

Mr. TAKANO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 7795) to amend title 38, United States Code, to improve the ability of veterans to access and submit disability benefit questionnaire forms of the Department of Veterans Affairs.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 7795

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Veterans Benefits Fairness and Transparency Act of 2020''.

SEC. 2. PUBLICATION AND ACCEPTANCE OF DISABILITY BENEFIT QUESTIONNAIRE FORMS OF DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Section 5101 of title 38, United States Code, is amended—

(1) by redesignating subsection (d) as subsection (e); and

(2) by inserting after subsection (c) the following new subsection (d):

''(d)(1) The Secretary shall publish in a central location on the internet website of the Department disability benefit questionnaire forms, or such successor forms relating to non-Department medical providers submitting evidence regarding a disability of a claimant.

''(2) Subject to section 6103 of this title, if the Secretary updates a form described in paragraph (1), the Secretary shall—

''(A) accept the previous version of the form filed by a claimant if—

''(i) the claimant provided to the non-Department medical provider the previous version of the form before the date on which the updated version of the form was made available; and

''(ii) the claimant files the previous version of the form during the one-year period following the date the form was completed by the non-Department medical provider;

''(B) request from the claimant any other information that the updated version of the form requires; and

''(C) apply the laws and regulations required to adjudicate the claim as if the claimant filed the updated version of the form.

''(3) The Secretary may waive any interagency approval process required to approve a modification to a disability benefit questionnaire form if such requirement only applies by reason of the forms being made public under paragraph (1).

''(4) Not less frequently than once each year through 2026, the Inspector General of the Department shall submit to Congress a report on the findings of the Inspector General with respect to the use of the forms described in paragraph (1).''.

(b) RULE OF CONSTRUCTION.—Nothing in section 5101 of title 38, United States Code, as added by subsection (a), may be construed to require the Secretary of Veterans Affairs to develop any new information technology system or otherwise require the Secretary to make any significant changes to the internet website of the Department of Veterans Affairs.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. TAKANO) and the gentleman from Tennessee (Mr. DAVID P. ROE) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. TAKANO. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks, and to include extraneous material on H.R. 7795.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the Veterans Benefits Fairness and Transparency Act of 2020 is legislation that was brought to the House Veterans' Affairs Committee as a result of a strong partnership between staff and the advocates that are out in the field, even through the COVID–19 pandemic, assisting our veterans in the disability benefits process.

When a VA doctor evaluates a veteran's disability, they use a form known as a disability benefit questionnaire, or DBQ.

These DBQs are what VA employees use to decide benefit claims and can be the deciding factor between a grant or a denial.

During the height of the pandemic, VA made the decision to pull these DBQs off its public website, making them inaccessible to veterans and their representatives. The advocates told us this change was harmful for veterans because they could no longer get relevant medical information from their own treatment providers to support their claims.

Now, even though VA oftentimes provides medical exams to veterans during the claims process, it is not always the same as getting that information from your own doctor.

Mr. Speaker, H.R. 7795 fixes this issue by requiring VA to publish DBQs on its website and to accept DBQs completed by a non-VA medical provider.

Mr. Speaker, I want to take this moment to thank Representatives BARR and LURIA for introducing this legislation, and also thank our VSO partners for bringing this issue to our attention.

Mr. Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 7795, the Veterans Benefits

Fairness and Transparency Act of 2020, which was introduced by my good friend, ANDY BARR, from Kentucky.

This bill would streamline the process for veterans to submit medical evidence from their private provider to support their Department of Veterans Affairs compensation claim.

As you may know, VA has recently resumed certain in-person disability exams after suspending them at the start of the COVID–19 national emergency.

During those uncertain times, some veterans may have requested that their private physician conduct their disability exam in order to avoid a claims processing delay.

Unfortunately, in April of 2020, VA stopped publishing the disability benefits questionnaires, or DBQs, on its website. Those forms are used to ensure that VA receives all the medical information the department needs to adjudicate the veteran's disability claim.

However, if a veteran's physician does not have access to the appropriate DBQ, the provider may not include all the medical information needed to support the veteran's claim. H.R. 7795 would address this issue by requiring the VA to reinstate the public-facing DBQs on its website.

As an OB/GYN physician who managed my own private practice for three decades, I believe that a physician or other healthcare provider who has had the opportunity to develop a relationship with a veteran patient over several years is the most qualified to assess the veteran's disability.

If that provider is willing to perform a disability exam, they should have the same access to the DBQ that a VA examiner would have. I have heard VA's concerns about this bill, and I understand the department would like to improve the process for veterans to develop and obtain supportive evidence from their private providers.

However, I am not persuaded that the veterans are well-served by eliminating the public access to DBQs right now. Instead, I believe veterans should be able to obtain these forms until VA can implement a better process.

Veterans should not be penalized for seeking out a medical opinion from their private medical provider, especially when there is a backlog of over 350,000 pending disability exams caused by the pandemic that VA must address.

Mr. Speaker, I would like to thank Congressman BARR and Congresswoman ELAINE LURIA of Virginia for their leadership on this issue.

And, Mr. Speaker, let me explain how it is. Let's say I am seeing a patient for a disability in my office, and I have put down exactly what I think is appropriate, but it is not all the information the VA needs. I don't know what they need. They need to just send me the form so I will know what to fill out so they will have adequate information.

So in your office, your staff back home are not getting these complaints about, Well, they turned my claim down because they didn't have adequate information. This is a simple solution to a simple problem.

Mr. Speaker, I encourage all Members to support H.R. 7795, and I reserve the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield 5 minutes to the gentlewoman from Virginia (Mrs. LURIA), the chairwoman of the Disability Assistance and Memorial Affairs Subcommittee, and also a cosponsor of H.R. 7795.

Mrs. LURIA. Mr. Speaker, I am proud to rise today in support and as a colead of the Veterans Benefits Fairness and Transparency Act.

I want to start by thanking my colleague, Mr. BARR from Kentucky, for taking the lead on this.

And as you know, we have heard from countless veterans and countless veterans' advocates that this is a problem; that these forms are not available to our veterans and their providers to be able to provide the best information in the most timely manner in order to process these claims.

The simple fact is that we must act to make it easier, not harder, for our veterans to receive the benefits that they deserve. As mentioned, this bill will ensure that benefit questionnaires will be public-facing again on a website.

Mr. BARR and I learned from many veterans' advocates that these forms were removed and that veterans that needed to provide this vital information in order to process their claim couldn't simply have the forms that they needed in order to do that.

This bill also includes the use of older versions of the form, because how many times have we heard in our offices and from our constituents that a veteran has submitted their claim only to have it sent back again requesting a different version of the form, thus, delaying the process for our veterans who desperately need these claims to be adjudicated, and need the care from the VA.

This will also allow the VA to make prompt decisions on the disability claims and reduce their unfinished exam backlog, which is currently nearing 60 percent.

These questionnaires played a huge role in 2011 in reducing the massive claims backlog that we experienced at that time. And during our current public health crisis, while access to care at VA facilities is limited, what could make more sense than allowing veterans, in company with their civilian providers, to also be able to provide the information necessary to process their claims?

In my district in coastal Virginia, I am honored to represent more than 92,000 veterans in our district. And this is among my top priorities to ensure that we make this process easier, more transparent, and more timely for our veterans.

Mr. Speaker, I want to close by thanking Mr. BARR for introducing this legislation, and for allowing me to cosponsor it.

And I urge all of my colleagues to support this bill in order to help our Nation's many deserving veterans.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield 3 minutes to the gentleman from Kentucky (Mr. BARR), my good friend and fellow member of the Veterans' Affairs Committee.

Mr. BARR. Mr. Speaker, I am grateful to have my bill, H.R. 7795, the Veterans Benefits Fairness and Transparency Act of 2020 before the House of Representatives today.

I would like to thank my good friend, Ranking Member ROE, for his support of this legislation, and would especially like to thank my colleague across the aisle and chair of the Disability and Memorial Affairs Subcommittee, Representative ELAINE LURIA, for co-leading this bipartisan legislation with me. I appreciate Representative LURIA's leadership on this issue.

This bill is vitally important because it will restore access for veterans and their representatives to the disability benefits questionnaires forms previously available on the VA's public website. Our veterans used these forms to submit evidence to the VA for their disability claims until the VA removed them in April of this year in the middle of a pandemic, making it harder for veterans to submit their evidence and get the benefits owed to them.

The idea for this legislation was brought to me by a member of Kentucky's Sixth Congressional District Veterans' Coalition, Chief Warrant Officer Denny Hart. I know Mr. Hart, he is a good patriotic man, and he continues to serve our country by helping other veterans file their disability claims with the VA.

However, after the VA removed these forms from being publicly available, they effectively shut out Mr. Hart and others from assisting our veterans. There were only 11 VA contract examiners in the Sixth District of Kentucky in January of this year. Now, to their credit, the VA has increased the number of those contract examiners, probably because of this legislation. But until we have the assurances that a sufficient number of VA contract examiners are able to assist all of the veterans with their disability claims, we need public-facing DBQs.

My legislation gives the VA additional manpower to process a veteran's DBQ by maintaining the ability of a veteran's own provider to fill out the form. This is something vital to veterans in rural communities who may be far from a VA medical center or contract examiner.

Furthermore, our proposal prevents veterans from having their disability claim delayed or denied because the VA changed their DBQ form during the application process without the veteran knowing. During this pandemic, we must ensure our veterans' disability

claims process is not paused or compromised solely due to a change in a bureaucratic form.

We must protect veterans from unnecessary burdens while securing benefits owed to them. No veteran should be denied the disability benefits to which he or she is justly entitled solely because a DBQ is not publicly available or because the VA changed the form in the middle of the process.

This is commonsense legislation supported by multiple veteran service organizations, such as the Disabled American Veterans, the Paralyzed Veterans of America, Minority Veterans of America, Iraq and Afghanistan Veterans of America, and more.

Mr. Speaker, I urge my colleagues to support this bipartisan legislation and restore this vital resource for our Nation's heroes.

Mr. TAKANO. Mr. Speaker, I reserve the balance of my time.

Mr. DAVID P. ROE of Tennessee. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this is a commonsense solution to a problem that shouldn't have occurred in the first place. And I think that it is—I appreciate both Congresswoman LURIA and Congressman BARR for their leadership on this. I encourage my colleagues to support this.

Mr. Speaker, I yield back the balance of my time.

Mr. TAKANO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the passage of this important legislation is necessary to continue to make it easier for veterans to submit medical evidence in support of their disability claims.

I urge all of my colleagues to support the legislation, H.R. 7795, brought forward by Congressman BARR of Kentucky, and the cosponsor, the chairwoman of our Subcommittee on DAMA, ELAINE LURIA of Virginia.

Mr. Speaker I urge support of this bill, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. TAKANO) that the House suspend the rules and pass the bill, H.R. 7795.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

□ 1445

UYGHUR FORCED LABOR PREVENTION ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 6210) ensuring that goods made with forced labor in the Xinjiang Uyghur Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. CASTRO) that the House suspend the rules and pass the bill, as amended.

The vote was taken by electronic device, and there were—yeas 406, nays 3, not voting 22, as follows:

[Roll No. 196]

YEAS—406

Adams	Crenshaw	Higgins (LA)
Aderholt	Crist	Higgins (NY)
Aguilar	Crow	Hill (AR)
Allen	Cuellar	Himes
Allred	Cunningham	Hollingsworth
Amodei	Curtis	Horn, Kendra S.
Armstrong	Davids (KS)	Horsford
Arrington	Davis (CA)	Houlahan
Axne	Davis, Danny K.	Hoyer
Babin	Davis, Rodney	Hudson
Bacon	Dean	Huffman
Baird	DeFazio	Huizenga
Balderson	DeGette	Hurd (TX)
Banks	DeLauro	Jackson Lee
Barr	DelBene	Jacobs
Barragán	Delgado	Jayapal
Bass	Demings	Jeffries
Beatty	DeSaulnier	Johnson (GA)
Bera	DesJarlais	Johnson (LA)
Bergman	Deutch	Johnson (OH)
Beyer	Diaz-Balart	Johnson (SD)
Biggs	Dingell	Johnson (TX)
Bilirakis	Doggett	Jordan
Bishop (GA)	Doyle, Michael F.	Joyce (OH)
Bishop (NC)		Joyce (PA)
Bishop (UT)	Duncan	Kaptur
Blumenauer	Emmer	Keating
Blunt Rochester	Engel	Keller
Bonamici	Escobar	Kelly (IL)
Bost	Eshoo	Kelly (MS)
Boyle, Brendan F.	Espaillat	Kennedy
	Estes	Khanna
Brindisi	Evans	Kildee
Brooks (AL)	Ferguson	Kilmer
Brooks (IN)	Finkenauer	Kim
Brown (MD)	Fitzpatrick	Kind
Brownley (CA)	Fleischmann	King (IA)
Buchanan	Fletcher	King (NY)
Buck	Flores	Kinzinger
Bucshon	Fortenberry	Kirkpatrick
Budd	Foster	Krishnamoorthi
Burchett	Foxx (NC)	Kuster (NH)
Burgess	Frankel	Kustoff (TN)
Bustos	Fudge	LaHood
Butterfield	Fulcher	LaMalfa
Calvert	Gaetz	Lamb
Carbajal	Gallagher	Lamborn
Cárdenas	Gallego	Langevin
Carson (IN)	Garamendi	Larsen (WA)
Carter (GA)	Garcia (CA)	Larson (CT)
Carter (TX)	García (IL)	Latta
Cartwright	Garcia (TX)	Lawson (FL)
Case	Gianforte	Lee (CA)
Casten (IL)	Gohmert	Lee (NV)
Castor (FL)	Golden	Lesko
Castro (TX)	Gomez	Levin (CA)
Chabot	Gonzalez (OH)	Levin (MI)
Cheney	Gonzalez (TX)	Lieu, Ted
Chu, Judy	Gooden	Lipinski
Cicilline	Gosar	Loebsack
Cisneros	Gottheimer	Lofgren
Clark (MA)	Granger	Long
Clarke (NY)	Graves (LA)	Loudermilk
Clay	Graves (MO)	Lowenthal
Cleaver	Green (TN)	Lowey
Cline	Green, Al (TX)	Lucas
Cloud	Griffith	Luetkemeyer
Clyburn	Grijalva	Luján
Cohen	Grothman	Luria
Cole	Guest	Lynch
Collins (GA)	Guthrie	Malinowski
Comer	Haaland	Maloney, Carolyn B.
Conaway	Hagedorn	
Connolly	Harder (CA)	Maloney, Sean
Cook	Harris	Mast
Cooper	Hartzler	Matsui
Correa	Hastings	McAdams
Costa	Hayes	McBath
Courtney	Heck	McCarthy
Cox (CA)	Hern, Kevin	McCaul
Craig	Herrera Beutler	McClintock
Crawford	Hice (GA)	McCollum
McEachin	Roby	Stivers
McGovern	Rodgers (WA)	Suozzi
McHenry	Roe, David P.	Swalwell (CA)
McKinley	Rogers (AL)	Takano
McNerney	Rogers (KY)	Taylor
Meeks	Rooney (FL)	Thompson (CA)
Meng	Rose (NY)	Thompson (MS)
Mfume	Rose, John W.	Thornberry
Miller	Rouda	Tiffany
Mitchell	Rouzer	Timmons
Moolenaar	Roy	Tipton
Mooney (WV)	Roybal-Allard	Titus
Moore	Ruiz	Tlaib
Morelle	Ruppersberger	Tonko
Moulton	Rush	Torres (CA)
Mucarsel-Powell	Rutherford	Torres Small (NM)
Murphy (FL)	Ryan	
Murphy (NC)	Sánchez	Trahan
Nadler	Sarbanes	Trone
Napolitano	Scalise	Turner
Neal	Scanlon	Underwood
Neguse	Schakowsky	Upton
Newhouse	Schiff	Van Drew
Norcross	Schneider	Vargas
Norman	Schrader	Veasey
Nunes	Schrier	Vela
O'Halleran	Schweikert	Velázquez
Ocasio-Cortez	Scott (VA)	Visclosky
Olson	Scott, Austin	Wagner
Omar	Scott, David	Walberg
Palazzo	Sensenbrenner	Walden
Pallone	Serrano	Walker
Palmer	Sewell (AL)	Walorski
Panetta	Shalala	Waltz
Pappas	Sherman	Wasserman Schultz
Pascrell	Sherrill	
Payne	Shimkus	Waters
Pelosi	Simpson	Watkins
Pence	Sires	Watson Coleman
Perlmutter	Slotkin	Weber (TX)
Peters	Smith (MO)	Webster (FL)
Peterson	Smith (NE)	Welch
Phillips	Smith (NJ)	Wenstrup
Pingree	Smith (WA)	Westerman
Pocan	Smucker	Wexton
Porter	Soto	Wild
Posey	Spanberger	Williams
Pressley	Spano	Wilson (FL)
Price (NC)	Speier	Wilson (SC)
Quigley	Stanton	Wittman
Raskin	Stefanik	Womack
Reed	Steil	Woodall
Rice (NY)	Steube	Yarmuth
Rice (SC)	Stevens	Yoho
Richmond	Stewart	Zeldin

NAYS—3

Amash	Davidson (OH)	Massie

NOT VOTING—22

Abraham	Katko	Reschenthaler
Brady	Kelly (PA)	Riggleman
Byrne	Lawrence	Stauber
Dunn	Marchant	Thompson (PA)
Gabbard	Marshall	Wright
Gibbs	Meuser	Young
Graves (GA)	Mullin	
Holding	Perry	

□ 1533

Mr. PETERSON changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Chu, Judy (Takano)	Kim (Davids (KS))
DeSaulnier (Matsui)	Kind (Beyer)
Engel (Pallone)	Kirkpatrick (Gallego)
Frankel (Clark (MA))	
Grijalva (García (IL))	Langevin (Lynch)
Hastings (Wasserman Schultz)	Lawson (FL) (Evans)
	Lieu, Ted (Beyer)
Hayes (Courtney)	Lipinski (Cooper)
Huffman (Thompson (CA))	Lofgren (Jeffries)
	Lowenthal (Beyer)
Jayapal (Raskin)	Lowey (Tonko)
Kildee (Butterfield)	Meng (Clark (MA))

Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Napolitano (Correa)
Payne (Wasserman Schultz)
Pingree (Clark (MA))
Pocan (Raskin)
Porter (Wexton)
Richmond (Fudge)
Rooney (FL) (Beyer)
Roybal-Allard (Cárdenas)
Rush (Underwood)
Serrano (Jeffries)
Speier (Scanlon)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Adams)

MOMENT OF SILENCE IN REMEMBRANCE OF AMERICANS WHO HAVE PASSED AWAY FROM COVID–19 VIRUS

The SPEAKER. The Chair asks all Members in the Chamber, as well as Members and staff throughout the Capitol, to rise for a moment of silence in remembrance of more than 200,000 Americans who have passed away from the COVID–19 virus.

RECESS

The SPEAKER pro tempore (Ms. DEGETTE). Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period of less than 15 minutes.

Accordingly (at 3 o'clock and 38 minutes p.m.), the House stood in recess.

□ 1551

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. DEGETTE) at 3 o'clock and 51 minutes p.m.

LEVERAGING INFORMATION ON FOREIGN TRAFFICKERS ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 5664) to amend the Trafficking Victims Protection Act of 2000 to ensure adequate time for the preparation of the annual Trafficking in Persons Report, require the timely provision of information to the Office to Monitor and Combat Trafficking in Persons and the Bureau of Diplomatic Security of the Department of State regarding the number and location of visa denials based, in whole or in part, on grounds related to human trafficking, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. CASTRO) that the House suspend the rules and pass the bill, as amended.

The vote was taken by electronic device, and there were—yeas 414, nays 0, not voting 16, as follows:

[Roll No. 197]

YEAS—414

Abraham
Adams
Aderholt
Aguilar
Allen
Allred
Amash
Amodei
Armstrong
Arrington
Axne
Babin
Bacon
Baird
Balderson
Banks
Barr
Barragán
Bass
Beatty
Bera
Bergman
Beyer
Biggs
Bilirakis
Bishop (GA)
Bishop (NC)
Bishop (UT)
Blumenauer
Blunt Rochester
Bonamici
Bost
Boyle, Brendan F.
Brady
Brindisi
Brooks (AL)
Brooks (IN)
Brown (MD)
Brownley (CA)
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Bustos
Butterfield
Calvert
Carbajal
Cárdenas
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chabot
Cheney
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Cline
Cloud
Clyburn
Cohen
Cole
Collins (GA)
Comer
Conaway
Connolly
Cook
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crawford
Crenshaw
Crist
Crow
Cuellar
Cunningham
Curtis
Davids (KS)
Davidson (OH)
Davis (CA)
Davis, Danny K.
Davis, Rodney
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Doyle, Michael F.
Duncan
Emmer
Engel
Escobar
Eshoo
Espaillat
Estes
Evans
Ferguson
Finkenauer
Fitzpatrick
Fleischmann
Fletcher
Flores
Fortenberry
Foster
Foxx (NC)
Frankel
Fudge
Fulcher
Gabbard
Gaetz
Gallagher
Gallego
Garamendi
Garcia (CA)
García (IL)
Garcia (TX)
Gianforte
Gohmert
Golden
Gomez
Gonzalez (OH)
Gonzalez (TX)
Gooden
Gosar
Gottheimer
Granger
Graves (LA)
Graves (MO)
Green (TN)
Green, Al (TX)
Griffith
Grijalva
Grothman
Guest
Guthrie
Haaland
Hagedorn
Harder (CA)
Harris
Hartzler
Hastings
Hayes
Heck
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Higgins (NY)
Hill (AR)
Himes
Hollingsworth
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Hudson
Huffman
Huizenga
Hurd (TX)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Johnson (TX)
Jordan
Joyce (OH)
Joyce (PA)
Kaptur
Katko
Keating
Keller
Kelly (IL)
Kelly (MS)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
King (IA)
King (NY)
Kinzinger
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Kustoff (TN)
LaHood
LaMalfa
Lamb
Lamborn
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Lesko
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Long
Loudermilk
Lowenthal
Lowey
Lucas
Luetkemeyer
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Massie
Mast
Matsui
McAdams
McBath
McCarthy
McCaul
McClintock
McCollum
McEachin
McGovern
McHenry
McKinley
McNerney
Meeks
Meng
Mfume
Miller
Mitchell
Moolenaar
Mooney (WV)
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Murphy (NC)
Nadler
Napolitano
Neal
Neguse
Newhouse
Norcross
Norman
Nunes
O'Halleran
Ocasio-Cortez
Olson
Omar
Palazzo
Pallone
Palmer
Panetta
Pappas
Pascrell
Payne
Pence
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Posey
Pressley
Price (NC)
Quigley
Raskin
Reed
Rice (NY)
Rice (SC)
Richmond
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose (NY)
Rose, John W.
Rouda
Rouzer
Roy
Roybal-Allard
Ruiz
Ruppersberger
Rush
Rutherford
Ryan
Sánchez
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Shimkus
Simpson
Sires
Slotkin
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Soto
Spanberger
Spano
Speier
Stanton
Stefanik
Steil
Steube
Stevens
Stewart
Stivers
Suozzi
Swalwell (CA)
Takano
Taylor
Thompson (CA)
Thompson (MS)
Thornberry
Tiffany
Timmons
Tipton
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Turner
Underwood
Upton
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Wasserman Schultz
Waters
Watkins
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Wexton
Wild
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoho
Young
Zeldin

NOT VOTING—16

Byrne
Dunn
Gibbs
Graves (GA)
Holding
Kelly (PA)
Marchant
Marshall
Meuser
Mullin
Perry
Reschenthaler
Riggleman
Stauber
Thompson (PA)
Wright

□ 1631

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Chu, Judy (Takano)
DeSaulnier (Matsui)
Engel (Pallone)
Frankel (Clark (MA))
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Hayes (Courtney)
Huffman (Thompson (CA))
Jayapal (Raskin)
Kildee (Butterfield)
Kim (Davids (KS))
Kind (Beyer)
Kirkpatrick (Gallego)
Langevin (Lynch)
Lawrence (Raskin)
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Jeffries)
Lowenthal (Beyer)
Lowey (Tonko)
Meng (Clark (MA))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Napolitano (Correa)
Payne (Wasserman Schultz)
Pingree (Clark (MA))
Pocan (Raskin)
Porter (Wexton)
Richmond (Fudge)
Rooney (FL) (Beyer)
Roybal-Allard (Cárdenas)
Rush (Underwood)
Serrano (Jeffries)
Speier (Scanlon)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Adams)

RECESS

The SPEAKER pro tempore (Mr. CONNOLLY). Pursuant to clause 12(a) of rule

I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 4 o'clock and 33 minutes p.m.), the House stood in recess.

□ 1903

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. DEGETTE) at 7 o'clock and 3 minutes p.m.

CONTINUING APPROPRIATIONS ACT, 2021 AND OTHER EXTENSIONS ACT

Mr. VISCLOSKY. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 8337) making continuing appropriations for fiscal year 2021, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8337

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Continuing Appropriations Act, 2021 and Other Extensions Act''.

SEC. 2. TABLE OF CONTENTS.

The table of contents of this Act is as follows:

Sec. 1. Short Title.
Sec. 2. Table of Contents.
Sec. 3. References.

DIVISION A—CONTINUING APPROPRIATIONS ACT, 2021

DIVISION B—SURFACE TRANSPORTATION PROGRAM EXTENSION

Title I—Surface Transportation Programs
Title II—Trust Funds

DIVISION C—HEALTH EXTENDERS

Title I—Public Health Extenders
Title II—Medicare Extenders
Title III—Medicaid Extenders
Title IV—Medicare Part B Premium Adjustment
Title V—Accelerated and Advance Payment Programs
Title VI—Offsets

DIVISION D—OTHER MATTERS

Title I—Emergency Stopgap USCIS Stabilization Act
Title II—United States Parole Commission Extension
Title III—Antitrust Criminal Penalty Enhancement and Reform Permanent Extension Act
Title IV—Community Services and Supports
Title V—Budgetary Effects
Title VI—Nutrition and Commodities Programs

DIVISION E—DEPARTMENT OF VETERANS AFFAIRS EXTENSIONS

Title I—Extensions of Authorities Relating to Health Care
Title II—Extensions of Authorities Relating to Benefits
Title III—Extensions of Authorities Relating to Homeless Veterans
Title IV—Extensions of Other Authorities and Other Matters

SEC. 3. REFERENCES.

Except as expressly provided otherwise, any reference to ''this Act'' contained in any division of this Act shall be treated as referring only to the provisions of that division.

DIVISION A—CONTINUING APPROPRIATIONS ACT, 2021

The following sums are hereby appropriated, out of any money in the Treasury not otherwise appropriated, and out of applicable corporate or other revenues, receipts, and funds, for the several departments, agencies, corporations, and other organizational units of Government for fiscal year 2021, and for other purposes, namely:

SEC. 101. Such amounts as may be necessary, at a rate for operations as provided in the applicable appropriations Acts for fiscal year 2020 and under the authority and conditions provided in such Acts, for continuing projects or activities (including the costs of direct loans and loan guarantees) that are not otherwise specifically provided for in this Act, that were conducted in fiscal year 2020, and for which appropriations, funds, or other authority were made available in the following appropriations Acts:

(1) The Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2020 (division B of Public Law 116–94), except sections 791 and 792.

(2) The Commerce, Justice, Science, and Related Agencies Appropriations Act, 2020 (division B of Public Law 116–93), except the last proviso under the heading ''Department of Commerce—Bureau of the Census—Periodic Censuses and Programs''.

(3) The Department of Defense Appropriations Act, 2020 (division A of Public Law 116–93), except title X.

(4) The Energy and Water Development and Related Agencies Appropriations Act, 2020 (division C of Public Law 116–94).

(5) The Financial Services and General Government Appropriations Act, 2020 (division C of Public Law 116–93).

(6) The Department of Homeland Security Appropriations Act, 2020 (division D of Public Law 116–93) (except for amounts in title II of division D of Public Law 116–93 that were designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985), and title I of division I of Public Law 116–94.

(7) The Department of the Interior, Environment, and Related Agencies Appropriations Act, 2020 (division D of Public Law 116–94).

(8) The Departments of Labor, Health and Human Services, and Education, and Related Agencies Appropriations Act, 2020 (division A of Public Law 116–94).

(9) The Legislative Branch Appropriations Act, 2020 (division E of Public Law 116–94), and section 7 of Public Law 116–94.

(10) The Military Construction, Veterans Affairs, and Related Agencies Appropriations Act, 2020 (division F of Public Law 116–94), except title V.

(11) The Department of State, Foreign Operations, and Related Programs Appropriations Act, 2020 (division G of Public Law 116–94).

(12) The Transportation, Housing and Urban Development, and Related Agencies Appropriations Act, 2020 (division H of Public Law 116–94).

SEC. 102. (a) No appropriation or funds made available or authority granted pursuant to section 101 for the Department of Defense shall be used for:

(1) the new production of items not funded for production in fiscal year 2020 or prior years;

(2) the increase in production rates above those sustained with fiscal year 2020 funds; or

(3) The initiation, resumption, or continuation of any project, activity, operation, or organization (defined as any project, subproject, activity, budget activity, program element, and subprogram within a program element, and for any investment items defined as a P–1 line item in a budget activity within an appropriation account and an R–1 line item that includes a program element and subprogram element within an appropriation account) for which appropriations, funds, or other authority were not available during fiscal year 2020.

(b) No appropriation or funds made available or authority granted pursuant to section 101 for the Department of Defense shall be used to initiate multi-year procurements utilizing advance procurement funding for economic order quantity procurement unless specifically appropriated later.

SEC. 103. Appropriations made by section 101 shall be available to the extent and in the manner that would be provided by the pertinent appropriations Act.

SEC. 104. Except as otherwise provided in section 102, no appropriation or funds made available or authority granted pursuant to section 101 shall be used to initiate or resume any project or activity for which appropriations, funds, or other authority were not available during fiscal year 2020.

SEC. 105. Appropriations made and authority granted pursuant to this Act shall cover all obligations or expenditures incurred for any project or activity during the period for which funds or authority for such project or activity are available under this Act.

SEC. 106. Unless otherwise provided for in this Act or in the applicable appropriations Act for fiscal year 2021, appropriations and funds made available and authority granted pursuant to this Act shall be available until whichever of the following first occurs:

(1) The enactment into law of an appropriation for any project or activity provided for in this Act.

(2) The enactment into law of the applicable appropriations Act for fiscal year 2021 without any provision for such project or activity.

(3) December 11, 2020.

SEC. 107. Expenditures made pursuant to this Act shall be charged to the applicable appropriation, fund, or authorization whenever a bill in which such applicable appropriation, fund, or authorization is contained is enacted into law.

SEC. 108. Appropriations made and funds made available by or authority granted pursuant to this Act may be used without regard to the time limitations for submission and approval of apportionments set forth in section 1513 of title 31, United States Code, but nothing in this Act may be construed to waive any other provision of law governing the apportionment of funds.

SEC. 109. Notwithstanding any other provision of this Act, except section 106, for those programs that would otherwise have high initial rates of operation or complete distribution of appropriations at the beginning of fiscal year 2021 because of distributions of funding to States, foreign countries, grantees, or others, such high initial rates of operation or complete distribution shall not be made, and no grants shall be awarded for such programs funded by this Act that would impinge on final funding prerogatives.

SEC. 110. This Act shall be implemented so that only the most limited funding action of that permitted in the Act shall be taken in order to provide for continuation of projects and activities.

SEC. 111. (a) For entitlements and other mandatory payments whose budget authority was provided in appropriations Acts for fiscal year 2020, and for activities under the Food and Nutrition Act of 2008, activities shall be continued at the rate to maintain program levels under current law, under the authority and conditions provided in the applicable appropriations Act for fiscal year

2020, to be continued through the date specified in section 106(3).

(b) Notwithstanding section 106, obligations for mandatory payments due on or about the first day of any month that begins after October 2020 but not later than 30 days after the date specified in section 106(3) may continue to be made, and funds shall be available for such payments.

SEC. 112. Amounts made available under section 101 for civilian personnel compensation and benefits in each department and agency may be apportioned up to the rate for operations necessary to avoid furloughs within such department or agency, consistent with the applicable appropriations Act for fiscal year 2020, except that such authority provided under this section shall not be used until after the department or agency has taken all necessary actions to reduce or defer non-personnel-related administrative expenses.

SEC. 113. Funds appropriated by this Act may be obligated and expended notwithstanding section 10 of Public Law 91–672 (22 U.S.C. 2412), section 15 of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2680), section 313 of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (22 U.S.C. 6212), and section 504(a)(1) of the National Security Act of 1947 (50 U.S.C. 3094(a)(1)).

SEC. 114. (a) Each amount incorporated by reference in this Act that was previously designated by the Congress for Overseas Contingency Operations/Global War on Terrorism or as an emergency requirement pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985 or as being for disaster relief pursuant to section 251(b)(2)(D) of such Act is designated by the Congress for Overseas Contingency Operations/Global War on Terrorism or as an emergency requirement pursuant to section 251(b)(2)(A) of such Act or as being for disaster relief pursuant to section 251(b)(2)(D) of such Act, respectively.

(b) Section 6 of Public Law 116–94 shall apply to amounts designated in subsection (a) and sections 126 and 163 of this Act for Overseas Contingency Operations/Global War on Terrorism or as an emergency requirement.

(c) This section shall become effective immediately upon enactment of this Act, and shall remain in effect through the date in section 106(3).

SEC. 115. (a) Rescissions or cancellations of discretionary budget authority that continue pursuant to section 101 in Treasury Appropriations Fund Symbols (TAFS)—

(1) to which other appropriations are not provided by this Act, but for which there is a current applicable TAFS that does receive an appropriation in this Act; or

(2) which are no-year TAFS and receive other appropriations in this Act,

may be continued instead by reducing the rate for operations otherwise provided by section 101 for such current applicable TAFS, as long as doing so does not impinge on the final funding prerogatives of the Congress.

(b) Rescissions or cancellations described in subsection (a) shall continue in an amount equal to the lesser of—

(1) the amount specified for rescission or cancellation in the applicable appropriations Act referenced in section 101 of this Act; or

(2) the amount of balances available, as of October 1, 2020, from the funds specified for rescission or cancellation in the applicable appropriations Act referenced in section 101 of this Act.

(c) No later than November 20, 2020, the Director of the Office of Management and Budget shall provide to the Committees on Appropriations of the House of Representatives and the Senate a comprehensive list of the rescissions or cancellations that will continue pursuant to section 101: *Provided*, That the information in such comprehensive list shall be periodically updated to reflect any subsequent changes in the amount of balances available, as of October 1, 2020, from the funds specified for rescission or cancellation in the applicable appropriations Act referenced in section 101, and such updates shall be transmitted to the Committees on Appropriations of the House of Representatives and the Senate upon request.

SEC. 116. Notwithstanding section 101, amounts are available in the ''Rural Utilities Service—Rural Water and Waste Disposal Program Account'' of the Department of Agriculture for gross obligations for the principal amount of direct and guaranteed loans as authorized by section 306 and described in section 381E(d)(2) of the Consolidated Farm and Rural Development Act, as follows: $1,400,000,000 for direct loans; and $50,000,000 for guaranteed loans.

SEC. 117. Amounts made available by section 101 for ''Department of Agriculture—Food and Nutrition Service—Child Nutrition Programs'' to carry out section 749(g) of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2010 (Public Law 111–80) may be apportioned up to the rate for operations necessary to ensure that the program can be fully operational by May 2021.

SEC. 118. Amounts made available by section 101 for ''Department of Agriculture—Domestic Food Programs—Food and Nutrition Service—Commodity Assistance Program'' may be apportioned up to the rate for operations necessary to maintain current program caseload in the Commodity Supplemental Food Program.

SEC. 119. Amounts made available by section 101 for ''Farm Service Agency—Agricultural Credit Insurance Fund Program Account'' may be apportioned up to the rate for operations necessary to accommodate approved applications for direct and guaranteed farm ownership loans, as authorized by 7 U.S.C. 1922 et seq.

SEC. 120. Section 260 of the Agricultural Marketing Act of 1946 (7 U.S.C. 1636i) and section 942 of the Livestock Mandatory Reporting Act of 1999 (7 U.S.C. 1635 note; Public Law 106–78) shall be applied by substituting the date specified in section 106(3) of this Act for ''September 30, 2020''.

SEC. 121. (a) Sections 7(j)(5), 7A(l)(4), and 21(e) of the United States Grain Standards Act (7 U.S.C. 79(j)(5), 79a(l)(4), 87j(e)) shall be applied by substituting the date specified in section 106(3) of this Act for ''September 30, 2020'' each place it appears.

(b) Sections 7D and 19 of the United States Grain Standards Act (7 U.S.C. 79d, 87h) shall be applied by substituting ''2021'' for ''2020''.

SEC. 122. Section 7605(b) of the Agriculture Improvement Act of 2018 (7 U.S.C. 5940 note; Public Law 115–334) is amended by striking ''the date that is 1 year after the date on which the Secretary establishes a plan under section 297C of the Agricultural Marketing Act of 1946'' and inserting ''September 30, 2021''.

SEC. 123. Notwithstanding section 101, the second paragraph under the heading ''Department of Health and Human Services—Food and Drug Administration—Salaries and Expenses'' in title VI of division B of Public Law 116–94 shall be applied by striking '', contingent upon the enactment of the Over-the-Counter Monograph User Fee Act of 2019,''.

SEC. 124. Notwithstanding section 101, amounts are provided for ''Department of Commerce—Bureau of the Census—Periodic Censuses and Programs'' at a rate for operations of $1,514,709,000: *Provided*, That amounts made available under such heading by this Act may be apportioned up to the rate for operations necessary to conduct the 2020 Decennial Census Program.

SEC. 125. (a)(1) Notwithstanding any other provision of this Act, the Secretary of the Navy may enter into a contract, beginning with fiscal year 2021, for the procurement of up to two Columbia class submarines.

(2) With respect to a contract entered into under subsection (a), the Secretary of the Navy may use incremental funding to make payments under the contract.

(3) Any contract entered into under subsection (a) shall provide that—

(A) any obligation of the United States to make a payment under the contract is subject to the availability of appropriations for that purpose; and

(B) total liability of the Federal Government for termination of any contract entered into shall be limited to the total amount of funding obligated to the contract at time of termination.

(b) Notwithstanding sections 102 and 104, amounts made available by section 101 to the Department of Defense for ''Shipbuilding and Conversion, Navy'' may be apportioned up to the rate for operations necessary for ''Ohio Replacement Submarine (Full Funding)'' in an amount not to exceed $1,620,270,000.

SEC. 126. (a) The remaining unobligated balances of funds as of September 30, 2020, from amounts made available to ''Department of Defense—Other Department of Defense Programs—Office of the Inspector General'' in title III of division B of the CARES Act (Public Law 116–136), are hereby rescinded, and, in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2021, and shall be available for the same purposes, in addition to other funds as may be available for such purposes, and under the same authorities for which the funds were originally provided in Public Law 116–136: *Provided*, That the amounts rescinded pursuant to this subsection that were previously designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of that Act: *Provided further*, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

(b)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, or if the designation in section 114(b) occurs after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 127. (a) No funds shall be transferred directly from ''Department of Energy—Power Marketing Administration—Colorado River Basins Power Marketing Fund, Western Area Power Administration'' to the general fund of the Treasury in fiscal year 2020.

(b)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 128. (a) Section 104(c) of the Reclamation States Emergency Drought Relief Act of 1991 (43 U.S.C. 2214(c)) shall be applied by substituting the date specified in section 106(3) of this Act for ''September 30, 2020''.

(b) Section 301 of the Reclamation States Emergency Drought Relief Act of 1991 (43

U.S.C. 2241) shall be applied by substituting ''2006 through 2021'' for ''2006 through 2020''.

SEC. 129. Section 3007(a)(5)(A)(i)(II)(bb) of the Scholarships for Opportunity and Results Act (sec. 38–1853.07(a)(5)(A)(i)(II)(bb), D.C. Official Code) is amended by striking ''5 years'' and inserting ''6 years''.

SEC. 130. Notwithstanding any other provision of this Act, except section 106, the District of Columbia may expend local funds made available under the heading ''District of Columbia—District of Columbia Funds'' for such programs and activities under the District of Columbia Appropriations Act, 2020 (title IV of division C of Public Law 116–93) at the rate set forth in the Fiscal Year 2021 Local Budget Act of 2020 (D.C. Act 23–408), as modified as of the date of enactment of this Act.

SEC. 131. In addition to the amounts otherwise provided by section 101, for ''District of Columbia—Federal Payment for Emergency Planning and Security Costs in the District of Columbia'', there is appropriated $13,000,000, for an additional amount for fiscal year 2021, to remain available until expended, for costs associated with the Presidential Inauguration held in January 2021.

SEC. 132. Notwithstanding section 101, the matter preceding the first proviso under the heading ''Small Business Administration—Business Loans Program Account'' in title V of division C of Public Law 116–93 shall be applied by substituting ''$15,000,000'' for ''$99,000,000'' and the third proviso shall be applied as if the language read as follows: ''*Provided further*, That commitments for general business loans authorized under paragraphs (1) through (35) of section 7(a) of the Small Business Act shall not exceed $30,000,000,000 for a combination of amortizing term loans and the aggregated maximum line of credit provided by revolving loans:'': *Provided*, That amounts made available under such heading by this Act may be apportioned up to the rate for operations necessary to accommodate increased demand for commitments for general business loans authorized under paragraphs (1) through (35) of section 7(a) of the Small Business Act (15 U.S.C. 636(a)) and for commitments to guarantee loans for debentures under section 303(b) of the Small Business Investment Act of 1958 (15 U.S.C 683(b)).

SEC. 133. Amounts made available by section 101 for ''Small Business Administration—Disaster Loans Program Account'' may be apportioned up to the rate for operations necessary to accommodate increased demand for commitments for disaster administrative expenses.

SEC. 134. (a) Notwithstanding section 101, amounts are provided for ''General Services Administration—Expenses, Presidential Transition'' for necessary expenses to carry out the Presidential Transition Act of 1963 (3 U.S.C. 102 note), at a rate for operations of $9,900,000, of which not to exceed $1,000,000 is for activities authorized by sections 3(a)(8) and 3(a)(9) of such Act: *Provided*, That such amounts may be transferred and credited to the ''Acquisition Services Fund'' or ''Federal Buildings Fund'' to reimburse obligations incurred prior to enactment of this Act for the purposes provided herein related to the Presidential election in 2020: *Provided further*, That amounts available under this section shall be in addition to any other amounts available for such purposes.

(b) Notwithstanding section 101, no funds are provided by this Act for ''General Services Administration—Pre-Election Presidential Transition''.

SEC. 135. Amounts made available by section 101 for ''General Services Administration—Real Property Activities—Federal Buildings Fund—Limitations on Availability of Revenue'' may be apportioned up to the rate for operations necessary for monthly rental of space operations.

SEC. 136. Notwithstanding section 101, for expenses of the Office of Administration to carry out the Presidential Transition Act of 1963, as amended, and similar expenses, in addition to amounts otherwise appropriated by law, amounts are provided to ''Presidential Transition Administrative Support'' at a rate for operations of $8,000,000: *Provided*, That such funds may be transferred to other accounts that provide funding for offices within the Executive Office of the President and the Office of the Vice President in this Act or any other Act, to carry out such purposes: *Provided further*, That such amounts may be apportioned up to the rate for operations necessary to carry out such responsibilities.

SEC. 137. In addition to amounts provided in section 101, an additional amount is provided for ''National Archives and Records Administration—Operating Expenses'' to carry out transition responsibilities of the Archivist of the United States under sections 2201 through 2207 of title 44, United States Code (commonly known as the ''Presidential Records Act of 1978'') in the event of a Presidential Transition at a rate for operations of $18,000,000: *Provided*, That such amounts may be apportioned up to the rate for operations necessary to carry out such responsibilities.

SEC. 138. Amounts made available by section 101 for ''Office of Personnel Management—Salaries and Expenses'', including amounts to be transferred from the appropriate trust funds of the Office of Personnel Management without regard to other statutes, may be apportioned up to the rate for operations necessary to cover any expected shortfall in administrative expenses resulting from the transfer of the National Background Investigations Bureau function to the Department of Defense.

SEC. 139. Section 2(b)(2)(C)(i) of the Temporary Bankruptcy Judgeships Extension Act of 2012 (28 U.S.C. 152 note; Public Law 112–121) is amended (with regard to the 1st vacancy in the eastern district of Tennessee) by striking ''5 years'' and inserting ''9 years''.

SEC. 140. Section 3610 of division A of the CARES Act (Public Law 116–136) shall be applied by substituting the date in section 106(3) of this Act for ''September 30, 2020''.

SEC. 141. Amounts made available by section 101 to the Department of Homeland Security for ''Office of the Secretary and Executive Management—Operations and Support'', ''Management Directorate—Operations and Support'', and ''Intelligence, Analysis, and Operations Coordination—Operations and Support'' may be apportioned up to the rate for operations necessary to carry out activities previously funded by the Working Capital Fund of the Department of Homeland Security, consistent with the fiscal year 2021 President's Budget proposal, submitted pursuant to section 1105(a) of title 31, United States Code, and accompanying justification materials.

SEC. 142. Amounts made available by section 101 to the Department of Homeland Security under the heading ''Coast Guard—Operations and Support'' may be available for the pay and benefits of Coast Guard Yard and Vessel Documentation personnel, Non-Appropriated Funds personnel, and for Morale, Welfare and Recreation Programs.

SEC. 143. Section 9307(f)(1) of title 46, United States Code shall be applied by substituting the date specified in section 106(3) of this Act for ''September 30, 2020''.

SEC. 144. Amounts made available by section 101 to the Department of Homeland Security under the heading ''Cybersecurity and Infrastructure Security Agency'' may be obligated in the account and budget structure set forth in H.R. 7669 and the accompanying House Report 116–458, as reported by the House Committee on Appropriations on July 15, 2020.

SEC. 145. Amounts made available by section 101 to the Department of Homeland Security under the heading ''Federal Emergency Management Agency—Disaster Relief Fund'' may be apportioned up to the rate for operations necessary to carry out response and recovery activities under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.).

SEC. 146. (a) Section 1309(a) of the National Flood Insurance Act of 1968 (42 U.S.C. 4016(a)) is amended by striking ''September 30, 2019'' and inserting ''September 30, 2021''.

(b) Section 1319 of the National Flood Insurance Act of 1968 (42 U.S.C. 4026) is amended by striking ''September 30, 2019'' and inserting ''September 30, 2021''.

(c)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 147. (a) Notwithstanding section 101, the following shall be applied by substituting ''$0'' for—

(1) ''$32,300,000'' in the first paragraph under the heading ''Bureau of Land Management—Land Acquisition'';

(2) ''$10,000,000'', and ''$320,000'' in the first paragraph under the heading ''United States Fish and Wildlife Service—Land Acquisition'';

(3) ''$3,628,000'' in the second paragraph under the heading ''United States Fish and Wildlife Service—Land Acquisition'';

(4) ''$30,800,000'' and ''$23,702,000'' for ''$54,502,000'' in the first paragraph under the heading ''United States Fish and Wildlife Service—Cooperative Endangered Species Conservation Fund'';

(5) ''$208,400,000'', ''$140,000,000'', and ''$13,000,000'' in the first paragraph under the heading ''National Park Service—Land Acquisition and State Assistance'';

(6) ''$63,990,000'' and ''$283,000,000'' for ''$346,990,000'' under the heading ''Forest Service—State and Private Forestry''; and

(7) ''$78,898,000'' in the first paragraph under the heading ''Forest Service—Land Acquisition''.

(b) Notwithstanding section 101, the first paragraph under the heading ''United States Fish and Wildlife Service—Land Acquisition'' shall be applied by substituting ''$7,550,000'' for ''$70,715,000''.

(c) Amounts made available by section 101 to the Department of the Interior for ''Departmental Offices—Office of the Secretary—Departmental Operations'' may be apportioned up to the rate for operations necessary to fund the Appraisal and Valuation Services Office and such amounts shall be derived from the Land and Water Conservation Fund.

SEC. 148. Amounts made available by section 101 to the Forest Service may be obligated in the account and budget structure set forth in the table provided by the Secretary of Agriculture to the Committees on Appropriations of the Senate and the House of Representatives prior to the end of fiscal year 2020 pursuant to section 435(d) of the Department of the Interior, Environment, and Related Agencies Appropriations Act, 2020 (division D of Public Law 116–94): *Provided*, That amounts made available by section 101 under the heading ''Forest Service—National Forest System'' shall be available for the base salary and expenses of employees that carry out the functions funded by the ''Capital Improvement and Maintenance'' account, the ''Range Betterment Fund'' account, and the ''Management of National Forests for Subsistence Uses'' account

and may be apportioned up to the rate for operations necessary to fund such base salary and expenses of such employees.

SEC. 149. Activities authorized by part A of title IV and section 1108(b) of the Social Security Act shall continue through the date specified in section 106(3) of this Act, in the manner authorized for fiscal year 2020, and out of any money in the Treasury of the United States not otherwise appropriated, there are hereby appropriated such sums as may be necessary for such purpose: *Provided*, That grants under section 418 of the Social Security Act shall be issued on the same basis as grants under section 403(a)(1) of such Act.

SEC. 150. (a) The remaining unobligated balances of funds as of September 30, 2020, from amounts credited and merged pursuant to the second proviso under the heading ''Department of Health and Human Services—Centers for Disease Control and Prevention—Buildings and Facilities'' in title II of the Departments of Labor, Health and Human Services, Education, and Related Agencies Appropriations Act, 2016 (division H of Public Law 114–113) are hereby rescinded, and, in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2025, and shall be available for the same purposes, in addition to other funds as may be available for such purposes, and under the same authorities for which the funds were originally transferred and merged pursuant to Public Law 114–113.

(b)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 151. (a) Notwithstanding section 101, section 529 of division A of Public Law 116–94 shall be applied by substituting ''$1,150,000,000'' for ''$3,169,819,000'' and by substituting ''section 2104(a)(24)'' for ''section 2104(a)(23)''.

(b) Notwithstanding section 101, section 530 of division A of Public Law 116–94 shall be applied by substituting ''$11,005,661,000'' for ''$6,093,181,000''.

SEC. 152. (a) Funds made available in Public Law 113–235 to the accounts of the National Institutes of Health that were available for obligation through fiscal year 2015 and were obligated for multi-year research grants shall be available through fiscal year 2021 for the liquidation of valid obligations incurred in fiscal year 2015 if the Director of the National Institutes of Health determines the project suffered an interruption of activities attributable to SARS–CoV–2.

(b)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 153. (a) Funds made available in Public Law 113–76 under the heading ''Rehabilitation Services and Disability Research'' that were available for obligation through fiscal year 2015 for the Automated Personalization Computing Project pursuant to the first four provisos under that heading in that Act are to remain available through fiscal year 2021 for the liquidation of valid obligations incurred in fiscal years 2014 or 2015.

(b)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 154. Section 114(f) of the Higher Education Act of 1965 (20 U.S.C. 1011c(f)) shall be applied by substituting the date specified in section 106(3) of this Act for ''September 30, 2020''.

SEC. 155. Section 458(a)(4) of the Higher Education Act of 1965 (20 U.S.C. 1087h(a)(4)) shall be applied through the date specified in section 106(3) of this Act by substituting ''2021'' for ''2020''.

SEC. 156. (a) The remaining unobligated balances of funds as of September 30, 2020, from amounts made available to ''Corporation for National and Community Service—Salaries and Expenses'' in title IV of division A of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94), are hereby rescinded, and in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2021, and shall be available for the same purposes, in addition to other funds as may be available for such purposes, and under the same authorities for which the funds were originally provided in Public Law 116–94.

(b) The remaining unobligated balances of funds as of September 30, 2020, from amounts made available to ''Corporation for National and Community Service—Operating Expenses'' in title IV of division A of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94), are hereby rescinded, and in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2021, and shall be available for the same purposes, in addition to other funds as may be available for such purposes, and under the same authorities for which the funds were originally provided in Public Law 116–94: *Provided*, That any amounts appropriated by the preceding proviso shall not be subject to the allotment requirements otherwise applicable under sections 129(a), (b), (d), and (e) of the National and Community Service Act of 1993.

(c) The remaining unobligated balances of funds as of September 30, 2020, from amounts made available to ''Corporation for National and Community Service—Office of Inspector General'' in title IV of division A of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94), are hereby rescinded, and in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2021, and shall be available for the same purposes, in addition to other funds as may be available for such purposes, and under the same authorities for which the funds were originally provided in Public Law 116–94.

(d)(1) Section 3514(b) of title III of division A of Public Law 116–136 is hereby repealed, and such section shall be applied hereafter as if such subsection had never been enacted.

(2)(A) IN GENERAL.—The amounts provided under this subsection are designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(g)).

(B) DESIGNATION IN THE SENATE.—In the Senate, this subsection is designated as an emergency requirement pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018.

(C) CLASSIFICATION OF BUDGETARY EFFECTS.—Notwithstanding Rule 3 of the Budget Scorekeeping Guidelines set forth in the joint explanatory statement of the committee of conference accompanying Conference Report 105–217 and section 250(c)(7) and (c)(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, the budgetary effects of this subsection—

(i) shall not be estimated for purposes of section 251 of such Act;

(ii) shall not be estimated for purposes of paragraph (4)(C) of section 3 of the Statutory Pay As-You-Go Act of 2010 as being included in an appropriation Act; and

(iii) shall be treated as if they were contained in a PAYGO Act, as defined by section 3(7) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 932(7)).

(e)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 157. Notwithstanding any other provision of this Act, there is hereby appropriated for fiscal year 2021 for payment to the John R. Lewis Revocable Trust, beneficiary of John R. Lewis, late a Representative from the State of Georgia, $174,000.

SEC. 158. Notwithstanding section 101, amounts are provided for ''House of Representatives—Salaries and Expenses'' at a rate for operations of $1,383,725,000.

SEC. 159. Notwithstanding any other provision of this Act—

(1) the authority of the Library of Congress to reimburse the Little Scholars Child Development Center at the Library of Congress under section 19004 of the CARES Act (2 U.S.C. 162b note; 134 Stat. 578) shall remain in effect with respect to salaries incurred until the termination of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) resulting from the COVID–19 pandemic; and

(2) the authority of the Government Accountability Office to reimburse the Tiny Findings Child Development Center under section 19009 of the CARES Act (134 Stat. 579) shall remain in effect with respect to salaries incurred until the termination of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) resulting from the COVID–19 pandemic.

(3) Section 19005(a) of the CARES Act (2 U.S.C. 1816b note; 134 Stat. 578) shall be amended by striking ''for not more than 16 weeks'' and inserting in its place ''until the termination of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) resulting from the COVID–19 pandemic''.

SEC. 160. (a) EXTENSION.—Notwithstanding sections 3902(a) and 3904(b) of title 41, United States Code, if the performance or delivery of services procured under a severable service contract of the Library of Congress is delayed or otherwise affected by the COVID–19 Pandemic, the period for the performance or delivery of services under the contract may be extended for a period equivalent to the delay or suspension of services, but not exceeding an additional 12 months.

(b) CONTRACTS COVERED.—This section applies with respect to contracts for severable services procured for a period beginning in fiscal year 2019 or fiscal year 2020.

SEC. 161. Effective upon enactment of this Act, the matter preceding the first proviso under the heading ''Department of Veterans Affairs—Veterans Benefits Administration—Compensation and Pensions'' in division F of Public Law 116–94 is amended by replacing ''shall become available on October 1, 2020:'' with '', to remain available until expended and to become available on October 1, 2020:''.

SEC. 162. Amounts made available by section 101 for ''Department of Veterans Affairs—Departmental Administration—Veterans Electronic Health Record'' may be apportioned up to the rate for operations necessary to maintain support activities related to implementation and maintenance of a Veterans Electronic Health Record system, including contractual costs associated with operations authorized by section 3109 of title 5, United States Code, and salaries and expenses of employees hired under titles 5 and 38, United States Code.

SEC. 163. Notwithstanding section 106 of this Act, at any time during fiscal year 2021, the Secretary of Veterans Affairs may transfer up to $140,000,000 of the unobligated balances available under the heading ''Department of Veterans Affairs—Veterans Health Administration—Medical Services'' in title X of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) to the ''Canteen Service Revolving Fund'' of the Department to prevent, prepare for, and respond to coronavirus, domestically or internationally: *Provided*, That amounts so transferred shall be for offsetting the losses resulting from the coronavirus pandemic of Veterans Canteen Service collections pursuant to chapter 78 of title 38, United States Code: *Provided further*, That the transferred amounts shall be in addition to any other funds made available for this purpose: *Provided further*, That amounts transferred under this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 164. Amounts made available by section 101 to the Department of State for ''Administration of Foreign Affairs—Repatriation Loans Program Account'' may be apportioned up to the rate for operations necessary to accommodate increased demand for commitments for repatriation loans authorized by section 4(b)(2)(B) of the State Department Basic Authorities Act of 1956 (22 U.S.C. 2671(b)(2)(B)).

SEC. 165. Section 21009 of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) shall continue in effect through the date specified in section 106 of this Act.

SEC. 166. (a) During the period covered by this Act, section 1(b)(1) of the Passport Act of June 4, 1920 (22 U.S.C. 214(b)(1)) shall be applied by substituting ''the costs of providing consular services'' for ''such costs''.

(b) During the period covered by this Act, discretionary amounts made available by section 101 to the Department of State in title I under the heading ''Administration of Foreign Affairs'' and discretionary unobligated balances under such heading from prior Acts making appropriations for the Department of State, foreign operations, and related programs, may be transferred to the Consular and Border Security Programs account if the Secretary of State determines and reports to the Committees on Appropriations that to do so is necessary to sustain consular operations, following consultation with such Committees: *Provided*, That such transfer authority is in addition to any transfer authority otherwise available in this Act and under any other provision of law: *Provided further*, That no amounts may be transferred from amounts designated for Overseas Contingency Operations/Global War on Terrorism or as emergency requirements pursuant to a concurrent resolution on the budget or section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985.

(c) Amounts made available by section 101 to the Department of State for ''Diplomatic Programs'' may be apportioned up to the rate for operations necessary to sustain consular operations, and the obligation of such apportioned funds shall be subject to the regular notification procedures of the Committees on Appropriations.

SEC. 167. Notwithstanding any other provision of this Act, and subject to the regular notification procedures of the Committees on Appropriations, the limitations in section 7044(e)(2) of division G of Public Law 116–94 shall not apply to funds made available in this Act or in the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2020, for disaster relief; to protect human rights, locate and identify missing persons, and assist victims of torture; to promote justice, accountability, and reconciliation; to enhance maritime security and domain awareness; and for International Military Education and Training.

SEC. 168. Section 1334 of the Foreign Affairs Reform and Restructuring Act of 1998 (22 U.S.C. 6553) is amended by striking ''October 1, 2020'' and inserting ''October 1, 2021''.

SEC. 169. (a) The remaining unobligated balances of funds, as of September 30, 2020, from amounts made available to ''Department of Transportation—Office of the Secretary—National Infrastructure Investments'' in title I of division K of the Consolidated Appropriations Act, 2017 (Public Law 115–31), other than such funds administratively allocated to carry out the administration and oversight of awards under the national infrastructure investments program, are hereby rescinded, and in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2021, in addition to other funds as may be available for such purposes, and shall be available, without additional competition, for completing the funding of awards made pursuant to the fiscal year 2017 National Infrastructure Investments grants (also known as the Better Utilizing Investments to Leverage Development, or BUILD grants).

(b) The remaining unobligated balances of funds, as of September 30, 2020, from amounts made available to ''Department of Transportation—Office of the Secretary—National Infrastructure Investments'' in title I of division L of the Consolidated Appropriations Act, 2018 (Public Law 115–141), other than such funds administratively allocated to carry out the administration and oversight of awards under the national infrastructure investments program, are hereby rescinded, and in addition to amounts otherwise provided by section 101, an amount of additional new budget authority equivalent to the amount rescinded pursuant to this subsection is hereby appropriated on September 30, 2020, for an additional amount for fiscal year 2020, to remain available until September 30, 2021, in addition to other funds as may be available for such purposes, and shall be available, without additional competition, for completing the funding of awards made pursuant to the fiscal year 2018 National Infrastructure Investments grants (also known as the Better Utilizing Investments to Leverage Development, or BUILD grants).

(c)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 170. Notwithstanding section 101, the matter preceding the first proviso under the heading ''Government National Mortgage Association—Guarantees of Mortgage-Backed Securities Loan Guarantee Program Account'' in the Further Consolidated Appropriations Act, 2020 (Public Law 116–94) shall be applied by substituting ''$1,278,000,000,000'' for ''$550,000,000,000'': *Provided*, That amounts made available under such heading by this Act may be apportioned up to the rate for operations necessary to accommodate increased demand for new commitments to issue guarantees to carry out the purposes of section 306 of the National Housing Act as amended (12 U.S.C. 1721(g)).

SEC. 171. (a) Funds previously made available in the Consolidated and Further Continuing Appropriations Act, 2013 (Public Law 113–6) for the ''Choice Neighborhoods Initiative'' that were available for obligation through fiscal year 2015 are to remain available through fiscal year 2021 for the liquidation of valid obligations incurred in fiscal years 2013 through 2015.

(b)(1) This section shall become effective immediately upon enactment of this Act.

(2) If this Act is enacted after September 30, 2020, this section shall be applied as if it were in effect on September 30, 2020.

SEC. 172. Amounts made available by section 101 to the Department of Housing and Urban Development for ''Housing Programs—Housing for the Elderly'' may be apportioned up to the rate for operations necessary to—

(1) maintain project rental assistance for the elderly under section 202(c)(2) of the Housing Act of 1959 (12 U.S.C. 1701q(2)), including making amendments to contracts for such assistance and renewing expiring contracts for such assistance for up to a 1-year term; and

(2) be available to make awards to existing grantees to continue, without competition, demonstration programs to test housing with services models for the elderly that demonstrate the potential to delay or avoid the need for nursing home care.

SEC. 173. Amounts provided by section 111 to the Department of Agriculture for ''Corporations—Commodity Credit Corporation Fund—Reimbursement for Net Realized Losses'' may be used, prior to the completion of the report described in section 2 of the Act of August 17, 1961 (15 U.S.C. 713a-11), to reimburse the Commodity Credit Corporation for net realized losses sustained, but not previously reimbursed, as of September 17, 2020.

This Act may be cited as the ''Continuing Appropriations Act, 2021''.

DIVISION B—SURFACE TRANSPORTATION PROGRAM EXTENSION

TITLE I—SURFACE TRANSPORTATION PROGRAMS

SEC. 1101. EXTENSION OF FEDERAL SURFACE TRANSPORTATION PROGRAMS.

(a) IN GENERAL.—Except as otherwise provided in this division, the requirements, authorities, conditions, eligibilities, limitations, and other provisions authorized under the covered laws, which would otherwise expire on or cease to apply after September 30, 2020, are incorporated by reference and shall continue in effect through September 30, 2021.

(b) AUTHORIZATION OF APPROPRIATIONS.—

(1) HIGHWAY TRUST FUND.—

(A) HIGHWAY ACCOUNT.—There is authorized to be appropriated from the Highway Account for fiscal year 2021, for each program with respect to which amounts are authorized to be appropriated from such account for fiscal year 2020, an amount equal to the amount authorized for appropriation with respect to the program from such account under the covered laws for fiscal year 2020.

(B) MASS TRANSIT ACCOUNT.—There is authorized to be appropriated from the Mass

Transit Account for fiscal year 2021, for each program with respect to which amounts are authorized to be appropriated from such account for fiscal year 2020, an amount equal to the amount authorized for appropriation with respect to the program from such account under the covered laws for fiscal year 2020.

(2) GENERAL FUND.—There is authorized to be appropriated for fiscal year 2021, for each program under the covered laws with respect to which amounts are authorized to be appropriated for fiscal year 2020 from an account other than the Highway Account or the Mass Transit Account, an amount that is not less than the amount authorized for appropriation with respect to the program under the covered laws for fiscal year 2020.

(c) USE OF FUNDS.—Amounts authorized to be appropriated for fiscal year 2021 with respect to a program under subsection (b) shall be distributed, administered, limited, and made available for obligation in the same manner as amounts authorized to be appropriated with respect to the program for fiscal year 2020 under the covered laws.

(d) OBLIGATION LIMITATION.—A program for which amounts are authorized to be appropriated under subsection (b)(1) shall be subject to a limitation on obligations for fiscal year 2021 in the same amount and in the same manner as the limitation applicable with respect to the program for fiscal year 2020.

(e) DEFINITIONS.—In this section:

(1) COVERED LAWS.—The term ''covered laws'' means the following:

(A) Titles I, II, III, IV, V, VI, VII, VIII, XI, and XXIV of the FAST Act (Public Law 114–94).

(B) Division A, division B, subtitle A of title I and title II of division C, and division E of MAP–21 (Public Law 112–141).

(C) Titles I, II, and III of the SAFETEA–LU Technical Corrections Act of 2008 (Public Law 110–244).

(D) Titles I, II, III, IV, V, and VI of SAFETEA–LU (Public Law 109–59).

(E) Titles I, II, III, IV, and V of the Transportation Equity Act for the 21st Century (Public Law 105–178).

(F) Titles II, III, and IV of the National Highway System Designation Act of 1995 (Public Law 104–59).

(G) Titles I, II, III, IV, V, and VI of the Intermodal Surface Transportation Efficiency Act of 1991 (Public Law 102–240).

(H) Title 23, United States Code.

(I) Sections 116, 117, 330, 5128, 5505, and 24905 and chapters 53, 139, 303, 311, 313, 701, and 702 of title 49, United States Code.

(2) HIGHWAY ACCOUNT.—The term ''Highway Account'' means the portion of the Highway Trust Fund that is not the Mass Transit Account.

(3) MASS TRANSIT ACCOUNT.—The term ''Mass Transit Account'' means the portion of the Highway Trust Fund established under section 9503(e)(1) of the Internal Revenue Code of 1986.

SEC. 1102. NATIONALLY SIGNIFICANT FREIGHT AND HIGHWAY PROJECTS.

Section 117(d)(2)(A) of title 23, United States Code, is amended in the matter preceding clause (i)—

(1) by striking ''$500,000,000'' and inserting ''$600,000,000''; and

(2) by striking ''2020'' and inserting ''2021''.

SEC. 1103. HIGHWAY SAFETY RESEARCH AND DEVELOPMENT.

Section 403(h)(2) of title 23, United States Code, is amended—

(1) by striking ''2020'' and inserting ''2021''; and

(2) by striking ''$21,248,000'' and inserting ''$26,560,000''.

SEC. 1104. RAIL-RELATED PROVISIONS.

(a) FEDERAL FUNDING FOR OPERATING LOSSES.—Section 24321 of title 49, United States Code, is amended—

(1) by striking subsection (d); and

(2) by redesignating subsection (e) as subsection (d).

(b) DIRECT LOANS AND LOAN GUARANTEES.—Section 502(b)(3) of the Railroad Revitalization and Regulatory Reform Act of 1976 (45 U.S.C. 822(b)(3)) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2021''.

SEC. 1105. SUSPENSION FOR EXTENSION PERIOD OF ADJUSTMENTS FOR ADDITIONAL DEPOSITS INTO HIGHWAY TRUST FUND.

Section 105 of title 23, United States Code, shall not apply to monies deposited into the Highway Trust Fund by this division.

SEC. 1106. PROHIBITION ON USE OF FUNDS.

None of the funds authorized in this division or any other Act may be used to adjust apportionments for the Mass Transit Account of the Highway Trust Fund or withhold funds from apportionments for the Mass Transit Account of the Highway Trust Fund pursuant to section 9503(e)(4) of the Internal Revenue Code of 1986 in fiscal year 2021.

SEC. 1107. APPALACHIAN REGIONAL COMMISSION.

(a) AUTHORIZATION OF APPROPRIATIONS.—Section 14703 of title 40, United States Code, is amended—

(1) in subsection (a)(5) by striking ''2020'' and inserting ''2021''; and

(2) in subsection (c) by striking ''2020'' and inserting ''2021''.

(b) TERMINATION.—Section 14704 of title 40, United States Code, is amended by striking ''2020'' and inserting ''2021''.

TITLE II—TRUST FUNDS

SEC. 1201. EXTENSION OF HIGHWAY TRUST FUND EXPENDITURE AUTHORITY.

Section 9503 of the Internal Revenue Code of 1986 is amended—

(1) by striking ''October 1, 2020'' in subsections (b)(6)(B), (c)(1), and (e)(3) and inserting ''October 1, 2021''; and

(2) by striking ''FAST Act'' in subsections (c)(1) and (e)(3) and inserting ''Continuing Appropriations Act, 2021 and Other Extensions Act''.

SEC. 1202. SPORT FISH RESTORATION AND BOATING TRUST FUND.

Section 9504 of the Internal Revenue Code of 1986 is amended—

(1) by striking ''FAST Act'' each place it appears in subsection (b)(2) and inserting ''Continuing Appropriations Act, 2021 and Other Extensions Act''; and

(2) by striking ''October 1, 2020'' in subsection (d)(2) and inserting ''October 1, 2021''.

SEC. 1203. LEAKING UNDERGROUND STORAGE TANK TRUST FUND.

Section 9508(e)(2) of the Internal Revenue Code of 1986 is amended by striking ''October 1, 2020'' and inserting ''October 1, 2021''.

SEC. 1204. FURTHER ADDITIONAL TRANSFERS TO HIGHWAY TRUST FUND.

Subsection (f) of section 9503 of the Internal Revenue Code of 1986 is amended by redesignating paragraph (10) as paragraph (11) and by inserting after paragraph (9) the following new paragraph:

''(10) FURTHER TRANSFERS TO TRUST FUND.—Out of money in the Treasury not otherwise appropriated, there is hereby appropriated—

''(A) $10,400,000,000 to the Highway Account (as defined in subsection (e)(5)(B)) in the Highway Trust Fund; and

''(B) $3,200,000,000 to the Mass Transit Account in the Highway Trust Fund.''.

SEC. 1205. ADDITIONAL TRANSFER TO TRUST FUND.

Section 9502 of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(f) ADDITIONAL TRANSFER TO TRUST FUND.—Out of money in the Treasury not otherwise appropriated, there is hereby appropriated $14,000,000,000 to the Airport and Airway Trust Fund.''.

DIVISION C—HEALTH EXTENDERS

TITLE I—PUBLIC HEALTH EXTENDERS

SEC. 2101. COMMUNITY HEALTH CENTERS, NATIONAL HEALTH SERVICE CORPS, AND TEACHING HEALTH CENTERS THAT OPERATE GRADUATE MEDICAL EDUCATION PROGRAMS.

(a) COMMUNITY HEALTH CENTERS.—Section 10503(b)(1)(F) of the Patient Protection and Affordable Care Act (42 U.S.C. 254b–2(b)(1)(F)) is amended—

(1) by striking ''$668,493,151'' and inserting ''$789,041,096''; and

(2) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(b) NATIONAL HEALTH SERVICE CORPS.—Section 10503(b)(2)(H) of the Patient Protection and Affordable Care Act (42 U.S.C. 254b–2(b)(2)(H)) is amended—

(1) by striking ''$51,808,219'' and inserting ''$61,150,685''; and

(2) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(c) TEACHING HEALTH CENTERS THAT OPERATE GRADUATE MEDICAL EDUCATION PROGRAMS.—Section 340H(g)(1) of the Public Health Service Act (42 U.S.C. 256h(g)(1)) is amended—

(1) by striking ''$21,141,096'' and inserting ''$24,953,425''; and

(2) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(d) APPLICATION OF PROVISIONS.—Amounts appropriated pursuant to the amendments made by this section for the period beginning on October 1, 2020, through December 11, 2020, shall be subject to the requirements contained in Public Law 116–94 for funds for programs authorized under sections 330 through 340 of the Public Health Service Act (42 U.S.C. 254 through 256).

(e) CONFORMING AMENDMENT.—Paragraph (4) of section 3014(h) of title 18, United States Code, is amended—

(1) by striking ''Social Services Act,,,'' and inserting ''Social Services Act,''; and

(2) by striking ''and section 3831 of the CARES Act'' and inserting '', section 3831 of the CARES Act, and section 2101 of the Continuing Appropriations Act, 2021 and Other Extensions Act''.

SEC. 2102. DIABETES PROGRAMS.

(a) SPECIAL DIABETES PROGRAMS FOR TYPE I DIABETES.—Section 330B(b)(2)(D) of the Public Health Service Act (42 U.S.C. 254c–2(b)(2)(D)) is amended—

(1) by striking ''$25,068,493'' and inserting ''$29,589,042''; and

(2) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(b) SPECIAL DIABETES PROGRAMS FOR INDIANS.—Section 330C(c)(2)(D) of the Public Health Service Act (42 U.S.C. 254c–3(c)(2)(D)) is amended—

(1) by striking ''$25,068,493'' and inserting ''$29,589,042''; and

(2) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

SEC. 2103. PERSONAL RESPONSIBILITY EDUCATION.

Section 513 of the Social Security Act (42 U.S.C. 713) is amended by striking ''November 30, 2020'' each place it appears and inserting ''December 11, 2020''.

SEC. 2104. SEXUAL RISK AVOIDANCE EDUCATION.

Section 510 of the Social Security Act (42 U.S.C. 710) is amended—

(1) by striking ''November 30, 2020'' each place it appears and inserting ''December 11, 2020'';

(2) in subsection (a)(2)(B)(i), by striking ''such period, for fiscal year 2020'' and inserting ''the period described in subparagraph (A), for fiscal year 2021''; and

(3) in subsection (f)(2), by striking ''and 2019'' and inserting ''through 2020,''.

SEC. 2105. RARE PEDIATRIC DISEASE PRIORITY REVIEW VOUCHER EXTENSION.

Section 529(b)(5) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360ff(b)(5)) is amended—

(1) by striking ''September 30, 2020'' each place it appears and inserting ''December 11, 2020''; and

(2) in subparagraph (B), by striking ''September 30, 2022'' and inserting ''December 11, 2022''.

SEC. 2106. AUTHORIZATION TO ACCUMULATE EXCESS ANNUAL LEAVE.

(a) IN GENERAL.—Notwithstanding section 219 of the Public Health Service Act (42 U.S.C. 210–1), a commissioned officer of the Public Health Service who, except for this section, would lose at the end of the fiscal year 2020 accumulated annual leave in excess of 60 days, may retain such amounts of accumulated annual leave in excess of 60 days.

(b) USE OF EXCESS LEAVE.—Annual leave retained pursuant to subsection (a) shall be lost unless it is used by the officer no later than September 30, 2023.

(c) APPLICABILITY.—This section shall not apply to an officer on terminal leave preceding separation, retirement, or release from active duty, as of the effective date specified in subsection (d).

(d) EFFECTIVE DATE.—This section shall become effective on the earlier of—

(1) the date of the enactment of this Act; or

(2) September 30, 2020.

SEC. 2107. HHS SERVICES AND SUPPLY FUND.

Effective as if included in the enactment of the paragraph beginning with ''Service and supply fund:'' under the heading ''Public Health Service'' in the Federal Security Agency Appropriation Act, 1946 (42 U.S.C. 231), such paragraph shall be applied with respect to any fiscal year as though the phrase ''central services'' referred to central services for any Federal agency.

TITLE II—MEDICARE EXTENDERS

SEC. 2201. EXTENSION OF THE WORK GEOGRAPHIC INDEX FLOOR UNDER THE MEDICARE PROGRAM.

Section 1848(e)(1)(E) of the Social Security Act (42 U.S.C. 1395w–4(e)(1)(E)), as amended by section 3801 of the CARES Act (Public Law 116–136), is amended by striking ''December 1, 2020'' and inserting ''December 12, 2020''.

SEC. 2202. EXTENSION OF FUNDING FOR QUALITY MEASURE ENDORSEMENT, INPUT, AND SELECTION.

Section 1890(d)(2) of the Social Security Act (42 U.S.C. 1395aaa(d)(2)), as amended by section 3802 of the CARES Act (Public Law 116–136), is amended—

(1) in the first sentence, by striking ''November 30, 2020'' and inserting ''December 11, 2020''; and

(2) in the third sentence, by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

SEC. 2203. EXTENSION OF FUNDING OUTREACH AND ASSISTANCE FOR LOW-INCOME PROGRAMS.

(a) STATE HEALTH INSURANCE PROGRAMS.—Subsection (a)(1)(B) of section 119 of the Medicare Improvements for Patients and Providers Act of 2008 (42 U.S.C. 1395b–3 note), as amended by section 3306 of the Patient Protection and Affordable Care Act (Public Law 111–148), section 610 of the American Taxpayer Relief Act of 2012 (Public Law 112–240), section 1110 of the Pathway for SGR Reform Act of 2013 (Public Law 113–67), section 110 of the Protecting Access to Medicare Act of 2014 (Public Law 113–93), section 208 of the Medicare Access and CHIP Reauthorization Act of 2015 (Public Law 114–10), section 50207 of division E of the Bipartisan Budget Act of 2018 (Public Law 115–123), section 1402 of division B of the Continuing Appropriations Act, 2020, and Health Extenders Act of 2019 (Public Law 116– 59), section 1402 of division B of the Further Continuing Appropriations Act, 2020, and Further Health Extenders Act of 2019 (Public Law 116–69), section 103 of division N of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94), and section 3803 of the CARES Act (Public Law 116–136) is amended in clause (xi) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(b) AREA AGENCIES ON AGING.—Subsection (b)(1)(B) of such section 119, as so amended, is amended in clause (xi) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(c) AGING AND DISABILITY RESOURCE CENTERS.—Subsection (c)(1)(B) of such section 119, as so amended, is amended in clause (xi) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(d) CONTRACT WITH THE NATIONAL CENTER FOR BENEFITS AND OUTREACH ENROLLMENT.—Subsection (d)(2) of such section 119, as so amended, is amended in clause (xi) by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

TITLE III—MEDICAID EXTENDERS

SEC. 2301. EXTENSION OF MONEY FOLLOWS THE PERSON REBALANCING DEMONSTRATION.

Section 6071(h)(1)(H) of the Deficit Reduction Act of 2005 (42 U.S.C. 1396a note), as inserted by section 3811 of the CARES Act (Public Law 116–136), is amended by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

SEC. 2302. EXTENSION OF SPOUSAL IMPOVERISHMENT PROTECTIONS.

(a) IN GENERAL.—Section 2404 of the Patient Protection and Affordable Care Act (42 U.S.C. 1396r–5 note), as amended by section 3812 of the CARES Act (Public Law 116–136), is amended by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

(b) RULE OF CONSTRUCTION.—Nothing in section 2404 of Public Law 111–148 (42 U.S.C. 1396r–5 note) or section 1902(a)(17) or 1924 of the Social Security Act (42 U.S.C. 1396a(a)(17), 1396r–5) shall be construed as prohibiting a State from—

(1) applying an income or resource disregard under a methodology authorized under section 1902(r)(2) of such Act (42 U.S.C. 1396a(r)(2))—

(A) to the income or resources of an individual described in section 1902(a)(10)(A)(ii)(VI) of such Act (42 U.S.C. 1396a(a)(10)(A)(ii)(VI)) (including a disregard of the income or resources of such individual's spouse); or

(B) on the basis of an individual's need for home and community-based services authorized under subsection (c), (d), (i), or (k) of section 1915 of such Act (42 U.S.C. 1396n) or under section 1115 of such Act (42 U.S.C. 1315); or

(2) disregarding an individual's spousal income and assets under a plan amendment to provide medical assistance for home and community-based services for individuals by reason of being determined eligible under section 1902(a)(10)(C) of such Act (42 U.S.C. 1396a(a)(10)(C)) or by reason of section 1902(f) of such Act (42 U.S.C. 1396a(f)) or otherwise on the basis of a reduction of income based on costs incurred for medical or other remedial care under which the State disregarded the income and assets of the individual's spouse in determining the initial and ongoing financial eligibility of an individual for such services in place of the spousal impoverishment provisions applied under section 1924 of such Act (42 U.S.C. 1396r–5).

SEC. 2303. DELAY OF DSH REDUCTIONS.

Section 1923(f)(7)(A) of the Social Security Act (42 U.S.C. 1396r–4(f)(7)(A)), as amended by section 3813 of the CARES Act (Public Law 116–136), is amended—

(1) in clause (i), in the matter preceding subclause (I), by striking ''December 1, 2020'' and inserting ''December 12, 2020''; and

(2) in clause (ii)(I), by striking ''December 1, 2020'' and inserting ''December 12, 2020''.

SEC. 2304. EXTENSION OF COMMUNITY MENTAL HEALTH SERVICES DEMONSTRATION PROGRAM.

Section 223(d)(3) of the Protecting Access to Medicare Act of 2014 (42 U.S.C. 1396a note), as amended by section 3814 of the CARES Act (Public Law 116–136), is amended by striking ''November 30, 2020'' and inserting ''December 11, 2020''.

TITLE IV—MEDICARE PART B PREMIUM ADJUSTMENT

SEC. 2401. 2021 MEDICARE PART B PREMIUM AND DEDUCTIBLE.

(a) 2021 PREMIUM AND DEDUCTIBLE AND REPAYMENT THROUGH FUTURE PREMIUMS.—Section 1839(a) of the Social Security Act (42 U.S.C. 1395r(a)) is amended—

(1) in the second sentence of paragraph (1), by striking ''(5) and (6)'' and inserting ''(5), (6), and (7)'';

(2) in paragraph (6)(C)—

(A) in clause (i), by striking ''section 1844(d)(1)'' and inserting ''subsections (d)(1) and (e)(1) of section 1844''; and

(B) in clause (ii), by striking ''paragraph (5)'' and inserting ''paragraphs (5) and (7)''; and

(3) by adding at the end the following:

''(7)(A) In applying this part (including subsection (i) and section 1833(b)), the monthly actuarial rate for enrollees age 65 and over for 2021 shall be determined to be equal to the sum of—

''(i) the monthly actuarial rate for enrollees age 65 and over for 2020; plus

''(ii) 25 percent of the difference between such rate for 2020 and the preliminary monthly actuarial rate for enrollees age 65 and over for 2021 (as estimated under subparagraph (B)).

''(B) For purposes of subparagraph (A)(ii), the Secretary shall estimate a preliminary monthly actuarial rate for enrollees age 65 and over for 2021 using the methodology described in paragraph (1) and as if subparagraph (A) of this paragraph did not apply. The Secretary shall make the estimate under the previous sentence as if the transfers described in section 1844(f)(1) have been made.''.

(b) TRANSITIONAL GOVERNMENT CONTRIBUTION.—Section 1844 of the Social Security Act (42 U.S.C. 1395w) is amended—

(1) in subsection (a), by adding at the end the following new sentence: ''In applying paragraph (1), the amounts transferred under subsection (e)(1) with respect to enrollees described in subparagraphs (A) and (B) of such subsection shall be treated as premiums payable and deposited in the Trust Fund under subparagraphs (A) and (B), respectively, of paragraph (1).''; and

(2) by adding at the end the following:

''(e)(1) For 2021, there shall be transferred from the General Fund to the Trust Fund an amount, as estimated by the Chief Actuary of the Centers for Medicare & Medicaid Services, equal to the reduction in aggregate premiums payable under this part for a month in such year (excluding any changes in amounts collected under section 1839(i)) that are attributable to the application of section 1839(a)(7) with respect to—

''(A) enrollees age 65 and over; and

''(B) enrollees under age 65.

Such amounts shall be transferred from time to time as appropriate.

''(2) Premium increases affected under section 1839(a)(6) shall not be taken into account in applying subsection (a).

''(3) There shall be transferred from the Trust Fund to the General Fund of the Treasury amounts equivalent to the additional premiums payable as a result of the application of section 1839(a)(6), excluding the aggregate payments attributable to the application of section 1839(i)(3)(A)(ii)(II).''.

(c) ADDITIONAL TRANSITIONAL GOVERNMENT CONTRIBUTION.—Section 1844 of the Social Security Act (42 U.S.C. 1395w), as amended by subsection (b)(2), is amended by adding at the end the following:

''(f)(1) There shall be transferred from the General Fund of the Treasury to the Trust Fund an amount, as estimated by the Chief Actuary of the Centers for Medicare & Medicaid Services, equal to amounts paid in advance for items and services under this part during the period beginning on the first day of the emergency period described in section 1135(g)(1)(B) and ending on the date of the enactment of this paragraph.

''(2) There shall be transferred from the Trust Fund to the General Fund of the Treasury amounts equivalent to the sum of—

''(A) the amounts by which claims have offset (in whole or in part) the amount of such payments described in paragraph (1); and

''(B) the amount of such payments that have been repaid (in whole or in part).

''(3) Amounts described in paragraphs (1) and (2) shall be transferred from time to time as appropriate.''.

(d) INDENTATION CORRECTION.—Section 1839(i)(3)(A)(ii) of the Social Security Act (42 U.S.C. 1395r(i)(3)(A)(ii)) is amended by moving the indentation of subclause (I) two ems to the right.

TITLE V—ACCELERATED AND ADVANCE PAYMENT PROGRAMS

SEC. 2501. MODIFYING ACCELERATED AND ADVANCE PAYMENT PROGRAMS UNDER PARTS A AND B OF THE MEDICARE PROGRAM DURING THE COVID–19 EMERGENCY.

(a) SPECIAL REPAYMENT RULES AND OTHER MODIFICATIONS.—

(1) PART A.—

(A) IN GENERAL.—Section 1815(f)(2)(C) of the Social Security Act (42 U.S.C. 1395g(f)(2)(C)) is amended to read as follows:

''(C) In the case of a payment made under the terms of the program under subsection (e)(3), including such program as expanded pursuant to this subsection, on or after the date of the enactment of the CARES Act and so made during the emergency period described in section 1135(g)(1)(B), upon request of a hospital, the Secretary shall—

''(i) provide 1 year before payments for items and services furnished by the hospital are offset to recoup payments under such program;

''(ii) provide that any such offset be an amount equal to—

''(I) during the first 11 months in which any such offsets are made with respect to payment for items and services furnished by the hospital, 25 percent of the amount of such payment for such items and services; and

''(II) during the succeeding 6 months, 50 percent of the amount of such payment for such items and services; and

''(iii) allow 29 months from the date of the first payment under such program to such provider before requiring that the outstanding balance be paid in full.''.

(B) AUTHORITY FOR DISCRETION.—Section 1815(f)(2)(A)(ii) of the Social Security Act (42 U.S.C. 1395g(f)(2)(A)(ii)) is amended by inserting ''(or, with respect to requests submitted to the Secretary after April 26, 2020, may)''after ''shall.''.

(C) APPLICATION TO OTHER PART A PROVIDERS.—

(i) IN GENERAL.—In the case of a payment made under the terms of an applicable program (as defined in clause (ii)), on or after the date of the enactment of the CARES Act (Public Law 116–136) and so made during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)), upon request of an applicable provider (as defined in clause (iii)), the provisions of section 1815(f)(2)(C) of such Act (42 U.S.C. 1395g(f)(2)(C)), as amended by subparagraph (A), shall apply with respect to such payment in the same manner as such provisions apply with respect to a payment made under the terms of the program under subsection (e)(3) of section 1815 of such Act (42 U.S.C. 1395g), including such program as expanded pursuant to subsection (f) of such section, on or after the date of the enactment of the CARES Act (Public Law 116–136) and so made during such emergency period.

(ii) APPLICABLE PROGRAM DEFINED.—In this clause, the term ''applicable program'' means—

(I) the programs under sections 413.64(g), 412.541(f), 412.632(e), 412.116(f), 413.350(d), or 418.307 of title 42, Code of Federal Regulations (or any successor regulations); and

(II) any other comparable program under part A of title XVIII of the Social Security Act, as determined by the Secretary.

(iii) APPLICABLE PROVIDER.—In this clause, the term ''applicable provider'' means a provider of services that is eligible for payment under an applicable program.

(2) PART B.—

(A) IN GENERAL.—In the case of a payment made under the terms of the program described in section 421.214 of title 42, Code of Federal Regulations (or any successor regulation) on or after the date of the enactment of the CARES Act (Public Law 116–136) and so made during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)), the Secretary of Health and Human Services shall, upon request of the provider of services or supplier receiving such payment—

(i) provide 1 year before payments for items and services furnished by such provider or supplier are offset to recoup payments under such program;

(ii) provide that any such offset be an amount equal to—

(I) during the first 11 months in which any such offsets are made with respect to payment for items and services furnished by such provider or supplier, 25 percent of the amount of such payment for such items and services; and

(II) during the succeeding 6 months, 50 percent of the amount of such payment for such items and services; and

(iii) allow 29 months from the date of the first payment under such program to such provider or supplier before requiring that the outstanding balance be paid in full.

(B) LIMITATION ON FURTHER PART B ADVANCE PAYMENTS.—With respect to the period of the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b-5(g)(1)(B)) beginning on the date of the enactment of this Act, the total amount of payments made under the terms of the program described in section 421.214 of title 42, Code of Federal Regulations (or any successor regulation)—

(i) for the portion of 2020 occurring during such period of the emergency period and for each year, shall not exceed $10,000,000;

(ii) for each year beginning and ending during such period of the emergency period, shall not exceed $10,000,000; and

(iii) for the last year beginning during such period of the emergency period, the portion of such last year occurring during such period of the emergency period, shall not exceed $10,000,000.

(b) INTEREST RATES.—

(1) PART A.—

(A) IN GENERAL.—Section 1815(d) of the Social Security Act (42 U.S.C. 1395g(d)) is amended by inserting before the period at the end the following: ''(or, in the case of such a determination made with respect to a payment made on or after the date of the enactment of the CARES Act and during the emergency period described in section 1135(g)(1)(B) under the program under subsection (e)(3), including such program as expanded pursuant to subsection (f), at a rate of 4 percent)''.

(B) APPLICATION TO OTHER PART A PROVIDERS.—In the case of a determination under section 1815(d) of the Social Security Act (42 U.S.C. 1395g(d)) with respect to a payment made on or after the date of the enactment of the CARES Act (Public Law 116–136) and during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)) under an applicable program (as defined in subsection (a)(1)(C)(ii)), the amendment made by subparagraph (A) shall apply with respect to such determination in the same manner as such amendment applies with respect to a payment made on or after the date of the enactment of the CARES Act (Public Law 116–136) and during such emergency period under the program under subsection (e)(3) of section 1815 of such Act (42 U.S.C. 1395g), including such program as expanded pursuant to subsection (f) of such section.

(2) PART B.—Section 1833(j) of the Social Security Act (42 U.S.C. 1395l(j)) is amended by inserting before the period at the end the following: ''(or, in the case of such a determination made with respect to a payment made on or after the date of the enactment of the CARES Act and during the emergency period described in section 1135(g)(1)(B) under the program described in section 421.214 of title 42, Code of Federal Regulations (or any successor regulation), at a rate of 4 percent)''.

(c) PUBLICATION OF DATA.—

(1) DATA DURING COVID–19 EMERGENCY.—

(A) INITIAL PUBLICATION.—Not later than 2 weeks after the date of the enactment of this section, the Secretary shall post on the public website of the Centers for Medicare & Medicaid Services data that includes the following information with respect to specified payments (as defined in paragraph (3)(E)) made as of such date and for which data is available:

(i) The total amount of such payments made under each applicable payment program (as defined in paragraph (3)(A)), including a specification of the percentage of such payments so made from the Federal Hospital Insurance Trust Fund established under section 1817 of the Social Security Act (42 U.S.C. 1395i) and the percentage of such payments so made from the Federal Supplementary Insurance Trust Fund established under section 1841 of such Act (42 U.S.C. 1395t) under each such program.

(ii) The amount of specified payments made under each such program by type of provider of services or supplier receiving such payments.

(iii) The Centers for Medicare & Medicaid Services certification number or other appropriate number of, and the amount of such payments received by, each provider of services and supplier receiving such payments.

(B) INTERIM PUBLICATION.—Every 2 weeks thereafter during the emergency period, if any specified payments are made that were not included in a preceding publication of data under this paragraph, the Secretary

shall post on the website described in subparagraph (A) data containing the information described in clauses (i), (ii), and (iii) of such subparagraph with respect to such specified payments.

(2) ADDITIONAL PUBLICATIONS.—Not later than 15 months after the date of the enactment of the CARES Act (Public Law 116–136), and every 6 months thereafter until all specified payments have been recouped or repaid, the Secretary shall post on the website described in paragraph (1)(A) data that includes the following:

(A) The total amount of all specified payments not recouped or repaid under each applicable payment program.

(B) The amount of payments made under each such program and not recouped or repaid by type of provider of services or supplier.

(C) The total amount of specified payments that have been recouped or repaid under each such program, including a specification of the percentage of such payments so recouped or repaid that have been deposited into the Federal Hospital Insurance Trust Fund and the percentage of such payments so recouped or repaid that have been deposited into the Federal Supplementary Insurance Trust Fund under each such program.

(D) The dollar amount of interest that has been collected with respect to all specified payments under each such program.

(3) DEFINITIONS.—In this subsection:

(A) APPLICABLE PAYMENT PROGRAM.—The term ''applicable payment program'' means—

(i) the program under subsection (e)(3) of section 1815 of the Social Security Act (42 U.S.C. 1395g), including such program as expanded under subsection (f) of such section;

(ii) an applicable program (as defined in subsection (a)(1)(C)(ii) of this section); and

(iii) the program described in section 421.214 of title 42, Code of Federal Regulations (or any successor regulation).

(B) EMERGENCY PERIOD.—The term ''emergency period'' means the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)).

(C) PROVIDER OF SERVICES AND SUPPLIER.—The terms ''provider of services'' and ''supplier'' have the meaning given such terms in subsections (u) and (d), respectively, of section 1861 of such Act (42 U.S.C. 1395x).

(D) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(E) SPECIFIED PAYMENTS.—The term ''specified payments'' means payments made under an applicable payment program on or after the date of the enactment of the CARES Act (Public Law 116–136) during the emergency period.

TITLE VI—OFFSETS

SEC. 2601. INCLUSION IN THE MEDICAID DRUG REBATE PROGRAM OF COVERED OUTPATIENT DRUGS USED FOR MEDICATION-ASSISTED TREATMENT.

(a) IN GENERAL.—Section 1905 of the Social Security Act (42 U.S.C. 1396d) is amended—

(1) in paragraph (29) of subsection (a)—

(A) by moving the margin of such paragraph 2 ems to the right; and

(B) by striking ''subject to paragraph (2)'' and inserting ''subject to paragraphs (2) and (3)''; and

(2) in subsection (ee), by adding at the end the following:

''(3) APPLICATION OF REBATE REQUIREMENTS.—The requirements of section 1927 shall apply to any drug or biological product described in paragraph (1)(A) that is—

''(A) furnished as medical assistance in accordance with subsection (a)(29) and section 1902(a)(10)(A); and

''(B) a covered outpatient drug (as defined in section 1927(k), except that, in applying paragraph (2)(A) of such section to a drug described in paragraph (1)(A), such drug shall be deemed a prescribed drug for purposes of subsection (a)(12)).''.

(b) CONFORMING AMENDMENT.—Section 1927(d)(7) of the Social Security Act (42 U.S.C. 1396r–8(d)(7)) is amended by adding at the end the following new subparagraph:

''(D) Drugs and biological products described in subsection (ee)(1)(A) of section 1905 that are furnished as medical assistance in accordance with subsection (a)(29) of such section and section 1902(a)(10)(A).''.

(c) RETROACTIVE EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of section 1006(b) of the SUPPORT for Patients and Communities Act (Public Law 115–271; 132 Stat. 3914).

SEC. 2602. MEDICAID IMPROVEMENT FUND.

Section 1941(b) of the Social Security Act (42 U.S.C. 1396w–1(b)) is amended—

(1) in paragraph (1), by striking ''2021'' and inserting ''2023''; and

(2) in paragraph (3)(A), by striking ''$1,960,000,000'' and inserting ''$3,446,000,000''.

DIVISION D—OTHER MATTERS

TITLE I—EMERGENCY STOPGAP USCIS STABILIZATION ACT

SEC. 4101. SHORT TITLE.

This title may be cited as the ''Emergency Stopgap USCIS Stabilization Act''.

SECTION 4102. EXPANSION OF PREMIUM PROCESSING.

(a) IN GENERAL.—Section 286(u) of the Immigration and Nationality Act (8 U.S.C. 1356(u)) is amended to read as follows:

''(u) PREMIUM FEE FOR CERTAIN IMMIGRATION BENEFIT TYPES.—

''(1) IN GENERAL.—The Secretary of Homeland Security is authorized to establish and collect a premium fee for the immigration benefit types described in paragraph (2). Such fee shall be paid in addition to any other fees authorized by law, deposited as offsetting receipts in the Immigration Examinations Fee Account established under subsection (m), and used for the purposes described in paragraph (4).

''(2) IMMIGRATION BENEFIT TYPES.—Subject to reasonable conditions or limitations, the Secretary shall establish a premium fee under paragraph (1) in connection with—

''(A) employment-based nonimmigrant petitions and associated applications for dependents of the beneficiaries of such petitions;

''(B) employment-based immigrant petitions filed by or on behalf of aliens described in paragraph (1), (2), or (3) of section 203(b);

''(C) applications to change or extend nonimmigrant status;

''(D) applications for employment authorization; and

''(E) any other immigration benefit type that the Secretary deems appropriate for premium processing.

''(3) AMOUNT OF FEE.—

''(A) IN GENERAL.—Subject to subparagraph (C), with respect to an immigration benefit type designated for premium processing by the Secretary on or before August 1, 2020, the premium fee shall be $2,500, except that the premium fee for a petition for classification of a nonimmigrant described in subparagraph (H)(ii)(b) or (R) of section 101(a)(15) shall be $1,500.

''(B) OTHER IMMIGRATION BENEFIT TYPES.—With respect to an immigration benefit type designated for premium processing but not described in subparagraph (A), the initial premium fee shall be established by regulation, which shall include a detailed methodology supporting the proposed premium fee amount.

''(C) BIENNIAL ADJUSTMENT.—The Secretary may adjust a premium fee under subparagraph (A) or (B) on a biennial basis by the percentage (if any) by which the Consumer Price Index for All Urban Consumers for the month of June preceding the date on which such adjustment takes effect exceeds the Consumer Price Index for All Urban Consumers for the same month of the second preceding calendar year. The provisions of section 553 of title 5, United States Code, shall not apply to an adjustment authorized under this subparagraph.

''(4) USE OF FEE.—Fees collected under this subsection may only be used by U.S. Citizenship and Immigration Services to—

''(A) provide the services described in paragraph (5) to premium processing requestors;

''(B) make infrastructure improvements in adjudications processes and the provision of information and services to immigration and naturalization benefit requestors;

''(C) respond to adjudication demands, including by reducing the number of pending immigration and naturalization benefit requests; and

''(D) otherwise offset the cost of providing adjudication and naturalization services.

''(5) PREMIUM PROCESSING SERVICES.—The Secretary—

''(A) may suspend the availability of premium processing for designated immigration benefit requests only if circumstances prevent the completion of processing of a significant number of such requests within the required period; and

''(B) shall ensure that premium processing requestors have direct and reliable access to current case status information as well as the ability to communicate with the premium processing units at each service center or office that provides premium processing services.''.

(b) EXPANSION TO NEW BENEFIT REQUESTS.—

(1) IN GENERAL.—Notwithstanding the requirement to set a fee by regulation under section 286(u)(3)(B) of the Immigration and Nationality Act (8 U.S.C. 1356(u)(3)(B)), as amended by subsection (a), the Secretary of Homeland Security may set a fee under that section without regard to the provisions of section 553 of title 5, United States Code, if such fee is consistent with the following:

(A) For a petition for classification under section 203(b)(1)(C) of the Immigration and Nationality Act (8 U.S.C. 1153(b)(1)(C)), or a petition for classification under section 203(b)(2) involving a waiver under section 203(b)(2)(B) of such Act, the fee is set at an amount not greater than $2,500 and the required processing timeframe is not greater than 45 days.

(B) For an application under section 248 of the Immigration and Nationality Act (8 U.S.C. 1258) to change status to a classification described in subparagraph (F), (J), or (M) of section 101(a)(15) of such Act (8 U.S.C. 1101(a)(15)), the fee is set at an amount not greater than $1,750 and the required processing timeframe is not greater than 30 days.

(C) For an application under section 248 of the Immigration and Nationality Act (8 U.S.C. 1258) to change status to be classified as a dependent of a nonimmigrant described in subparagraph (E), (H), (L), (O), (P), or (R) of section 101(a)(15) of such Act (8 U.S.C. 1101(a)(15)), or to extend such classification, the fee is set at an amount not greater than $1,750 and the required processing timeframe is not greater than 30 days.

(D) For an application for employment authorization, the fee is set at an amount not greater than $1,500 and the required processing timeframe is not greater than 30 days.

(2) CLARIFICATION.—The required processing timeframe for each of the applications and petitions described in paragraph (1) shall not commence until the date that all prerequisites for adjudication are received by the Secretary of Homeland Security.

(c) OTHER BENEFIT REQUESTS.—In implementing the amendments made by subsection (a), the Secretary of Homeland Security shall develop and implement processes to ensure that the availability of premium processing, or its expansion to additional immigration benefit requests, does not result in an increase in processing times for immigration benefit requests not designated for premium processing or an increase in regular processing of immigration benefit requests so designated.

SEC. 4103. REPORTING REQUIREMENTS.

(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Homeland Security shall provide to the appropriate Committees a 5-year plan, including projected cost estimates, procurement strategies, and a project schedule with milestones, to accomplish each of the following:

(1) Establish electronic filing procedures for all applications and petitions for immigration benefits.

(2) Accept electronic payment of fees at all filing locations.

(3) Issue correspondence, including decisions, requests for evidence, and notices of intent to deny, to immigration benefit requestors electronically.

(4) Improve processing times for all immigration and naturalization benefit requests.

(b) SEMI-ANNUAL BRIEFINGS.—Not later than 180 days after submission of the plan described in subsection (a), and on a semi-annual basis thereafter, the Secretary shall advise the appropriate Committees on the implementation status of such plan.

(c) APPROPRIATE COMMITTEES DEFINED.—In this section, the term ''appropriate Committees'' means—

(1) the Committee on Appropriations, the Committee on the Judiciary, and the Committee on Homeland Security of the House of Representatives; and

(2) the Committee on Appropriations, the Committee on the Judiciary, and the Committee on Homeland Security and Governmental Affairs of the Senate.

TITLE II—UNITED STATES PAROLE COMMISSION EXTENSION

SEC. 4201. SHORT TITLE.

This title may be cited as the ''United States Parole Commission Extension Act of 2020''.

SEC. 4202. AMENDMENT OF SENTENCING REFORM ACT OF 1984.

For purposes of section 235(b) of the Sentencing Reform Act of 1984 (18 U.S.C. 3551 note; Public Law 98–473; 98 Stat. 2032), as such section relates to chapter 311 of title 18, United States Code, and the United States Parole Commission, each reference in such section to ''33 years'' or ''33-year period'' shall be deemed a reference to ''35 years'' or ''35-year period'', respectively.

SEC. 4203. PAROLE COMMISSION REPORT.

Section 3 of the United States Parole Commission Extension Act of 2018 (Public Law 115–274) is amended—

(1) in subsection (b), by striking ''2021'' and inserting ''2022''; and

(2) by adding at the end the following:

''(d) DISTRICT OF COLUMBIA REPORT FOR SUCCEEDING FISCAL YEARS.—For each of fiscal years 2021 through 2022, not later than 90 days after the end of the fiscal year, the United States Parole Commission shall report to the Committees on the Judiciary of the Senate and House of Representatives the items in paragraphs (1) through (3) of subsection (c), for the fiscal year.''.

TITLE III—ANTITRUST CRIMINAL PENALTY ENHANCEMENT AND REFORM PERMANENT EXTENSION ACT

SEC. 4301. SHORT TITLE.

This title may be cited as the ''Antitrust Criminal Penalty Enhancement and Reform Permanent Extension Act''.

SEC. 4302. FINDINGS; PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Conspiracies among competitors to fix prices, rig bids, and allocate markets are categorically and irredeemably anticompetitive and contravene the competition policy of the United States.

(2) Cooperation incentives are important to the efforts of the Antitrust Division of the Department of Justice to prosecute and deter the offenses described in paragraph (1).

(b) PURPOSE.—The purpose of this Act, and the amendments made by this Act, is to strengthen public and private antitrust enforcement by providing incentives for antitrust violators to cooperate fully with government prosecutors and private litigants through the repeal of the sunset provision of the Antitrust Criminal Penalty Enhancement and Reform Act of 2004 (15 U.S.C. 1 note).

SEC. 4303. REPEAL OF SUNSET PROVISION.

(a) REPEAL.—Section 211 of the Antitrust Criminal Penalty Enhancement and Reform Act of 2004 (15 U.S.C. 1 note) is repealed.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) REVIVAL AND RESTORATION.—

(A) IN GENERAL.—Sections 212, 213, and 214 of the Antitrust Criminal Penalty Enhancement and Reform Act of 2004 (15 U.S.C. 1 note) as in effect on June 21, 2020, and as amended by the laws described in subparagraph (B), are revived and restored.

(B) LAWS.—The laws described in this subparagraph are:

(i) Antitrust Criminal Penalty Enhancement and Reform Act of 2004 Extension Act (Public Law 111–30; 123 Stat. 1775).

(ii) The Act entitled ''An Act to amend the Antitrust Criminal Penalty Enhancement and Reform Act of 2004 to extend the operation of such Act, and for other purposes'', approved June 9, 2010 (Public Law 111–90; 124 Stat. 1275).

(2) DEFINITIONS.—Section 212 of the Antitrust Criminal Penalty Enhancement and Reform Act of 2004 (15 U.S.C. 1 note) is amended—

(A) by striking paragraph (6); and

(B) by redesignating paragraph (7) as paragraph (6).

(c) APPLICABILITY.—

(1) MARKERS AND AGREEMENTS BEFORE SUNSET.—Notwithstanding the repeal under subsection (a), section 211(b) of the Antitrust Criminal Penalty Enhancement and Reform Act of 2004 (15 U.S.C. 1 note), as in effect on the day before the date of enactment of this Act, shall continue to apply to any person who received a marker or entered into an antitrust leniency agreement on or before June 22, 2020.

(2) MARKERS AND AGREEMENTS AFTER SUNSET.—The repeal under subsection (a) shall apply to any person who received a marker or entered into an antitrust leniency agreement on or after June 23, 2020.

TITLE IV—COMMUNITY SERVICES AND SUPPORTS

SEC. 4401. HEAD START DESIGNATION RENEWAL SYSTEM.

Notwithstanding section 638 of the Head Start Act (42 U.S.C. 9833), if the Secretary of Health and Human Services—

(1) is required to make a determination under paragraph (6) of section 641(c) of such Act (42 U.S.C. 9836a(c)) whether to renew the designation of a Head Start agency for which such determination under the schedule developed pursuant to paragraph (9)(C) of such section 641(c) is required to be made before December 31, 2020; and

(2) cannot make such determination in accordance with such schedule because the Secretary lacks any information described in any of subparagraphs (A) through (E) of section 641(c)(1) of such Act required for the purpose of making such determination;

then before December 31, 2020, the Secretary shall extend for not more than 2 years the 5-year period otherwise applicable to the designation of such Head Start agency under such Act.

TITLE V—BUDGETARY EFFECTS

SEC. 4501. BUDGETARY EFFECTS.

(a) STATUTORY PAYGO SCORECARDS.—The budgetary effects of division B and each succeeding division shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

(b) SENATE PAYGO SCORECARDS.—The budgetary effects of division B and each succeeding division shall not be entered on any PAYGO scorecard maintained for purposes of section 4106 of H. Con. Res. 71 (115th Congress).

(c) CLASSIFICATION OF BUDGETARY EFFECTS.—Notwithstanding Rule 3 of the Budget Scorekeeping Guidelines set forth in the joint explanatory statement of the committee of conference accompanying Conference Report 105–217 and section 250(c)(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, the budgetary effects of division B and each succeeding division shall not be estimated—

(1) for purposes of section 251 of such Act; and

(2) for purposes of paragraph (4)(C) of section 3 of the Statutory Pay-As-You-Go Act of 2010 as being included in an appropriation Act.

TITLE VI—NUTRITION AND COMMODITIES PROGRAMS

SEC. 4601. P–EBT PROGRAM EXTENSION.

Section 1101 of the Families First Coronavirus Response Act (Public Law 116–127; 7 U.S.C. 2011 note) is amended—

(1) in subsection (a)—

(A) by striking ''fiscal year 2020'' and inserting ''fiscal years 2020 and 2021''; and

(B) by inserting ''or has reduced the number of days or hours that students attend the school'' after ''school is closed'';

(2) in subsection (b), in the first sentence, by inserting ''and, as applicable, households with children eligible for assistance under subsection (h)'' after ''children'';

(3) in subsection (c), by inserting ''or has reduced the number of days or hours that students attend the school'' after ''school that is closed'';

(4) in subsection (f)—

(A) by striking ''To facilitate'' and inserting the following:

''(1) IN GENERAL.—To facilitate''; and

(B) by adding at the end the following:

''(2) SIMPLIFYING ASSUMPTIONS FOR SCHOOL YEAR 2020-2021.—A State agency may use simplifying assumptions and the best feasibly available data to provide benefits to and establish benefit levels and eligibility periods for eligible children and children eligible for assistance under subsection (h) for purposes of this section.'';

(5) by redesignating subsections (h) and (i) as subsections (i) and (j), respectively;

(6) by inserting after subsection (g) the following:

''(h) ASSISTANCE FOR CHILDREN IN CHILD CARE.—

''(1) IN GENERAL.—Beginning on October 1, 2020, subject to an approved State agency

plan under subsection (b) or an approved amendment to such a plan, in any case in which, during a public health emergency designation, a covered child care facility is closed or has reduced attendance or hours for at least 5 consecutive days, or 1 or more schools in the area of a covered child care facility are closed or have reduced attendance or hours for at least 5 consecutive days, each household containing at least 1 child enrolled in such a covered child care facility and the supplemental nutrition assistance program established under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.) shall be eligible to receive assistance, in accordance with paragraph (2), until covered child care facilities or schools in the area reopen or operate at full attendance and hours, as applicable, as determined by the State agency.

''(2) ASSISTANCE.—A household shall receive benefits under paragraph (1) in an amount that is equal to at least 1 breakfast and 1 lunch at the free rate for each child enrolled in a covered child care facility for each day that the child does not attend the facility because the facility is closed or operating with reduced attendance or hours.

''(3) STATE OPTION.—A State shall not be required to provide assistance under this subsection in order to provide assistance to eligible children under a State agency plan under subsection (b).'';

(7) in subsection (i) (as so redesignated)—

(A) in each of paragraphs (1) through (3), by inserting a paragraph heading, the text of which comprises the term defined in that paragraph;

(B) by redesignating paragraphs (1) through (3) as paragraphs (2), (4), and (5), respectively;

(C) by inserting before paragraph (2) (as so redesignated) the following:

''(1) COVERED CHILD CARE FACILITY.—The term 'covered child care facility' means—

''(A) an organization described in subparagraph (A) or (B) of section 17(a)(2) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(a)(2)); and

''(B) a family or group day care home.'';

(D) in paragraph (2) (as so redesignated), by inserting ''or reduced attendance or hours'' after ''closure'';

(E) by inserting after paragraph (2) (as so redesignated) the following:

''(3) FREE RATE.—The term 'free rate' means—

''(A) with respect to a breakfast, the rate of a free breakfast under the school breakfast program under section 4 of the Child Nutrition Act of 1966 (42 U.S.C. 1773); and

''(B) with respect to a lunch, the rate of a free lunch under the school lunch program under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.).''; and

(F) by adding at the end the following:

''(6) STATE.—The term 'State' has the meaning given the term in section 12(d) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1760(d)).''; and

(8) in subsection (j) (as so redesignated), by inserting ''(including all administrative expenses)'' after ''this section''.

SEC. 4602. EXTENDING CERTAIN WAIVER AUTHORITIES.

(a) NATIONAL SCHOOL LUNCH PROGRAM REQUIREMENT WAIVERS ADDRESSING COVID–19.—Section 2202(e) of the Families First Coronavirus Response Act (Public Law 116–127; 42 U.S.C. 1760 note) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2021''.

(b) PHYSICAL PRESENCE WAIVER UNDER WIC DURING CERTAIN PUBLIC HEALTH EMERGENCIES.—Section 2203(c) of the Families First Coronavirus Response Act (Public Law 116–127; 42 U.S.C. 1786 note) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2021''.

(c) ADMINISTRATIVE REQUIREMENTS WAIVER UNDER WIC.—Section 2204(c) of the Families First Coronavirus Response Act (Public Law 116–127) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2021''.

(d) FUNDING.—There are hereby appropriated, out of any funds in the Treasury not otherwise appropriated, such sums as may be necessary to carry out this section.

SEC. 4603. SNAP FLEXIBILITIES.

(a) EXTENSION OF EXISTING SNAP FLEXIBILITIES FOR COVID–19.—

(1) STATE OPTIONS.—

(A) A State agency (as defined in section 3(s) of the Food and Nutrition Act of 2008 (7 U.S.C. 2012(s))) shall have the option, without prior approval from the Secretary of Agriculture—

(i) to extend certification periods under section 3(f) of the Food and Nutrition Act of 2008 (7 U.S.C. 2012(f)) for not more than 6 months and adjust periodic report requirements under section 6(c)(1)(D)(i) of the Food and Nutrition Act of 2008 (7 U.S.C. 2015(c)(1)(D)(i)) for some or all participating households with certification periods set to expire or periodic reports due on or before June 30, 2021, consistent with the extensions and adjustments provided in the Food and Nutrition Service's April 22, 2020, blanket approval for extending certification and adjusting periodic reports, unless otherwise provided in this subparagraph;

(ii) to allow household reporting requirements under section 273.12(a)(5)(iii) of title 7 of the Code of Federal Regulations to satisfy the recertification requirements under section 273.14 of title 7 of the Code of Federal Regulations for some or all participating households with recertification periods set to expire on or before December 31, 2021; and

(iii) to adjust the interview requirements under sections 273.2 and 273.14(b) of title 7 of the Code of Federal Regulations for some or all household applications or recertifications through June 30, 2021, consistent with the adjustments provided in the Food and Nutrition Service's March 26, 2020, blanket approval for adjusting interview requirements, unless otherwise provided in this subparagraph.

(B) Not later than 5 days after exercising an option under subparagraph (A), a State agency shall notify the Secretary of Agriculture in writing of the option exercised, the categories of households affected by the option, and the duration of such option.

(2) ADJUSTMENT.—The Secretary of Agriculture shall allow a State agency to suspend the requirements under sections 275.11(b)(1) and (2), 275.12, and 275.13 of title 7 of the Code of Federal Regulations from June 1, 2020, through September 30, 2021, consistent with the waivers provided in the Food and Nutrition Service's April 30, 2020, blanket approval for waiver of quality control reviews, unless otherwise provided in this paragraph.

(3) REPORT.—Section 2302 of the Families First Coronavirus Response Act (Public Law 116–127; 7 U.S.C. 2011 note) is amended by striking subsection (c) and inserting the following:

''(c) REPORT.—Not later than June 30, 2022, the Secretary of Agriculture shall submit, to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate, a report containing the following information:

''(1) A description of any information or data supporting State agency requests under this section and any additional measures that State agencies requested that were not approved by the Secretary of Agriculture;

''(2) An evaluation of the use of all waivers, adjustments, and other flexibilities in the operation of the supplemental nutrition assistance program (as defined in section 3 of the Food and Nutrition Act of 2008 (7 U.S.C. 2012)), in effect under this Act, the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.), or any other Act, to respond to the COVID–19 public health emergency; and

''(3) A recommendation of any additional waivers or flexibilities needed in the operation of the supplemental nutrition assistance program to respond to public health emergencies with pandemic potential.''.

(b) FUNDING.—There are hereby appropriated, out of any funds in the Treasury not otherwise appropriated, such sums as may be necessary to carry out this section.

SEC. 4604. PROHIBITION ON PAYMENTS TO FOSSIL FUEL REFINERS AND IMPORTERS.

(a) IN GENERAL.—The Secretary of Agriculture may not use any funds, facilities, or authorities of the Commodity Credit Corporation or the Department of Agriculture—

(1) to provide a payment to a refiner or importer (as those terms are defined in section 80.2 of title 40, Code of Federal Regulations (or successor regulations)); or

(2) to otherwise support, directly or indirectly, a refiner or importer (as so defined) in meeting any requirements under—

(A) the renewable fuel program under section 211(o) of the Clean Air Act (42 U.S.C. 7545(o)); or

(B) any other provision of law that requires the blending of fossil fuel with renewable fuel.

(b) The exclusion in (a) shall not apply to any payments or support to producers, refiners, or importers of biofuel (as defined in 7 U.S.C. 8101).

(c) MORATORIUM ON AUTHORITIES RELATING TO EXCHANGES OF AGRICULTURAL PRODUCTS FOR PETROLEUM PRODUCTS.—The authorities under the ninth and tenth sentences of section 4(h) of the Commodity Credit Corporation Charter Act (15 U.S.C. 714b(h)) (relating to the availability of agricultural products for the Secretary of Energy to exchange for petroleum products and the terms and conditions of those exchanges, respectively) shall not be used during the 180-day period beginning on the date of enactment of this Act.

DIVISION E—DEPARTMENT OF VETERANS AFFAIRS EXTENSIONS

SEC. 5001. SHORT TITLE.

This division may be cited as the ''Department of Veterans Affairs Expiring Authorities Act of 2020''.

TITLE I—EXTENSIONS OF AUTHORITIES RELATING TO HEALTH CARE

SEC. 5101. EXTENSION OF AUTHORITY FOR COLLECTION OF COPAYMENTS FOR HOSPITAL CARE AND NURSING HOME CARE.

Section 1710(f)(2)(B) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5102. EXTENSION OF REQUIREMENT TO PROVIDE NURSING HOME CARE TO CERTAIN VETERANS WITH SERVICE CONNECTED DISABILITIES.

Section 1710A(d) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5103. EXTENSION OF AUTHORITY FOR TRANSFER OF REAL PROPERTY.

Section 8118(a)(5) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5104. EXTENSION OF AUTHORITY FOR PILOT PROGRAM ON ASSISTANCE FOR CHILD CARE FOR CERTAIN VETERANS RECEIVING HEALTH CARE.

(a) EXTENSION OF AUTHORITY.—Subsection (e) of section 205 of the Caregivers and Veterans Omnibus Health Services Act of 2010

(Public Law 111–163; 124 Stat. 1144; 38 U.S.C. 1710 note) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

(b) AUTHORIZATION OF APPROPRIATIONS.—Subsection (h) of such section is amended by striking ''and 2020'' and inserting ''2020, 2021, and 2022''.

SEC. 5105. EXTENSION OF AUTHORIZATION OF APPROPRIATIONS FOR GRANTS TO VETERANS SERVICE ORGANIZATIONS FOR TRANSPORTATION OF HIGHLY RURAL VETERANS.

Section 307(d) of the Caregivers and Veterans Omnibus Health Services Act of 2010 (Public Law 111–163; 124 Stat. 1154; 38 U.S.C. 1710 note) is amended by striking ''2020'' and inserting ''2022''.

SEC. 5106. EXTENSION OF AUTHORITY FOR PILOT PROGRAM ON COUNSELING IN RETREAT SETTINGS FOR WOMEN VETERANS NEWLY SEPARATED FROM SERVICE.

(a) EXTENSION OF AUTHORITY.—Subsection (d) of section 203 of the Caregivers and Veterans Omnibus Health Services Act of 2010 (Public Law 111–163; 124 Stat. 1143; 38 U.S.C. 1712A note) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

(b) AUTHORIZATION OF APPROPRIATIONS.—Subsection (f) of such section is amended by striking ''and 2020'' and inserting ''2020, 2021, and 2022''.

SEC. 5107. EXTENSION OF AUTHORITY FOR PILOT PROGRAM ON GRADUATE MEDICAL EDUCATION AND RESIDENCY.

(a) IN GENERAL.—Subsection (d) of section 403 of the VA MISSION Act of 2018 (Public Law 115–182; 132 Stat. 1474; 38 U.S.C. 7302 note) is amended by striking ''August 7, 2024'' and inserting ''August 7, 2031''.

(b) TECHNICAL CORRECTION.—Subsection (a)(1) of such section is amended by striking ''authorized under'' and all that follows through the period at the end and inserting ''authorized under section 7302 of title 38, United States Code, at covered facilities.''.

SEC. 5108. INSPECTOR GENERAL OF THE DEPARTMENT OF VETERANS AFFAIRS REPORT ON ADMINISTRATION OF INTERNET WEBSITE ON STAFFING AND VACANCIES.

Not later than October 31, 2022, and October 31, 2024, and as frequently thereafter as the Inspector General of the Department of Veterans Affairs considers appropriate, the Inspector General shall—

(1) review the administration of the internet website required by section 505(a)(1) of the VA MISSION Act of 2018 (Public Law 115–182; 132 Stat. 1477; 38 U.S.C. 301 note);

(2) develop recommendations for such legislative or administrative action as the Inspector General considers appropriate for such administration; and

(3) submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on—

(A) the findings of the Inspector General with respect to the most recent review conducted under paragraph (1); and

(B) the recommendations most recently developed under paragraph (2).

SEC. 5109. EXTENSION OF TEMPORARY EXPANSION OF PAYMENTS AND ALLOWANCES FOR BENEFICIARY TRAVEL IN CONNECTION WITH VETERANS RECEIVING CARE FROM VET CENTERS.

Section 104(a) of the Honoring America's Veterans and Caring for Camp Lejeune Families Act of 2012 (Public Law 112–154; 126 Stat. 1169), as most recently amended by section 5 of the Department of Veterans Affairs Expiring Authorities Act of 2019 (Public Law 116–61; 133 Stat. 1116), is further amended by striking ''September 30, 2020'' and inserting ''September 30, 2021''.

TITLE II—EXTENSIONS OF AUTHORITIES RELATING TO BENEFITS

SEC. 5201. EXTENSION OF SPECIALLY ADAPTED HOUSING ASSISTIVE TECHNOLOGY GRANT PROGRAM.

Section 2108(g) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5202. EXTENSIONS OF CERTAIN PROVISIONS OF LAW.

(a) EXTENSION OF STUDENT VETERAN CORONAVIRUS RESPONSE ACT OF 2020.—Section 2 of the Student Veteran Coronavirus Response Act of 2020 (Public Law 116–140) is amended by striking ''December 21, 2020'' and inserting ''December 21, 2021''.

(b) EXTENSION OF PERIOD FOR CONTINUATION OF DEPARTMENT OF VETERANS AFFAIRS EDUCATIONAL ASSISTANCE BENEFITS FOR CERTAIN PROGRAMS OF EDUCATION CONVERTED TO DISTANCE LEARNING BY REASON OF EMERGENCIES AND HEALTH-RELATED SITUATIONS.—Section 1(b) of Public Law 116–128 is amended by striking ''December 21, 2020'' and inserting ''December 21, 2021''.

SEC. 5203. EXTENSION OF AUTHORITY TO MAINTAIN REGIONAL OFFICE IN THE REPUBLIC OF THE PHILIPPINES.

Section 315(b) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5204. EXTENSION OF AUTHORITY TO TRANSPORT INDIVIDUALS TO AND FROM DEPARTMENT OF VETERANS AFFAIRS FACILITIES.

Section 111A(a)(2) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5205. EXTENSION OF TEMPORARY INCREASE IN NUMBER OF JUDGES ON UNITED STATES COURT OF APPEALS FOR VETERANS CLAIMS.

Section 7253(i)(2) of title 38, United States Code, is amended by striking ''January 1, 2021'' and inserting ''January 1, 2026''.

TITLE III—EXTENSIONS OF AUTHORITIES RELATING TO HOMELESS VETERANS

SEC. 5301. EXTENSION OF AUTHORIZATION OF APPROPRIATIONS FOR HOMELESS VETERANS REINTEGRATION PROGRAMS.

Section 2021(e)(1)(F) of title 38, United States Code, is amended by striking ''2020'' and inserting ''2022''.

SEC. 5302. EXTENSION OF AUTHORIZATION OF APPROPRIATIONS FOR HOMELESS WOMEN VETERANS AND HOMELESS VETERANS WITH CHILDREN REINTEGRATION GRANT PROGRAM.

Section 2021A(f)(1) of title 38, United States Code, is amended by striking ''2020'' and inserting ''2022''.

SEC. 5303. EXTENSION OF AUTHORITY FOR REFERRAL AND COUNSELING SERVICES FOR VETERANS AT RISK OF HOMELESSNESS TRANSITIONING FROM CERTAIN INSTITUTIONS.

Section 2023(d) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5304. EXTENSION OF AUTHORITY FOR TREATMENT AND REHABILITATION FOR SERIOUSLY MENTALLY ILL AND HOMELESS VETERANS.

(a) GENERAL TREATMENT.—Section 2031(b) of title 38, United States Code, is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

(b) ADDITIONAL SERVICES AT CERTAIN LOCATIONS.—Section 2033(d) of such title is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5305. EXTENSION OF FUNDING FOR FINANCIAL ASSISTANCE FOR SUPPORTIVE SERVICES FOR VERY LOW-INCOME VETERAN FAMILIES IN PERMANENT HOUSING.

Section 2044(e)(1) of title 38, United States Code, is amended—

(1) in subparagraph (G), by striking ''through 2021'' and inserting ''and 2020''; and

(2) by adding at the end the following new subparagraph:

''(H) $420,000,000 for each of fiscal years 2021 and 2022.''.

SEC. 5306. EXTENSION OF FUNDING FOR GRANT PROGRAM FOR HOMELESS VETERANS WITH SPECIAL NEEDS.

Section 2061(d)(1) of title 38, United States Code, is amended by striking ''2020'' and inserting ''2022''.

TITLE IV—EXTENSIONS OF OTHER AUTHORITIES AND OTHER MATTERS

SEC. 5401. EXTENSION OF AUTHORIZATION OF APPROPRIATIONS FOR MONTHLY ASSISTANCE ALLOWANCE UNDER THE OFFICE OF NATIONAL VETERANS SPORTS PROGRAMS AND SPECIAL EVENTS.

Section 322(d)(4) of title 38, United States Code, is amended by striking ''2020'' and inserting ''2022''.

SEC. 5402. EXTENSION OF REQUIREMENTS TO PROVIDE REPORTS TO CONGRESS REGARDING EQUITABLE RELIEF IN THE CASE OF ADMINISTRATIVE ERROR.

Section 503(c) of title 38, United States Code, is amended by striking ''December 31, 2020'' and inserting ''December 31, 2022''.

SEC. 5403. EXTENSION AND AUTHORIZATION OF APPROPRIATIONS FOR ADAPTIVE SPORTS PROGRAMS FOR DISABLED VETERANS AND MEMBERS OF THE ARMED FORCES.

(a) AUTHORIZATION OF APPROPRIATIONS.—Subsection (g)(1) of section 521A of title 38, United States Code, is amended—

(1) by striking ''appropriated $8,000,000'' and inserting the following: ''appropriated amounts as follows:

''(A) $8,000,000 for each of fiscal years 2010 through 2020.''; and

(2) by adding at the end the following new subparagraph:

''(B) $16,000,000 for each of fiscal years 2021 and 2022.''.

(b) EXTENSION.—Subsection (l) of such section is amended by striking ''2020'' and inserting ''2022''.

SEC. 5404. EXTENSION OF AUTHORITY TO ENTER INTO AGREEMENT WITH THE NATIONAL ACADEMY OF SCIENCES REGARDING ASSOCIATIONS BETWEEN DISEASES AND EXPOSURE TO DIOXIN AND OTHER CHEMICAL COMPOUNDS IN HERBICIDES.

Section 3 of the Agent Orange Act of 1991 (Public Law 102–4; 38 U.S.C. 1116 note) is amended by striking ''September 30, 2020'' and inserting ''September 30, 2022''.

SEC. 5405. MODIFICATION AND EXTENSION OF AUTHORITY RELATING TO VENDEE LOAN PROGRAM.

Section 3733(a) of title 38, United States Code, is amended by adding at the end the following new paragraph:

''(8) During the period that begins on October 1, 2020, and ends on September 30, 2025, the Secretary shall carry out the provisions of this subsection as if—

''(A) the references in the first sentence of paragraph (1) to '65 percent' and 'may be financed by a loan' were references to '85 percent' and 'shall be of property marketed with financing to be', respectively;

''(B) the second sentence of paragraph (1) were repealed; and

''(C) the reference in paragraph (2) to 'September 30, 1990,' were a reference to 'September 30, 2025,'.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Indiana (Mr. VISCLOSKY) and the gentleman from Michigan (Mr. MOOLENAAR) each will control 20 minutes.

The Chair recognizes the gentleman from Indiana.

GENERAL LEAVE

Mr. VISCLOSKY. Madam Speaker, I ask unanimous consent that all Members have 5 legislative days within which to revise and extend their remarks and include extraneous materials on H.R. 8337, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Indiana?

There was no objection.

Mr. VISCLOSKY. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, obviously, we are here to consider a continuing resolution to allow the Federal Government to continue its operations, H.R. 8337.

At the outset of my remarks, I do want to thank the staff of the Appropriations Committee for all of their diligent work in some very difficult negotiations to bring us to this moment. People tend not to appreciate their good work.

This is a terrible way to govern the United States of America. I regret that I believe most of my colleagues here feel that a continuing resolution does no damage. It does serious damage to the agencies, to the budgeting process, and to fiscal discipline.

We should be having consideration today of 12 conference reports 8 days away from the beginning of the next fiscal year. The committee has completed consideration of all 12 appropriations bills. This body has passed 10 of them. Unfortunately, the other body has not acted at all. This resolution would take us to December 11.

I would point out there are anomalies in this continuing resolution. The majority have been submitted and requested by the Office of Management and Budget.

Additionally, there are some other anomalies where there were no government expenses to continue in 2020; for example, possible transition of cost; additionally, authorization legislation to continue programs which might expire on September 30, again, with the agreement of the authorizing committees.

Some Members are upset at this moment that items have not been included, but negotiations have taken place in good faith. We have an agreement, and I would ask for this body's support of the legislation.

Madam Speaker, I reserve the balance of my time.

Mr. MOOLENAAR. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I appreciate the gentleman from Indiana's concerns about the process, and I share those concerns as well. But as it goes, we are voting on this today.

By passing this short-term continuing resolution, we will provide critical support for farmers and ranchers, extend the nutrition program that has been a lifeline during this pandemic for low-income students who are out of school, ensure critical military operations continue, support vital transportation programs by extending the FAST Act, extend the National Flood Insurance Program, ensure that there are no delays in the Department of Veterans Affairs' electronic health records system, and allow agencies experiencing operational challenges during the pandemic continued funding.

So, I think it is important that we support this legislation and move forward, and hopefully, we will get to a better agreement as we continue negotiations.

Madam Speaker, I reserve the balance of my time.

Mr. VISCLOSKY. Madam Speaker, I do have requests for time, but no one is here, so I reserve the balance of my time at this moment.

Mr. MOOLENAAR. Madam Speaker, I continue to reserve the balance of my time.

Mr. VISCLOSKY. Madam Speaker, I see Ms. GRANGER, who is the ranking member on the full committee, might be seeking recognition, so I reserve the balance of my time.

The SPEAKER pro tempore. Without objection, the gentlewoman from Texas (Ms. GRANGER) will now control the time.

There was no objection.

Ms. GRANGER. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I rise today in support of H.R. 8337, a short-term continuing resolution through December 11.

The coronavirus pandemic has impacted virtually every aspect of American life. During this unprecedented time, it is more critical than ever that the Federal Government remain open and functioning. By passing this short-term CR, we will provide critical support for farmers and ranchers, extend the nutrition program that has been a lifeline during the pandemic for low-income students who are out of school, ensure critical military operations continue, support vital transportation programs by extending the FAST Act, extend the National Flood Insurance Program, ensure that there are no delays in the Department of Veterans Affairs' electronic health records system, and allow agencies experiencing operational challenges during the pandemic to continue functioning.

As an appropriator, it pains me to have to consider anything short of a full-year appropriations bill for the next fiscal year. But I remain hopeful that passing this CR will allow the government to continue operating and give the House and the Senate time to work out our differences after the election.

The alternative would have been an unnecessary and costly government shutdown. I think most sides agree that that would be devastating and disastrous for our economy, our national security, our veterans, and our public health.

I look forward to passing this bill today, moving it through the Senate, and sending it to the President's desk.

Madam Speaker, I reserve the balance of my time.

Mr. VISCLOSKY. Madam Speaker, I yield 1 minute to the gentleman from Maryland (Mr. HOYER), who is the majority leader.

Mr. HOYER. Madam Speaker, I thank the gentleman for yielding. I want to thank the ranking member for her leadership and always trying to be responsible. I thank Mr. VISCLOSKY and the Appropriations Committee for their work.

Madam Speaker, I rise in support of this agreement between the two parties and between the administration and the Congress. I am hopeful that it will pass overwhelmingly.

I have a little statement here, which I will submit. But because we want to get this business done, briefly I want to say to the Appropriations Committee: Congratulations for doing your work. I know there was controversy and everybody didn't support it, but we passed 10 of the appropriations bills almost 2 months ago, clearly sufficient time to have reached agreement and passed the appropriation bills, not a CR. A CR is a recognition of failure, failure to get our work done in a timely fashion, and I regret that.

I take some credit for passing 10 bills last year in June and 10 bills this year in July. I pushed the Appropriations Committee pretty hard. The staff worked hard; Members worked hard; and we got our bills done.

The Senate has not marked up a single bill in committee. There is no bill out of committee, and there are no bills on the floor, which means the Senate has essentially abandoned the appropriations process. Madam Speaker, that is not the way that the Congress of the United States ought to work.

I am for this. It was tough to get to. We have an agreement, and I am hopeful that everybody here will vote for it so we do not shut down the House of Representatives—excuse me—the Government of the United States, not just the House of Representatives.

That is, in my view, an unacceptable alternative ever, and we reached an agreement today. There was a lot of toing and fro-ing. A lot of people wanted this, a lot of people wanted that, a lot of people didn't want this, and a lot of people didn't want that. But we have an agreement that will keep the government functioning for the people from now until December 11.

What, Madam Speaker, I would urge is every one of us would from now until hopefully before December 11—that is a Friday, we are scheduled to break for Christmas and the holidays—I am hopeful that everyone will put their heads together to get the appropriations process done. We will probably do it in an omnibus, not single appropriations bills, which is not a good way to do it either.

When I joined the Appropriations Committee—and Mr. VISCLOSKY's Congressman that he worked for was on the committee with me—we passed one bill at a time.

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The Senate passed one bill at the time, and we came to conference and sat down together, the members of the Defense Subcommittee, the members of the Treasury-Postal Subcommittee, and the Labor, Health and Human Services, Education, and Related Agencies Subcommittee. We came together individually, and we worked out agreements between the two bodies.

That is the way it ought to work. It is not working that way. In a world of alternatives, this is the best we have, so we need to take it and keep the government funded.

Madam Speaker, I look forward to working with members of the Committee on Appropriations on both sides of the aisle to effect an omnibus that we can all be proud of. We won't all agree with all of it, but at least we can say, ''This is the work product of the people's House and the United States Senate,'' and pass it and feel that we have done our job for the people.

Madam Speaker, this Continuing Resolution is a result of the kind of cooperation that the American people expect from all of us.

It is also an example for how we ought to spend the coming days: Working toward an agreement on the HEROES Act to mitigate the continued economic fallout of the COVID–19 pandemic.

However, a Continuing Resolution is not how Congress should operate.

The House did its job, passing nearly all of the appropriation bills before the end of July.

The Republican-controlled Senate, however, failed to do its job.

It has not only failed to pass a single appropriation bill—it hasn't even introduced one.

Senate Republicans have had months to do their part to prevent a shutdown, yet here we are just eight days before the end of the fiscal year.

So, the House today will continue to do its job and govern responsibly by voting on this clean Continuing Resolution, which would keep the government open through December 11 at current funding levels.

I say this C.R. us ''clean'' not because it is free from anything other a date change, but because is reflects a bipartisan agreement between on the issues it contains.

This C.R. includes funding for highway and transit programs and the National Flood Insurance Program for another year.

It includes funding to protect seniors from rising Medicare premiums and to keep other vital health care priorities funded, such as community health centers.

It also includes funding for children who rely on school lunch programs to continue accessing nutritious meals.

I urge my colleagues on both sides of the aisle to join in passing this Continuing Resolution and showing the American people that we will not let their government go dark in the middle of a deadly pandemic and economic crisis.

I urge the Senate to pass this Continuing Resolution and get to work without delay on full-year appropriation bills.

The House is doing its job.

It's time for the Republican Senate to start doing its job as well.

Ms. GRANGER. Madam Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. RODNEY DAVIS).

Mr. RODNEY DAVIS of Illinois. Madam Speaker, I thank Ranking Member GRANGER. I appreciate her leadership during this trying time of a pandemic.

Madam Speaker, the last thing that the United States of America needs right now in the midst of a pandemic is a lapse in government funding that was set to expire at the end of this month. We need to do better when it comes to bipartisan agreements.

I am extremely disappointed that it took us this long to get the CCC, the Commodity Credit Corporation, replenished in this agreement and not held hostage by the majority. Our farmers, our producers in middle America that don't know what the market conditions are going to be like when they harvest their crops, they needed the certainty of knowing that the United States Government was going to fully fund the risk management programs that we put in place in a bipartisan way.

I also say thank you to those who were negotiating with Ranking Member GRANGER for also including language that provides the USDA with waiver authority that provides kids, our students, with free meals. That is something I have been working on over the last few weeks with my colleagues, Congresswoman SPANBERGER, Congressman BACON, and Congressman COSTA.

With this language, we now give our schools, families, and school nutrition professionals certainty throughout the upcoming school year in the midst of a pandemic where many may not be able to get that hot meal that they have been used to getting during the normal school year.

Madam Speaker, I look forward to working with Sonny Perdue, Secretary Perdue, and the USDA to implement this important language.

Madam Speaker, I urge a ''yes'' vote on this package.

Mr. VISCLOSKY. Madam Speaker, I yield 2 minutes to the gentlewoman from Ohio (Ms. KAPTUR), the chairwoman of the Energy and Water Subcommittee.

Ms. KAPTUR. Madam Speaker, I thank the gentleman for yielding.

Madam Speaker, it is with frustration that I rise in support of today's short-term continuing resolution and urge my colleagues to do so as well.

Once again, we need a means to keep the lights on for the Federal Government. The American people need and deserve more from their collective elected leaders. We are in the middle of an economic crisis and global pandemic when many are unsure they can keep their own lights on.

This 11-week extension puts our Federal agencies on autopilot. They can't begin new programs or respond to shifting priorities. It handcuffs our ability to respond to America's twin crises. It blocks investments in national security, fails to assist schools struggling to safely educate America's youth, fails the millions of families standing in long lines desperate for food assistance, and leaves millions questioning whether they even have a home tomorrow. It is a complete and total dereliction of duty for today and tomorrow.

The lack of action from our Senate colleagues, for the second year in a row, who deep-sixed their fiscal responsibility and leadership brought us here today. Our Senate friends have not even started the appropriation process. Not a single bill was considered in their committees. But they have time for another judicial confirmation.

Madam Speaker, I commend Chairwoman LOWEY's leadership, and Speaker PELOSI and Majority Leader HOYER for their prioritization and passage in the House of 10 of our 12 annual appropriations spending bills—all managed with the unknown and lack of Presidential leadership in establishing a Federal response to the COVID pandemic. The Senate achieved nothing. Nothing.

While Senate Republican strategists are squeezed in rooms over there thinking about a Supreme Court nominee before election day, they ignore their top responsibility of Congress' funding responsibility. Our Senate Republican colleagues have 11 weeks to draft and pass 12 bills, but not a single word on how they plan to achieve this monumental task.

The Energy and Water portion of the continuing resolution contains commonsense, necessary extensions to keep certain programs operating for the next 11 weeks.

Madam Speaker, I urge my colleagues to support this short-term resolution.

Ms. GRANGER. Madam Speaker, I reserve the balance of my time.

Mr. VISCLOSKY. Madam Speaker, I yield 2 minutes to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ), the chairwoman of the Military Construction-Veterans Affairs Subcommittee.

Ms. WASSERMAN SCHULTZ. Madam Speaker, I thank the gentleman for yielding.

Madam Speaker, I rise to support passage of the continuing resolution, but I am frustrated that we find ourselves here yet again.

Yet again, the Democratic House did its job. We passed our bills to fund most Federal agencies in July. It is now September. The end of the fiscal year is in 8 days, but Leader MCCONNELL and the Republican Senate have not moved a single one of the 12 appropriations bills that we are supposed to pass every year.

As an Appropriations subcommittee chair, I feel compelled to call out this gross dereliction of duty. A CR is obviously not ideal. But the bill before us

today keeps government functioning and includes fixes to facilitate coronavirus relief, which we should have done completely separately and more significantly.

The bill allows the Small Business Administration to continue to process disaster loans, which are a lifeline for many struggling small businesses. It allows FEMA access to fiscal year 2021 funding for the Disaster Relief Fund, to allow them to respond to emergencies and natural disasters.

I am particularly proud that we increase funding for the Veterans Electronic Health Record Modernization to support the increased number of deployments of the modernized system at planned sites going into fiscal year 2021, ensuring the 10-year modernization remains on schedule and on budget.

Notably, the bill also includes legislation to prevent USCIS employees from being furloughed and allow the agency to continue doing its job: adjudicating applications for work visas, asylum, and citizenship, even if that job has been greatly hindered by Trump and his enablers. The bill also includes reporting requirements to ensure accountability.

Democrats also worked hard all day today in order to secure $8 billion in vital funding for nutrition assistance. It is absurd that we even had to fight to get Republicans to agree to an expansion of free meals for food-insecure children, but here we are.

Madam Speaker, finally, let's be clear. The fact that we are passing a CR without having already passed an additional COVID stimulus bill represents cruelty and gross incompetence of the highest order.

In May, the House passed the HEROES Act. We did our job. We need to keep the government open, but we also need additional COVID relief for the American people.

Ms. GRANGER. Madam Speaker, I reserve the balance of my time.

Mr. VISCLOSKY. Madam Speaker, I have no further requests for time on our side, and I reserve the balance of my time.

Ms. GRANGER. Madam Speaker, I have no other speakers, and I yield back the balance of my time.

Mr. VISCLOSKY. Madam Speaker, I simply ask our colleagues to support the continuing resolution, and I, too, yield back the balance of my time.

Ms. LEE of California. Madam Speaker, I am disappointed that we have to do this, pass a stop gap Continuing Resolution. But it must be done. The alternative is to shut down the government while our people are worried about their health, their jobs and their homes.

Under Chairwoman LOWEY's leadership, the House did its job. We passed ten appropriations bills this summer, doing our jobs to meet the needs of the American people. We did this even in the face of a pandemic which forced us to adopt novel ways of working. Meanwhile, the other body has not marked up even one bill.

People across the country are waiting for their government to take action. Action to fight the pandemic. Action to take belated action to dismantle systemic racism in our society. Action to end endless wars. Action just to do our most fundamental job of keeping the government running.

I urge my colleagues to support this continuing resolution.

Ms. JACKSON LEE. Madam Speaker, as a senior member of the Committees on the Judiciary, on Homeland Security, and on the Budget, I rise in support of H.R. 8337, a bill that provides funding to continue the operations of the federal government through December 11, 2020, and avoids a wasteful and irresponsible shutdown, and also the underlying bill.

The House, led by the Democratic majority, did its job, passing 10 of the 12 appropriations bills earlier this year but Senate Republicans failed to hold a single markup of appropriations bills, making it necessary to pass this Continuing Resolution to avert a shutdown that would only further damage our economy.

Throughout the 116th Congress, House Democrats have worked to deliver results for the American people, passing legislation to address each pillar of the ''For The People'' agenda: lower health care costs, higher wages by rebuilding America, and cleaning up corruption and strengthening our Democracy.

And over the past two years, under the leadership of Speaker Pelosi, the House has passed nearly 600 bills, including legislation to lower health care and prescription drug prices, raise wages, advance economic and retirement security, end gun violence, act on the climate crisis, protect Dreamers, and strengthen voting rights.

For example, in this Congress the House has passed and sent to the Senate the following major legislative bills:

H.R. 1, For The People Act;

H.R. 2, Moving Forward Act;

H.R. 3, The Elijah E. Cummings Lower Drug Costs Now Act;

H.R. 4, Voting Rights Advancement Act

H.R. 5, Equality Act;

H.R. 6, The American Dream & Promise Act;

H.R. 7, Paycheck Fairness Act;

H.R. 8, Bipartisan Background Checks Act;

H.R. 9, Climate Action Now Act;

H.R. 582, Raise the Wage Act;

H.R. 1425, Patient Protection and Affordable Care Enhancement Act;

H.R. 1585, Violence Against Women Reauthorization Act; and

H.R. 7120, George Floyd Justice in Policing Act.

These along with many, many others are among the 340 bills sitting on Majority Leader McConnell's desk awaiting Senate action.

Madam Speaker, in truth the Republican-controlled Senate has been missing in action for much of the 116th Congress.

Whether it the urgent need to fortify our election systems from confirmed foreign interference, notably from Vladimir Putin's Russia, or lower prescription drugs prices and expanding and protecting the right of all Americans to affordable, accessible, high quality health care, fixing our broken immigration system, or holding a wayward Executive to account, has failed American people in its basic duty to promote the general welfare and provide for the common defense.

Nowhere is this more apparent than its failure to take up and vote on the HEROES Act passed by the House in May of this year to address the devastating budgetary and fiscal impacts of the COVID–19 pandemic which the President exacerbated by his incompetent response to the crisis.

The numbers are heartbreaking.

As of September 21, 2020, the number of lives lost to COVID–19 has passed another grim milestone and now exceeds 200,000.

As of September 20, 2020, there were 6,812,470 cases of COVID–19, which along with the number of lives lost leads the world.

When President Obama left office on January 20, 2017, unemployment was at 4.7 percent; today, due to the mismanagement of the COVID–19 pandemic by President Trump and Republicans, unemployment is nearly double at 8.4 percent.

When Trump took office in January 2017, there were 241,000 initial unemployment insurance (UI) claims for the week ending January 28, 2017 and at the beginning of the 116th Congress in January 2019: there were 236,000 initial UI claims.

Today, due to the mismanagement of the COVID–19 pandemic by President Trump and Republicans, there were 860,000 initial UI claims for the week ending September 12, 2020.

Approximately 30 million Americans have lost the job they had just months ago because of this Administration's ineptitude and cavalier regard for the well-being of the American people.

Madam Speaker, during President Obama's last full year in office in 2016, the deficit was $585 billion but under the mismanagement of the current Administration, we have seen the deficit balloon nearly seven-fold to $3.3 trillion.

Continuing this Administration's unbroken chain of woe, in 2019, after repeated attempts by Republicans to undermine and sabotage the Affordable Care Act, there were 33.2 million uninsured Americans, 5 million more than when President Obama left office.

It has been estimated by reputable experts that from February 2020 through May 2020 alone, an estimated 5.4 million Americans became uninsured because of unprecedented job loss caused by the Republican mismanagement of this pandemic.

Given the wreckage to the economy and the damage to the lives and livelihoods of the American people, it is unconscionable that this Administration is pursuing a lawsuit to strike down the Affordable Care Act, which would take health care coverage away from 20 million Americans and take away protections for 132 million persons who have pre-existing conditions.

Madam Speaker, this country desperately needs and wants change.

While I believe that November 3, will herald that the change we need is coming, we must keep our ship of state afloat before we can right the course.

That is why I reluctantly support the Continuing Resolution that will be before us.

Madam Speaker, let me briefly list several of the programs vital to Americans that are protected or extended by H.R. 8337.

Section 103. Same Terms and Conditions for Continuing Appropriations as FY 2020.

Section 103 states that appropriations are under the same terms and conditions, including relevant authorities and prohibitions, as the fiscal year 2019 appropriations bills.

Section 106. End Date of CR.

Section 106 provides that the CR ends at the earlier of the enactment of a full-year appropriations bill or December 11, 2020.

Section 112. Restrictions on Furloughs or Termination of Employees.

Section 112 restricts furloughs or termination of employees due to lack of funds during the duration of a CR.

Section 113. Waiver Language for Intelligence Programs.

Section 113 provides waiver language for certain intelligence programs as well as agencies that operate under the State Department Basic Authorities Act and Foreign Relations Authorization Act.

Section 117. Summer EBT.

Section 117 allows the Food and Nutrition Service to spend at a higher rate during the CR to ensure the Summer EBT program is fully operational by May 2021.

Section 118. Commodity Supplemental Food Program.

Section 118 allows the Food and Nutrition Service to spend at a higher rate during the CR to provide supplemental USDA foods to low-income seniors (age 60 and over) and to some low-income women, infants and children up to age six.

Section 124. Census Bureau Funding.

Section 124 specifies the rate of funding during the period of the continuing resolution for the Census Bureau's Periodic Censuses and Programs account and the 2020 Decennial Census Program.

Section 129. Extension for District of Columbia Voucher School Accreditation.

Section 129 allows District of Columbia voucher schools an additional year to be accredited and therefore remain in the program. The accrediting process requires in-school visits, which are not happening during the coronavirus.

Section 130. District of Columbia Local Funds

Section 130 allows the District of Columbia to spend FY 2021 funds received from local tax revenues and other non-Federal sources in the amount and for the programs and activities provided in DC's FY 2021 Budget Act.

Section 131. Additional Funding for Presidential Inauguration Activities

Section 131 provides additional funding to the District of Columbia for activities related to the Presidential Inauguration.

Section 132. Increased Flexibility to Process Certain SBA Loans.

Section 132 allows the Small Business Administration flexibility to spend at the rate necessary to accommodate potential demand increases for commitments for 7(a) business loans and for the Small Business Investment Company (SBIC) program.

Section 133. Increased Flexibility to Process SBA Disaster Loans.

Section 133 allows a higher spending rate for the Small Business Administration to continue to process and service new and existing disaster loans, particularly given the increased demand.

Section 134. Additional Funding for Presidential Transition Office Space.

Section 134 provides funding for Presidential transition services including the provision of office space suitable for staff to support the ingoing and outgoing administrations.

Section 139. Extension of Certain Bankruptcy Judgeships.

Section 139 extends the term of certain bankruptcy judgeships.

Section 140. Extension of Authority to Provide Paid Leave.

Section 140 extends the authority to allow reimbursement to qualifying contractors for the costs of providing paid leave to employees during the pandemic.

Section 145. Disaster Relief Fund (DRF).

Section 145 allows the Federal Emergency Management Agency to access the entire DRF appropriation for fiscal year 2021 under the continuing resolution as necessary to respond to declared disasters.

Section 146. National Flood Insurance Program (NFIP).

Section 146 continues the authorization for the NFIP through September 30, 2021.

Section 149. Maintaining Funding for the TANF and Child Care Entitlement to States Programs.

Section 149 extends funding for the Temporary Assistance for Needy Families program and the Child Care Entitlement to States program during the period of the continuing resolution. The extension will allow HHS to make first-quarter payments to States.

Section 152. Extending Availability of Funding for NIH multiyear research grants.

Section 152 extends the availability of funding for multiyear research grants supported by the National Institutes of Health that were interrupted in fiscal year 2020 by COVID–19 and would have expired at the end of the fiscal year.

Section 161. Technical Correction on Veterans Benefits.

Section 161 provides a technical correction to the Fiscal Year 2021 advance appropriation provided in division F of Public Law 116–94 for the Department of Veterans Affairs Compensation and Pensions account, to ensure that funds for veterans' benefits may remain available until expended.

Section 162. Increasing Veterans Electronic Health Record Modernization Funding.

Section 162 increases the funding available to the Veterans Electronic Health Record Modernization during the period of the continuing resolution to successfully deploy the health record system at planned sites during the first fiscal quarter.

Section 163. Providing Funding for the Veterans Canteen Service.

Section 163 allows a transfer of funds from the CARES Act to maintain the operations of the Veterans Canteen Service.

Section 169. National Infrastructure Investments (BUILD).

Section 169 assists state, local, and tribal governments and other applicants who were awarded BUILD grants in fiscal years 2017 and 2018, Section 169 provides increased flexibilities by extending obligation deadlines.

Section 172. Housing for the Elderly.

Section 172 allows HUD to obligate funding under the CR formula for Housing for the Elderly programs at a rate for operations necessary to maintain project rental assistance for the elderly and to continue the Integrated Wellness in Supportive Housing (IWISH) demonstration program.

Section 2101. Community Health Centers, National Health Service Corps, and Teaching health centers that operate graduate medical education.

Section 2101 extends funding for Community Health Centers, National Health Service Corps, and the Teaching Health Centers Graduate Medical Education Program through December 11, 2020.

Section 2102. Diabetes programs.

Section 2102 extends funding for the Special Diabetes Program and the Special Diabetes Program for Indians through December 11, 2020.

Section 2203. Extension of funding outreach and assistance for low-income programs.

Section 2203 extends funding through December 11, 2020 for low-income Medicare beneficiary outreach, enrollment, and education activities provided through State Health Insurance Assistance Programs, Area Agencies on Aging, Aging and Disability Resource Centers, and the National Center for Benefits and Outreach and Enrollment.

Section 2302. Extension of spousal impoverishment protections.

Section 2302 extends protections against impoverishment for the spouses of individuals receiving home- and community-based services (HCBS) through December 11, 2020.

Section 2303. Delay of DSH reductions.

Section 2303 delays implementation of the allotment reductions for Medicaid disproportionate share hospitals through December 11, 2020.

Section 2304. Extension of Community Mental Health Services Demonstration Program.

Section 2304 extends the authorization for the certified community behavioral health clinics demonstration through December 11, 2020.

Finally, Division B of the bill contains provisions in the jurisdiction of the Committee on Transportation and Infrastructure, including a one-year extension for surface transportation programs at fiscal year 2020 levels and provisions shoring up the Airport and Airway Trust Fund.

I strongly support this legislation and urge all Members to join me in voting for its passage.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Indiana (Mr. VISCLOSKY) that the House suspend the rules and pass the bill, H.R. 8337.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Ms. GRANGER. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 359, nays 57, answered ''present'' 1, not voting 14, as follows:

[Roll No. 198]

YEAS—359

Abraham	Beyer	Burgess
Adams	Bilirakis	Bustos
Aderholt	Bishop (GA)	Butterfield
Aguilar	Bishop (NC)	Calvert
Allen	Bishop (UT)	Carbajal
Allred	Blumenauer	Cárdenas
Amodei	Blunt Rochester	Carson (IN)
Arrington	Bonamici	Carter (GA)
Axne	Bost	Carter (TX)
Bacon	Boyle, Brendan F.	Cartwright
Baird	Brady	Case
Balderson	Brindisi	Casten (IL)
Barr	Brooks (IN)	Castor (FL)
Barragán	Brown (MD)	Castro (TX)
Bass	Brownley (CA)	Chabot
Beatty	Buchanan	Cheney
Bera	Bucshon	Chu, Judy
Bergman		Cicilline

Cisneros
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Cole
Collins (GA)
Comer
Conaway
Connolly
Cook
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crawford
Crenshaw
Crist
Crow
Cuellar
Cunningham
Curtis
Davids (KS)
Davidson (OH)
Davis (CA)
Davis, Danny K.
Davis, Rodney
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Doyle, Michael F.
Emmer
Engel
Escobar
Eshoo
Espaillat
Evans
Ferguson
Finkenauer
Fitzpatrick
Fleischmann
Fletcher
Flores
Fortenberry
Foster
Foxx (NC)
Frankel
Fudge
Gabbard
Gallego
Garamendi
Garcia (CA)
García (IL)
Garcia (TX)
Gianforte
Gibbs
Golden
Gomez
Gonzalez (OH)
Gonzalez (TX)
Gottheimer
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al (TX)
Grijalva
Guest
Guthrie
Haaland
Hagedorn
Harder (CA)
Harris
Hartzler
Hastings
Hayes
Heck
Herrera Beutler
Higgins (NY)
Hill (AR)
Himes
Holding
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Hudson
Huffman
Huizenga
Hurd (TX)
Jackson Lee
Jacobs
Jayapal
Jeffries
Johnson (GA)
Johnson (LA)
Johnson (OH)
Johnson (SD)
Johnson (TX)
Joyce (OH)
Joyce (PA)
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
King (NY)
Kinzinger
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Kustoff (TN)
LaMalfa
Lamb
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Lesko
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lucas
Luetkemeyer
Luján
Luria
Lynch
Malinowski
Maloney, Sean
Marchant
Matsui
McAdams
McBath
McCarthy
McCaul
McCollum
McEachin
McGovern
McHenry
McKinley
McNerney
Meeks
Meng
Mfume
Miller
Mitchell
Moolenaar
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Murphy (NC)
Nadler
Napolitano
Neal
Neguse
Newhouse
Norcross
Nunes
O'Halleran
Omar
Palazzo
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Pence
Perlmutter
Peters
Peterson
Phillips
Pingree
Pocan
Porter
Posey
Pressley
Price (NC)
Quigley
Raskin
Reed
Rice (NY)
Richmond
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rooney (FL)
Rose (NY)
Rose, John W.
Rouda
Rouzer
Roybal-Allard
Ruiz
Ruppersberger
Rush
Rutherford
Ryan
Sánchez
Sarbanes
Scalise
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Shimkus
Simpson
Sires
Slotkin
Smith (NE)
Smith (NJ)
Smith (WA)
Smucker
Soto
Spanberger
Speier
Stanton
Stefanik
Stevens
Stewart
Stivers
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tipton
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Turner
Underwood
Upton
Van Drew
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walorski
Wasserman Schultz
Waters
Watkins
Watson Coleman
Webster (FL)
Welch
Wenstrup
Westerman
Wexton
Wild
Williams
Wilson (FL)
Womack
Woodall
Yarmuth
Young
Zeldin

NAYS—57

Amash
Armstrong
Babin
Banks
Biggs
Brooks (AL)
Buck
Budd
Burchett
Cline
Cloud
DesJarlais
Duncan
Estes
Fulcher
Gaetz
Gallagher
Gohmert
Gooden
Gosar
Green (TN)
Griffith
Grothman
Hern, Kevin
Hice (GA)
Higgins (LA)
Hollingsworth
Jordan
Keller
King (IA)
LaHood
Lamborn
Long
Loudermilk
Massie
Mast
McClintock
Mooney (WV)
Norman
Olson
Palmer
Rice (SC)
Roy
Sensenbrenner
Smith (MO)
Spano
Steil
Steube
Taylor
Tiffany
Timmons
Walker
Waltz
Weber (TX)
Wilson (SC)
Wittman
Yoho

ANSWERED ''PRESENT''—1

Ocasio-Cortez

NOT VOTING—14

Byrne
Dunn
Kelly (PA)
Maloney, Carolyn B.
Marshall
Meuser
Mullin
Perry
Reschenthaler
Riggleman
Stauber
Thompson (PA)
Thornberry
Wright

□ 2014

Mr. OLSON changed his vote from ''yea'' to ''nay.''

Mr. NEGUSE changed his vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Chu, Judy (Takano)
DeSaulnier (Matsui)
Engel (Pallone)
Frankel (Clark (MA))
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Hayes (Courtney)
Huffman (Thompson (CA))
Jayapal (Raskin)
Kildee (Butterfield)
Kim (Davids (KS))
Kind (Beyer)
Kirkpatrick (Gallego)
Langevin (Lynch)
Lawrence (Raskin)
Lawson (FL) (Evans)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Jeffries)
Lowenthal (Beyer)
Lowey (Tonko)
Meng (Clark (MA))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Napolitano (Correa)
Payne (Wasserman Schultz)
Pingree (Clark (MA))
Pocan (Raskin)
Porter (Wexton)
Richmond (Fudge)
Rooney (FL) (Beyer)
Roybal-Allard (Cárdenas)
Rush (Underwood)
Serrano (Jeffries)
Speier (Scanlon)
Watson Coleman (Pallone)
Welch (McGovern)
Wilson (FL) (Adams)

AUTHORIZATION TO AWARD MEDAL OF HONOR TO SERGEANT FIRST CLASS ALWYN C. CASHE FOR ACTS OF VALOR DURING OPERATION IRAQI FREEDOM

Ms. KENDRA S. HORN of Oklahoma. Madam Speaker, I ask unanimous consent that the Committee on Armed Services be discharged from further consideration of the bill (H.R. 8276) to authorize the President to posthumously award the Medal of Honor to Alwyn C. Cashe for acts of valor during Operation Iraqi Freedom, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore (Mrs. FLETCHER). Is there objection to the request of the gentlewoman from Oklahoma?

There was no objection.

The text of the bill is as follows:

H.R. 8276

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. AUTHORIZATION TO AWARD MEDAL OF HONOR TO SERGEANT FIRST CLASS ALWYN C. CASHE FOR ACTS OF VALOR DURING OPERATION IRAQI FREEDOM.

(a) WAIVER OF TIME LIMITATIONS.—Notwithstanding the time limitations specified in section 7274 of title 10, United States Code, or any other time limitation with respect to the awarding of certain medals to persons who served in the Armed Forces, the President may award the Medal of Honor under section 7271 of such title to Sergeant First Class Alwyn C. Cashe for the acts of valor described in subsection (b).

(b) ACTS OF VALOR DESCRIBED.—The acts of valor referred to in subsection (a) are the actions of Sergeant First Class Alwyn C. Cashe on October 17, 2005, as a member of the Army serving in Iraq in support of Operation Iraqi Freedom, for which he was posthumously awarded the Silver Star.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

WOMEN'S HISTORY AND NINETEENTH AMENDMENT CENTENNIAL QUARTER DOLLAR COIN PROGRAM ACT

Mr. CLEAVER. Madam Speaker, I ask unanimous consent that the Committee on Financial Services be discharged from further consideration of the bill (H.R. 1923) to amend title 31, United States Code, to require the Secretary of the Treasury to mint and issue quarter dollars in commemoration of the Nineteenth Amendment, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The text of the bill is as follows:

H.R. 1923

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Women's History and Nineteenth Amendment Centennial Quarter Dollar Coin Program Act''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) The tireless and passionate efforts of the suffragists, their supporters, and other stakeholders contributed to the movement to grant and protect the right of all women to vote.

(2) On August 26, 1920, after a long campaign by suffragists across the country, the United States Constitution was amended

with the 19th Amendment, granting women the right to vote.

(3) On June 24, 1924, all Native Americans were granted citizenship, and by extension the right to vote.

(4) In 1948, the legal victories of Native American veterans granted protections for the right of all Native men and women to vote.

(5) On June 27, 1952, the Immigration and Nationality Act of 1952 was enacted, granting citizenship to all individuals of Asian descent, and by extension, the right to vote.

(6) Enactment of the Voting Rights Act of 1965 on August 6, 1965, granted Black women protections to overcome the legal barriers that prevented many from exercising their right to vote even though all Blacks had been granted citizenship in 1868 with ratification of the 14th Amendment.

(7) On August 6, 1975, the amendments to the reauthorization of the Voting Rights Act of 1965 removed language barriers to mitigate discrimination against Hispanic, Asian, and Native American voters.

(8) It was not until March 29, 1961, when the 23rd Amendment passed that women in Washington, DC, were allowed to vote in all elections.

(9) Women's history and the movement for women's rights that the suffragists began extends beyond ratification of the Nineteenth Amendment.

(10) August 26, 2020, marks the centennial of the day that women were granted the right to vote in America.

SEC. 3. ISSUANCE OF COINS COMMEMORATING THE NINETEENTH AMENDMENT.

(a) AMENDMENT TO NATIONAL SITES QUARTER DOLLAR PROGRAM.—Subsection (t) of section 5112 of title 31, United States Code, is amended—

(1) in paragraph (1)(A), by striking ''Notwithstanding the fourth sentence of subsection (d)(1) and subsection (d)(2)'' and inserting ''Subject to paragraph (8), and notwithstanding the fourth sentence of subsection (d)(1) and subsection (d)(2)'';

(2) by striking paragraph (7) and inserting the following:

''(7) PERIOD OF ISSUANCE.—Subject to paragraph (2), the program established under this subsection shall continue in effect until a national site in each State has been honored and shall terminate not later than March 31, 2021.''; and

(3) by striking paragraph (8) and inserting the following:

''(8) DESIGNS STARTING ON JANUARY 1, 2021.—

''(A) TRANSITION PERIOD.—The design of the quarter dollar from January 1, 2021, to March 31, 2021, shall be as follows:

''(i) On January 1, 2021, the design shall be the final design of the national sites program established by this subsection.

''(ii) On a date selected by the Secretary that is not earlier than January 15, 2021, and not later than March 31, 2021, the design shall be the first design selected pursuant to the program described in subsection (x).

''(B) DESIGN AFTER END OF PROGRAM.—As of April 1, 2021, the design of the quarter dollar shall be in accordance with subsection (x).''.

(b) ISSUANCE OF COINS COMMEMORATING THE NINETEENTH AMENDMENT.—Section 5112 of title 31, United States Code, is amended by adding at the end the following:

''(x) REDESIGN AND ISSUANCE OF QUARTER DOLLARS COMMEMORATING THE RATIFICATION OF THE NINETEENTH AMENDMENT.—

''(1) REDESIGN BEGINNING IN 2021.—Notwithstanding the fourth sentence of subsection (d)(1) and subsection (d)(2), quarter dollars issued during the period beginning on the date described in subsection (t)(8)(A)(ii) and ending on the date described in paragraph (8) shall have designs on the reverse selected in accordance with this subsection.

''(2) NINETEENTH AMENDMENT QUARTER DOLLAR DESIGN REQUIREMENTS.—

''(A) FLEXIBILITY WITH REGARD TO PLACEMENT OF INSCRIPTIONS.—Notwithstanding subsection (d)(1), the Secretary may select a design for quarter dollars described in paragraph (1) in which—

''(i) the inscription described in the second sentence of subsection (d)(1) appears on the reverse side of any such quarter dollars; and

''(ii) any inscription described in the third sentence of subsection (d)(1) or the designation of the value of the coin appears on the obverse side of any such quarter dollars.

''(B) SINGLE PROMINENT AMERICAN WOMAN.—Notwithstanding subsection (d)(1), the design on the reverse of each coin issued under this subsection shall—

''(i) be emblematic of the accomplishments and contributions of a prominent woman who was a resident of a State, the District of Columbia, or a territory;

''(ii) bear the name of the prominent woman and the State, District of Columbia, or territory; and

''(iii) bear other appropriate inscriptions.

''(3) ISSUANCE OF COINS DURING EACH YEAR.—

''(A) IN GENERAL.—The designs for the quarter dollar coins issued during each year of the period referred to in paragraph (1) shall be emblematic of the accomplishments and contributions of a prominent woman from a maximum of 5 States, the District of Columbia, or territories.

''(B) ORDER OF ISSUANCE.—The quarter dollar coins issued during each year of the period referred to in paragraph (1) shall be issued in alphabetical order of the area represented, starting with Alabama.

''(C) NUMBER OF EACH OF COIN DESIGNS IN EACH YEAR.—The Secretary shall prescribe the number of quarter dollars which shall be issued with each of the designs selected for each year.

''(4) SELECTION OF DESIGN.—

''(A) IN GENERAL.—Each of the designs required under this subsection for quarter dollar coins shall—

''(i) be determined by the Secretary after consultation with the Commission of Fine Arts;

''(ii) be reviewed by the Citizens Coinage Advisory Committee; and

''(iii) honor or commemorate a woman who has made significant contributions to the lives of individuals of the applicable State, the District of Columbia, or territory.

''(B) SELECTION AND APPROVAL PROCESS.—Designs for quarter dollars may be submitted in accordance with the design selection and approval process developed by the Secretary.

''(C) PARTICIPATION.—The Secretary shall include in design development, to the greatest extent practicable, input by—

''(i) the chief executive of the applicable State, District of Columbia, or territory;

''(ii) engravers of the United States Mint;

''(iii) members of the general public from groups or organizations that are pursuing a mission focused on increasing the inclusion of women or improving the quality of life for women; and

''(iv) women's groups and organizations within the applicable State, the District of Columbia, or territory being commemorated that are pursuing a mission focused on increasing the inclusion of women, or improving the quality of life for women.

''(D) STANDARDS.—Because it is important that the Nation's coinage and currency bear dignified designs of which the citizens of the United States can be proud, the Secretary shall not select any frivolous or inappropriate design for any coin minted under this subsection.

''(E) PROHIBITION ON CERTAIN REPRESENTATIONS.—The design of any quarter dollar under this subsection may not include—

''(i) a head and shoulders portrait or bust of any person, living or dead;

''(ii) a portrait of a living person; or

''(iii) a depiction of an individual in a size such that the coin could be considered to be a '2-headed' coin.

''(F) RELEASE OF DESIGNS.—Not later than December 31, 2020, the Secretary shall identify the first 5 women to be honored.

''(5) TREATMENT AS NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136, all coins described under this subsection shall be considered to be numismatic items.

''(6) ISSUANCE.—

''(A) QUALITY OF COINS.—The Secretary may mint and issue such number of quarter dollars of each design selected under paragraph (4) in uncirculated and proof qualities as the Secretary determines to be appropriate.

''(B) SILVER COINS.—Notwithstanding subsection (b), the Secretary may mint and issue such number of quarter dollars of each design selected under paragraph (4) as the Secretary determines to be appropriate, with a content of not less than 90 percent silver.

''(7) APPLICATION IN EVENT OF THE ADMISSION OF ADDITIONAL STATE.—If any additional State is admitted into the Union before the termination date described in paragraph (8), the Secretary may issue quarter dollar coins, in accordance with this subsection, with a design which is emblematic of such State during any 1 year of the period described in paragraph (1), in addition to the quarter dollar coins issued during such year in accordance with paragraph (3)(A).

''(8) TERMINATION DATE.—The authority to mint quarter dollar coins pursuant to this subsection shall terminate on December 31 of the year in which the final State or territory has been commemorated with a design pursuant to paragraph (3).

''(9) DESIGNS AFTER END OF PROGRAM.—On the first day of the year following the year of the date described in paragraph (8)—

''(A) the design on the obverse of the quarter dollar shall revert to the same design containing an image of President Washington in effect for the quarter dollar before the institution of the 50-State quarter dollar program; and

''(B) notwithstanding the fourth sentence of subsection (d)(1), the design on the reverse of the quarter dollar shall contain an image of General Washington crossing the Delaware River prior to the Battle of Trenton.

''(10) DEFINITIONS.—In this subsection:

''(A) The term 'territory' means the Commonwealth of Puerto Rico, Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands.

''(B) The term 'resident', with respect to a State, the District of Columbia, or a territory, means that a woman resided in such State, the District of Columbia, or such territory for a period of at least 1 consecutive year.

''(y) SILVER BULLION INVESTMENT PRODUCT.—

''(1) IN GENERAL.—The Secretary shall strike and make available for sale such number of bullion coins as the Secretary determines to be appropriate that are exact duplicates of the quarter dollars issued under subsection (x), each of which shall—

''(A) have a diameter of 3.0 inches and weigh 5.0 ounces;

''(B) contain .999 fine silver;

''(C) have incused into the edge the fineness and weight of the bullion coin;

''(D) bear an inscription of the denomination of such coin, which shall be 'quarter dollar'; and

''(E) not be minted or issued by the United States Mint as so-called 'fractional' bullion

coins or in any size other than the size described in subparagraph (A).

''(2) AVAILABILITY FOR SALE.—Bullion coins minted under paragraph (1) shall become available for sale no sooner than the first day of the calendar year in which the circulating quarter dollar coins of which such bullion coins are a duplicate are issued.''.

SEC. 4. COLLECTION AND RECOGNITION PROGRAM.

(a) IN GENERAL.—Not later than April 1, 2020, the Secretary of the Treasury shall initiate a program to promote the collection of, and recognition of the subjects of, the coins authorized under the amendments made by this Act.

(b) STUDY REQUIRED.—The Secretary shall conduct a study on the progress of the program described in subsection (a).

(c) REPORT.—The Secretary shall submit a report to the Congress on the results of the study conducted pursuant to subsection (b).

AMENDMENT OFFERED BY MR. CLEAVER

Mr. CLEAVER. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will report the amendment.

The Clerk read as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Circulating Collectible Coin Redesign Act of 2020''.

SEC. 2. REDESIGNED CIRCULATING COLLECTIBLE COINS.

Section 5112 of title 31, United States Code, is amended by adding at the end the following new subsection:

''(x) REDESIGN AND ISSUANCE OF QUARTER DOLLARS EMBLEMATIC OF PROMINENT AMERICAN WOMEN AND COMMEMORATING THE 19TH AMENDMENT.—

''(1) REDESIGN OF QUARTER DOLLARS BEGINNING IN 2022.—

''(A) IN GENERAL.—Effective beginning January 1, 2022, notwithstanding the fourth sentence of subsection (d)(1) and subsection (d)(2), the Secretary of the Treasury shall issue quarter dollars that have designs on the reverse selected in accordance with this subsection which are emblematic of the accomplishment of a prominent American woman.

''(B) FLEXIBILITY WITH REGARD TO PLACEMENT OF INSCRIPTIONS.—Notwithstanding subsection (d)(1), the Secretary may select a design for quarter dollars referred to in subparagraph (A) in which—

''(i) the inscription described in the second sentence of subsection (d)(1) appears on the reverse side of any such quarter dollar; and

''(ii) any of the inscriptions described in the third sentence of subsection (d)(1) or the designation of the value of the coin appear on the obverse side of any such quarter dollar.

''(C) SINGLE PROMINENT AMERICAN WOMAN ON EACH QUARTER DOLLAR.—The design on the reverse side of each quarter dollar issued under this subsection shall be emblematic of the accomplishments and contributions of one prominent woman of the United States, and may include contributions to the United States in a wide spectrum of accomplishments and fields, including but not limited to suffrage, civil rights, abolition, government, humanities, science, space, and arts, and should honor women from ethnically, racially, and geographically diverse backgrounds.

''(D) ISSUANCE OF QUARTER DOLLARS EMBLEMATIC OF UP TO FIVE PROMINENT AMERICAN WOMEN EACH YEAR.—The designs for the quarter dollars issued during each year of the period of issuance described under paragraph (4) shall be emblematic of up to five prominent American women.

''(E) SELECTION OF PROMINENT AMERICAN WOMEN GENERALLY.—The selection of a prominent American woman to be featured under this subsection shall be made by the Secretary—

''(i) in accordance with a selection process developed by the Secretary;

''(ii) after soliciting recommendations from the general public for prominent women designs for quarter dollars; and

''(iii) in consultation with the Smithsonian Institution American Women's History Initiative, National Women's History Museum, and the Bipartisan Women's Caucus.

''(2) DESIGN GENERALLY.—The coins issued in accordance with this subsection shall meet the following design requirements—

''(A) IN GENERAL.—All designs under this subsection shall be selected by the Secretary, after consultation with the Commission of Fine Arts and review by the Citizens Coinage Advisory Committee.

''(B) OBVERSE.—The design on the obverse of the quarter dollars shall maintain a likeness of George Washington, and be designed in a manner, such as with incused inscriptions, so as to distinguish it from the obverse design used during the previous quarters program.

''(3) ISSUANCE OF COINS.—The Secretary shall prescribe, on the basis of such factors as the Secretary determines to be appropriate, the number of new designs during each year of the period of issuance, and the number of coins which shall be issued with each of the designs selected for such year.

''(4) PERIOD OF ISSUANCE.—

''(A) IN GENERAL.—The program established under this subsection shall continue in effect until the end of 2025.

''(B) CONTINUITY.—After 2025, the Secretary may continue to issue coins minted during the program but not yet issued.''.

SEC. 3. ISSUANCE OF REDESIGNED CIRCULATING COINS EMBLEMATIC OF THE UNITED STATES SEMIQUINCENTENNIAL.

Section 5112 of title 31, United States Code, is amended by adding at the end the following new subsection:

''(y) REDESIGN AND ISSUANCE OF COINS EMBLEMATIC OF THE UNITED STATES SEMIQUINCENTENNIAL.—

''(1) REDESIGN BEGINNING IN 2026.—

''(A) IN GENERAL.—

''(i) Notwithstanding the 4th, 5th, and 6th sentences of subsection (d)(1), the Secretary may change the design on any of the coins authorized under this section and minted for issuance during the one-year period beginning January 1, 2026, in celebration of the United States semiquincentennial.

''(ii) Notwithstanding the 2nd and 3rd sentences of subsection (d)(1), the Secretary may place the required inscriptions on either the obverse or reverse sides of the coins authorized for redesign under this subsection.

''(B) QUARTER DOLLARS.—The Secretary may issue quarter dollars in 2026 with up to five different designs emblematic of the United States semiquincentennial. One of the quarter dollar designs must be emblematic of a woman's or women's contribution to the birth of the Nation or the Declaration of Independence or any other monumental moments in American History.

''(C) DOLLARS.—The Secretary may, in addition to the coins produced under subsections (r) and (w), mint for issuance during the one-year period beginning January 1, 2026, $1 dollar coins with designs emblematic of the United States semiquincentennial.

''(D) DESIGNS AFTER END OF THE PROGRAM.—Beginning in 2027, any coin redesigned under this subsection shall revert to the immediately previous designs, with the exception of the quarter dollar and the half dollar, which shall bear designs in accordance with subsection (z).

''(E) REDESIGN DEFINITION.—A redesign authorized under this subsection shall not constitute a 'change' for purposes of subsection (d)(2).

''(2) SELECTION OF DESIGNS.—

''(A) IN GENERAL.—Each of the designs authorized under this subsection shall be selected by the Secretary after consultation with Commission of Fine Arts and review by the Citizens Coinage Advisory Committee.

''(B) DESIGN SELECTION PROCESS.—Designs shall be developed and selected in accordance with the design selection process developed by the Secretary in consultation with the United States Semiquincentennial Commission and with recommendations from the general public.''.

SEC. 4. ISSUANCE OF REDESIGNED QUARTER DOLLARS AND HALF DOLLARS EMBLEMATIC OF SPORTS PLAYED BY AMERICAN YOUTH.

Section 5112 of title 31, United States Code, is amended by adding at the end the following new subsection:

''(z) REDESIGN AND ISSUANCE OF QUARTER DOLLARS AND HALF DOLLARS EMBLEMATIC OF SPORTS PLAYED BY AMERICAN YOUTH.—

''(1) REDESIGN OF QUARTER DOLLARS BEGINNING IN 2027.—

''(A) IN GENERAL.—Effective beginning January 1, 2027, notwithstanding the fourth sentence of subsection (d)(1) and subsection (d)(2), the Secretary shall issue quarter dollars that have designs on the reverse selected in accordance with this subsection which are emblematic of sports played by American youth.

''(B) FLEXIBILITY WITH REGARD TO PLACEMENT OF INSCRIPTIONS.—Notwithstanding subsection (d)(1), the Secretary may select a design for quarter dollars referred to in subparagraph (A) in which—

''(i) the inscription described in the second sentence of subsection (d)(1) appears on the reverse side of any such quarter dollars; and

''(ii) any of the inscriptions described in the third sentence of subsection (d)(1) or the designation of the value of the coin appear on the obverse side of any such quarter dollars.

''(C) SINGLE SPORT ON EACH QUARTER DOLLAR.—The design on the reverse side of each quarter dollar issued under this subsection shall be emblematic of one sport played by American youth.

''(D) ISSUANCE OF QUARTER DOLLARS EMBLEMATIC OF UP TO FIVE SPORTS EACH YEAR.—The designs for the quarter dollars issued during each year of the period referred to in paragraph (5) shall be emblematic of up to five sports.

''(E) SELECTION OF SPORTS GENERALLY.—The Secretary shall select the sports to be honored during each year of the period referred to in paragraph (5) after appropriate outreach and consultation with the public.

''(2) REDESIGN OF HALF DOLLARS BEGINNING IN 2027.—

''(A) IN GENERAL.—Effective January 1, 2027, notwithstanding the fourth sentence of subsection (d)(1) and subsection (d)(2), the Secretary shall issue half dollars that have designs on the reverse selected in accordance with this subsection which are emblematic of a sport tailored to athletes with a range of disabilities, including physical impairment, vision impairment and intellectual impairment (referred to in this Act as a 'Paralympic' sport).

''(B) FLEXIBILITY WITH REGARD TO PLACEMENT OF INSCRIPTIONS.—Notwithstanding subsection (d)(1), the Secretary may select a design for half dollars referred to in subparagraph (A) in which—

''(i) the inscription described in the second sentence of subsection (d)(1) appears on the reverse side of any such half dollars; and

''(ii) any of the inscriptions described in the third sentence of subsection (d)(1) or the designation of the value of the coin appear on the obverse side of any such half dollars.

''(C) SINGLE PARALYMPIC SPORT ON EACH HALF DOLLAR.—The design on the reverse side of each half dollar issued under this subsection shall be emblematic of one Paralympic sport.

''(D) SELECTION OF SPORTS.—The selection of a Paralympic sport to be honored with a half dollar under this subsection shall be made by the Secretary after consultation with U.S. Paralympics.

''(3) DESIGN GENERALLY.—The coins issued in accordance with this subsection shall meet the following design requirements:

''(A) IN GENERAL.—All designs under this subsection shall be selected by the Secretary, after consultation with the Commission of Fine Arts and review by the Citizens Coinage Advisory Committee.

''(B) QUARTER DOLLAR OBVERSE.—The design on the obverse of the quarter dollars shall maintain a likeness of George Washington, and be designed in a manner so as to distinguish it from the obverse design used during the previous quarter dollars program.

''(C) HALF DOLLAR OBVERSE.—The design on the obverse of the half dollar shall maintain a likeness of John Kennedy, and be designed in a manner so as to distinguish it from the obverse design used on the current half dollar.

''(4) ISSUANCE OF COINS.—

''(A) QUARTER DOLLAR.—The quarter dollar coins bearing designs under this subsection shall be issued at the rate of up to 5 new designs during each year of the period of issuance described under paragraph (5).

''(B) HALF DOLLAR.—The half dollar coins bearing designs under this subsection shall be issued at the rate of 1 new design during each year of the period of issuance described under paragraph (5).

''(5) PERIOD OF ISSUANCE.—

''(A) IN GENERAL.—The program established under this subsection shall continue in effect until the end of 2030.

''(B) CONTINUITY.—After the date specified in subparagraph (A), the Secretary may continue to issue coins minted during the program but not yet issued.

''(6) ACCOMPANYING SPORTS MEDALS.—For every design of a coin honoring a sport issued under this subsection, the Secretary is authorized to design and issue one or more accompanying medals with designs emblematic of the sport honored with the issuance of the coin, and include a surcharge on the sale the medals sold in accordance with this paragraph, in an amount determined by the Secretary, in the Secretary's sole discretion, that may be used for the design and manufacture of the medals described in paragraph (7).

''(7) OLYMPIC MEDALS.—

''(A) IN GENERAL.—The Secretary is authorized to design and manufacture medals for award at the 2028 Olympic Games in Los Angeles, California.

''(B) WORKING STOCK.—The Secretary may use Treasury working gold and silver stock in the manufacture of the award medals produced under this subsection.

''(C) OLYMPIC & PARALYMPIC COMMITTEES.—The Secretary may provide the medals described in this paragraph to the United States Olympic & Paralympic Committee under terms and conditions established by the Secretary.

''(D) COOPERATIVE MARKETING AND PROMOTION OPPORTUNITIES.—The Secretary is encouraged to seek out cooperative marketing and promotion opportunities, including with the United States Olympic & Paralympic Committee, LA28, and United States Olympic and Paralympic Properties to promote the coins and medals produced under this section.

''(8) DESIGNS AFTER END OF PROGRAM.—Upon the completion or termination of the coin program under this subsection, the designs on the quarter dollar and half dollar shall be as follows:

''(A) QUARTER DOLLAR.—

''(i) OBVERSE.—The obverse of the quarter dollar shall bear a design containing a likeness of George Washington.

''(ii) REVERSE.—The reverse of the quarter dollar shall be of a design selected by the Secretary after consultation with the Commission of Fine Arts and review by the Citizens Coinage Advisory Committee.

''(B) HALF DOLLAR.—

''(i) OBVERSE.—The obverse of the half dollar shall bear a design containing a likeness of John Kennedy.

''(ii) REVERSE.—The reverse of the half dollar shall be of a design selected by the Secretary after consultation with the Commission of Fine Arts and review by the Citizens Coinage Advisory Committee.''.

SEC. 5. SILVER BULLION COINS.

Section 5112 of title 31, United States Code, is amended by replacing subsection (u) with the following revised subsection:

''(u) SILVER BULLION INVESTMENT PRODUCT.—

''(1) IN GENERAL.—The Secretary is authorized to strike and make available for sale such number of bullion coins as the Secretary determines to be appropriate that feature the designs of the quarter dollars and half dollars issued under subsections (x), (y), and (z), that—

''(A) have a diameter of 3.0 inches and weigh 5.0 ounces;

''(B) contain .999 fine silver;

''(C) have incused into the edge the fineness and weight of the bullion coin; and

''(D) bear an inscription of the denomination of such coins, such denominations to be determined by the Secretary as the Secretary determines to be appropriate.

''(2) FRACTIONALS.—The Secretary is authorized to mint and issue so-called 'fractional' silver bullion coins bearing the designs of the quarter dollars and half dollars issued under subsections (x), (y), and (z) in sizes, weights, fineness, and denominations, and with inscriptions, that the Secretary determines to be appropriate.

''(3) AVAILABILITY FOR SALE.—Should the Secretary exercise the Secretary's discretion to strike bullion coins under this subsection, the bullion coins minted under paragraph (1) shall become available for sale no sooner than the first day of the calendar year in which the corresponding circulating quarter dollar or half dollar is issued.

''(4) CONTINUITY.—Until the conclusion of the quarter dollar program authorized under subsection (t), the Secretary shall strike and make available for sale such number of bullion coins as the Secretary determines to be appropriate that are likenesses of the quarter dollars issued under subsection (t).''.

SEC. 6. CIRCULATING COLLECTIBLE STANDARDS AND GENERAL PROVISIONS.

Section 5112 of title 31, United States Code, is amended by adding at the end the following new subsection:

''(aa) STANDARDS AND GENERAL PROVISIONS FOR CIRCULATING COLLECTIBLE COINS UNDER SUBSECTIONS (X), (Y), AND (Z).—

''(1) PROHIBITION ON CERTAIN REPRESENTATIONS.—No head and shoulders portrait or bust of any person, living or dead, and no portrait of a living person may be included in the design on the reverse of any coin under subsections (x), (y), and (z).

''(2) TREATMENT AS NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136, all coins and medals minted under subsections (x), (y), and (z) shall be considered to be numismatic items.

''(3) ISSUANCE.—

''(A) QUALITY OF COINS.—The Secretary may mint and issue such number of coins of each design selected under subsections (x), (y), and (z) in uncirculated and proof qualities as the Secretary determines to be appropriate.

''(B) COORDINATION.—The Board of Governors of the Federal Reserve System and the Secretary shall take steps to ensure that an adequate supply of coins produced under subsections (x), (y), and (z) are available for commerce and collectors at such places and in such quantities as are appropriate.

''(C) NUMBER OF EACH COIN DESIGNS IN EACH YEAR.—Of the coins issued during each year of the period of issuance under subsections (x), (y), and (z), the Secretary shall prescribe, on the basis of such factors as the Secretary determines to be appropriate, the number of coins which shall be issued with each of the designs selected for such year.

''(D) SPECIAL INSCRIPTIONS OR SYMBOL ACROSS THE COINS.—The Secretary is encouraged to develop and include on any coin issued in accordance with subsections (x), (y), or (z), a unifying inscription, privy mark, or other symbol for that particular coin program.

''(4) LEGAL TENDER.—The coins minted under subsections (x), (y), and (z) shall be legal tender, as provided in section 5103.

''(5) MARKETING AND EDUCATIONAL CAMPAIGN.—In an effort to advance the collecting of the coins and medals authorized under subsections (x), (y), and (z), and numismatics in general, the Secretary may develop and execute a marketing, advertising, promotional, and educational program to promote the collecting of the coins and medals authorized under subsections (x), (y), and (z). As part of this program, the Secretary is encouraged to seek out appropriate cooperative marketing opportunities, and to develop ancillary derivative products beyond traditional numismatic products such as sports, women, and youth oriented products appropriate to the particular coin and medal program.

''(6) QUALITY OF MEDALS.—It is the sense of Congress that the medals authorized under subsection (z) be produced in high relief and, if feasible and cost effective, with surface treatments such as frosting and colorization.''.

SEC. 7. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

Mr. CLEAVER (during the reading). Madam Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The amendment was agreed to.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed.

The title of the bill was amended so as to read: ''A bill to amend title 31, United States Code, to require the Secretary of the Treasury to mint and issue certain circulating collectible coins, and for other purposes.''.

A motion to reconsider was laid on the table.

NEGRO LEAGUES BASEBALL CENTENNIAL COMMEMORATIVE COIN ACT

Mr. CLEAVER. Madam Speaker, I ask unanimous consent that the Committee on Financial Services be discharged from further consideration of the bill (H.R. 4104) to require the Secretary of the Treasury to mint a coin in commemoration of the 100th anniversary of the establishment of the Negro Leagues baseball, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The text of the bill is as follows:

H.R. 4104

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Negro Leagues Baseball Centennial Commemorative Coin Act''.

SEC. 2. FINDINGS.

The Congress finds the following:

(1) The year 2020 marks the 100th anniversary of the establishment of the Negro National League, a professional baseball league formed in response to African-American players being banned from the major leagues.

(2) On February 13, 1920, Andrew ''Rube'' Foster convened a meeting of 8 independent African-American baseball team owners at the Paseo YMCA in Kansas City, Missouri, to form a ''league of their own,'' establishing the Negro National League, the first successful, organized professional African-American baseball league in the United States.

(3) Soon, additional leagues formed in eastern and southern States.

(4) The Negro Leagues would operate for 40 years until 1960.

(5) The story of the Negro Leagues is a story of strong-willed athletes who forged a glorious history in the midst of an inglorious era of segregation in the United States.

(6) The passion of the Negro Leagues players for the National Pastime would not only change the game, but also the United States.

(7) The creation of the Negro Leagues provided a playing field for more than 2,600 African-American and Hispanic baseball players to showcase their world-class baseball abilities.

(8) The Negro Leagues introduced an exciting brand of baseball that was in stark contrast to Major League Baseball.

(9) A fast, aggressive style of play attracted black and white fans who sat together to watch those games at a time when it was virtually unheard of to interact socially in such a way.

(10) Negro Leagues baseball would become a catalyst for economic development across the United States in major urban centers such as Kansas City, St. Louis, New York, Memphis, Baltimore, Washington, DC, Chicago, and Atlanta.

(11) The Negro Leagues pioneered ''Night Baseball'' in 1930, 5 years before Major League Baseball, and would introduce game changing innovations such as shin guards and the batting helmet.

(12) The Negro Leagues helped make the National Pastime a global game as players from the Negro Leagues—

(A) were the first people from the United States to play in many Spanish-speaking countries; and

(B) introduced professional baseball to the Japanese in 1927.

(13) Jackie Robinson, a military veteran and former member of the Negro league's Kansas City Monarchs, would break Major League Baseball's color barrier on April 15, 1947, with the Brooklyn Dodgers, paving the way for other African-American and Hispanic baseball players.

(14) The Negro Leagues were born out of segregation yet would become a driving force for social change in the United States.

(15) The Negro Leagues produced future Major League Baseball stars, including Leroy ''Satchel'' Paige, Larry Doby, Willie Mays, Henry Aaron, Ernie Banks, and Roy Campanella.

(16) The Negro Leagues Baseball Museum was established in Kansas City, Missouri, in 1990—

(A) to save from extinction a precious piece of Americana and baseball history; and

(B) to use the many life lessons of the powerful story of triumph over adversity of Negro Leagues players to promote tolerance, diversity, and inclusion.

(17) In 2006, Congress granted National Designation to the Negro Leagues Baseball Museum, recognizing it as ''America's Home'' for Negro Leagues baseball history.

SEC. 3. COIN SPECIFICATIONS.

(a) DENOMINATIONS.—The Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue the following coins in commemoration of the 100th anniversary of the establishment of the Negro Leagues baseball:

(1) $5 GOLD COINS.—Not more than 50,000 $5 coins, which shall—

(A) weigh 8.359 grams;

(B) have a diameter of 0.850 inches; and

(C) contain not less than 90 percent gold.

(2) $1 SILVER COINS.—Not more than 400,000 $1 coins, which shall—

(A) weigh 26.73 grams;

(B) have a diameter of 1.500 inches; and

(C) contain not less than 90 percent silver.

(3) HALF-DOLLAR CLAD COINS.—Not more than 750,000 half-dollar coins which shall—

(A) weigh 11.34 grams;

(B) have a diameter of 1.205 inches; and

(C) be minted to the specifications for half-dollar coins contained in section 5112(b) of title 31, United States Code.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGN OF COINS.

(a) DESIGN REQUIREMENTS.—

(1) IN GENERAL.—The design of the coins minted under this Act shall be emblematic of the Negro Leagues Baseball Museum and its mission to promote tolerance, diversity, and inclusion.

(2) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act, there shall be—

(A) a designation of the value of the coin;

(B) an inscription of the year ''2021''; and

(C) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(b) SELECTION.—The design for the coins minted under this Act shall be—

(1) selected by the Secretary after consultation with the Negro Leagues Baseball Museum and the Commission of Fine Arts; and

(2) reviewed by the Citizens Coinage Advisory Committee.

SEC. 5. ISSUANCE OF COINS.

(a) QUALITY OF COINS.—Coins minted under this Act shall be issued in uncirculated and proof qualities.

(b) MINT FACILITIES.—Only 1 facility of the United States Mint may be used to strike any particular quality of the coins minted under this Act.

(c) PERIOD FOR ISSUANCE.—The Secretary may issue coins minted under this Act only during the period beginning on January 1, 2021, and ending on December 31, 2021.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins;

(2) the surcharge provided in section 7(a) with respect to such coins; and

(3) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary shall make bulk sales of the coins issued under this Act at a reasonable discount.

(c) PREPAID ORDERS.—

(1) IN GENERAL.—The Secretary shall accept prepaid orders for the coins minted under this Act before the issuance of such coins.

(2) DISCOUNT.—Sale prices with respect to prepaid orders under paragraph (1) shall be at a reasonable discount.

SEC. 7. SURCHARGES.

(a) IN GENERAL.—All sales of coins issued under this Act shall include a surcharge as follows:

(1) A surcharge of $35 per coin for the gold coins.

(2) A surcharge of $10 per coin for the silver coins.

(3) A surcharge of $5 per coin for the half-dollar coins.

(b) DISTRIBUTION.—Subject to section 5134(f) of title 31, United States Code, all surcharges received by the Secretary from the sale of coins issued under this Act shall be paid to the Negro Leagues Baseball Museum to fund educational and outreach programs and exhibits.

(c) AUDITS.—The Negro Leagues Baseball Museum shall be subject to the audit requirements of section 5134(f)(2) of title 31, United States Code, with regard to the amounts received under subsection (b).

(d) LIMITATION.—Notwithstanding subsection (a), no surcharge may be included with respect to the issuance under this Act of any coin during a calendar year if, as of the time of such issuance, the issuance of such coin would result in the number of commemorative coin programs issued during such year to exceed the annual 2 commemorative coin program issuance limitation under section 5112(m)(1) of title 31, United States Code. The Secretary of the Treasury may issue guidance to carry out this subsection.

SEC. 8. FINANCIAL ASSURANCES.

The Secretary shall take such actions as may be necessary to ensure that—

(1) minting and issuing coins under this Act will not result in any net cost to the United States Government; and

(2) no funds, including applicable surcharges, shall be disbursed to any recipient designated in section 7(b) until the total cost of designing and issuing all of the coins authorized by this Act (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping) is recovered by the United States Treasury, consistent with sections 5112(m) and 5134(f) of title 31, United States Code.

AMENDMENT OFFERED BY MR. CLEAVER

Mr. CLEAVER. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will report the amendment.

The Clerk read as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Negro Leagues Baseball Centennial Commemorative Coin Act''.

SEC. 2. FINDINGS.

The Congress finds the following:

(1) The year 2020 marks the 100th anniversary of the establishment of the Negro National League, a professional baseball league formed in response to African-American players being banned from the major leagues.

(2) On February 13, 1920, Andrew ''Rube'' Foster convened a meeting of 8 independent African-American baseball team owners at the Paseo YMCA in Kansas City, Missouri, to form a ''league of their own,'' establishing the Negro National League, the first successful, organized professional African-American baseball league in the United States.

(3) Soon, additional leagues formed in eastern and southern States.

(4) The Negro Leagues would operate for 40 years until 1960.

(5) The story of the Negro Leagues is a story of strong-willed athletes who forged a glorious history in the midst of an inglorious era of segregation in the United States.

(6) The passion of the Negro Leagues players for the ''National Pastime'' would not only change the game, but also the United States.

(7) The creation of the Negro Leagues provided a playing field for more than 2,600 African-American and Hispanic baseball players to showcase their world-class baseball abilities.

(8) The Negro Leagues introduced an exciting brand of baseball that was in stark contrast to Major League Baseball.

(9) A fast, aggressive style of play attracted black and white fans who sat together to watch those games at a time when it was virtually unheard of to interact socially in such a way.

(10) Negro Leagues baseball would become a catalyst for economic development across the United States in major urban centers such as Kansas City, St. Louis, New York, Memphis, Baltimore, Washington, DC, Chicago, and Atlanta.

(11) The Negro Leagues pioneered ''Night Baseball'' in 1930, 5 years before Major League Baseball, and would introduce game-changing innovations such as shin guards and the batting helmet.

(12) The Negro Leagues helped make the National Pastime a global game as players from the Negro Leagues—

(A) were the first people from the United States to play in many Spanish-speaking countries; and

(B) introduced professional baseball to the Japanese in 1927.

(13) Jackie Robinson, a military veteran and former member of the Negro Leagues' Kansas City Monarchs, would break Major League Baseball's color barrier on April 15, 1947, with the Brooklyn Dodgers, paving the way for other African-American and Hispanic baseball players.

(14) The Negro Leagues were born out of segregation yet would become a driving force for social change in the United States.

(15) The Negro Leagues produced future Major League Baseball stars, including Leroy ''Satchel'' Paige, Larry Doby, Willie Mays, Henry Aaron, Ernie Banks, and Roy Campanella.

(16) The Negro Leagues Baseball Museum was established in Kansas City, Missouri, in 1990—

(A) to save from extinction a precious piece of Americana and baseball history; and

(B) to use the many life lessons of the powerful story of triumph over adversity of Negro Leagues players to promote tolerance, diversity, and inclusion.

(17) In 2006, Congress granted National Designation to the Negro Leagues Baseball Museum, recognizing it as ''America's Home'' for Negro Leagues baseball history.

SEC. 3. COIN SPECIFICATIONS.

(a) DENOMINATIONS.—The Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue the following coins:

(1) $5 GOLD COINS.—Not more than 50,000 $5 coins, which shall—

(A) weigh 8.359 grams;

(B) have a diameter of 0.850 inches; and

(C) contain not less than 90 percent gold.

(2) $1 SILVER COINS.—Not more than 400,000 $1 coins, which shall—

(A) weigh 26.73 grams;

(B) have a diameter of 1.500 inches; and

(C) contain not less than 90 percent silver.

(3) HALF-DOLLAR CLAD COINS.—Not more than 400,000 half-dollar coins which shall—

(A) weigh 11.34 grams;

(B) have a diameter of 1.205 inches; and

(C) be minted to the specifications for half-dollar coins contained in section 5112(b) of title 31, United States Code.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of section 5134 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGNS OF COINS.

(a) DESIGN REQUIREMENTS.—

(1) IN GENERAL.—The designs of the coins minted under this Act shall be emblematic of the Negro Leagues Baseball Museum and its mission to promote tolerance, diversity, and inclusion.

(2) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act there shall be—

(A) a designation of the value of the coin;

(B) an inscription of the year ''2022''; and

(C) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(b) SELECTION.—The designs for the coins minted under this Act shall be—

(1) selected by the Secretary after consultation with the Negro Leagues Baseball Museum and the Commission of Fine Arts; and

(2) reviewed by the Citizens Coinage Advisory Committee.

SEC. 5. ISSUANCE OF COINS.

(a) QUALITY OF COINS.—Coins minted under this Act shall be issued in uncirculated and proof qualities.

(b) MINT FACILITIES.—Only 1 facility of the United States Mint may be used to strike any particular quality of the coins minted under this Act.

(c) PERIOD FOR ISSUANCE.—The Secretary may issue coins minted under this Act only during the 1-year period beginning on January 1, 2022.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins;

(2) the surcharge provided in section 7(a) with respect to such coins; and

(3) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary shall make bulk sales of the coins issued under this Act at a reasonable discount.

(c) PREPAID ORDERS.—

(1) IN GENERAL.—The Secretary shall accept prepaid orders for the coins minted under this Act before the issuance of such coins.

(2) DISCOUNT.—Sale prices with respect to prepaid orders under paragraph (1) shall be at a reasonable discount.

SEC. 7. SURCHARGES.

(a) IN GENERAL.—All sales of coins issued under this Act shall include a surcharge of—

(1) $35 per coin for the $5 coin;

(2) $10 per coin for the $1 coin; and

(3) $5 per coin for the half-dollar coin.

(b) DISTRIBUTION.—Subject to section 5134(f)(1) of title 31, United States Code, all surcharges received by the Secretary from the sale of coins issued under this Act shall be promptly paid by the Secretary to the Negro Leagues Baseball Museum for educational and outreach programs and exhibits.

(c) AUDITS.—The Negro Leagues Baseball Museum shall be subject to the audit requirements of section 5134(f)(2) of title 31, United States Code, with regard to the amounts received under subsection (b).

(d) LIMITATION.—Notwithstanding subsection (a), no surcharge may be included with respect to the issuance under this Act of any coin during a calendar year if, as of the time of such issuance, the issuance of such coin would result in the number of commemorative coin programs issued during such year to exceed the annual 2 commemorative coin program issuance limitation under section 5112(m)(1) of title 31, United States Code (as in effect on the date of the enactment of this Act). The Secretary of the Treasury may issue guidance to carry out this subsection.

SEC. 8. FINANCIAL ASSURANCES.

The Secretary shall take such actions as may be necessary to ensure that—

(1) minting and issuing coins under this Act will not result in any net cost to the United States Government; and

(2) no funds, including applicable surcharges, are disbursed to any recipient designated in section 7 until the total cost of designing and issuing all of the coins authorized by this Act (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping) is recovered by the United States Treasury, consistent with sections 5112(m) and 5134(f) of title 31, United States Code.

SEC. 9. MARKETING AND EDUCATIONAL CAMPAIGN.

The Secretary shall develop and execute a marketing, advertising, promotional, and educational program to promote the collecting of the coins authorized under this subsection.

SEC. 10. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

Mr. CLEAVER (during the reading). Madam Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The amendment was agreed to.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

1921 SILVER DOLLAR COIN ANNIVERSARY ACT

Mr. CLEAVER. Madam Speaker, I ask unanimous consent that the Committee on Financial Services be discharged from further consideration of the bill (H.R. 6192) to require the Secretary of the Treasury to honor the 100th anniversary of completion of coinage of the ''Morgan Dollar'' and the 100th anniversary of commencement of coinage of the ''Peace Dollar'', and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The text of the bill is as follows:

H.R. 6192

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''1921 Silver Dollar Coin Anniversary Act''.

SEC. 2. FINDINGS.

The Congress finds that following:

(1) In December 1921, the Peace silver dollar was approved by Treasury Secretary Andrew Mellon, replacing the Morgan silver dollar and commemorating the declaration of peace between the United States and the Imperial German government.

(2) The Peace silver dollar was minted in Philadelphia, Denver and San Francisco. The Morgan silver dollar was minted at Philadelphia, Denver, San Francisco, Carson City, and New Orleans.

(3) The Peace silver dollar was designed by Anthony de Francisci with the Goddess of Liberty on the obverse and a bald eagle clutching the olive branch (a symbol of peace) on the reverse. The Peace silver dollars were minted between 1921 to 1935.

(4) The Morgan silver dollar was designed by George T. Morgan and was minted from 1878 to 1904, and again in 1921. The obverse depicts a profile portrait of Lady Liberty and on the reverse, a heraldic eagle.

(5) The conversion from the Morgan silver dollar to the Peace silver dollar design in 1921 reflected a pivotal moment in American history. The Morgan silver dollar represents the country's westward expansion and industrial development in the late 19th century. The Peace silver dollar symbolizes the country's coming of age as an international power while recognizing the sacrifices made by her citizens in World War I and celebrating the victory and peace that ensued.

(6) These iconic silver dollars with vastly different representations of Lady Liberty and the American Eagle, reflect a changing of the guard in 1921 in the United States and therefore on the 100th anniversary must begin to be minted again to commemorate this significant evolution of American freedom.

SEC. 3. COIN SPECIFICATIONS.

(a) $1 SILVER COINS.—The Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue $1 coins in recognition of the 100th anniversary of completion of coinage of the Morgan dollar and the 100th anniversary of commencement of coinage of the Peace dollar, each of which shall—

(1) weigh 26.73 grams;

(2) have a diameter of 1.500 inches;

(3) contain not less than 90 percent silver; and

(4) have a reeded edge.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGN OF COINS.

(a) DESIGN REQUIREMENTS.—

(1) IN GENERAL.—The designs of the coins minted under this Act shall honor either the Morgan dollar or the Peace dollar, as follows—

(A) MORGAN DOLLAR.—The coins honoring the 100th anniversary of completion of coinage of the Morgan dollar shall have an obverse design and a reverse design that are renditions of the designs historically used on the obverse and reverse of the Morgan dollar.

(B) PEACE DOLLAR.—The coins honoring the 100th anniversary of commencement of coinage of the Peace dollar shall have an obverse design and a reverse design that are renditions of the designs historically used on the obverse and reverse of the Peace dollar.

(2) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act, there shall be—

(A) a designation of the value of the coin;

(B) an inscription of the year of minting or issuance; and

(C) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(b) SELECTION.—The design for the coins minted under this Act shall be—

(1) selected by the Secretary after consultation with the Commission of Fine Arts; and

(2) reviewed by the Citizens Coinage Advisory Committee.

SEC. 5. ISSUANCE OF COINS.

The Secretary may issue coins minted under this Act beginning on January 1, 2021.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins; and

(2) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary may make bulk sales of the coins issued under this Act at a reasonable discount.

SEC. 7. FINANCIAL ASSURANCES.

The Secretary of the Treasury shall take such actions as may be necessary to ensure that the minting and issuing of coins under the Act will not result in any net cost to the United States Government.

AMENDMENT OFFERED BY MR. CLEAVER

Mr. CLEAVER. Madam Speaker, I have an amendment at the desk.

The SPEAKER pro tempore. The Clerk will report the amendment.

The Clerk read as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''1921 Silver Dollar Coin Anniversary Act''.

SEC. 2. FINDINGS.

The Congress finds that following:

(1) In December 1921, the Peace silver dollar was approved by Treasury Secretary Andrew Mellon, replacing the Morgan silver dollar and commemorating the declaration of peace between the United States and the Imperial German government.

(2) The Peace silver dollar was minted in Philadelphia, Denver and San Francisco. The Morgan silver dollar was minted at Philadelphia, Denver, San Francisco, Carson City, and New Orleans.

(3) The Peace silver dollar was designed by Anthony de Francisci with the Goddess of Liberty on the obverse and a bald eagle clutching the olive branch (a symbol of peace) on the reverse. The Peace silver dollars were minted between 1921 to 1935.

(4) The Morgan silver dollar was designed by George T. Morgan and was minted from 1878 to 1904, and again in 1921. The obverse depicts a profile portrait of Lady Liberty and on the reverse, a heraldic eagle.

(5) The conversion from the Morgan silver dollar to the Peace silver dollar design in 1921 reflected a pivotal moment in American history. The Morgan silver dollar represents the country's westward expansion and industrial development in the late 19th century. The Peace silver dollar symbolizes the country's coming of age as an international power while recognizing the sacrifices made by her citizens in World War I and celebrating the victory and peace that ensued.

(6) These iconic silver dollars with vastly different representations of Lady Liberty and the American Eagle, reflect a changing of the guard in 1921 in the United States and therefore on the 100th anniversary must begin to be minted again to commemorate this significant evolution of American freedom.

SEC. 3. COIN SPECIFICATIONS.

(a) $1 SILVER COINS.—The Secretary of the Treasury (hereafter in this Act referred to as the ''Secretary'') shall mint and issue $1 coins in recognition of the 100th anniversary of completion of coinage of the Morgan dollar and the 100th anniversary of commencement of coinage of the Peace dollar, each of which shall—

(1) weigh 26.73 grams;

(2) have a diameter of 1.500 inches;

(3) contain not less than 90 percent silver; and

(4) have a reeded edge.

(b) LEGAL TENDER.—The coins minted under this Act shall be legal tender, as provided in section 5103 of title 31, United States Code.

(c) NUMISMATIC ITEMS.—For purposes of sections 5134 and 5136 of title 31, United States Code, all coins minted under this Act shall be considered to be numismatic items.

SEC. 4. DESIGN OF COINS.

(a) DESIGN REQUIREMENTS.—

(1) IN GENERAL.—The designs of the coins minted under this Act shall honor either the Morgan dollar or the Peace dollar, as follows—

(A) MORGAN DOLLAR.—The coins honoring the 100th anniversary of completion of coinage of the Morgan dollar shall have an obverse design and a reverse design that are renditions of the designs historically used on the obverse and reverse of the Morgan dollar.

(B) PEACE DOLLAR.—The coins honoring the 100th anniversary of commencement of coinage of the Peace dollar shall have an obverse design and a reverse design that are renditions of the designs historically used on the obverse and reverse of the Peace dollar.

(2) DESIGNATION AND INSCRIPTIONS.—On each coin minted under this Act, there shall be—

(A) a designation of the value of the coin;

(B) an inscription of the year of minting or issuance; and

(C) inscriptions of the words ''Liberty'', ''In God We Trust'', ''United States of America'', and ''E Pluribus Unum''.

(b) SELECTION.—The design for the coins minted under this Act shall be—

(1) selected by the Secretary after consultation with the Commission of Fine Arts; and

(2) reviewed by the Citizens Coinage Advisory Committee.

SEC. 5. ISSUANCE OF COINS.

The Secretary may issue coins minted under this Act beginning on January 1, 2021.

SEC. 6. SALE OF COINS.

(a) SALE PRICE.—The coins issued under this Act shall be sold by the Secretary at a price equal to the sum of—

(1) the face value of the coins; and

(2) the cost of designing and issuing the coins (including labor, materials, dies, use of machinery, overhead expenses, marketing, and shipping).

(b) BULK SALES.—The Secretary may make bulk sales of the coins issued under this Act at a reasonable discount.

SEC. 7. FINANCIAL ASSURANCES.

The Secretary of the Treasury shall take such actions as may be necessary to ensure that the minting and issuing of coins under the Act will not result in any net cost to the United States Government.

SEC. 8. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

Mr. CLEAVER (during the reading). Madam Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The amendment was agreed to.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

MERRILL'S MARAUDERS CONGRESSIONAL GOLD MEDAL ACT

Mr. CLEAVER. Madam Speaker, I ask unanimous consent that the Committee on Financial Services and the Committee on House Administration be discharged from further consideration of the bill (S. 743) to award a Congressional Gold Medal to the soldiers of the 5307th Composite Unit (Provisional), commonly known as ''Merrill's Marauders'', in recognition of their bravery and outstanding service in the jungles of Burma during World War II, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Missouri?

There was no objection.

The text of the bill is as follows:

S. 743

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Merrill's Marauders Congressional Gold Medal Act''.

SEC. 2. FINDINGS.

Congress finds that—

(1) in August 1943, President Franklin D. Roosevelt and other Allied leaders proposed the creation of a ground unit of the Armed Forces that would engage in a ''long-range penetration mission'' in Japanese-occupied Burma to—

(A) cut off Japanese communications and supply lines; and

(B) capture the town of Myitkyina and the Myitkyina airstrip, both of which were held by the Japanese;

(2) President Roosevelt issued a call for volunteers for ''a dangerous and hazardous mission'' and the call was answered by approximately 3,000 soldiers from the United States;

(3) the Army unit composed of the soldiers described in paragraph (2)—

(A) was officially designated as the ''5307th Composite Unit (Provisional)'' with the code name ''Galahad''; and

(B) later became known as ''Merrill's Marauders'' (referred to in this section as the ''Marauders'') in reference to its leader, Brigadier General Frank Merrill;

(4) in February 1944, the Marauders began their approximately 1,000-mile trek through the dense Burmese jungle with no artillery support, carrying their supplies on their backs or the pack saddles of mules;

(5) over the course of their 5-month trek to Myitkyina, the Marauders fought victoriously against larger Japanese forces through 5 major and 30 minor engagements;

(6) during their march to Myitkyina, the Marauders faced hunger and disease that were exacerbated by inadequate aerial resupply drops;

(7) malaria, typhus, and dysentery inflicted more casualties on the Marauders than the Japanese;

(8) by August 1944, the Marauders had accomplished their mission, successfully disrupting Japanese supply and communication lines and taking the town of Myitkyina and the Myitkyina airstrip, the only all-weather airstrip in Northern Burma;

(9) after taking Myitkyina, only 130 Marauders out of the original 2,750 were fit for duty and all remaining Marauders still in action were evacuated to hospitals due to tropical diseases, exhaustion, and malnutrition;

(10) for their bravery and accomplishments, the Marauders were awarded the ''Distinguished Unit Citation'', later redesignated as the ''Presidential Unit Citation'', and a Bronze Star; and

(11) though the Marauders were operational for only a few months, the legacy of their bravery is honored by the Army through the modern day 75th Ranger Regiment, which traces its lineage directly to the 5307th Composite Unit.

SEC. 3. CONGRESSIONAL GOLD MEDAL.

(a) AWARD AUTHORIZED.—The Speaker of the House of Representatives and the President pro tempore of the Senate shall make appropriate arrangements for the award, on behalf of Congress, of a single gold medal of appropriate design to the soldiers of the 5307th Composite Unit (Provisional) (referred to in this section as ''Merrill's Marauders''), in recognition of their bravery and outstanding service in the jungles of Burma during World War II.

(b) DESIGN AND STRIKING.—For the purposes of the award referred to in subsection (a), the Secretary of the Treasury (referred to in this Act as the ''Secretary'') shall strike a gold medal with suitable emblems, devices, and inscriptions, to be determined by the Secretary.

(c) SMITHSONIAN INSTITUTION.—

(1) IN GENERAL.—Following the award of the gold medal referred to in subsection (a) in honor of Merrill's Marauders, the gold medal shall be given to the Smithsonian Institution, where it shall be displayed as appropriate and made available for research.

(2) SENSE OF CONGRESS.—It is the sense of Congress that the Smithsonian Institution should make the gold medal received under paragraph (1) available for display elsewhere, particularly at other locations and events associated with Merrill's Marauders.

SEC. 4. DUPLICATE MEDALS.

Under such regulations as the Secretary may prescribe, the Secretary may strike and sell duplicates in bronze of the gold medal struck under section 3, at a price sufficient to cover the costs of the medals, including labor, materials, dies, use of machinery, and overhead expenses.

SEC. 5. STATUS OF MEDALS.

Medals struck pursuant to this Act are national medals for purposes of chapter 51 of title 31, United States Code.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

HONORING SUPREME COURT JUSTICE RUTH BADER GINSBURG

(Ms. KAPTUR asked and was given permission to address the House for 1 minute.)

Ms. KAPTUR. Madam Speaker, I rise today in reflection following the tragic loss of Supreme Court Justice Ruth Bader Ginsburg.

Justice Ginsburg not only has woven her legacy into the fabric of American law, but blossomed into a progressive cultural icon as a result of her dogged defense of women's rights and gender equality.

Her personality and words of deliberate intention seamlessly filled our courts with promise and purpose and our hearts with gratitude.

To say that her time as an attorney and Justice was revolutionary is an understatement. Her impact, her memory, her stature will never be forgotten and will be forever honored.

As early as the 1970s, Justice Ginsburg dedicated her career to the advancement of women's equality. Acting as an unprecedented firebrand for accessible, lawful, and equitable government, she became not only a woman I admire so fervently, but a woman that has become an installation of American regality.

When asked how she might wish to be remembered, she answered: ''Just as someone who did whatever she could, with whatever limited talent she had, to move society along in the direction I would like it to be for my children and grandchildren.''

I believe she rests knowing she accomplished just that.

Thank you, Justice Ginsburg. What shooting stars your precious life has yielded, giving guidance to human progress here at home and abroad.

A grateful nation says, thank you.

DEMOCRACY DEMANDS JOURNALISM

(Mr. JOHNSON of South Dakota asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOHNSON of South Dakota. Madam Speaker, it was Thomas Jefferson who said that, if he had to choose, he would prefer newspapers without government over government without newspapers.

Now, that is quite a dramatic statement, but I think it highlights how critical journalism is to holding government accountable. Indeed, as my lapel pin notes tonight, ''Democracy demands journalism.''

Now, journalism is not a comfortable duty. I suspect every good reporter has faced the wrath of a wronged politician and has had disgruntled viewers or readers or listeners cancel their patronage.

It is tempting for us to be among the disgruntled, but if we want a free society, we have to support a free press, one whose loyalty is not to partisan endeavors or to stoking division and conflict but, rather, is to the truth.

Yes, Madam Speaker, democracy does demand journalism.

SUPPORT THE CR TO KEEP THE GOVERNMENT ALIVE

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Madam Speaker, I rise enthusiastically to support H.R. 8337, because we did our job to keep the government open, but it is important for my constituents to know that we have supported the Supplemental Nutrition Assistance Program because of food insecurity.

We are keeping the Census Bureau funding. I just got through working with my constituents: Do your census. Do your census.

In addition, we got flexibility for SBA loans for our small businesses, and, of course, the SBA disaster loans because of flooding in my district right now.

This is what we are supposed to do. The flood insurance, we finally saved that. We know we need it.

Aid to children, we need that as well.

And, of course, housing for the elderly; and our community health centers are desperate in the midst of COVID–19.

Just a few hours ago, I went to visit the 20,000 flags evidencing 200,000 dead. I stood there. It was overwhelming.

The power of our failures in this administration of not doing a job, not testing, not telling people to wear their masks, not socially distancing: 200,000 Americans are dead.

Pass the HEROES Act now. Pass it now. Wear your masks to make a difference in the lives of Americans.

We must do our job. I support the CR to keep the government alive.

HONORING CHATHAM COUNTY COMMISSIONER JAMES HOLMES

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Madam Speaker, I rise today to remember and honor the life of Chatham County Commissioner James Holmes from Georgia's First Congressional District, who passed away on August 17.

Commissioner Holmes was a devoted public servant who served as Chatham County Commissioner for 16 years, and he was well known for his work with the Frank Callen Boys & Girls Club.

Everyone who knew him remembered him as always smiling and living his life to serve others.

Commissioner Holmes was known as ''Coach,'' since he was a basketball coach at Savannah State University.

He spent 35 years as a program director at the Frank Callen Boys & Girls Club, and he was extremely devoted to improving the lives of youth in his community.

Commissioner Holmes was one of the kindest, most devoted people who served his community selflessly. Everyone who knew him was touched by his compassion, generosity, and joy he always exuded.

Commissioner Holmes' impact on the Savannah community will remain for countless years to come. I am very grateful for the life that he lived.

My thoughts and prayers are with his family, friends, and all who knew him during the most difficult time.

LETTER SUBMITTED PURSUANT TO SECTION 4(b) OF HOUSE RESOLUTION 965, 116TH CONGRESS

COMMITTEE ON EDUCATION AND LABOR

COMMITTEE ON EDUCATION AND LABOR, HOUSE OF REPRESENTATIVES,

Washington, DC, September 22, 2020.

Hon. NANCY PELOSI,
Speaker of the House,
House of Representatives, Washington, DC.

DEAR SPEAKER PELOSI: Pursuant to section 4(b) of House Resolution 965, we are writing to inform you that the Committee on Education and Labor has met the requirements for conducting a business meeting outlined in regulation E.1 of the remote committee proceedings regulations, inserted into the Congressional Record on May 15, 2020, and that the Committee is prepared to conduct a remote meeting and permit remote participation.

In meeting these requirements, the Committee held a non-public business meeting rehearsal on September 22, 2020; a public full Committee hearing with remote participation on June 22, 2020; and a public full committee hearing with remote participation on June 15, 2020.

Sincerely,

Robert C. ''Bobby'' Scott, Chairman; Raul M. Grijalva; Marcia L. Fudge; Frederica S. Wilson; Mark Takano; Mark DeSaulnier; Susan A. Davis; Joe Courtney; Gregorio Kilili Camacho Sablan; Suzanne Bonamici.

Alma S. Adams, Ph.D.; Donald Norcross; Pramila Jayapal; Susan Wild; Lucy McBath; Lauren Underwood; Donna E. Shalala; Ilhan Omar; Joseph D. Morelle; Josh Harder.

Kim Schrier, M.D.; Jahana Hayes; Andy Levin; David J. Trone; Haley M. Stevens; Lori Trahan; Susie Lee; Joaquin Castro.

ADJOURNMENT

The SPEAKER pro tempore. Pursuant to section 4(b) of House Resolution 967, the House stands adjourned until 9 a.m. tomorrow for morning-hour debate and 11 a.m. for legislative business.

Thereupon (at 8 o'clock and 30 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, September 23, 2020, at 9 a.m. for morning-hour debate.

BUDGETARY EFFECTS OF PAYGO LEGISLATION

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, the attached estimate of the costs of H.R. 991, the Extension of the Caribbean Basin Economic Recovery Act, as amended, for printing in the CONGRESSIONAL RECORD.

ESTIMATE OF PAY-AS-YOU-GO EFFECTS FOR H.R. 991

	By fiscal year, in millions of dollars—												
	2020	2021	2022	2023	2024	2025	2026	2027	2028	2029	2030	2020–2025	2020–2030
Statutory Pay-As-You-Go Impact	0	15	15	16	17	18	35	43	45	47	−386	80	−136

Components may not sum to totals because of rounding.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, the attached estimate of the costs of H.R. 1923, the Circulating Collectible Coin Redesign Act of 2020, as amended, for printing in the CONGRESSIONAL RECORD.

ESTIMATE OF PAY-AS-YOU-GO EFFECTS FOR H.R. 1923

	By fiscal year, in millions of dollars—												
	2020	2021	2022	2023	2024	2025	2026	2027	2028	2029	2030	2020–2025	2020–2030
Statutory Pay-As-You-Go Impact	0	0	0	0	0	0	0	0	0	0	0	0	0

Components may not sum to totals because of rounding.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, the attached estimate of the costs of H.R. 4104, the Negro Leagues Baseball Centennial Commemorative Coin Act, as amended, for printing in the CONGRESSIONAL RECORD.

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ESTIMATE OF PAY-AS-YOU-GO EFFECTS FOR H.R. 4104

	By fiscal year, in millions of dollars—												
	2020	2021	2022	2023	2024	2025	2026	2027	2028	2029	2030	2020–2025	2020–2030
Statutory Pay-As-You-Go Impact	0	0	−5	−1	0	6	0	0	0	0	0	0	0

Components may not sum to totals because of rounding.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, the attached estimate of the costs of H.R. 6192, the 1921 Silver Dollar Coin Anniversaray Act, as amended, for printing in the CONGRESSIONAL RECORD.

ESTIMATE OF PAY-AS-YOU-GO EFFECTS FOR H.R. 6192

	By fiscal year, in millions of dollars—												
	2020	2021	2022	2023	2024	2025	2026	2027	2028	2029	2030	2020–2025	2020–2030
Statutory Pay-As-You-Go Impact	0	−4	−2	0	0	0	0	0	0	0	0	−6	−6

Components may not sum to totals because of rounding.

Pursuant to the Statutory Pay-As-You-Go Act of 2010 (PAYGO), Mr. YARMUTH hereby submits, prior to the vote on passage, for printing in the CONGRESSIONAL RECORD, that H.R. 6210, the Uyghur Forced Labor Prevention Act, as amended, would have no significant effect on the deficit, and therefore, the budgetary effects of such bill are estimated as zero.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5347. A letter from the Acting Director, Office of Personnel Management, transmitting the Office's final rule — Employment in the Excepted Service (RIN: 3206-AN30) received September 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

5348. A letter from the Acting Director, Office of Personnel Management, transmitting the Office's final rule — Federal Employees' Group Life Insurance Program: Clarifying Annual Rates of Pay and Amending the Employment Status of Judges of the United States Court of Appeals for Veterans Claims (RIN: 3206-AN52) received September 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

5349. A letter from the Acting Director, Office of Personnel Management, transmitting the Office's interim rule — Scheduling of Annual Leave by Employees Determined Necessary To Respond to Certain National Emergencies (RIN: 3206-AO04) received September 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

5350. A letter from the Director, Office of Regulations Policy and Management, Office of the Secretary (00REG), Department of Veterans Affairs, transmitting the Department's final rule — Specialty Education Loan Repayment Program (RIN: 2900-AQ63) received September 16, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Veterans' Affairs.

5351. A letter from the Director, Office of Regulations Policy and Management, Office of the Secretary (00REG), Department of Veterans Affairs, transmitting the Department's final rule — Provider-Based Requirements (RIN: 2900-AQ68) received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Veterans' Affairs.

5352. A letter from the Director, Legal Processing Division, Internal Revenue Service, transmitting the Service's IRB only rule — Update to Notice 2020-18, Additional Relief for Taxpayers Affected by Ongoing Coronavirus Disease 2019 Pandemic [Notice 2020-23] received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5353. A letter from the Director, Legal Processing Division, Internal Revenue Service, transmitting the Service's final rule — Changes to User Fees for Certain Letter Ruling and Determination Letter Requests Submitted to Employee Plans Rulings and Agreements, Effective January 4, 2021 [Announcement 2020-14] received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5354. A letter from the Director, Legal Processing Division, Internal Revenue Service, transmitting the Service's IRB only rule — Election of Alternative Minimum Funding Standards for Community Newspaper Plans [Notice 2020-60] received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5355. A letter from the Director, Legal Processing Division, Internal Revenue Service, transmitting the Service's final rule — Guidance on Excess Deferred Taxes Under the TCJA (Rev. Proc. 2020-39) received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

5356. A letter from the Director, Legal Processing Division, Internal Revenue Service, transmitting the Service's IRB only rule — Relief with Respect to Employment Tax Deadlines Applicable to Employers Affected by the Ongoing Conronavirus (COVID-19) Disease 2019 Pandemic [Notice 2020-65] received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. TAKANO: Committee on Veterans' Affairs. H.R. 3798. A bill to amend title 38, United States Code, to provide for limitations on copayments for contraception furnished by the Department of Veterans Affairs, and for other purposes; with an amendment (Rept. 116–529). Referred to the Committee of the Whole House on the state of the Union.

Mr. PALLONE: Committee on Energy and Commerce. H.R. 2468. A bill to amend the Public Health Service Act to increase the preference given, in awarding certain allergies and asthma-related grants, to States that require certain public schools to have allergies and asthma management programs, and for other purposes; with an amendment

(Rept. 116–530). Referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. GRAVES of Louisiana (for himself, Mr. MCCARTHY, Mr. SCALISE, Mr. WALDEN, Mr. BISHOP of Utah, Mr. GRAVES of Missouri, Mr. LUCAS, Ms. GRANGER, Mr. COLE, Mr. COMER, Mr. YOUNG, Ms. CHENEY, Mr. LAMBORN, Mr. JOHNSON of Louisiana, Mr. STAUBER, Mr. CURTIS, Mr. GOSAR, Mr. KEVIN HERN of Oklahoma, Mr. COOK, Mr. MCCLINTOCK, Mr. WESTERMAN, Mr. RODNEY DAVIS of Illinois, Mr. NEWHOUSE, Mr. CARTER of Georgia, Mrs. RADEWAGEN, Mr. FULCHER, and Mr. HICE of Georgia):

H.R. 8333. A bill to amend the National Environmental Policy Act of 1969 to clarify ambiguous provisions, align the Act with relevant case law, reflect modern technologies, optimize interagency coordination, and facilitate a more efficient, effective, and timely environmental review process; to the Committee on Natural Resources.

By Ms. KENDRA S. HORN of Oklahoma (for herself, Mr. GRIJALVA, Mr. CARSON of Indiana, Mr. THOMPSON of Mississippi, and Mr. SAN NICOLAS):

H.R. 8334. A bill to provide premium pay to educators at public schools for each hour of in-person work; to the Committee on Education and Labor.

By Ms. DEAN (for herself and Mr. NADLER):

H.R. 8335. A bill to amend the Revised Statutes of the United States and title 28, United States Code, to enhance compliance with requests for information pursuant to legislative power under Article I of the Constitution, and for other purposes; to the Committee on the Judiciary.

By Ms. GABBARD (for herself and Mr. MASSIE):

H.R. 8336. A bill to repeal certain war powers of the President under the Communications Act of 1934; to the Committee on Energy and Commerce.

By Mrs. LOWEY:

H.R. 8337. A bill making continuing appropriations for fiscal year 2021, and for other purposes; to the Committee on Appropriations, and in addition to the Committee on the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned. considered and passed.

By Mr. BRENDAN F. BOYLE of Pennsylvania:

H.R. 8338. A bill to change the date for regularly scheduled general elections for Federal office to the first Saturday and Sunday after the first Friday in November in every even-numbered year; to the Committee on House Administration.

By Ms. FUDGE (for herself and Mr. CÁRDENAS):

H.R. 8339. A bill to expand opportunities for pre-apprenticeships programs; to the Committee on Education and Labor.

By Mr. GREEN of Texas (for himself, Mr. GOHMERT, Mr. CRENSHAW, Mr. TAYLOR, Mr. GOODEN, Mr. WRIGHT, Mrs. FLETCHER, Mr. BRADY, Mr. MCCAUL, Mr. CONAWAY, Ms. GRANGER, Mr. THORNBERRY, Mr. WEBER of Texas, Mr. GONZALEZ of Texas, Ms. ESCOBAR, Mr. FLORES, Ms. JACKSON LEE, Mr. ARRINGTON, Mr. CASTRO of Texas, Mr. ROY, Mr. HURD of Texas, Mr. MARCHANT, Mr. WILLIAMS, Mr. BURGESS, Mr. CLOUD, Mr. CUELLAR, Ms. GARCIA of Texas, Ms. JOHNSON of Texas, Mr. CARTER of Texas, Mr. ALLRED, Mr. VEASEY, Mr. VELA, Mr. DOGGETT, Mr. BABIN, and Mr. OLSON):

H.R. 8340. A bill to designate the facility of the United States Postal Service located at 4110 Bluebonnet Drive in Stafford, Texas, as the ''Leonard Scarcella Post Office Building''; to the Committee on Oversight and Reform.

By Mr. GROTHMAN:

H.R. 8341. A bill to amend the Rehabilitation Act of 1973 to clarify the definition of competitive integrated employment; to the Committee on Education and Labor.

By Mr. HORSFORD (for himself, Mrs. LEE of Nevada, Mr. MCADAMS, Mr. PANETTA, and Mr. COX of California):

H.R. 8342. A bill to require the approval of Congress before explosive nuclear testing may be resumed; to the Committee on Armed Services, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KRISHNAMOORTHI (for himself, Mr. KING of New York, Mr. COHEN, Ms. NORTON, Ms. JOHNSON of Texas, Mr. DESAULNIER, and Mr. RASKIN):

H.R. 8343. A bill to amend the Federal Food, Drug, and Cosmetic Act to require the Secretary to refer each application for review of certain tobacco products to the Tobacco Products Scientific Advisory Committee, and for other purposes; to the Committee on Energy and Commerce.

By Ms. LOFGREN:

H.R. 8344. A bill to require the United States Postal Service to treat election mail as first-class mail and deliver such mail at no cost to the sender, and for other purposes; to the Committee on House Administration, and in addition to the Committee on Oversight and Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. PLASKETT (for herself and Mr. JOYCE of Ohio):

H.R. 8345. A bill to provide support for air carrier workers, and for other purposes; to the Committee on Financial Services, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. RESCHENTHALER (for himself, Mr. TRONE, and Ms. HOULAHAN):

H.R. 8346. A bill to protect federally-funded academic research from undue foreign influences and threats by better informing the academic and research communities about such influences and threats, and for other purposes; to the Committee on Education and Labor, and in addition to the Committees on Armed Services, Intelligence (Permanent Select), Foreign Affairs, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ROUDA (for himself, Mr. ALLRED, and Mr. LEVIN of Michigan):

H.R. 8347. A bill to amend title 18, United States Code, to prohibit the establishment of a corporation to conceal election contributions and donations by foreign nationals; to the Committee on the Judiciary.

By Mr. TONKO (for himself, Mr. SERRANO, Mr. ENGEL, Mrs. WATSON COLEMAN, Mr. PAYNE, Mr. VAN DREW, and Mr. MALINOWSKI):

H.R. 8348. A bill to direct restoration and protection of the New York-New Jersey watersheds and estuaries hydrologically connected to New York-New Jersey Harbor, and for other purposes; to the Committee on Natural Resources.

By Mr. VAN DREW:

H.R. 8349. A bill to provide hazard pay to frontline essential workers employed during the COVID-19 pandemic; to the Committee on Education and Labor, and in addition to the Committees on Ways and Means, Energy and Commerce, Veterans' Affairs, Oversight and Reform, and House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. JEFFRIES:

H. Res. 1135. A resolution electing certain Members to certain standing committees of the House of Representatives; considered and agreed to. considered and agreed to.

By Mr. CÁRDENAS (for himself, Ms. ADAMS, Mr. ALLRED, Ms. BARRAGÁN, Mrs. BEATTY, Mr. BERA, Mr. BEYER, Mr. BLUMENAUER, Ms. BLUNT ROCHESTER, Ms. BONAMICI, Mr. BRENDAN F. BOYLE of Pennsylvania, Mr. BROWN of Maryland, Ms. BROWNLEY of California, Mrs. BUSTOS, Mr. CARSON of Indiana, Ms. CASTOR of Florida, Mr. CASTRO of Texas, Ms. JUDY CHU of California, Ms. CLARK of Massachusetts, Ms. CLARKE of New York, Mr. CLEAVER, Mr. CORREA, Mr. COSTA, Mr. COX of California, Mr. CROW, Mr. DANNY K. DAVIS of Illinois, Mrs. DAVIS of California, Ms. DEAN, Ms. DEGETTE, Ms. DELAURO, Mrs. DINGELL, Mr. ENGEL, Ms. ESCOBAR, Ms. ESHOO, Mr. ESPAILLAT, Mr. EVANS, Mr. FOSTER, Ms. FRANKEL, Mr. GALLEGO, Ms. GARCIA of Texas, Mr. GARCÍA of Illinois, Mr. GOMEZ, Mr. GONZALEZ of Texas, Mr. GREEN of Texas, Ms. HAALAND, Mr. HARDER of California, Mr. HASTINGS, Mrs. HAYES, Mr. HIGGINS of New York, Mr. HIMES, Mr. HORSFORD, Ms. HOULAHAN, Mr. JEFFRIES, Ms. JOHNSON of Texas, Ms. KAPTUR, Mr. LANGEVIN, Ms. LEE of California, Mrs. LEE of Nevada, Mr. LEVIN of California, Mr. LEVIN of Michigan, Ms. LOFGREN, Mr. LOWENTHAL, Mr. LUJÁN, Mr. LYNCH, Mr. MALINOWSKI, Mrs. CAROLYN B. MALONEY of New York, Mr. SEAN PATRICK MALONEY of New York, Ms. MATSUI, Ms. MCCOLLUM, Mr. MCNERNEY, Ms. MENG, Ms. MOORE, Ms. MUCARSEL-POWELL, Mr. NADLER, Mrs. NAPOLITANO, Ms. NORTON, Mr. O'HALLERAN, Ms. OMAR, Mr. PALLONE, Mr. PANETTA, Mr. PERLMUTTER, Mr. PETERS, Mr. PRICE of North Carolina, Mr. RASKIN, Miss RICE of New York, Ms. ROYBAL-ALLARD, Mr. RUIZ, Mr. RUSH, Mr. SABLAN, Mr. SAN NICOLAS, Ms. SÁNCHEZ, Mr. SARBANES, Ms. SCHAKOWSKY, Mr. SERRANO, Ms. SEWELL of Alabama, Mr. SIRES, Mr. SOTO, Ms. SPEIER, Mr. SUOZZI, Mr. SWALWELL of California, Mr. TAKANO, Mr. THOMPSON of Mississippi, Ms. TITUS, Ms. TLAIB, Mrs. TORRES of California, Ms. TORRES SMALL of New Mexico, Mrs. TRAHAN, Mr. TRONE, Mr. VARGAS, Mr. VEASEY, Mr. VELA, Ms. VELÁZQUEZ, Ms. WASSERMAN SCHULTZ, Mrs. WATSON COLEMAN, Ms. WILD, Ms. WILSON of Florida, Mr. YARMUTH, Mr. CISNEROS, and Mr. AGUILAR):

H. Res. 1136. A resolution recognizing Hispanic Heritage Month and celebrating the

heritage and culture of Latinos in the United States and the immense contributions of Latinos to the United States; to the Committee on Oversight and Reform.

By Ms. JUDY CHU of California (for herself, Mr. KILDEE, and Ms. MENG):

H. Res. 1137. A resolution supporting the designation of the week of September 21 through September 25, 2020, as ''Community School Coordinators Appreciation Week''; to the Committee on Education and Labor.

By Mr. JORDAN (for himself, Mr. SENSENBRENNER, Mr. CHABOT, Mr. GOHMERT, Mr. COLLINS of Georgia, Mr. BUCK, Mrs. ROBY, Mr. GAETZ, Mr. JOHNSON of Louisiana, Mr. BIGGS, Mr. MCCLINTOCK, Mrs. LESKO, Mr. RESCHENTHALER, Mr. CLINE, Mr. ARMSTRONG, Mr. STEUBE, and Mr. TIFFANY):

H. Res. 1138. A resolution expressing the sense of the House of Representatives that the number of Justices of the Supreme Court of the United States should remain at nine; to the Committee on the Judiciary.

By Mr. KIND (for himself and Mr. HURD of Texas):

H. Res. 1139. A resolution honoring the 50th Anniversary of the National Park Service Volunteers-In-Parks program that was established on July 29, 1970; to the Committee on Natural Resources.

By Mr. NEWHOUSE (for himself and Mr. LEVIN of California):

H. Res. 1140. A resolution recognizing and celebrating the 70th anniversary of Impact Aid on September 30, 2020; to the Committee on Education and Labor.

By Ms. SHALALA (for herself, Mr. GARCÍA of Illinois, Mr. GRIJALVA, Ms. GARCIA of Texas, Mr. SOTO, Mr. SERRANO, Ms. ROYBAL-ALLARD, Mr. PANETTA, Mr. SIRES, Mrs. LEE of Nevada, Mrs. NAPOLITANO, Ms. MUCARSEL-POWELL, Mr. VELA, Ms. JACKSON LEE, Ms. JOHNSON of Texas, Ms. BARRAGÁN, Mr. CÁRDENAS, and Mr. SAN NICOLAS):

H. Res. 1141. A resolution expressing support for the designation of September 22, 2020, as ''National Hispanic Nurses Day''; to the Committee on Energy and Commerce.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements, are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. GRAVES of Louisiana:

H.R. 8333.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, clause 3 of the United States Constitution.

By Ms. KENDRA S. HORN of Oklahoma:

H.R. 8334.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

Article I, Section 8, Clause 18

By Ms. DEAN:

H.R. 8335.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Ms. GABBARD:

H.R. 8336.

Congress has the power to enact this legislation pursuant to the following:

The U.S. Constitution including Article 1, Section 8.

By Mrs. LOWEY:

H.R. 8337.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states:

''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law . . . .''

In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides:

''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States . . .''

Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Mr. BRENDAN F. BOYLE of Pennsylvania:

H.R. 8338.

Congress has the power to enact this legislation pursuant to the following:

Article II, Section 1, Clause 4 of the U.S. Constitution

By Ms. FUDGE:

H.R. 8339.

Congress has the power to enact this legislation pursuant to the following:

To regulate commerce with foreign nations, and among the several states, and with the Indian tribes;

By Mr. GREEN of Texas:

H.R. 8340.

Congress has the power to enact this legislation pursuant to the following:

By Mr. GROTHMAN:

H.R. 8341.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States of America.

By Mr. HORSFORD:

H.R. 8342.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the Constitution of the United States.

By Mr. KRISHNAMOORTHI:

H.R. 8343.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8 of the U.S. Constitution

By Ms. LOFGREN:

H.R. 8344.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 4, Clause 1 of the Constitution.

By Ms. PLASKETT:

H.R. 8345.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Mr. RESCHENTHALER:

H.R. 8346.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. ROUDA:

H.R. 8347.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 4, Clause 1

By Mr. TONKO:

H.R. 8348.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. VAN DREW:

H.R. 8349.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 41: Mr. PAYNE and Mr. SOTO.

H.R. 99: Mr. MEUSER.

H.R. 333: Mr. GOLDEN.

H.R. 906: Mr. TIFFANY.

H.R. 913: Mrs. NAPOLITANO, Mr. GREEN of Texas, Ms. SCANLON, and Ms. DEAN.

H.R. 921: Mr. SHERMAN.

H.R. 1224: Mr. COLE and Mr. GOMEZ.

H.R. 1241: Mr. NEWHOUSE.

H.R. 1325: Mr. SPANO and Mr. KING of New York.

H.R. 1556: Mr. WEBSTER of Florida.

H.R. 1643: Ms. TITUS.

H.R. 1754: Mrs. KIRKPATRICK.

H.R. 1777: Ms. WILD.

H.R. 1783: Ms. HAALAND.

H.R. 1814: Mr. STIVERS.

H.R. 1873: Mr. NORCROSS.

H.R. 2264: Ms. GABBARD.

H.R. 2360: Mr. SOTO.

H.R. 2415: Mr. CRIST and Mr. SAN NICOLAS.

H.R. 2428: Mr. LUCAS.

H.R. 2435: Ms. KENDRA S. HORN of Oklahoma, Miss GONZÁLEZ-COLÓN of Puerto Rico, and Ms. JAYAPAL.

H.R. 2442: Mr. JEFFRIES, Ms. SPANBERGER, Mr. WELCH, Mr. PRICE of North Carolina, Mr. COURTNEY, Mr. NORCROSS, and Mr. KATKO.

H.R. 2482: Mr. RODNEY DAVIS of Illinois.

H.R. 2504: Mr. ALLRED.

H.R. 2610: Mr. DEUTCH, Ms. KELLY of Illinois, and Mr. LUJÁN.

H.R. 2653: Mr. COOPER and Ms. KENDRA S. HORN of Oklahoma.

H.R. 2731: Ms. ESCOBAR.

H.R. 2772: Ms. JUDY CHU of California.

H.R. 2775: Mr. LEVIN of California.

H.R. 3062: Mr. BRADY.

H.R. 3104: Mr. STIVERS, Mr. PAPPAS, Mr. ALLRED, Mr. FITZPATRICK, Mr. KELLY of Mississippi, Mr. COLE, Mr. SCHIFF, Mr. RODNEY DAVIS of Illinois, and Mrs. BEATTY.

H.R. 3208: Ms. STEVENS, Mr. ROSE of New York, and Mr. NORCROSS.

H.R. 3215: Mr. NORCROSS, Ms. BLUNT ROCHESTER, Mr. THOMPSON of California, Mr. LAMB, Mr. WELCH, and Mr. ROSE of New York.

H.R. 3316: Mr. EVANS.

H.R. 3332: Mr. LEVIN of Michigan.

H.R. 3499: Mr. PRICE of North Carolina.

H.R. 3798: Ms. FRANKEL.

H.R. 3884: Ms. DELAURO.

H.R. 3975: Mrs. MILLER and Mr. LUCAS.

H.R. 4100: Ms. BLUNT ROCHESTER.

H.R. 4211: Mr. POCAN.

H.R. 4399: Mr. JACOBS.

H.R. 4542: Ms. FRANKEL and Mr. SPANO.

H.R. 4748: Mr. LAMB.

H.R. 4864: Ms. DEAN and Mr. CROW.

H.R. 4932: Mr. BERA, Mr. TIFFANY, and Mr. COHEN.

H.R. 5141: Mr. KHANNA, Mr. GARAMENDI, Ms. LEE of California, Mr. NEGUSE, Ms. SHERRILL, Mr. MORELLE, Mr. COURTNEY, Mr. JEFFRIES, Mr. NORCROSS, Mr. PASCRELL, and Mr. CORREA.

H.R. 5200: Mr. THOMPSON of Mississippi and Mr. HARDER of California.

H.R. 5325: Ms. PORTER.

H.R. 5447: Mr. COHEN.

H.R. 5605: Mr. SEAN PATRICK MALONEY of New York, Mr. HUFFMAN, and Mr. BANKS.

H.R. 5656: Mr. BUDD.

H.R. 5845: Mr. KEATING.
H.R. 6197: Mr. BRINDISI.
H.R. 6210: Mr. PHILLIPS, Mr. PRICE of North Carolina, and Mr. DOGGETT.
H.R. 6422: Mrs. DINGELL.
H.R. 6492: Mr. COOPER, Mr. DESAULNIER, Mr. JOHNSON of Georgia, and Mr. SIRES.
H.R. 6507: Ms. CLARKE of New York.
H.R. 6637: Mr. LEVIN of Michigan and Mr. LYNCH.
H.R. 6666: Mr. CICILLINE.
H.R. 6676: Mrs. HAYES and Ms. SCANLON.
H.R. 6718: Mr. DESAULNIER.
H.R. 6789: Ms. BASS and Ms. JUDY CHU of California.
H.R. 6794: Mr. LOWENTHAL.
H.R. 7000: Mr. FOSTER.
H.R. 7008: Mr. GOTTHEIMER.
H.R. 7071: Mr. COSTA, Mr. CÁRDENAS, Mr. HARDER of California, Mr. RUSH, Mr. KIM, Mr. FLORES, Ms. WASSERMAN SCHULTZ, Mr. DEUTCH, and Mr. THOMPSON of Pennsylvania.
H.R. 7096: Mr. MOULTON.
H.R. 7123: Mr. PETERSON.
H.R. 7168: Mr. BROOKS of Alabama.
H.R. 7178: Mr. MOULTON.
H.R. 7197: Mr. LIPINSKI, Mr. GONZALEZ of Texas, and Mr. PAYNE.
H.R. 7312: Mr. THOMPSON of Mississippi.
H.R. 7388: Mr. KELLY of Mississippi and Mr. CLINE.
H.R. 7414: Mrs. WATSON COLEMAN.
H.R. 7423: Mr. COOK.
H.R. 7478: Mr. COX of California and Mr. GALLEGO.
H.R. 7499: Mrs. DEMINGS.
H.R. 7515: Mr. SMITH of Washington.
H.R. 7562: Ms. DEAN.
H.R. 7640: Mrs. CAROLYN B. MALONEY of New York.
H.R. 7642: Mr. RUSH, Ms. CLARKE of New York, Mr. LYNCH, Mr. BANKS, Mr. GOLDEN, Ms. SEWELL of Alabama, Mr. BEYER, Mrs. BEATTY, Mr. O'HALLERAN, Mr. WALKER, Mr. MCNERNEY, Mrs. KIRKPATRICK, Mr. HOLDING, Mr. HORSFORD, and Mr. THOMPSON of Mississippi.
H.R. 7663: Ms. TORRES SMALL of New Mexico and Mr. ROSE of New York.
H.R. 7666: Mr. GOTTHEIMER.
H.R. 7679: Mr. BACON, Mr. MEUSER, and Mr. PENCE.
H.R. 7682: Mr. BLUMENAUER.
H.R. 7705: Ms. BLUNT ROCHESTER and Mr. EVANS.
H.R. 7795: Mr. GOTTHEIMER.
H.R. 7806: Ms. STEVENS, Mr. CRIST, Ms. SEWELL of Alabama, Mrs. CAROLYN B. MALONEY of New York, and Mr. YOUNG.
H.R. 7809: Mr. RIGGLEMAN, Mrs. TORRES of California, Mr. CURTIS, Mrs. WALORSKI, and Ms. SLOTKIN.
H.R. 7843: Mr. FITZPATRICK and Mrs. RODGERS of Washington.
H.R. 7855: Mr. TIFFANY.
H.R. 7873: Mr. SAN NICOLAS.
H.R. 7883: Mr. GIBBS, Mr. LARSEN of Washington, Mr. THOMPSON of California, Mr. KILMER, Mr. COLLINS of Georgia, and Mr. BRINDISI.
H.R. 7887: Ms. DAVIDS of Kansas and Mr. KHANNA.
H.R. 7927: Mr. TAYLOR.
H.R. 7947: Mr. DEUTCH, Ms. BLUNT ROCHESTER, Mr. EMMER, and Mr. STIVERS.
H.R. 7965: Mr. GARCÍA of Illinois and Ms. KELLY of Illinois.
H.R. 8048: Mr. AGUILAR.
H.R. 8077: Mr. BRINDISI.
H.R. 8079: Mr. PASCRELL.
H.R. 8117: Mr. ALLEN.
H.R. 8121: Ms. CASTOR of Florida and Mr. UPTON.
H.R. 8125: Mr. COSTA and Mr. MCGOVERN.
H.R. 8141: Ms. BLUNT ROCHESTER.
H.R. 8144: Ms. JOHNSON of Texas.
H.R. 8160: Ms. GARCIA of Texas, Mr. SAN NICOLAS, Mr. LYNCH, Mrs. CAROLYN B. MALONEY of New York, and Mr. SHERMAN.
H.R. 8171: Ms. JOHNSON of Texas, Mr. CARTWRIGHT, Mr. SMITH of Washington, Ms. SCHAKOWSKY, Mr. GARAMENDI, Mr. COOPER, Mr. GRIJALVA, Mr. GARCÍA of Illinois, Ms. BONAMICI, and Mr. LOWENTHAL.
H.R. 8178: Mr. RASKIN.
H.R. 8193: Mr. FOSTER.
H.R. 8200: Mrs. LAWRENCE, Mr. RASKIN, and Ms. BLUNT ROCHESTER.
H.R. 8204: Mr. HASTINGS.
H.R. 8230: Mr. SAN NICOLAS.
H.R. 8236: Mr. GOTTHEIMER, Mr. SPANO, Mr. CHABOT, Mr. PALMER, and Mr. DIAZ-BALART.
H.R. 8242: Ms. SHALALA and Mr. COSTA.
H.R. 8249: Mr. CÁRDENAS, Mr. POCAN, Mr. CARSON of Indiana, and Mr. SAN NICOLAS.
H.R. 8254: Mr. FITZPATRICK and Mr. VELA.
H.R. 8270: Ms. JUDY CHU of California, Mr. MCCAUL, Ms. MATSUI, Miss GONZÁLEZ-COLÓN of Puerto Rico, Ms. OMAR, Ms. FUDGE, Mrs. RADEWAGEN, Ms. JOHNSON of Texas, and Mrs. AXNE.
H.R. 8280: Mr. HUIZENGA, Mr. GONZALEZ of Ohio, Mr. GARCIA of California, and Mr. KELLY of Mississippi.
H.R. 8282: Mrs. LESKO.
H.R. 8294: Mr. RYAN, Mr. CASTRO of Texas, Mr. DAVID SCOTT of Georgia, Mr. VARGAS, Ms. ADAMS, Mr. SUOZZI, Ms. STEVENS, and Ms. KUSTER of New Hampshire.
H.R. 8301: Mr. GOSAR and Mr. DAVID P. ROE of Tennessee.
H.R. 8313: Mr. GARCÍA of Illinois.
H.R. 8325: Ms. KAPTUR, Mr. FITZPATRICK, Mr. COX of California, Mr. BLUMENAUER, Mr. LARSON of Connecticut, Ms. KENDRA S. HORN of Oklahoma, Ms. MCCOLLUM, and Mr. KENNEDY.
H.R. 8332: Mr. KELLER, Mr. KELLY of Pennsylvania, Mr. PERRY, Mr. SMUCKER, Mr. MEUSER, and Mr. JOYCE of Pennsylvania.
H.J. Res. 4: Mr. BURCHETT.
H.J. Res. 52: Mr. YOHO.
H.J. Res. 94: Ms. SCHAKOWSKY, Mr. GARAMENDI, Mr. COOPER, Mr. GRIJALVA, Mr. GARCÍA of Illinois, Mr. LOWENTHAL, and Ms. BONAMICI.
H. Res. 17: Mr. CONAWAY, Mr. MCCAUL, and Mr. TAYLOR.
H. Res. 277: Mr. KEATING.
H. Res. 697: Mr. SUOZZI.
H. Res. 1057: Ms. LEE of California.
H. Res. 1078: Mr. PANETTA and Ms. NORTON.
H. Res. 1099: Mr. HORSFORD, Ms. MENG, Ms. BLUNT ROCHESTER, Mr. NEGUSE, Mr. RUSH, Mr. CRIST, and Mr. DESAULNIER.
H. Res. 1106: Ms. BROWNLEY of California, Ms. NORTON, Mr. HASTINGS, Mr. PAYNE, Mr. HUFFMAN, Mr. KIND, Mr. LARSEN of Washington, and Mr. BLUMENAUER.
H. Res. 1110: Mr. PALLONE, Mr. SIRES, Mr. COX of California, Mr. GONZALEZ of Ohio, Mr. BAIRD, Mr. HORSFORD, Mr. LARSON of Connecticut, Ms. STEFANIK, Mr. HURD of Texas, Ms. Craig, Mr. DIAZ-BALART, Mr. KIND, Ms. SLOTKIN, Mr. VISCLOSKY, Mr. HASTINGS, Mr. SEAN PATRICK MALONEY of New York, Ms. JUDY CHU of California, Mr. DAVID P. ROE of Tennessee, Mr. SCHWEIKERT, Mr. WATKINS, Mr. LAMALFA, Mr. ARMSTRONG, Mr. LANGEVIN, Mr. BUDD, Mr. CARTER of Georgia, Mr. ALLRED, and Mr. SCHNEIDER.
H. Res. 1116: Ms. GRANGER, Mr. BALDERSON, and Mr. HILL of Arkansas.
H. Res. 1123: Ms. TLAIB and Mr. THOMPSON of California.
H. Res. 1130: Mr. KATKO.
H. Res. 1131: Mr. REED and Mr. ROSE of New York.
H. Res. 1134: Mr. DELGADO and Mr. COSTA.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

OFFERED BY MRS. LOWEY

H.R. 8337, making continuing appropriations for fiscal year 2021, and for other purposes, does not contain any congressional earmark, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

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PROCEEDINGS AND DEBATES OF THE 116th CONGRESS, SECOND SESSION

Vol. 166 WASHINGTON, TUESDAY, SEPTEMBER 22, 2020 *No. 164*

Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, we continue to trust the power of Your prevailing providence. In times of trouble, You keep us safe from harm. You strengthen us when all seems lost, enabling us to reach Your desired destination without stumbling or slipping.

Lord, Your plans are fulfilled in spite of our enemies. Surround our Senators with the shield of Your divine favor. Lord, inspire them to rejoice in Your might because of Your victorious guidance. Keep them from the paths of disgrace.

Look with favor, O Lord, upon us all, and may our service ever be acceptable to You.

We pray in Your great Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The PRESIDING OFFICER (Mrs. HYDE-SMITH). The Senator from Iowa.

Mr. GRASSLEY. Madam President, I ask unanimous consent to speak for 1 minute in morning business, please.

The PRESIDING OFFICER. Without objection, it is so ordered.

FILIBUSTER

Mr. GRASSLEY. Madam President, those on the other side of the aisle who openly say they will end the filibuster if they get the majority should have to explain why they continue to vote to filibuster important issues like police reform and COVID relief. Do they somehow believe the filibuster is wrong in principle, or do they admit that they think there should be two sets of rules depending on which political party has the majority in the Senate?

If you think at a minimum that the filibuster should be used sparingly and judiciously, how do you justify voting to block even moving, even discussing, let's say, for instance, Senator SCOTT's police reform bill when you have been promised amendments by the majority leader and when you can always filibuster final passage if you still aren't satisfied after the bill has been discussed for a long period of time and a lot of amendments have been adopted? It is clear their position on filibuster is pure partisanship at its worst.

If there is any way you are going to promote the bipartisanship that the people are demanding, it is only in this institution of the Senate, where it requires 60 votes to get to finality on a bill and where you have pressure to do things in a bipartisan way or nothing gets done.

I yield the floor.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

SUPREME COURT NOMINATIONS

Mr. MCCONNELL. Madam President, I explained yesterday how moving ahead on a vote on the forthcoming Supreme Court nomination will be consistent with both history and precedent.

When an election-year nomination to fill an election-year vacancy occurs in a divided government, with a Senate and a President of different parties, the historical norm is that such nominations are not confirmed. But the times this has happened after the American people have elected a Senate majority to work alongside the same-party President, every such nominee has been confirmed, save one bizarre exception of a nominee who had corrupt financial dealings. Let me say that again. Except for Justice Abe Fortas and his ethical scandals, every single nomination in American history made under our present circumstances has ended in a confirmation—seven out of eight.

That is the thing about facts and history. Angry rhetoric does not change them. Partisan finger-pointing does not alter them. Facts simply exist. They are there for everyone to see. History and precedent were on this Senate majority's side in 2016, and they are overwhelmingly on our side now.

If we go on to confirm this nomination after a careful process, then both in 2016 and in 2020, this Senate will simply have provided the typical, normal outcome in each scenario. Think about that fact and then weigh it against the outcry and hysteria that has already erupted on the far left.

Yesterday, the Democratic leader announced on the floor that if the Senate holds a vote on the forthcoming nomination it would ''spell the end of this supposedly great deliberative body.'' Spell the end of this supposedly great deliberative body? That is what he said. It would be the death of the Senate if a duly elected majority of the U.S. Senate exercises its advice and consent power as it sees fit. That is what Senates do. It is our job description. Presidents makes nominations as they see fit, and Senate majorities either provide or withhold advice and consent as we see fit. But now our Democratic colleagues tell us that the Senate doing normal senatorial things would ''spell the end'' of this institution—whatever that may mean.

The Democratic leader is not alone in these pronouncements. Chairman JERRY NADLER of the House Judiciary Committee has already announced that if the Senate majority dares to act like

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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a Senate majority, future Democrats should ''immediately move to expand the Supreme Court.''

From another colleague:

If [they hold] a vote in 2020, we pack the court in 2021. It's that simple.

Speaker PELOSI intimated on television last weekend that she may consider launching a new frivolous impeachment simply to tie up the Senate's time. She said: ''We have our options.''

The junior Senator from Massachusetts said Democrats ''must abolish the filibuster and expand the Supreme Court.''

The junior Senator for Hawaii said: ''All of those matters will be on the agenda.''

The senior Senator from Connecticut said: ''Nothing is off the table.''

Just yesterday, former Vice President Biden himself refused to rule out that he might seek to pack the Supreme Court.

Bear in mind, none of them assert this majority would be breaking any Senate rule by holding this vote; it is just that our Democratic friends worry they might not like the outcome.

For some reason, they cannot bear to see Republicans governing within the rules as Republicans—doing exactly what Americans elected us to do. So they threaten to wreck the makeup of the Senate if they lose a vote and to wreck the structure of the Court if somebody is confirmed whom they oppose.

It has been interesting to watch our colleagues try to recast their disturbing threats as somehow tied to this Supreme Court vacancy. No one should fall for this trick. Democrats have already been threatening these actions for months. This isn't anything new.

Our colleagues now say that ''nothing'' would be ''off the table'' if a new Justice were to be confirmed. They want badly for people to believe these are new threats that Democrats would take off the table—would take off the table—if Republicans would just help them sink President Trump's nominee. Let me say that again. They want badly for people to believe these are new threats that Democrats would take off the table if Republicans would just help them sink President Trump's nominee.

Let me read another quotation. This is the junior Senator from California speaking, our distinguished colleague who is now running for Vice President:

We are on the verge of a crisis of confidence in the Supreme Court. We have to take this challenge head on, and everything is on the table to do that.

Sound familiar? Of course it does. Our colleague made that remark in March of 2019—in March of 2019.

These threats are not new. They have nothing to do with this new vacancy. Democrats have already been playing this game for more than a year and a half.

It was more than a year ago that several Senate Democrats threatened the Supreme Court in a written brief. They said: ''The Court is not well [and] perhaps the Court can heal itself before the public demands it be 'restructured.' ''

It was more than a year ago that Democrats, competing for their party's Presidential nomination, made court-packing a central element in their platforms.

It was more than 6 months ago that the Democratic leader appeared across the street outside the Court and threatened specific Justices if they did not rule his way.

For goodness' sake, the junior Senator from Maryland came right out and admitted this yesterday. Someone asked him whether he would support these acts of institutional vandalism if a nominee is confirmed this year, and he helpfully pointed out: ''I've always said I'm open, even before this seat opened . . . [those] possibilities were on the table before we got to this point,'' thereby proving my point.

These threats are not new. They have nothing to do with this vacancy.

Our friend the junior Senator from Delaware said on television this Sunday that he wants to persuade Republicans to forgo filling this vacancy, but all the way back in June—long before 5 days ago—he himself notably refused to rule out breaking the Senate's rules to kill the filibuster.

There is no degree to which rewarding these threats would buy the Nation any relief from this. There is nothing you can give them to stop all the threats. There is no ''deal'' that would stop these dangerous tactics. Giving in to political blackmail would not do a thing to secure our institutions. You do not put a stop to irresponsible hostage-taking by making hostage-taking a winning strategy.

I will tell you what really could threaten our system of government. It is not Senate Republicans doing legitimate things squarely within the Senate rules and within the Constitution that Democrats happen to dislike—no, no. What could really threaten our system is if one of our two major parties continues to pretend the whole system is automatically illegitimate whenever they lose; if they continue to act like, for their side of the aisle, a legitimate defeat is an oxymoron. That is the danger to our democracy.

Every one of these attacks on our institutions only underscores how important they are. Every threat to turn our courts into a political tug-of-war only reinforces why the Senate is charged with protecting our independent judiciary and why this majority's work with President Trump on this task is so crucial.

The President plans to use the power the voters gave him to make a nomination. Senators will use the power the voters gave us to either provide or withhold consent as we see fit. The only ones responsible for those threats will be the people making them.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. SCHUMER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

SUPREME COURT NOMINATIONS

Mr. SCHUMER. Madam President, tomorrow the recently departed Supreme Court Justice Ruth Bader Ginsburg will lie in repose at the Supreme Court, and on Friday Ruth Bader Ginsburg will lie in state here in the Capitol, the first time in our Nation's long history that a woman has ever received the honor.

I can think of no more fitting tribute for a woman who made a life's work of going where women had never gone before. Even with the benefit of a few days, the loss of Justice Ginsburg is devastating. You need only walk by the Supreme Court today, where flowers, candles, chalk-written notes, and spontaneous demonstrations have clogged the sidewalks for 4 days straight, to know her impact on this country.

We will honor her this week, and, by all rights, we should honor her dying wish, imparted to her granddaughter, that she ''not be replaced until the next President is installed.'' All the words and encomia for Justice Ginsburg from the other side ring hollow if they will not honor her last dying wish.

Yesterday, the Republican side—so often, President Trump—seemed to make it worse. President Trump mocked Justice Ginsburg's dying wish by insinuating that her granddaughter was a liar, once again confirming every terrible thing we know about our President.

He said that Justice Ginsburg's statement was something that ''sounds like a Schumer deal or maybe Pelosi or shifty Schiff.'' That is the President of the United States baselessly suggesting that Democrats fabricated the dying wish of the late Justice Ginsburg. It was a coarse, shameful, lying insult to the late Justice Ginsburg and to her family.

If the President had a shred of human decency—even a little—he would apologize, but we all know he will not. Everyone here in the Senate ought to be disgusted by the President's comments. How low can this President go? He knows no depth. You can never know that.

You would think that, after the Republican majority led a historic blockade just 4 years ago to keep open a vacancy on the Supreme Court because it was an election year, they would have the honor and decency to apply their

own rule when the same scenario came around again. You would expect the Senate majority to follow their own rule. What is fair is fair.

This is what Leader MCCONNELL said in 2016:

The American people should have a voice in the selection of their next Supreme Court Justice. Therefore, this vacancy should not be filled until we have a new President.

This is the McConnell rule—the McConnell rule. This is the principle that Leader MCCONNELL and then-Chairman GRASSLEY used to justify their refusal to even meet with President Obama's Supreme Court nominee.

Here it is—the McConnell rule: When it is a Presidential season, you can't vote on a Supreme Court nominee because ''the American people should have a voice.'' Now, Leader MCCONNELL repeated that refrain for almost a year and so did almost every other Republican in the Chamber:

The American people shouldn't be denied a voice.

Give the people a voice.

The Senate should not confirm a new Supreme Court Justice until we have a new President.

I don't think we should be moving on a nominee in the last year of a President's term. I would say that if it was a Republican President.

If an opening came in the last year of President Trump's term and the primary process had started—

The primary process had started—

we'll wait to the next election.

I don't even have to tell you who those quotes came from. It was nearly every single Republican in this Chamber. That is how they justified the unprecedented blockade of President Obama's Supreme Court nominee: no vote during a Presidential election year because we have to let the people decide.

They promised to stay consistent if a Republican President won in November. It turns out, a Republican President did win that fall, and a Supreme Court vacancy did arise in the final year of his term, not just during the primary process but long after it was over, with little more than a month—a month—before the election.

Now, whoops, didn't mean it. It is different now. We are supposed to believe this specious, flimsy, and dishonest argument that it is about the orientation of the Senate and the Presidency or how angry Republicans are at Democrats and all the big, scary things we might do in the future. Maybe that will justify it—anything not to admit the plain fact that they all made one argument for a year, an argument they insisted was a ''principle'' when it was good for them politically, and now they are doing the opposite thing.

The McConnell rule: ''The American people should have a voice in the selection of their next Supreme Court Justice.'' It turns out, the McConnell rule was nothing more than a McConnell ruse.

Leader MCCONNELL, sadly, sadly, is headed down the path of breaking his word to the Senate and the American people. He has exposed once and for all that a supposed principle of giving the people a voice in selecting the next Justice was a farce. Sadly, again—sadly—Leader MCCONNELL has defiled the Senate like no one in this generation, and Leader MCCONNELL may very well destroy it.

If Leader MCCONNELL presses forward, the Republican majority will have stolen two Supreme Court seats, 4 years apart, using completely contradictory rationales. How can we expect to trust the other side again?

For those of you on the other side who are still thinking about this and maybe some who might change their minds, just think of what this does to this body and people's word on one of our most solemn and sacred obligations: to choose a Supreme Court Justice fairly and honestly.

It is obvious why the Republican leader, when he comes to the floor, sounds so angry and defensive in his remarks. I will note for the record that the Republican leader did not once mention his principle in 2016—that the American people should have a voice in selecting the next Supreme Court Justice—in any of his speeches because he can't mention it.

Just to give you a sense of how far down the rabbit hole my friend from Kentucky has gone, yesterday—listen to this—this is what he said. Leader MCCONNELL said that President Obama asked the Senate ''for an unusual favor'' by fulfilling his constitutional duty to nominate a Supreme Court Justice with almost a year left in the term—''an unusual favor.''

Only the Republican leader could look at our system of government so cynically. Apparently, the Senate's constitutional duty to advise and consent is an unusual favor when a Democratic President is in office but a categorical imperative when a Republican is in office.

That is actually his argument. I listened to the Republican leader yesterday. I listened to him this morning. Gone are all the invocations of giving the American people a voice. It is nothing so supposedly high-minded this time. No, this time the Republican leader isn't even hiding that his decision is nothing—nothing—but raw, partisan politics.

According to the Republican leader, when the President and the Senate majority are the same party, you can break all the rules to get your Justice. Change the rules of the Senate to pass Supreme Court Justices on a majority vote. Rush it through before an election. It doesn't matter if you said the exact opposite thing 4 years ago, 2 years ago, or even, for some Senators, a few months ago.

This is how our vaunted traditions of bipartisanship and compromise—on life support before—now end. This is how. By one side—in this case the Republican majority under Leader MCCONNELL—deciding that the rules don't apply to them, even their own rules. That, when push comes to shove, it is brute political force, all the way down.

If my friends on the Republican side want that kind of Senate, they can follow Leader MCCONNELL down the very dangerous path he has laid down.

CORONAVIRUS

Mr. SCHUMER. Madam President, one final matter. According to the official tally at Johns Hopkins University, the United States today will reach a staggering milestone of 200,000 Americans lost to COVID–19—200,000 Americans—more than any other country on Earth. Far more than we should have. Far more than we would have had there been a proper, coordinated, and energetic response to the virus by the Trump administration.

In the face of this tragic milestone, what does President Trump do? Does he mourn the astounding loss of lives? No, he goes off on the campaign trail, where yesterday he told his supporters that the virus ''affects virtually nobody.''

Affects virtually nobody? Tell that to the families and friends of the 200,000 who are in mourning.

Seriously, the day before the United States hits 200,000 deaths from COVID–19, the President said the virus ''affects virtually nobody.''

He also said: ''If you take the blue states out, we're really at a very low level.''

He also said: ''It is what it is.''

This is our President? My goodness.

Do you want to know why we have the worst pandemic response of any developed nation on Earth? You want to know why now nearly one out of every five deaths from COVID–19 come from America? It is because President Trump lied to the American people from day one about the gravity of this disease, and he is still doing it now, in a desperate and vile effort to boost his political fortunes.

And here in the Senate, Republicans will do anything—anything to back him, no matter what he says or does, as long as he nominates their judges.

I yield the floor.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDING OFFICER. Under the previous order, the Senate will resume executive session to resume consideration of the following nomination, which the clerk will report.

The senior assistant legislative clerk read the nomination of Edward Hulvey Meyers, of Maryland, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

The PRESIDING OFFICER. The majority whip.

REMEMBERING JUSTICE RUTH BADER GINSBURG

Mr. THUNE. Madam President, on Friday, we learned that trailblazing Supreme Court Justice Ruth Bader Ginsburg had died at the age of 87 from pancreatic cancer.

Justice Ginsburg embraced the law at a time when being a woman in the field meant a constant uphill battle. She had to fight for opportunities that were available to men as a matter of course.

Her work as a lawyer eventually came to focus around women's rights—or as Ruth Bader Ginsburg put it, ''the constitutional principle of the equal citizenship stature of men and women.''

Before joining the Court, she argued six gender discrimination cases before it, and as a Justice, she continued to advance this cause. She served with distinction on the Supreme Court for more than 25 years—and engaged in some of the Court's most memorable exchanges over that period.

She was known for her work ethic and tenacity, as well as her kindness and good humor, and, of course, for her love of opera and her 56-year romance with her beloved husband, Marty.

She disagreed often with her good friend Justice Scalia, but they never allowed their strong disagreements to ruin their enduring friendship and mutual respect. She could dissent on the most fundamental questions, without indicting the character of those with whom she disagreed.

Her work to secure equal treatment for women has earned her a place in American history, and her courage and perseverance in overcoming significant obstacles will continue to inspire many.

My thoughts and prayers are with Justice Ginsburg's family.

SUPREME COURT NOMINATIONS

Madam President, in the wake of a Supreme Court Justice's death, the Senate has to turn its thoughts to considering the next Supreme Court nominee. The President has indicated that he expects to nominate Justice Ginsburg's successor as soon as this week. He has also made it clear he intends to nominate a woman.

Whomever he nominates, I am confident that she will be in the mode of the President's other Supreme Court appointments, a nominee with a profound respect for the law and the Constitution, someone who understands that the job of a Supreme Court Justice—or any judge—is to interpret the law, not make the law, to call balls and strikes, not rewrite the rules of the game.

Predictably, Democrats are in an uproar over the fact that President Trump will nominate a third Supreme Court Justice. They want Republicans to refuse to consider the President's nomination before the President has even named anyone.

They claim that the fact that a Republican-led Senate did not consider the nomination of Merrick Garland during President Obama's final year means Republicans should decline to consider President Trump's nominee.

It is perfectly true that the Senate did not vote on President Obama's final Supreme Court nominee. That is something the Senate can choose to do. Any Senate, led by either party, can decline to take up a nominee. That is the Senate's constitutional prerogative.

At the time, we felt that since voters had recently chosen a Republican-led Senate, while the President was a Democrat on his way out of office, the new President should choose the next Supreme Court nominee. And we all knew at the time that very well could be Hillary Clinton. But that was wholly in line with the history of the Senate—and with the rule promulgated by Joe Biden when he was chairman of the Judiciary Committee, and endorsed, I might add, by the current Democratic leader in 2007.

As a Wall Street Journal op-ed explained:

> This exception was popularized in 1992 by Sen. Joe Biden, then chairman of the Judiciary Committee. He urged President George H.W. Bush to refrain from making any Supreme Court nominations in that election year. What made 1992 different from other election years, Mr. Biden explained, was that ''divided Government'' reflected an absence of a ''nationwide consensus'' on constitutional philosophy. ''Action on a Supreme Court nomination must be put off until after the election campaign is over,'' the future vice president insisted. No vacancy arose until 1993, when President Clinton was in the White House and Ginsburg's nomination easily passed a Democratic Senate. But the Biden rule fit 2016 to a tee.

For the past 130-plus years, no Senate has approved a Supreme Court nominee in the final year of a President's term if the Senate majority and the President were of different parties.

On the other hand, a number of Supreme Court nominees have been confirmed during a President's final year in office when the Senate was led by the same party as the President.

There have been 15 situations in U.S. history where a Supreme Court vacancy arose in a Presidential election year, and the President nominated someone that same year. In eight of those cases, the President and the Senate majority were of the same party. And in all but one of those eight cases, the President's nominee was confirmed.

Democrats are free to disagree with Republicans' application of the Biden-Schumer rule in 2016, but no one can dispute that voting on or rejecting a nominee is the constitutional prerogative of the U.S. Senate.

There should be nothing disturbing about the Senate fulfilling its constitutional role of advising and consenting on a Supreme Court nomination.

What is disturbing are Democrats' threats as to what they will do if Republicans in the Senate don't yield to their demands. Those threats include, but are not limited to, eliminating the legislative filibuster, which is the rule we all know in the Senate that helps ensure that bills that come before the Senate require bipartisan cooperation; they threatened to pack the Supreme Court with additional Justices so that they can ensure a rubberstamp for their agenda.

Some are even suggesting—suggesting impeaching the President again. What they would impeach him for is not exactly clear. Fulfilling his constitutional responsibility to name someone to the Supreme Court?

Some Democrats have gone so far as to say that nothing is off the table when it comes to retribution for considering the President's nominee—a particularly insidious and irresponsible threat at the time when political violence is at a high in this country.

One thing I can say is that Republicans will not be deterred from performing our constitutional role by Democrats' undemocratic threats. For many of us, confirming principled judges who will uphold the Constitution and the rule of law has been a core tenet of our public service—and a shared goal of those who elected us.

We will work to fill the Supreme Court vacancy, and I look forward to receiving and reviewing the President's nomination in the near future.

I yield the floor.

The PRESIDING OFFICER. The Democratic whip.

Mr. DURBIN. Madam President, I listened to the statements made by the Republican leadership this morning on the floor of the U.S. Senate. If one has a sense of history and memory, their statements are preposterous.

The last speaker came before us and said: The Democrats are even threatening to end the filibuster in retribution.

Well, let's stop and think for a moment. Was there a filibuster affecting the Supreme Court nominees? Was there a requirement of 60-vote margins if there is controversy associated with filling the vacancy on the Supreme Court? There was until one Senator from Kentucky, Mr. MITCH MCCONNELL, eliminated the filibuster when it came to the Supreme Court.

This so-called democratic institution of the filibuster was eliminated when it came to Supreme Court nominees by that same Senator MCCONNELL, who comes to the floor and says that the Democrats have reached an outrageous position: They are threatening the future of the filibuster.

He eliminated it. When there were changes made in the filibuster on other court appointments, Senator Reid was careful not to include the Supreme Court, but Senator MCCONNELL did. Senator MCCONNELL has brought us to this moment.

Think how different it would be—how different it would be today if the nominee of this President were subject to a

filibuster. If it took 60 votes, it means the person nominated would have to be moderate in their approach. We don't expect that from this President in filling the vacancy of Ruth Bader Ginsburg.

I also read and reread one simple fact when it came to Ruth Bader Ginsburg in 1993. She cleared the Senate Chamber, at a time when the filibuster rule did apply, with a vote of 96 to 3—96 to 3.

Understand that Ruth Bader Ginsburg was a well-known person when she came before this body for approval to the Supreme Court. She had been an outspoken advocate for women's rights and equality as an attorney and advocate for groups like the American Civil Liberties Union. She had served on the DC Circuit Court of Appeals.

As well known as she was for her political beliefs, she cleared this Senate Chamber with only three dissenting votes—Senator Jesse Helms, Senator Don Nickles, and Senator Bob Smith—three Republicans. What a different time it was. Even though her stripes were clear, she was so well respected as a jurist and a person of integrity that she was approved by the Senate Chamber.

How far we have fallen. We are in a position now, at this moment, when Senator MCCONNELL, 4 years ago, established a standard. The vacancy of Scalia's seat on the Supreme Court led President Obama to nominate Merrick Garland, a well-respected judge from the DC Circuit. I remember seeing him and meeting with him after he had been proposed by President Obama. It was a sad duty to watch him as he walked the Halls of the Senate. You see, Senator MCCONNELL announced that he didn't want any Republican Senators to physically meet with Merrick Garland—not give him the recognition of even a meeting in their office, let alone a hearing. The argument that Senator MCCONNELL made—and Senator SCHUMER said this morning—was that it wasn't President Obama's place to fill that vacancy; it was the place of the next President of the United States.

Senator MCCONNELL, basically, declared President Obama was a lameduck when it came to Supreme Court vacancies in his last year in office and that the next President, whoever that might be, would make the choice. Well, one after another, the Republican Senators marched in line behind that McConnell position, announcing that they, too, agreed that President Obama was a lameduck when it came to filling Supreme Court vacancies in his last year in office. They didn't cite the Constitution because there is no provision in the Constitution that even comes close to that suggestion. There certainly wasn't any law, and there wasn't any precedent.

I hear the Republicans come to the floor mentioning Joe Biden's name and CHUCK SCHUMER's name. Who knows who will be next on their list? The fact is, the Senate makes the decisions based on majority. At that point, Senator MCCONNELL had the majority, and he lined up his membership behind him.

Unfortunately, they are lining up again, but this time Senator MCCONNELL's position is the exact opposite. This time he is arguing that because there is a Republican President, he should fill this vacancy instantly: Get it done. Let's go. His Republican Senators who took the opposite position 4 years ago are finding some rationalization to follow him again.

What is at stake in this, of course, is not just the Senate, the comity of the Senate, the respect we have for one another, the respect we have for traditions one way or the other and that they be followed regardless of the President's party; what is at stake, unfortunately, is also the Supreme Court. This institution, the third branch of government, is part of a strategy that Senator MCCONNELL has been pushing forward for years now. It is the intent of the Republicans in the Senate, through Senator MCCONNELL, to take control of the third branch of government, the judicial branch. They are desperate to do it. Time is not on their side.

The demographics of America cannot be held back simply by voter suppression. They have to count on jurists from every level of the Federal judiciary to adhere to their minority point of view on so many important issues. Ironically, one of those issues is the role of women, the equality of women in America. Ruth Bader Ginsburg argued for that her whole life. She was smart enough to know she was taking her argument to a lot of male judges, so she argued for equality for men, as well as women, during the course of her career on and off the bench.

She was principled, determined, and successful. As an attorney, she argued and won multiple cases in the Supreme Court in the 1970s, eventually persuading the all-male Court to apply the 14th Amendment's equal protection clause to sex-based discrimination. Sadly, we can predict with almost 100 percent certitude that if Donald Trump and MITCH MCCONNELL choose her successor, that principle will be under fire; in fact, it may not even survive.

For all the kind speeches about this principled woman and what she gave to America—and they are well deserved about Ruth Bader Ginsburg—watch the nominee who comes from the Trump White House and you will find, I am afraid, they are not even close to the standard that she argued for and succeeded.

Today, we are 6 weeks from election day and 7 weeks from the Supreme Court taking up another case, one which I think is relevant and important to every single American. The question the Court will decide is whether the ACA—ObamaCare—will survive. President Trump and Majority Leader MCCONNELL want to rush the nominee before the Senate before these two dates arrive.

Do you recall, not that many years ago, when the Republicans controlled the House of Representatives and voted, I believe, 50 different times to eliminate the Affordable Care Act? Were it not for a Democratic Senate, they might have achieved their goal. Each and every time they were asked: What would you replace it with? What would you say to the 20 million Americans who depend on the Affordable Care Act for their source of health insurance? What would you say to the rest of America who depend on the Affordable Care Act for fundamental protections in health insurance and protections, such as no discrimination based on preexisting conditions?

Americans understand that. Virtually every family has a story to tell of someone in their own family with an illness that could be considered a preexisting condition. The insurance industry even went so far at one point as to say being a woman was essentially a preexisting condition. Based on that, the health insurance industry would either charge higher premiums or refuse coverage.

We got rid of those days. We ended that with the Affordable Care Act. We ended it with ObamaCare. And now the Republicans, again, want the insurance industry to have that power over your life. As of this morning, 6 million Americans have been reported as diagnosed with COVID–19. Trust me, the insurance industry would make that a preexisting condition for them and for any others in the future who should turn up positive on these COVID–19 tests.

What the Republicans are seeking to do in the Supreme Court is what they failed to do on the floor of the Senate. They tried on the Senate floor many times—and the last time is well remembered—to end the Affordable Care Act. Those of us who were here that night watched as a handful—perhaps three—Republican Senators said no. We all remember that moment after he had been on the phone with President Trump when John McCain, the late Senator from Arizona, came through those doors at 2:30 in the morning and cast his ''no'' vote in the well of the Senate Chamber. I was there just a few feet away and watched every second of it. It was gripping. It was exciting. For many people, it was giving them another chance to protect themselves with health insurance, something the other Republicans were determined to eliminate.

John McCain said then and we say now: If you have a better idea on the Republican side—President Trump, if you have a better idea than the ACA—let's see it. How many times has this President made an empty promise: We have a substitute; I will give it to you in a week, 2 weeks, 3 weeks. They don't have one.

Recently, at a hearing before the Appropriations Subcommittee, I asked

three leading health experts and doctors in the Trump administration if any of them had worked on the so-called Republican substitute. Not a one. It doesn't exist. It is just an empty answer and an imperfect answer, at best, from this administration.

I remember February 13, 2016, when Justice Scalia just passed away in a Presidential election year and Senator MCCONNELL said, to the surprise of many of us, the following:

> The American people should have a voice in the selection of their next Supreme Court Justice. Therefore, this vacancy [the Scalia vacancy] should not be filled until we have a new President.

He stated the McConnell rule in February of 2016, an election year. Here it is:

> The American people should have a voice in the selection of their next Supreme Court Justice. Therefore, this vacancy should not be filled until we have a new President.

It is pretty clear, isn't it?

Well, Republican Senators all lined up behind him in this new statement of principle and denied Merrick Garland not only a hearing but even the courtesy of an office appointment for most of them. The McConnell rule is clear and unambiguous, and the 2016 Republicans dutifully fell in line behind it. They said that the American people should have the last word. An election year Supreme Court vacancy should be filled in the next Presidential term.

Senator MCCONNELL claims that his rule really had an asterisk at the end. I don't see one. He said it really depends on which party controls the Senate. Well, that is certainly a distinction without a difference. Why should the composition of the Senate dictate whether or not the American people ''should have a voice in the selection of their next Supreme Court Justice''? Either the American people have a voice regarding the future of the Court when there is a vacancy in an election year or they don't.

Four years ago, Senator MCCONNELL said they do. Now he says they don't. It is a flip-flop and, oh, the painful contortions I see among most Republican Senators trying to rationalize posing for holy pictures 4 years ago, saying that the American people should have the last word and then 4 years later, completely reversing themselves—but they do.

This is not just some Washington debate. The stakes in this debate are important for every American. It isn't about who gets the last word on MSNBC or FOX; it is about who gets the last word when you learn someone in your family has a devastating illness and you are praying to God you have a health insurance plan that will cover it.

President Trump has made clear he wants to strike down the entire Affordable Care Act even without a substitute. That is the position the Trump administration took before the Supreme Court in a case that will be argued just days after this November 3 election.

President Trump has also made it clear that when he picks a new Supreme Court Justice, he wants them to agree with him when it comes to eliminating the Affordable Care Act.

I would say to people across America: Be prepared. If MITCH MCCONNELL gets his way, if Donald Trump gets his way, if they install a new Supreme Court Justice who has taken this oath—this political oath to following the Trump plan—all of America will be at risk because the protections of the Affordable Care Act will be eliminated by that Supreme Court.

In 2015, Donald Trump tweeted, as he often does: ''If I win the Presidency, my judicial appointments will do the right thing unlike Bush's appointee John Roberts on ObamaCare.'' We certainly know what that means because at least on one occasion, John Roberts has kept ObamaCare alive.

Let's be clear. The Affordable Care Act is hanging in the balance in just a few days. The healthcare coverage and protections for preexisting conditions that millions of American families rely on are at risk. Republicans were never able to repeal the Affordable Care Act in the House or on the floor of the Senate—thank you, John McCain—so they want to do it in the Court. They are trying to accomplish in the Supreme Court what they cannot accomplish in Congress. If President Trump and Senator MCCONNELL go through with their plan to jam through a Supreme Court nominee this year, the Affordable Care Act is doomed.

Did you hear last night when the chairman of the Senate Judiciary Committee announced—I saw it this morning on television. He announced that every single Republican Senator on the Senate Judiciary Committee is going to vote for the Trump nominee for the Supreme Court. We don't have a nominee yet, do we? The President said he will not announce one until Saturday of this week. Here is this announcement by the Republican chairman of the Senate Judiciary Committee: He's counted the votes. It is a done deal.

What does it tell you? It tells you it doesn't make any difference whom the President nominates—the silence of the lambs in the U.S. Senate.

If President Trump and Senator MCCONNELL go through with this plan, America will feel it, and every family will know it. That is why my Republican colleagues refuse to give the American people the last word on November 3. They are so uncertain of the reelection of Donald Trump, they have to do this now, quickly. They are afraid he will not be renominated, that he will not be reelected, and that he will not be in a position to fill this vacancy next year. So they are breaking their own promise to the American people to respect their judgment in the selection of the Supreme Court nominee.

AFFORDABLE CARE ACT

Madam President, we know what is at stake as well in terms of this Nation. There are 200,000 Americans—that number is likely to be confirmed in just a matter of hours, if not days—who have died of COVID–19.

You say to yourself: Well, it is a global pandemic, and people are dying everywhere.

That is true, but the rate of death in America, sadly, leads the world. It is not an indication of American greatness that the infection rate from COVID–19 in the United States of America is five times what it is in Germany. It is not an indication of American greatness when the infection rate in the United States is twice what it is in Canada. It is not a reflection of the greatness of America that, with 4½ percent of the global population, we have 20 percent of the people who have died from this pandemic. This President and this administration have utterly failed when it has come to this public health crisis—one of the most challenging in a century.

For the 6 million people who have been infected with this COVID virus in America, we pray that they will recover fully, but we know, in many cases, they will not. We know that, without the protection in the Affordable Care Act, many insurers will refuse to issue policies to these people in the future if the Republicans have their way and eliminate the Affordable Care Act.

Amy, of Huntley, IL, recently wrote to me:

> Please save the ACA. Without it, caps will come back, and, with them, my children's mental health care coverage will essentially disappear. I have three children, each with varying mental health disabilities. Before the Affordable Care Act, our Blue Cross-Blue Shield plan had a maximum family lifetime cap of 100 mental health care visits.

A lifetime cap, she says, of 100 visits.

> That is it. When the ACA was passed, it was like a tremendous weight had been taken off our family.

Young adults, incidentally, up to the age of 26 are protected by their families' health insurance under the Affordable Care Act. If the Trump administration, MITCH MCCONNELL, and the new Supreme Court nominee have their way, that would end. Insurance plans would no longer have to cover prescription drugs, maternity care, mental health, or addiction treatment. While still facing the opioid crisis, eliminating the Affordable Care Act would eliminate the guarantee that your son, your daughter, or someone in your family who is facing the addiction of this terrible drug would have coverage when it comes to addiction treatment.

Misty, of Gurnee, IL, wrote:

> In a time where my husband is unemployed and I've been quarantined . . . losing our health care now would be absolutely devastating for my family. My husband and I are both on daily prescription meds, and we have two daughters who desperately need health care coverage as well. I am asking you to protect the Affordable Care Act.

Misty, I am going to protect the Affordable Care Act by opposing President Trump's Supreme Court nominee

because he has promised us that the nominee will eliminate the Affordable Care Act. I could not in good conscience support such a nominee.

When the Affordable Care Act goes away, as the Republicans are seeking to achieve in court and now on the floor of the Senate, Medicare would face insolvency sooner—at least 1 year sooner—and seniors would be charged more for prescription drugs. Hospitals in Illinois, especially downstate and inner city hospitals, would see significant revenue losses from the elimination of Medicaid expansion.

This is the real world, and the people who are writing to my office are doing so of their own volition to let me know what they face. This isn't just a matter of big shots in Washington who are fighting with one another to see who can get more camera time. It isn't a question of who is going to appear more on the cable TV shows. It is a question of whether we care about the families we represent.

Most families, my own included, have been through this. I know the sleepless nights when you worry about whether you have health insurance. I know what it is like to be the father of a new baby who has serious medical conditions and to have no insurance at all. I have faced it, and I will never forget it. I will never forget the families who sent me to Washington to remember them as well.

This is about more than who gets bragging rights politically at the end of the day; it is about the right of every American family to have peace of mind in knowing they have quality, affordable, accessible health insurance coverage.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mrs. LOEFFLER). The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. WHITEHOUSE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the Meyers nomination?

Mr. WHITEHOUSE. I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from West Virginia (Mrs. CAPITO), the Senator from Wisconsin (Mr. JOHNSON), the Senator from Alaska (Mr. SULLIVAN), and the Senator from North Carolina (Mr. TILLIS).

Further, if present and voting, the Senator from Wisconsin (Mr. JOHNSON) would have voted yea.

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS), the Senator from Vermont (Mr. SANDERS), and the Senator from Michigan (Ms. STABENOW) are necessarily absent.

The PRESIDING OFFICER (Mr. CRUZ). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 66, nays 27, as follows:

[Rollcall Vote No. 185 Ex.]

YEAS—66

Alexander	Fischer	Paul
Barrasso	Gardner	Perdue
Blackburn	Graham	Peters
Blunt	Grassley	Portman
Boozman	Hassan	Risch
Braun	Hawley	Roberts
Burr	Hoeven	Romney
Cardin	Hyde-Smith	Rosen
Carper	Inhofe	Rounds
Casey	Jones	Rubio
Cassidy	Kennedy	Sasse
Collins	King	Scott (FL)
Cornyn	Lankford	Scott (SC)
Cortez Masto	Leahy	Shaheen
Cotton	Lee	Shelby
Cramer	Loeffler	Sinema
Crapo	Manchin	Tester
Cruz	McConnell	Thune
Daines	McSally	Toomey
Duckworth	Moran	Warner
Enzi	Murkowski	Wicker
Ernst	Murphy	Young

NAYS—27

Baldwin	Gillibrand	Reed
Bennet	Heinrich	Schatz
Blumenthal	Hirono	Schumer
Booker	Kaine	Smith
Brown	Klobuchar	Udall
Cantwell	Markey	Van Hollen
Coons	Menendez	Warren
Durbin	Merkley	Whitehouse
Feinstein	Murray	Wyden

NOT VOTING—7

Capito	Sanders	Tillis
Harris	Stabenow	
Johnson	Sullivan	

The nomination was confirmed.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Andrea R. Lucas, of Virginia, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2025.

Mitch McConnell, Cindy Hyde-Smith, John Thune, John Hoeven, John Boozman, David Perdue, Steve Daines, Pat Roberts, Thom Tillis, Lamar Alexander, John Cornyn, Lindsey Graham, Roger F. Wicker, Mike Braun, John Barrasso, Richard C. Shelby, Tim Scott.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Andrea R. Lucas, of Virginia, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2025, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The bill clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from West Virginia (Mrs. CAPITO), the Senator from Wisconsin (Mr. JOHNSON), the Senator from Alaska (Mr. SULLIVAN), and the Senator from North Carolina (Mr. TILLIS).

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS), the Senator from Vermont (Mr. SANDERS), and the Senator from Michigan (Ms. STABENOW) are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote or change their vote?

The yeas and nays resulted—yeas 49, nays 44, as follows:

[Rollcall Vote No. 186 Ex.]

YEAS—49

Alexander	Fischer	Perdue
Barrasso	Gardner	Portman
Blackburn	Graham	Risch
Blunt	Grassley	Roberts
Boozman	Hawley	Romney
Braun	Hoeven	Rounds
Burr	Hyde-Smith	Rubio
Cassidy	Inhofe	Sasse
Collins	Kennedy	Scott (FL)
Cornyn	Lankford	Scott (SC)
Cotton	Lee	Shelby
Cramer	Loeffler	Thune
Crapo	McConnell	Toomey
Cruz	McSally	Wicker
Daines	Moran	Young
Enzi	Murkowski	
Ernst	Paul	

NAYS—44

Baldwin	Hassan	Reed
Bennet	Heinrich	Rosen
Blumenthal	Hirono	Schatz
Booker	Jones	Schumer
Brown	Kaine	Shaheen
Cantwell	King	Sinema
Cardin	Klobuchar	Smith
Carper	Leahy	Tester
Casey	Manchin	Udall
Coons	Markey	Van Hollen
Cortez Masto	Menendez	Warner
Duckworth	Merkley	Warren
Durbin	Murphy	Whitehouse
Feinstein	Murray	Wyden
Gillibrand	Peters	

NOT VOTING—7

Capito	Sanders	Tillis
Harris	Stabenow	
Johnson	Sullivan	

The PRESIDING OFFICER. On this vote, the yeas are 49, the nays are 44.

The motion is agreed to.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The bill clerk read the nomination of Andrea R. Lucas, of Virginia, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2025.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:48 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. ALEXANDER).

EXECUTIVE CALENDAR—Continued

The PRESIDING OFFICER. The Senator from Florida.

REQUEST FOR COMMITTEE TO MEET

Mr. RUBIO. Mr. President, I ask unanimous consent that the Intelligence Committee be authorized to meet today with the Director of National Counterintelligence, and he is also leading the election security efforts on behalf of the Office of the Director of National Intelligence—that that meeting occur during today's session of the Senate.

The PRESIDING OFFICER (Mr. ROMNEY). Is there objection?

The Democratic leader.

Mr. SCHUMER. Reserving the right to object. Because the Senate Republicans have no respect for the institution, we will not have business as usual here in the Senate, I object.

The PRESIDING OFFICER. The objection is heard.

The Senator from Florida.

Mr. RUBIO. Mr. President, if I may, just for a moment, just for the information of the Members, then, who are on the committee, we will not be having the hearing today on the issue of election security with the person leading that effort. It is a priority of many here.

We are scheduled to have the Director of National Intelligence tomorrow to discuss that and many more topics of great importance that I know a lot of people here have been saying we need to be having briefings over. I hope that if, in fact, the Democratic leader intends to object to that, that we should know that today as well, I hope, so that the Members will know that and make arrangements accordingly.

I yield the floor.

VOTE ON LUCAS NOMINATION

The PRESIDING OFFICER. Under the previous order, all postcloture time has expired on the Lucas nomination.

The question is, Shall the Senate advise and consent to the Lucas nomination?

Mr. ALEXANDER. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from West Virginia (Mrs. CAPITO), the Senator from Wisconsin (Mr. JOHNSON), the Senator from Alaska (Mr. SULLIVAN), and the Senator from North Carolina (Mr. TILLIS).

Further, if present and voting, the Senator from Wisconsin (Mr. JOHNSON) would have voted yea.

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS), the Senator from Vermont (Mr. SANDERS), and the Senator from Michigan (Ms. STABENOW), are necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 49, nays 44, as follows:

[Rollcall Vote No. 187 Ex.]

YEAS—49

Alexander	Fischer	Perdue
Barrasso	Gardner	Portman
Blackburn	Graham	Risch
Blunt	Grassley	Roberts
Boozman	Hawley	Romney
Braun	Hoeven	Rounds
Burr	Hyde-Smith	Rubio
Cassidy	Inhofe	Sasse
Collins	Kennedy	Scott (FL)
Cornyn	Lankford	Scott (SC)
Cotton	Lee	Shelby
Cramer	Loeffler	Thune
Crapo	McConnell	Toomey
Cruz	McSally	Wicker
Daines	Moran	Young
Enzi	Murkowski	
Ernst	Paul	

NAYS—44

Baldwin	Hassan	Reed
Bennet	Heinrich	Rosen
Blumenthal	Hirono	Schatz
Booker	Jones	Schumer
Brown	Kaine	Shaheen
Cantwell	King	Sinema
Cardin	Klobuchar	Smith
Carper	Leahy	Tester
Casey	Manchin	Udall
Coons	Markey	Van Hollen
Cortez Masto	Menendez	Warner
Duckworth	Merkley	Warren
Durbin	Murphy	Whitehouse
Feinstein	Murray	Wyden
Gillibrand	Peters	

NOT VOTING—7

Capito	Sanders	Tillis
Harris	Stabenow	
Johnson	Sullivan	

The nomination was confirmed.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the nomination of Keith E. Sonderling, of Florida, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2024.

Mitch McConnell, Cindy Hyde-Smith, John Thune, John Hoeven, John Boozman, David Perdue, Steve Daines, Pat Roberts, Thom Tillis, Lamar Alexander, John Cornyn, Lindsey Graham, Roger F. Wicker, Mike Braun, John Barrasso, Richard C. Shelby, Tim Scott.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Keith E. Sonderling, of Florida, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2024, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from West Virginia (Mrs. CAPITO), the Senator from Wisconsin (Mr. JOHNSON), the Senator from Alaska (Mr. SULLIVAN), and the Senator from North Carolina (Mr. TILLIS).

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS), the Senator from Vermont (Mr. SANDERS), and the Senator from Michigan (Ms. STABENOW), are necessarily absent.

The PRESIDING OFFICER (Mrs. BLACKBURN). Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 52, nays 41, as follows:

[Rollcall Vote No. 188 Ex.]

YEAS—52

Alexander	Gardner	Perdue
Barrasso	Graham	Portman
Blackburn	Grassley	Risch
Blunt	Hawley	Roberts
Boozman	Hoeven	Romney
Braun	Hyde-Smith	Rounds
Burr	Inhofe	Rubio
Cassidy	Jones	Sasse
Collins	Kennedy	Scott (FL)
Cornyn	Lankford	Scott (SC)
Cotton	Lee	Shelby
Cramer	Loeffler	Sinema
Crapo	Manchin	Thune
Cruz	McConnell	Toomey
Daines	McSally	Wicker
Enzi	Moran	Young
Ernst	Murkowski	
Fischer	Paul	

NAYS—41

Baldwin	Gillibrand	Reed
Bennet	Hassan	Rosen
Blumenthal	Heinrich	Schatz
Booker	Hirono	Schumer
Brown	Kaine	Shaheen
Cantwell	King	Smith
Cardin	Klobuchar	Tester
Carper	Leahy	Udall
Casey	Markey	Van Hollen
Coons	Menendez	Warner
Cortez Masto	Merkley	Warren
Duckworth	Murphy	Whitehouse
Durbin	Murray	Wyden
Feinstein	Peters	

NOT VOTING—7

Capito	Sanders	Tillis
Harris	Stabenow	
Johnson	Sullivan	

The PRESIDING OFFICER. On this vote, the yeas are 52, the nays are 41.

The motion is agreed to.

EXECUTIVE CALENDAR

The PRESIDING OFFICER. The clerk will report the nomination.

The legislative clerk read the nomination of Keith E. Sonderling, of Florida, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2024.

The PRESIDING OFFICER. The Democratic leader.

UNANIMOUS CONSENT REQUEST

Mr. SCHUMER. Madam President, over the course of her extraordinary life, Justice Ginsburg did as much to advance the cause of justice as she could manage. She was a trailblazer of women from all ages, from all walks of life, who watched her tear down the barriers that separated men from women, first from outside the corridors of power, then within them.

As I said this morning, it is only fitting that she will be the first woman to ever lie in state at the Nation's Capitol. After all, she made a life's work

out of going where women had not gone before.

I rise now to offer a resolution that will honor her long and illustrious career. Republicans came to us with this resolution, but it ignored Justice Ginsburg's dying wish, what she called her most fervent wish, that she not be replaced until the new President is installed. We simply have added to the exact same text of the resolution the Republicans gave us.

All the kind words and lamentations about Justice Ginsburg from the Republican majority will be totally empty if those Republicans ignore her dying wish and instead move to replace her with someone who will tear down everything she built; someone who could turn the clock back on a woman's right to choose; someone who could turn back the clock on marriage equality; someone who would make it impossible to join a union; someone who could take healthcare away from tens of millions of Americans, send drug prices soaring, and rip away protections for up to 130 million Americans with preexisting conditions. That is what we are talking about when we talk about this vacancy.

For hundreds of millions of Americans, everything is on the line. Perhaps that is why Justice Ginsburg expressed her ''fervent'' wish that she not be replaced until the next President is installed. She knew how important the Supreme Court was in American life, and she knew there would be great temptation to take advantage of the timing of her death for political purposes. She knew the risks of her vacancy turning into a power game driven by rank partisanship, so she expressed a simple idea: Let the next President decide, whoever it might be. It could be President Trump, it could be Vice President Biden, but let the next President decide.

Don't rush a nominee through mere days before an election in what is sure to be the most controversial and partisan Supreme Court nomination in our Nation's entire history.

Maybe Justice Ginsburg hoped that her dying wish could save the Senate majority from itself. It doesn't appear that way, but here on the floor this afternoon, we ask our colleagues to acknowledge her entire life and legacy, including her dying wish.

As in legislative session, I ask unanimous consent that the Senate proceed to the immediate consideration of the Schumer resolution related to the death of Ruth Bader Ginsburg, Associate Justice of the Supreme Court of the United States, which is at the desk. I further ask that the resolution be agreed to, the preamble be agreed to, and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The Senator from Texas.

Mr. CRUZ. Reserving the right to object, this endeavor started with a resolution that the majority put forward that was intended to be a bipartisan resolution commemorating the life and service of Justice Ruth Bader Ginsburg. That follows the bipartisan tradition this body has followed in commemorating Justices when they have passed.

Unfortunately, the Democratic leader has put forth an amendment to turn that bipartisan resolution into a partisan resolution. Specifically, the Democratic leader wants to add a statement that Justice Ginsburg's position should not be filled until a new President is installed, purportedly based on a comment made to family members shortly before she passed.

That, of course, is not the standard. Under the Constitution, members of the Judiciary do not appoint their own successors. No article III judge has the authority to appoint his or her own successor. Rather, judicial nominations are made by the President of the United States, and confirmations are made by this body, the U.S. Senate.

I would note that Justice Ginsburg was someone whom I knew personally. I argued nine times before Justice Ginsburg at the Supreme Court. She led an extraordinary life. She was one of the finest Supreme Court litigators to have ever practiced. She served 27 years on the Court, leaving a profound legacy. Justice Ginsburg understood full well that the position being put forth by the Democratic leader is not the law and is not the Constitution. Indeed, I will quote what Justice Ginsburg said just 4 years ago.

Reported in the Washington Post on September 7, 2016, Justice Ginsburg is reported to have said:

> The president is elected for four years not three years, so the power he has in year three continues into year four. Maybe members of the Senate will wake up and appreciate that that's how it should be.

Now, of course, when Justice Ginsburg said that, that was when President Obama had made the nomination of Merrick Garland to the Supreme Court, and the Senate had declined to consider that nomination. Without even a hint of irony, every Democrat who is now screaming from the ramparts that we cannot consider a vacancy on the Court during this election year was screaming equally as loudly from the ramparts that we must consider a nomination during a Presidential election year just 4 years ago.

Joe Biden vociferously called for the Senate to consider that nomination. Barack Obama called for the Senate to consider that nomination. Hillary Clinton called for the Senate to consider that nomination. The Democratic leader said the Senate was not doing its job if we didn't consider that nomination. To my knowledge, every Democratic Member of this body, likewise, decried the decision not to take up that nomination and insisted the Senate was not doing its job.

Well, today, obviously, the situation has changed, whereby all of those Democratic Members who demanded the Senate take up a nomination to the Supreme Court are now demanding the Senate not take up a nomination to the Supreme Court.

To be sure, the Republican majority that declined to consider that nomination is now going to take up President Trump's nomination to this vacancy, but I would note the circumstances are markedly different, and history and more than two centuries of precedent are on the side of what this Senate will do.

The question of whether a President should nominate a Supreme Court Justice to fill a vacancy that occurred during a Presidential election year has occurred 29 times in our Nation's history. This is not new—29 times. Of those 29 times, Presidents of both parties, Democrats and Republicans, have nominated Justices 29 times. Every single time there has been a vacancy during a Presidential year, a President has nominated a Justice to that vacancy. Of the 44 individuals who served as President of the United States, 22 have done so. Fully one half of the Presidents who have ever served this country have made Supreme Court nominations during Presidential election years.

So what is the difference?

Well, there is a sharp difference in our Nation's history depending upon whether the Senate is controlled by the same party as the President or a different party from the President. So, of the 29 times in history, in 19 of those times, the Senate and the Presidency were controlled by the same party. When that happened, the Senate took up and confirmed those nominees 17 of the 19 times.

Do you want to ask what history shows this body does when the President and the Senate are of the same party and a nomination is made during a Presidential election year? This body takes up that nomination and, assuming a qualified nominee, confirms that nominee.

On the other hand, what happens when the President and the Senate are of different parties? Well, that has happened 10 times in our Nation's history. In all 10 times, the President has made a nomination, but in those circumstances, the Senate has confirmed those nominees only twice, and 2016 was one of those examples.

Now, the Democratic leader gave a passionate speech, which I know he believes, about what kind of Justice he would like to see on the Court. Democratic Members of this body have long championed judicial activists who would embrace a view of the Constitution that, I believe, would do serious damage to the constitutional liberties of the American people.

The interesting thing about the Democratic leader's speech is that the argument was presented to the voters, and the voters disagreed. In 2016, Hillary Clinton promised to nominate Justices just like the kind the Democratic

leader said he wanted to see, and President Trump promised to nominate Justices ''in the mold of Justice Scalia and Justice Thomas.'' The American people had that issue squarely before them, and the voters chose that we wanted constitutionalist judges nominated to the Supreme Court. It was not only regarding the Presidential election but the Senate majority. The American people voted for a Republican majority in the Senate in 2014. The American people voted for a Republican majority again in 2016, and, in 2018, the American people grew our majority.

In all three of those elections, the question that the Democratic leader has put forward was directly before the voters. What kind of Justices do you want? The voters clearly decided and had given a mandate.

The President has said he is going to nominate a Justice this week. That is the right thing to do. This body, I believe, will take up, will consider, that nomination on the merits, and I believe we will confirm that nominee before election day. That is consistent with over 200 years of Senate precedent from both parties.

There is, however, something that the Democratic leaders and Democratic Members of this body are threatening that is not consistent with history or precedent or a respect for the Constitution, and that is, namely, a threat to pack the Supreme Court. We have heard multiple Democrats say that, if the Senate confirms this nominee and the Democrats take the majority next year, they will try to add two or four—or who knows how many—Justices to the Supreme Court. Well, you know, there was another Democratic President who tried to do that—FDR. Even though he had a supermajority, the Democratic Congress rejected his efforts as an effort to politicize the Supreme Court.

Since the Democratic leader believes we should follow the wishes of Justice Ginsburg, I think it is worth reflecting on what Justice Ginsburg said about this. She was asked about this in an interview with NPR, and her statement was as follows:

> Nine seems to be a good number. It's been that way for a long time. I think it was a bad idea when President Franklin Roosevelt tried to pack the court.

Well, unfortunately, it seems the Democratic leader and Democratic Senators are repeating the partisan mistakes of their predecessors in threatening the Court and threatening to pack the Court, which would be truly a radical and bad idea, as Justice Ginsburg explained.

Accordingly, what I am going to do is propose modifying the Democratic leader's resolution to delete his call that we leave this vacancy open, that we leave the Court with just eight Justices, which opens up the possibility of a 4-to-4 tie, not able to resolve a contested election, and leaving this country for weeks and months in chaos if we have a contested election in November. Instead, let's replace in the resolution the quote from Justice Ginsburg that packing the Court is a bad idea and have the Senate agree that packing the Court is a bad idea.

I am confident that, when I ask the Democratic leader, he is going to reject this because we are, sadly, seeing one side of the aisle embrace more and more dangerous and radical proposals, including trying to use brute political force to politicize the Court. That is neither consistent with the Constitution nor is it consistent with two centuries of this body's precedent.

Accordingly, I ask that the Senator modify his request and, instead, take up my resolution at the desk. I further ask that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Does the Senator so modify his request?

Mr. SCHUMER. Madam President, reserving the right to object, I believe Justice Ginsburg would have easily seen through the legal sophistry of the argument of the junior Senator from Texas. To turn Justice Ginsburg's dying words against her is so, so beneath the dignity of this body.

I do not modify.

The PRESIDING OFFICER. Is there objection to the original request?

Mr. CRUZ. I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Iowa.

BIDEN TAX PLAN

Mr. GRASSLEY. Madam President, last week, former Vice President Biden released his Presidential tax plan. I wish he would release the list of people he is going to put on the Supreme Court, like he said he was going to do in June. He hasn't done that, and, I think, yesterday, he said he wasn't going to do it, but we do have his high-tax plan.

He has vowed to raise taxes immediately on U.S. businesses even though our country is recovering from the worst economic crisis since the Great Depression. Usually, when you are in that economic condition, you don't raise taxes, and the very last thing struggling Americans need, and particularly the businesses that create the jobs, is a massive tax increase at this time. Of course, Mr. Biden's tax plan shouldn't come as a surprise to anyone. His party seems to think the answer to every problem in America is to raise taxes and spend more money.

When he was Vice President, the U.S. corporate tax rate was the highest in the industrialized world. It isn't now because of President Trump's tax proposals and the tax reform legislation we passed December 2017. Prior to tax reform, U.S. companies were not competitive with their foreign counterparts. And there were constant headlines about companies that were moving their headquarters overseas, largely because of our outdated tax system.

In fact, a number of Mr. Biden's proposals make me think that he is reliving his time as Vice President. His plan to increase the corporate tax rate from 21 to 28 would very quickly take us back to those days. Once again, this country would be saddled with the highest business tax rates in the industrialized world, taking into account Federal and State taxes in this country. U.S. companies, both large and small, would see higher taxes than their foreign competitors in France, Germany, the UK, and other major trading partners. In some cases, those taxes would be as much as 15 percentage points higher.

Mr. Biden says our tax system encourages offshoring, profit shifting, and inversions. Back when he was Vice President, those things actually happened: offshoring, profit shifting, and inversions.

When Mr. Biden was Vice President, the U.S. tax law allowed companies to defer their foreign earnings until they were brought back to the United States. Why would you bring them back when we had the highest tax rate in the industrialized world?

That system allowed many companies to delay paying taxes on their foreign earnings, and in some cases, that could be indefinitely.

As part of tax reform, we specifically sought to end the parking of profits overseas. We wanted that money to come home so that money would be invested in this country and would create jobs.

That is why we enacted the tax on global intangible low-tax income—or GILTI, as it is referred to—which imposes a minimum tax on foreign earnings in low-tax countries.

And when Biden was Vice President, there were plenty of opportunities for what we call base erosion. That is why we created the base erosion anti-abuse tax—or the BEAT, as it is called—which targets deductible payments made to foreign affiliates. We also imposed limits on the deductibility of interest.

Together, these policies addressed loopholes so companies can't erode the U.S. tax base and avoid taxes.

While tax reform cracked down on notable abuses, it also had the positive effect of making the United States a far more attractive place to invest—not only for profits of U.S. companies coming home but for foreign investment in America as well.

We created the foreign-derived intangible income rules to incentivize companies to keep intellectual property in this country, not abroad.

We also allowed immediate expensing of investments to encourage companies to put their facilities and jobs here on U.S. soil. And President Trump has gone way beyond the new tax law to provide incentives to get industry back to this country.

Now, Mr. Biden may be harkening back to 2014, but let's all remember that companies then were announcing

left and right their plans to invert or move their headquarters overseas, but since our 2017 Trump tax reform, I haven't heard of any companies with inversion plans. Quite the opposite, companies have called off inversions and even brought back operations to this country, and they are citing our tax reform as the main reason for doing it. So why would Mr. Biden want to undo that?

Even more curious is that Mr. Biden's own talking points suggest that he supports a number of our tax reform policies in that 2017 bill.

Kimberly Clausing, who reportedly advises Mr. Biden on tax policy, has said the Tax Cuts and Jobs Act ''should be commended for providing some limits on tax avoidance through the GILTI and the BEAT.''

What is more, Ms. Clausing has estimated the new rules under the 2017 tax bill will result in a 20-percent decrease in shifting profits overseas.

That is consistent with the Joint Committee on Taxation's macroeconomic estimate in 2017 that found that tax reform would reduce profit shifting and increase the U.S. tax base.

Nevertheless, Mr. Biden wants to double down on increasing taxes on U.S. businesses and, in fact, undo the progress that we have seen since tax reform in 2017.

In addition to higher taxes on domestic earnings, he also wants to increase the rate on U.S. companies' foreign earnings to 21 percent. That is almost double the 12.5-percent rate that the OECD is targeting for its global minimum tax.

I guess the former Vice President wants to ensure that no country can top the United States when it comes to the highest tax rates possible.

And that is not all. Mr. Biden proposes an additional 10-percent penalty on goods and services imported by U.S. companies from foreign affiliates.

Now, even the Washington Post editorial board noted earlier this month that Vice President Biden's policy simply ignores the reality of global supply chains.

Do we, in fact, really want to encourage foreign countries to tax goods and services imported from the United States? That could be a slippery slope.

The truth is, Mr. Biden is trying to fix problems from the last administration. Republicans already met that challenge, and tax reform of 2017 is working.

Data from the Bureau of Economic Analysis clearly shows that tax reform stemmed the flood of offshoring, while encouraging U.S. companies to invest right here in the United States.

In fact, among U.S. multinationals, employment investment, research, and production in the United States has increased at a faster rate in 2018 than the average rate over the past 20 years—faster than the growth rate of U.S. multinational companies that are abroad.

Of course, there is more work to be done. But tax reform has made this country a more attractive place for businesses to headquarter, invest, and create jobs.

Now, if the former Vice President succeeds in his plans, it will not just be our businesses that will bear the brunt.

The Joint Committee on Taxation and Congressional Budget Office have both concluded that 25 percent of the corporate tax is borne by workers. So workers will be hurt. They will feel the burden of the Biden plan thorough fewer jobs, through reduced wages, and through less benefits.

Above all, the Biden tax plan ignores the reality of today. We are trying to see our way out of the global pandemic. Undoing the progress that we have made through tax reform, especially now, is certainly not a prescription for economic recovery and growth.

What is more, the Vice President's plan will do nothing to speed the progress that we made reducing unemployment since the height of the pandemic. Instead, it will do just the opposite, work against it.

The Biden tax increases wouldn't be good policy in the best of conditions, but they are certainly bad policy right now because of the economic hardship caused by the pandemic.

If Mr. Biden really wants to keep living in the Obama era, he should recall President Obama's sound advice on tax policy during a crisis, the financial crisis of 2009 and 2010, when President Obama said this: ''The last thing you want to do is raise taxes in the middle of a recession.''

That is something we should all be able to agree upon.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arkansas.

(The remarks of Mr. COTTON pertaining to the introduction of S. 4648 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

Mr. COTTON. I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

SUPREME COURT NOMINATIONS

Mr. MENENDEZ. Madam President, our Nation has suffered a historic loss in the passing of legal giant Justice Ruth Bader Ginsburg, and I fear the rush to replace her with just 44 days left before the next Presidential election will have grave consequences for the lives of millions of Americans.

As tempting as it is, I am not here to talk about the stunning hypocrisy of my Republican colleagues who once opposed filling any Supreme Court vacancy during a Presidential election year now changing the reasons for doing so like a willow in the wind.

Well, make no mistake, their willingness to abandon their word in the naked pursuit of power and deny the American people a voice in this process is truly stunning. Today, I want to talk about the consequences of their hypocrisy, not for our process here in the Senate but, rather, for the lives and livelihoods of millions of families across this Nation.

Everything Americans care about and depend on is on the line, starting first and foremost with their healthcare. President Trump has already declared that whoever his nominee is, his nominee to the Court will vote to ''terminate'' the Affordable Care Act and reverse Roe v. Wade.

The Trump administration is closer than ever to tearing healthcare away from millions of people by overturning the law that gave it to them in the first place. It is especially outrageous to see the administration threaten the healthcare of millions of Americans at this perilous moment in our history—with nothing, by the way, to replace it.

Since the passage of the Affordable Care Act, they have said they have a better plan. Well, now 11 years later or so, maybe almost 12 years, we have yet to see what that plan is.

We are in the midst of a deadly, once-in-a-century pandemic. A staggering 200,000 Americans—fathers and mothers, sisters and brothers, dear friends and beloved grandparents—are gone forever. Meanwhile, millions of people nationwide are infected with the coronavirus. To this day, many survivors of COVID–19 are grappling with lasting healthcare challenges, from chronic shortness of breath to lifelong scar tissue in their lungs.

We are still learning about the long-term health impacts of contracting COVID–19, but here is one thing we do know: Every single one of these survivors now has a preexisting condition that makes them vulnerable to insurance company discrimination without the protections guaranteed by the Affordable Care Act. That is in addition to the estimated 135 million Americans who already live with common preexisting conditions like chronic asthma, diabetes, and high blood pressure, to mention a few.

Remember what it was like before the Affordable Care Act? A health insurance company could refuse to cover you or provide your care or even kick you off your plan due to your medical history. A child born at birth with a birth defect couldn't get health insurance. The husband who had a heart attack couldn't get health insurance. A woman with cervical cancer couldn't get health insurance afterward—a preexisting condition. We don't want to go back to those days, but that is exactly where the Trump administration will take us should they prevail at the Supreme Court, as this case is pending before the Supreme Court.

Now, despite what they say, the Republican mission has been clear for a decade: to kill the Affordable Care Act, to strip away healthcare from millions of Americans, all the while lying about how they will protect individuals with preexisting conditions. It is shameless.

Just as dangerous is the prospect of a Supreme Court that will overturn Roe v. Wade and roll back the reproductive rights of women. That is what is at stake with this Supreme Court seat—the basic principle that women have a

right to make their own private medical decisions. The American people overwhelmingly believe that women, not the government, should be allowed to decide when they have children.

There is no question that the right to choose is inseparable from the past half-century of progress achieved for women's equality in the United States. It is that progress that Justice Ruth Bader Ginsburg devoted her entire life's work to advancing—the right to pursue their own destinies with full equality under the law.

It is not just healthcare that is on the line; it is our voting rights, our civil rights, workers' rights, immigrant rights, and LGBTQ rights as well. More than that, it is the right of the American people to see their elected representatives enact the kinds of policies they support, like bold action on climate change without corporate-backed challenges at the Supreme Court undoing their wishes.

A Supreme Court nominee has never been confirmed this close to a Presidential election. Americans are already voting as we speak. Should my colleagues in the majority abandon all their prior commitments and deny the American people the opportunity to make their voices heard, I fear we could do lasting damage to the legitimacy of the Supreme Court.

This is an institution that rests on the trust and reverence of the American people. Losing that trust and reverence is dangerous. It is dangerous. It is dangerous for millions of people who will lose the Affordable Care Act's protections. It is dangerous for women who could lose their right to choose and all of us who do not want to turn back a half-century of progress. It is dangerous for our economy at a time when American workers and consumers find themselves at the mercy of corporations that have grown larger and more powerful than at any other time since the Gilded Age. It is dangerous for the future of our planet and safety of our climate at a time when the West is burning, seas are rising, and the Earth is warming faster than ever before. Quite frankly, it is dangerous for our democracy.

We owe the American people a voice and a decision that will shape the course of history for generations. We owe the memory of Ruth Bader Ginsburg and her seat on the Supreme Court more than just another political power grab.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. VAN HOLLEN. Madam President, last Friday, our country lost a trailblazer for equality, a moral giant, and a lover of justice—the great Justice Ruth Bader Ginsburg, affectionately known as RBG. While physically small, she had a towering impact on American jurisprudence. While the volume of her voice was not high, her words carried farther and had a greater impact than the louder voices that were often around her.

She famously observed that many of the laws on the books that pretended to put women on a pedestal actually put them in cages, and then she proceeded to bring cases to strike down those discriminatory walls. She transformed America's legal landscape, especially in the area of gender equality, and that was before she was even appointed and confirmed to the Supreme Court.

On the Supreme Court, with intelligence and persuasion, she was often able to bring others to her point of view, and when she couldn't, she could write a stinging dissent, which she viewed as a conversation with the future. She had optimism in our Nation's pursuit of justice—that her dissents would be vindicated in time, and I dare say that they already have in so many cases, including her dissent in the voting rights case with the reprehensible 2013 decision where, on a 5-to-4 vote, the Supreme Court took a bite out of the Voting Rights Act. She predicted that as soon as that happened, many of the States that had been subject to the preclearance provisions would begin to put up barriers to voting, and that is exactly what happened.

Speaking of the future, her deathbed wish communicated to her granddaughter—her most fervent wish—was that she not be replaced until a new President is installed, whoever that President may be.

She died last Friday on Rosh Hashanah. It was a moment when the country needed to come together to celebrate her life and honor her legacy, and that is what so many people did around the country. We saw an outpouring of support from coast to coast, north to south, east to west. We saw large crowds gathering at the Supreme Court. But here in the U.S. Senate, the majority leader didn't have the decency to even provide a respectful pause, a respectful timeout to honor that legacy. Just over 1 hour after her death was announced, he put out a statement announcing his power play—a statement saying that President Trump's nominee, whoever it may be to replace her, would get a vote. The majority leader rushed to do that despite taking the opposite position in March of 2016 when Justice Scalia passed away and President Obama nominated Merrick Garland.

The majority leader rushed to commit to that vote on President Trump's nominee even though, in the middle of this COVID–19 pandemic, we have not even had a chance to vote here in the Senate on the Heroes Act, which passed the House of Representatives over 4 months ago, providing emergency comprehensive relief to families and workers and small and medium-sized businesses that are hurting from this pandemic. We haven't had a vote on that in 4 months. Yet, within 1 hour of Justice Ginsburg's death, the Republican leader announced: ''We will have a vote'' on President Trump's Supreme Court nominee.

Our country just reached the grim total of 200,000 Americans dead from COVID–19. More Americans have died from COVID–19 than in any other country on the planet, and a big share of those dead are the direct result of President Trump's calculated indifference—what he describes as ''downplaying'' the threat. Well, downplaying a known threat led to inaction, and inaction led to thousands more Americans dying than would have been the case. That inaction has led to far more economic pain and fallout from COVID–19 than had to be the case.

We wouldn't have all of these schools closed right now if the President had taken more rapid action and if we had comprehensive universal and rapid testing. But here we are because Trump wanted to ''downplay'' the threat.

The President has opposed the Heroes Act, which passed the House of Representatives, and there is still no vote here in the Senate on that important legislation to help a country in need—so no vote on that. But, my goodness, they just couldn't wait to announce, within 1 hour of the Justice's passing away, that this Senate would vote on Trump's Supreme Court nomination.

That is despite what Majority Leader MCCONNELL said in 2016. When Justice Scalia passed away and President Obama nominated Merrick Garland to fill the seat, you heard Senator MCCONNELL and many Republicans say: Can't do it. We are in the middle of an election year.

In fact, the majority leader went so far as to instruct his Republican Members not even to meet with Merrick Garland. They didn't even have a hearing for Merrick Garland. The majority leader and so many Republican Senators said: Oh, we can't do that because primary voting has begun in this 2016 Presidential election year. Primary voting has begun. It is underway. It is important to let the American people weigh in on the Presidential election and then allow whoever wins that Presidential election to make their nomination to the Supreme Court.

That is what we heard from Senator MCCONNELL and so many of our Republican Senate colleagues back in 2016—that democracy required that the people's will be heard in the Presidential election year.

Well, it turns out that all of that was just a pure political ploy; that we are going to see one set of rules for Democratic Presidents like Barack Obama and another set of rules from the Republican majority for Republican Presidents like Donald Trump. The dishonesty and rank hypocrisy is obscene, and the American people, regardless of party, see it for what it is.

But as bad as the hypocrisy and the dishonesty is, this is about even more than that. In fact, it is about much more than that. It is about the future direction of our country and the direction of justice in our Nation. It is about whether we have a Supreme

Court that truly stands for equal justice under law, as Justice Ginsburg did. It is about whether we will protect women's rights, as Justice Ginsburg did throughout her career before and after being on the Supreme Court.

We know where President Trump stands on that. We know he was asked during his Presidential campaign on national television about a woman's right to reproductive freedom. He said that women who would choose to have an abortion should be punished—should be punished. And he has said that he will appoint a Justice who will make sure that is what happens. That is what he said.

We are going to see a Justice who wants to strike down workers' rights and protections, and we are going to see a Justice who wants to destroy the Affordable Care Act.

The Affordable Care Act provides important protections to the American people during ordinary times. It is especially important now, as we face this COVID–19 pandemic. We know it has been the goal of President Trump and Republicans for years to destroy and overturn the Affordable Care Act. After all, I think many of us remember being right here on the Senate floor in the summer of 2017. The Speaker of the House, Paul Ryan, and a majority of Republicans in the House at that time had passed a law to overturn the Affordable Care Act. President Trump was itching to sign it. But here in the Senate, we defeated that effort by one vote—one vote in the U.S. Senate.

Why did that happen at the time? A lot of people thought it was a forgone conclusion that this Republican majority Senate would vote to strike down the Affordable Care Act. It is because the American people rose up and said: Hell no. People with diabetes, cancer, heart disease, and other preexisting health conditions, and so many other Americans said: Do you know what? This isn't a partisan issue. It is not a partisan issue if I have cancer or diabetes or asthma or other preexisting conditions. Don't take it away.

Guess what. COVID–19 is not a partisan disease either. It will strike people, of course, regardless of political party.

So the American people got to the phones, got to social media, occupied people's offices, and they said: Hell no. And by one vote, we protected the Affordable Care Act here in the U.S. Senate.

That should have been the end of the story, but it wasn't because what Republicans could not do through the democratic process here in the U.S. Senate, they decided to take to the courts. President Trump and his Attorney General Barr are in court right now, trying to do there what they could not succeed in doing here in the U.S. Senate—trying to destroy and overturn the Affordable Care Act.

Guess when the Supreme Court hearing on that Affordable Care Act case is scheduled to take place: November 10—November 10, 1 week—1 week—after the November 3 election.

So we see the power play here: Jam through a Supreme Court nominee. Put them on the Court in time for that hearing so they can hear the case and be part of overturning it.

Make no mistake, President Trump has pledged to appoint a Supreme Court Justice who will knock down the Affordable Care Act. We don't know who it is going to be, but we know it is going to be somebody who the President believes will strike down the Affordable Care Act.

How do we know that? Here is what Candidate Trump said: ''If I win the presidency, my judicial appointments will do the right thing unlike Bush's appointee John Roberts on ObamaCare.'' That is Candidate Trump in June of 2015.

Here is what Candidate Trump said on another occasion:

> I'm disappointed in [Justice] Roberts because he gave us ObamaCare. He had two chances to end ObamaCare. He could have ended it by every single measure and he didn't do it, so [it is] disappointing.

He says this on numerous occasions—numerous occasions.

He also tweeted out that in 2012, he supported—this is 2012 when now-Senator ROMNEY was running for President. Donald Trump tweeted out then: I am 100 percent supporting MITT ROMNEY's position that we need a Justice on the Court to strike down ObamaCare.

So nobody should be playing any games. The President has told us he is going to nominate somebody to strike down the Affordable Care Act. That hearing is scheduled 1 week after the November 3 election.

All of those issues are at stake right now. It appears that we have enough Republican Senators who have said that we will proceed to consider the nomination. They have abandoned the position that MITCH MCCONNELL, the Republican leader, and so many Senators took in 2016 with Barack Obama—President Obama—when they refused to provide a hearing. So we are going to proceed. But let's remember the President has pledged that he will nominate somebody who will get rid of the Affordable Care Act and who will strike down a woman's right to choose. That is what the President has said.

Just as the American people began to get to the phones and on social media and to contact their Senators in the summer of 2017 when healthcare was at risk, when the Affordable Care Act was at risk, we need to make sure that the word gets out again. Back in 2017, we stopped that from happening by one vote in the U.S. Senate because the American people understood what was at stake.

Here we are now, in a global pandemic. Instead of focusing on the pain the American people are feeling at the moment, instead of allowing us to vote on the Heroes Act, we have this Republican majority trying to power through a Supreme Court nominee to strike down the Affordable Care Act, to do through the courts what they were unsuccessful doing here on the Senate floor in the summer of 2017.

Let's recognize the consequences of this abuse of power and the impact and harm it will do to the American people. Let's take the advice and dying wish of Justice Ginsburg: Allow the American people to speak on November 3 and then allow whoever is sworn in on inauguration day in January to put forward a nominee to be considered by the U.S. Senate.

Thank you.

I yield the floor.

The PRESIDING OFFICER (Mr. CASSIDY). The Senator from Mississippi.

UNANIMOUS CONSENT REQUEST—S. 3072

Mrs. HYDE-SMITH. Mr. President, in a few moments, I will ask unanimous consent for the Senate to take up and pass legislation I have introduced to protect women from harm and to protect their health.

This is such an important issue to me as a Senator, as a woman, and as a mother. I am pleased several of my Senate colleagues have joined me on the floor to discuss this important issue, and I look forward to hearing their remarks as well.

Twenty years ago this month, the Food and Drug Administration approved, for the very first time, the abortion pill known as mifepristone. It did so under the immense pressure from the Clinton administration and its pro-abortion allies. However, when the FDA approved this drug, it recognized the serious risk of complications and life-threatening side effects that can be caused by this drug. Because of the risk of harm, and even death, the FDA put in place certain rules to protect the health of women. These rules are known as risk, evaluation, and mitigation strategies—or REMS for short—because they work to mitigate the risks posed by this drug to women.

These commonsense rules require a woman to see a doctor to get the drug, to be fully informed of the potential side effects and how she can seek followup treatment for those life-threatening side effects, and to offer her informed consent before being prescribed the drug.

These simple, commonsense rules have been in place to protect the health of women for over 20 years. Recognizing their importance, I introduced the SAVE Moms and Babies Act last year to codify these rules into law to make sure they remain in place to protect women from these serious side effects. However, pro-abortion forces oppose even these basic protections for women's health and have been working to undermine them, putting women at serious risk.

This summer, a judge in Maryland issued a nationwide injunction canceling these REMS rules for the entire country. We knew this was coming. Back in April, I led 150 Members of Congress, including 38 Members of this

body, in warning the FDA about this issue, and now pro-abortion advocates have found one activist judge to rule in their favor, putting women's health at risk in the middle of a pandemic.

Even with the REMS rules in place to protect women's health, a substantial number of women end up needing lifesaving surgery or blood transfusions following chemical abortion. Sadly, some women have even died from these dangerous drugs.

Make no mistake, no protections mean more adverse events for women. These protections ensure that a doctor could examine the woman to see if she has an ectopic pregnancy or is RH negative. These conditions can seriously increase the risk of harm to a woman taking this drug.

No REMS protections means at-home abortion without medical oversight, putting women at risk of bleeding out and dying alone without a doctor to help her. No REMS protections mean that every State health and safety law that protects women from harm will be at risk. No REMS protections mean mail-order abortion without physicians providing the screenings recommended by the doctors and scientists at the FDA.

That is why it is more important than ever to pass my bill, the SAVE Moms and Babies Act, to codify into law the important FDA REMS rules that protect women from the dangers inherent in mail-order, do-it-yourself chemical abortions.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, an abortion is always tragic, as it involves the taking of an innocent human life, one that has yet to draw its first breath or commit its first sin. In the case of a chemical abortion, it sometimes takes two lives: that of the baby and that of the mother.

Advocates for this procedure will say that it is simple, it is easy, it is convenient, and it is safe. They claim that it is a good and valuable form of ''healthcare'' for women, but nothing could be further from the truth. The grim and gruesome reality is that this barbaric practice wreaks havoc on women's bodies and destroys the tiny bodies growing within them.

So just how does this procedure work? The details are not pleasant. First, the mother is given a pill that blocks progesterone. This, of course, is a hormone that is necessary for pregnancy, and it breaks down the lining of her uterus. Without progesterone, you see, the baby, whose heart is already beating, is starved to death and dies in her mother's womb.

Then, 24 to 48 hours later, the mother is given a second pill, one that empties her uterus by causing severe contractions and bleeding, mimicking early miscarriage. It can last anywhere from a few hours to a few weeks.

Planned Parenthood will try to gloss over the truth here, as elsewhere, claiming that a hot shower and some ibuprofen are enough for a quick recovery to get the mother back on her feet, but, on average, the miscarriage lasts between 9 and 16 days and can last for as long as 30 days. Thirty days—that is a long time.

Most of the time these abortions are done at home. The mother is left to suffer alone, without care or medical attention, without supervision from a doctor or a nurse, and often without any followup whatsoever until 7 to 14 days later, if ever, keeping in mind that many of them don't get any followup care at all.

The result? Well, women have suffered tragic, gruesome, and horrific experiences using the abortion pill. It has caused nearly 4,200 adverse medical events, including more than 1,000 hospitalizations and nearly 600 instances of blood loss requiring transfusions.

Some women have even died. The FDA has reported 24 maternal deaths from the abortion pill just since its approval in 2000, and those are just the officially reported ones that we know of that have happened with the regulations we currently have in place. Based on the assumption that those regulations are in place, that is still a really high rate at which they die.

Some women need corrective surgery after taking the abortion pill and others require lifesaving procedures. And, somehow, we call this healthcare. This is not like popping a Tylenol. This two-step abortion cocktail poses severe risks to women, not even to mention their unborn babies.

In fact, abortion pills are one of only a few medications that require what is known as a risk evaluation and management strategy, a drug safety program that the FDA requires for medications with serious risks. Yet some are pushing to further expand access to these drugs and even further loosen the regulations around them.

Some activists are even pushing for access to the abortion pill by mail, meaning that the patient would never even have to be seen in person by any medical professional at all—not a medical clinic, not a doctor, not a nurse—nothing in person.

The standards of care surrounding this practice are already reckless, they are already harmful, and they are already causing misery, injury, suffering, and death. In fact, they are unacceptable standards of care for women and for babies. The last thing we should be doing is making them even worse, making them even more vulnerable than they already are.

So setting aside for a minute how you feel about other issues related to unborn human life in this area, let's just talk about this issue for a moment. Let's just talk about whether this issue is really one that we want to expand, where we increase the amount of misery, the amount of suffering, and the amount of carnage that would occur as a result of more people gaining access to this deeply flawed, very dangerous form of so-called healthcare.

That is why we ought to support the bill put forward by my friend and colleague Senator HYDE-SMITH. The SAVE Moms and Babies Act would prohibit the FDA from approving new abortion drugs, from loosening any regulations that exist on already approved abortion drugs, and from dispensing abortion drugs remotely or through the mail.

The purpose of healthcare is to heal, to preserve, and to protect human life. A chemical abortion happens in the first trimester of life, up to about the tenth week of pregnancy, when an unborn baby already has a beating heart, when an unborn baby already has a growing brain, and when the growing baby already has 10 fingers and 10 toes.

She deserves a shot at life, at the beginning of life, at the front door, and she deserves to not have it taken away and, literally, flushed down the drain. Mothers deserve the utmost care, protection, and support as they nurture the human life inside of them, not medical harm and not medical neglect.

Our healthcare system should protect and care for them both, and our laws should uphold the immeasurable dignity and worth of both. This bill is a step in the right direction, and I implore all of my colleagues to support this legislation.

The PRESIDING OFFICER (Mrs. HYDE-SMITH). The Senator from Louisiana.

Mr. CASSIDY. Madam President, I thank the Presiding Officer, Senator HYDE-SMITH, and Senator LEE for organizing this colloquy and participating in it in support of the Support and Value Expectant Moms and Babies Act. I love that title: Support and Value Expectant Moms. Isn't that great? We should.

I am a doctor—not an obstetrician, but, nonetheless, I have delivered babies. As a doctor, my mission was to save lives—I don't practice anymore; I use the past tense—and improve health outcomes for all patients.

We are here talking about chemical abortions. Chemical abortions don't do any of that. The health risks can be severe, obviously, for the unborn child but also, potentially, for the mom, and, particularly, when the mother has this without supervision by a healthcare provider.

The total absence of medical support is the total absence of care, and using potentially dangerous chemicals without medical support can lead to the absence of health. If Americans care about a woman's health, they should be concerned when such procedures are allowed.

Yet chemical abortions are on the rise. I am told that in 2017 they represented nearly 40 percent of all abortions. Due to a recent court case, women can begin to receive these through the mail, prescribed without even receiving a physical exam.

Now, the mom who selects that may not know the potential consequences, but, as a physician, I do. The potential

complications include, for example, if the mother has what is called an ectopic pregnancy, where the unborn child and the placenta are not in the womb but are outside of the womb. If that occurs and these pills are taken—the pill known as Mifeprex, RU486—it can cause that pregnancy to rupture, and instead of the bleeding coming out as the child would, through the vagina, it means that internal bleeding occurs, which can result in the mother's death.

Chemical abortions have four times the complications that surgical abortions do in the first trimester, and as many as 6 percent of women taking these abortion drugs require surgery to complete the abortion—potentially painful and life-threatening and, of course, horrific for the unborn child.

The American College of Obstetricians and Gynecologists has stated that ''compared with surgical abortion, medical abortion takes longer to complete, requires more active patient participation, and is associated with higher reported rates of bleeding and cramping.''

The bill we are discussing today, the SAVE Moms and Babies Act, or the Support and Value Expectant Moms and Babies Act, takes substantive steps to protect the health of women and the unborn child. The bill prevents approval of new abortion drugs by the FDA, keeps the risk evaluation and mitigation strategy, or REMS, protocol, and curtails abortion pills from being dispensed by mail or through telemedicine.

I introduced the Teleabortion Prevention Act of 2020 in February, which requires a doctor to physically examine a pregnant mom before prescribing any abortion-related drugs and requires a followup appointment. We actually want women to receive healthcare, by healthcare providers who care about their health.

If Senators in this body really care about women's health, they should join with us to stop these do-it-yourself abortions. Preventing abortion protects unborn babies, but preventing chemical abortions protects women.

Let's work together to protect women by passing the SAVE Moms and Babies Act to forever end dangerous chemical abortions.

I yield the floor.

The PRESIDING OFFICER. (Mr. CASSIDY). The Senator from Mississippi.

Mrs. HYDE-SMITH. Mr. President, as if in legislative session, I ask unanimous consent that the Health, Education, Labor, and Pensions Committee be discharged from further consideration of S. 3072 and the Senate proceed to its immediate consideration. I ask unanimous consent that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

The Senator from Washington.

Mrs. MURRAY. Mr. President, reserving the right to object. The FDA approved mifepristone nearly 20 years ago, and leading medical organizations have made clear that restrictions on it like those that are in this bill are not based on evidence or patients' best interests. This bill is not about science or healthcare or what is best for women across the Nation. It is about ideology and Republicans wanting to do every single thing they can to chip away at the right to a safe, legal abortion.

Not on my watch. This is far from the only Republican effort to ignore the science and the medical professionals and overrule the personal decisions of patients across the country.

At this very moment, they are gearing up to jam through President Trump's Supreme Court nominee and strike down Roe v. Wade. But as sure as I am standing here today to oppose this effort to restrict women's reproductive rights, you can bet I will be standing with women and men across the country to oppose that one too.

I will offer legislation in a moment that actually does work to protect and help women and families in a moment, but for now, on this request, I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Washington.

UNANIMOUS CONSENT REQUEST—S. 4638

Mrs. MURRAY. Mr. President, we are in the middle of a pandemic. Two hundred thousand people have died, millions more have been infected, and this crisis is nowhere close to being over. But are Republicans are offering solutions? Not even close.

We need to be prioritizing science. Instead, they are offering a bill that prioritizes partisan ideology. We need to be making it easier for people to get the care they need. Instead, they are offering a bill with the sole purpose of putting up unnecessary barriers to care. And not only are they wasting time on their partisan war against abortion with this bill—which they know is a nonstarter—they are preparing to jam through a Supreme Court nominee who would make things even worse.

They are fighting to not just overturn Roe v. Wade but to strike down healthcare for tens of millions of people and strike down protections for people with preexisting conditions and to send healthcare costs skyrocketing—all during a pandemic.

I can't believe I have to say this, but we need to be taking steps to make this crisis better, not worse, which is why I am going to offer a unanimous consent request that the Senate proceed to S. 4638—the Science and Transparency Over Politics Act, which Senator SCHUMER and myself and 32 other Democrats introduced today.

Unfortunately, we have seen the Trump administration repeatedly take dangerous steps to undermine and overrule the experts at our Nation's public agencies. We have seen the President spread lies and misinformation and conspiracy theories about their work. We have seen his officials meddle with key scientific reports and apply pressure to promote unproven treatments. And we know this interference can damage public confidence in the science-based guidance our experts issue to help save lives and in their efforts to evaluate a vaccine and make sure it is safe and effective. We just can't let that happen.

This reckless interference didn't start yesterday, and it is clear it is not going to stop tomorrow. So I believe Congress needs to take action to make it stop.

The STOP Act would do just that by providing much needed transparency and accountability. Given how many Republicans have said we need to be listening to the experts and following the science, this bill should not be controversial. It should be common sense.

Mr. President, as in legislative session, I ask unanimous consent that the Health, Education, Labor, and Pensions Committee be discharged from further consideration of S. 4638, and the Senate proceed to its immediate consideration. I ask unanimous consent that the bill be considered read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

Mrs. HYDE-SMITH. I object.

The PRESIDING OFFICER. Objection is heard.

Mrs. HYDE-SMITH. Mr. President, reserving the right to object, I am disappointed but can't say I am surprised that the Senators on the other side of the aisle have objected to the SAVE Moms and Babies Act. The Democrats have shown time and again that they would rather put the profits of the abortion industry over protecting women. That is what is happening again today.

Make no mistake, the Democrats are trying to change to another bill because they want to distract you from what my bill is about. My bill is about protecting women from dangerous at-home abortions without a physician involved whatsoever. That is what my bill does—ensure women have to see a doctor to get this drug, ensure the doctor can examine her to see if she has any conditions that might make her at higher risk for complications, make sure she is fully informed and consents that she is not coerced.

Democrats objecting to this shows you how far to the left the Democratic Party is on abortion. Passing my bill should be a no-brainer. The REMS rules were put into place by a Democratic FDA to protect women. They have been in effect for 20 years, until the judge in Maryland fell for some far-fetched arguments from abortion advocates.

The FDA and HHS implement government health and safety regulations to protect patients and ensure that doctors are doing their job, to make

sure that drugs are safe and that patients are not harmed. That is why we have an FDA and why we have an HHS.

I agree with the Senator from Washington State that FDA and HHS should do this work based on scientific evidence. That is exactly what happened in 2000 when the Clinton administration and FDA scientists looked at the evidence and decided these REMS rules were needed to protect women from the dangers of this abortion drug.

Usually, Democrats support science-based health protections but not when it comes to abortion. When it comes to abortion, they are in the pocket of the abortion lobby and would rather play politics rather than protect women's health.

We can't let Senate Democrats change the subject by trying to bring up another bill that is not related to these REMS protections whatsoever. We can't let them try to change the subject from women's health to their latest conspiracy theory about the President. Therefore, I object.

The PRESIDING OFFICER. The objection is heard.

I do ask, invoking rule XIX, that no Senator in debate shall, directly or indirectly, by any form of words impute to another Senator or to other Senators any conduct or motive unworthy or unbecoming a Senator.

The Senator from Washington.

Mrs. MURRAY. Mr. President, it is disappointing that Republicans would object to a bill that simply provides much needed accountability and support for scientific decisionmaking. It is especially disappointing they would object to it during a pandemic and while simultaneously pushing for an ideological bill that would undermine patient's care and reproductive rights.

Rest assured, the minority leader, Senator SCHUMER, and I and the rest of our Democratic caucus are not giving up, and we will continue to fight on behalf of women and families.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

Mr. LEE. Mr. President, point of parliamentary inquiry: What was the statement that prompted the admonition under rule XIX?

The PRESIDING OFFICER. Democrats are in the pockets of the abortion industry.

The Senator from Utah.

Mr. LEE. Mr. President, I appreciate the thoughtful discussion that we have had today between my colleague from Mississippi and my colleague from the State of Washington. I also appreciate the thoughtful insight that the Senator from Louisiana provided in his remarks.

I feel it necessary to address a couple of issues that were raised by my friend and distinguished colleague from the State of Washington. There are differences that Members have—differences of opinion—when it comes to a wide variety of issues.

When it comes to abortion, people have different approaches they take. I know my own view, and I know the views taken by many of my Democratic colleagues. But it is important to point out here what we are talking about and what we are not talking about.

One of the first arguments that we heard today from the Senator from Washington related to Roe v. Wade. And as long as we are on the topic of imputing to another person improper motives or motives not apparent on the face of a piece of legislation, if one is going to impute to the Senator from Mississippi the intention of undoing a Supreme Court precedent, I would like to point out that is manifestly not within the scope of this legislation, nor is it the place of any Senator to purport to know the subjective motivation behind Senator HYDE-SMITH's legislation here.

I am not going to purport to know the reason why she said that. I just want to point out, that is not the point of this bill. This bill has nothing do with Roe v. Wade. You can feel however you want about Roe v. Wade. This isn't it. I know that is a convenient excuse to not have to deal with something—something real, something that has to do with the lives and the health and the well-being of women, to say nothing about the unborn human lives within them.

From those who would invoke science in opposing this bill, I would ask, on what planet does science back the idea we should remove the REMS restrictions from this supposed so-called form of healthcare—a form of healthcare that, as I mentioned a few moments ago, has resulted in thousands upon thousands of complications in the two decades it has been on the market? On what planet can one contend that one can't support this legislation without being opposed to science?

Back to the Roe v. Wade question. If every single time someone gets up to try to present legislation—legislation that as far as I can tell, the Senator from Washington wasn't claiming was outside of our legislative purview as Federal lawmakers—if every single time someone gets up to try to raise legitimate questions of public policy regarding the health, safety, and welfare of the American people, of the American patient, of American women subjected to very serious side effects from a piece of legislation—if no one can present legislation without being accused of trying to undo a 1973 court decision, which is, on its face, not even at issue in this legislation, then we are going to have a hard time carefully considering these things.

Last I checked, it is our job to decide questions of public policy—questions that are squarely within our Federal jurisdiction. One could argue, I suppose, about whether it was a good idea to put exclusive jurisdiction over the regulation of pharmaceuticals in this country under the FDA. One could make that argument.

I don't understand the Senator from Washington to be making a federalism argument. If she wants to have that conversation, I would love to have that with her. That would be fantastic. In fact, I would love to raise federalism concerns anytime we are discussing anything because it is far too seldom invoked here.

But that is not what this is about. What that argument was about was instead that the Senator from Mississippi supposedly is trying to overturn Roe v. Wade. And it couldn't possibly be the fact that she is there genuinely concerned about the thousands upon thousands of injuries that have been sustained as a result of this barbaric form of so-called medical treatment. It can't possibly be that.

If that is the case, if those who were so determined to make everything about Roe v. Wade—if they are right and if they were to have their way, then I guess we can't discuss anything even related to women's health that affects pregnancy.

Surely, that is not the argument. That can't be the argument. I don't think anyone, regardless of how they feel about Roe V. Wade, regardless of how they feel about government's role in abortion or not, if what we are talking about is the fact that we ought not loosen certain restrictions so as to allow people to gain access to an abortion cocktail that is dangerous under many circumstances, especially when it is administered without any kind of direct medical supervision or attention, if that is where we are, that is not good. That is messed up. Something is terribly wrong if we can't have a conversation about women's health without being accused of wanting to undo an entire line of precedent dating back to 1973.

Look, guilty as charged. I have my own views about that line of precedent. Those views are no secret. Those views are well-founded as a matter of science. They are well-founded as a matter of hundreds of years of American constitutional law, of common law, but I understand they are not the only views.

You cannot simply walk in here and say that because this addresses a type of abortion procedure, because Roe v. Wade reached the conclusion that it did, anyone who proposes a piece of legislation like the one proposed by Senator HYDE-SMITH today necessarily has as its object—that her subjective motivation behind filing that legislation is the undoing of Roe v. Wade, and because that is her supposed subjective motivation, we can't even have the conversation about what this does for women's health—to say: Let's draw the line, and let's not remove the REMS restrictions. Let's not let people order these through the mail and be administered these dangerous drugs without direct medical supervision.

The next line of reasoning used by the Senator, my friend and distinguished colleague from the State of

Washington, is that we are in the middle of a global pandemic. Yes, we are, but last I checked, that doesn't prevent or preclude us from discussing and addressing other things, from the funding of the government to Presidential nominees whom we confirm or don't confirm. That doesn't preclude us or excuse us from considering other pieces of legislation. I am struggling to understand how the existence of a global pandemic means that we can't even address another type of epidemic—one brought about potentially as a result of the abusive prescription and reckless misuse of abortion-inducing drug cocktails. This is beyond my ability to understand.

It is also beyond my ability to understand how a simple requirement that before one of these drugs is administered, the patient should have at her disposal a medical examination and some kind of medical attention. Nothing about Roe v. Wade says that you can't have laws restricting the manner in which abortions are performed. Nothing about Roe v. Wade says that a State or Congress itself may not require that abortions be performed by healthcare professionals under the supervision of a board certified medical doctor. Nothing about Roe v. Wade carries any implication for this. This legislation simply says: Let's make sure that medications like this are not used to harm American women.

I have other colleagues wishing to discuss this topic and other topics. Let me say this: Human life matters. Every human life means something. You can't snuff it out and pretend it doesn't exist, because it does. Every life matters to God. It matters in the universe. Whether you believe in God or not, life matters. You can't pretend it doesn't exist. Every life is unrepeatable, irreplaceable. We should vow to protect it.

For those who aren't interested in protecting unborn human life, let's at least focus on protecting the human lives that we all agree exist. That is what this legislation is about. Shame on us if we can't even do that.

I yield the floor.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. BRAUN. Mr. President, I thank my colleague Senator LEE for an impassioned and effective argument.

I rise here today in support of my colleague Senator HYDE-SMITH's SAVE Moms and Babies Act, of which I am a proud cosponsor. I am disappointed that my colleagues would object to this bill to help safeguard and help expectant mothers.

The SAVE Moms and Babies Act would improve women's health by protecting important safety mechanisms put into place by the FDA. The Risk Evaluation and Mitigation Strategy is an essential mechanism which ensures that drugs with serious safety concerns are used and prescribed correctly.

My Democratic colleagues and the abortion lobby may expect Americans to believe chemical abortion pills are safe to use and should be available online without an in-person physician consultation, but here are the facts: Between 3.4 and 5.9 percent of women taking chemical abortion drugs require surgical intervention to complete the abortion. This meant 10,000 women in 2017 alone needed surgery after taking an abortion drug. Chemical abortion has four times the complications as surgical abortion during the first trimester. The risk of complications are particularly worsened in the case of an ectopic pregnancy. Women with ectopic pregnancies have suffered serious injury and even death from taking chemical abortion drugs.

I am disappointed this Chamber could not come together today to support Senator HYDE-SMITH's timely, needed, and important bill to protect women's health.

I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

Mrs. GILLIBRAND. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. COTTON. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. COTTON. I know of no further debate on this nomination.

The PRESIDING OFFICER. There being no further debate on the nomination, the question is, Will the Senate advise and consent to the Sonderling nomination?

Mr. COTTON. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The senior assistant legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from West Virginia (Mrs. CAPITO), the Senator from Wisconsin (Mr. JOHNSON), the Senator from Alaska (Mr. SULLIVAN), and the Senator from North Carolina (Mr. TILLIS).

Further, if present and voting, the Senator from Wisconsin (Mr. JOHNSON) would have voted yea.

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS), the Senator from Vermont (Mr. SANDERS), and the Senator from Michigan (Ms. STABENOW) are necessarily absent.

The PRESIDING OFFICER (Ms. MCSALLY). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 52, nays 41, as follows:

[Rollcall Vote No. 189 Ex.]

YEAS—52

Alexander	Blunt	Burr
Barrasso	Boozman	Cassidy
Blackburn	Braun	Collins
Cornyn	Inhofe	Roberts
Cotton	Jones	Romney
Cramer	Kennedy	Rounds
Crapo	Lankford	Rubio
Cruz	Lee	Sasse
Daines	Loeffler	Scott (FL)
Enzi	Manchin	Scott (SC)
Ernst	McConnell	Shelby
Fischer	McSally	Sinema
Gardner	Moran	Thune
Graham	Murkowski	Toomey
Grassley	Paul	Wicker
Hawley	Perdue	Young
Hoeven	Portman	
Hyde-Smith	Risch	

NAYS—41

Baldwin	Gillibrand	Reed
Bennet	Hassan	Rosen
Blumenthal	Heinrich	Schatz
Booker	Hirono	Schumer
Brown	Kaine	Shaheen
Cantwell	King	Smith
Cardin	Klobuchar	Tester
Carper	Leahy	Udall
Casey	Markey	Van Hollen
Coons	Menendez	Warner
Cortez Masto	Merkley	Warren
Duckworth	Murphy	Whitehouse
Durbin	Murray	Wyden
Feinstein	Peters	

NOT VOTING—7

Capito	Sanders	Tillis
Harris	Stabenow	
Johnson	Sullivan	

The nomination was confirmed.

CHANGE OF VOTE

Mr. HAWLEY. Madam President, on rollcall vote 189, I voted nay. It was my intention to vote yea. Therefore, I ask unanimous consent that I be permitted to change my vote since it will not affect the outcome.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The foregoing tally has been changed to reflect the above order.)

The PRESIDING OFFICER. The Senator from Kansas.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. MORAN. Madam President, I ask unanimous consent that the Senate proceed to legislative session for a period of morning business, for debate only, for 30 minutes, with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

COMMANDER JOHN SCOTT HANNON VETERANS MENTAL HEALTH IMPROVEMENT ACT

Mr. MORAN. Madam President, I am pleased to share with my colleagues in the Senate that we have reached an agreement with the House to pass S. 785, the Commander John Scott Hannon Veterans Mental Health Improvement Act, and we expect the bill to pass the House of Representatives tomorrow.

This is a bill that passed—our most significant piece of legislation—from the Senate Committee on Veterans' Affairs dealing with mental health and suicide prevention. The bill came out

of the committee unanimously and was approved by the Senate unanimously, and we have been negotiating with Chairman TAKANO and Ranking Member ROE of the House Committee on Veterans' Affairs for its passage by the House and with consideration by the Senate of other bills that the House has and will send us.

I want to thank my colleague Senator TESTER, the ranking member of our committee, Chairman TAKANO, and Dr. ROE, the ranking member of the House committee, for working expeditiously with me to reach an agreement to pass this comprehensive mental health and suicide prevention bill for America's veterans.

One veteran lost due to suicide is one too many, and it is a national tragedy that we continue to lose 20 veterans each day to suicide.

I am glad that Congress has come together to do our part to ensure this bill which will save lives. It needs to be passed without delay and signed into law.

This bill will establish a grant program and require the VA to better collaborate with community organizations across the country already serving veterans. This provision was specifically championed by my colleague Senator BOOZMAN of Arkansas.

In addition, this legislation directs the VA to embark on groundbreaking research in the form of a precision medicine initiative that will improve how mental health conditions are diagnosed and treated, expand VA telehealth capabilities to better serve rural and Tribal veterans, bolster and expedite Federal research capabilities, increase accountability over the Department's mental health and suicide prevention programs, and make necessary improvements to the VA mental health workforce.

While this legislation puts in place the critical care, services, and support that will save veterans' lives, it is my hope that the bill will also serve as a signal to our veterans, servicemembers, and their families that they are never, never alone.

I want to extend my gratitude to the President for his support of this bill, and I ask him to sign this legislation as soon as it arrives on his desk.

GOVERNMENT FUNDING

Mr. MORAN. Madam President, we must take our duty to America's veterans seriously, which is why the circumstances we find ourselves in today are extremely unfortunate. The extensions for important VA programs for the upcoming fiscal year—just 8 days away—are currently being held up from being considered and passed in the Senate.

This extension bill was negotiated in earnest and the four corners of the Senate and House Veterans' Affairs Committees agreed upon this legislation. This was a collaborative effort, not a partisan one, but, nonetheless, this bill has not yet been cleared by the Senate minority.

Let me be clear: Countless veterans rely on these programs. Let me be clear: They expire at the end of the month.

From raising veterans out of homelessness to making certain that COVID–19 doesn't disrupt a veteran's pursuit of higher education, to helping rural veterans get their medical appointments, the fiscal year 2021 VA extenders bill contains a wide variety of extensions for programs that support a multitude of veteran populations.

Additionally, we have requested consent for several House-passed bills that will improve mental health care for veterans and increase annual veteran benefit rates to keep up with inflation. These are commonsense ideas that have broad support and will make meaningful differences in the lives of our veterans. These are items that would normally pass the Senate without difficulty.

Our veterans should not wait and should not need to wait. They can't afford to wait for the Senate to act on these matters. The deadline is quickly approaching. Our Nation's veterans did not serve their country for partisan reasons, and we must not let any partisan differences prevent us from authorizing the programs to support those veterans.

I ask my Senate colleagues to fulfill our collective duty regarding veterans programs and that we do not allow other issues to distract from that duty.

I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

REMEMBERING JUSTICE RUTH BADER GINSBURG

Mrs. BLACKBURN. Madam President, this past weekend, we lost a brave and uncommonly fearless American.

Justice Ruth Bader Ginsburg represented many things to many people. For some, her work was the gold standard of legal advocacy. For others, her arguments proved to be intellectual flashpoints, sparking opportunities to think critically about what we believe and why we believe it. But for each and every one of us, she served as living proof that the status quo is often much more fragile than it appears.

So today, I think I speak for so many Tennesseans when I say we are thankful beyond measure for that enduring legacy and the standard that she set as she broke barriers and crashed through glass ceilings, opening opportunities for women. I hope that I am as effective as she in increasing opportunities for women each and every day.

AMERICAN UNITY

Mrs. BLACKBURN. Madam President, last week marked another Constitution Day celebration. It could not have come at a better time because, for just one little moment, it helped us pause and contemplate two very important things.

First, we took time to think about those values that our Founders knew. They knew that these values were essential to the establishment of a model republic.

Second, we remembered the progress we have made in deciding for ourselves how the passage of time changes or does not change what we can do to make that ''more perfect Union'' even more so.

Free speech, petition, and protest, the right to defend ourselves, the right to cast a vote—these are the freedoms that unite us in times of turmoil, whether we find ourselves in the midst of all-out war or just a particularly contentious election year.

I would argue that how a nation reacts to that turmoil says more about its foundation than it does about who controls the news cycle on any given day.

Divisive voices are hard at work in this country, and they are doing their very best to convince our friends, families, and neighbors that our foundation is weak and that our founding principles are no longer good enough. I find that very sad.

They want us to believe that America as we know it is suddenly irredeemable, that it just can't be safe.

You might ask yourself: Why are they saying all of this in spite of hundreds of years and millions of Americans proving the exact opposite is true?

Here is what I think. They say it because they want us to give up. They want our neighbors, our families, and our friends to give up, call it quits; our best days are behind us. We have all heard them say this. They say: Throw the Constitution in the trash. Rewrite it. Start over. And after you throw the Constitution in the trash, then let's reimagine the world's greatest democracy through our very own destructive lenses of socialism, critical theory, and political correctness. That is what they say.

As I am sure we have all seen, they have come up with some fairly persuasive methods to try to get their way. But I believe that, in the end, these efforts will all be in vain because when push comes to shove, we, the American people, always manage to remember where we have come from and to remember who we are.

It is interesting. I think somehow we Americans always find our way home, back to those first principles. Indeed, I pray that continues.

Our Founders saw what tyranny really looked like. They saw it up close and personal because they had to live through it. They knew exactly—exactly—what would happen if they put the fate of the Republic in the hands of men alone. So what did they do to give that insurance policy, if you will, that democracy and a democratic republic would continue and would stand? They drafted a Constitution, recognizing

that our rights are a gift from God and that these rights are not a product of government action or they are not subject to the whims of a mob.

They were also forward thinking. They gave us everything we need to improve upon their work.

I think it is important to remember we have done just that. Over the course of more than two centuries, we have built a nation that is freer, more equal, and, yes, striving every day to be that ''more perfect Union,'' not because outside forces compel us to do so but because we, as Americans, chose to make it that way.

When I see that a friend or a neighborhood has forgotten this, I like to remind them that two of the most emotional and powerful words in the English language are ''remember'' and ''imagine.''

I tell them: Stop for just a moment. Close your eyes and remember what you really love about this country. Remember the special moments. Remember what your parents and your grandparents have told you about love of country. Remember the sacrifices they have made. And, now, just imagine: What would your children and grandkids accomplish? What would they accomplish if they, too, are allowed to grow up in a place where liberty and justice is for all, where they are allowed to dream these big dreams and then dream up a way to make those dreams come true? These are things that are valued above all else.

Of course, as we look at our past and we remember, we look at the future, and we know that in finding common ground—when we find common ground—we see potential, and potential gives us hope. I like to say that hope is staking a claim on an action, on a goal that you are going to achieve.

So it is my fervent hope that we will continue to stand on our constitutional principles and that we will defend the foundation of this Nation that has given so many Americans the opportunity to make these big dreams come true.

I yield the floor.

The PRESIDING OFFICER. The Senator from Missouri.

ORDER OF PROCEDURE

Mr. HAWLEY. Madam President, I ask unanimous consent that notwithstanding the provisions of rule XXII, the Senate vote on the motion to invoke cloture on the Hinderaker nomination at 11:45 a.m. tomorrow; further, that if cloture is invoked, the Senate vote on confirmation of the Hinderaker nomination at 4 p.m. tomorrow; and that following disposition of the nomination, the Senate vote on the motion to invoke cloture on the Young nomination. I further ask that if cloture is invoked on the Young nomination, the confirmation vote occur at a time to be determined by the majority leader in consultation with the Democratic leader on Thursday, September 24; finally, that the cloture motion on the Samuels nomination be withdrawn and the Senate vote on confirmation of the Samuels nomination following the cloture vote on the Young nomination.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

MEASURE READ THE FIRST TIME—S. 4653

Mr. HAWLEY. Madam President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The legislative clerk read as follows:

A bill (S. 4653) to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act.

Mr. HAWLEY. Madam President, I now ask for a second reading, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection having been heard, the bill will be read for the second time on the next legislative day.

ORDERS FOR WEDNESDAY, SEPTEMBER 23, 2020

Mr. HAWLEY. Madam President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10 a.m., Wednesday, September 23; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day, and morning business be closed; finally, that following leader remarks, the Senate proceed to executive session to resume consideration of the Hinderaker nomination under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. HAWLEY. Madam President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following the remarks of our Democratic colleagues.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. The Senator from Maryland.

REMEMBERING JUSTICE RUTH BADER GINSBURG

Mr. CARDIN. Madam President, I rise to honor the life and legacy of Ruth Bader Ginsburg.

The Nation mourns the loss of Supreme Court Justice Ruth Bader Ginsburg, who died Friday night. She died on the eve of the Jewish new year, Rosh Hashanah. She was the first Jewish woman on the U.S. Supreme Court.

Rabbis tell us a very interesting thing about individuals who die right before the new year. They say and they suggest that these are very righteous people who die at the very end of the year because they were needed until the very end. Under Jewish tradition, those who die on the new year holiday are considered tzadik, a title given to the righteous and saintly. Certainly Justice Ruth Bader Ginsburg was entitled to this honor, being righteous and saintly.

At her confirmation hearing, Justice Ginsburg talked about her immigrant experience. You see, her father was a Jewish immigrant, and her mother was barely a second-generation American. So she talked about American values, and then she said: ''What has become of me could only happen in America.''

Then she spent her entire career protecting those values that make America the great Nation it is and the reason why people come here in order to reach their full potential. It guided her well in her public service.

Justice Ginsburg was both an inspiration and a trailblazer in every sense of the word. After breaking through the countless barriers thrown in her path, she redefined what is meant to be both a thoughtful jurist and a dedicated public servant.

Let me just briefly go over some of her incredible accomplishments: first in her undergraduate class at Cornell University, first female member of the Harvard Law Journal, graduating first in her class at Columbia Law School, first female professor at Columbia University to earn tenure.

Justice Ginsburg directed the ACLU Women's Rights Project and argued six landmark cases before the Supreme Court, winning five of those cases. These cases protected not only the rights of women but those of many men who faced discrimination as well.

As the National Women's Law Center wrote about Justice Ginsburg's death, they said:

[Her passing] is cause for us to pause and honor the unparalleled mark she has left on this country. From co-founding the ACLU's Women's Rights Project, to bringing the first case striking down a law that discriminated against women, to building the case that defined the standard for sex discrimination cases, Ginsburg was a visionary who revolutionized the gender equality movement—and the law—long before becoming a Supreme Court Justice.

For our country, Ginsburg's ethos was greater than just the law. She was an icon and a living symbol of a north star, so we must unite and do for her what she did for us—fight for what is right.

As a litigator, Judge Ginsburg helped to shape the law, convincing the Supreme Court that ''equal protection of the law'' under the 14th Amendment applied not only to racial discrimination but to gender discrimination as well.

Justice Ginsburg herself knew discrimination firsthand, as she struggled to find a job after graduating law school—notwithstanding her sterling qualifications. She had that difficulty, as we all know, solely because of her gender. She experienced gender discrimination firsthand, and she did something about it not only for herself but for future generations.

After serving on the U.S. Court of Appeals for the District of Columbia for 13 years, she began a 27-year career on the U.S. Supreme Court.

There are so many of her decisions that were so consequential, so visionary, expressing the right value, and her ability to express her views was unquestioned. She did that in writing majority opinions, and she is well known for doing that in writing dissenting opinions. So many of her dissenting opinions led the way for change. She was right, and she motivated change.

In 1996, Justice Ginsburg wrote the majority opinion of the Court in the finding that the all-male admissions policy at the State-supported Virginia Military Institute was unconstitutional. She said in that opinion: ''Generalizations about 'the way women are,' estimates of what is appropriate for most women, no longer justify denying opportunity to women whose talent and capacity place them outside the average description.'' Any differential treatment, she concluded, must not ''create or perpetuate the legal, social, and economic inferiority of women.''

What a difference she made in that decision.

I will always remember her dissenting opinion in the Lilly Ledbetter case because it led directly to change. Justice Ginsburg wrote in that fiery dissent: ''Our precedent suggests, and lower courts have overwhelmingly held, that the unlawful practice is the current payment of salaries infected by gender-based (or race-based) discrimination—a practice that occurs whenever a paycheck delivers less to a woman than to a similarly situated man.''

I heard one of my colleagues talk about precedent, but here we see the Court reversing precedent in order to advance discrimination against women. Her dissent led to congressional action, becoming the first piece of legislation signed by President Barack Obama. The text of this bill hung on her office wall for good reason, as it embodied her spirit.

She issued a fiery dissent again in the Shelby County v. Holder case in 2013, a case decided by a 5-to-4 vote of the Supreme Court of the United States, which gutted the Voting Rights Act of 1965.

Here is what she said in that opinion:

What has become of the court's usual restraint?

Justice Ginsburg wrote in her dissenting opinion:

The great man who led the march from Selma to Montgomery and there called for the passage of the Voting Rights Act foresaw progress, even in Alabama. ''The arc of the moral universe is long,'' he said, but ''it bends toward justice,'' if there is a steadfast commitment to see the task through to completion. That commitment has been disserved by today's decision. . . . Throwing out preclearance when it has worked and is continuing to work to stop discriminatory changes is like throwing away your umbrella in a rainstorm because you are not getting wet.

I mentioned these cases to underscore the importance of the Supreme Court Justice in the lives of all Americans. So much is at stake in the filling of Justice Ginsburg's vacancy. It will have real consequences on all of our constituents.

Let me just give you a few examples of what is likely to be taken up by the Supreme Court that could affect my constituents in Maryland and the constituents around the Nation.

Your healthcare is, literally, on the line. The Affordable Care Act that President Trump has tried to repeal and the Republicans have tried to repeal in this body but have failed, they are now going to take to the Supreme Court. A hearing is scheduled this November.

This is a real risk for tens of millions of Americans who depend on the law for their health coverage and other benefits. Twenty million Americans could lose their healthcare, and people with preexisting conditions could lose those protections—that is 133 million Americans—during the coronavirus pandemic.

That is what is at risk. We are talking about pregnancy, cancer, diabetes, high blood pressure, behavioral health disorders, high cholesterol, asthma, chronic lung disease, heart conditions, and numerous others that have been held to be preexisting conditions. That protection is in the Affordable Care Act. That is on the line before the Supreme Court this November.

That is why Americans are concerned that we follow the right process in selecting the next individual to serve on the Supreme Court of the United States. If the Affordable Care Act is struck down, insurers could bring back annual and lifetime limits on coverage; adults covered by Medicaid expansion would lose vital health services; young people would be kicked off of their parents' insurance; and insurers could sell skimpy plans that don't even cover essential health benefits like prescription drugs, emergency room visits, mental health and substance use, and maternity care.

The Affordable Care Act increased access to care for millions who were previously uninsured or underinsured. Through Medicaid expansion, 13 million low-income Americans now have dependable, comprehensive health.

In Maryland alone, over 1.3 low-income individuals depend on Medicaid, including 512,000 low-income children, 107,000 seniors, and 152,000 individuals with disabilities. That is in Maryland.

We must protect the Medicaid expansion population and other uninsured and underinsured populations from the Trump administration's effort to eliminate their access to affordable care. It is at risk.

This vacancy is critically important to protecting healthcare, and there are so many other issues. Women's reproductive rights—clearly at risk. Roe v. Wade—I understand it is established precedent, but look at what the Supreme Court has been willing to do in reversing precedent.

We know Roe v. Wade is in the crosshairs for change by the Supreme Court, and one more Justice appointed to support that position and a woman's right of choice could very well be in jeopardy.

Our most vulnerable individuals are at risk as well. Let me talk about one specific group of people—some of our immigrants. On June 18, 2020, in a 5-to-4 decision written by Justice Roberts and joined by Justice Ginsburg, the Supreme Court held that the Department of Homeland Security violated the law when it rescinded the Deferred Action for Childhood Arrival, DACA, Program.

There are approximately 643,000 DACA recipients in the United States, and approximately 29,000 are healthcare workers, essential workers, whose service during the COVID–19 pandemic has saved lives and eased suffering. But for that 5-to-4 decision, those individuals' lives could have been totally disrupted had they been ordered to leave our country.

These are individuals who know no other home but the United States of America. They are our neighbors and friends—and yet a 5-to-4 decision of the Supreme Court. Justice Ginsburg will no longer be there. This next Justice could very well determine the fate of the Dreamers.

LGBTQ community: In the Obergefell v. Hodges case, the Supreme Court, by a 5-to-4 decision, held the Constitution guarantees same-sex couples the right to marry. That is a 5-to-4 decision.

I always expected that, in America, we would move forward in protecting individual rights under our Constitution; that, in each Congress and each session, the Supreme Court would advance those rights for individuals' protection under the Constitution of the United States. The filling of this Supreme Court vacancy could very well reverse a trend of protecting rights and deny many in our community their rights.

I could cite many, many other examples of what is at risk by the Supreme Court appointment. There are many reasons why we believe that we should follow the proper process in selecting the next Supreme Court Justice, so let's talk a little bit about what process we should follow. Let's talk a little bit about fairness. Let's talk about the integrity of the Senate. Let's talk about living up to our own words. Let's talk about using the same rules for Democrats that you use for Republicans. Let's talk about the fairness of the process.

Now, I could spend a lot of time on the floor quoting the comments of so many of my colleagues who spoke on the floor of the U.S. Senate 4 years ago on the Merrick Garland nomination by President Obama and how they spoke about the importance of listening to the voters of our Nation, how they said we didn't have the time—and, remember, Merrick Garland was in February of an election year—to do this; that we needed to withhold taking up the nomination; that it was up to the voters to act first; and that this had nothing to do with the fact that it was a Democrat in the White House.

So many of our colleagues said: If there is a Republican elected in 2016 and the Senate is controlled by the Republicans, we would say the same thing. Hold off. Let the voters have a chance.

Let me quote from one of our colleagues.

In 2016, Senate Republicans refused to consider the nomination of Judge Merrick Garland, President Obama's nominee for a Supreme Court vacancy. They would not meet with Judge Garland, hold a hearing on his nomination, or allow a vote for 293 days. Antonin Scalia died in February 2016. President Obama nominated Merrick Garland, a respected D.C. Circuit Judge with bipartisan support, in March 2016. In the case of Justice Ginsburg's vacancy in 2020, we are about 40 days away from a general election, and early and absentee voting has already begun in several states. By contrast, in 2016, the formal presidential primary elections had just begun to occur when Justice Scalia died.

Our colleagues spoke up then and said: Look, 4 years ago, our Republican colleagues said not enough time, leave it up to the voters; we would do this whether it is a Democrat or Republican.

Let me quote from one of our colleagues, the Republican leader, MITCH MCCONNELL. This is his quote on the floor of the Senate.

Mr. President, the next Justice could fundamentally alter the direction of the Supreme Court and have a profound impact on our country, so of course—of course the American people should have a say in the Court's direction. . . . As Chairman Grassley and I declared weeks ago and reiterated personally to President Obama, the Senate will continue to observe the Biden rule so that the American people have a voice in this momentous decision. The American people may well elect a President who decides to nominate Judge Garland for Senate consideration. The next President may also nominate someone very different. Either way, our view is this: Give the people a voice in filling this vacancy. . . . As we continue working on issues like these, the American people are perfectly capable of having their say on this issue. So [let's give] them a voice. Let's let the American people decide.

Senator MITCH MCCONNELL.

We have the McConnell rule, established by the Republican leader. Let's follow the McConnell rule and let the American people pick the next President and Senate so they can weigh in on this decision just as Senator MCCONNELL argued in 2016 with President Obama's nominee, Merrick Garland, for Justice Scalia's seat.

Let the Senate honor Justice Ginsburg's legacy by continuing to fight for the rights she fought for in her entire career, both as a litigator and circuit judge and, finally, as a Supreme Court Justice.

Let us honor Justice Ginsburg's dying wish: ''My most fervent wish is that I will not be replaced until a new President is installed.''

I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. BOOKER. Madam President, I rise at a time of great grief in our country. We have seen 200,000 fellow Americans perish due to COVID. In addition to that, we have seen heroes in our Nation fall during this period as well. Still, we have a heavy heart as we have seen the passing of civil rights greats like C.T. Vivian and, of course, our colleague in the House of Representatives, John Lewis.

In many ways, we are walking through the valley of a shadow of death, but as our fellow Americans fall, it is apt that we give tribute to their character, to the values and virtues which marked their lives, and to the truth and ideals that they carried for their lives and how they advanced to us so that we might have better lives.

Truly, if we are recognizing those values and those virtues, then, the passing of Ruth Bader Ginsburg is a time that calls upon Americans to pause and recognize her extraordinary life. She was a woman of small physical stature, but she was truly a giant amongst us.

Even before her years as a Supreme Court Justice, she championed the rights of Americans and the ideals we hold so dear. She advanced the cause of liberty and equality and the understanding, as it says, literally, on the Supreme Court wall, of ''Equal Justice Under Law.''

This spirit that she fought for was buttressed by her massive intellect, her acumen, her skill, and her strategy that were seen in her career as a lawyer, as well as her opinions and work as a Justice.

She understood more, or as much as anyone, that the decisions of the Supreme Court literally have a profound impact on the daily lives of Americans, that the decisions of the Supreme Court will affect some of the most fundamental ideals. It could mean the difference between life or death, the difference between economic security and economic ruin, the difference between environmental protection and devastation.

It affects not just the balance of power in institutions like the Senate but also the balance of people's lives and their well-being at their kitchen table.

She knew that our laws are tools through which we could either make our Nation live up to its promise for all or fall further away from them. It is in this context that I want to join my colleagues this evening in discussing Justice Ginsburg's legacy and the future of the Supreme Court, because so many of the other things that matter most to us are in the balance right now with the decisions that this body makes.

Americans know that the decisions of this body as it relates to the Supreme Court are going to affect some of the deepest issues that affect their lives—their economic security, their bodily autonomy, their right to vote, their civil rights, the environment in which we all live—and the area I most want to focus on is their healthcare—their healthcare. The ideal of healthcare is fundamental to the ideals of our founding document. You cannot have life, liberty, and pursue happiness if you do not have access to healthcare.

The next person appointed to the Supreme Court will make the kind of decisions that will quite literally affect the quality of healthcare and, therefore, will affect life-or-death issues.

We know that over the past 6 months, this deadly pandemic has led to this valley of a shadow of death for our Nation and the globe and has led to 200,000 people perishing in our Nation. This is directly affected by the urgencies of this pandemic. Millions of Americans have lost their jobs, and 30 million Americans weren't getting enough food to eat. Communities that were already vulnerable have been devastated by this public health and economic crisis.

Now, more than ever, Americans are relying on our safety nets, especially when it comes to access to healthcare. The next Supreme Court Justice will inevitably oversee whether the Affordable Care Act stays in place or not.

Thankfully, because of the Affordable Care Act and, in particular, because the expansion of Medicaid has happened in 36 States so far, more Americans are getting insured. And now during this pandemic, more important than ever, many Americans—millions of Americans—are staying insured even though they have lost their jobs.

An article published in the New England Journal of Medicine in August reported: ''The ACA, having created several new options for health insurance unrelated to employment, will protect many recently unemployed people and their families from losing coverage.''

I know the difference that the Affordable Care Act makes, and in particular the difference that Medicaid expansion has made, especially for communities like mine in the State of New Jersey, like the one in which I live, of hard-working people who are still at the lower echelons of our economic nation.

This is why I know what the Supreme Court decision could mean if it strikes down the Affordable Care Act. Especially right now, I know what it would mean.

Turning again to the New England Journal of Medicine, they make it plain, and they make it clear:

In the current context of millions of Americans losing their jobs and an ongoing pandemic, overturning the ACA would most

likely be devastating to patients, clinicians, hospitals, and state economies. The very virus that has brought about record unemployment levels is the same agent that makes health insurance—and the new options created under the ACA—more important than ever.

That is the New England Journal of Medicine.

This fall, the Supreme Court of the United States of America will consider another challenge to the Affordable Care Act. President Trump's Justice Department has taken the dangerous position that ''the entire ACA . . . must fall.''

President Trump is trying to take away the security of the ACA, take away the law that allows Medicaid expansion, take away the law that protects people with preexisting conditions and allows them to have healthcare—the law that, literally, medical professionals are saying is saving lives today.

And now here we are debating a decision of whom we should put on the Supreme Court. Will we put another—a third—Trump appointee on the Supreme Court, one that reflects his values and his views, a Justice that is likely now to tip the balance even further, that would most likely overturn the ACA and means that millions of families in the middle of a pandemic will lose their healthcare?

Days before an election, when my colleagues, just a few short years ago, said we shouldn't make this decision. This is the conclusion of colleague, after colleague, after colleague. In that case with Merrick Garland, we were months and months away from an election—269 days. Now, we are mere days. It is a decision that will affect the lives of millions, a decision that goes to the core of our healthcare, our health, our well-being, our ability to afford what should be a right for this Nation—access to quality healthcare.

If they go forward with this Justice, what will it mean? It will mean that the Federal health centers that serve communities that need them the most would be gutted because that is what the Affordable Care Act has done for America. It would mean that people with preexisting conditions, from asthma to cancer to lasting complications of COVID–19, could be kicked off their coverage at a time when they are more vulnerable than ever. That is what this decision is about.

It would mean that many seniors who are already living paycheck to paycheck would have to pay more for their prescription drugs and more for the preventative services that they receive at no cost today because of the Affordable Care Act that Donald Trump believes should fall.

It would mean that young adults who now, more than ever, are relying on staying on their parents' plan until 26 wouldn't be able to do so because of the Affordable Care Act that Donald Trump believes should fall. It would mean that countless babies who need to spend time in the neonatal intensive unit would hit lifetime limits on care within a few months or a few weeks of being born.

Gutting the Affordable Care Act, seeing it fall as our President desires, would mean insurance companies would go back to spending more of Americans' premium dollars on administrative functions than actual care. This Supreme Court Justice will determine if the ACA, or the Affordable Care Act, stands or, as Donald Trump wants, it should fall. And if it falls, it would mean women would go back to paying more for their health coverage simply because of their sex.

The Affordable Care Act falling would mean at a time when Black and Latino Americans are disproportionately dying of this virus, reversing the gains of the Affordable Care Act has made in narrowing those disparities now, we would see those communities with less coverage, less care, less access, less justice.

Donald Trump tried to influence the Court, putting a person on who reflects his views and his values. Donald Trump wants the ACA to fail. If he is successful, it will mean more onerous requirements and barriers to healthcare access during a global pandemic that is already wreaking devastation and havoc on American communities from sea to shining sea.

In New Jersey, my State, a repeal of the Affordable Care Act combined with the impact of COVID–19 would mean 686,000 people in New Jersey would lose their health coverage, all while dealing with a deadly pandemic and a recession. Nationally, it would mean 23 million of our fellow Americans, 23 million people—children, adults, and the elderly—could lose their coverage if the ACA were repealed during this pandemic.

The fact is, health coverage saves lives. That is not an exaggeration. This is life or death. Study after study has borne this out. The Center on Budget and Policy Priorities reports that the expansion of Medicaid alone under the Affordable Care Act saved over 19,000 lives between just 2014 and 2017, and the States that didn't expand Medicaid saw over 15,000 people die prematurely. That is just among adults age 55 to 64.

The Affordable Care Act—think about the lives saved. Think about those who did not have Medicaid expansion and the lives lost, our fellow Americans. Life, liberty, and the pursuit of happiness. Life, liberty, and the pursuit of happiness—that is what is at stake right now and before the pandemic hit.

We know that many of the people who have been hardest hit by COVID–19 rely on Medicaid. Since the pandemic, Medicaid enrollment in our country has gone up as more people have been in need. It has grown for the first time in 3 years. Because of this pandemic, more people are hurting, and more of our fellow Americans are finding themselves in crisis. Across the country, more families are able to turn to Medicaid during this crisis because of the Affordable Care Act. The State of Kentucky, which the Republican leader represents, had the highest rise in Medicaid enrollment, with a 17.2-percent increase from February to August.

This is how our social safety net should work. It should be there in a crisis. When there is more disease, when there is more death, when there is more suffering, we as a nation should show more compassion, more empathy, and more care, not less.

We saw in 2018, when people were asked why they were voting, why we saw a surge in turnout, it was because people were concerned about their healthcare. And that was before the pandemic. This election will be about many things, but most people will know that this is an election about the security of healthcare.

One President says, again, and I quote: Let it fall. Another wants to preserve it and put people on the Supreme Court who will defend it as fundamentally in line with our constitutional ideals—life, liberty, and the pursuit of happiness. That is the jeopardy. That is what is at stake using the logic not of any Democrat but using the logic of my Republican colleague after Republican colleague, my Republican friend after my Republican friend, who—I heard what they said when they denied Barack Obama a Supreme Court pick. I heard their words. They were clear. My friend, the head of the Judiciary Committee, even went as far as to say: ''Use my words against me.''

If it is the final year of President Trump's term, we should wait until after the election before we put someone on the highest Court in the land for a lifetime appointment. What is this about? It is about the most sacred ideals of our Nation—life, liberty, freedom from fear, freedom from disease.

I don't know what to say because I see what is happening right now. People speak passionately about a standard, defend themselves, cite historic precedent, and then when things shift and they have a chance to show consistency and to show restraint, show allegiance to comity, show allegiance to the ideals that bond us together, they instead turn their backs on their very words. Instead, they betray the principle and rule that they set in place.

If it was just politics, that would be one thing, but what is at stake is the healthcare of Americans. There are people afraid tonight. There are people scared across our country—a parent with a child who has a rare cancer, an adult struggling to afford their prescription drugs, someone who is out of a job, someone with a preexisting condition. This is not about politics. This is about them. It is about their lives and their well-being.

Millions of Americans benefit from the Affordable Care Act. By pushing, by rushing this through to get another Trump Justice by a President who wants that action by Congress, who

wants the Affordable Care Act to fail, what will that mean? Where will that leave us when this decision goes to that Supreme Court with three Justices—one of whom should have been Barack Obama's?

Justice Ginsburg stood up for our ideals. She stood up for this belief that it is the little person, it is the person with the margins of life, it is the person who has been demeaned and degraded by powerful forces—that they should have equality. She fought for and won battles that my generation takes for granted.

Her last dying wish was not about one President or another but that we should wait until after this election. I believe she said that not just because of the conflicts of our time, she said that not just because she believed it was right but because she believed in the Supreme Court. She believed that the Supreme Court, no matter what the politics of our time, should be a place that holds legitimacy in the Republic, that America should not see that as a body that could be politicalized by the behaviors of Congress, so she said: Wait.

Ironically, it is the same sentiment that my colleagues said we should do when Merrick Garland was nominated. Then, they were with Justice Ginsburg. I tell you, she may be gone, but they should honor her in truth right now by upholding that sentiment, their sentiments, the very idea that could possibly give us more hope—that healthcare, that life, liberty, and the pursuit of happiness can win the day.

I yield the floor.

The PRESIDING OFFICER. The Senator from Illinois.

Mr. DURBIN. Madam President, I want to thank my colleague from New Jersey, Senator BOOKER, for an outstanding statement from the heart.

I think about this moment in history. I think about the fact that just a few weeks ago, we were mourning the loss of John Lewis. He was a personal friend, a champion and inspiration, one of the real pillars of the civil rights movement of the 1960s, who lived on to this day and carried the torch for so many years when it came to civil rights and equal rights. I will miss him.

Now there is another loss of another giant. Although she was small in stature, Ruth Bader Ginsburg had an amazing life story. She was an extraordinarily bright young woman who just asked for a chance to get a job in New York with one of the law firms, but because she was a woman, they turned her away. That lost job must have been a disappointment to her, but as we reflect on it in the history of this Nation, it was the biggest break we ever had when it came to the cause of women in modern times because she went on to become a law clerk, a professor, a judge, and ultimately a Supreme Court Justice.

In the course of that career, she was such a powerful and effective advocate for the cause of women across America and, I might add, for the cause of men too. She made history. That job rejection may have been a disappointment for a day, but as we reflect on it, thank goodness she was steered to another path and used it so effectively.

If you left this Chamber tonight and walked across the street to the Supreme Court, you would find a large group of people, as you have since last Friday, pausing, reflecting, thanking, praying for Ruth Bader Ginsburg's life. Across there tonight, they are lighting candles, dropping flowers and notes, crying, commiserating, really noting the loss America feels.

I was struck personally by my own family's reaction. My daughter, my daughter-in-law, and so many others confided in me in ways they rarely do about how much this woman meant to them. It was time for reflection in my family and, I am sure, a lot of those across the United States.

She had one last request, one dying wish. She handed it to her granddaughter and she said: Let the next President pick my successor on the Supreme Court. It is understandable that she would do that. I know she probably had a hope in her heart as to who that person might be, but she knew, after the way the vacancy of Antonin Scalia was treated by the Republicans in the Senate, that was the way they were going to handle her situation—at least we thought they would.

Then, of course, Senator MCCONNELL announced a 180-degree reversal in principle—180-degree reversal. Instead of waiting for the election and new inauguration of the President to fill her vacancy, he made it clear that Republicans in the Senate are hell-bent to fill this vacancy as fast as possible. What is the hurry? Why have they changed their position after 4 years? Do they doubt that President Trump is going to be reelected? Did that play into this equation? Who knows. But they are determined to do it because they have an agenda which is more important than consistency, more important than honor, more important than principle. Their agenda is to turn back the achievements and progress made by Ruth Bader Ginsburg and to leave the American people more vulnerable in their time of need.

A few weeks ago, I took a poll in Illinois to see what the public sentiment might be on issues. I was a little surprised how overwhelming the issue of healthcare still is in my State of Illinois. As I reflected on it, it made sense. We wake up every day, looking for our masks, wondering how many more people have died, hoping that we can protect ourselves and our families. So healthcare is on the forefront of everyone's mind, and, of course, protection for your family is always your first instinct. People know that without the Affordable Care Act they will not have that protection.

We remember—many of us do—the debate in creating the Affordable Care Act 10 years ago. I might say, in my House and Senate careers, it is the most important issue I have ever voted on. When again will I be able to help 20 million Americans find health insurance for the first time? When will there be another opportunity to make sure that health insurance sold in America treats people fairly?

The Affordable Care Act eliminated lifetime limits on payouts, which is eminently sensible when you consider the skyrocketing cost of medical care and how so many situations in life are so darned expensive. It said to people: You cannot be discriminated against because you have a preexisting condition.

I remember the day—most of us do—when applying for health insurance was a long list of questions, and if you happened to just check one of those ''yes,'' be prepared, because it meant you had a preexisting condition, and you were about to be charged a higher premium, if they would allow you to buy health insurance. Families with children who survived cancer knew what that meant—health insurance they couldn't afford or health insurance that wasn't available. The Affordable Care Act changes that and says you cannot discriminate against a person because of a preexisting condition.

When we looked at some of the preexisting conditions health insurance companies were boldly announcing, well, of course, gender could be a preexisting condition. Women did have to pay higher premiums, you know. Think of that: gender as a preexisting condition. That was one of the tricks to deny coverage or to raise premium costs.

Then, when it came to covering your kids, we remember what it was like—many of us do—when our kids graduated college, thought they were invincible, and took part-time jobs with no benefits.

I remember calling my daughter and asking: ''Jennifer, do you have health insurance anymore?''

''No, Dad. I am just fine.''

Well, we got her health insurance, and it cost a pretty penny.

Now, under the Affordable Care Act, I could have kept my daughter under my family plan until she had reached the age of 26, when she would have had a better chance of having a better job with benefits.

That is one of the things the Affordable Care Act did, but the Trump administration and the Republicans in Congress have been determined to kill the Affordable Care Act from the day it passed. There were over 50 rollcall votes in the U.S. House of Representatives to eliminate the Affordable Care Act. They all might have passed the House, but they were not taken up by the Democratic Senate.

They waited for the day, and the day finally came. Senator MCCONNELL had the majority, and he was setting up to eliminate the Affordable Care Act here on the floor of the Senate. I will never

forget that night or that early morning. At 2:30 in the morning, those doors opened. John McCain, who was very sick—we knew he didn't have long for this world—had just left a phone conversation with President Trump. He walked to that well, and he barely lifted that right arm that had been crippled during his prisoner of war experience in Vietnam. He lifted it just enough to say ''no,'' and John McCain's ''no'' saved the Affordable Care Act for millions of Americans.

Did the Republicans learn their lesson? No. They decided that, if they couldn't win it on the floor of the House and if they couldn't win it on the floor of the Senate, they would win it across the street with the Supreme Court. That is what this is all about. That is why Senator MCCONNELL has reversed his position—a position which he claimed to be principled. He has reversed his position on filling the vacancy on the Supreme Court in a President's last year and has said that he is going to, with determination, fill this seat.

The chairman of the Senate Judiciary Committee, LINDSEY GRAHAM, who is a friend of mine—and I work with him—had to explain to the American people why he reversed his position completely on this issue. Then he announced last night that every Republican Member of the Senate Committee on the Judiciary was going to vote for President Trump's nominee. You would have thought he would have waited until that nominee had been announced, but, clearly, it doesn't make any difference. They know that whoever that nominee will be will be hellbent on going across the street and eliminating the Affordable Care Act in the Supreme Court.

That is why this issue is not just a matter of debate between the highest ranking politicians in Washington but is a matter that affects everyone across America who buys health insurance, and that is just about all of us. It is to make sure that health insurance is worth owning and will be there when you need it.

I see some colleagues on the floor, and I want to yield to them because I know they have their own thoughts to share with you, but it troubles me greatly what has happened to this Senate. This big Chamber, this big room, has turned into a museum piece in Washington, DC. We don't entertain visitors anymore because of COVID–19, but if they were to come, they could peer down at the desks and say: Well, that is where people used to stand, called Senators, who actually legislated. We don't do that anymore here. It is very seldom. Instead, we take up these partisan causes, like filling the Federal judiciary with ideologues and violating the traditions of the Senate to fill Supreme Court vacancies.

This Chamber is just a room, but the Senate is 100 people—100 people bound together by history, tradition, rules, and mutual respect. What we are witnessing now with the Senate's effort by the Republicans to fill this Supreme Court vacancy before a new President is elected is a violation of all four—history, tradition, rules, and the mutual respect that is important in this body.

I hope that we can recover from it, not only for the good of the Senate but for the good of the Supreme Court, and that we can come out of this with a determination to try to put this Chamber back on track. This is a sad and dark moment—a loss of a wonderful woman who served this country so well and this effort to replace her in a manner that does not speak to the best instincts and history of the U.S. Senate.

I yield the floor.

The PRESIDING OFFICER. The Senator from Hawaii.

Ms. HIRONO. Madam President, this past Friday, our Nation lost a giant of a jurist and a champion of gender equality, workers' rights, voting rights, and civil rights. Justice Ruth Bader Ginsburg understood the critical importance of the Supreme Court in safeguarding our constitutional individual rights.

About 2 years ago, I was sitting next to Justice Ginsburg at a dinner, and we were talking about the concerns we had about a very divided Supreme Court. She shared her concerns that we would see many more 5-to-4 decisions coming in the future, decisions that would roll back civil rights' protections, workers' rights, individual rights, efforts to address climate change, and, clearly, a woman's right to choose—decisions that would harm everyday Americans.

As someone who had been on the Court for more than a quarter of a century, Justice Ginsburg had understood the dangers of partisan split decisions. She had spent more than two decades standing up for gender equality, voting rights, workers' rights, and civil rights. She was often also a key vote in upholding critical rights for everyday Americans, such as clean air and clean water protections.

Within a few years of joining the Supreme Court, Justice Ginsburg had written a landmark opinion in a 7-to-1 decision that had struck down the Virginia Military Institute's traditional male-only admissions policy. She had spoken for nearly the entire Court when she had written that the differential treatment of men and women ''may not be used . . . to create or perpetuate the legal, social, and economic inferiority of women.''

More recently, Justice Ginsburg's powerful voice had led dissents against partisan 5-to-4 decisions.

In 2007, she led the dissent in Ledbetter v. Goodyear Tire & Rubber Co., where the bare 5-to-4 majority of the Court had undermined the plain language ability to bring gender pay discrimination claims. Justice Ginsburg took the rare step of reading her dissent from the bench, saying: ''In our view, the court does not comprehend, or is indifferent to, the insidious way in which women can be victims of pay discrimination.''

I was a Member of the U.S. House of Representatives when the Ledbetter decision came down, and I was appalled that a bare majority of the Court interpreted the relevant statute in a way that it had not been intended. Justice Ginsburg invited the Congress to fix the statute to make its intent clearer. At that time, Representative George Miller, the chair of the House Education and Labor Committee, on which I served, then led the way to pass the Lilly Ledbetter Fair Pay Act, and it was the first bill that President Obama signed into law in 2009.

In 2013, Justice Ginsburg wrote a scathing dissent in the 5-to-4 decision of Shelby County v. Holder, where a bare majority of the Court once again gutted the Voting Rights Act. She wrote then: ''Throwing out preclearance when it has worked and is continuing to work to stop discriminatory changes is like throwing away your umbrella in a rainstorm because you are not getting wet.''

Immediately after Shelby County, as should have been expected, many States passed voter suppression laws that made it much more difficult for communities of color to vote. That was the intention of those laws that these States passed. These voter suppression efforts are ongoing even as we speak, and they will have a negative impact—a really negative impact—on the 2020 election.

In 2018, she rebuked the 5-to-4 majority in Epic Systems Corp. v. Lewis, which allowed companies to force their workers to arbitrate their claims one by one instead of seeking collective action in court. Why one by one? Because the employer thought all of these employees are not going to fight us one by one by one.

In calling the majority's decision egregiously wrong, Justice Ginsburg noted: ''The inevitable result of today's decision will be the underenforcement of federal and state statutes designed to advance the well-being of vulnerable workers.''

In fact, Epic Systems was one of the cases I brought up with Justice Ginsburg when I sat next to her at dinner. I said that it was a horrible decision, and she said: ''And I wrote the dissent.''

To honor Justice Ginsburg's legacy, we should honor her final wish not to be replaced until a new President is installed. In fact, that is the rule the Senate Republicans made up in 2016. About 1 hour after Justice Scalia died on February 13, 2016, Senator MCCONNELL announced an unprecedented new rule—that the American people should have a voice in the selection of their next Supreme Court Justice. Therefore, this vacancy should not be filled until we have a new President. Then, for the next 11 months, Senator MCCONNELL blocked President Obama from replacing Justice Scalia on the Supreme Court. That vacancy existed for almost a year.

Back then, it didn't take much for other Republicans to join Senator MCCONNELL. In fact, the rumor was that the majority leader had his Republican colleagues all lined up to side with him before he even announced the so-called McConnell rule. That was then. This is now.

Now that the tables are turned and we have a Republican President instead of a Democratic one, Senator MCCONNELL and his Republican colleagues are going back on their word. Within hours of Justice Ginsburg's death, Senator MCCONNELL vowed: ''President Trump's Supreme Court nominee will receive a vote on the floor of the U.S. Senate.'' This is what is known as a 180-degree turn—or talking out of both sides of your mouth. Of course, he is not the only one.

In 2016, Senator GARDNER said: ''I think the next president ought to choose the Supreme Court nominee, and I think it is only fair to the nominee themselves, and I think that is only fair to the integrity of the Supreme Court.'' Yet, after Justice Ginsburg's passing, Senator GARDNER flip-flopped, indicating that, if President Trump nominates someone he likes, he will vote to confirm.

In 2016, Senator TILLIS came to the Senate Chamber to declare: ''It is essential to the institution of the Senate and to the very health of our Republic not to launch our Nation into a partisan, divisive confirmation battle during the very same time the American people are casting their ballots to elect our next President.''

But it took Senator TILLIS fewer than 24 hours after Justice Ginsburg's death to go back on his word and commit to supporting the ''conservative jurist President Trump will nominate.''

In 2016, Senator GRAHAM repeatedly stated: ''The election cycle is well under way and the precedent of the Senate is not to confirm a nominee at this stage of the process.''

He even doubled down on his promise, claiming: ''I want you to use my words against me. . . . If there's a Republican president in 2016 and a vacancy occurs in the last year of the first term, you can say Lindsey Graham said let's let the next President, whoever it might be, make that nomination.''

Then, a week after Justice Kavanaugh and Dr. Ford testified before the Senate Judiciary Committee, Senator GRAHAM said plainly to Jeffrey Goldberg of The Atlantic: ''If an opening comes''—of course he was talking about a Supreme Court opening—''If an opening comes in the last year of President Trump's term, and the primary process is started, we'll wait for the next election.''

When my Democratic colleagues on the Judiciary Committee did what Senator GRAHAM asked—that we hold him to his word; we wrote a letter to him to stick by his word—he refused. He indicated that he would ''proceed expeditiously to process any nomination made by President Trump to fill'' Justice Ginsburg's vacancy.

There are other Republican Senators who stood up with Senator MCCONNELL in 2016 and now have changed their tune, including Senators PERDUE, ERNST, BARRASSO, and CORNYN.

The question that American people should ask is, How can you trust people who don't keep their word?

This is an urgent question for the millions of Americans who will lose their healthcare and reproductive freedoms if President Trump and Majority Leader MCCONNELL are successful in stealing yet another Supreme Court seat.

The threat this nominee poses to the Affordable Care Act is not some esoteric debate we are having. It is not theoretical. On November 10, the Supreme Court will hear yet another partisan challenge to the ACA.

I have no doubt that Donald Trump and the majority leader want a new Justice in place to strike down the ACA, depriving millions of Americans of their health insurance, including millions with preexisting conditions.

The more than 6 million Americans who have tested positive for COVID–19 will likely be deemed to have a preexisting condition. Add them to the Americans who will be devastated if the ACA is struck down by the Trump nominee. Our healthcare is on the line with the next nominee, regardless of who the nominee is.

Note that the Republicans are saying that every single Judiciary Republican is going to vote for the nominee, and we don't even know who the nominee is. Well, obviously, it doesn't matter who the nominee is. It will be someone who is expected to strike down the ACA.

After all, repealing the ACA has long been No. 1 on the President's and Republicans' hit list. But getting rid of the ACA is not the only thing the President is after.

The President's nominee will also oppose abortion rights. So that is next on their hit list.

Let me be clear. The future of Roe v. Wade is on the line. The future of a woman being able to control her own body is on the line.

With so much at stake with this nomination, the millions of Americans who revered Justice Ginsburg are not just going to sit by and do nothing while my Republican colleagues try to steal yet another Supreme Court seat. In fact, they are showing up in droves in front of the Supreme Court to show their support for all that Justice Ginsburg stood for.

They are going to fight back, and you can be assured I will be right there fighting back with them. They aren't going to fall for the trumped-up justifications, explanations, and pretexts that Senate Republicans are using to go back on their word. And I am confident that in 6 weeks' time, the American people will hold them accountable.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Ms. HASSAN. Madam President, first of all, I would like to thank my colleague from Hawaii for her remarks just now and for her commitment to a more equal, more just United States of America.

I rise tonight to join my colleagues in mourning the loss of Justice Ruth Bader Ginsburg.

Justice Ginsburg was a brilliant jurist and a persistent patriot. Her belief in our country and her vision and imagination as a lawyer left our Nation stronger and more just.

As a litigator, she fought and she won fights for women's equality. And on the Court, she was a powerful voice for justice, whether in the majority or in dissent.

Throughout her career and through the final days of her life, she was a powerful voice calling for every American to be recognized equally and to be treated with dignity, regardless of gender or personal circumstances, and the progress and inclusion that she helped build throughout her life is a testament to both her tenacity and her unmatched legal mind. It is also an illustration of what is possible in our country when we reaffirm and stay true to our values.

Justice Ginsburg's vision of what it means to be an American and what it means to be free changed lives. She helped move our country toward a more perfect union, and we have to continue her unfinished work.

Like many of my colleagues, I stopped by the Supreme Court over the weekend. It was incredible to see the outpouring of sheer reverence and to see the number of people who came on foot, on bicycle, in cars to pay their respects.

I overheard one mom explain to her children: ''A lot of people loved her.'' Then, a couple of seconds later, she added for the children: ''And I want you to understand how important she was to our country.''

I hope we all take the time to think about the meaning of Justice Ginsburg's life and what this loss means for our country. Honoring the legacy of Ruth Bader Ginsburg means continuing to fight for the more equal America that she fought for throughout her entire career.

Unfortunately, though, in a week in which America has reached a terrible milestone of 200,000 COVID–19 deaths, the Senate majority leader and Senate Republicans have made their priorities clear. Instead of working with Democrats to pass the comprehensive COVID–19 relief bill that the American people so badly need, my colleagues across the aisle are focused on using all of the Senate's time before the election to rush through the President's choice for a lifetime appointment to the Supreme Court, and they are doing so in contradiction of the rules that they themselves invented in 2016, despite the fact that this election is not just imminent, it is already underway with voters casting their ballots in States across the country.

Our society and our democracy rely on the idea that all sides of political debates will play by the same rules. That means when any faction loses, it does so knowing that it will have a fair chance in the next round. When that understanding is disrupted, it destabilizes our democracy, leaving people feeling disenfranchised. It is wrong, and it produces chaos and confusion, and it demonstrates a dangerous trend.

My Republican colleagues are making clear that they do not think the rules apply to them. It is worth taking a closer look at exactly why they are violating the rules that they set for themselves and applied to President Obama's nominee just 4 years ago and what the impact of their backward priorities will be for the American people.

Right now, the Trump administration's lawsuit to repeal the entire Affordable Care Act and its protections for people with preexisting conditions is pending before the Supreme Court and, as you have heard from my colleagues, scheduled to be argued after the election. Make no mistake, rushing through this nomination is a last-ditch effort to repeal the Affordable Care Act through the courts after failing to do so legislatively for years. Even worse, the Republicans would undermine healthcare in the midst of a devastating pandemic, just when it is needed most.

Invalidating the ACA will also mean that those who survive COVID–19—and, as a result, will have preexisting conditions for the rest of their lives—will no longer be protected by the ACA when they seek insurance coverage.

Taking away healthcare from millions of Americans is just one of the many things at stake. Women's rights, voting rights, civil rights, workers' rights, so much of what Justice Ginsburg stood for—they are all at risk. Senate Republicans are not just intent on filling this Supreme Court seat; they are intent on filling this seat with a person who will strip away some, if not all, of these rights.

The stakes could not be higher, and the priorities of the American people are clear. We should follow the rules that the Republicans created in 2016. We should focus on COVID–19 relief. And we should not confirm a nominee until after the next President is inaugurated.

Ruth Bader Ginsburg believed in an America where equality would win out, where everyone played by the same rules in liberty and justice—in fact, in liberty ensured by justice. It would be a good thing if all of my colleagues who have the privilege of serving in this Chamber would reflect on that to honor the giant we just lost.

God speed, Ruth Bader Ginsburg, and God bless the United States of America.

I yield the floor.

The PRESIDING OFFICER. The Senator from Minnesota.

Ms. KLOBUCHAR. Madam President, I thank my colleague from New Hampshire for her beautiful words.

I rise today to join my colleagues in celebrating the life and legacy of a hero, an icon, and a woman way ahead of her time, Justice Ruth Bader Ginsburg.

She was a trailblazer who exceeded all expectations and, through her example, helped young people, young women across this country believe that anything and everything is possible, and it is my hope that this Chamber can follow in her footsteps and exceed expectations when it comes to this precious democracy that we are supposed to hold and that we are supposed to take care of.

A few years back, my daughter Abigail and I got to see Justice Ginsburg—and I had met her a few times—but we were at an event, and we had our photo taken with her.

Now, as you know, Abigail was in her early twenties, and Justice Ginsburg had become a cult figure at that point in her eighties—something we all aspire to—to the point where she had her own hashtag.

So we had our photo taken, the three of us. Afterward my daughter came up, and she said: Mom, I got a photo of the ''Notorious RBG.'' I am going to put it on my Facebook page. But, Mom, I hope you don't mind; I am cutting you out. I just want one with RBG up there.

Justice Ginsburg literally made justice cool for a lot of young people out there, and that legacy—that legacy, with all the people, the outpouring of love and support you see at the courthouse—continues.

When people told Justice Ginsburg that she shouldn't go to law school because she was a woman, what did she do? She went to Harvard, became the first woman to work on the Harvard Law Review, and then went on to graduate from Columbia at the top of her class.

As has been recounted many times, she literally was called before the dean of Harvard Law School, along with the eight other women who were in that class of all of those men, and asked why they would be taking the seat of a man. But that didn't stop her. Nothing stopped her. When law firms in New York wouldn't hire her because she was a young mother, what did she do? She became one of only two female law professors at Rutgers University where she then wrote the brief that led the Supreme Court to decide for the first time that the Fourteenth Amendment of the Constitution should protect against laws that treat people differently solely on the basis of sex.

When they told her that despite her expertise and her novel theories of how to advance equal protection, when they told her that she shouldn't argue equal protection cases before the Supreme Court, that maybe the chances would be better if a man would do it, what did she do? She argued six cases in front of the U.S. Supreme Court and leaves with five out of six victories.

But she didn't stop there. She was nominated as the second woman ever to serve on the Supreme Court after Sandra Day O'Connor. She was confirmed in the Senate by a vote of 96 to 3. She served on the Supreme Court, the highest Court in the land, for 27 years, standing up for equality and justice, and, as I noted, she became an international icon well into her eighties.

She did all that by never giving up, and that inspires me as we deal with what is in front of us right now with this assault on our democracy. When the odds don't look that good, you never give up.

One of her important majority opinions on the Court built on her work on equal protection as a young attorney. In United States v. Virginia, Justice Ginsburg wrote for a 7-to-1 majority that struck down the male-only admission policy at the Virginia Military Institute. So she not only wrote the opinion, she got a number of Republican-appointed Justices to join her.

When she announced the opinion in Court, she said that the equal protection clause of the Fourteenth Amendment prohibits any ''law or official policy that denies to women, simply because they are women, equal opportunity to aspire, achieve, participate in, and contribute to society.''

That opinion was joined by Justices appointed by both parties, including Chief Justice Rehnquist, Justice Sandra Day O'Connor, and Justice Kennedy. It was an example of the principle that guided Justice Ginsburg, in her words, to ''fight for the things you care about, but do it in a way that will lead others to join you.''

But she was also known for the opinions she wrote in dissent and not only because she would wear what was sometimes fondly called her ''dissent collar'' when the opinion was announced at the Court.

In Shelby County v. Holder, a 5-to-4 majority struck down important parts of the Voting Rights Act that required jurisdictions with histories of racially motivated voter suppression to seek court or Department of Justice approval before changing voting laws, a process known as preclearance.

Justice Ginsburg authored the dissent, joined by Justices Breyer, Sotomayor, and Kagan, arguing that ''[t]hrowing out preclearance when it has worked and is continuing to work to stop discriminatory changes is like throwing away your umbrella in a rainstorm because you are not getting wet.''

After she finished reading her dissent in Court, she quoted Martin Luther King, Jr., saying that ''the arc of the moral universe is long, but it bends toward justice'' and adding her own caveat that it bends toward justice only ''if there is a steadfast commitment to see the task through to completion.''

To see the task through to completion is part of our job as stewards of this democracy. We may not see it through to completion, but the least that we should do is do no harm, and

the most that we should do is to make it better. That is what she stood for, and that is what I hope my colleagues will consider in the weeks to come.

As we gather here tonight, we must also recognize that Justice Ginsburg's work, as I noted, is still unfinished. Many of the values that she fought for—equality and justice—are still at stake. The Supreme Court will continue to make decisions about equal rights for women, LGBTQ equality, access to clean air and clean water, fair elections, and workers' rights.

Just 1 week after the upcoming election, the Court will hear arguments in a case challenging the constitutionality of the Affordable Care Act which could put coverage for people with preexisting conditions at risk. That is what the court down in Texas held. People's healthcare is literally on the line. If the Affordable Care Act is struck down, over 20 million Americans across the country could lose their health insurance right in the middle of this pandemic because there would be no requirement in place to protect them from being thrown off their insurance.

When the stakes are this high, I urge my colleagues to grant what Justice Ginsburg described as her ''most fervent wish'' that she will not be replaced, she said, ''until a new President is installed.'' Those are her dying words. Of course, she used the word ''fervent'' because that is how she approached her life and her work.

At its core, Justice Ginsburg's wish is about fairness. It is about what is right and what is just.

Four years ago, Leader MCCONNELL created a new rule for Supreme Court nominations. He refused to consider President Obama's nomination, as is well known, of Merrick Garland to the Supreme Court because the country was 9 months from an election, and, in his words, ''the American people should have a voice in the selection of their next Supreme Court Justice.''

So here we are, 42 days until the Presidential election, and people have already started voting. They are voting in my State not only by mail, as we speak, but also in person at early voting places all across our State.

It is our Republican colleagues that set that precedent, and now they must follow it.

Tonight, I urge my colleagues not to fill this vacancy until the American people have voted. People are deciding right now who should be President. If you go back in history, the only time a Justice died this close to the election was during the time of Abraham Lincoln, when Justice Taney died who was sadly, infamously, known for writing the Dred Scott opinion. He died the closest to an election of anyone until Justice Ginsburg.

And what did Lincoln do? He waited until after the election, until after he saw if he won, until after he knew what the makeup of the Senate was. He didn't do it because he was a wise man and because his interest, as we know, was to bring our country together and to do everything he could in his power to stop the divide and to have ''one nation under God.''

My colleagues will have to decide what to do based on their own integrity, their own commitment to justice. As Justice Ginsburg demonstrated, lawyers fight for justice. If you live and breathe that fight like Justice Ginsburg did her entire career, that is our job, too, to fight for justice, but we have an even more extraordinary burden and that is also to uphold this democracy and to keep this country together.

Justice Ginsburg did it in her own way, in her own life. Despite having incredibly different opinions about the law as Justice Scalia, they were true friends, and she was able to work with him.

Well, we need to see more of that here. It doesn't mean that we have to agree on who the next President is. It doesn't mean that we even have to agree on who the next Justice will be, but our job is to maintain stability in this country, to bridge that divide, to bring people together, and to simply let the people decide.

I think it is because of that unique characteristic she had of being a fighter, of being a hero, of taking risks, of never giving up but also doing it in a way where people could feel that they knew her. Even people who disagreed with her—including in this institution—respected her.

Well, now the eyes are on this place, and it is our job to earn the respect of the American people. The reason we have seen so many people expressing their grief at the steps of the Supreme Court and across the country is because of that respect. Justice Ginsburg opened doors for women at a time when so many insisted on keeping them shut, and on the Supreme Court, time and again, she made the case for justice.

For a woman of so many firsts, it is fitting that this coming Friday she will be the first woman to lie in state in the U.S. Capitol. So let's remember her fight, her legacy, and her fervent wish—all of us—about securing equality, fairness, and justice for every person in our country.

I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Madam President, as our colleague just said tonight, you can't even remember any other member of the Federal judiciary who became a cultural icon, recognized only by their initials. RBG did, and she earned her recognition and her place in history through an astounding career fighting for gender equality, for the rights of LGBTQ individuals, and for the rights of everybody who had been pushed to the margins of American society.

MITCH MCCONNELL and Donald Trump have now, unfortunately, made it very clear that they are going to pull out all the stops to unravel the exceptional work of Ruth Bader Ginsburg, and they are going to break their own rule—their own rule. It is not something that was debated on the other side. They decided to break their own rule pertaining to election-year appointments to undo the historical record of Ruth Bader Ginsburg.

For a moment, I want to compare this to another time. When I was a young man right out of law school, I served for a number of years as co-director of the Oregon Gray Panthers at home. Back then, just like now, there were a lot of issues that were on people's minds. Just like today, where there have been lists of issues miles long—from the rights of LGBTQ Americans to workers' rights, to the ability of every eligible American to vote, and much more—there was a similarly long list of issues back when I worked with the senior citizens.

I made the judgment then, because of spending that time with older people, that healthcare was far and away—far and away, colleagues—the most important issue because if you and your loved ones don't have your health, then pretty much everything else goes by the board. You can't spend time with family. You can't achieve all you want in your job. You can't even have a chance to walk about outside on a pleasant evening like this. So healthcare to me and to millions of Americans is far and away the most important issue in front of this body.

Now, this is the one issue—the one issue that will come up immediately with the Trump-backed lawsuit going before the Court soon after the election. So make no mistake about it, and I know it is awfully hard to follow all the legalese and the procedural motions. At one point my wife said—I think Senator MERKLEY may have heard this. When my wife said she would marry me, she said: You are a lawyer, not probably a particularly good one, but I am sure glad you did a good job for the senior citizens. It is hard to follow all the legalese and all the procedure.

When you set aside all of that surrounding the fact that healthcare will be the one issue coming up immediately with the Trump-backed lawsuits soon after the election, tonight we say to the American people that healthcare in America is at stake. The Affordable Care Act is at stake, and coverage for 130 million Americans with preexisting conditions is at stake. If you don't trust Republicans with your healthcare, you cannot trust Republicans with this Supreme Court seat.

Donald Trump and the Justice Department are suing to have the entire Affordable Care Act thrown out—every last bit of it thrown out. So I just want to walk through what this means from sea to shining sea.

If they are successful, the ironclad guaranteed coverage for preexisting

conditions is gone; the ban on discrimination against women is gone; the ban on annual and lifetime limits, gone; coverage for young people on their parents' plans, gone; guaranteed essential benefits for all with coverage, gone; no-cost contraceptives for women, gone; cheaper prescription drugs for seniors on Medicare, gone; Medicaid coverage for millions and millions of Americans, gone. Most importantly, colleagues, because of the Affordable Care Act, millions of Americans can go to bed tonight knowing that they will have secure, decent healthcare when they wake up in the morning. If the Trump lawsuit is successful, that, too, will be gone. That is the Trump agenda on the Affordable Care Act—ripping it out by the roots no matter how much pain is inflicted on the American people.

By the way, I made mention of the Gray Panthers. Let's understand. In this country, we always love to move forward. This is a direct trip back. The Affordable Care Act locked in protections for those with a preexisting condition who had faced discrimination. A victory for Donald Trump in court means you turn back the clock to the days when healthcare was for the healthy and wealthy because that is what you have if you allow discrimination against those with preexisting conditions.

In 2017, the President tried and failed to get the Congress to repeal the Affordable Care Act, so he couldn't get it done. My colleagues here, Senator SCHUMER and Senator MERKLEY—we all remember that night and John McCain's hugely consequential role. Donald Trump couldn't get the Congress to repeal the Affordable Care Act, so now he is trying to do it at the Supreme Court.

Donald Trump's Department of Justice is bringing to the Court—along with dozens of Republican State attorneys general—what I think is a lot of legal nonsense, but that might not matter to far-right activist judges who would seize this opportunity to hand a big, big win to the insurance companies, the drug companies, and other special interests at the expense of Americans who are vulnerable.

Particularly after Justice Ginsburg's passing, there is a real chance that the Supreme Court will hand down a partisan ruling giving the President the win he wants so much over the Affordable Care Act. If he gets to choose the person who takes the seat held by the revered RBG, the Affordable Care Act will be gone, and the Republican healthcare agenda is coming, and it is coming after vulnerable Americans from sea to shining sea.

Donald Trump might tell you something different, but the American people know he doesn't often tell the truth about healthcare. Once in a while, the truth does come out. That is what happened one day back in May, the last day he had the opportunity to pull out of this anti-ACA lawsuit before the Court. The President was asked whether he might have a last-minute change of heart, but he made his goal clear. He said: ''We want to terminate healthcare under ObamaCare.'' That was in May.

Hospitals in COVID–19 hotspots around the Nation were full of Americans at that time who were dying alone amid a global contagion that had shut down our country. Not even a nationwide public health disaster could get Donald Trump to reconsider his position on the Affordable Care Act.

If Donald Trump wins the Supreme Court case, having had the coronavirus will be a preexisting condition, and insurance companies can use it to discriminate against you.

It obviously goes without saying that the Trump agenda would leave American healthcare in ruins. He has fraudulently promised a new and comprehensive healthcare plan. We stopped counting after 9 or 10 times, but it is all a fraud because all this administration has done since day one is make healthcare worse and more expensive for Americans.

I have tried to point out that even Medicare is headed for a crisis because of Donald Trump and his incompetent administration. He knew the coronavirus was highly contagious and a lethal pandemic, but he denied it for weeks and weeks while the virus spread nationwide. When the pandemic eventually exploded, the economy shut down, and that has been devastating, as I have pointed out, to the finances of Medicare. The Medicare trust fund will be insolvent within 4 years during the next Presidential term.

So we have said on the Finance Committee, where we have jurisdiction over Medicare, that whoever wins this election is going to be in charge during the biggest crisis Medicare has ever faced. If Donald Trump is in charge, I believe it will be the end of the Medicare guarantee of defined, secure, and high-quality benefits for the older people of this country. Seniors may have to figure out some other way to pay for healthcare, prescription drugs.

The bottom line is, wiping out the guarantee of healthcare is what the Trump agenda has always been about—gutting the Affordable Care Act through regulations, bringing back junk insurance, and cutting access to women's healthcare. If Donald Trump fills the Ginsburg seat and has the Supreme Court totally on his side, you can bet the courts will be siding against typical Americans and for special interests with every opportunity.

Let me close simply by touching on one other vital healthcare issue. Women's healthcare—particularly reproductive healthcare—is right at the center of this debate about the future of the Ginsburg seat. Republican lawmakers have been trying to throw that away after more than 45 years of settled law. They have been fighting to go against the majority opinion of the American people and overturn Roe v. Wade, denying a woman's right to access to healthcare that woman—that woman—says she needs.

Even today, just a few hours ago, Senate Republicans dusted off a decades-old anti-science battle against the safe and mainstream reproductive health medication formerly known as RU486. The bill they proposed, which Democrats have blocked, comes down to a backdoor ban on safe and legal medication for reproductive healthcare. Major new regulations restrict women's access to essential, time-sensitive medications, putting the government right in between women and their doctors. This is wrong, wrong, wrong. It was wrong when Republicans were waging the same ideological battle 30 years ago and wrong when you now try to take away women's reproductive healthcare choices, because more women will die. What sense does it make to bring this anti-science and anti-women's health proposal forward in the middle of a raging pandemic?

Today, the country crossed a horrendous milestone—200,000 American lives lost to COVID–19. All that mass death and suffering. Republicans aren't working across the aisle to close the shortage gap on personal protective gear or expand access to care; they are busy spending time waging an endless campaign against women getting healthcare.

With the passing of Justice Ginsburg, the campaign reaches a new stage. In my view, it is not just a question of what happens to Roe v. Wade or access to therapies and drugs; it is about a much bigger and more dangerous proposition—government control over women's bodies. Donald Trump and the Republican Party are working toward that kind of government control, and it means government control over women's futures. That is what is at stake. That is what Justice Ginsburg fought so hard against.

She has left, as I call it, an astounding legacy of fighting on the side of fairness and equality again and again for so many people who didn't have power, didn't have clout, and didn't have lobbies. What an American hero. In my view, she has made it clear for all of us here that now, to protect her legacy, we have an immediate, five-alarm, DEFCON issue, and that is healthcare, healthcare, healthcare.

As I have been saying since late Friday night, if you don't trust Republicans with your healthcare, you cannot trust Republicans with this election or this Supreme Court seat.

I yield the floor.

The PRESIDING OFFICER (Mr. ROUNDS). The Democratic leader.

Mr. SCHUMER. Mr. President, I will be brief.

First, I want to thank all of my colleagues who have already spoken and who will speak. We have over 15 of our colleagues talking about this issue because it is so vitally important to the American people.

Now, let me tell you a little tale. About 40 or 50 years ago, after Barry

Goldwater lost for the Presidency, some of the hard-rock conservatives realized that they had to create something that would help them realize their goals, and it gradually grew and grew and grew and by 1980 was very strong with the election of Ronald Reagan.

At that point, these conservatives realized that their views would never be enacted by the elected branches of government—the article I branch and the article II branch—because their views were so far to the right of not only the average American but even the average Republican. They realized that the one way they could move America in their hard-right direction was the courts, the nonelected branch. They endeavored to place, through many different organizations—at the top of the list, the Federalist Society, but many others—these people, many of whom they had cultivated since they were in law school, on the bench.

This vacancy caused by the unfortunate death of RBG would lock in this hard-right agenda for a generation—for a generation. All the things that people in America believe in could be undone by an unelected group, the Supreme Court of the United States.

As my colleague from Oregon just outlined, healthcare would be so far away from what the American people need.

The right of a woman to choose. The right of a woman to healthcare. The ACA, which they want to repeal, which will go before the Court, has protections for women's healthcare—gone.

The right of unions. This Court, even without such a conservative majority, pushed forward the Janus case. I believe their goal is to eliminate all unions and make America a right-to-work country, as they have endeavored to make many States right-to-work.

LGBTQ rights, passed because of the courageous actions of Justice Kennedy, could be evaporated.

Climate, dealing with climate change—we could see the Clean Air Clean Water Act eviscerated by this new rightwing Court.

Voting rights—one of the most awful decisions, the Shelby decision, led by Chief Justice Roberts, where they said ''Oh, there is no more discrimination in America; we don't need the Federal Government to protect voting rights''—undone, and we have seen what happened throughout the country since then.

And civil rights—just about anything that this country has made progress on and holds dear—will be undone by this new Court.

This is not just a political debate between Democrats and Republicans. I tell the American people: Everything you need and want—just about everything—will be taken away inexorably, month after month, year after year, decision after decision, by this new Court, which, as my colleague from Rhode Island has ably documented, has been put forward by a hard-right group led by some very narrow, greedy people who don't want to pay any taxes and who don't want any government regulation. They are rich and powerful. They don't want anyone interfering with any of that.

We will rue the day—rue the day—that we add another hard-right Federalist Society-approved jurist to this Supreme Court, and America will have a very, very difficult time recovering.

I urge my Republican colleagues, who know the hypocrisy of saying to Merrick Garland ''You shouldn't go forward'' but to this new nominee ''You should,'' for the sake of this body, for the sake of the country, for the sake of progress, for the sake of the viability and forward advance of our citizenry, think twice—think twice.

It is going to be a sad day in America and will lead to very bad consequences for this country if a solid, hard-right majority on this Court is able to rule over our lives.

I hope, I pray, and I will do everything I can to see that that doesn't happen.

I yield the floor and thank my colleague for his yielding for these brief moments.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. MERKLEY. Mr. President, I join my colleagues here on the floor tonight to honor and pay tribute to a remarkable legal mind, an incredible American, an icon, an inspiration, and a wonderful human being: Justice Ruth Bader Ginsburg, known to the younger generation as the ''Notorious RBG.''

RBG was born into a world in which few, if any, opportunities existed for women beyond the role of wife and mother. She helped build a world in which the doors were opened; the doors of opportunity were blown wide. It was a powerful, powerful undertaking, and she was extraordinarily successful in it.

She graduated from high school at 15. She went on to college. She went on to law school. She graduated in a class of 500 students, and she tied for first in her class in 1959. I was 3 years old at that point.

Then she applied for jobs, and she faced the discrimination of ''You are a woman, so we cannot hire you at our corporate law firm.''

Then she applied for clerkships with the Supreme Court, and the Supreme Court Justices said: You are a woman, and our doors are closed to you.

Perhaps this was a fortuitous moment because she went on, therefore, to take on a job as professor at Columbia University and from that to lead the Women's Rights Project at the ACLU. As director of the ACLU Women's Rights Project, she argued six landmark gender discrimination cases before the Court. Plain language, great heart, brilliant logic, and considerable legal tactics went into winning five of those six cases—an incredible record for anyone who has appeared before the Court.

One of the tactics she undertook was to argue cases where men were being discriminated against because they were men, and by winning those cases, she established a principle where neither men nor women could be discriminated against.

There is the Frontiero v. Richardson case in 1973, where a female Air Force lieutenant sued to get the benefits for her husband that a male member of the military would normally get for his wife. By winning that case, she opened the door to the concept, the principle, that gender discrimination is not acceptable under our Constitution.

She put forward and argued the case of Weinberger v. Wiesenfeld in 1975 just 2 years later, again, arguing for a man who, as a spouse, was denied Social Security benefits that were available to a woman as a spouse and, by winning that case, more deeply established the premise that under our Constitution, you cannot discriminate on gender.

She went on to the Court and had many momentous decisions that she wrote and dissents that she wrote. One of the cases that she wrote the majority opinion on was an 7-to-1 case to overturn Virginia Military Institute's men-only policy, arguing that it violated the 14th Amendment's equal protection clause.

She wrote the following: ''Women seeking and fit for a VMI quality education cannot be offered anything less, under the State's obligation to afford them genuinely equal protection.''

She continued: ''Generalizations about 'the way women are,' estimates of what is appropriate for most women, no longer justify denying opportunity to women whose talent and capacity place them outside the average description.'' And a law that ''denies to women, simply because they are women, full citizenship stature—equal opportunity to aspire, achieve, participate in and contribute to society,'' violates the equal protection clause. Eight to one, that is a massive victory.

I thought it was very interesting, the point she often made in her dissent. The Supreme Court decided in the 2007 case of Ledbetter v. Goodyear Tire & Rubber Co.—the majority said: Do you know what? If you have been discriminated against in pay in your job, and you learn about it years later, you can no longer appeal for redress because you would had to have come to the Court at the moment the discrimination first occurred. Of course, that was a catch-22, an impossible situation. If you didn't know about it, you couldn't possibly come to the Court. She addressed this, and she said: The majority does not ''comprehend, or is indifferent to, the insidious way in which women can be victims of paid discrimination.'' So she called on Congress to act to address, really, this mistaken opinion of the Court. And we did so in 2009, the first year I came to the Senate.

There is another dissent that I think was powerful: Shelby County v. Holder.

The majority struck down Voting Rights Act protections against voter suppression and intimidation, arguing that those things no longer exist. It is as if you have a penalty for robbery that is so effective that everyone quits robbing, so you get rid of the law; the Supreme Court strikes down the law that says that robbery is an offense. It made no logical sense. However, in her dissent, she described it in a way we can all understand. She said the ruling was ''like throwing away your umbrella in a rainstorm because you are not getting wet.''

The foundation she laid on gender discrimination created the foundation for similar arguments to end LGBTQ discrimination. They came to play in Romer v. Evans, where the Court overturned laws around the country that criminalized gay sex, or Obergefell v. Hodges, the case that established marriage equality, or the case of Bostock v. Clayton County, decided this year, that banned employment discrimination against LGBTQ workers. So her arguments reverberate in continuous ways.

Losing her is a very powerful and difficult moment because of her championship of opportunity in this country. So on Sunday night, I went down to the Supreme Court. I had thought about it on Friday night when word passed of her dying. On Friday night, I thought: It is going to be a scene of confrontation, of people with bull horns yelling at each other and confronting each other. That doesn't fit how I want to honor her. And I thought on Sunday night: I need to go and be at the Supreme Court. I was so relieved to find that there was not a scene of confrontation; there was a scene of hundreds of people coming to honor her championship of opportunity in our country, the role that she played for so many so often as an advocate and as a Justice.

This is a piece of what it looked like, although you have to kind of multiply the flowers and everything you see over a huge expanse. This is just a small portion of it.

I was very struck by watching people kneel down to write with chalk—women, men, boys, and girls—to say what she meant to them, what she meant to this country, and what she meant to striking open the doors of opportunity.

Then I started reading some of the things that were being written. This is one of them. This says: ''We can because she did. Thank you, RBG.''

In another written sign, there was a quote:

''I ask no favors for my sex. . . . All I ask of my brethren is that they will take their feet off our necks.'' Give us opportunity.

This is actually Ruth Bader Ginsburg quoting Sarah Grimke of South Carolina, born in 1792. Sarah became the country's first female abolitionist and early pioneer of the women's movement. When Ruth Bader Ginsburg quoted her in the ''Notorious RBG'' documentary, it made this quote famous for a generation.

I was struck by this sign, which I thought basically summed up her entire efforts on women's rights. It is a quote of hers that says: ''Women belong in all places decisions are being made.'' You can see at the end the massive number of flowers and signs people have left in front of the Supreme Court.

Then I saw this, which summed up a young woman's commentary on that principle:

I grew up never knowing there was a glass ceiling because of you. Thank you, RBG.

So we mourn her loss. She was a champion for opportunity for all. She was a champion for so much that goes to making this world a better place for ordinary people—ordinary people—which brings us to the challenge we have before the Court because realize that the Supreme Court has become a very powerful, nine-member, appointed-for-life superlegislature.

It is not calling balls and strikes any longer—no. It is a setting for a pitch battle between the original vision of our country—''we the people'' government or, as Lincoln said, government of, by, and for the people—and a different vision for our country; a Federalist Society vision for our country; a vision of, we the powerful minority want to control the government for our own benefit. That is the battle that is being waged on the Court. Is it government by and for the people or government by and for the powerful?

This has been a battle that has been waged since our 1787 Constitution. In 1781, we had our first Constitution, the Articles of Confederation, and the minority view of the White, wealthy, powerful South was protected by a requirement for a supermajority in that first Constitution, the Articles of Confederation.

The Founders said: This isn't government by and for the people. This is not government by and for the people—no. The majority will is the power of government by and for the people.

So that was embodied in the Constitution we have now, that vision of ''we the people.''

That minority from the South, wanting to protect slavery, said: We need strategies to prevent the majority from eliminating slavery, and we have to make sure that there are no civil rights granted to individuals of color in our Nation who might undermine our complete control of the governments at the State level.

That minority said: We are very wealthy, and we don't want any laws that undermine our wealth, so we need a strategy to control and prevent the people from getting fair wages and fair working conditions because that means we make less money ourselves.

So they pursued a strategy called nullification, a strategy that said no Federal law will have any impact on our State unless we endorse it at the State level.

Eventually that fell before the Court, so then they pursued the development of the supermajority blockade of decisions being made in this very Chamber, on behalf of racism. The supermajority was forged in the fires of racism. For 87 years, no law was blocked by this Chamber, by the supermajority, except civil rights.

Then this battle expanded. It expanded to issues of corporate power versus consumer rights, corporate power versus working conditions. This is where we come to the current battle between the Federalist Society weighing in on behalf of government by and for the powerful versus those who believe in the vision of our Constitution of government by and for the people.

So we have lost Ruth Bader Ginsburg, who honored our constitutional vision, and we have a President and a majority in this Chamber who are intent in packing the Court on behalf of the wealthy and powerful.

There is at this moment just tremendous damage being done to the integrity of this body because the same party in the majority 4 years ago said: We have a principle—the McConnell rule—that if a seat becomes vacant during an election year, we must listen to the people and let them decide whether the current President or a different President decides. Will it be the Republican nominee or the Democratic nominee?

They took that vote, and they went with it. Many spoke out in favor of it, of the principle. Many said: This is the absolute right thing to do—even though it was the first time in U.S. history that this body did not debate the nomination or vote on the nomination, breaking the protocol of our entire history in order to steal a Supreme Court seat from President Obama and pass it on to the next President.

So here we are, 4 years later, much deeper into an election year. In fact, the election has already started, with many absentee ballots having been delivered, having been voted, having been returned. So any form of integrity would be to honor the McConnell rule from 4 years ago and say: What we did 4 years ago was principled. We said we believed in it. It helped out the Republicans enormously, but, you know what, we are principled individuals, and so we are going to stick with the same frame that we argued before the public 4 years earlier.

So I ask my colleagues, are there not a whole number of you who will come together—together—and say: Yes, we have integrity with the decision we made 4 years ago, the McConnell rule we argued 4 years ago, the rule that gave a Supreme Court seat to President Trump and took it away from President Obama, for the first time stealing a Supreme Court seat in our history? But we are going to honor that same principle today.

I ask my colleagues, search your hearts. I ask, do you want to be remembered in this role of so fiercely advocating a principle that benefited you

then and so fiercely violating it now, to your own benefit once again, doing so much damage to the integrity of this Chamber and so much damage to the vision and principle of government of, by, and for the people?

Let that not be the case. Let every Member come here to the floor and together actually hold a debate.

We see no Members on the floor today—Republican colleagues. Having—many of them—stated that they are quite ready to violate the principle they argued so strongly 4 years ago, we don't know where they went. They are gone. They are not here.

So let the American people call attention because the American people love our Constitution. The American people love ''we the people.'' The American people love the principle of government of, by, and for the people and do not want to see it trampled in an effort to sustain a massive amount of corporate power against the consumer, wealthy power against the worker, and racist power against civil rights.

The PRESIDING OFFICER. The Senator from Colorado.

Mr. BENNET. Mr. President, in the summer of 1920, America ratified the 19th Amendment. This breakthrough in our history, born of decades of setback and struggle by many unremembered women who never lived to actually cast a vote for what to us now is a self-evident proposition that women in this country should have the right to vote, moved this country one step closer to equality. That is why I think it is so fitting that, a century later, we pay our respects to the late Justice Ruth Bader Ginsburg, who, more than anyone, advanced the cause of equality between men and women over her remarkable career.

Justice Ginsburg's commitment to equality was not the result of lofty idealism but the hard experience of her life.

Thirteen years after ratification of the 19th Amendment, Joan Ruth Bader Ginsburg was born to a working-class family in Brooklyn. It was the middle of the Great Depression, and her father sold furs at a time when no one would buy them. Tragically, her mother died of cancer before Ruth graduated from school.

But these challenges, like others she would face, did not defeat her. They didn't prevent her from graduating first in her class at Cornell. They didn't exclude her from Harvard Law School, where she was one of only 9 women in a class of 550 and had to justify to the dean why she had taken the place of a man. She finished her law degree at Columbia, where she once again was first in her class, and not a single law firm would hire her. She applied to clerk for Justice Felix Frankfurter on the Supreme Court, who said that, although she was an impressive candidate, he wasn't ready to hire a woman.

She understood these early firsthand experiences with discrimination not merely as barriers to her obvious talents and potential but as a vicious threat to our country's full potential. She knew that any country that would deny a single person's chance to make a contribution on account of their race or their gender or their religion or whom they loved will never fully flourish. Tearing down these barriers became the cause of her career.

She rose to become a full professor at Rutgers Law School and founded America's first law journal on gender issues. Later, she returned to Columbia Law School, where she became the first woman to hold a full professorship. She worked pro bono for the ACLU, cofounding their Women's Rights Project. She quickly became one of the most accomplished litigators in the country, writing a brief the Supreme Court cited in Reed v. Reed to rule for the first time that discrimination on the basis of sex violated the 14th Amendment. Ruth Bader Ginsburg's argument led the Court to overcome centuries of narrow views about the proper role of women in American life. As a result, the Court's holding redefined American law.

Ruth's accomplishments led to an appointment to the prestigious U.S. Court of Appeals for the DC Circuit, and in 1993 President Clinton named her to the Supreme Court. Her nomination sailed through this body with 96 votes—a reminder of a time not so very long ago when the Senate actually understood its constitutional responsibility to advise and consent and what that actually meant.

For more than a quarter-century on the Court, Justice Ginsburg authored rulings that promoted fairness, advanced equality, and secured hard-won rights. They upheld affirmative action and protected a woman's right to choose.

Her dissent in one gender discrimination case was so powerful, it inspired the Lilly Ledbetter Fair Pay Act, the very first legislation President Obama signed.

At the same time, she could never accept decisions that nullified the right to vote or otherwise limited our democratic values, even when it was hard for some of her colleagues to perceive the systemic racism in our country. When they were gutting critical protections to the Voting Rights Act, she had the common sense to tell them, you are ''throwing away your umbrella in a rainstorm because you are not getting wet.''

As always, she cut legal convention and saw with clear eyes the enduring threat discrimination poses to our elections. She knew voters still deserved the protection of the law, and all these years later, after State after State after State has passed laws dispossessing people of important rights with respect to the right to vote, she has been proved right.

As we reflect on her legacy in a real sense, I would say Justice Ginsburg herself should be thought of as a founder of our country, not because she had an important title or wore a black robe—although, she wore it as well as anyone in the countless images of her reproduced on T-shirts and tote bags and onesies, as the ''Notorious RBG''—but because she knew where we had fallen short and dedicated her life to calling America closer to our best traditions of equality, liberty, and opportunity for all, because the young Joan Ruth Bader knew America would be worse off without her.

Justice Ginsburg made America more democratic, more fair, and more free.

Mr. President, before I turn it over to my hard-working colleague from Michigan who is here later than he should be only because that is the kind of person he is, working so tremendously hard on behalf of the people of Michigan and the people of this country—let me just say one word about where we find ourselves in the Senate. I am just going to take 2 minutes to do this.

I believe that American history can be best understood, from the very founding of our country until now, as an epic battle between the highest ideals that humanity has ever expressed in our founding documents and the worst instincts of human beings. That is the founding that took the form of the institution of slavery. You can draw a straight line from those days to these days. There is no doubt in my mind which side of that line Ruth Bader Ginsburg was on.

There is no guarantee that this country is going to become more democratic, more fair, and more free. That took the work of suffragettes; it took the work of enslaved people like Frederick Douglass—another founder of this country who, in his lifetime, changed the entire approach of the abolitionist movement to argue that the Constitution was not a pro-slavery document, as they were arguing at the time, but that it was an anti-slavery document and that we weren't living up to the ideals of that Constitution. That is another self-evident fact today, to us, but it wasn't at the time that Frederick Douglass made those arguments.

There is no doubt in my mind that if we find ourselves with a 6-to-3 Court, and we have replaced Ruth Bader Ginsburg not with somebody who has an appreciation for the direction this country needs to go, which is to enable all of us to participate fairly and justly and equally in the society, but one where the most powerful and the most well connected are able to get the courts to pay attention to them, while working people all over this country can't have the basic health insurance that everyone else in the industrialized world has come to expect, we are going to be a poorer country for it.

My final point is—before I turn it over to the Senator from Michigan—the fact that we got here with a majority leader who has completely undermined any sense of integrity in this

body with respect to the rules—not speaking personally about him—is a real problem. It is hard for me to see how this place will ever make enduring change that we need to make if the American people have completely lost faith in it.

In MITCH MCCONNELL's Senate, words have lost their meaning. The rules are what you can get away with politically. That is the outer boundary of where you can go. It is moments like this that I remind them this is not the first Republic that has failed. When words lose their meaning, when promises mean nothing, when commitments mean nothing, that is when institutions fail.

I, for one, hope that we will put this era behind us and not return to some old era—I am not interested in that—but build a Senate that is actually worthy of the 21st century, worthy of the example Ruth Bader Ginsburg set, worthy of the expectations our kids and grandchildren have of us and that we have of them and of America's place in the world.

We are not going to do it this way. We can't do it this way. We have a chance to make a change, and I hope that we will.

I yield the floor.

I say to my friend from Michigan, thank you for your patience and indulgence.

The PRESIDING OFFICER. The Senator from Michigan.

Mr. PETERS. Mr. President, like countless Americans, I am grieving the loss of Justice Ruth Bader Ginsburg. As the second woman to serve on the Supreme Court, and the first Jewish woman to do so, she was a pioneer, a brilliant jurist, and a historical giant who blazed the trail for many.

When I reflect on her life's work, I think of her tireless efforts for women; I think of her tireless efforts to end discrimination of any kind; and I think of her tireless work to give a voice to all of those who do not have a voice. She was fiercely committed to ensuring that justice, fairness, and equality would reign across our country. She was loyal not only to the Constitution but to the people whose lives she knew would be affected by her rulings.

Within hours of the announcement of her death—as Americans across the country mourned her loss and paid homage to her legacy—some, unfortunately, turned their attention immediately to filling a vacancy and also started to scheme on how to ram through a nominee before election day—only a little over 40 days from now.

It is important to remember that our constitutional democracy is built upon a system of checks and balances, with three coequal branches of government. The Supreme Court plays an important role in determining and deciding important questions of law, and it represents a core pillar of our democracy. Its rulings profoundly shape the rights and the lives of Michiganders and all Americans.

For example, later this fall, the Court will be taking up a case pushed by the Trump administration to completely eliminate the Affordable Care Act. The Court's ultimate decision will effectively determine the fate of healthcare for millions of Michiganders and Americans.

If the Supreme Court strikes down protections in the Affordable Care Act, people with preexisting conditions will be at risk of losing protections provided under the law. Insurance companies will again be able to go back to the days of discriminating against people with preexisting conditions—or even dropping a person's health coverage entirely—at a time when people need healthcare the most. Sadly, being a woman could also again become a preexisting health condition, leading to higher costs and limited options.

Insurance companies will, once again, be able to impose annual or lifetime limits for coverage, raising costs and making healthcare unaffordable and inaccessible for many Michiganders. We also know that seniors on Medicare could pay more for prescription drugs.

And anyone who has arthritis, diabetes, or cancer—or anyone who gets sick—will see their healthcare costs go up, and far too many people may be forced into financial ruin and bankruptcy if they get sick. In all, 23 million Americans could lose their current health insurance.

In sum, I think it is unconscionable that President Trump, along with Senate Republicans, are attempting to undermine critical healthcare in the midst of a once-in-a-century public health crisis. And it is not just healthcare that is on the line when filling this Supreme Court vacancy.

Women may lose their right to their reproductive freedom if the seminal decision of Roe v. Wade is overruled; the Court may further erode protections for workers and continue to undermine unions; and the Court may side with large corporate special interests rather than ensure a level playing field for workers.

The appointment of a Supreme Court nominee puts an awful lot on the line. Voting rights and the core principle of one person, one vote are on the line. Upholding basic critical civil rights are on the line. Equality for millions of LGBTQ Americans who seek nondiscrimination protections is on the line, and at stake is whether the Court will protect our air and our water.

Simply put, the Supreme Court has the final word on how we address the major challenges of our time. In a powerful sense, it is the last line of defense for everyday Americans.

With so much on the line, we should not rush a Supreme Court nominee through what should be a deliberative process. Jamming the Supreme Court nomination through now will, without question, further divide our country and disregards the fact that the American people are now voting or soon will be in many States. In fact, later this week, voters in Michigan will begin casting their ballots.

Issues before the Court are life-changing, and Americans should have a voice in selecting who will choose the next nominee—a nominee, if confirmed, who will serve for a lifetime.

We can certainly wait for the American people to be heard. The selection of a Supreme Court nominee can certainly wait until after Inauguration Day.

What cannot wait is to help millions of Michiganders and Americans suffering as a result of the COVID crisis. There is no question that the Senate has an important duty to advise and consent on nominations, but this body must first effectively address the unprecedented public health and economic crisis now confronting this Nation.

To do so, we need to come together in a bipartisan manner. I know it is possible. We were able to come together and pass robust, bipartisan coronavirus relief legislation in March and in April, and I remain ready to work in a bipartisan manner again to pass meaningful legislation again.

More than 200,000 Americans have lost their lives from this pandemic, including approximately 7,000 in Michigan. The numbers are staggering. Behind these devastating statistics are people—mothers, fathers, sisters, brothers, husbands, wives, and children. Tragically, some are projecting that we could see a total of 400,000 Americans die by January.

There are steps that Congress must take right now to stem the tide of this pandemic. Not acting now in a bipartisan way to save more lives is an unconscionable betrayal of our duty to protect the American people. We must provide relief to families and workers who have lost their jobs through no fault of their own and worry every single day about how to keep food on the table and a roof over their heads.

We must support small businesses that need Federal funding to stay afloat and to rebuild our economy after we defeat this COVID virus. We must support parents and schools trying to ensure students can learn in a safe environment and keep up with their studies.

We must step up for communities across Michigan and the United States that have been on the frontline of coronavirus response efforts. Our communities are facing massive budget challenges that could force deep cuts to essential services or layoffs of teachers and first responders and law enforcement officials.

Now is the time for us to rise to the challenge. Americans are losing their lives and their livelihoods to this cruel pandemic. I know we can turn the tide, but it will take political will. It is not too late to save hundreds of thousands of lives and countless jobs, but we must focus on effectively confronting the coronavirus together, and we must do it now.

Our focus should not be on rushing to fill a Court vacancy. That can, and should, wait until Michiganders and the American people have had an opportunity for their voices to be heard and a new Presidential term to begin.

The COVID crisis is urgent, and it must be our priority first and foremost.

Filling a Supreme Court vacancy can certainly wait, with voting already under way and election day only 42 days away. Let's come together in a bipartisan way and together do the right thing.

I yield the floor.

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I want to thank my colleague from Michigan for outlining the stakes for the American people.

I will start tonight with the two principle reasons we gather tonight on the Senate floor. We gather on this floor tonight to reflect upon the life of Ruth Bader Ginsburg, to pay tribute to her life of public service and to outline, as so many of our colleagues have outlined tonight, what is at stake for American families in a debate about the next Supreme Court Justice.

Let me start with the life of Ruth Bader Ginsburg. Nothing we could say tonight would do justice to her story, but her story is an American story. It is a story of hard work and struggle, a story of overcoming discrimination—discrimination that I and so many others have never faced. It is also a story of knocking down barriers for women, a story of defending workers fiercely, a story of defending voting rights, and so much more that we will talk about in the next number of days.

It is also a very human story, as much as it is an American story. It is a human story about her heroic battles—plural—many battles with cancer, at least two kinds of cancer, over the course of 20 years. This struggle, this heroic struggle, this battle helped to transform Ruth Bader Ginsburg—then Justice Ruth Bader Ginsburg—into an American icon and an inspiration to millions of Americans.

We mourn her passing, and we will, in the days ahead, continue to laud her extraordinary accomplishments, her achievements as a lawyer and a Federal appeals court judge and, of course, her 27 years as an Associate Justice on the U.S. Supreme Court.

At the same time as we pay tribute to her, we have, I believe, an obligation to make it clear what is at stake, what is on the line for tens of millions of Americans. I will focus on one subject area tonight, healthcare. We know that after failing to repeal the Patient Protection and Affordable Care Act numerous times—and ''numerous'' is an understatement—after failing that many times, Senate Republicans, along with the President, will try now to ram through a Supreme Court nomination that could, and very likely will, be the deciding vote to destroy the Affordable Care Act and all of its protections.

I will not dwell tonight on the blatant hypocrisy of this action. I will talk mostly about healthcare. But the hypocrisy, I think, is well known all these days, since Justice Ginsburg's passing, by so many Republicans who said just 4 years ago that it was the wrong thing to do, even within 10 months in a Presidential election year, to confirm a new Justice. But here we are, and that same party, those same Senators, on tape over and over saying that they would not do this, are here trying to ram through another nomination.

By the way, when you consider the last number of months—the months of May, June, July, and August—this body, the U.S. Senate, did little else but nomination after nomination and a defense bill and little else. There was no action, no substantial action on a COVID–19 relief bill despite the challenges our Nation faces. I guess nominations is all we are supposed to do in the Senate.

Here we go again on the most consequential nomination that a Senate could consider. We know that the U.S. Supreme Court has a case before it that will be argued in early November that could be the end of the Affordable Care Act. In May, President Trump laid out in no uncertain terms what he wants to do to this healthcare law: ''We want to terminate healthcare under ObamaCare.'' Terminate healthcare is his goal—in the middle of the worst public legal crisis in 100 years, a worldwide pandemic that we are still suffering the effects of. We just crossed the 200,000 death total just hours ago or a few days ago at the most, 8,000 of those in Pennsylvania. At a time when so many families have been devastated either by the virus and the suffering that comes with contracting the virus or a death in the family—family members, deaths of friends and people who folks have worked with—in the midst of an economic crisis, a jobs crisis, in the midst of all that, we are supposed to go along with a process to ram through a new Supreme Court Justice and take no substantial action on a COVID relief bill.

So much is at stake in the Affordable Care Act. I will try to go through a long list as fast as I can. We know that more than 20 million could lose coverage who gained coverage as a result of that act. We know that 135 million would lose their protections for a preexisting condition. In Pennsylvania, those numbers translate into 1.1 and 5.5—1.1 million people gained coverage, although that number is down now because of Republican efforts over the last couple of years here in Washington. But 1.1 million gained coverage, and there are 5.5 million in the State with a preexisting condition.

If you go down the list of counties, which I will not do all 67 tonight, but I just want to give you some sense of what it means by county. In terms of Pennsylvanians who gained coverage, you would expect that the big cities had a lot of coverage gains. That is true. At last count, Philadelphia had 225,000 people who gained coverage. But if you go from Philly to Fulton—Fulton County happens to be a small county of 14,000 people on the Pennsylvania-Maryland border. They have more than 1,000 people at last count, 1,028 people who got healthcare through the Affordable Care Act. From Pike County to Greene County, thousands of people gained healthcare. From Chester County to Crawford County—Chester is in the southeast, and Crawford is way up in the northwest, just south of Erie—29,000 people or almost 30,000 in Chester and in Crawford County, more than 6,200. In my home county of Lackawanna, almost 20,000 people got healthcare. In Luzerne County next door, almost 30,000. Just in those two counties, almost 50,000 people got healthcare. All of that is at risk in Pennsylvania and in countless numbers of counties all across our country.

Medicaid expansion, which has enabled people to gain access to treatment for an opioid addiction or other substance use disorder issues, would be destroyed. Medicaid expansion would be gone. Medicaid expansion also ensured women can receive a full year of postpartum care and provided coverage for older Americans who are not yet eligible for Medicare. Prescription drug costs would skyrocket for 12 million seniors and people with disabilities. That is because the ACA closed Medicaid's dreaded prescription drug donut hole. The ACA closed the donut hole.

As I indicated earlier, for 135 million Americans with preexisting conditions, their coverage is now in jeopardy if the Supreme Court decision went the wrong way. Insurers would be able to drop them. Insurers will be able to refuse to cover them or insurance companies will be able to charge them more because of common diagnoses like depression, anxiety, asthma, diabetes, sleep apnea, and the list goes on from there—all the things the insurance companies were able to do for at least a generation or more in the dark days before we had an Affordable Care Act.

Insurers would also be able to charge you more because you are a woman, allowed prior to the ACA, or they could charge you more because of your age. That also will come back. Insurers will be able to reinstate the annual lifetime caps on coverage that they provide. If your healthcare is too expensive, the insurance companies could just stop paying for it, even if you are a preemie, a tiny little baby in the NICU, or an adult with a terminal diagnosis.

The essential health benefits would also go away. Insurers will be able to carve out benefits you need, like maternity care or mental healthcare. As a woman, you might not be able to find a plan to provide care during your pregnancy, unless you have insurance through your employer. For people with disabilities, the ACA is obviously essential.

A Court that would destroy the ACA would allow for discrimination against the 61 million Americans with disabilities—let me say that again—the 61 million Americans with disabilities that have preexisting conditions. Prior to the ACA, it was routine that people with disabilities could not get health insurance. Prior to the ACA, if you had epilepsy, autism, or spina bifida, or any disability, you could be denied coverage. You could be charged much higher costs. A Court that strikes down the ACA will be a Court that directly attacks the disability community. That is why so many members of that community came to Washington in 2017 and fought valiantly to uphold the Affordable Care Act. They knew that their life was on the line. It wasn't just an issue for them. Their life was on the line.

Prior to the ACA, there are stories I heard from Pennsylvanians every day—and I am sure so many other Senators did, as well—stories about people who, in addition to living with disabilities or facing a serious illness or other medical needs, were worried about paying their bills.

For so many families, this isn't an issue that we are going to be debating in Washington—some far-off, abstract issue. This is real life for people. Mothers and fathers will be worried that their children will not have the coverage they need, that their family will not be covered—worries that, if they have not been eliminated, have been greatly mitigated by the coverage and the protections of the Patient Protection and Affordable Care Act.

We have to ask ourselves a question as the Court considers this case just a few days after election day. We have to ask ourselves a number of questions, but certainly we should ask ourselves: Will the United States of America turn the clock back on insurance, turn the clock back on healthcare for so many millions of Americans? Will we allow the Federal Government, either through the Congress, which so far we have prevented, or through the Supreme Court or any Federal court—will we allow a Federal Government entity to rob people of the protections that they received through the Affordable Care Act, like protections for a preexisting condition? Will we allow all of this in the middle of a pandemic, the worst public health crisis in a century here in America and around the world? Will we allow any agency or any official to turn back the clock on healthcare in the middle of a jobs crisis? We have had double-digit unemployment in Pennsylvania for months now. They are the highest unemployment rates we have seen since 1983, and for a period of time this summer, they had been the highest unemployment rates we had seen in more than 50 years. We have a jobs crisis in the middle of a pandemic, which has caused a lot of people to already lose their healthcare.

That is not who we are if we say we are American. America at its best is the country that is already trying to make progress, trying to expand protections. We have done that for generations. We made an advancement in 2010 when we passed the Patient Protection and Affordable Care Act. We cannot allow this institution—the institution of Congress—or the Supreme Court to destroy that act and to undermine that American progress.

I yield the floor.

The PRESIDING OFFICER. The Senator from Ohio.

Mr. BROWN. Mr. President, I have my favorite Abraham Lincoln quotation. One day, he was in the White House with his family and his staff. His staff said: You have to stay in the White House and win the war and free the slaves and save the Union, and Lincoln said: No. I have to go out and get my public opinion bath.

I don't think that too many people in this body are getting their public opinion baths. They are not seeing the pain out there. They don't seem to absorb that, one day in August, in my State, as an example, 600,000 people—just like that—lost their $600-a-week unemployment insurance. In Wisconsin and Rhode Island, for hundreds of thousands of people—just like that—their $600-a-week unemployment insurance expired. They couldn't find jobs. There is massive unemployment in our States. There are people who are hurting. What are they to do? If you are just getting by on that $600 a week and if the money doesn't come and if you can't find a job, what are you to do? How are you to feed your family?

There is so much anger out there and frustration and futility. People are hurting. Yet President Trump and Leader MCCONNELL refuse to do their jobs. We have asked them for weeks and months to come back here and help us open the schools safely, to help local communities and local governments, to help unemployed workers, to help people who are about to lose their apartments—who are about to be evicted. Leader MCCONNELL says he doesn't have a sense of urgency, and President Trump just turns his back and makes another speech.

Middle-class and low-income public schools can't open because MCCONNELL and Trump refuse to do their jobs. Parents and teachers are under an overwhelming amount of stress. School districts and families don't have the resources for the additional technology for the safety precautions they need, so schools either open unsafely or students need to do distance learning. None of that works for people. State governments and local communities are looking at massive layoffs, and small businesses are closing in larger and larger numbers, but Leader MCCONNELL and President Trump refuse to lift a finger.

The stock market is back up, so they seem to think everything is fine. They are just oblivious to the families. They are oblivious to the families who are staring at stacks of bills, who don't know what to do, and who have no good options.

Yet now, after months of inaction, Leader MCCONNELL gets out of his office from down the hall, walks down here, makes a speech, and goes back to his office. He doesn't actually do anything except confirm young, rightwing judges. He doesn't do anything to help people who have lost their unemployment. He walks down here, through these doors, and doesn't do anything to help schools open safely. He doesn't do anything to prevent layoffs in State and local governments. He doesn't do anything to help these small businesses which are closing, and some now have made the decision to close permanently, but Leader MCCONNELL is willing to drop everything and move Heaven and Earth to put another corporate shill on the Supreme Court.

Leader MCCONNELL has spent the last 6 months ignoring the pandemic, ignoring the economic crisis. Now he wants to pack the Court—a Court that is supposed to serve the American people—with another Justice who always rules for corporate special interests and always rules against workers. It will be another Justice who will take away, as Senator CASEY said, Americans' healthcare in the middle of a pandemic.

In my State, 900,000 people have health insurance today because of the Affordable Care Act—600,000 people because Governor Kasich, a Republican, and I, a Democrat, helped to expand Medicaid in Ohio. There are 600,000 people who have insurance because of that. Yet we know this Court will be hearing a case to overturn the entire Affordable Care Act in just a few weeks. That insurance could be gone like that.

Leader MCCONNELL and President Trump and their special interest friends are trying to do what the American people rejected over and over. They want to take away preexisting condition protections in Pennsylvania, where Senator CASEY said 5.5 million people have preexisting conditions. In Ohio, 5 million people—essentially half the adult population—have preexisting conditions, and that was before the pandemic. So we know, if this Court does what it is likely to do, especially if Leader MCCONNELL and President Trump can pack the Supreme Court the way they want to with another special interest, corporate judge, we know those people's preexisting condition protections will be gone.

American healthcare is at stake. The American people deserve to have their voices heard. As Senator PETERS said, people are already voting. As we speak, they are casting ballots. These ballots should count. We know what Senator MCCONNELL and their wealthy friends want to do. They want to award more power to themselves, and they want to take it away from voters.

We simply can't stand by and watch a bunch of millionaires with good healthcare for all—all paid for by taxpayers—who still have comfortable

jobs and paychecks, while millions are out of work, and watch them try to take away people's healthcare and take away their voices in their own government.

Think about what is at stake. If President Trump gets his way and the Republican majority obediently obeys Senator MCCONNELL, as they always do, and Senator MCCONNELL, down the hall, obediently obeys President Trump—meaning, if MCCONNELL and then almost all of the, shall we say, spineless Members of this Senate put in place a Justice who will take away the entire healthcare law and take away the tax credits to help people afford health insurance—then protections for preexisting conditions will be gone. Ohio's entire Medicaid expansion for 600,000 people—gone. The ability to stay on your parents' insurance until you are 26—gone. More affordable prescription drugs for seniors from closing the doughnut hole—gone. Limits on how much you pay out-of-pocket each year—gone. This will be in South Dakota, in Wisconsin, in Connecticut, in Rhode Island, in Ohio—all over. Free preventive services, like mammograms and bone density screenings, will be gone. The list goes on.

That is why the Affordable Care Act wasn't repealed—because the American public knew what it did for them, and they said to their elected officials: Don't repeal it. Yet now we are going to have legislation from the bench. All of these conservatives on the Court love to talk about just being constitutional, just being traditionalists and strict constructionists. No. They want to legislate from the Court. They want to undo what this body did and then refused to undo.

That is what is at stake. Five million Ohioans who are under the age of 65 have preexisting conditions—as I said, half the population of our State before the coronavirus.

It is not just healthcare. It is the ability to vote. It is workers' protections on the job. We know at a packing plant in the Presiding Officer's State—at Smithfield, a plant and a multibillion-dollar company that is owned by the China Communist Party—it had 1,290-some workers who were diagnosed with the coronavirus. It was the first time the administration ever did anything to any company whose workers had gotten sick with the coronavirus. They fined this multibillion-dollar China Communist Party company, Smithfield, in the United States, and South Dakota fined it $13,000. That is $10 for every sick person, for every sick worker. Those are the kinds of people you will see on the Supreme Court. They will be protecting those companies.

The freedom to organize a union is at stake. The progress we have made on equality, on civil rights, and on LGBTQ equality is at stake. Whether we can bring racial justice to our justice system is at stake. America's privacy rights in the digital age are at stake. Women's freedom to make their own healthcare decisions is at stake.

Earlier today, one of my colleagues came to the floor not to try to get the $600 in unemployment for people who were laid off, not to try to pass more help for our schools so they could open safely, not to get more money for testing; my colleague tried to pass yet another restriction on a woman's ability to get safe, effective healthcare.

It is pretty clear where their priorities lie, and we know what we need to do. All Americans need to speak out and share their stories. Make the people who are supposed to serve understand what is at stake for you and your family—what is at stake by Senator MCCONNELL's and President Trump's inaction. There will be no help for unemployed workers, no help to open schools safely, no help for local communities, no help for the Postal Service, no help to run our elections safely and honestly. Tell people what is at stake. It is the public who saved the ACA in 2017, and the public can do it again.

For us in the Senate, it comes back to one question: Whose side are you on?

Are we going to put money into people's pockets? Are we going to help people pay their rent? Are we going to finally mobilize America's vast manufacturing talent and ingenuity to produce the tests and the N95 masks and the other equipment we need and do what Senator BALDWIN advocates, which is to ''buy American'' with these products? Are we going to get support for our schools and our small businesses and our local communities or is the Senate going to follow the Trump-McConnell plan? That means to come out of your office, to walk down the hall, to open these doors, to go to your chair, to make a speech, and try to confirm another conservative lifetime judge. Yet don't worry about unemployment. There are only 600,000 people in my State and only millions around the country who don't know what to do because they have lost their unemployment. Don't do anything about opening schools safely. Don't provide any dollars for local school districts. Don't help small businesses.

Is that what we are going to do? Is the Senate going to follow that Trump-McConnell plan? They do nothing there, but then they think: Let's do something. We will drop everything to grab more power for our wealthy friends.

People are tired of feeling like no one is on their side. Let's actually listen to the people whom we serve. Let's make sure their votes count.

I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, I stand in a distressing place of speaking after Senator BROWN, of Ohio, and before Senator BLUMENTHAL, of Connecticut, but I am delighted to be here tonight because the issues are so important.

We are in a place in the Senate that is, frankly, weird, and I don't know if people around here have gotten used to this being weird, but it is weird. It is not normal. In the Senate, we have essentially eliminated legislation. We don't do that any longer. The House sends over legislation, and it piles up in stacks on MITCH MCCONNELL's desk. We legislate, maybe, four or five things in an entire session of Congress. That is weird. We are a legislative body. We are supposed to legislate. Why the elimination of legislation?

We have smashed through and destroyed norm after norm, tradition after tradition, rule after rule. Why is that? Do people get some perverse glee in smashing norms and traditions? Do people get some perverse glee in not passing legislation when they are sent here to legislate? It doesn't make any sense.

Then you look at those on the other side and their 180 reversal. When they wanted to stop a Supreme Court Justice, we heard about how important it was that, before an election, the American people got to weigh in through their votes and that you shouldn't have a nominee appointed to the Court in the months before an election. Here we are, weeks before an election, and, suddenly—whoop—180. Why the hypocrisy? Did someone come and do one of those hypnosis parlor tricks on people so they would suddenly do the opposite thing from what they wanted to do?

What is the explanation for the elimination of legislation? for the smashing of norms and traditions? for the reversal of the precedent on immediate preelection confirmations? We are even seeing intense support for a Supreme Court nominee when we don't even have a nominee.

There is a phrase about a pig in a poke. You are not supposed to buy a pig in a poke. You are not supposed to buy a piglet in a bag when you haven't had a look at the piglet to see what is in there.

We haven't seen the look at whatever—to use the analogy the piglet in the bag would be. Yet everybody is already lined up to support getting that person through quick, quick, quick. That is not normal. That is weird. People don't ordinarily express their support for nonexistent nominees.

So what explains all this weirdness? What I think explains all this weirdness is that a very, very powerful group of very, very big special interests has glommed itself together and over years, over decades, has built up an apparatus specifically to control the Court—specifically.

If you look at the Washington Post report on Leonard Leo and his Federalist Society perch and the bizarre little web of front groups that he has woven around that perch, you will see that they have documented more than $200 million flowing through that setup—more than $200 million.

So here is how it works right now: When you have a Republican President,

the President doesn't pick the nominee; a special interest group picks the nominee—the Federalist Society. Trump said so. That is where he got his list. His lawyer Don McGahn said so. He said he was in-sourced from the Federalist Society.

Over and over again, people involved in the process say: We take our judicial selection picks from the Federalist Society. And when they say that, what do they mean? The Federalist Society is just a corporate screen. It is an entity. It does things on college campuses that have think tanks here. But what does it really mean? It means that the people who are putting tens of millions, hundreds of millions of dollars anonymously into that organization are getting a voice or a veto in the makeup of the Supreme Court. They are not even having to show who they are, and the Federalist Society does the screening for them.

You don't put tens of millions of dollars into a group and not expect a result. If you give tens of millions of dollars to a university, not only do you expect your idiot kid to get into the university, but you also expect them to name a building after you. So if you are going to put that kind of money into the Federalist Society, you are going to want something for it. To say that is not rational makes no sense at all. It is inconsistent with human behavior.

I will tell you that if you took the names off the players and asked people in this room ''Should anonymous special interests with tens of millions of dollars to spend be able to have a voice or a veto in who gets elected to be a Federal judge or a U.S. Supreme Court Justice, screened through a partisan, private organization?'' anybody in their right mind would say ''No. That is unacceptable. That is preposterous. Of course you wouldn't want that.''

If this were a liberal organization, my Republican colleagues would be running around here with their hair on fire about the scandal of secret donors deciding who is going to be on the Supreme Court and masking themselves behind a front group.

It is not just Federalist Society money. It is not just the $100, $200 million that flow through that network. Look at the Judicial Crisis Network, which runs the ads for these nominees once the Federalist Society has selected them. It gets contributions to pay for the ads. Do you know who pays for it? One person gave a $17-plus million contribution in the Garland v. Gorsuch row, and somebody gave another $17 million to get the beleaguered Kavanaugh through, and somebody else just gave $15 million.

Now, I say ''somebody else,'' but do we know it was somebody else, or is there a perfectly logical case to be made that the same person gave $17 million and $17 million and $15 million? That is $50 million. You don't think that in their secret back room, wherever they arrange that, they cut a deal that they would have a veto or a voice in who got on the Supreme Court? That is a ridiculous proposition.

It doesn't end there. Once the Federalist Society has selected the nominee and once the Judicial Crisis Network has done its thing to support them with millions of dollars in TV ads and then they get confirmed, then comes the Pacific Legal Foundation or the Washington Legal Foundation or the Mountain States Legal Foundation or one of innumerable, phony-baloney legal foundations, all of which, guess what, are also supported by dark money—the anonymous money behind the Federalist Society, the anonymous money behind the Judicial Crisis Network, and then the anonymous money behind these groups, which then bring carefully strategized cases before the judges who have been selected and campaigned for by dark money.

Then the dark money groups bring the case in. So far, the five Republicans on the Court have been very good about lowering the standing requirements so that those cases get right in and they can hear them. Then the case is before them, and what do you see? You see a dozen phony front groups with anonymous funding all show up as friends of the court—amici curiae they call it in court-speak.

I did a brief recently on the Consumer Financial Protection Board case, and we showed the common funding of the other amici who showed up—a dozen of them, all funded by the same organizations. They are not separate.

A group called the Center for Media Democracy took a look at our brief and took a look at that graph and said: You know, I bet you we can improve on that with a little bit of research. They put their scholars and their investigators and their researchers on it, and they did way better. They showed much deeper connections between the funders and the phony-baloney amicus groups.

What if—what if it is the same small group of funders who are running money through the Federalist Society to select the judges, running money through the Judicial Crisis Network to campaign for them, running money through these legal foundations to tee up the right cases to bring before the judges, and then running anonymous money into the amici—what if it is the same big beast? It is less complicated than many corporate structures. They are perfectly capable of doing it. With that kind of money behind it, you can bet they will line people up in this building, and that explains the bizarre behavior.

We are not seeing bizarre behavior because we have bizarre colleagues; we are seeing bizarre behavior because we have a bizarre force being applied in this whole judicial selection process. It is an apparatus, and the reason they want to do this is because if they control courts, they can make courts do things Congress would never do. Even Republicans in Congress would never do the things that these special interests can get courts to do.

Do you think you could get a bill through the House and Senate—even controlled by Republicans—that allowed unlimited corporate special interest spending in elections? Of course you couldn't. It would be a ridiculous proposition. People would get laughed at when they went home. There would be town meetings. People would throw tomatoes at them. But you put five of the right Justices on the Supreme Court, and they will make it the law of the land for you. Unlimited special interest funding. Sure, we are for that. What a great idea.

Getting rid of voting rights. Disabling the Voting Rights Act. We voted in enormous bipartisan numbers to reauthorize the Voting Rights Act. It took five unelected, lifetime-tenured Supreme Court Republican Justices to say: No, no, no. We know better. Racism is over. We know that racism is over because we are such brilliant people up in our little preserve in the Supreme Court.

They found that racism was over. We didn't have to worry about it anymore. Pre-clearance didn't have to happen. It could never have passed. But get five on the Court, and they did it.

And then, of course, terminating the Affordable Care Act. We know that can't be done by Republican-controlled bodies because this Republican-controlled body failed to do it. So where do you go? Oh, right—to the Court, where we can get a 5-to-4 decision that does things that legislators wouldn't do—wouldn't hold their nose and do. And sure enough, what is up? November 10, the argument on the case against the Affordable Care Act.

This isn't just a theory; this is real people. I have 34,000 Rhode Islanders who have insurance through HealthSource RI, the market that got set up pursuant to the Affordable Care Act—34,000 who get their insurance there. I have 72,000 Rhode Islanders who get their insurance because we took the Medicaid expansion. They wouldn't have insurance except for the Medicaid expansion. I can fight in every way I can to try to protect their rights here in this building, but you go over to the Supreme Court, and five and now maybe six Republican Justices can decide: We know better. We are going to undo the Affordable Care Act and take away all their protections.

This is going to hurt. We have all those Rhode Islanders. We have two of the best ACOs in the country in Rhode Island—accountable care organizations—set up under the Affordable Care Act. It is a whole new way to deliver primary care. They are lowering costs. They are improving care. They are driving down their numbers. Their patients are happier than ever. They are changing the way they are doing care. They are making their patients healthier at less cost, with more attention. It is a great experiment, and it is going to be undone by this—not because anybody voted for it but because

we crammed—with this powerful special interest apparatus behind us—people on the Court who will obediently do these things when you trot a dozen phony-baloney amicus curiae in front of the Court to, all in chorus, tell them what they are supposed to do.

Nationally, we are a nation of, what, 330 million people? We are a nation of 156 million preexisting conditions. Of course we are not going to throw out preexisting conditions. Even the President, while he is litigating to throw out preexisting conditions, says: I don't want to throw out preexisting conditions. He knows he can't get away with it. We know that it is stupid, wrong, and cruel, but pack the Court with people who are listening to these big special interest types? Poof. There goes preexisting conditions.

There are 11.8 million people on Medicare who have saved $26.8 billion on prescriptions thanks to the savings in the Affordable Care Act. You would have to be nuts to take that away from seniors, but put the right people on that Court over there, tell them what to do through this big donor apparatus, and suddenly—boom. Poof. Gone. Because they are accountable to nobody once they are over there. It is a lifetime appointment.

Bridget in Tiverton is a Rhode Islander. She is in her twenties. She has a hip dysplasia that led to premature arthritis. She was in constant pain. In her twenties, she had to have a hip replacement. Well, thanks to the Affordable Care Act, because her dysplasia and arthritis were preexisting conditions, she was able to get her hip replaced. She is now, for the first time in her life, fully employed and pain-free. She is happy. She is an ObamaCare care success story. Why would you want to undo that? Because you are a huge special interest and you want things your way.

Martha from Cranston was uninsured. She had to have gallbladder surgery. She ran up a $60,000 bill with no insurance and had to declare bankruptcy. That is going to haunt her for a while because we don't let her clean up after that even if it is a medical bankruptcy. But now she can get insurance for $283 a month, which she can afford, rather than over $500 a month, which she could not afford. So she is now an insured person and doesn't have to worry about that kind of unexpected bill and bankruptcy.

These are real people. And what is happening with these special interests—I just don't get it. I just don't see how it is that people in this body can say that it is OK to have huge special interests that will spend $17 million at a lick, $50 million at a lick, $10 million at a lick secretly control who gets picked to be on the Supreme Court. In what world is that acceptable or even fair or an even decent way to do business? It just isn't. It is indefensible. Yet that is exactly what is happening. It is the same special interests that fund the Republican Party. It is the same special interests that are behind the big super PACs, and the big dark money PACs. That is why everybody has to hop around here because if we say no to them on their selected nominee, then they will say: Well, we are cutting you off then. You are all done. And when they spend tens of millions of dollars on politics, it is pretty hard to tell them: Well, we don't care. We will stand up to you anyway. We are not going to take your money any longer. And that is the pickle we are in right here. That is the mess that we are in, and we have to fix it. It is wrong to be in this position. It is wrong to be using this space on the Court to send somebody over who is going to attack basic healthcare that we fought for and that Congress could not undo because the American people want it.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. BLUMENTHAL. Mr. President, I am delighted and honored to follow my great colleague from neighboring Rhode Island after that feisty, fighting speech, which also captures the spirit of Ruth Bader Ginsburg. She was deeply concerned about the corrupting impact of money on our political system. She was a longstanding critic of Citizens United, the Supreme Court decision that opened the way to that dark money that has so corrupted our system.

She was a believer in closing the gaps and loopholes because she was smart enough and curious enough to learn what the real facts were, as opposed to her colleagues on the Supreme Court who relied on the stereotypes of the political system that were outdated even when Citizens United was adopted. We live in a democracy that is threatened by exactly that dark money in every sphere of the public square and public office, never more than in our judicial system because it is even less visible and more easily disguised. In part, the reason is that people pay less attention to it. Another reason may be that the amounts of money by comparison seem smaller. The amounts of hundreds of millions of dollars seems small compared to the billions involved in legislative or Executive races. But Ruth Bader Ginsburg knew that the power of the dollar, whether it is judicial selection or legislative campaigning, can be easily corrupted on a system that lacks limits.

So I thank my colleague from Rhode Island for reminding us about part of the legacy of Ruth Bader Ginsburg, which was to stand for principles and people—the constitutional principles that animated her whole life and gave breath to her matchless advocacy, the sense of righteousness that could capture attention in a courtroom. Even though it seemed to be surrounded by technical legal language, she made that language accessible to everyday Americans.

And she chose her plaintiffs wisely. When she was arguing a case or mounting against gender discrimination, she chose a male plaintiff who was denied Social Security simply because his wife, a woman, was the one in the military.

And she knew the power of hard work. Her work ethic was second to none, but her commitment to her family and most especially to her husband Marty—also a brilliant lawyer, a wonderful, warm human being—was legendary.

I was really privileged and honored to know Justice Ginsburg casually, informally. I knew her warmth, her compassion and caring, sometimes to her law clerks or other friends. I was also privileged to argue three cases before her on the U.S. Supreme Court. I argued four as attorney general of Connecticut, and I can tell you that I feared nobody more on that Court because her incisive, piercing, penetrating questions cut to the core of the issues. Sometimes they actually could rescue an arguer from a rabbit hole that some other Justice drew the plaintiff or defendant, appellant or appellee down because she would go to the heart of what the case really concerned. She was straight to the point.

And that is why, straight to the point now, we need to carry on the fight on so many of those principles. Yes, she was an icon and a giant. She broke barriers from the classroom to the courtroom. She demonstrated courage and conviction in her career that were unexcelled, but she stood for principle, and that is ultimately her legacy.

Maybe it is no coincidence—a sad and tragic coincidence that this Nation has just passed the 200,000 mark of Americans who have died from COVID–19. That number is due to the administration's callous indifference to science, its cruel disregard for human life. Donald Trump's self-absorption has led to countless lies about the dangers of this pandemic—the latest and most outrageous being that it has affected nobody. Well, it has affected everyone in this Chamber. Think about it for a moment. Every one of us knows someone, has worked with someone, has a loved one or a friend who has been affected. A friend of mine whose children grew up playing with mine passed away 5 days from getting the virus. Yet, at this moment when we are threatened with a continuing, raging pandemic in this country, a persistent public health crisis greater than any in our lifetime, and an economic crisis that prevents people from putting food on their family's table, and small businesses are going under, we are going to rush through a nominee who would decimate protections for preexisting conditions—which, by the way, now includes COVID–19, because COVID–19 does great damage even to survivors' lungs and heart and brains and other organs. It is a preexisting condition, and along with other benefits in the Affordable Care Act, like the ability to stay on a parent's coverage for a young person

up to 26 years old, all will be decimated because the Trump administration is in the Supreme Court in a case that will be argued on November 10 seeking to destroy it. That protection for preexisting conditions will be gone, in part because this new Justice, we know, is committed to eliminating it. How do we know? Because the President himself has said a strong test will be applied. So those groups, like the Federalist Society and the Heritage Foundation and others who do the vetting and screening for this administration—the choice has been outsourced to them—have vetted and screened that short list, and every one of them you can bet has passed that test.

The second part of that test is women's reproductive rights. Donald Trump has said another part of that strong test will be overturning Roe v. Wade. Now, I was a law clerk to Justice Harry Blackmun in the 1974–1975 term right after Roe was decided. So I have lived with the efforts to overturn Roe. I have fought against those efforts. I have seen the campaigns in the State legislatures, and they are even more present and threatening than ever before.

The threat to Roe v. Wade is very much with us. In fact, we were concerned even after the last Supreme Court decision on reproductive rights that, in fact, Roe was in danger. Just 3 months ago, we held our breath waiting for the Supreme Court decision in June Medical Services v. Russo, the latest attack on reproductive rights, because we knew there was more than a chance that the Court could strip away those rights from women across the country. The Court on the slimmest of margins upheld Roe—the narrowest of legal readings. It was a landmark legal victory against the radical politicians who continue to attack reproductive rights notwithstanding Roe v. Wade, but those principles of Roe are now more in danger than ever before.

The administration and the Republican majority, instead of dealing with this pandemic, are rushing to approve a nominee who would decimate protections for women's reproductive rights. And there will be real consequences for real people, as there are in many other rights that would be at stake and at risk—voting rights, marriage equality, gun violence protections, civil rights and civil liberties, and protection against gender discrimination, the threat to protection from preexisting conditions like cancer, substance abuse disorder, diabetes, kidney disease, Parkinson's or pregnancy, and now, for an increasing number of Americans, COVID is most striking.

An example is Conner from Ridgefield, CT. I have spoken about him previously on the floor. Several years ago, Conner was diagnosed with Duchenne muscular dystrophy. It is a degenerative, life-threatening disease with no cure. He was 4 years old when he was diagnosed. His parents sought treatment and learned it would cost tens of thousands of dollars each year, which they couldn't afford, but because of the protections for people from preexisting conditions, it was a life saved. Conner is in school. Conner is thriving. Conner is a fighter, just as Ruth Bader Ginsburg was a fighter. Conner never gave up, and neither did Ruth Bader Ginsburg.

Conner endured the harsh reality of physical illness and emotional trauma. And Ruth Bader Ginsburg reached out to people like Conner and offered them hope. She reached out to women and she inspired a whole new generation of women and many of us know them because they are women in our families who decided to pursue a career in law because of her example. She was small in stature, soft in voice, but she packed a powerful punch, even before she was a rock star and a pop icon, because she never gave up. She was a fighter. We cannot give up now.

We must fight for a process that is fair and gives the next President and the next Senate the choice about the next Supreme Court justice. That was Ruth Bader Ginsburg's dying wish. We should fight for that principle because it is a matter of fairness. It is a matter of people keeping their word.

In this place, there are almost no unwritten rules. There are no written rules. There are more unwritten rules, and one of those rules is people keep their word. So we need to fight and make sure that the legacy of Ruth Bader Ginsburg is upheld, that these constitutional principles that matter in the real lives of real people are upheld, and we cannot give up. Her memory should always inspire us.

I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

MEASURE READ THE FIRST TIME—H.R. 8337

Ms. ERNST. Mr. President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The bill clerk read as follows:

A bill (H.R. 8337) making continuing appropriations for fiscal year 2021, and for other purposes.

Ms. ERNST. Mr. President, I now ask for a second reading, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDING OFFICER. Objection having been heard, the bill will receive its second reading on the next legislative day.

Ms. ERNST. I yield the floor.

The PRESIDING OFFICER. The Senator from Wisconsin.

REMEMBERING JUSTICE RUTH BADER GINSBURG

Ms. BALDWIN. Mr. President, I rise today to join my colleagues in mourning an American hero, Justice Ruth Bader Ginsburg. We called Ruth Bader Ginsburg the ''Notorious RBG,'' and we called her that for a reason. She lived an inspiring and historic life, and her advocacy and public service changed America for the better.

As a lawyer and a public servant and as a woman, I owe so much to Justice Ginsburg, and I know I am not alone. I join so many women in this body and across this Nation who will simply not allow for Ruth Bader Ginsburg's legacy to be diminished or disrespected.

Today, that means standing up and speaking out about what is at stake right now in this country. We are 8 months into a global pandemic—the worst public health crisis of our lifetime. It has taken 200,000 American souls and cost millions of Americans their jobs and their economic security.

Now, President Trump knew that this pandemic was deadly, and he refused to take decisive action early in order to control the virus. He still has no plan to this day, and he has refused to lead. He has continued to put politics over science, and he still insists the virus will just go away.

In fact, this pandemic will not just go away, and in Wisconsin and in States across our country, things continue to get worse. As our Nation fights this unprecedented public health crisis, President Trump continues his efforts, spanning the past 4 years, to sabotage our healthcare system and make it harder for people to get the coverage that they want and that they desperately need.

Since the President took office, more and more Americans are going without health insurance with each passing year. More than 6 million American workers have lost access to their employer-sponsored health insurance since the very beginning of this pandemic.

Thanks to the Affordable Care Act, they have a safety net in place that allows them to sign up for a healthcare plan while they are unemployed. But right now, we should be making it easier, not harder, for people to get healthcare. We should be building on the progress that we made with the Affordable Care Act by providing additional support for the navigators and those who provide enrollment assistance. We should be extending open enrollment and making sure that Americans know that they have options for comprehensive coverage.

But, instead, President Trump has doubled down in his support for a Federal lawsuit to eliminate the Affordable Care Act completely, including the protections for millions upon millions of Americans who have preexisting health conditions. And, mind you, a positive test for COVID–19 is a preexisting condition.

Let me say that again. During the worst public health crisis of our lifetimes, President Trump and Republicans support a Federal lawsuit to eliminate the Affordable Care Act completely—taking healthcare away from

millions of Americans, including those with preexisting conditions. And that, plain and simple, is the Republican healthcare plan—eliminating the Affordable Care Act.

If Senate Republicans disregard the very precedent that they set, ignore the fact that there is an election in 6 weeks where many Americans are already voting, and push to fill this Supreme Court vacancy with a judge committed to furthering their anti-healthcare agenda, it will mean the end of the Affordable Care Act and the end of guaranteed protections for people with preexisting health conditions.

Just like that, our Nation will be thrust back to a time where the insurance companies wrote the rules, when a cancer diagnosis or diabetes or asthma meant insurance companies could drop the ER coverage, charge astronomical premiums for the coverage or, worse, could decline to cover you at all and leave you with the bill.

I have stood in this Chamber and told story after story of Wisconsinites who depend upon the Affordable Care Act and are worried about what a future without it might look like, stories of mothers who lie awake at night wondering how they will be able to afford a lifesaving procedure for a child, and stories of fathers who don't know if they will be able to afford the insulin that a son may need.

I have shared my own story. As a 9-year-old, I got sick—really sick. I was hospitalized, but, ultimately, I fully recovered. But then I was denied health insurance for much of my youth because I had been labeled as a child with a preexisting health condition.

These stories are real, and there isn't a Senator in this body who hasn't heard one or dozens or hundreds of stories just like this from their own constituents. I implore my colleagues on the other side of the aisle to listen to your constituents now.

Justice Ginsburg was one of the deciding votes to save healthcare each time it had been challenged in the Supreme Court. She was one of the deciding votes on case after case threatening a woman's right to make her own healthcare decisions about her own body. Justice Ginsburg was protecting our healthcare and women's reproductive freedom, and she bore the weight of that for the last years of her life through her own battles with cancer. She fought for as long as she could because she knew what was at stake.

Justice Ginsburg has earned the right to rest now, and my deepest condolences go out to her children, her grandchildren, her family, and her friends for their loss. I urge my Republican colleagues not to diminish her tremendous contributions to our Nation and not to disrespect her decades of service by casting aside her dying wishes and their own precedent in forcing through a nomination with only 42 days before the election.

I urge my colleagues on the other side of the aisle, instead of suing in court to overturn the Affordable Care Act, to work with us on a real healthcare plan, and work with us to protect quality, affordable healthcare that America's families need. That is why we are here.

My promise today to my constituents and my colleagues is that I will not stop fighting to save healthcare for millions of Americans. This is the fight that brought me to public service in the first place, and I will not stop now. I will keep working to protect access to quality, affordable healthcare for all, and I will keep fighting on behalf of the many, many Wisconsinites who depend on it.

I yield the floor.

The PRESIDING OFFICER (Ms. ERNST). The Senator from Connecticut.

Mr. MURPHY. Madam President, the Russian Federation has a Constitution, and if you read Russia's Constitution, you would know that Russia is a democracy. Why? Because their Constitution guarantees the existence of a vibrant, multiparty political system. The Russian Constitution prohibits the use of extrajudicial force or torture by the government. Their constitution says: ''Censorship of the media is prohibited.''

Russia is a democracy if you read their Constitution, but Russia isn't a democracy, of course. It is a dictatorship. One man rules. No one has the right to dissent. There is no freedom of the press. All of that is under the penalty of death.

Now, why is this? Well, it is because democracies aren't made by their founding document. The document is just a piece of paper—parchment, in our case—with words written on it, and these words are just that: They are words. Democracy doesn't work unless its leaders choose to follow the rules that those words prescribe, but also to operate in the spirit of the values that undergird those words.

Vladimir Putin will proudly tell you that, technically, Russia adheres to its Constitution. Now, that is not true, obviously, but what Putin has done over the years is just slowly erode a democratic system by using every single inch of discretion allowed to him by that Constitution to make democracy functionally impossible. He will say that censorship doesn't exist because there isn't an explicit censorship law, but we all know that he has used every informal mechanism available to him to make sure that there is no room—no room—for the independence of the press.

Something stunning happened here 4 years ago. A Supreme Court vacancy arose through the death of Justice Scalia. The Constitution says that a new Supreme Court Justice can't be seated unless he or she gets an affirmative vote from the Senate, and every single nominee—at least those who weren't withdrawn by the President—essentially got a vote from the Senate before 2016 because, you see, the Founding Fathers didn't actually require the Senate to vote. They didn't because they assumed that leaders of good faith would, of course, fulfill that responsibility to hold a vote. They never considered that the Senate might stretch its discretion under the Constitution so broadly to refuse to consider a nominee simply because they didn't like the President who made the nomination.

The Founders didn't actually micromanage democracy. They set these broad rules, and they trusted that we would all act in good faith toward each other and with a patriotism toward our Nation in filling in the details.

But that is not how 2016 went down. Senate Republicans said they were setting a new precedent: When a nomination is made in the last year of a President's term, the Senate shouldn't act on it. The Senate, in that case, Republicans said, should wait for the outcome of the election and let the President who wins make the selection.

Now, what Senator MCCONNELL and Senator GRAHAM have said is pretty definitive. It is well covered. But there were lots of Senate Republicans who are still here who were equally definitive about the rules they were establishing.

For instance, the senior Senator from Florida said:

> I don't think we should be moving forward on a nominee in the last year of [a President's term]. I would say that even if it was a Republican president.

That was the rule that Republicans repeated over and over and over and over and over and over. They are not telling the truth if they try to spin it differently, and we all know this.

So you may ask: Why does it matter that they weren't telling the truth? Why does it matter that Republicans didn't honor their word? Why does it matter that they are willing to bend the rules, no matter the promises they have made in the past, whenever it suits them in order to gain political advantage?

Well, it is back to the bet that the Founding Fathers made. They just didn't anticipate a moment like today, when truth doesn't matter, when lying is normal, when honor is dead. They left us a bunch of wiggle room in the Constitution, knowing that we had to treat each other well, with respect, with a concern for precedent, in order to have a functional democracy.

Senator ALEXANDER, whom I greatly admire, said in his statement the other day that nobody should be surprised that Republicans are going to confirm a Supreme Court nominee before the election, notwithstanding the fact that the election has already started and that it also wipes out the precedent that they just claimed was so sacred 4 years ago.

That statement is really revealing. Whether he meant it or not, what he is saying is that nobody should be surprised by now that Republicans are just willing to do whatever it takes—even making up complete fabrications,

like a new rule against confirming Justices in an election year—in order to accumulate more power.

That is a really dangerous place for this body to head, because the Constitution does provide all sorts of room to push that document to its limits, to dispense with all fairness and honor and fair play, and to just seek power, no matter the costs.

I know this sounds silly, but it is not. There is nothing in the Constitution that prohibits the majority party in this body from, for instance, denying all staff to minority Members. There is nothing stopping the majority party from banning all minority party Members from speaking on the floor. And once you don't care about fairness, once you can just change precedent on a dime just to accumulate power, then, there is really no end.

I get it that a comparison to Russia seems a little tortured and a little strained, but, honestly, this is how democracies fall apart—when power becomes more important than the rule of law, our sense of fairness, or even loyalty to country; when your word means nothing; when no one can count on anyone to stay true to what they say; when there is nihilism, trump's patriotism.

There are new rules in the Senate now. We get that. There are new rules. Republicans might pretend like they existed before today, but they didn't. This breaks the glass like nothing else did before it.

Finally, let me ask this: To what end? Why is it so important that Republicans so nakedly grab for power and reset the very rules of how the Senate operates—rules that were so important 4 years ago?

It is not coincidental that the case that the Supreme Court is due to hear days after the election is a case that has to do with something the Republicans have been trying so desperately and unsuccessfully to do for 10 years—repeal the Affordable Care Act and end healthcare for 20 million Americans and protections against rate gouging for 130 million with preexisting conditions.

It is worth repeating this. I know my colleagues have said it before, and they will say it after, but if Republicans are successful in appointing an anti-ACA Justice to the Supreme Court—and President Trump has made it clear that he is not putting anyone up for the Supreme Court who isn't willing to strike down the Affordable Care Act—then we will have a humanitarian catastrophe on our hands in this country because days after the election, a case is to be heard that will be heard by that new Justice that asks to invalidate the entirety of the Affordable Care Act—not in pieces, not over time, but immediately, the whole thing. That is 25 million people losing access to healthcare—Medicaid and the State and Federal exchanges—in the middle of a pandemic.

Think about that. Think about 25 million—the equivalency of something like 10 to 15 different States—all losing healthcare right off the bat, when COVID is raging in this country.

As Senator BALDWIN said, COVID is a preexisting condition. We are just learning what it does to your body, but it may ravage it. And, ultimately, everyone in this country who knows they have COVID or finds out about it through antibody tests down the line will have their rates jacked up if the Affordable Care Act goes away.

Spare me the talk of a replacement coming. I have been in this body long enough to know that there is no replacement coming. Republicans have been talking about it for 10 years.

The Affordable Care Act will be invalidated by this Court with this new nominee. Nothing will replace it. Millions of people will lose their healthcare.

The reason this nomination is being pushed through is, yes, because Republicans care about power more than anything else but also to make sure that the Court around the corner from here does what the American people wouldn't let Congress do.

Remember, Congress could not repeal the Affordable Care Act because the people wouldn't let Congress do it. But nobody is going to be fooled about this end-around. By the time this nominee comes before this body, nobody is going to be mistaken about the consequences for Americans' healthcare.

I know that a lot of people think Democrats are foolishly naive. How could we be surprised by this treachery, this about-face of precedent on election-year confirmations, when Republicans have been changing the rules of the Senate at light speed for 5 years?

First it was unprecedented denial of a vote for a Supreme Court nominee in 2016. It never happened before in American history. Then it was the abolition of the 60-vote requirement for Supreme Court nominees. Then it was the restriction of debate on judges and political appointees so that nobody could actually see how wildly unqualified the people Donald Trump was appointing to office were. Then it was the end of blue slips so that even more radical nominees could be put on the bench. It has been just one power grab after another.

So, yes, we probably have seen this coming, and we probably should have known that a party so committed to ending health insurance for 20 million Americans would do anything to make that happen.

But I was naive. I still had hope. I still believed that honor was alive in this place. I still thought that when people said things, they meant it, and they would stick to it. I still thought that we could save the Senate.

I believe in my heart that Republicans are going to rue the day that they made nakedly clear that a Senator's word means nothing, where this place is simply a vehicle to compile as much power as quickly as possible, no matter the cost.

American democracy is not just the Constitution. It is us. It is the decisions we make every single day. It is the way we treat each other. It is the decision as to whether we care about our word mattering. This month, as it stands tonight, democracy's flicker just got a whole lot duller.

I yield the floor.

The PRESIDING OFFICER. The Senator from Massachusetts.

Ms. WARREN. Madam President, ''trailblazer,'' ''icon,'' ''titan,'' ''Notorious RBG''—those are just a few of the words that describe the Honorable Justice Ruth Bader Ginsburg, who passed away last Friday. But there is another of Justice Ginsburg's title that I will always hold dear: ''friend.''

As a young mother and a baby law student at Rutgers's Law School, I had almost no examples of female lawyers or female law professors. Like so many young women who were trying to do something as seemingly outlandish as going to law school, it was a really lonely undertaking.

Ruth was one of the few women whom we could see—a woman who had made it, and, even better, a woman who was fighting for other women.

As I arrived at Rutgers, Ruth had left Rutgers for Columbia Law School. Rutgers was a small family, and all the women and the men knew about her. She was putting together the Women's Rights Project at the ACLU to give her a way to fight for equality in the courts. Her sharp legal mind and stubborn determination were already legendary, and we were sure she would change the world. And she did.

I am forever grateful for her example to me and to millions of young women who saw her as a role model. I am also forever grateful that she made real change, opening doors that had remained stubbornly closed.

Justice Ginsburg may have been tiny, but she stands among the greatest fighters for justice our Nation has ever seen. She turned every barrier into an opportunity for change. And when she became the second woman in our Nation's history to sit on the Supreme Court, she continued her fight for justice, blazing a trail for women's rights, laying out the framework for protecting our democracy, and helping to secure justice for the most vulnerable. Ruth Bader Ginsburg changed the world, and I will miss her.

While I mourn her loss, I also hold close one of the things I loved most about Ruth: She was a fighter. We honor her memory by fighting for the things that Ruth Bader Ginsburg fought for during her long career: a woman's right to make decisions about her own body, healthcare for millions of Americans, Dreamers who have made a home here, voting rights, LGBTQ rights, workers' rights, union rights, and making our Nation a place where no one is more likely to be murdered or imprisoned or discriminated against because of the color of their skin, how they worship, or who they love.

Yes, it is a long list. Ruth defended it all, and now she is gone, and because she is gone, these rights and values are all on the line, vulnerable to being snatched away by another rightwing tilt of the Supreme Court.

Justice Ginsburg's replacements will determine who the highest Court in the land works for—women and sick kids and workers and immigrants or billionaires and giant companies and rightwing politicians who want to shrink our democracy in order to stay in power.

Ruth left our Nation a note before she died, and her words were clear. She said that her most fervent wish was that her replacement not be named until a new President is installed.

Senator MCCONNELL has already told us how to deal with the death of a Supreme Court Justice in an election year—a Justice whom Senator MCCONNELL treated with respect.

In 2016, Justice Scalia died a full 269 days before the Presidential election—months before any American would be able to cast a vote. But in 2016, that didn't matter to Senator MCCONNELL and his Republican henchmen. They locked arms and insisted there could be no confirmation until after the next President had been elected and sworn in.

Now, in 2020, the world is evidently different. Senator MCCONNELL has made it clear that the practice he used when Justice Scalia died would not be used when Justice Ginsburg died.

On the very same night that Justice Ginsburg passed, MITCH MCCONNELL announced that he and Donald Trump would move immediately to name a new Supreme Court Justice, despite the fact that voting is already underway across the country and there are only 42 days before the election is completed.

Democrat or Republican, the American people know that is not right. Democrat or Republican, the American people know that treating a Supreme Court vacancy as an opportunity for a naked partisan no-holds-barred power grab is burning down the pillars of integrity that support our Senate, our courts, and our democracy. Democrat or Republican, the American people will judge these choices for what they are—shameful.

If this feels personal, that is because it is. Ruth Ginsburg was a personal hero, for me and for millions of other women.

Ruth Ginsburg was a woman who never let any man silence her. The most fitting tribute to her is to refuse to be silenced and to name exactly what Donald Trump and Senate Republicans are trying to do: steal another Supreme Court seat.

This kind of sleazy double-dealing is the last gasp of a desperate party that is undemocratically overrepresented in Congress and in the halls of power across our country, the last gasp of a corrupt Republican leadership numbed to its own hypocrisy that doesn't reflect the views of the majority of Americans or the values that we hold dear, the last gasp of a rightwing, billionaire-fueled party that wants to hold onto power a little longer in order to impose its extremist agenda on the entire country.

And if MITCH MCCONNELL and the Senate Republicans ram this nomination through, it is our duty to explore every option we have to restore the Court's credibility and integrity; every option to expand our democracy, not shrink it; every option to ensure that a working single parent and a millionaire corporate executive have equal justice in our courts; and every option to ensure that all Americans are represented in our institutions.

The list of what is at stake if Republicans get their way and their extremist agenda finds a home in the Nation's highest Court is truly staggering.

Ruth Bader Ginsburg voted to protect healthcare for millions of Americans. In a 5-to-4 decision, healthcare was saved for millions of people. But in the midst of a global pandemic with more than 200,000 of our loved ones dead from a virus raging out of control, MITCH MCCONNELL and Senate Republicans want to install a Justice who will rip that healthcare away.

The Supreme Court will hear arguments just days after the election on whether the Affordable Care Act should be overturned. If Justice Ginsburg is replaced with a McConnell-Trump choice, the 5-to-4 decision that saved healthcare by a single vote could be overturned.

That would strip away protection from anyone with preexisting conditions. It would tell people with diabetes or high blood pressure or cancer, people who have had strokes, people who have had hundreds of other diseases, conditions, and events: You are on your own—no protection from an insurance company that just wants to cut off your insurance policies.

It would let insurance companies charge women more simply because they are women. It would end the requirement that insurance companies cover young people up to the age of 26. It would gut Medicaid.

And if you are one of the millions of Americans who has had COVID and survived, well, gutting the ACA would allow insurance companies to deny coverage because of it. COVID could become your preexisting condition.

Three years ago, MITCH MCCONNELL couldn't get the votes to repeal the Affordable Care Act, even in his own Republican-controlled Senate. And why? Because this is not what the American people want. They want access to healthcare and protection for people with preexisting conditions.

But MITCH MCCONNELL and Donald Trump have a plan B, a plan to advance their rightwing agenda even if most Americans don't want it, and MCCONNELL and Trump seem to think that, if they can steal another Supreme Court seat, they will get it.

There is more at stake. Ruth Bader Ginsburg voted to protect the rights of all women to make their own decisions about their bodies. Just a few months ago, in another 5-to-4 decision, Ruth Ginsburg's vote was crucial to the Supreme Court overturning a Louisiana law designed to make it harder for women to access abortion care.

Trump promised to appoint a Supreme Court Justice who will overturn Roe, and his two Supreme Court picks have already delivered, agreeing to let Louisiana restrict a woman's right to choose.

Nineteen States now stand ready to gut abortion protections if the Supreme Court overturns Roe, and now Senator MCCONNELL and Senate Republicans want to hand them one more Justice so they can get the job done.

Ruth Bader Ginsburg also voted over and over for the principle that American citizens should have an equal right to vote and an equal voice in our democracy. She issued a scathing dissent in Shelby County v. Holder, the Supreme Court decision overturning part of the Voting Rights Act.

As the pandemic continues to sweep the Nation, the Supreme Court has blocked attempts to make it easier for Americans to safely cast their vote. Just in April, in a 5-to-4 decision with Justice Ginsburg dissenting, the Court reversed a lower Federal court's decision to expand the deadline for absentee voting in Wisconsin by 6 days.

Republicans know that, to stay in power, they need to make it harder for all Americans to participate in the democratic process, and they want a Supreme Court Justice who will be committed to rolling back voting rights for decades to come.

Ruth Bader Ginsburg understood the threat that climate change poses to our children's and our grandchildren's future. She joined in the opinion in Massachusetts v. Environmental Protection Agency, another 5-to-4 ruling, which required the EPA to regulate greenhouse gas emissions from automobiles.

The Trump administration and congressional Republicans have actively rolled back regulations that keep our air clean and our water safe, and they are committed to putting another Justice on the Supreme Court who will help advance their anti-environment agenda and block any government attempts to tackle the dangers of climate change.

Ruth Bader Ginsburg understood the importance of protecting the rights of workers to join together and fight for fair pay and working conditions. In Epic Systems Corp. v. Lewis, she joined the minority in a 5-to-4 decision dissenting from the Court's ruling that employers can ban workers from joining together to demand protections against wage theft and other abuses. A Supreme Court Justice handpicked by Trump and MCCONNELL could turn back the clock even more on workers' rights.

Throughout her life, Ruth Bader Ginsburg fought for justice and equality for all Americans, and now Americans across this country are following in Justice Ginsburg's footsteps. Americans are speaking out and demanding change, and they are voting. With a pandemic raging out of control, thanks to the incompetence and the corruption of Donald Trump and his Republican enablers, with a battered economy and millions of people out of work, with Americans across the country calling for an end to the systemic racism that has cut short the lives of countless Black men and women, Americans understand now more than ever that this year's elections will determine the direction of our Nation for generations to come.

Today, Ruth is gone, but her life's work endures. We will honor her with action and channel our grief into change. We are at the cusp of a brighter day in our Nation, and this is the moment. We must tap into the reserves that we didn't know we had.

We tap into the reserves bequeathed to us from fighters we have recently lost—like Justice Ginsburg and Congressman Elijah Cummings and Congressman JOHN LEWIS—AND FROM THE KNOWLEDGE THAT WE CANNOT—WE WILL NOT—LEAVE OUR CHILDREN WORSE OFF.

Three years ago I watched our Nation rise up in the face of impossible odds and defend healthcare when Donald Trump and MITCH MCCONNELL wanted to strip away care from millions of Americans. We face those same odds today as we again fight to protect the healthcare of those same Americans and to protect so much more.

But I have hope because I know that this is a righteous fight, and I know that millions of other Americans are also in this fight.

Before she died, Ruth gave us our marching orders: Do not fill this Supreme Court seat until after the election when the next President is installed. We have our call to action. We honor her legacy by continuing the fight for justice, for equality, and for dignity—the fight for a world where we finally make those words ''equal justice under law'' real.

Now I would like to spend just a little bit of time focusing on Justice Ginsburg's legacy by reading just a few of the statements by her that really stood out to me as I reflected on her work.

At a 2012 symposium to honor the 40th anniversary of Justice Ginsburg being hired as the first woman with full tenure at Columbia Law School, two of Justice Ginsburg's former clerks, Abbe Gluck and Gillian Metzger, now both law professors themselves, had a public conversation with their former boss.

They asked Justice Ginsburg how she ended up working with the ACLU, which became a major part of her legendary career, and she began her answer by discussing the time that she lived in Sweden. Here is what she said:

My eyes were opened up in Sweden. This was in '62 and '63—women were about a quarter of the law students there, perhaps three percent in the United States. It was already well accepted that a family should have two wage-earners. A woman named Eva Moberg wrote a column in the Stockholm Daily paper with the headline, ''Why should the woman have two jobs and the man only one?'' And the thrust of it was, yes, she is expected to have a paying job, but she should also have dinner on the table at seven, take her children to buy new shoes, to their medical check-ups, and the rest. The notion that he should do more than take out the garbage sparked debates that were very interesting to me. Also in the months I spent there, a woman came to Sweden from Arizona to have an abortion. Her name was Sherri Finkbine. She had taken thalidomide and there was a grave risk that the fetus, if it survived, would be terribly deformed. So she came to Sweden and there was publicity that she was there because she had no access to a legal abortion in her home state. Well, that was at the start of the 60s. I put it all on a back burner until the late 60s when the women's movement came alive in the United States.

My students, then at Rutgers, asked for a course on sex discrimination and the law. And I went to the library and inside of a month read every federal court decision on gender discrimination—no mean feat at all because there were so few, so very few. Also I had signed up as a volunteer lawyer with the ACLU of New Jersey, more because it was a respectable way of getting litigation experience than out of ideological reasons, I will admit. Complaints from women began trickling into the office, new kinds of complaints. For example, women who were school teachers were required to leave the classroom the minute their pregnancy began to show because, after all, the children shouldn't be led to think that their teachers swallowed a watermelon. Anyway, these were women ready, willing, and able to work, but forced out on so-called maternity leave, which meant ''You're out, and if we want you back, we'll call.''

Another group of new complainants were women who had blue-collar jobs and wanted the same health insurance package for their family that a man would get. A woman could get health insurance for herself, but she wasn't considered the breadwinner in the family. Only the man got family benefits. And just to indicate the variety, there was a wonderful summer program at Princeton. The National Organization for Women complained about it. Princeton had already become co-educational. The summer program was for students at the end of sixth grade. It was a Summer in Engineering program. The children came on campus, they had an enriched program in math and science. There was just one problem: it was for boys, not girls. I should also mention one other complainant. Abbe Seldin was her name. She was the best tennis player in her Teaneck, New Jersey high school, but she couldn't be on the varsity team. There was no team for girls, and although she could beat all the boys, she couldn't be on the team.

So all this was under way. People were lodging complaints they were either too timid to make before or they were sure they would lose. But in the 1970s, they could become winners because there was a spirit in the land, a growing understanding that the way things had been was not right and should be changed.

They brought those complaints, and Ruthie Ginsburg is one of the people who helped make those changes. As we all know, Justice Ginsburg went on to become one of the fiercest advocates for women's rights our Nation has ever seen.

On the Supreme Court, Justice Ginsburg became famous for her dissents. She was asked about this, and I think her response is worth sharing.

[Y]ou can let out all the stops when you're a dissenter. I would distinguish two kinds of dissent. There's the great dissent written for a future age—the Brandeis and Holmes Free Speech dissents around the time of World War I are exemplary. They are the law of the land today. Another kind of dissent aims to prompt immediate action from the legislature. The Lilly Ledbetter case is a recent example. I should tell Lilly Ledbetter's story because some of you may not know it.

Lilly Ledbetter worked as an area manager for a Goodyear Tire Plant. She was hired in the 70s, then the only woman doing that job, and was initially paid the same as her male colleagues. Over time, her pay slipped. She might have suspected it but she didn't know it for sure because Goodyear, like most employers, didn't give out its wage records. One day, she found a little slip in her box at the plant; it listed the salaries of the men employed as area managers. Compared to Ledbetter's salary, the disparity was startling, as much as forty percent. In the years of her employment at Goodyear, she'd done a pretty good job, earning satisfactory performance ratings, so she thought she had a winnable case. She filed suit and won in the district court, gaining a substantial jury verdict. On appeal, Goodyear argued that Ledbetter sued too late. She should have sued within the 180 days Title VII says, within 180 days of the discriminatory incident, so if you count from the very first time her pay slipped, that would have been back in the 70s. The Supreme Court agreed that her claim was untimely, which meant the jury's verdict for damages was overturned.

My dissenting opinion pointed out that a woman in Ledbetter's position, the only woman doing a job up till then done only by men, doesn't want to rock the boat. She is unlikely to complain the first time she suspects something is awry. She will wait until she has a secure case. My opinion suggested that if she had sued the first time her paycheck was lower, had she found out about it, she probably would have lost because the excuse would have been ''She doesn't do the job as well as the men.'' But after twenty years, that argument can't be made with a straight face. By then, she has a winnable case. The Court's answer, she sued too late. She argued that every paycheck renewed the discrimination. I agreed. My dissenting opinion concluded: The ball is now in Congress's court to amend Title VII to say what I thought Congress meant all along. Within two years, the Lilly Ledbetter Fair Pay Act was passed. It was the first piece of legislation signed by President Obama. The audience to which my dissent appealed was Congress. Congress picked up the ball with a little help from many groups that prodded the legislators to amend Title VII.

This is a reminder that Justice Ginsburg used all of her tools to make change.

Speaking of dissents, in 2014, Justice Ginsburg was asked about the worst ruling this current Court had produced. Her unambiguous answer foreshadows the dangers we face today. This is what she said:

If there was one decision I would overrule, it would be Citizens United. I think the notion that we have all the democracy that

money can buy strays so far from what our democracy is supposed to be. So that's number one on my list. Number two would be the part of the health care decision that concerns the commerce clause. Since 1937, the Court has allowed Congress a very free hand in enacting social and economic legislation.

I thought that the attempt of the Court to intrude on Congress's domain in that area had stopped by the end of the 1930s. Of course health care involves commerce. Perhaps number three would be Shelby County, involving essentially the destruction of the Voting Rights Act. That act had a voluminous legislative history. The bill extending the Voting Rights Act was passed overwhelmingly by both houses, Republicans and Democrats, everyone was on board. The Court's interference with that decision of the political branches seemed to me to be out of order. The Court should have respected the legislative judgment. Legislators know much more about elections than the Court does. And the same was true of Citizens United. I think members of the legislature, people who have to run for office, know the connection between money and influence on what laws get passed.

And one last note, almost a year later, Justice Ginsburg's opinion hadn't changed. Let me read from a New York Times report about the remarks she delivered at Duke Law School:

In expansive remarks on Wednesday evening, Justice Ruth Bader Ginsburg named the ''most disappointing'' Supreme Court decision in her 22-year tenure, discussed the future of the death penalty and abortion rights, talked about her love of opera and even betrayed a passing interest in rap music.

The Court's worst blunder, she said, was its 2010 decision in Citizens United ''because of what has happened to elections in the United States and the huge amount of money it takes to run for office.''

She was in dissent in the 5–4 decision.

The evening was sponsored by Duke University School of Law, and Justice Ginsburg answered questions from Neil S. Siegel, a professor there, and from students and alumni.

Echoing a dissent last month, she suggested that she was prepared to vote to strike down the death penalty, saying that the capital justice system is riddled with errors, plagued by bad lawyers, and subject to racial and geographic disparities.

She added that she despaired over the state of abortion rights.

''Reproductive freedom is in a sorry situation in the United States,'' she said.

''Poor women don't have choice.''

That was our Ruth Ginsburg, concerned to the very end about how law affects all of the people it touches.

Ruthie, we will miss you.

I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Madam President, I come to the floor tonight to join my colleagues to honor the life of Justice Ruth Bader Ginsburg. Before I do, though, I would like to first of all thank my colleague from Massachusetts for reviewing the many legal decisions that Justice Ginsburg had been involved in and their significance.

I am so glad to be out here tonight as you took time in your perspective on the importance of those cases. We definitely need to remember that these decisions, these words, set the stage for so many things to come before the American people and for working families. Thank you for that.

SAVANNA'S ACT

Ms. CANTWELL. Madam President, before I do, I wanted to say just a word about Savanna's Act, which, I can tell you, Justice Ginsburg would probably be happy that the House has now passed and, previously, the Senate had passed Savanna's Act, legislation that would help protect the rights and help move forward on changes to law enforcement that would better protect missing and murdered indigenous women.

This legislation—originally sponsored by my colleagues Heidi Heitkamp and LISA MURKOWSKI, and most recently cosponsored by Senator MURKOWSKI, Senator CORTEZ MASTO, and myself—I believe is on its way to the President's desk, and I am hoping that the President will sign this important legislation as soon as possible.

Indigenous women deserve to have the same rights and same protections under the law, but they need to have people who are tracking these heinous crimes that are happening because they are the victims of these crimes at a much higher rate than the general population.

You ask yourself: Well, how can that be? When you think about these women being abducted and murdered and missing, you have to have law enforcement who are going to follow these cases, track individuals, track the court process, and this is what better protocols, better statistics, and a better system is going to do with the passage of Savanna's Act. It will give us those tools that we need for indigenous women.

So I thank all of my colleagues for helping with the passage of that important legislation. It is on its way to the President's desk, and, again, I hope he will sign it as soon as possible.

REMEMBERING JUSTICE RUTH BADER GINSBURG

Ms. CANTWELL. Madam President, I join my colleagues tonight to come here and honor the life of Justice Ruth Bader Ginsburg. As many people have said tonight already, what an unbelievable hero she was—a trailblazer, a deep thinker. And there are the things she did on the Court to do so many important things for the rights of Americans.

When I first met her in 2001, I had just come to Washington, DC, in my first year here in the U.S. Senate, and I just happened to go to a play at the Shakespeare Theatre, here near the Capitol, and had seats right next to her in the theater. I had probably already heard about her and knew of her, of course. That was of great significance even in 2001. But during the play, I noticed, just as I do in a dark situation, oftentimes falling asleep a little bit, and I thought, wow, I don't know, this woman is so petite and so tiny. And I had heard that she had been sick. I literally sat there in the dark concerned for her future.

What a lesson about Ruth Bader Ginsburg, because that was 2001. And in 2020, she was going strong. This is not a woman to ever, ever, ever underestimate. She took her tools and applied them for the betterment of American women and American society overall. People across the United States of America are reeling from her passing because they want to know who is going to stand up for their rights now that she is gone.

There is something about that diminutive figure with so much might and wisdom that succeeded on that groove of a Court with all those men and had the courage and the tenacity to read her dissent in the Lilly Ledbetter legislation from the bench—the unusual move of saying: I might not have the decision I want today, but, by God, you are going to listen to what is wrong with gender inequality in America, and we are going to get on a path to fix it.

When I think about that unbelievable moment that in her quiet, soft voice set the stage that we heard our colleague Senator WARREN talk about tonight, it is pretty amazing. That is why we need to have women in these places. We need to have them so you have the voice of diversity there to tell you what it is like. And I guarantee you—when she said that statement, ''I don't ask anything from my brother other than to get your foot off my neck,'' I guarantee you, she knew what that was like, and that is why she says it with such conviction.

That is what she represented. That is what she represented as an icon to so many people, and now they are mourning. I have had 2,000 calls in just a few days to our office about her passing.

One constituent, Lynn from Shelton, WA, said: I am old enough to have grown up experiencing the subtle and not so subtle discrimination aimed at girls and women that have limited our self-expression, our participation in sports, in politics, college accessibility and workplace, and even in my family life and reproduction. She continues: It has been slow progress for each of us to achieve increased equality. And so we have so much to thank Ruth Bader Ginsburg for. I am deeply saddened and frightened—frightened by her passing. As you know, our democracies, freedom, integrity and the rule of law are threatened and are even at greater risk.

Eileen, from Issaquah, wrote: Justice Ginsburg fought so valiantly for our rights as women. As women, we provide so much for the Washington economy.

I agree with her. Women provide a lot for our economy in the State of Washington.

She continues: I am a business owner myself, and I am terrified that gender protections are in grave danger. Ensuring civil liberties is not just the moral

thing to do, but it makes sound economic policy as well. Allowing more people more opportunities does not take away from those with power, but it grows our economy as a State and as a country and allows all of us to be more prosperous together. That includes reproductive rights, which is the keystone to allowing women full economic opportunity as men.

I have to say that letter basically sums it all up. That is what the fight with Lilly Ledbetter was. I thank Lilly Ledbetter. I thank Lilly Ledbetter for having the courage to file that case and stand up to that discrimination and basically fight a long process that people still don't understand. We do not have pay equity in America yet. We still are not making the same amount as men.

Ruth Ginsburg made a decision that set the course for the Lilly Ledbetter law, which basically says that instead of saying our time to file a case for discrimination runs out after a year when we don't even know we have been discriminated against, we should have a longer period of time to file that case. All we are going to get is our day in court.

I thank both Lilly Ledbetter and Justice Ginsburg for that because they were women standing up in an incredible environment, with men surrounding them, and speaking truth to power about what needed to happen, as my constituent says here, for full economic opportunities for all people.

I can't tell you how many men I have heard say: I want equal pay for women. I want equal pay for women because I want my wife to make a decent salary. I want her to bring home as much as she can bring home. I don't want her discriminated against.

Yet when Justice Ginsburg set us up for the Lilly Ledbetter legislation and we came here to the Senate floor, I heard the most unbelievable speeches here on the Senate floor. Colleagues of ours basically said things like: Well, if you would just be as qualified as a man, we will pay you as much as a man.

The disconnect still exists. The pay inequity still exists. But the course of action has been set by Justice Ginsburg, and we just have to pick up the torch and carry this to the finish line because it is good for our economy. It is good for our society. It is good for women to have the type of participation that—when you are paid equally to a man, you can continue to contribute in society.

Already, 2,000 people have written to me. It is unbelievable what she has done to touch the hearts of Americans.

A father from Bellingham wrote: Mostly, I mourn for the future of my 4-year-old daughter. The prospects of women losing their right to choose and an erosion of gender equality is frightening.

Another constituent, Katie, wrote: Even though the air this morning looks relatively clear again in Seattle—a little reference to all our fire and smoke—our future is foggier than ever. While I mourn the death of Justice Ginsburg, I cannot help but feel tremendous anxiety about the future of existing laws in effect that protect all people's rights, from legal abortions to access to healthcare, to laws that protect our votes and our freedom of speech and laws that Justice Ginsburg protected.

That is really what is going on here in America. This movement about RBG is saying: You stood up to protect us, and now you are gone, and what is going to happen?

I definitely pause in this for a little comment about our Senate schedule. I don't get it. We can sit here and argue back and forth about what people said when and how and all of that. What I don't understand is this: It takes time to review the record of someone for a lifetime appointment to the Supreme Court in which these important issues to working families and whether they have as much power and as much clout and as much standing as a corporation in America—people want to know where they stand.

Somehow, people are already talking about schedules. I don't understand. How can you decide what the schedule is when you haven't even heard the name of a person? How do you move forward with a schedule when you don't even know—maybe this person is going to end up being Harriet Miers. Maybe you are going to look at their record and say: It is Harriet Miers, and I don't want to move forward because I looked at her record, and I decided maybe this is not the jurist I want at this point in time.

All I am saying is, I don't understand how somebody can set a course of action in a schedule when you don't even know who the person is, what the process is going to be, or the length of time. You are setting a horrible precedent. You are saying to people that it doesn't even matter what the name is; you already have a schedule. It doesn't matter how long it is going to take to review.

It is very hard here to not have frustration when my citizens have fought so hard for these rights, and Justice Ginsburg's passing has upset them so much that they need to hear from us about how a fair and deliberative process—the last wishes of Justice Ginsburg—is going to be honored.

I would like to add in the RECORD the full dissent that was read from the bench from Justice Ginsburg in the Lilly Ledbetter case.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

SUPREME COURT OF THE UNITED STATES, LILLY M. LEDBETTER, PETITIONER v. THE GOODYEAR TIRE & RUBBER COMPANY, INC.

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT—MAY 29, 2007

Justice Ginsburg, with whom Justice Stevens, Justice Souter, and Justice Breyer join, dissenting.

Lilly Ledbetter was a supervisor at Goodyear Tire and Rubber's plant in Gadsden, Alabama, from 1979 until her retirement in 1998. For most of those years, she worked as an area manager, a position largely occupied by men. Initially, Ledbetter's salary was in line with the salaries of men performing substantially similar work. Over time, however, her pay slipped in comparison to the pay of male area managers with equal or less seniority. By the end of 1997, Ledbetter was the only woman working as an area manager and the pay discrepancy between Ledbetter and her 15 male counterparts was stark: Ledbetter was paid $3,727 per month; the lowest paid male area manager received $4,286 per month, the highest paid, $5,236. See 421 F. 3d 1169, 1174 (CAl 1 2005); Brief for Petitioner 4.

Ledbetter launched charges of discrimination before the Equal Employment Opportunity Commission (EEOC) in March 1998. Her formal administrative complaint specified that, in violation of Title VII, Goodyear paid her a discriminatorily low salary because of her sex. See 42 U.S.C. §2000e–2(a)(1) (rendering it unlawful for an employer ''to discriminate against any individual with respect to [her] compensation . . . because of such individual's . . . sex''). That charge was eventually tried to a jury, which found it ''more likely than not that [Goodyear] paid [Ledbetter] a[n] unequal salary because of her sex.'' App. 102. In accord with the jury's liability determination, the District Court entered judgment for Ledbetter for backpay and damages, plus counsel fees and costs.

The Court of Appeals for the Eleventh Circuit reversed. Relying on Goodyear's system of annual merit-based raises, the court held that Ledbetter's claim, in relevant part, was time barred. 421 F. 3d, at 1171, 1182–1183. Title VII provides that a charge of discrimination ''shall be filed within [180] days after the alleged unlawful employment practice occurred.'' 42 U.S.C. §2000e–5(e)(1). Ledbetter charged, and proved at trial, that within the 180-day period, her pay was substantially less than the pay of men doing the same work. Further, she introduced evidence sufficient to establish that discrimination against female managers at the Gadsden plant, not performance inadequacies on her part, accounted for the pay differential. See, *e.g.*, App. 36–47, 51–68, 82–87, 90–98, 112–113. That evidence was unavailing, the Eleventh Circuit held, and the Court today agrees, because it was incumbent on Ledbetter to file charges year-by-year, each time Goodyear failed to increase her salary commensurate with the salaries of male peers. Any annual pay decision not contested immediately (within 180 days), the Court affirms, becomes grandfathered, a *fait accompli* beyond the province of Title VII ever to repair.

The Court's insistence on immediate contest overlooks common characteristics of pay discrimination. Pay disparities often occur, as they did in Ledbetter's case, in small increments; cause to suspect that discrimination is at work develops only over time. Comparative pay information, moreover, is often hidden from the employee's view. Employers may keep under wraps the pay differentials maintained among supervisors, no less the reasons for those differentials. Small initial discrepancies may not be seen as meet for a federal case, particularly when the employee, trying to succeed in a nontraditional environment, is averse to making waves.

Pay disparities are thus significantly different from adverse actions ''such as termination, failure to promote, . . . or refusal to hire,'' all involving fully communicated discrete acts, ''easy to identify'' as discriminatory. See *National Railroad Passenger Corporation* v. *Morgan*, 536 U.S. 101, 114 (2002). It

is only when the disparity becomes apparent and sizable, *e.g.*, through future raises calculated as a percentage of current salaries, that an employee in Ledbetter's situation is likely to comprehend her plight and, therefore, to complain. Her initial readiness to give her employer the benefit of the doubt should not preclude her from later challenging the then current and continuing payment of a wage depressed on account of her sex.

On questions of time under Title VII, we have identified as the critical inquiries: ''What constitutes an 'unlawful employment practice' and when has that practice 'occurred'?'' *Id.*, at 110. Our precedent suggests, and lower courts have overwhelmingly held, that the unlawful practice is the current payment of salaries infected by gender-based (or race-based) discrimination—a practice that occurs whenever a paycheck delivers less to a woman than to a similarly situated man. See *Bazemore* v. *Friday*, 478 U.S. 385, 395 (1986) (Brennan, J., joined by all other Members of the Court, concurring in part).

I.

Title VII proscribes as an ''unlawful employment practice'' discrimination ''against any individual with respect to his compensation . . . because of such individual's race, color, religion, sex, or national origin.'' 42 U.S.C. §2000e–2(a)(1). An individual seeking to challenge an employment practice under this proscription must file a charge with the EEOC within 180 days ''after the alleged unlawful employment practice occurred.'' §2000e–5(e)(1). See *ante*, at 4; *supra*, at 2, n. 1.

Ledbetter's petition presents a question important to the sound application of Title VII: What activity qualifies as an unlawful employment practice in cases of discrimination with respect to compensation. One answer identifies the pay-setting decision, and that decision alone, as the unlawful practice. Under this view, each particular salary-setting decision is discrete from prior and subsequent decisions, and must be challenged within 180 days on pain of forfeiture. Another response counts both the pay-setting decision and the actual payment of a discriminatory wage as unlawful practices. Under this approach, each payment of a wage or salary infected by sex-based discrimination constitutes an unlawful employment practice; prior decisions, outside the 180–day charge-filing period, are not themselves actionable, but they are relevant in determining the lawfulness of conduct within the period. The Court adopts the first view, see *ante*, at 1, 4, 9, but the second is more faithful to precedent, more in tune with the realities of the workplace, and more respectful of Title VII' s remedial purpose.

A

In *Bazemore*, we unanimously held that an employer, the North Carolina Agricultural Extension Service, committed an unlawful employment practice each time it paid black employees less than similarly situated white employees. 478 U.S., at 395 (opinion of Brennan, J.). Before 1965, the Extension Service was divided into two branches: a white branch and a ''Negro branch.'' *Id.*, at 390. Employees in the ''Negro branch'' were paid less than their white counterparts. In response to the Civil Rights Act of 1964, which included Title VII, the State merged the two branches into a single organization, made adjustments to reduce the salary disparity, and began giving annual raises based on nondiscriminatory factors. *Id.*, at 390–391, 394–395. Nonetheless, ''some preexisting salary disparities continued to linger on.'' *Id.*, at 394 (internal quotation marks omitted). We rejected the Court of Appeals' conclusion that the plaintiffs could not prevail because the lingering disparities were simply a continuing effect of a decision lawfully made prior to the effective date of Title VII. See *Id.*, at 395–396. Rather, we reasoned, ''[e]ach week's paycheck that delivers less to a black than to a similarly situated white is a wrong actionable under Title VII.'' *Id.*, at 395. Paychecks perpetuating past discrimination, we thus recognized, are actionable not simply because they are ''related'' to a decision made outside the charge-filing period, cf. *ante*, at 17, but because they discriminate anew each time they issue, see *Bazemore*, 478 U.S., at 395–396, and n. 6; *Morgan*, 536 U.S., at 111–112.

Subsequently, in *Morgan*, we set apart, for purposes of Title VII's timely filing requirement, unlawful employment actions of two kinds: ''discrete acts'' that are ''easy to identify'' as discriminatory, and acts that recur and are cumulative in impact. See *Id.*, at 110, 113–115. ''[A] [d]iscrete ac[t] such as termination, failure to promote, denial of transfer, or refusal to hire,'' *Id.*, at 114, we explained, '' 'occur[s]' on the day that it 'happen[s].' A party, therefore, must file a charge within . . . 180 . . . days of the date of the act or lose the ability to recover for it.'' *Id.*, at 110; see *Id.*, at 113 (''[D]iscrete discriminatory acts are not actionable if time barred, even when they are related to acts alleged in timely filed charges. Each discrete discriminatory act starts a new clock for filing charges alleging that act.'').

''[D]ifferent in kind from discrete acts,'' we made clear, are ''claims . . . based on the cumulative effect of individual acts.'' *Id.*, at 115. The *Morgan* decision placed hostile work environment claims in that category. ''Their very nature involves repeated conduct.'' *Ibid.* ''The unlawful employment practice'' in hostile work environment claims, ''cannot be said to occur on any particular day. It occurs over a series of days or perhaps years and, in direct contrast to discrete acts, a single act of harassment may not be actionable on its own.'' *Ibid.* (internal quotation marks omitted). The persistence of the discriminatory conduct both indicates that management should have known of its existence and produces a cognizable harm. *Ibid.* Because the very nature of the hostile work environment claim involves repeated conduct,

''[i]t does not matter, for purposes of the statute, that some of the component acts of the hostile work environment fall outside the statutory time period. Provided that an act contributing to the claim occurs within the filing period, the entire time period of the hostile environment may be considered by a court for the purposes of determining liability.'' *Id.*, at 117.

Consequently, although the unlawful conduct began in the past, ''a charge may be filed at a later date and still encompass the whole.'' *Ibid.*

Pay disparities, of the kind Ledbetter experienced, have a closer kinship to hostile work environment claims than to charges of a single episode of discrimination. Ledbetter's claim, resembling Morgan's, rested not on one particular paycheck, but on ''the cumulative effect of individual acts.'' See *id.*, at 115. See also Brief for Petitioner 13, 15–17, and n. 9 (analogizing Ledbetter's claim to the recurring and cumulative harm at issue in *Morgan*); Reply Brief for Petitioner 13 (distinguishing pay discrimination from ''easy to identify'' discrete acts (internal quotation marks omitted)). She charged insidious discrimination building up slowly but steadily. See Brief for Petitioner 5–8. Initially in line with the salaries of men performing substantially the same work, Ledbetter's salary fell 15 to 40 percent behind her male counterparts only after successive evaluations and percentage-based pay adjustments. See *supra*, at 1–2. Over time, she alleged and proved, the repetition of pay decisions undervaluing her work gave rise to the current discrimination of which she complained. Though component acts fell outside the charge-filing period, with each new paycheck, Goodyear contributed incrementally to the accumulating harm. See *Morgan*, 536 U.S., at 117; *Bazemore*, 478 U.S., at 395–396; cf. *Hanover Shoe, Inc.* v. *United Shoe Machinery Corp.*, 392 U.S. 481, n. 15 (1968).

B

The realities of the workplace reveal why the discrimination with respect to compensation that Ledbetter suffered does not fit within the category of singular discrete acts ''easy to identify.'' A worker knows immediately if she is denied a promotion or transfer, if she is fired or refused employment. And promotions, transfers, hirings, and firings are generally public events, known to co-workers. When an employer makes a decision of such open and definitive character, an employee can immediately seek out an explanation and evaluate it for pretext. Compensation disparities, in contrast, are often hidden from sight. It is not unusual, decisions in point illustrate, for management to decline to publish employee pay levels, or for employees to keep private their own salaries. See, *e.g.*, *Goodwin* v. *General Motors Corp.*, 275 F. 3d 1005, 1008–1009 (CA10 2002) (plaintiff did not know what her colleagues earned until a printout listing of salaries appeared on her desk, seven years after her starting salary was set lower than her co-workers' salaries); *McMillan* v. *Massachusetts Soc. for the Prevention of Cruelty to Animals*, 140 F. 3d 288, 296 (CA1 1998) (plaintiff worked for employer for years before learning of salary disparity published in a newspaper). Tellingly, as the record in this case bears out, Goodyear kept salaries confidential; employees had only limited access to information regarding their colleagues' earnings. App. 56–57, 89.

The problem of concealed pay discrimination is particularly acute where the disparity arises not because the female employee is flatly denied a raise but because male counterparts are given larger raises. Having received a pay increase, the female employee is unlikely to discern at once that she has experienced an adverse employment decision. She may have little reason even to suspect discrimination until a pattern develops incrementally and she ultimately becomes aware of the disparity. Even if an employee suspects that the reason for a comparatively low raise is not performance but sex (or another protected ground), the amount involved may seem too small, or the employer's intent too ambiguous, to make the issue immediately actionable—or winnable.

Further separating pay claims from the discrete employment actions identified in *Morgan*, an employer gains from sex-based pay disparities in a way it does not from a discriminatory denial of promotion, hiring, or transfer. When a male employee is selected over a female for a higher level position, someone still gets the promotion and is paid a higher salary; the employer is not enriched. But when a woman is paid less than a similarly situated man, the employer reduces its costs each time the pay differential is implemented. Furthermore, decisions on promotions, like decisions installing seniority systems, often implicate the interests of third-party employees in a way that pay differentials do not. Cf. *Teamsters* v. *United States*, 431 U.S. 324, 352–353 (1977) (recognizing that seniority systems involve ''vested . . . rights of employees'' and concluding that Title VII was not intended to ''destroy or water down'' those rights). Disparate pay, by contrast, can be remedied at any time solely at the expense of the employer who acts in a discriminatory fashion.

C

In light of the significant differences between pay disparities and discrete employment decisions of the type identified in *Morgan*, the cases on which the Court relies hold no sway. See *ante*, at 5–10 (discussing *United Air Lines. Inc.* v. *Evans*, 431 U.S. 553 (1977), *Delaware State College* v. *Ricks*, 449 U.S. 250 (1980), and *Lorance* v. *AT&T Technologies, Inc.*, 490 U.S. 900 (1989)). *Evans* and *Ricks* both involved a single, immediately identifiable act of discrimination: in *Evans*, a constructive discharge, 431 U.S., at 554; in *Ricks*, a denial of tenure, 449 U.S., at 252. In each case, the employee filed charges well after the discrete discriminatory act occurred: When United Airlines forced Evans to resign because of its policy barring married female flight attendants, she filed no charge; only four years later, when Evans was rehired, did she allege that the airline's former no-marriage rule was unlawful and therefore should not operate to deny her seniority credit for her prior service. See *Evans*, 431 U.S., at 554–557. Similarly, when Delaware State College denied Ricks tenure, he did not object until his terminal contract came to an end, one year later. *Ricks*, 449 U.S., at 253–254, 257–258. No repetitive, cumulative discriminatory employment practice was at issue in either case. See *Evans*, 431 U.S., at 557–558; *Ricks*, 449 U.S., at 258.

Lorance is also inapposite, for, in this Court's view, it too involved a one-time discrete act: the adoption of a new seniority system that ''had its genesis in sex discrimination.'' See 490 U.S., at 902, 905 (internal quotation marks omitted). The Court's extensive reliance on *Lorance*, *ante*, at 7–9, 14, 17–18, moreover, is perplexing for that decision is no longer effective: In the 1991 Civil Rights Act, Congress superseded *Lorance*'s holding. 112, 105 Stat. 1079 (codified as amended at 42 U.S.C. §2000e–5(e)(2)). Repudiating our judgment that a facially neutral seniority system adopted with discriminatory intent must be challenged immediately, Congress provided:

''For purposes of this section, an unlawful employment practice occurs . . . when the seniority system is adopted, when an individual becomes subject to the seniority system, or when a person aggrieved is injured by the application of the seniority system or provision of the system.'' *Ibid*.

Congress thus agreed with the dissenters in *Lorance* that ''the harsh reality of [that] decision,'' was ''glaringly at odds with the purposes of Title VII.'' 490 U.S., at 914 (opinion of Marshall, J.). See also §3, 105 Stat. 1071 (1991 Civil Rights Act was designed ''to respond to recent decisions of the Supreme Court by expanding the scope of relevant civil rights statutes in order to provide adequate protection to victims of discrimination'').

True, §112 of the 1991 Civil Rights Act directly addressed only seniority systems. See *ante*, at 8, and n. 2. But Congress made clear (1) its view that this Court had unduly *contracted* the scope of protection afforded by Title VII and other civil rights statutes, and (2) its aim to generalize the ruling in *Bazemore*. As the Senate Report accompanying the proposed Civil Rights Act of 1990, the precursor to the 1991 Act, explained:

''Where, as was alleged in *Lorance*, an employer adopts a rule or decision with an unlawful discriminatory motive, each application of that rule or decision is a new violation of the law. In *Bazemore* . . . , for example, . . . the Supreme Court properly held that each application of th[e] racially motivated salary structure, *i.e.*, each new paycheck, constituted a distinct violation of Title VII. Section 7(a)(2) generalizes the result correctly reached in *Bazemore*.'' Civil Rights Act of 1990, S. Rep. No. 101–315, p. 54 (1990).

See also 137 Cong. Rec. 29046, 29047 (1991) (Sponsors' Interpretative Memorandum) (''This legislation should be interpreted as disapproving the extension of *[Lorance]* to contexts outside of seniority systems.''), But cf. *ante*, at 18 (relying on *Lorance* to conclude that ''when an employer issues paychecks pursuant to a system that is facially nondiscriminatory and neutrally applied'' a new Title VII violation does not occur (internal quotation marks omitted)).

Until today, in the more than 15 years since Congress amended Title VII, the Court had not once relied upon *Lorance*. It is mistaken to do so now. Just as Congress' ''goals in enacting Title VII . . . never included conferring absolute immunity on discriminatorily adopted seniority systems that survive their first [180] days,'' 490 U.S., at 914 (Marshall, J., dissenting), Congress never intended to immunize forever discriminatory pay differentials unchallenged within 180 days of their adoption. This assessment gains weight when one comprehends that even a relatively minor pay disparity will expand exponentially over an employee's working life if raises are set as a percentage of prior pay.

A clue to congressional intent can be found in Title VII's backpay provision. The statute expressly provides that backpay may be awarded for a period of up to two years before the discrimination charge is filed. 42 U.S.C. §2000e–5(g)(1) (''Back pay liability shall not accrue from a date more than two years prior to the filing of a charge with the Commission.''). This prescription indicates that Congress contemplated challenges to pay discrimination commencing before, but continuing into, the 180-day filing period. See *Morgan*, 536 U.S., at 119 (''If Congress intended to limit liability to conduct occurring in the period within which the party must file the charge, it seems unlikely that Congress would have allowed recovery for two years of backpay.''). As we recognized in *Morgan*, ''the fact that Congress expressly limited the amount of recoverable damages elsewhere to a particular time period [*i.e.*, two years] indicates that the [180–day] timely filing provision was not meant to serve as a specific limitation . . . [on] the conduct that may be considered.'' *Ibid*.

D

In tune with the realities of wage discrimination, the Courts of Appeals have overwhelmingly judged as a present violation the payment of wages infected by discrimination: Each paycheck less than the amount payable had the employer adhered to a nondiscriminatory compensation regime, courts have held, constitutes a cognizable harm. See, *e.g.*, *Forsyth* v. *Federation Employment and Guidance Serv.*, 409 F. 3d 565, 573 (CA2 2005) (''Any paycheck given within the [charge-filing] period . . . would be actionable, even if based on a discriminatory pay scale set up outside of the statutory period.''); *Shea* v. *Rice*, 409 F. 3d 448, 452—453 (CADC 2005) (''[An] employer commit[s] a separate unlawful employment practice each time he pa[ys] one employee less than another for a discriminatory reason'' (citing *Bazemore*, 478 U.S., at 396)); *Goodwin* v. *General Motors Corp.*, 275 F. 3d 1005, 1009–1010 (CA10 2002) (''*[Bazemore]* has taught a crucial distinction with respect to discriminatory disparities in pay, establishing that a discriminatory salary is not merely a lingering effect of past discrimination instead it is itself a continually recurring violation . . . . [E]ach race-based discriminatory salary payment constitutes a fresh violation of Title VII.'' (footnote omitted)); *Anderson* v. *Zubieta*, 180 F. 3d 329, 335 (CADC 1999) (''The Courts of Appeals have repeatedly reached the . . . conclusion'' that pay discrimination is ''actionable upon receipt of each paycheck.''); accord *Hildebrandt* v. *Illinois Dept. of Natural Resources*, 347 F. 3d 1014, 1025–1029 (CA7 2003); *Cardenas* v. *Massey*, 269 F. 3d 251, 257 (CA3 2001); *Ashley* v. *Boyle's Famous Corned Beef Co.*, 66 F. 3d 164, 167–168 (CA8 1995) (en banc); *Brinkley-Obu* v. *Hughes Training, Inc.*, 36 F. 3d 336, 347–349 (CA4 1994); *Gibbs* v. *Pierce County Law Enforcement Support Agency*, 785 F. 2d 1396, 1399–1400 (CA9 1986).

Similarly in line with the real-world characteristics of pay discrimination, the EEOC—the federal agency responsible for enforcing Title VII, see, *e.g.*, 42 U.S.C. §§2000e–5(f)—has interpreted the Act to permit employees to challenge disparate pay each time it is received. The EEOC's Compliance Manual provides that ''repeated occurrences of the same discriminatory employment action, such as discriminatory paychecks, can be challenged as long as one discriminatory act occurred within the charge filing period.'' 2 EEOC Compliance Manual §2–IV–C(1)(a), p. 605:0024, and n. 183 (2006); cf. *id.*, §10–III, p. 633:0002 (Title VII requires an employer to eliminate pay disparities attributable to a discriminatory system, even if that system has been discontinued).

The EEOC has given effect to its interpretation in a series of administrative decisions. See *Albritton* v. *Potter*, No. 01A44063, 2004 WL 2983682, *2 (EEOC Office of Fed. Operations, Dec. 17, 2004) (although disparity arose and employee became aware of the disparity outside the charge-filing period, claim was not time barred because ''[e]ach paycheck that complainant receives which is less than that of similarly situated employees outside of her protected classes could support a claim under Title VII if discrimination is found to be the reason for the pay discrepancy.'' (citing *Bazemore*, 478 U.S., at 396)). See also *Bynum-Doles* v. *Winter*, No. 01A53973, 2006 WL 2096290 (EEOC Office of Fed. Operations, July 18, 2006); *Ward* v. *Potter*, No. 01A60047, 2006 WL 721992 (EEOC Office of Fed. Operations, Mar. 10, 2006). And in this very case, the EEOC urged the Eleventh Circuit to recognize that Ledbetter's failure to challenge any particular pay-setting decision when that decision was made ''does not deprive her of the right to seek relief for discriminatory paychecks she received in 1997 and 1998.'' Brief of EEOC in Support of Petition for Rehearing and Suggestion for Rehearing En Banc, in No. 03–15264–GG (CA11), p. 14 (hereinafter EEOC Brief) (citing *Morgan*, 536 U.S., at 113).

II

The Court asserts that treating pay discrimination as a discrete act, limited to each particular paysetting decision, is necessary to ''protec[t] employers from the burden of defending claims arising from employment decisions that are long past.'' *Ante*, at 11 (quoting *Ricks*, 449 U.S., at 256–257). But the discrimination of which Ledbetter complained is *not* long past. As she alleged, and as the jury found, Goodyear continued to treat Ledbetter differently because of sex each pay period, with mounting harm. Allowing employees to challenge discrimination ''that extend[s] over long periods of time,'' into the charge-filing period, we have previously explained, ''does not leave employers defenseless'' against unreasonable or prejudicial delay. *Morgan*, 536 U.S., at 121. Employers disadvantaged by such delay may raise various defenses. *Id.*, at 122. Doctrines such as ''waiver, estoppel, and equitable tolling'' ''allow us to honor Title VII's remedial purpose without negating the particular purpose of the filing requirement, to give prompt notice to the employer.'' *Id.*, at 121 (quoting *Zipes* v. *Trans World Airlines, Inc.*, 455 U.S. 385, 398 (1982)); see 536 U.S., at 121 (defense of laches may be invoked to block an employee's suit ''if he unreasonably delays in filing [charges] and as a result harms the defendant''); EEOC Brief 15 (''[I]f

Ledbetter unreasonably delayed challenging an earlier decision, and that delay significantly impaired Goodyear's ability to defend itself . . . Goodyear can raise a defense of laches . . . .'').

In a last-ditch argument, the Court asserts that this dissent would allow a plaintiff to sue on a single decision made 20 years ago ''even if the employee had full knowledge of all the circumstances relating to the . . . decision at the time it was made.'' *Ante*, at 20. It suffices to point out that the defenses just noted would make such a suit foolhardy. No sensible judge would tolerate such inexcusable neglect. See *Morgan*, 536 U.S., at 121 (''In such cases, the federal courts have the discretionary power . . . to locate a just result in light of the circumstances peculiar to the case.'' (internal quotation marks omitted)).

Ledbetter, the Court observes, *ante*, at 21, n. 9, dropped an alternative remedy she could have pursued: Had she persisted in pressing her claim under the Equal Pay Act of 1963 (EPA), 29 U.S.C. §206(d), she would not have encountered a time bar. See *ante*, at 21 (''If Ledbetter had pursued her EPA claim, she would not face the Title VII obstacles that she now confronts.''); cf. *Corning Glass Works* v. *Brennan*, 417 U.S. 188, 208–210 (1974). Notably, the EPA provides no relief when the pay discrimination charged is based on race, religion, national origin, age, or disability. Thus, in truncating the Title VII rule this Court announced in *Bazemore*, the Court does not disarm female workers from achieving redress for unequal pay, but it does impede racial and other minorities from gaining similar relief.

Furthermore, the difference between the EPA's prohibition against paying unequal wages and Title VII's ban on discrimination with regard to compensation is not as large as the Court's opinion might suggest. See *ante*, at 21. The key distinction is that Title VII requires a showing of intent. In practical effect, ''if the trier of fact is in equipoise about whether the wage differential is motivated by gender discrimination,'' Title VII compels a verdict for the employer, while the EPA compels a verdict for the plaintiff. 2 C. Sullivan, M. Zimmer, & R. White, Employment Discrimination: Law and Practice §7.08[F][3], p. 532 (3d ed. 2002). In this case, Ledbetter carried the burden of persuading the jury that the pay disparity she suffered was attributable to intentional sex discrimination. See *supra*, at 1–2; *infra*, this page and 18.

III

To show how far the Court has strayed from interpretation of Title VII with fidelity to the Act's core purpose, I return to the evidence Ledbetter presented at trial. Ledbetter proved to the jury the following: She was a member of a protected class; she performed work substantially equal to work of the dominant class (men); she was compensated less for that work; and the disparity was attributable to gender-based discrimination. See *supra*, at 1–2.

Specifically, Ledbetter's evidence demonstrated that her current pay was discriminatorily low due to a long series of decisions reflecting Goodyear's pervasive discrimination against women managers in general and Ledbetter in particular. Ledbetter's former supervisor, for example, admitted to the jury that Ledbetter's pay, during a particular one-year period, fell below Goodyear's minimum threshold for her position. App. 93–97. Although Goodyear claimed the pay disparity was due to poor performance, the supervisor acknowledged that Ledbetter received a ''Top Performance Award'' in 1996. *Id.*, at 90–93. The jury also heard testimony that another supervisor—who evaluated Ledbetter in 1997 and whose evaluation led to her most recent raise denial—was openly biased against women. *Id.*, at 46, 77–82. And two women who had previously worked as managers at the plant told the jury they had been subject to pervasive discrimination and were paid less than their male counterparts. One was paid less than the men she supervised. *Id.*, at 51–68. Ledbetter herself testified about the discriminatory animus conveyed to her by plant officials. Toward the end of her career, for instance, the plant manager told Ledbetter that the ''plant did not need women, that [women] didn't help it, [and] caused problems.'' *Id.*, at 36. After weighing all the evidence, the jury found for Ledbetter, concluding that the pay disparity was due to intentional discrimination.

Yet, under the Court's decision, the discrimination Ledbetter proved is not redressable under Title VII. Each and every pay decision she did not immediately challenge wiped the slate clean. Consideration may not be given to the cumulative effect of a series of decisions that, together, set her pay well below that of every male area manager. Knowingly carrying past pay discrimination forward must be treated as lawful conduct. Ledbetter may not be compensated for the lower pay she was in fact receiving when she complained to the EEOC. Nor, were she still employed by Goodyear, could she gain, on the proof she presented at trial, injunctive relief requiring, prospectively, her receipt of the same compensation men receive for substantially similar work. The Court's approbation of these consequences is totally at odds with the robust protection against workplace discrimination Congress intended Title VII to secure. See, *e.g.*, *Teamsters* v. *United States*, 431 U.S., at 348 (''The primary purpose of Title VII was to assure equality of employment opportunities and to eliminate . . . discriminatory practices and devices. . . .'' (internal quotation marks omitted)); *Albemarle Paper Co.* v. *Moody*, 422 U.S. 405, 418 (1975) (''It is . . . the purpose of Title VII to make persons whole for injuries suffered on account of unlawful employment discrimination.'').

This is not the first time the Court has ordered a cramped interpretation of Title VII, incompatible with the statute's broad remedial purpose. See *supra*, at 10–12. See also *Wards Cove Packing Co.* v. *Atonio*, 490 U.S. 642 (1989) (superseded in part by the Civil Rights Act of 1991); *Price Waterhouse* v. *Hopkins*, 490 U.S. 228 (1989) (plurality opinion) (same); 1 B. Lindemann & P. Grossman, Employment Discrimination Law 2 (3d ed. 1996) (''A spate of Court decisions in the late 1980s drew congressional fire and resulted in demands for legislative change[,]'' culminating in the 1991 Civil Rights Act (footnote omitted)). Once again, the ball is in Congress' court. As in 1991, the Legislature may act to correct this Court's parsimonious reading of Title VII.

* * *

For the reasons stated, I would hold that Ledbetter's claim is not time barred and would reverse the Eleventh Circuit's judgment.

Ms. CANTWELL. In that dissent, Justice Ginsburg said:

The problem of concealed pay discrimination is particularly acute where the disparity arises not because the female employee is flatly denied a raise but because male counterparts are given larger raises. Having received a pay increase, the female employee is unlikely to discern at once that she has experienced an adverse employment decision. She may have little reason to suspect discrimination until a pattern develops incrementally and she ultimately becomes aware of the disparity.

Again, I think of what bravery Justice Ginsburg showed in saying to our colleagues that this dissent was so important, to read it from the bench.

Not everything in the legislative or legal process is easy. It takes bringing awareness to our colleagues, and clearly there is a lot of awareness that needs to continue to happen here. This is about working families and their desire to have healthcare coverage for preexisting conditions, protection of reproductive rights, hundreds of thousands of Dreamers wanting to know what the future looks like, and obviously LGBTQ rights and whether they are going to be set back.

I think of the other time that I had a great interaction with Justice Ginsburg. When I also first got here, we had this dinner every year. The Senator from Hawaii will find this interesting. We in the Senate would be invited—Democrats and Republicans—to have dinner with the Supreme Court. It was a great night. We would go over to the Court, and we would have dinner.

Actually, the Justices would open up their offices, and we could tour around. I thought it was really interesting. If you know anything about people, you can almost see how their mind works by the desk they keep. Some people keep a messy desk, but they know where every piece of paper is on the desk. Other people have a very neat desk.

The whole thing—letting us into their Chambers, talking about the decorum of the Supreme Court, how they shook hands every day, how they all worked with each other to try to keep comity among the decisions when you are going to disagree every day—was very interesting.

We usually had some entertainment. But it was kind of a moment where we all said: We are in this together, and we are going to keep moving forward.

Several years later—I am not sure whose decision it was—I think maybe around—I am not sure what year they disbanded that. They decided: We are not doing that anymore.

I asked: Why aren't we doing this?

This is one of the greatest things we have done around here because Democrats and Republicans would get together with the members of the Court and other people relevant to our associations, and we would share a meal and talk and say that this was about civility and working together—obviously a very divided branch as it relates to the Senate and the judiciary.

But nonetheless I so appreciated the fact that even though that was disbanded, Justice Ginsburg invited the women for dinner. She invited the women Senators to come over for dinner. I think we might have invited a few of our ex-colleagues. I think Olympia Snowe, the former Congresswoman from Maine, might have been there. So we invited some of our old colleagues. It might have been a dinner for a newly added Justice to the Court. Nonetheless, guess what we got with dinner. Great opera. Great opera. In fact, she had I think two singers there that evening and entertained us.

It is that kind of spirit of people working together and showing that. I think that was probably what her relationship was with Antonin Scalia. It was probably, yes, we are not always going to agree, but we are going to work together, and we are going to figure out how to make the best of this situation and move forward.

I remember that. Even though this thing had been disbanded, she still took the time—at least with the women—to say: Do you know what? We can all still work together.

Whoever said the statement ''Good things come in small packages'' had it down when it came to Justice Ginsburg because in that very small package came a lot of wisdom that got applied to the rights particularly of women in the United States of America with a calm but forceful voice that has moved this ball down the road. It is up to all of us to continue her legacy and get equal pay for equal work and continue to protect these rights that are well established in the United States of America.

My thoughts and prayers are with the Ginsburg family.

I yield the floor.

The PRESIDING OFFICER (Mr. HOEVEN). The Senator from Hawaii.

Mr. SCHATZ. Mr. President, we know that on Saturday the President is likely to announce his nominee for the Supreme Court, and we don't know who that is going to be, but we do know a couple of things. We know, according to the chairman of the Judiciary Committee, that they already have the votes.

What an extraordinary thing to already know how you are going to vote on a nominee who has not yet been nominated. What an extraordinary thing to turn ''advise and consent'' into ''agreeing in advance.'' What an extraordinary thing.

There is another thing that we know about this nominee. No matter who it is, we know that this person is going to come from a list provided by the Federalist Society, an organization that has worked for decades to remake the Federal judiciary in its image. It has a long history of advancing a certain agenda of seeking to roll back progress on civil rights, diminish environmental protections, and eliminate a woman's right to choose. It is an organization that believes in the power of executive authority and advances a particular, unique, novel theory called the unitary executive, which is something that Alan Dershowitz proffered on the Senate floor during the impeachment trial.

It essentially says that the executive branch is the President and that extensions of the President's authority can only go so far because the President is a whole branch of government unto himself or herself. The Federalist Society also fights for the corporations and the rich individual donors who quietly fund their work.

As Amanda Hollis-Brusky says, who studies this organization from a nonpartisan academic perspective as a professor at Pomona College: ''The idea of the Federalist Society was to train, credential, and socialize a generation of alternative elites.''

That is how we know that any nominee they put forth will have views so far out of the mainstream and far to the right of even the existing Supreme Court. So it is not a rhetorical flourish, and it is not a partisan statement to say that Trump's nominee will not be committed to ensuring our most basic and fundamental rights: the right to privacy, reproductive rights, the right to vote, the right to marry who you love, and even equal justice under the law.

Perhaps what is most worrisome is that the President has made clear that whomever he nominates to the Supreme Court will be in favor of striking down the Affordable Care Act. With the Court's hearing yet another challenge to the ACA on November 10, it is not an exaggeration to say that the law will likely be gutted. It is a real risk.

Let's be clear about what this means. The whole architecture of our healthcare system could be destroyed during the worst public health crisis in a century. This will, of course, disproportionately impact our most vulnerable communities—communities of color, low-income, indigenous, Alaska Native, and Native Hawaiian communities. We are talking about repealing Medicaid expansion—the policy that allows people under the age of 26 to stay on their parents' health insurance—and, most importantly, protections for preexisting conditions.

Let's be clear about this, too: If you have gotten COVID, you now have a preexisting condition. So, if you have gotten COVID because of President Trump's inaction and then if his nominee is confirmed to the Supreme Court, your insurance company will be permitted to kick you off of your healthcare plan or at least to increase your rate so high that you will not be able to afford coverage.

Ripping away healthcare from at least 20 million Americans and denying coverage to people with preexisting conditions is a crazy and horrific thing to do in normal times, but it is particularly cruel during a pandemic that has already claimed the lives of more than 200,000 Americans, especially because, despite the recent promises and despite the endless promises from both the President and members of the Republican Party, they have no alternative healthcare plan. We cannot and must not impose this catastrophe on the American people.

In moments when our country feels torn apart, the traditional role of the Senate is supposed to be to calm tensions and solve our problems, but instead of dealing with the tough issues, the majority leader and the Republican Party are going to inflict procedural violence on the legislative branch with many Republicans pre-announcing their support for the nominee without even knowing who she or he may be.

''President Trump will nominate a well-qualified justice and we will uphold our Constitution and protect our freedoms''—the Senator from Montana.

''I will support President Trump in any effort to move forward regarding the recent vacancy''—the chairman of the Committee on the Judiciary.

''It is critical that the Senate takes up and confirms that successor before election day''—the junior Senator from Texas.

What makes this coordinated effort to stack the Supreme Court even worse is that we heard the majority leader say specifically that he felt no sense of urgency to move on COVID relief. He felt no sense of urgency to move on COVID relief. I believe this was in May. I think it was in May when the House passed the Heroes Act. The House passes a bill, and the Republicans say it is too much. The majority leader decides: Do you know what? We are the cooling saucer. We are the upper Chamber. We are just going to chill out here during this pandemic and see how things play out economically and in terms of public health.

Well, things have played out pretty badly economically and in terms of public health; yet there has been no sense of urgency, no deal, no negotiation. Forget a deal for a second. There has not even been a serious attempt to negotiate between the parties or between the branches of government—nothing.

Yet, when a Supreme Court vacancy happens—when Justice Ginsburg tragically passes—there is a tremendous sense of clarity, a tremendous sense of alacrity, a determination to fill that seat so that, on November 10, they can take your healthcare away. That is the sense of urgency that the majority leader feels in the middle of a pandemic, and it is a shame.

I yield the floor.

(At the request of Mr. MCCONNELL, the following statement was ordered to be printed in the RECORD.)

TRIBUTE TO ERICA SONGER

• Mr. TILLIS. Mr. President, as chairman of the Senate Judiciary Committee Subcommittee on Intellectual Property, I want to thank Erica Songer for her service in the Senate and in particular for her service as the subcommittee's minority chief counsel. The Intellectual Property Subcommittee has been the most active subcommittee's in the Senate, in no small part due to Erica's work. We have worked in a bipartisan fashion to modernize our intellectual property system through forward-looking legislative reforms. Across numerous hearings on various aspects of intellectual property law, as well as several bills, Erica has been a vital resource to my team and me.

During this session, Erica has served the subcommittee in countless ways. From promoting women in the intellectual property field to reforming our

Nation's patent eligibility laws, Erica has been an innovator and go-getter. There were countless times throughout this Congress when the subcommittee's work would get tough and it appeared we were at an insurmountable impasse. Each time, Erica found a way forward and kept us moving towards our shared goals: a stronger intellectual property system.

While I am sad that the Senate and the subcommittee will be losing a staffer as valuable as Erica, I am grateful for her public service these past 4 years. Erica has shown that she will excel at whatever she commits to, whether graduating from Harvard Law School or making partner at one of the largest law firms in the world or serving as the chief counsel to my good friend CHRIS COONS—and I am excited for her as she steps into a new role and begins a new adventure.●

VOTE EXPLANATION

Ms. SINEMA. Mr. President, I was necessarily absent but had I been present would have voted yes on rollcall vote 182, on the nomination of Franklin Ulyses Valderrama, of Illinois, to be U.S. District Judge for the Northern District of Illinois.

Mr. President, I was necessarily absent but had I been present would have voted yes on rollcall vote 183, on the nomination of Iain D. Johnston, of Illinois, to be U.S. District Judge for the Northern District of Illinois.

Mr. President, I was necessarily absent but had I been present would have voted yes on rollcall vote 184, motion to invoke cloture on the nomination of Edward Meyers to be a Judge for the United States Court of Federal Claims for a term of fifteen years.

100TH ANNIVERSARY OF THE DISABLED AMERICAN VETERANS

Mr. ROUNDS. Mr. President, I rise today to recognize the Disabled American Veterans—DAV—organization for its commitment to serving wartime-disabled veterans since its formation 100 years ago. As a member of the Senate Committee on Veterans' Affairs, I am grateful for the positive impact of the DAV on disabled veterans in South Dakota and across the Nation.

Founded on September 25, 1920, the DAV has grown to become the largest wartime veterans service organization in the United States, with more than 1 million members in 1,344 chapters around the country.

The DAV helps disabled veterans and their families work through the bureaucracy of the Federal and local governments to make sure they receive the benefits they deserve. Additionally, the organization operates a nationwide transportation network, providing free transportation for disabled veterans to Department of Veterans Affairs hospitals and clinics.

We are truly blessed to have the DAV organization in South Dakota and in the United States. They give their time, talent, knowledge, and friendship to disabled veterans who need it most. We are thankful for their 100 years of service to the veteran community.

May God continue to bless the DAV and everyone they serve.

Thank you.

REMEMBERING DR. ROLF H. EPPINGER

Mr. VAN HOLLEN. Mr. President, I rise to pay tribute to an extraordinary constituent, Dr. Rolf H. Eppinger, who passed away on August 14, 2020. Dr. Eppinger's outstanding work has saved the lives of many Americans and will save many more in the years to come.

Dr. Eppinger had a distinguished 34-year career with the National Highway Traffic Safety Administration, NHTSA. There, he performed and led fundamental biomechanics research that resulted in the development of crash test dummies, the interpretation of their measurements, the advancement of the prevention of crash injuries, and the reduction of the severity of crash injuries.

His work has helped save hundreds of thousands of lives and many more injuries worldwide. NHTSA has estimated that in the United States, as of 2017, more than 50,000 lives have been saved by airbags, 374,000 by safety belts, and 11,000 by child restraints. Many times more serious injuries were prevented or ameliorated.

The work of Dr. Eppinger and his team formed the basis for the New Car Assessment Programs now in use worldwide.

Over the course of his career, Dr. Eppinger published more than 120 technical papers dealing with automotive safety and was the holder of two U.S. patents. In addition, he enjoyed sailboat racing and was an accomplished watercolorist, pen and ink artist, woodworker, boat builder, and general handyman.

Dr. Eppinger is remembered for his rigorous scientific medical and engineering research, integrity, decency, and humility.

I ask my colleagues to join me in sending our gratitude for Dr. Eppinger's outstanding contributions and our deepest condolences to his wife Karen, his children Justin and Dwight, his daughter-in-law Kelly, and his grandchildren Alice and Hugo.

ADDITIONAL STATEMENTS

TRIBUTE TO LILIANE COUCKE SMITH

● Mr. BLUMENTHAL. Mr. President, today I rise to recognize Mrs. Liliane Coucke Smith, a remarkable woman who served as a nurse during World War II and turns 100 on October 3.

Born in Belgium, Mrs. Smith joined the Belgian Resistance at age 20. As a wartime nurse, she entered Germany alongside the advancing Allied Forces.

Her outstanding commitment to serving others continued afterward, when she worked as part of the United Nations Relief and Rehabilitation Administration and the International Refugee Organization to help resettle over 10 million people displaced by the Second World War, including former slave laborers and concentration camp survivors. Mrs. Smith also oversaw the establishment of six refugee camps in the American occupation zone.

While working as a French-English translator in Naples, she met her beloved husband, Dudley C. Smith, a U.S. Naval officer. The two split their time between Europe and the United States, before settling permanently in Groton Long Point, CT.

Her tireless dedication to helping others in even the most arduous times is a credit to her generous spirit. A deeply considerate and unfailingly driven person, Mrs. Smith sets an inspiring model for all of us through her readiness to embrace new challenges and serve those in need. Her incredible legacy will be enduring.

I applaud her many accomplishments and hope my colleagues will join me in congratulating Mrs. Liliane Couke Smith on this milestone of her 100th birthday.●

TRIBUTE TO KRISTINA FOLCIK

● Ms. HASSAN. Mr. President, I am proud to recognize Kristina Folcik of Tamworth as September's Granite Stater of the Month. As a survivor of domestic violence, Kristina transformed her own healing process into a way to support other survivors by hiking 100 miles nonstop across some of New Hampshire's steepest peaks. She was the first person to ever finish that portion of the Appalachian Trail in one single trek.

Kristina is an endurance athlete who has held multiple Fastest Known Times, which is a title given to individuals who have clocked the fastest time on a particular route, including hiking trails. She even raced professionally for a while, but stopped when her now-former husband started becoming abusive after she would win a race.

For the last 2 years, Kristina worked with Starting Point, a nonprofit organization in New Hampshire that helps survivors of domestic and sexual violence, to successfully separate from her abusive husband. In an effort to heal from this harrowing and traumatic experience, Kristina decided to attempt a 100-mile, nonstop hike.

In the lead-up to announcing her decision to attempt this extraordinary feat, Kristina revealed publicly on social media that she had recently divorced from her abusive husband and that she was going to complete this 100-mile trek and dedicate it to women who have been in abusive relationships.

Much to her surprise, following her announcement, many women began to share their stories of abuse with Kristina, and some even publicly shared their experiences.

Kristina turned her hike into a fundraiser, asking people to donate to the organization that had helped her leave her abusive marriage. It was not until Kristina had successfully completed the hike 36 hours later that she realized the fundraiser had raised more than $1,000 for Starting Point.

Apart from breaking records, Kristina also owns Rockhopper Races LLC, which hosts races in the White Mountains and raises money for organizations that maintain and preserve New Hampshire's beautiful natural resources.

Kristina not only achieved an incredible athletic feat, but also made a difference in the lives of others by having the courage to speak out about her past trauma. Kristina's strength is an inspiration and reflects the kind of determination to build strength through outreach and mutual support that the Granite State is known for. I am proud to recognize her efforts.●

RECOGNIZING BECKWITH ELECTRIC COMPANY, INC.

● Mr. RUBIO. Mr. President, as chairman of the Senate Committee on Small Business and Entrepreneurship, each week I recognize a small business that exemplifies the American entrepreneurial spirit at the heart of our country. It is my privilege to recognize a family-owned small business with an outstanding record of innovation and industry leadership. This week, it is my pleasure to honor Beckwith Electric Company, Inc., of Largo, FL, as the Senate Small Business of the Week.

In 1967, Robert W. Beckwith established Beckwith Electric in Illinois to provide equipment and services for electric utility providers. Robert, an electric engineer, was a prolific inventor who held more than 30 patents during his lifetime. Under his leadership, Beckwith Electric developed several products integral to electric utilities, including the first solid state tapchanger control in 1968 and microprocessor protective relay in 1981. As the company grew, Robert relocated Beckwith Electric to Largo, FL, in 1974. Like many Floridian small businesses, Beckwith Electric's facilities were completely destroyed by Hurricane Andrew in 1992. Through careful planning, innovation, and an emphasis on customer service, Beckwith Electric rebuilt its facilities and continued to grow.

Today, Beckwith Electric Company is one of the largest manufacturing companies in the Tampa area. Richard's son, Thomas Beckwith, serves as chief executive officer and led the company to a 33-percent increase in growth last year. Beckwith Electric designs and manufactures all of its products, including components for electrical power grids, generators, and protective relays for transformers at its Largo, FL, facility. These items protect, strengthen, and increase the efficiency of electric utility networks. As part of the U.S. critical industrial base, Beckwith Electric's products are found in military installations, hospitals, and schools. They work with electric utilities, manufacturers, and producers of alternative sources of energy worldwide. They also contributed to rebuilding Iraq's power grid during Operation Iraqi Freedom.

Over the years, Beckwith Electric has been recognized for excellence in their industrial field and for their educational programs. Partnering with St. Petersburg College and Pinellas County Schools, Beckwith Electric regularly hosts educational workshops and technical training programs. In 2012, they earned the Florida Sterling Council Challenger Award. Beckwith has also earned several local and national awards from the Institute of Electrical and Electronics Engineers—IEEE—the industry's professional society. They partner with IEEE in hosting continuing education workshops for industry professionals.

Like many other Floridian small businesses, Beckwith Electric Company was impacted by the coronavirus pandemic. An essential business, they managed to stay open, keep their employees safe, and play a key role in keeping our nation's electrical utilities running smoothly. In April 2020, the U.S. Small Business Administration launched the Paycheck Protection Program, a small business relief program that I was proud to author. The PPP provides forgivable loans to impacted small businesses and nonprofits who maintain their payroll during the COVID–19 pandemic. Thanks to their PPP loan, Beckwith Electric saved 20 jobs, while paying all of their 185 employees.

Beckwith Electric Company demonstrates the key role that small businesses play in our Nation's critical infrastructure and industrial manufacturing base. I commend their innovation, resilience, and high-quality work. Congratulations to Thomas and the entire team at Beckwith Electric Company. I look forward to watching your continued innovation and growth in Florida and beyond.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Ms. Roberts, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

In executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations and a withdrawal which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGES FROM THE HOUSE

At 2:15 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bills, without amendment:

S. 209. An act to amend the Indian Self-Determination and Education Assistance Act to provide further self-governance by Indian Tribes, and for other purposes.

S. 227. An act to direct the Attorney General to review, revise, and develop law enforcement and justice protocols appropriate to address missing and murdered Indians, and for other purposes.

S. 294. An act to establish a business incubators program within the Department of the Interior to promote economic development in Indian reservation communities.

S. 490. An act to designate a mountain ridge in the State of Montana as ''B–47 Ridge''.

S. 832. An act to nullify the Supplemental Treaty Between the United States of America and the Confederated Tribes and Bands of Indians of Middle Oregon, concluded on November 15, 1865.

S. 982. An act to increase intergovernmental coordination to identify and combat violent crime within Indian lands and of Indians.

S. 1321. An act to amend title 18, United States Code, to prohibit interference with voting systems under the Computer Fraud and Abuse Act.

S. 1380. An act to amend the Federal Rules of Criminal Procedure to remind prosecutors of their obligations under Supreme Court case law.

S. 2661. An act to amend the Communications Act of 1934 to designate 9–8–8 as the universal telephone number for the purpose of the national suicide prevention and mental health crisis hotline system operating through the National Suicide Prevention Lifeline and through the Veterans Crisis Line, and for other purposes.

The message further announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 139. An act to direct the Secretary of the Interior to conduct a special resource study of the site associated with the 1908 Springfield Race Riot in the State of Illinois.

H.R. 895. An act to allow tribal grant schools to participate in the Federal Employee Health Benefits program.

H.R. 1418. An act to restore the application of the Federal antitrust laws to the business of health insurance to protect competition and consumers.

H.R. 1646. An act to require the Secretary of Health and Human Services to improve the detection, prevention, and treatment of mental health issues among public safety officers, and for other purposes.

H.R. 1702. An act waive the application fee for any special use permit for veterans' special events at war memorials on land administered by the National Park Service in the District of Columbia and its environs, and for other purposes.

H.R. 2271. An act to amend the Public Health Service Act to improve the health of children and help better understand and enhance awareness about unexpected sudden death in early life.

H.R. 3160. An act to direct the Secretary of the Interior to take certain land located in Pinal County, Arizona, into trust for the benefit of the Gila River Indian Community, and for other purposes.

H.R. 3349. An act to authorize the Daughters of the Republic of Texas to establish the

Republic of Texas Legation Memorial as a commemorative work in the District of Columbia, and for other purposes.

H.R. 3465. An act to authorize the Fallen Journalists Memorial Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

H.R. 3935. An act to amend title XIX of the Social Security Act to provide for the continuing requirement of Medicaid coverage of nonemergency transportation to medically necessary services.

H.R. 4564. An act to amend the Public Health Service Act to ensure the provision of high-quality service through the Suicide Prevention Lifeline, and for other purposes.

H.R. 4585. An act to require the Secretary of Health and Human Services to conduct a national suicide prevention media campaign, and for other purposes.

H.R. 4866. An act to amend the 21st Century Cures Act to provide for designation of institutions of higher education that provide research, data, and leadership on continuous manufacturing as National Centers of Excellence in Continuous Pharmaceutical Manufacturing, and for other purposes.

H.R. 4957. An act to amend the Indian Child Protection and Family Violence Prevention Act.

H.R. 4995. An act to amend the Public Health Service Act to improve obstetric care and maternal health outcomes, and for other purposes.

H.R. 5053. An act to exempt juveniles from the requirements for suits by prisoners, and for other purposes.

H.R. 5309. An act to prohibit discrimination based on an individual's texture or style of hair.

H.R. 5322. An act to establish or modify requirements relating to minority depository institutions, community development financial institutions, and impact banks, and for other purposes.

H.R. 5546. An act to regulate monitoring of electronic communications between an incarcerated person in a Bureau of Prisons facility and that person's attorney or other legal representative, and for other purposes.

H.R. 5567. An act to amend the Communications Act of 1934 to require the Federal Communications Commission to consider market entry barriers for socially disadvantaged individuals in the communications marketplace report under section 13 of such Act.

H.R. 5602. An act to authorize dedicated domestic terrorism offices within the Department of Homeland Security, the Department of Justice, and the Federal Bureau of Investigation to analyze and monitor domestic terrorist activity and require the Federal Government to take steps to prevent domestic terrorism.

H.R. 5619. An act to authorize a pilot program to expand and intensify surveillance of self-harm in partnership with State and local public health departments, to establish a grant program to provide self-harm and suicide prevention services in hospital emergency departments, and for other purposes.

H.R. 5663. An act to amend the Federal Food, Drug, and Cosmetic Act to give authority to the Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs, to destroy counterfeit devices.

H.R. 5698. An act to direct the Secretary of the Treasury to instruct the United States Executive Directors at the international financial institutions on United States policy regarding international financial institution assistance with respect to advanced wireless technologies.

H.R. 5918. An act to direct the Federal Communications Commission to issue reports after activation of the Disaster Information Reporting System and to make improvements to network outage reporting.

H.R. 6100. An act to amend title 18, United States Code, to clarify the criminalization of female genital mutilation, and for other purposes.

H.R. 6294. An act to require data sharing regarding protecting the homeless from coronavirus, and for other purposes.

H.R. 6735. An act to establish the Consumer and Investor Fraud Working Group to help protect consumers and investors from fraud during the COVID–19 pandemic, to assist consumers and investors affected by such fraud, and for other purposes.

H.R. 6934. An act to amend the CARES Act to require the uniform treatment of nationally recognized statistical rating organizations under certain programs carried out in response to the COVID–19 emergency, and for other purposes.

H.R. 7574. An act to amend the Public Health Service Act with respect to the Strategic National Stockpile, and for other purposes.

H.R. 7592. An act to require the Comptroller General of the United States to carry out a study on trafficking, and for other purposes.

The message also announced that the House has agreed to the following resolution:

H. Res. 1128. Resolution relative to the death of the Honorable Ruth Bader Ginsburg, Associate Justice of the Supreme Court of the United States.

At 8:29 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 8337. An act making continuing appropriations for fiscal year 2021, and for other purposes.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 1418. An act to restore the application of the Federal antitrust laws to the business of health insurance to protect competition and consumers; to the Committee on the Judiciary.

H.R. 1646. An act to require the Secretary of Health and Human Services to improve the detection, prevention, and treatment of mental health issues among public safety officers, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 1702. An act to waive the application fee for any special use permit for veterans' special events at war memorials on land, administered by the National Park Service in the District of Columbia and its environs, and for other purposes; to the Committee on Energy and Natural Resources.

H.R. 2271. An act to amend the Public Health Service Act to improve the health of children and help better understand and enhance awareness about unexpected sudden death in early life; to the Committee on Health, Education, Labor, and Pensions.

H.R. 3349. An act to authorize the Daughters of the Republic of Texas to establish the Republic of Texas Legation Memorial as a commemorative work in the District of Columbia, and for other purposes; to the Committee on Energy and Natural Resources.

H.R. 3465. An act to authorize the Fallen Journalists Memorial Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes; to the Committee on Energy and Natural Resources.

H.R. 3935. An act to amend title XIX of the Social Security Act to provide for the continuing requirement of Medicaid coverage of nonemergency transportation to medically necessary services; to the Committee on Finance.

H.R. 4564. An act to amend the Public Health Service Act to ensure the provision of high-quality service through the Suicide Prevention Lifeline, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 4585. An act to require the Secretary of Health and Human Services to conduct a national suicide prevention media campaign, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 4866. An act to amend the 21st Century Cures Act to provide for designation of institutions of higher education that provide research, data, and leadership on continuous manufacturing as National Centers of Excellence in Continuous Pharmaceutical Manufacturing, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 4957. An act to amend the Indian Child Protection and Family Violence Prevention Act; to the Committee on Indian Affairs.

H.R. 4995. An act to amend the Public Health Service Act to improve obstetric care and maternal health outcomes, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 5053. An act to exempt juveniles from the requirements for suits by prisoners, and for other purposes; to the Committee on the Judiciary.

H.R. 5309. An act to prohibit discrimination based on an individual's texture or style of hair; to the Committee on the Judiciary.

H.R. 5322. An act to establish or modify requirements relating to minority depository institutions, community development financial institutions, and impact banks, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 5546. An act to regulate monitoring of electronic communications between an incarcerated person in a Bureau of Prisons facility and that person's attorney or other legal representative, and for other purposes; to the Committee on the Judiciary.

H.R. 5567. An act to amend the Communications Act of 1934 to require the Federal Communications Commission to consider market entry barriers for socially disadvantaged individuals in the communications marketplace report under section 13 of such Act; to the Committee on Commerce, Science, and Transportation.

H.R. 5602. An act to authorize dedicated domestic terrorism offices within the Department of Homeland Security, the Department of Justice, and the Federal Bureau of Investigation to analyze and monitor domestic terrorist activity and require the Federal Government to take steps to prevent domestic terrorism; to the Committee on the Judiciary.

H.R. 5619. An act to authorize a pilot program to expand and intensify surveillance of self-harm in partnership with State and local public health departments, to establish a grant program to provide self-harm and suicide prevention services in hospital emergency departments, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 5663. An act to amend the Federal Food, Drug, and Cosmetic Act to give authority to the Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs, to destroy

counterfeit devices; to the Committee on Health, Education, Labor, and Pensions.

H.R. 5698. An act to direct the Secretary of the Treasury to instruct the United States Executive Directors at the international financial institutions on United States policy regarding international financial institution assistance with respect to advanced wireless technologies; to the Committee on Commerce, Science, and Transportation.

H.R. 5918. An act to direct the Federal Communications Commission to issue reports after activation of the Disaster Information Reporting System and to make improvements to network outage reporting; to the Committee on Commerce, Science, and Transportation.

H.R. 6100. An act to amend title 18, United States Code, to clarify the criminalization of female genital mutilation, and for other purposes; to the Committee on the Judiciary.

H.R. 6294. An act to require data sharing regarding protecting the homeless from coronavirus, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 6735. An act to establish the Consumer and Investor Fraud Working Group to help protect consumers and investors from fraud during the COVID–19 pandemic, to assist consumers and investors affected by such fraud, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 6934. An act to amend the CARES Act to require the uniform treatment of nationally recognized statistical rating organizations under certain programs carried out in response to the COVID–19 emergency, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 7574. An act to amend the Public Health Service Act with respect to the Strategic National Stockpile, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 7592. An act to require the Comptroller General of the United States to carry out a study on trafficking, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

MEASURES PLACED ON THE CALENDAR

The following bill was read the first and second times by unanimous consent, and placed on the calendar:

H.R. 139. An act to direct the Secretary of the Interior to conduct a special resource study of the site associated with the 1908 Springfield Race Riot in the State of Illinois.

MEASURES READ THE FIRST TIME

The following bills were read the first time:

H.R. 8337. An act making continuing appropriations for fiscal year 2021, and for other purposes.

S. 4653. A bill to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5478. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Final Rule for IN–11342: 2-propenoic acid, 2-methyl-, polymer with 2,5-furandione and 2,4,4-trimethyl-1-pentene, potassium sa'' (FRL No. 10003–65–OCSPP) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5479. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Inpyrfluxam; Pesticide Tolerances'' (FRL No. 10011–32–OCSPP) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Agriculture, Nutrition, and Forestry.

EC–5480. A communication from the Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Sexual Assault Prevention and Response Program Procedures'' (RIN0790–AK82) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Armed Services.

EC–5481. A communication from the Legislative Assistant to the Commandant, Headquarters of the United States Marine Corps, Department of Defense, transmitting, pursuant to law, a report relative to limitation on the physical move, integration, reassignment, or shift in responsibility of U.S. Marine Forces Northern Command; to the Committee on Armed Services.

EC–5482. A communication from the Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Vice Admiral Fredrick J. Roegge, United States Navy, and his advancement to the grade of vice admiral on the retired list; to the Committee on Armed Services.

EC–5483. A communication from the Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Commissary Agency Privacy Act Program'' (RIN0790–AK72) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Armed Services.

EC–5484. A communication from the Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Commissary Agency Act Program'' (RIN0790–AK72) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Armed Services.

EC–5485. A communication from the Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Collection from Third Party Payers of Reasonable Charges for Healthcare Services'' (RIN0720–AB68) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Armed Services.

EC–5486. A communication from the Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''TRICARE Coverage of Certain Medical Benefits in Response to the COVID–19 Pandemic'' (RIN0720–AB82) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Armed Services.

EC–5487. A communication from the Assistant Secretary of the Navy Performing the Duties of the Under Secretary of Defense (Comptroller/Chief Financial Officer), transmitting, pursuant to law, a report relative to Antideficiency Act (ADA) Violations; to the Committee on Appropriations.

EC–5488. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to significant foreign narcotics traffickers centered in Colombia that was declared in Executive Order 12978 of October 21, 1995; to the Committee on Banking, Housing, and Urban Affairs.

EC–5489. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to the situation in and in relation to Syria that was declared in Executive Order 13894 of October 14, 2019; to the Committee on Banking, Housing, and Urban Affairs.

EC–5490. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to Iran as declared in Executive Order 12957 of March 15, 1995; to the Committee on Banking, Housing, and Urban Affairs.

EC–5491. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Test Methods and Performance Specifications for Air Emission Sources'' (FRL No. 10012–11–OAR) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5492. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Quality State Implementation Plans; Approval and Promulgation of Implementation Plans; Utah; Infrastructure Requirements for the 2015 Ozone National Ambient Air Quality Standards'' (FRL No. 10013–92–Region 8) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5493. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Alabama; Air Quality Control, VOC Definition'' (FRL No. 10013–41–Region 4) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5494. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; California; Consumer Products Regulations'' (FRL No. 10013–66–Region 9) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5495. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; California; Feather River Air Quality Management'' (FRL No. 10012–89–Region 9) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5496. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Georgia; Permit Requirements'' (FRL No. 10013–22–Region 4) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5497. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; Wisconsin; VOC RACT for the Wisconsin Portion of the Chicago-Naperville, Illinois-Indiana-Wisconsin Area'' (FRL No. 10011–74–Region 5) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5498. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Amendments Related to Marine Diesel Engine Emission Standards'' (FRL No. 10013–36–OAR) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5499. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Limited Approval and Limited Disapproval of California Air Plan Revisions; San Diego County Air Pollution Control District; Stationary Source Permits'' (FRL No. 10013–14–Region 9) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5500. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Commonwealth of Kentucky: Final Approval of State Underground Storage Tank Program'' (FRL No. 10013–46–Region 4) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5501. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Oil and Natural Gas Sector: Emission Standards for New, Reconstructed, and Modified Sources Reconsideration'' (FRL No. 10013–60–OAR) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5502. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Oil and Natural Gas Sector: Emission Standards for New, Reconstructed, and Modified Sources Review'' (FRL No. 10012–11–OAR) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5503. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''PM10 Maintenance Plan and Redesignation Request; Imperial Valley Planning Area; California'' (FRL No . 10014–02–Region 9) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Environment and Public Works.

EC–5504. A communication from the Secretary of the Treasury, transmitting, pursuant to section 1705(e)(6) of the Cuban Democracy Act of 1992, as amended by Section 102(g) of the Cuban Liberty and Democratic Solidarity (LIBERTAD) Act of 1996, a semiannual report relative to telecommunications-related payments made to Cuba during the period from January 1, 2020 through June 30, 2020; to the Committee on Foreign Relations.

EC–5505. A communication from the Legal Counsel, Equal Employment Opportunity Commission, transmitting, pursuant to law, the report of a rule entitled ''Procedural Regulation on Issuing Guidance'' (RIN3046–AB18) received in the Office of the President of the Senate on September 16, 2020; to the Committee on Health, Education, Labor, and Pensions.

EC–5506. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Fiscal Year 2019 Annual Progress Report to Congress on the C.W. Bill Young Cell Transplantation Program and the National Cord Blood Inventory Program''; to the Committee on Health, Education, Labor, and Pensions.

EC–5507. A communication from the Inspector General, Railroad Retirement Board, transmitting, pursuant to law, a report relative to the Office of Inspector General's budget request for fiscal year 2022; to the Committee on Health, Education, Labor, and Pensions.

EC–5508. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''2019 Annual Report to Congress on the Native Hawaiian Revolving Loan Fund''; to the Committee on Indian Affairs.

EC–5509. A communication from the Federal Register Liaison Officer, Office of the Secretary, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Intelligence Agency Privacy Program'' (RIN0790–AK65) received in the Office of the President of the Senate on September 15, 2020; to the Committee on the Judiciary.

EC–5510. A communication from the Section Chief of the Diversion Control Division, Drug Enforcement Administration, Department of Justice, transmitting, pursuant to law, the report of a rule entitled ''Implementation of the Agriculture Improvement Act of 2018'' (RIN1117–AB53) received in the Office of the President of the Senate on September 16, 2020; to the Committee on the Judiciary.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. RISCH for the Committee on Foreign Relations.

Alex Nelson Wong, of New Jersey, to be Alternate Representative of the United States of America for Special Political Affairs in the United Nations, with the rank of Ambassador.

Nominee: Alex N. Wong.

Post: Alternate Representative to the UN for Special Political Affairs.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributors, amount, date, and donee:

1. Self: $250.00, 03/14/2016, Mike Gallagher for Wisconsin.

2. Candice Wong (spouse): None, None, None.

3. Chase Wong (child): None, None, None; Avery Wong (child): None, None, None.

4. Robert C.K. Wong (father): None, None, None; Grace L. Wong (mother): None, None, None.

5. Lily Chan (grandmother) (deceased): None, None, None; Wong Kam Wai (grandfather) (deceased): None, None, None; Chan Chuen Chai (grandmother) (deceased): None, None, None; Lau Chee Kan (grandfather) (deceased): None, None, None.

6. Robert K. Wong (brother): None, None, None; Elizabeth Leung (sister): None, None, None; Kirstin ''Kirby'' Leung (sister's spouse): None, None, None.

Alex Nelson Wong, of New Jersey, to be an Alternate Representative of the United States of America to the Sessions of the General Assembly of the United Nations during his tenure of service as Alternate Representative of the United States of America for Special Political Affairs in the United Nations.

Nominee: Alex N. Wong.

Post: Alternate Representative to the UN for Special Political Affairs.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $250.00, 03/14/2016, Mike Gallagher for Wisconsin.

2. Candice Wong (spouse): None, None, None.

3. Chase Wong (child): None, None, None; Avery Wong (child): None, None, None.

4. Robert C. K. Wong (father): None, None, None; Grace L. Wong (mother): None, None, None.

5. Lily Chan (grandmother) (deceased): None, None, None; Wong Kam Wai (grandfather) (deceased): None, None, None; Chan Chuen Chai (grandmother) (deceased): None, None, None; Lau Chee Kan (grandfather) (deceased): None, None, None.

6. Robert K. Wong (brother): None, None, None. Elizabeth Leung (sister): None, None, None. Kirstin ''Kirby'' Leung (sister's spouse): None, None, None.

Kenneth R. Weinstein, of the District of Columbia, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Japan.

Nominee: Kenneth R. Weinstein.

Post: Ambassador.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $500, 3/31/18, Leibsohn/Congress; $500, 1/16/16, Rubio/President.

2. Spouse: Amy Kauffman: None.

3. Children and Spouses: Raina Weinstein: $1.00, 3/18/19, John Delaney/President. Raina Weinstein: $1.00, 3/18/19, John Delaney/President. Raina Weinstein: $10.00, 2/7/20, Elizabeth Warren/President. Raina Weinstein: $10.00, 2/16/20, Elizabeth Warren/President. Harrison Weinstein: None. Eden Weinstein: None.

4. Parents: Deceased; Victor & Hannelore Weinstein.

5. Grandparents: Deceased; Max and Sarah Weinstein, Max and Frieda Rosenberg.

6. Brothers and Spouses: Mitchell Weinstein, deceased; Alan and Lisa Weinstein, None; Stuart Weinstein, None; Jeffrey and Deborah Weinstein, None.

7. Sisters and Spouses: None.

Erik Paul Bethel, of Florida, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Panama.

Nominee: Erik Bethel.

Post: US Ambassador Panama.

(The following is a list of all members of my immediate family and their spouses. I

have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: $505, Feb 12, 2020, Michelle Caruso-Cabrera; $100, Mar 26, 2020, Michelle Caruso-Cabrera.

3. Children and Spouses: Ana Cristina (age 13), Nicolas (age 11), Francisca (age 8), None.

4. Parents: Paul Bethel—deceased; Diana Bethel, None.

5. Grandparents: John Bethel—deceased; Dora Bethel—deceased; Anibal Gonzalez—deceased; Esperanza Gonzalez—deceased.

6. Brothers and Spouses: N/A I am an only child.

7. Sisters and Spouses: N/A.

Julie D. Fisher, of Tennessee, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Belarus.

Nominee: Julie D. Fisher.

Post: Republic of Belarus.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self, none.

2. Spouse: David M. Fisher: none.

3. Children and Spouses: n/a.

4. Parents: Robert W. Davis $100.00, 2018, Johnny Isakson; $100.00, 2018, Karen Handel.

5. Grandparents: Robert H. Davis—deceased; Margaret W. Davis—deceased; George L. Sadtler—deceased; Alice R. Sadtler—deceased.

6. Brothers and Spouses: Gavin H. Davis, none; Becky Lynn Davis, none.

7. Sisters and Spouses: Paige W. Davis, none; Wesley Turbeville, $250.00, 2019, Abigail Spanberger; $250.00, 2018, Ken Harbaugh; $250.00, 2018, Amy McGrath.

Manisha Singh, of Florida, to be Representative of the United States of America to the Organization for Economic Cooperation and Development, with the rank of Ambassador.

Nominee: Manisha Singh.

Post: US Ambassador to the USOECD.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $2600, 11/03/2013, Sullivan for US Senate; $1000, 9/21/2014, Sullivan for US Senate; $250, 6/6/2014, Ed Gillespie for Senate; $250, 6/24/2012, Romney for President.

2. Spouse: N/A.

3. Children and Spouses: N/A.

4. Parents: Megh Singh (Father), No contributions; Satya Singh (Mother), No contributions.

5. Grandparents: N/A.

6. Brothers and Spouses: N/A.

7. Sisters and Spouses: Mani Singh Young (sister), No contributions; Damon Young (brother-in-law), No contributions.

Thomas Laszlo Vajda, of Arizona, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Union of Burma.

Nominee: Thomas Laszlo Vajda.

Post: Union of Burma.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, donee:

1. Self: None.

2. Spouse: Amelia L. Sebes: $100, March 2016, Hillary Clinton; $5, May 2016, Hillary Clinton; $25, August 2016, Hillary Clinton.

3. Children and Spouses: Bette S. Vajda (child): None; Emily S. Vajda (child): None.

4. Parents: Gabor K. Vajda (father): None; Eva I. Vajda (mother): $100, October 2018, Martha McSally; $100, June 2019, Martha McSally; $100, June 2019, James Jordan.

5. Grandparents: Elizabeth Varga (grandmother): None; Laszlo Varga (grandfather, deceased): None; Laszlo Vajda (grandfather, deceased): None; Anna Vajda (grandmother, deceased): None.

6. Brothers and Spouses: N/A.

7. Sisters and Spouses: Eva E. Cruz-Aedo (sister): $15, November 2016, ActBlue designated for Kamala Harris; Carlos R. Cruz-Aedo (brother-in-law): $10, November 2016, ActBlue designated for California Democratic Party; $25, December 2019, ActBlue designated for Biden for President; $15, February 2020, ActBlue designated for Biden for President; $25, March 2020, ActBlue designated for Biden for President; $5, March 2020, ActBlue designated for Biden for President.

Keith W. Dayton, of Washington, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to Ukraine.

Nominee: Keith W. Dayton.

Post: Ambassador Ukraine.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: None.

3. Children and Spouses: Elizabeth Dayton Mesch: $500, 2015, Ted Cruz; $50, 2015, Carly Fiorina; $50, 2016, Ted Cruz; $50, 2016, Marco Rubio; $1300, 2016, Donald Trump. Charles Dayton: None. Nicholas Dayton: $100, 2018, Ted Cruz; $500, 2018, Chris Corry (WA).

4. Parents: Charles S. Dayton—deceased; Ruth Palmer Kilbourne—deceased.

5. Grandparents: Walter Palmer—deceased; Cynthia Palmer—deceased; Charles F. Dayton—deceased; Flora W. Dayton—deceased.

6. Brothers and Spouses: None.

7. Sisters and Spouses: Kathleen Caruthers, None.

Melanie Harris Higgins, of Georgia, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Burundi.

Nominee: Higgins, Melanie Harris.

Post: Nominated to be U.S. Ambassador to the Republic of Burundi.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: None.

3. Children and Spouses: N/A.

4. Parents: Albert Lewis Harris and Jacqueline Mitchell Harris: None.

5. Grandparents: James Harris, Martha Harris, William Mitchell, Margaret Mitchell: Deceased.

6. Brothers and Spouses: N/A.

7. Sisters and Spouses: Heather Harris Yates & Nathan David Yates: None.

Jeanne Marie Maloney, of Virginia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Kingdom of Eswatini.

Nominee: Jeanne M. Maloney.

Post: Kingdom of Eswatini.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: None.

2. Spouse: Felix Andrew Dowdy: $200, 2016, John Kasich Campaign.

3. Children and Spouses: Katherine Dowdy (daughter): None. Daniel Dowdy (son): None.

4. Parents: Janet Maloney—deceased; Robert Maloney—deceased.

5. Grandparents: Margaret Riney—deceased; Arthur Riney—deceased; Marie Maloney—deceased; Joseph Maloney—deceased.

6. Brothers and Spouses: Michael Maloney (brother): None; Cathy Maloney (spouse): None; Daniel Maloney (brother): None; Linda Maloney (spouse): $25, 3–20–20, ACTBLUE Jaime Harrison for U.S. Senate; $25, 3–20–20 ACTBLUE, John Lewis for Congress; $50, 2–08–20 ACTBLUE Stop Republicans; $2.50, 12–24–19, ACTBLUE; $50, 12–24–19, ACTBLUE Jaime Harrison for U.S. Senate; $12.50, 12–06–19, ACTBLUE Catherine Cortez Masto for Senate; $12.50, 12–06–19, ACTBLUE Sara Gideon for Maine; $50, 10–24–19, ACTBLUE Jaime Harrison for U.S. Senate; $28, 10–05–19, Warren for President, Inc.; $200, 10–24–18, Drew Edmondson for OK Gov.; $50, 10–24–18, ACTBLUE Congressional Black Caucus PAC; $100, 1–19–16, ACTBLUE Bernie Sanders 2016 Campaign; $750, 2016, Forrest Bennett, OK House District 092; $40, 12–16–15, ACTBLUE Democracy for America.

7. Sisters and Spouses: Joanne Maloney—deceased.

Jonathan Pratt, of California, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Djibouti.

Nominee: Jonathan Pratt.

Post: Djibouti.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $0.

2. Spouse: $0.

3. Children and Spouses: NA; None.

4. Parents and Spouses: Alan Pratt/Cynthia Good, $55.00, 2017; Elizabeth Warren, $200.00, 2017; Act Blue, $16.50, 2016; Act Blue, Cynthia Pratt, $0.

5. Grandparents: Deceased, NA.

6. Brothers and Spouses: David Pratt/Doreen Pratt, $0; Alden Good, $0.

7. Sisters and Spouses: Natalie Good, $0.

James Broward Story, of South Carolina, a Career Member of the Senior Foreign Service, Class of Counselor, to be Ambassador Extraordinary and Plenipotentiary of the

United States of America to the Bolivarian Republic of Venezuela.

Nominee: James Broward Story.

Post: Venezuela Affairs Unit.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: James Broward Story, none.

2. Spouse: Susan West Story, none.

3. Children and Spouses: James McKelvey Story, none.

4. Parents: Wayne Joseph Story, none, deceased; Katherine Annette Younginer, none.

5. Grandparents: James Wilson Younginer, none, deceased; Berniece Bown Ulmer, none.

6. Brothers and Spouses:

7. Sisters and Spouses: Elaine Arden Helmly, none.

William A. Douglass, of Florida, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Commonwealth of The Bahamas.

Nominee: William A. Douglass III.

Post: Ambassador Extraordinary and Plenipotentiary of the United States of America to the Commonwealth of The Bahamas.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

Self: $25,000, 5/27/2015, Right to Rise USA; $33,900, 7/12/2018, Republican Nat'l Comm.; $16,100, 7/12/2018, Republican Nat'l Comm.; $360,600, 7/26/2019, Trump Victory PAC; $106,500,* 7/26/2019, Republican Nat'l Comm.; $106,500,* 7/26/2019, Republican Nat'l Comm.; $106,500,* 7/26/2019, Republican Nat'l Comm.; $35,500,* 7/26/2019, Republican Nat'l Comm.; $2,800,* 7/26/2019, Donald J. Trump for Pres; $2,800,* 7/26/2019, Donald J. Trump for Pres.

*Per the FEC website, these amounts were transferred from the $360,600 contribution to the Trump Victory PAC.

Spouse: Kristin T. Blundo: none.

Children: William T. Douglass: none. Elizabeth T. Douglass: none.

Siblings: John Duke & Julie Lewis—Brother & Spouse: none. William T. Duke & Madonna Badger—Brother & Spouse: none. Terry Marsh & John B. Marsh—Sister & Spouse: none. Victoria Douglass—Sister: none. Fiona Douglass & Scott Gray—Sister & Spouse: none.

Michael A. McCarthy, of Virginia, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Liberia.

Nominee: Michael A. McCarthy.

Post: Ambassador to the Republic of Liberia.

(The following is a list of all members of my immediate family and their spouses. have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, donee:

1. Self: none.

2. Spouse: Sandra Acevedo McCarthy: none.

3. Children and Spouses: Camille Christine McCarthy: $155.10, 02/2016–05/2016, Act Blue; $25, 02/2017, Mejia for Congress; $180, 2017–2019, N.C. Green Party; $60, 2017–2019, West N.C. Green Pty; $10, 07/2019, Dario for America; $20.00, 11/11/2019, Dario for America; $10.00, 07/27/2019, Dario for America; $1.00, 7/12/2019, Act Blue. Claire Patrice McCarthy: none.

4. Parents: John R. McCarthy—deceased; Helen H. McCarthy—deceased.

5. Grandparents: James McCarthy—deceased; Gertrude C. McCarthy—deceased; Brig. Gen. (retired) William E. House—deceased; Evelyn House—deceased.

6. Brothers and Spouses: William J. McCarthy, Ph.D., Bambi B. Young, Ph.D., $100, 3/14/2016, Elizabeth for MA; $100, 3/31/2016, Tammy Duckworth; $50, 4/17/2016, Catherine C. Masto; $100, 7/23/2016, Maggie Hassan; $100, 9/30/2016, League of Conservation Voters; $100, 10/16/2016, Russ Feingold; $50, 10/23/2016, Catherine C. Masto; $100, 11/15/2016, Moveon.org; $50 11/6/2016, Catherine C. Masto; $100, 11/7/2016, Maggie Hassan; $50, 3/10/2017, Jon Ossoff; $50, 4/10/2017, Jon Ossoff; $180, 4/27–12/31 2017, ACLU; $50, 5/18/2017, Rob Quist; $50, 5/30/2017, Jon Ossoff; $50, 6/27/2017, Progressive Portland; $50, 9/25/2017, Progressive Portland; $75, 11/3/2017, Ralph Northam; $25, 11/2/2017, Tim Kaine; $100, 11/7/2019, NCEC; $75, 12/2/2017, Doug Jones; $25, 12/2/2017, Maggie Hassan; $75, 12/8/2017, Doug Jones; $100, 12/2017–1/2018, Color of Change; $240, 12/31/2018, ACLU; $100, 2/27/2018, Connor Lamb; $50, 3/12/2018, Connor Lamb; $100, 4/1/2018, NDRC; $50, 4/18/2019, Hirai Tipirneny; $50, 6/2/2019, Katie Porter; $100, 6/8/2018, Jacky Rosen; $100, 7/6/2018, McCaskill for MO; $50, 8/1/2018, Danny O'Connor; $50, 8/6/2018, Danny O'Connor; $100, 10/2/2018, Moveon.org; $50, 10/11/2018, Heidi for Senate; $100, 10/15/2018, Harley Rouda; $100, 10/15/2018, Donnelly for Indiana; $100, 10/18/2018, Jacky Rosen; $100, 10/25/2018, Cisneros for Congress; $100, 10/25/2018, Sinema for Senate; $100, 10/27/2018, Color of Change; $50, 10/31/2018, Andy Kim; $50, 10/31/2018, Randy Brice; $50, 11/4/2018, Ammar Campa-Najjar; $50, 11/08/2018, Bill Nelson Recount; $50, 11/24/2018, Mike Espy; $240, 12/2019–3/2019, ACLU; $100, 3/10/2019, League of Conservation Voters; $100, 3/11/2019, Common Cause; $100, 8/5/2019, Dan Mccready; $50, 9/5/2019, Dan Mccready; $25, 9/15/2019, Am. Cancer Society Social Action; $100, 9/27/2019, Sara Gideon; $100, 9/27/2020, ACTBLUE; $5, 9/27/2019, ACTBLUE; $20, 12/17/2019, ACTBLUE; $100, 2/7/2020, Warren for Pres; $5, 2/7/2020, ACTBLUE; $100, 2/7/2020, ACTBLUE; $100, 2/13/2020, ACTBLUE; $5, 2/13/2020, ACTBLUE; $100, 2/21/2020, Warren for Pres; $100, 2/21/2020, ACTBLUE; $2.5, 2/21/2020, ACTBLUE; $75, 2/25/2020, ACTBLUE; $3, 2/25/2020, ACTBLUE; $75, 2/25/2020, ACTBLUE; $3, 3/29/2020, ACTBLUE; $100, 3/29/2020, ACTBLUE; $3, 4/21/2020, ACTBLUE; $100, 4/21/2020, ACTBLUE; $100, 4/25/2020, ACTBLUE; $3, 4/25/2020, ACTBLUE. Christopher E. McCarthy—deceased; John R. McCarthy, Jr., none; Kathleen McCarthy, none.

7. Sisters and Spouses: Anne Pearcy, none; Laird Pearcy, none; Elizabeth McDermott—deceased; John McDermott, $50, 10/2018, Doug Jones; Margaret McCarthy—deceased January 2020; $154, 6/2015–6/2019, Act Blue; $20, 2019, Elizabeth Warren; $20, 2019, Pete Budigiege; $20, 2019, Kamela Harris; $100, 2019, Ditch Mitch; $700, 2016, Alexis Jimenez.

Barbera Hale Thornhill, of California, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Singapore.

Nominee: Barbera Hale Thornhill.

Post: Ambassador for Republic of Singapore.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, amount, date, and donee:

1. Self: $2,800.00, 03/08/2019, Liz Cheney for Wyoming; $2,700.00, 10/02/2018, Romney for Utah, Inc.; $2,500.00, 05/03/2018, Kevin McCarthy for Congress; $5,000.00, 05/03/2018, Protect the House; $2,500.00, 05/03/20018, Great America Committee; $2,700.00, 03/05/2018, Donald J. Trump for President, Inc.; $2,700.00, 03/05/2018, Donald J. Trump for President, Inc.; $35,000.00, 03/05/2018, Trump Victory; $1,000.00, 11/13/2017, McHenry for Congress; 33,400.00, 12/19/2016, Republican National Committee; $700.00, 10/27/2016, Marco Rubio for Senate 2016; $1,000.00, 10/19/2016, Heck Yes! Victory Fund; $1,000.00, 10/19/2016, Friends of Joe Heck; $2,000.00, 08/16/2016, Marco Rubio for Senate 2016; $1,000.00, 10/22/2015; Marco Rubio for President; $2,700.00, 09/16/2015, JEB 2016, Inc.; $1,000.00, 06/19/2015; Marco Rubio for President; $1,000.00, 01/19/2015, Rite to Rice PAC, Inc.

Family: None.

2. Spouse: Divorced.

3. Children and Spouses: Hale Thornhill-Wilson, None.

4. Parents: Dr. Edwin Hale Thornhill, Deceased; Dr. Patricia Sills Thornhill, Deceased.

5. Grandparents Names: Mr. & Mrs. James Nicholas Sills, Both deceased; Dr. & Mrs. George Tudor Thornhill, Both deceased.

6. Brothers and Spouses: None.

7. Sisters and Spouses: Mrs. Patricia Thornhill Edwards, None; Mr. Joseph Roger Edwards, $20.00, 06/21/2016, Donald J. Trump for President, Inc.

Edward A. Burrier, of the District of Columbia, to be Deputy Chief Executive Officer of the United States International Development Finance Corporation.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. MURPHY:

S. 4637. A bill to amend the Internal Revenue Code of 1986 to allow a credit against income tax for equity investments by angel investors; to the Committee on Finance.

By Mr. SCHUMER (for himself, Mrs. MURRAY, Mr. VAN HOLLEN, Ms. BALDWIN, Mr. SCHATZ, Mr. BLUMENTHAL, Mrs. FEINSTEIN, Mr. CASEY, Mr. MERKLEY, Mrs. GILLIBRAND, Mrs. SHAHEEN, Mr. REED, Mr. MURPHY, Mr. BROWN, Mr. PETERS, Mr. MARKEY, Ms. WARREN, Mr. MENENDEZ, Mr. DURBIN, Ms. SMITH, Ms. DUCKWORTH, Mr. KAINE, Ms. ROSEN, Ms. HIRONO, Mr. LEAHY, Mr. CARDIN, Mr. WHITEHOUSE, Ms. CORTEZ MASTO, Ms. KLOBUCHAR, Ms. STABENOW, Mr. HEINRICH, Mr. WYDEN, Ms. CANTWELL, and Mr. SANDERS):

S. 4638. A bill to preserve and promote integrity in scientific decision-making at the Department of Health and Human Services; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HAWLEY:

S. 4639. A bill to amend the Internal Revenue Code of 1986 to provide a refundable tax credit for expenses relating to school disruption, to provide a monthly payment to families during COVID–19, and for other purposes; to the Committee on Finance.

By Mr. BENNET (for himself and Ms. COLLINS):

S. 4640. A bill to amend the Controlled Substances Act to require physicians and other prescribers of controlled substances to complete training on treating and managing patients with opioid and other substance use disorders, which shall also satisfy certain training requirements to receive a waiver for dispensing narcotic drugs for maintenance or detoxification treatment, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BENNET:

S. 4641. A bill to amend the Mineral Leasing Act to provide for transparency and landowner protections in the conduct of lease sales under that Act, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. BENNET:

S. 4642. A bill to amend the Mineral Leasing Act to ensure sufficient bonding and complete and timely reclamation of land and water disturbed by Federal and Indian oil and gas production, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. SHAHEEN (for herself and Mrs. CAPITO):

S. 4643. A bill to require the Secretary of Agriculture to establish a forest incentives program to keep forests intact and sequester carbon on private forest land of the United States, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. JONES:

S. 4644. A bill to amend the Federal Deposit Insurance Act to ensure that certain custodial deposits of well capitalized insured depository institutions are not considered to be funds obtained by or through deposit brokers, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. BALDWIN:

S. 4645. A bill to improve the requirements for commercial air tours and commercial air tour operators, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mr. PAUL (for himself, Mr. WYDEN, and Mr. PETERS):

S. 4646. A bill to repeal certain war powers of the President under the Communications Act of 1934; to the Committee on Commerce, Science, and Transportation.

By Mrs. FISCHER:

S. 4647. A bill to amend the Packers and Stockyards Act, 1921, to establish a cattle contract library, and for other purposes; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. COTTON:

S. 4648. A bill to amend the Controlled Substances Act to list isotonitazene as a schedule I controlled substance; to the Committee on the Judiciary.

By Mrs. LOEFFLER (for herself, Mr. LEE, Mr. LANKFORD, Mrs. BLACKBURN, and Mr. COTTON):

S. 4649. A bill to provide that for purposes of determining compliance with title IX of the Education Amendments of 1972 in athletics, sex shall be recognized based solely on a person's reproductive biology and genetics at birth; to the Committee on Health, Education, Labor, and Pensions.

By Mr. SULLIVAN (for himself and Ms. MURKOWSKI):

S. 4650. A bill to amend the Migratory Bird Treaty Act to clarify the treatment of authentic Alaska Native articles of handicraft containing nonedible migratory bird parts, and for other purposes; to the Committee on Environment and Public Works.

By Mr. VAN HOLLEN (for himself and Mr. CARDIN):

S. 4651. A bill to amend title 49, United States Code, to establish a National Transit Frontline Workforce Training Center, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. KLOBUCHAR:

S. 4652. A bill to require the United States Postal Service to treat election mail as first-class mail and deliver such mail at no cost to the sender, and for other purposes; to the Committee on Rules and Administration.

By Mr. SCHUMER:

S. 4653. A bill to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act; read the first time.

By Mr. PORTMAN (for himself, Ms. STABENOW, Mr. DURBIN, Ms. KLOBUCHAR, Mr. PETERS, Ms. BALDWIN, Mr. YOUNG, Mr. BROWN, Ms. SMITH, and Ms. DUCKWORTH):

S. 4654. A bill to amend the Water Resources Development Act of 1986 to require that at least 12 percent of amounts appropriated out of the Harbor Maintenance Trust Fund are used for projects on the Great Lakes Navigation System, and for other purposes; to the Committee on Environment and Public Works.

By Mr. PERDUE:

S. 4655. A bill to make improvements to the Main Street Lending Program, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Ms. HIRONO:

S. 4656. A bill to amend title 38, United States Code, to provide for a reduction in certain loan fees for certain veterans affected by major disasters; to the Committee on Veterans' Affairs.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. SCHUMER (for himself, Ms. WARREN, Mr. BROWN, Mr. DURBIN, Mr. SANDERS, Ms. DUCKWORTH, Mr. BLUMENTHAL, Mr. VAN HOLLEN, Mr. MERKLEY, Mr. MARKEY, Mr. BOOKER, Mr. MENENDEZ, and Mr. WYDEN):

S. Res. 711. A resolution calling on the President of the United States to take executive action to broadly cancel Federal student loan debt; to the Committee on Health, Education, Labor, and Pensions.

By Mr. BROWN (for himself, Mrs. CAPITO, Mr. VAN HOLLEN, and Mr. DURBIN):

S. Res. 712. A resolution designating the week of September 21 through September 25, 2020, as ''Community School Coordinators Appreciation Week''; to the Committee on the Judiciary.

ADDITIONAL COSPONSORS

S. 428

At the request of Ms. KLOBUCHAR, the names of the Senator from New York (Mrs. GILLIBRAND), the Senator from Rhode Island (Mr. WHITEHOUSE) and the Senator from Connecticut (Mr. MURPHY) were added as cosponsors of S. 428, a bill to lift the trade embargo on Cuba.

S. 633

At the request of Mr. MORAN, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 633, a bill to award a Congressional Gold Medal to the members of the Women's Army Corps who were assigned to the 6888th Central Postal Directory Battalion, known as the ''Six Triple Eight''.

S. 1381

At the request of Mr. BOOZMAN, the name of the Senator from Indiana (Mr. BRAUN) was added as a cosponsor of S. 1381, a bill to modify the presumption of service connection for veterans who were exposed to herbicide agents while serving in the Armed Forces in Thailand during the Vietnam era, and for other purposes.

S. 1418

At the request of Mr. MURPHY, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 1418, a bill to establish the Strength in Diversity Program, and for other purposes.

S. 1687

At the request of Mrs. HYDE-SMITH, the name of the Senator from Louisiana (Mr. CASSIDY) was added as a cosponsor of S. 1687, a bill to amend the Internal Revenue Code of 1986 to provide a special rule for certain casualty losses of uncut timber.

S. 1727

At the request of Mr. COONS, the names of the Senator from Arkansas (Mr. BOOZMAN) and the Senator from Maryland (Mr. CARDIN) were added as cosponsors of S. 1727, a bill to establish the Partnership Fund for Peace to promote joint economic development and finance ventures between Palestinian entrepreneurs and companies and those in the United States and Israel to improve economic cooperation and people-to-people peacebuilding programs, and to further shared community building, peaceful coexistence, dialogue, and reconciliation between Israelis and Palestinians.

S. 1791

At the request of Mrs. GILLIBRAND, the name of the Senator from New Mexico (Mr. UDALL) was added as a cosponsor of S. 1791, a bill to prohibit discrimination on the basis of religion, sex (including sexual orientation and gender identity), and marital status in the administration and provision of child welfare services, to improve safety, well-being, and permanency for lesbian, gay, bisexual, transgender, and queer or questioning foster youth, and for other purposes.

S. 2008

At the request of Mrs. MURRAY, the names of the Senator from Michigan (Mr. PETERS), the Senator from New Mexico (Mr. UDALL) and the Senator from Colorado (Mr. BENNET) were added as cosponsors of S. 2008, a bill to prohibit, as an unfair or deceptive act or practice, commercial sexual orientation conversion therapy, and for other purposes.

S. 2645

At the request of Mrs. BLACKBURN, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. 2645, a bill to prove that

the Federal Communications Commission and communications service providers regulated by the Commission under the Communications Act of 1934 shall not be subject to certain provisions of the National Environmental Policy Act of 1969 and the National Historic Preservation Act with respect to the construction, rebuilding, or hardening of communications facilities following a major disaster or an emergency declared by the President, and for other purposes.

S. 3072

At the request of Mrs. HYDE-SMITH, the names of the Senator from Texas (Mr. CRUZ) and the Senator from Iowa (Ms. ERNST) were added as cosponsors of S. 3072, a bill to amend the Federal Food, Drug, and Cosmetic Act to prohibit the approval of new abortion drugs, to prohibit investigational use exemptions for abortion drugs, and to impose additional regulatory requirements with respect to previously approved abortion drugs, and for other purposes.

S. 3451

At the request of Mr. SCOTT of South Carolina, the names of the Senator from North Carolina (Mr. TILLIS) and the Senator from New Hampshire (Mrs. SHAHEEN) were added as cosponsors of S. 3451, a bill to improve the health and safety of Americans living with food allergies and related disorders, including potentially life-threatening anaphylaxis, food protein-induced enterocolitis syndrome, and eosinophilic gastrointestinal diseases, and for other purposes.

S. 4014

At the request of Mr. CARDIN, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 4014, a bill to provide for supplemental loans under the Paycheck Protection Program.

S. 4086

At the request of Mr. BOOZMAN, the names of the Senator from Tennessee (Mrs. BLACKBURN) and the Senator from Indiana (Mr. YOUNG) were added as cosponsors of S. 4086, a bill amend title 38, United States Code, to revise the definition of Vietnam era for purposes of the laws administered by the Secretary of Veterans Affairs, and for other purposes.

S. 4150

At the request of Mr. REED, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 4150, a bill to require the Secretary of the Treasury to provide assistance to certain providers of transportation services affected by the novel coronavirus.

At the request of Ms. COLLINS, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of S. 4150, supra.

S. 4152

At the request of Mr. HOEVEN, the name of the Senator from Idaho (Mr. RISCH) was added as a cosponsor of S. 4152, a bill to provide for the adjustment or modification by the Secretary of Agriculture of loans for critical rural utility service providers, and for other purposes.

S. 4290

At the request of Mr. CORNYN, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 4290, a bill to provide much needed liquidity to America's job creators.

S. 4360

At the request of Mr. MURPHY, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 4360, a bill to divert Federal funding away from supporting the presence of police in schools and toward evidence-based and trauma informed services that address the needs of marginalized students and improve academic outcomes, and for other purposes.

S. 4511

At the request of Mr. MORAN, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 4511, a bill to make certain improvements in the laws administered by the Secretary of Veterans Affairs relating to education, burial benefits, and other matters, and for other purposes.

S. 4520

At the request of Mrs. LOEFFLER, the name of the Senator from North Carolina (Mr. TILLIS) was added as a cosponsor of S. 4520, a bill to transfer the responsibility of verifying small business concerns owned and controlled by veterans or service-disabled veterans to the Small Business Administration, and for other purposes.

S. 4571

At the request of Mr. PERDUE, his name was added as a cosponsor of S. 4571, a bill to extend certain deadlines for the 2020 decennial census.

S. 4593

At the request of Mr. BOOKER, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 4593, a bill to award posthumously the Congressional Gold Medal to Emmett Till and Mamie Till-Mobley.

S. 4594

At the request of Ms. COLLINS, her name was added as a cosponsor of S. 4594, a bill to amend title 38, United States Code, to improve and to expand eligibility for dependency and indemnity compensation paid to certain survivors of certain veterans.

S. 4618

At the request of Mr. PORTMAN, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 4618, a bill making emergency supplemental appropriations for disaster relief for the fiscal year ending September 30, 2020, and for other purposes.

S. 4634

At the request of Mr. WICKER, the names of the Senator from North Carolina (Mr. TILLIS), the Senator from Georgia (Mr. PERDUE), the Senator from Missouri (Mr. BLUNT), the Senator from Texas (Mr. CORNYN), the Senator from Idaho (Mr. RISCH) and the Senator from Alabama (Mr. JONES) were added as cosponsors of S. 4634, a bill to provide support for air carrier workers, and for other purposes.

S. CON. RES. 9

At the request of Mr. ROBERTS, the name of the Senator from Missouri (Mr. HAWLEY) was added as a cosponsor of S. Con. Res. 9, a concurrent resolution expressing the sense of Congress that tax-exempt fraternal benefit societies have historically provided and continue to provide critical benefits to the people and communities of the United States.

S. RES. 578

At the request of Mr. WYDEN, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of S. Res. 578, a resolution condemning the Government of Iran's state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 672

At the request of Mr. GRAHAM, the names of the Senator from Arkansas (Mr. COTTON), the Senator from Indiana (Mr. BRAUN), the Senator from Arkansas (Mr. BOOZMAN), the Senator from Tennessee (Mrs. BLACKBURN), the Senator from Arizona (Ms. MCSALLY), the Senator from Alaska (Mr. SULLIVAN) and the Senator from Georgia (Mr. PERDUE) were added as cosponsors of S. Res. 672, a resolution designating September 2020 as National Democracy Month as a time to reflect on the contributions of the system of government of the United States to a more free and stable world.

At the request of Mrs. FEINSTEIN, the names of the Senator from New Mexico (Mr. UDALL), the Senator from Maine (Mr. KING), the Senator from Illinois (Ms. DUCKWORTH) and the Senator from Vermont (Mr. LEAHY) were added as cosponsors of S. Res. 672, supra.

S. RES. 705

At the request of Ms. COLLINS, the name of the Senator from Ohio (Mr. PORTMAN) was added as a cosponsor of S. Res. 705, a resolution proclaiming the week of September 21 through September 25, 2020, to be ''National Clean Energy Week''.

S. RES. 709

At the request of Mr. GRAHAM, the names of the Senator from North Carolina (Mr. BURR) and the Senator from South Dakota (Mr. ROUNDS) were added as cosponsors of S. Res. 709, a resolution expressing the sense of the Senate that the August 13, 2020, and September 11, 2020, announcements of the establishment of full diplomatic relations between the State of Israel and the United Arab Emirates and the State of Israel and the Kingdom of Bahrain are historic achievements.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTION

By Mr. SCHUMER (for himself, Mrs. MURRAY, Mr. VAN HOLLEN, Ms. BALDWIN, Mr. SCHATZ, Mr. BLUMENTHAL, Mrs. FEINSTEIN, Mr. CASEY, Mr. MERKLEY, Mrs. GILLIBRAND, Mrs. SHAHEEN, Mr. REED, Mr. MURPHY, Mr. BROWN, Mr. PETERS, Mr. MARKEY, Ms. WARREN, Mr. MENENDEZ, Mr. DURBIN, Ms. SMITH, Ms. DUCKWORTH, Mr. KAINE, Ms. ROSEN, Ms. HIRONO, Mr. LEAHY, Mr. CARDIN, Mr. WHITEHOUSE, Ms. CORTEZ MASTO, Ms. KLOBUCHAR, Ms. STABENOW, Mr. HEINRICH, Mr. WYDEN, Ms. CANTWELL, and Mr. SANDERS):

S. 4638. A bill to preserve and promote integrity in scientific decision-making at the Department of Health and Human Services; to the Committee on Health, Education, Labor, and Pensions.

Mr. SCHUMER. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4638

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Science and Transparency Over Politics Act''.

SEC. 2. INVESTIGATION OF POLITICAL INTERFERENCE WITH DECISIONS OF SCIENTIFIC AGENCIES OF HHS.

(a) APPOINTMENT OF THE TASK FORCE.—

(1) IN GENERAL.—The Pandemic Response Accountability Committee established under section 15010 of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), shall appoint, not later than 1 month after the date of enactment of this Act, the Task Force of the Pandemic Response Accountability Committee (referred to in this section as the ''Task Force''), which shall consist of 5 members of the Pandemic Response Accountability Committee.

(2) QUALIFICATIONS.—The members of the Task Force shall have expertise in conducting independent audits, evaluations, and investigations.

(b) INVESTIGATIONS AND REPORTS.—The Task Force shall—

(1) conduct an investigation of political interference with decisions made by scientific agencies of the Department of Health and Human Services during the time period described in subsection (f); and

(2) not later than January 31, 2021, and every 6 months thereafter, until the date that is 6 months after the end of the time period described in subsection (f), submit a report of the findings of such investigation to the Committees on Health, Education, Labor, and Pensions and Homeland Security and Governmental Affairs of the Senate and the Committees on Energy and Commerce and Oversight and Reform of the House of Representatives.

(c) CONSIDERATIONS.—In conducting the investigation under subsection (b), the Task Force shall consider—

(1) emails and other records of communications, including—

(A) communications between the White House, the Department of Health and Human Services, and scientific agencies of the Department of Health and Human Services; and

(B) communications between political appointees, career staff, and contractors within scientific agencies of the Department of Health and Human Services;

(2) initial, subsequent, and final drafts of scientific publications or communications, in order to assess changes made by scientific agencies of the Department of Health and Human Services as a result of political interference; and

(3) other information, as the Task Force determines appropriate.

(d) OBSTRUCTION OF INVESTIGATION.—The Task Force shall notify, in writing, the Committees on Health, Education, Labor, and Pensions and Homeland Security and Governmental Affairs of the Senate; the Committees on Energy and Commerce and Oversight and Reform of the House of Representatives; and the Pandemic Response Accountability Committee of any obstruction, prevention, or delay of information or communication requested pursuant to the investigation under subsection (b), not later than 30 days after the Task Force first requested the information or communication. The notification shall include—

(1) a description of the information or communication sought;

(2) the date on which such information or communication was first requested;

(3) the date of any subsequent effort to obtain the information or communication; and

(4) a summary of any response from the person from which the information or communication was requested, including any explanation by that person of why the requested information or communication is not being provided.

(e) DEFINITION.—For purposes of this section, the term ''political interference with decisions made by scientific agencies of the Health and Human Services'' includes any significant action by the executive branch of the Federal Government to—

(1) pressure the Food and Drug Administration to reach a certain outcome related to a drug, device, or biological product for the diagnosis, cure, mitigation, treatment, or prevention of COVID–19;

(2) pressure such agency to make a decision related to a drug, device, or biological product for the diagnosis, cure, mitigation, treatment, or prevention of COVID–19 within a certain timeframe;

(3) prevent such agency from taking an action related to a drug, device, or biological product for the diagnosis, cure, mitigation, treatment, or prevention of COVID–19, or from taking such action within a particular timeframe;

(4) make a decision for the Food and Drug Administration related to a drug, device, or biological product for the diagnosis, cure, mitigation, treatment, or prevention of COVID–19 that the Food and Drug Administration would make itself in the ordinary course;

(5) pressure the Centers for Disease Control and Prevention or any other scientific agency of the Department of Health and Human Services to release, withhold, or modify public health guidance, data, information, or publications related to COVID–19 in a manner that is inconsistent with the conclusion reached by the relevant senior career scientists;

(6) provide a grant, cooperative agreement, award, or other Federal support through a scientific agency of the Department of Health and Human Services for an entity or endeavor related to COVID–19 for reasons other than strengthening the Nation's COVID–19 response, including with respect to reducing morbidity and mortality related to COVID–19; or

(7) otherwise influence decisions by scientific agencies of the Department of Health and Human Services in a manner that is inconsistent with strengthening the Nation's COVID–19 response, including with respect to reducing morbidity and mortality related to COVID–19.

(f) TIME PERIOD.—The time period described in this subsection is the period beginning on the effective date of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19, and ending on the last day of such public health emergency.

(g) CLARIFICATION.—Nothing in this section shall prevent the Task Force from releasing any information before January 31, 2021, or before a full report is complete, if the Task Force determines that the release of such information is in the public interest.

(h) FUNDING.—To carry out this section, there are authorized to be appropriated $25,000,000 for the period of fiscal years 2021 and 2022.

By Mr. COTTON:

S. 4648. A bill to amend the Controlled Substances Act to list isotonitazene as a schedule I controlled substance; to the Committee on the Judiciary.

Mr. COTTON. Mr. President, we are facing momentous issues in the Senate and in Washington and in our Nation.

Today, we are debating a spending bill to keep the government funded past the end of this month. There are ongoing negotiations to help provide additional relief to those most affected by the coronavirus.

With the sad news of the passing of Justice Ruth Bader Ginsburg, there is now a Supreme Court vacancy as well.

As momentous as these issues are, we ought not miss what is happening on the streets of America, though, as too many in Washington missed for years as Americans were dying by the thousands as a result of the opioid epidemic that hit this country, from prescription pills to heroin, to synthetic opioids like fentanyl.

Now, in recent years, Washington has gotten the news, and we have taken action to try to stem the tide of drug overdoses around our country.

But the fight continues, so I want to call the Senate and the Nation's attention to a new threat: isotonitazene. It is harder to pronounce than fentanyl, but it is equally deadly. It will kill you in a heartbeat, and it also comes from China. Reports of iso—as this hard-to-pronounce drug is often called on the street—are still scattered.

A shipment was seized in Canada early last year. Now it has been popping up in Europe, in countries as far flung as Belgium, Estonia, Germany, Latvia, Sweden, and the United Kingdom, and, at about the same time, iso has found its way to America as well. It has turned up in both pill and powder form, seemingly shipped in concentrated, small quantities that escape detection too often. Once it is here, it is usually cut with other drugs, like heroin and cocaine, to make them more powerful and much more deadly.

An unsuspecting drug user can inject a tainted dose or take a counterfeit

prescription pill and be dead within minutes. Iso is just like fentanyl in that regard.

According to the Drug Enforcement Agency, iso is confirmed to have killed at least 18 Americans in 4 different States and has been encountered in at least 48 confirmed incidents across 9 States.

However, it has likely killed many more. We don't know for sure because tests for iso still are not widely available, given its novelty, and overdose deaths due to a cocktail of iso mixed with heroin, cocaine, or other drugs may be inadvertently attributed only to the known substance.

What we do know is that iso is just the latest weapon that the Chinese drug dealers are using in their opium war against America. First, they developed designer fentanyl analogs, which have killed—and continue to kill—Americans by the thousands.

However, we have taken strong action against fentanyl. Last year, we passed my legislation, the Fentanyl Sanctions Act, to punish Chinese drug dealers, and the President—equally important—pressured China's leader to crack down on underground drug labs in their own country, which sent nine fentanyl smugglers to prison.

These efforts have made a difference, but the fight is not over. China's drug dealers have developed a new poison to send to America.

Iso has no recognized medical or industrial use. It is nothing more and nothing less than a way to profit off of addiction and death. These Chinese drug dealers want iso to be the new fentanyl, so we have to take strong action to make sure they fail before more Americans are killed.

The DEA has already taken swift action by classifying iso as a schedule I controlled substance, its most restrictive classification. But this is only a temporary measure that will last 2 years, at most.

Congress should, therefore, act to ensure iso stays on that list for good. That is why I am introducing legislation to permanently classify iso as a schedule I controlled substance. This will ensure iso receives the strictest regulations under our drug laws, and it will help our brave drug enforcement agents keep this deadly drug off of our streets.

Furthermore, I call upon the leaders of the Chinese Communist Party to crack down on the production of iso in the Chinese mainland. If the leaders of the party wish to reduce tensions, if they wish to improve relations, they ought not to allow their own criminals to manufacture drugs with no legitimate purpose specifically designed for smuggling into America to poison our citizens.

I urge my colleagues and the administration to join in this effort to stop iso before it spreads even further. This drug has already killed too many of our fellow citizens. We need to stop it before it kills even more.

By Mr. SCHUMER:

S. 4653. A bill to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act; read the first time.

Mr. SCHUMER. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 4653

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. PROHIBITING DOJ EFFORTS TO ADVOCATE COURTS TO STRIKE DOWN PATIENT PROTECTION AND AFFORDABLE CARE ACT.

The Department of Justice may not in any case, including in California v. Texas, No. 19–840 (U.S. cert. granted Mar. 2, 2020), advocate that a court invalidate any provision of the Patient Protection and Affordable Care Act (Public Law 111–148; 124 Stat. 119) or any amendment made by that Act.

By Ms. HIRONO:

S. 4656. A bill to amend title 38, United States Code, to provide for a reduction in certain loan fees for certain veterans affected by major disasters; to the Committee on Veterans' Affairs.

Ms. HIRONO. M. President, in 2018, Hawaii's Kilauea Volcano erupted, destroying upwards of 700 homes, including a home purchased by a veteran using the VA Home Loan Guaranty Program. When this veteran went to replace the home he had lost by once again using the Home Loan Guaranty Program, he found that he would be forced to pay significantly higher fees for using the program a second time.

Our Nation's veterans should not be penalized for losing their homes to natural disasters and it is for this reason that I come to the floor today to introduce the Veteran Home Loan Disaster Recovery Act of 2020.

Congress has established a variety of programs in pursuit of both thanking our Nation's veterans and ensuring that they are able to live comfortable lives after their service has ended. One of these programs is the VA Home Loan Guaranty program, which provides eligible veterans the opportunity to access mortgages backed by the Department of Veterans Affairs. Under the program the VA guarantees a portion of a home loan from a private lender allowing the veteran borrower to receive favorable mortgage terms.

Participants in this program are required to pay a funding fee in place of closing cost and that fee increases based on various factors, including whether this is a veteran's first time using the program or if they have previously had a VA Home Loan. For those who have used the loan before, the fee is higher, regardless of the circumstances that led to their needing to purchase a home through the program, including if their previous home was destroyed by a natural disaster.

The Veteran Home Loan Disaster Recovery Act of 2020 would exempt program participants from the subsequent loan funding fee increase if they lost their first home to a natural disaster, allowing them to access a lower rate as if they were a first-time participant in the program.

According to the Federal Emergency Management Agency (FEMA), in 2019, there were 101 Presidentially-declared disasters across the Nation. So far in 2020, there have been 92 major disaster declarations alone. Right now, wildfires rage in different parts of the Nation, and we are in the midst of hurricane season in both the Atlantic and Pacific Oceans.

As we continue to experience raging wildfires, volcanic eruptions, and massive hurricanes, it is critical that we ensure that we work to limit the ripple effects from these disasters. Giving veterans the ability to replace homes lost through no fault of their own is one step in that direction.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 711—CALLING ON THE PRESIDENT OF THE UNITED STATES TO TAKE EXECUTIVE ACTION TO BROADLY CANCEL FEDERAL STUDENT LOAN DEBT

Mr. SCHUMER (for himself, Ms. WARREN, Mr. BROWN, Mr. DURBIN, Mr. SANDERS, Ms. DUCKWORTH, Mr. BLUMENTHAL, Mr. VAN HOLLEN, Mr. MERKLEY, Mr. MARKEY, Mr. BOOKER, Mr. MENENDEZ, and Mr. WYDEN) submitted the following resolution; which was referred to the Committee on Health, Education, Labor, and Pensions:

S. RES. 711

Whereas the United States is facing historic public health and economic crises caused by the coronavirus (COVID–19) pandemic that threatens the financial well-being of nearly every American family;

Whereas even before the COVID–19 pandemic, the United States also faced a historic student loan crisis, which is currently holding back our struggling economy and restricting opportunity and prosperity for millions of American families;

Whereas nearly 43,000,000 Americans currently hold more than $1,500,000,000,000 in Federal student loan debt;

Whereas more than 9,000,000 Federal student loan borrowers are currently in default on those Federal student loans;

Whereas the COVID–19 economic recession and historic unemployment have compounded stagnant wages, labor market discrimination, and rising costs of living, making it nearly impossible for many Americans to ever fully repay their student loans;

Whereas this historic student debt crisis has left millions of Americans less prepared to weather the recession triggered by the COVID–19 pandemic as communities of color, which never fully recovered from the devastating effects of the previous economic recession, have been hit hardest by the devastating health and economic consequences of the COVID–19 pandemic;

Whereas student debt disproportionately impacts borrowers of color, who face the

worst effects of the student debt crisis, with—

(1) Black students, due to ongoing structural barriers that have resulted in persistent racial inequities in incomes and wealth, forced to accrue more student debt and more often than their White peers;

(2) Black student borrowers struggling more in student loan repayment, including defaulting at higher rates than their White peers;

(3) nearly half of Black graduates owing more on their undergraduate student loans 4 years after graduation than they did when they received their degree;

(4) the median Black student borrower owing 95 percent of their debt 20 years after starting college, while the median White student borrower owing 6 percent of their debt after such period; and

(5) Latinx student borrowers, who borrow at rates similar to their White peers despite having lower household incomes and significantly less household wealth, are more likely than their White peers to default on their student loans;

Whereas Black students and other students who have attended Historically Black Colleges and Universities have had to bear a larger share of student loan debt because of the historic and continued underfunding of these institutions at the State and Federal levels;

Whereas student debt cancellation for the families that need it most can substantially increase Black and Latinx household wealth and help close racial wealth gaps;

Whereas women hold more than two-thirds of the Nation's student loan debt and must borrow an average of $3,000 more than men to attend higher education;

Whereas, if left unaddressed, the student debt crisis will worsen inequality, exacerbate the current recession, widen the racial wealth gap, and slow economic recovery;

Whereas broad student debt cancellation is the most efficient and effective solution to our student debt crisis, would help millions of families, and would remove a significant drag holding back our economy;

Whereas broad student debt cancellation would provide immediate relief to millions of American families who are struggling during this pandemic and recession, and prevent them from having an unsustainable student debt burden waiting for them once this pandemic is over;

Whereas broad student debt cancellation would provide a boost to our struggling economy through a consumer-driven economic stimulus, greater home-buying rates and housing stability, expanded access to more affordable financial products including car loans and mortgages, higher college completion rates, and greater small business formation;

Whereas President Donald J. Trump's Memorandum on Continued Student Loan Payment Relief During the COVID–19 Pandemic, Issued August 8, 2020, will expire on December 31, 2020, causing tens of millions of Federal student loan borrowers to enter repayment on New Year's Day of 2021, including recent graduates facing one of the toughest job markets in recent history;

Whereas more than 100 community, civil rights, consumer, and student advocacy organizations have urged student debt cancellation for all borrowers in response to the COVID–19 pandemic public health and economic crises;

Whereas Congress has already granted the Secretary of Education the legal authority to broadly cancel student debt under section 432(a) of the Higher Education Act of 1965 (20 U.S.C. 1082(a)), which grants the Secretary the authority to modify, ''. . . compromise, waive, or release any right, title, claim, lien, or demand, however acquired, including any equity or any right of redemption'';

Whereas the United States Department of Education has reportedly used this authority to implement relief for Federal student loan borrowers during the COVID-19 pandemic; and

Whereas on June 29, 2020, President Donald J. Trump, with the support of Secretary of Education Betsy DeVos, vetoed H.J. Res. 76 ''Providing for congressional disapproval under chapter 8 of title 5, United States Code, of the rule submitted by the Department of Education relating to 'Borrower Defense Institutional Accountability' '', blocking a resolution that passed Congress with bipartisan support to overturn a Department of Education rule that makes it harder for defrauded Federal student loan borrowers to see their loans discharged: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the Secretary of Education's broad administrative authority to cancel Federal student loan debt under the existing authorities of section 432(a) of the Higher Education Act of 1965 (20 U.S.C. 1082(a));

(2) calls on the President of the United States to take executive action to broadly cancel up to $50,000 in Federal student loan debt for Federal student loan borrowers administratively using existing legal authorities under such section 432(a), and any other authorities available under the law;

(3) encourages the President of the United States, in taking such executive action, to use the executive's authority under the Internal Revenue Code of 1986 to ensure no tax liability for Federal student loan borrowers resulting from administrative debt cancellation;

(4) encourages the President of the United States, in taking such executive action, to ensure that administrative debt cancellation helps close racial wealth gaps and avoids the bulk of Federal student debt cancellation benefits accruing to the wealthiest borrowers; and

(5) encourages the President of the United States to continue to pause student loan payments and interest accumulation for Federal student loan borrowers for the entire duration of the COVID-19 pandemic.

SENATE RESOLUTION 712—DESIGNATING THE WEEK OF SEPTEMBER 21 THROUGH SEPTEMBER 25, 2020, AS ''COMMUNITY SCHOOL COORDINATORS APPRECIATION WEEK''

Mr. BROWN (for himself, Mrs. CAPITO, Mr. VAN HOLLEN, and Mr. DURBIN) submitted the following resolution; which was referred to the Committee on the Judiciary:

S. RES. 712

Whereas community schools marshal, align, and unite the assets, resources, and capacity of schools and communities for the success of students, families, and communities;

Whereas community schools are an effective, evidence-based, and equity-driven strategy for school improvement included under section 4625 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7275), as added by section 4601 of the Every Student Succeeds Act (Public Law 114–95; 129 Stat. 2029);

Whereas community schools that provide integrated student supports, well-designed and expanded learning opportunities, and active family and community engagement and that use collaborative leadership and practices have positive academic and nonacademic outcomes, including improvements in student attendance, behavior, academic achievement, school readiness, and mental and physical health, high school graduation rates, and school climate and reduced racial and economic achievement gaps;

Whereas community schools have the potential for closing racial and economic achievement gaps, as indicated in a 2017 report;

Whereas a 2020 study found that New York City's community schools had a positive impact on student attendance, on-time grade progression, and credit accumulation for high school students;

Whereas community schools provide a strong social return on investment, with one study citing a social return of between $10 to $15 for every dollar invested over a 3-year period;

Whereas community school coordinators are essential to building successful community schools and creating, strengthening, and maintaining partnerships between community schools and their communities;

Whereas community school coordinators facilitate and provide leadership for the collaborative process and development of a continuum of supports and opportunities for children, families, and others within a school's community that allow all students to learn and the community to thrive;

Whereas the Coronavirus Disease 2019 (referred to in this preamble as ''COVID–19'') pandemic poses additional academic, social, emotional, and health challenges for students, educators, and staff at community schools;

Whereas community school coordinators have proven to be innovative and resourceful in response to the COVID–19 pandemic, including through organizing volunteers for mobile food pantries, hosting virtual parent hangouts and student lunch groups, continuing to support onsite behavioral health programs through an online platform, and participating in advocacy efforts to halt eviction orders in their communities;

Whereas community school coordinators, through their role, deliver a strong monetary return on investment for community schools and their communities, with one study citing a return of $7.11 for every dollar invested in the salary of a community school coordinator; and

Whereas Community School Coordinators Appreciation Week, celebrated from September 21 through September 25, 2020, recognizes, raises awareness of, and celebrates the thousands of community school coordinators across the country and the critical role of community school coordinators in the success of students: Now, therefore, be it

Resolved, That the Senate—

(1) designates the week of September 21 through September 25, 2020, as ''Community School Coordinators Appreciation Week'';

(2) thanks community school coordinators for the work they do to serve students, families, and communities, especially as communities continue to respond to the Coronavirus Disease 2019 pandemic; and

(3) encourages students, parents, school administrators, and public officials to participate in virtual events that celebrate Community School Coordinators Appreciation Week.

ADJOURNMENT UNTIL 10 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, the Senate stands adjourned until 10 a.m. tomorrow, Wednesday, September 23, 2020.

Thereupon, the Senate, at 11:22 p.m., adjourned until Wednesday, September 23, 2020, at 10 a.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF STATE

ERIC P. WENDT, OF CALIFORNIA, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE STATE OF QATAR.

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

JOYCE CAMPBELL GIUFFRA, OF NEW YORK, TO BE A MEMBER OF THE NATIONAL COUNCIL ON THE ARTS FOR A TERM EXPIRING SEPTEMBER 3, 2024, VICE RICK LOWE, TERM EXPIRED.

THE JUDICIARY

CHARLES EDWARD ATCHLEY, JR., OF TENNESSEE, TO BE UNITED STATES DISTRICT JUDGE FOR THE EASTERN DISTRICT OF TENNESSEE, VICE HARRY SANDLIN MATTICE, JR., RETIRED.

KATHERINE A. CRYTZER, OF TENNESSEE, TO BE UNITED STATES DISTRICT JUDGE FOR THE EASTERN DISTRICT OF TENNESSEE, VICE PAMELA L. REEVES, DECEASED.

CONFIRMATIONS

Executive nominations confirmed by the Senate September 22, 2020:

THE JUDICIARY

EDWARD HULVEY MEYERS, OF MARYLAND, TO BE A JUDGE OF THE UNITED STATES COURT OF FEDERAL CLAIMS FOR A TERM OF FIFTEEN YEARS.

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

ANDREA R. LUCAS, OF VIRGINIA, TO BE A MEMBER OF THE EQUAL EMPLOYMENT OPPORTUNITY COMMISSION FOR A TERM EXPIRING JULY 1, 2025.

KEITH E. SONDERLING, OF FLORIDA, TO BE A MEMBER OF THE EQUAL EMPLOYMENT OPPORTUNITY COMMISSION FOR A TERM EXPIRING JULY 1, 2024.

WITHDRAWAL

Executive Message transmitted by the President to the Senate on September 22, 2020 withdrawing from further Senate consideration the following nomination:

KATHERINE A. CRYTZER, OF TENNESSEE, TO BE INSPECTOR GENERAL OF THE TENNESSEE VALLEY AUTHORITY, VICE RICHARD W. MOORE, RESIGNED, WHICH WAS SENT TO THE SENATE ON APRIL 6, 2020.

EXTENSIONS OF REMARKS

CELEBRATING THE CAREER OF U.S. CAPITOL POLICE SERGEANT JUAN CARDENAS

HON. DAVID J. TRONE

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. TRONE. Madam Speaker, I rise today to celebrate the career of U.S. Capitol Police Sergeant Juan Cardenas, badge No. 3793, who is retiring this month after thirty-two years of service.

For nearly twelve years, Cardenas has served as a Sergeant in the First Responders Unit. During this time, he has managed the mountain bike and First Responders' training programs that serve to protect Members of Congress during normal and emergency situations and acted as a supervisor in charge of motorcade operations for the President, Vice President, and Heads of State arriving at the Capitol. Sergeant Cardenas worked on projects of the utmost importance, including the State of the Union and the last three Presidential Inaugurations.

Sergeant Cardenas's success was grounded in his unwavering dedication and exceptional skill. From 2000 to 2008, Sergeant Cardenas was a supervisor in charge of the Patrol Mobile Response Division, and before that, Police Officer First Class in Communications Section 3. However, Sergeant Cardenas's life of service did not begin with the U.S. Capitol Police: Sergeant Cardenas first served his country in the United States Air Force, where he was selected for Special Air Mission and provided security to the Presidential aircraft for then-Vice President George H.W. Bush.

Throughout his career, Sergeant Cardenas has led by example as a friendly but resolute face on the Capitol grounds and beyond. Time and time again, Sergeant Cardenas has established himself as an expert, particularly due to his role in helping the U.S. Capitol Police establish a well-executed and safe motorcade operation. His ability and commitment showed every single day, whether he was managing a motorcade, searching for a lost child, apprehending a suspect, or delivering a hot meal or new shoes to a homeless veteran. Sergeant Cardenas has proven himself to be a man his colleagues and our country can rely on.

Over the years, Sergeant Cardenas has been showered with awards and commendation, including a Blue Badge Medal, one of the Department's top five honors. In 2004, Sergeant Cardenas received accolades for creating a child safety seat program and, in 1998, he received the Association of Public-Safety Communications Officials telecommunicator of the year award for his role as a dispatcher during the shooting of U.S. Capitol Police Officer Jacob Chestnut and Detective John Gibson. While he is clearly reluctant to retire, it should be noted that Sergeant Cardenas has given a great deal to the Force, suffering serious injuries in a 1992 motorcycle accident as a Private on Patrol Division.

Please join me in thanking Sergeant Juan Cardenas for his incredible service to the U.S. Capitol Police, the Congress of the United States, and to our Nation.

STRENGTHENING AMERICA'S STRATEGIC NATIONAL STOCKPILE ACT OF 2020

SPEECH OF

HON. JEFFERSON VAN DREW

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Mr. VAN DREW. Mr. Speaker, I rise today to voice my support for H.R. 7574, the Strengthening America's Strategic National Stockpile Act of 2020. This bipartisan legislation will play a crucial role in strengthening state's and the federal government's PPE reserves to ensure our great nation is even better equipped to eradicate future health crises. Americans, especially those in South Jersey, have been harshly impacted by PPE shortages that have increased contraction and death rates and put our frontline health workers at great risk. Under this legislation, not only will America be better prepared for health emergencies, but we will do so by increasing American manufacturing of PPE and other essential supplies through an innovative pilot program. I am proud to support this crucial bipartisan legislation.

STRENGTHENING AMERICA'S STRATEGIC NATIONAL STOCKPILE ACT OF 2020

SPEECH OF

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Ms. ESHOO. Mr. Speaker, I rise in support of H.R. 7574, the Strengthening America's Strategic National Stockpile Act of 2020. I'm proud to have advanced this bipartisan bill through my Health Subcommittee and I'm pleased to support it on the Floor.

I'm also proud that this legislation includes my bill with Representative SUSAN BROOKS to allow the SNS to sell and transfer soon-to-be expired supplies to other government agencies, stretching taxpayer dollars so we can respond to the current pandemic and be prepared for the next.

The COVID–19 pandemic has laid bare many sad and startling realities in our country. One of the most surprising is that the Strategic National Stockpile, established in 2003 to respond to public health emergencies like the one we're currently experiencing, was completely unprepared for the current outbreak.

When we opened the door of the SNS, the cupboard was bare, and American lives were lost. Today we're considering the Strengthening America's Strategic National Stockpile Act to address some of these shortcomings.

This legislation requires that the contents of the SNS be in good working order and mandates that the Assistant Secretary for Preparedness and Response and CDC implement a transparent process for the use and distribution of such supplies.

The bill increases reporting on how supplies are procured for the SNS, as well as requires reporting on states' requests for supplies during the ongoing COVID–19 pandemic.

While we cannot erase the failures of the SNS during the current pandemic, we can ensure that the stockpile is adequately supplied and maintained so we can be better prepared for the next public health emergency.

I'm proud to be an original sponsor of H.R. 7574 and I urge my colleagues to support it.

SAVANNA'S ACT

SPEECH OF

HON. SUZANNE BONAMICI

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Ms. BONAMICI. Mr. Speaker, I rise in support of S. 227, Savanna's Act, a bill to combat the epidemic of missing and murdered Native women and girls.

In the United States, Native women face tragically high rates of violence, sexual assault, and murder. According to the Department of Justice, 84 percent of Native and Alaska Native women have experienced violence in their lifetime, and the Centers for Disease Control and Prevention found that homicide is the third leading cause of death among Native women. These rates are ten times higher than the national average and reflect centuries of institutional racism and systemic inequalities that Native communities face.

Too often families of missing and murdered Native women are left without answers. We cannot allow the experiences of Native and Indigenous communities continue to slip through bureaucracy. I am a cosponsor of Savanna's Act, which will create and improve procedures, communication, and cooperation among federal, state, Tribal, and local agencies that may share jurisdiction over investigating crimes against Native women.

Our Nation's devastating history of colonization has left missing and murdered Native women invisible to law enforcement for centuries, but today, by passing Savanna's Act we can give a voice to this silent crisis. We must strive to better understand the institutional racism and systemic inequalities that Native communities face. And we must keep fighting for justice for those who are missing or murdered.

I thank Congresswoman TORRES for her leadership on this bill, and I urge all of my colleagues to support Savanna's Act.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

SAVANNA'S ACT AND NOT INVISIBLE ACT

HON. GREG STANTON

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. STANTON. Madam Speaker, I offer my stanch support for Savanna's Act and the Not Invisible Act. It is a horrific fact that Native American women face a murder rate ten times higher than the national average, with eighty-four percent experiencing some form of violence in their lifetime. To make matters worse, without a dedicated federal database designated to collecting information on the number of how many Native women go missing or are murdered every year, we do not have the whole picture—this is completely unacceptable. Savanna's Act and the Not Invisible Act begin to address the crisis of Missing and Murdered Indigenous Women and Girls.

In Arizona, a state home to 22 Native American tribes, we recognize and know the horrors of this crisis. We know that it is a misconception that Native women only go missing on Tribal lands. Studies have shown that the majority of Native Americans and Alaska Native people now live in urban communities, where they also go missing. Violence against Native women spans beyond tribal lands and thus so must the solutions.

I am encouraged to see these bills come to the House Floor for consideration because it has taken us too long to act on this issue. It has taken us too long and lives have been taken and lost. We cannot in good conscience continue with inaction. I support the passage of these bills and hope they are signed into law as soon as possible—we owe it to the Native American women who we have lost and those who are still with us today and worry they might be next.

CREATING A RESPECTFUL AND OPEN WORLD FOR NATURAL HAIR ACT OF 2020

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Ms. JACKSON LEE. Mr. Speaker, as a senior member of the Committees on the Judiciary and on Homeland Security, and the Congressional Black Caucus, and as a cosponsor, I rise in strong support of H.R. 5309, the ''Creating a Respectful and Open World for Natural Hair Act of 2019'' or the ''CROWN Act of 2019,'' introduced by Congressman RICHMOND, which explicitly prohibits discrimination on the basis of hair texture or hairstyles commonly associated with a particular race or national origin in areas of the law where discrimination on the basis of race or national origin is already prohibited.

It has long been my position that discrimination based on hair texture and hairstyle is a form of impermissible race discrimination.

According to a 2019 report, known as the CROWN Study, which was conducted by the JOY Collective (CROWN Act Coalition, Dove/Unilever, National Urban League, Color of Change), Black people are ''disproportionately burdened by policies and practices in public places, including the workplace, that target, profile, or single them out for their natural hair styles—referring to the texture of hair that is not permed, dyed, relaxed, or chemically altered.''

The CROWN Study found that Black women's hair is ''more policed in the workplace, thereby contributing to a climate of group control in the company culture and perceived professional barriers'' compared to non-Black women.

The study also found that ''Black women are more likely to have received formal grooming policies in the workplace, and to believe that there is a dissonance from her hair and other race's hair'' and that ''Black women's hairstyles were consistently rated lower or 'less ready' for job performance.''

Among the study's other findings are that 80 percent of Black women believed that they had to change their hair from its natural state to ''fit in at the office,'' that they were 83 percent more likely to be judged harshly because of their looks.

The study indicated that Black women were 1.5 times more likely to l be sent home from the workplace because of their hair, and that they were 3.4 times more likely to be perceived as unprofessional compared to non-African-American women.

Three years ago, the United States Army removed a grooming l regulation prohibiting women servicemembers from wearing their hair in dreadlocks, a regulation that had a disproportionately adverse impact on Black women.

This decision was the result of a 2014 order by then-Secretary of Defense Chuck Hagel to review the military's policies regarding hairstyles popular with African-American women after complaints from members of Congress, myself included, that the policies unfairly targeted black women.

In 2015, the Marine Corps followed suit and issued regulations to permit lock and twist hairstyles.

The CROWN Study illustrates the prevalence of hair discrimination but numerous stories across the country put names and faces to the people behind those numbers.

In 2017, a Banana Republic employee was told by a manager that she was violating the company's dress code because her box braids were too ''urban'' and ''unkempt.''

A year later, in 2018, Andrew Johnson, a New Jersey high school student, was forced by a white referee to either have his dreadlocks cut or forfeit a wrestling match, leading him to have his hair cut in public by an athletic trainer immediately before the match.

That same year, an 11-year-old Black girl in Louisiana was asked to leave class at a private Roman Catholic school near New Orleans because her braided hair extensions violated the school's policies.

The next year, two African-American men in Texas alleged being denied employment by Six Flags because of their hairstyles—one had long braids and the other had dreadlocks.

And earlier this year, there were news reports of a Texas student who would not be allowed to walk at graduation because his dreadlocks were too long.

The CROWN Act prohibits discrimination in federally funded programs and activities based on an individual's hair texture or hairstyle if it is commonly associated with a particular race or national origin, including ''a hairstyle in which hair is tightly coiled or tightly curled, locs, cornrows, twists, braids, Bantu knots, and Afros.''

The legislation also provides that the prohibition will be enforced as if it was incorporated into Title VI of the Civil Rights Act of 1964, which prohibits discrimination on the basis of race, color, or national origin in federally-funded programs, and that violations of Section 3(a) will be treated as if they were violations of Section 601 of the Civil Rights Act of 1964.

Mr. Speaker, allow me to give another example of why this legislation is necessary and why I support it so strongly.

In July of this year, Barbers Hill Independent School District, just east of my home city of Houston, Texas school district reaffirmed its discriminatory grooming policy that led to the suspension of two Black students earlier this year.

The students—cousins Kaden Bradford and De'Andre Arnold—wear their hair in long dreadlocks.

But the school district forbids male students from keeping their hair at a length ''below the top of a t-shirt collar, below the eyebrows, or below the ear lobes.''

De'Andre Arnold had complied with the dress code throughout high school by keeping his hair up.

But in 2019 the school board made the code more stringent, requiring that students' hair meet the district's length requirement even if not worn let down, which meant that De'Andre Arnold would have been required to cut his dreadlocks and in the process, destroy them, all in contravention of West Indian cultural traditions that specifically prohibit cutting or trimming locs.

De'Andre Arnold, a senior who had been in the school district since pre-kindergarten, was told by school officials that he would not be able to go to the senior prom or walk in his high school graduation until he cut his dreadlocks.

Mr. Speaker, Black students are and have been disproportionately targeted and penalized for violating facially race-neutral grooming policies that are designed to, and have the effect of, profiling, singling out, and burdening Black children for wearing their hair in its natural state.

Students like De'Andre Arnold should not be faced with the impossible choice of either suppressing their cultural heritage and Black identity by cutting their natural hair or forfeiting their right to equal educational and extracurricular opportunities.

The CROWN Act says to students like De'Andre Arnold and others similarly situated that the Congress of the United States hears him, sees him, and affirms his beauty and dignity and pride in his culture.

I strongly support this legislation and urge all Members to join me in voting for its passage.

NATIONAL CENTERS OF EXCELLENCE IN CONTINUOUS PHARMACEUTICAL MANUFACTURING ACT OF 2020

SPEECH OF

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Ms. ESHOO. Mr. Speaker, I rise in support of H.R. 4866, the National Centers of Excellence in Continuous Pharmaceutical Manufacturing Act of 2019. I'm proud to have advanced this bipartisan bill through my Health Subcommittee and I'm pleased to support it on the Floor.

The National Centers of Excellence in Continuous Pharmaceutical Manufacturing Act was introduced by Chairman Frank Pallone and Representative Brett Guthrie.

The bill directs FDA to designate National Centers of Excellence in Continuous Pharmaceutical Manufacturing which would work with the FDA and industry to craft a national framework for continuous manufacturing implementation.

The bill authorizes $80 million to be appropriated from 2021 through 2025.

Continuous Manufacturing is an emerging technology that has been shown to greatly reduce both the time and the cost of developing and manufacturing medicines. It also enables significant improvements in the quality of the final product and the reliability of the manufacturing process.

Through H.R. 4866, the Centers of Excellence in continuous pharmaceutical manufacturing will organize industry efforts to develop continuous manufacturing technologies.

The Centers could help grow the number of companies capable of using these technologies from the current group of approximately ten companies to as many as 100 users.

Our nation's dangerous overreliance on foreign production of critical drugs and their ingredients have led to drug shortages, subpar manufacturing and drug quality. This threatens patient health and safety and poses national security risks to our allied forces.

The COVID–19 pandemic has exacerbated this vulnerability and demonstrates the national security and public health risks inherent in allowing China or another foreign nation to gain control of critical drug manufacturing.

This bill is an important first step to bring pharmaceutical manufacturing back to the United States, and I urge my colleagues to support it.

RECOGNIZING MICHELLE HARVEY AS CONSTITUENT OF THE MONTH

HON. MIKE LEVIN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. LEVIN of California. Madam Speaker, it is my honor to recognize Michelle Harvey, founder of the San Diego Face Mask Sewing Group, a Facebook community page dedicated to sewing face masks for donation. Now more than ever, as we continue addressing this unprecedented health crisis, it is on all of us to do our part in stopping the spread of COVID–19. With this in mind, Michelle Harvey found herself getting to work behind the family sewing machine.

Ms. Harvey discovered her newly found sewing abilities when her friend, an ICU nurse at Tri-City Medical Center in Oceanside, informed her the hospital would begin taking mask donations. In hopes of providing face masks for as many essential workers as possible, Michelle reached out to others who would be interested in helping her cause and found an overwhelming amount of volunteers. From there, the now 1,800 member San Diego Face Mask Sewing Group took off.

Providing members of our community with a face mask is one of the easiest and most effective ways to slow the spread. So far, with the unwavering support of her mask-making group, Michelle coordinated the donation of around 50,000 masks to hospitals, charities, and community members across San Diego County. In an effort to ensure all followers are covered, The San Diego Face Mask Sewing Group also offers tutorials for people to create their own mask from scratch without ever having to leave their homes.

I launched a Constituent of the Month program to recognize individuals who have gone above and beyond to make our region and our country a stronger place for everyone to live and thrive. Today, I am proud to recognize Ms. Harvey as my Constituent of the Month, and I thank her for being a leader and role model in helping our community collectively work together to both protect our frontline workers and helping to stop the spread of COVID–19.

RECOGNIZING THE WORK OF AIS AND SEW THE MASKS

HON. JAMES P. McGOVERN

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. MCGOVERN. Madam Speaker, I rise today to recognize Affordable Interior Systems (AIS) of Leominster, Massachusetts, a company in my Congressional District which manufactures office furniture and which has organized and joined together with people from across the United States to create an amazing new nonprofit initiative called Sew the Masks.

Like so many other patriotic Americans, when the AIS team began to see the terrible toll the coronavirus pandemic was inflicting on our country, they jumped into action. Affectionally drawing on the inspiration of World War II icon Rosie the Riveter, AIS leveraged their expertise and retrofitted a chair production line to produce high-quality, reusable masks.

Then, they mobilized their own employees, as well as individual sewers across the country, affectionately known as ''Rosies,'' to create high-quality reusable masks for first responders and other essential employees at risk of COVID–19.

Fifty masks at a time, these volunteers are sewing the pre-cut masks that AIS provides and then shipping them out to corporate sponsors across the country, which then are distributed to communities in need.

AIS has also launched a special partnership with the United Way of North Central Massachusetts to help combine efforts and provide masks for United Way volunteers.

Madam Speaker, I find this dedication to the fight against COVID–19 nothing short of awe-inspiring. During these challenging times, AIS has demonstrated an exceptional commitment to helping their fellow Americans. They now have hundreds and hundreds of volunteers across the country, and their leadership is a true testament to the value of bringing people together to make a difference. I am sincerely grateful to the employees of AIS, including President and CEO Bruce Platzman, and to all the volunteers across America who have given their time and talent to this awe-inspiring and selfless cause.

On behalf of the United States Congress, the people of Massachusetts' Second Congressional District, and all the people impacted by this incredible work, it is my great honor and privilege to recognize AIS and Sew the Masks for their tireless efforts to support our communities during this unprecedented time.

PERSONAL EXPLANATION

HON. WILLIAM R. TIMMONS, IV

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. TIMMONS. Madam Speaker, I missed the votes the week of September 14, 2020, due to full-time military duties with the South Carolina Air National Guard.

Had I been present, I would have voted: YEA on Roll Call No. 183; YEA on Roll Call No. 184; NAY on Roll Call No. 185; NAY on Roll Call No. 186; YEA on Roll Call No. 187; YEA on Roll Call No. 188; NAY on Roll Call No. 189; YEA on Roll Call No. 190; YEA on Roll Call No. 191; NAY on Roll Call No. 192; NAY on Roll Call No. 193; YEA on Roll Call No. 194; and NAY on Roll Call No. 195.

SUPPORTING FOUR BIPARTISAN BILLS THAT ADDRESS THE MENTAL HEALTH CRISIS

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Ms. ESHOO. Madam Speaker, I rise in support of four important bipartisan bills that address the mental health crisis in our country during the pandemic and economic recession. H.R. 1646, the Helping Emergency Responders Overcome Act of 2019, H.R. 4564, the Suicide Prevention Lifeline Improvement Act of 2019, H.R. 4585, the Campaign to Prevent Suicide Act and H.R. 5619, the Suicide Prevention Act advanced through my Health Subcommittee and I'm pleased to support them on the Floor.

In a recent poll, half of adults report that their mental health has been negatively impacted due to the coronavirus. Add to this the mental impacts on those Americans who are grieving loved ones lost to the virus.

The economic downturn is also taking a mental toll on our fellow Americans. Studies found for every 1 percent increase in the unemployment rate, the suicide rate increases by 1 to 1.6 percent.

Despite the frequency of mental illness, too many suffer in silence. Mental health is a neglected part of our health care system, with

less than 40 percent of people with mental illness receiving any treatment.

These bills address this mental health care crisis.

H.R. 1646, the bipartisan HERO Act introduced by Rep. AMI BERA creates a data system at the CDC to capture public safety officer suicide incidences and study successful interventions, authorize grants for peer support behavioral health and wellness programs within fire departments and emergency medical service agencies. It also requires the development of best practices for addressing post-traumatic stress disorder in public safety officers and educational materials.

H.R. 4564, the bipartisan Suicide Prevention Lifeline Improvement Act of 2019 introduced by Reps. KATKO, BEYER, and NAPOLITANO increases the authorization funding level of the National Suicide Prevention Lifeline program to $50 million each year, from FY 2020 through FY 2022. The bill also includes a pilot program to research, analyze, and employ various innovative technologies and platforms for suicide prevention.

H.R. 4585, the bipartisan Campaign to Prevent Suicide Act, introduced by Reps. BEYER and GIANFORTE directs HHS to carry out a national suicide prevention media campaign to advertise the new 9–8–8 number.

Finally, H.R. 5619, the bipartisan Suicide Prevention Act, introduced by Reps. STEWART and MATSUI, establishes two grant programs to prevent self-harm and suicide.

Our health as a Nation, both physical and mental, will be tested in the months ahead. These bills will help people find the care and treatment they need and can save lives. I urge my colleagues to support these bipartisan bills.

RECOGNIZING CONWAY COUNTY FARM FAMILY OF THE YEAR

HON. J. FRENCH HILL

OF ARKANSAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. HILL of Arkansas. Madam Speaker, I rise today to recognize The 3 Brothers Farm as the 2020 Conway County Family Farm of the Year. The farm, located near Sardis, is run by brothers Lucas, Nicholas, and Josh Moore.

Nicholas and Lucas started farming together 20 years ago by raising cattle and conducting a custom hay baling operation while they attending Morrilton High School.

In 2013, the two brothers began their crop-rotation program after they acquired more land after their former employer, Randy Pettingill, retired.

Today, all three brothers raise a mixed breed of cattle using Black Angus bulls which they sell based on their sterling reputation and word-of-mouth sales. One day, they hope to open their own retail store stocked by their own beef.

I thank our farm families, whose contributions to our communities and state keep our economy strong while producing the best agricultural products in the country. Congratulations to the Moore Family for winning the 2020 Conway Family Farm of the year.

SCARLETT'S SUNSHINE ON SUDDEN UNEXPECTED DEATH ACT

SPEECH OF

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Ms. ESHOO. Mr. Speaker, I rise in support of H.R. 2271, the Scarlett's Sunshine on Sudden Unexpected Death Act. I'm proud to have advanced this bipartisan bill through my Health Subcommittee and I'm pleased to support it on the Floor.

No family should suffer the death of a child without knowing why, yet over 400 children and 3,600 infants die each year from unexplained causes.

We honor these children today by passing the Scarlett's Sunshine Act, which provides funding to improve data collection and death scene investigations related to unexpected deaths and promotes safe sleep practices.

Because of the lack of a specific way to record sudden and unexplained deaths in children, it's impossible to know how widespread the problem is or to conduct more research into the potential causes.

The Scarlett's Sunshine Act addresses this problem by funding child death review teams and improvement to the CDC's National Review Case Reporting System.

The bill also provides resources for the promotion of evidence-based safe infant sleep which the American Association of Pediatricians say will clarify guidelines making them easier for parents to follow. I urge my colleagues to honor these lost children by supporting this bill.

RECOGNIZING SUZANNE HOGAN FOR HER WORK ON THE LIBRARY OF CONGRESS' GERSHWIN PRIZE

HON. BARRY LOUDERMILK

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. LOUDERMILK. Madam Speaker, I rise today in recognition of Suzanne Hogan and her contributions to the Library of Congress' Gershwin Prize for Popular Song. The Gershwin Prize celebrates the work of an artist whose career reflects lifetime achievement in promoting songs as a vehicle of musical expression and cultural understanding. Suzanne's dedication, leadership, and expertise were instrumental to the success of the Gershwin Prize during her tenure at the Library of Congress.

Suzanne was recognized by former Librarian of Congress, James Billington, for her ability to successfully facilitate relationships between the Library of Congress and the many stakeholders involved in supporting the Prize, as well as for developing and executing the move of the Gershwin Prize concert from the White House to Constitution Hall. This move highlighted the connection between the Prize and the Library's mission and work, which Suzanne is credited with strengthening over the course of her work on the Prize.

Suzanne's work on the Gershwin Prize was also recognized by former Deputy Librarian of Congress, Robert Dizard, Jr., who credited her work as being an example for other projects undertaken by the Library of Congress. Deputy Librarian Dizard also attributed Suzanne's work strengthening the administration of the Gershwin Prize as influential to its sustainability for many years to come. Not only was Suzanne able to build up the Gershwin Prize within the Library itself, she was able to work alongside legal professionals, production agencies, artists, and others to elevate the prestige of the Prize and build a foundation for its future success.

Suzanne's work on the Gershwin Prizes embodies initiative, commitment, and excellence. Her thoughtful leadership in this endeavor, acknowledged and celebrated by her colleagues, is to be admired and emulated. I commend her for a job well done.

PROMOTING GOOD GOVERNANCE IN THE REPUBLIC OF GEORGIA

HON. KEN BUCK

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. BUCK. Madam Speaker, I rise today to express my concern regarding the ongoing deterioration of good governance in the Republic of Georgia. Recent reports indicate the Georgian government has undermined the Digital Silk Way, a digital communications project meant to transform the region's technological integration and increase independence from Russian and Iranian influence. In light of Russia and Iran's ongoing corruption and threats to international peace and stability, this matter is of strategic importance to American foreign policy.

While the Georgian government is an important ally of the United States, it has become increasingly hostile toward investors in Georgian infrastructure, which threatens critical projects in the region. Additionally, the administration's recent adoption of new taxes and bureaucratic barriers for Western businesses only serves to further undermine American companies' ability to operate within Georgia. I fear these changes to Georgian business practices risks increasing the nation's dependence on Russia and Iran.

As an aspiring NATO member and United States ally, Georgia must continue to remove itself from Russia and Iran's sphere of influence. By focusing on infrastructure projects that bypass American adversaries in the region, the Georgian government can create new economic opportunities, attract additional foreign investment, and protect the country's sovereignty from perverse international influences.

The partnership between Georgia and the United States relies on Georgia's ongoing commitment to fair international business and governance practices. I urge the Department of State to raise these issues with the government in Tbilisi and ensure the Georgian government facilitates an environment where businesses are able to develop projects to help Georgia remain free from Russian and Iranian influence.

COMMENDING THE WORK OF JOHN MOLIERE AND STANDARD COMMUNICATIONS

HON. DENVER RIGGLEMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. RIGGLEMAN. Madam Speaker, I rise today to recognize the work being done by 5th District residents to combat the COVID–19 pandemic. The employees of Standard Communications, Inc. have worked diligently with the Department of Veterans affairs to install medical IT solutions. This work has included a new device to aid in the decontamination of medical equipment using ultraviolet light.

As we continue to face the COVID–19 pandemic, we have had to adapt and change the way we practice medicine in America. As the Congressman for Virginia's 5th District, I have been meeting with doctors, nurses, and other frontline healthcare workers to address our medical needs. One thing has become clear: Increasing our telehealth capabilities is critical to treating patients during the ongoing pandemic. In rural communities, we have seen a drop-off in patients seeking medical treatment for non-coronavirus related illnesses and injuries. This can create serious long-term issues in our healthcare system, where veterans can be vulnerable.

The work done by Standard Communications and their founder John Moliere is helping to alleviate some of these issues. During the COVID–19 pandemic we must strive to find innovative solutions to the medical needs of our community. Telehealth is now helping connect patients with healthcare providers in a way we had not considered before the outbreak. By increasing the number of doctor visits that can be done without face-to-face meetings we can continue to slow the spread of the virus and flatten the curve. I am grateful for the work of John Moliere and Standard Communications.

HAPPYBOTTOMS DURING DIAPER NEED AWARENESS WEEK

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. GRAVES of Missouri. Madam Speaker, I proudly pause to recognize HappyBottoms. HappyBottoms is a very important organization as they help bridge the gap for the almost 22,000 children that do not have enough diapers and bring awareness to the need during Diaper Need Awareness Week, which is celebrated the week of September 21 through 27, in Missouri.

HappyBottoms is Kansas City's only diaper bank and they have been instrumental in alleviating the need of diapers for families in the Kansas City area since its creation. Created in 2011, HappyBottoms has provided over 13 million diapers for low income families in collaboration with 41 partner agencies at 54 distribution sites across 6 counties. In addition to their work within the community, HappyBottoms is also active within 5 area hospitals providing diapers to eligible mothers of newborns under their ''Bundle of Joys'' program. I strongly support these efforts to address the dire need of diapers within the Kansas City area as I believe this will ultimately lead to improved health for families within our communities.

Madam Speaker, I proudly ask you to join me in recognizing HappyBottoms for their effort in collecting, packaging and distributing diapers to low income families across the Kansas City metro area. I am honored to represent this wonderful organization in the United States Congress.

MATERNAL HEALTH QUALITY IMPROVEMENT ACT OF 2020

SPEECH OF

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Monday, September 21, 2020

Ms. ESHOO. Madam Speaker, I rise in support of H.R. 4995, the Maternal Health Quality Improvement Act of 2019. I'm proud to have advanced this bipartisan bill through my Health Subcommittee and I'm pleased to support it on the Floor.

My thanks to Reps. ENGEL, KELLY, BUCSHON, TORRES SMALL, LATTA, ADAMS, and STIVERS for introducing the Maternal Health Quality Improvement Act of 2019, a bipartisan bill to address the maternal health crisis.

''The U.S. is the most the dangerous place in the developed world to deliver a baby.'' This quote was the conclusion of a major investigation by USA Today.

Each year, 700 American women die and 50,000 women are severely injured due to complications related to childbirth. If you're a Black woman in the U.S., the risks are greater. Black women are three times more likely to die from childbirth than white women in the U.S., a startling statistic.

This is unacceptable and it's preventable. The CDC estimates as much as 60 percent of these deaths could be prevented.

This bill would prevent these deaths by expanding programs that improve the practice of maternal care across the country by developing and disseminating best practices.

For example, the bill authorizes and funds the Alliance for Innovation on Maternal Health or AIM, which includes provider, public health, and consumer groups working at the state level to implement evidence-based ''maternal safety bundles.''

AIM works. States who implement AIM safety bundles have reduced their maternal morbidity rate as much as 22 percent. This data-driven approach was spearheaded in my Congressional District. Stanford's California Maternal Quality Care Collaborative has reduced severe health problems from pregnancy-related hemorrhages by 21 percent and has contributed to reducing the maternal mortality rate in California by 55 percent.

H.R. 4995 also addresses the maternal mortality crisis in rural areas. Rural mothers are 60 percent more likely to die during or after having a child than mothers in American cities, and it's even more dangerous for rural minority women, including Native American women.

Fewer than half of rural women live within a 30-minute drive to a hospital with perinatal services, and over 10 percent have to drive 100 miles or more.

This bill will close those gaps by expanding telehealth grants and increasing training opportunities for medical professionals to provide care in rural community-based settings. I urge my colleagues to support this bill.

PERSONAL EXPLANATION

HON. MARTHA ROBY

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mrs. ROBY. Madam Speaker, I was unable to vote on Thursday, September 17. Had I been present I would have voted as follows: NAY on Roll Call No. 193; YEA on Roll Call No. 194; and YEA on Roll Call No. 195.

IN RECOGNITION OF AUSTIN HICKLE SELFLESS EFFORTS TO DEFEAT COVID–19

HON. MICHAEL C. BURGESS

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. BURGESS. Madam Speaker, I rise today to express appreciation for Southern Methodist University Student Body Vice President Austin Hickle of Lubbock, Texas.

During this pandemic Austin has demonstrated true leadership. He used his position as SMU Student Body Vice President to establish the College Health Alliance of Texas and recruited other student body presidents from colleges and universities across Texas to become a unified voice. Together, this alliance would be able to amplify the urgency of public health compliance and coordinating greater student engagement in all necessary measures to decrease the risk of outbreaks among students. By creating this alliance, Austin eliminated a leadership vacuum in the COVID–19 response due to the absence of a strong student voice encouraging students to do their part and maintain best safety practices on campus. The message of these campus leaders was carried throughout the state in various media outlets. It encouraged students to step up to keep their campuses and communities safe.

For leadership that advanced the cause of public safety during a global pandemic, I would like to thank Austin Hickle for his selfless efforts on behalf of the State of Texas.

HONORING RAY PETHTEL, JR.

HON. H. MORGAN GRIFFITH

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. GRIFFITH. Madam Speaker, I offer these remarks in honor of Ray Pethtel, Jr. of Christiansburg, Virginia, who passed away on September 12, 2020 at the age of 83. Ray was a longtime public servant who was committed to accountability and high performance in Virginia state government.

Ray was born in Gallipolis, Ohio and graduated from high school in New Kensington, Pennsylvania. After service in the United States Air Force, he returned to Pennsylvania and earned a bachelor's and a master's degree from the Pennsylvania State University.

He held multiple positions in New York state government, interrupted by a stint in Washington, D.C., as Director of Administration for the American Society for Public Administration.

The Virginia General Assembly established the Joint Legislative Audit and Review Commission (JLARC) in 1973, and Ray was hired as the first director. JLARC was created to assist the General Assembly in its oversight responsibilities by auditing state government agencies and analyzing their effectiveness. In this mission, JLARC located an ideal founding director in Ray. He assembled a strong team and performed his duties with rigor and attentiveness. When I was a member of the House of Delegates, I saw firsthand the importance of JLARC's mission and contributions; Ray's work for twelve years at JLARC helped build that institution and made it a model for other states.

After winning election in 1985, Governor Gerald Baliles appointed Ray to serve as the Commissioner of Virginia's Department of Highways and Transportation, now the Department of Transportation (VDOT). His time at JLARC had familiarized him with the Commonwealth's transportation needs. Under his leadership, which lasted through the terms of Governor Baliles and his successor Doug Wilder, VDOT completed many important projects, became more efficient, and improved its communications with the public about its work.

Ray continued to work on transportation after leaving office at Virginia Tech's Transportation Institute. He brought his knowledge of highways and transportation to the institute's research, and it now stands as one of the country's leading academic centers in the field. In this capacity, I had the opportunity to work with Ray.

For his leadership over the years, Ray won numerous awards and recognitions, including the New Century Region High Tech Leadership Award, American Society of Highway Engineers Robert E. Person P.E. Person of the Year Award, the Rotary Foundation International Paul Harris Fellow, the Virginia Tech University Transportation Fellow, the Penn State Alumni Fellow, and the Roanoke-Blacksburg Technology Hall of Fame.

Ray is survived by his wife, Mary Jane, his three daughters, Jennifer, Leslie and Judy, his grandchildren, Austin, Stephanie and Kathleen, and his sons-in-law, Tom, Ken and Scott. I would like to offer my condolences to them on the loss of this committed and diligent public servant.

SUPPORT FOR THE UYGHUR MUSLIMS: H.R. 6210, UYGHUR FORCED LABOR PREVENTION ACT AND H.R. 6270 UYGHUR FORCED LABOR DISCLOSURE ACT

HON. ANDRÉ CARSON

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, September 22, 2020

Mr. CARSON of Indiana. Madam Speaker, I rise today to offer my unequivocal support for the Uyghur Muslim people, and to support the Uyghur bills being considered in the House.

For several years, China has violated international human rights through the mass surveillance and internment of as many as 1,800,000 Uyghurs, ethnic Kazakhs, Kyrgyz, and members of other Muslim minority groups in Xinjiang—an Autonomous Region in western China. Those detained in internment camps have described forced political indoctrination, torture, beatings, food deprivation, and denial of religious, cultural, and linguistic freedoms. What are the alleged high crimes that warrant such inhumane punishment against Uyghurs? Wearing long beards, refusing alcohol, or other behaviors that Chinese authorities deem to be signs of ''religious extremism.''

Alarmingly, there is a widespread forced labor system that exists inside the mass internment camps as confirmed by the testimony of camp survivors, satellite imagery, and leaked official documents from the Chinese government. In its 2019 Annual Report, the Congressional-Executive Commission on China found that goods produced with forced labor included textiles, electronics, food products, shoes, tea, and handicrafts. We can not allow these goods to reach our shores. America must not profit off the denial of religious freedom and basic human rights that is perpetuated against Uyghur Muslims.

That is why I support the Uyghur Forced Labor Disclosure Act of 2020, H.R. 6270, and the Uyghur Forced Labor Prevention Act, H.R. 6210. These bills will hold private companies wishing to import goods into the U.S. accountable by ensuring that they demonstrate a clean supply chain where goods or raw materials are not produced using forced labor. Additionally, these bills will authorize the President of the United States to apply targeted sanctions on anyone responsible for the labor trafficking of Uyghurs and other Muslim ethnic minorities.

There is no doubt that the United States has economically benefitted from the bilateral relationship with China. Yet, the United States' moral authority must be paramount to the economic relationship we have enjoyed. We must be willing to sacrifice any monetary gain. Our core democratic and constitutional principles to practice religion freely must be unwavering. In the plight of religious freedom around the world and for the Uyghur Muslims in China—the United States stands with you.

I urge my colleagues to support the Uyghurs and I urge my colleagues to support these bills.

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S5733–S5793

Measures Introduced: Twenty bills and two resolutions were introduced, as follows: S. 4637–4656, and S. Res. 711–712. **Pages S5787–88**

Hinderaker, Young, and Samuels Nominations—Agreement: A unanimous-consent agreement was reached providing that notwithstanding the provisions of Rule XXII, Senate vote on the motion to invoke cloture on the nomination of John Charles Hinderaker, of Arizona, to be United States District Judge for the District of Arizona, at 11:45 a.m., on Wednesday, September 23, 2020; that if cloture is invoked on the nomination of John Charles Hinderaker, Senate vote on confirmation of the nomination at 4 p.m., on Wednesday, September 23, 2020, and that following disposition of the nomination of John Charles Hinderaker, Senate vote on the motion to invoke cloture on the nomination of Roderick C. Young, of Virginia, to be United States District Judge for the Eastern District of Virginia; that if cloture is invoked on the nomination of Roderick C. Young, the vote on confirmation of the nomination occur at a time to be determined by the Majority Leader in consultation with the Democratic Leader, on Thursday, September 24, 2020; and that the motion to invoke cloture on the nomination of Jocelyn Samuels, of Maryland, to be a Member of the Equal Employment Opportunity Commission, be withdrawn, and Senate vote on confirmation of the nomination following the vote on the motion to invoke cloture on the nomination of Roderick C. Young. **Page S5751**

A unanimous-consent agreement was reached providing that at approximately 10 a.m., on Wednesday, September 23, 2020, Senate resume consideration of the nomination of John Charles Hinderaker, of Arizona, to be United States District Judge for the District of Arizona. **Page S5751**

Nominations Confirmed: Senate confirmed the following nominations:

By 66 yeas to 27 nays (Vote No. EX. 185), Edward Hulvey Meyers, of Maryland, to be a Judge of the United States Court of Federal Claims for a term of fifteen years. **Pages S5735–39**

By 49 yeas to 44 nays (Vote No. EX. 187), Andrea R. Lucas, of Virginia, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2025. **Pages S5739–40**

During consideration of this nomination today, Senate also took the following action:

By 49 yeas to 44 nays (Vote No. EX. 186), Senate agreed to the motion to close further debate on the nomination. **Page S5739**

By 52 yeas to 41 nays (Vote No. EX. 189), Keith E. Sonderling, of Florida, to be a Member of the Equal Employment Opportunity Commission for a term expiring July 1, 2024. **Pages S5740–49**

During consideration of this nomination today, Senate also took the following action:

By 52 yeas to 41 nays (Vote No. EX. 188), Senate agreed to the motion to close further debate on the nomination. **Page S5740**

Nominations Received: Senate received the following nominations:

Eric P. Wendt, of California, to be Ambassador to the State of Qatar.

Joyce Campbell Giuffra, of New York, to be a Member of the National Council on the Arts for a term expiring September 3, 2024.

Charles Edward Atchley, Jr., of Tennessee, to be United States District Judge for the Eastern District of Tennessee.

Katherine A. Crytzer, of Tennessee, to be United States District Judge for the Eastern District of Tennessee. **Page S5793**

Nomination Withdrawn: Senate received notification of withdrawal of the following nomination:

Katherine A. Crytzer, of Tennessee, to be Inspector General of the Tennessee Valley Authority, which was sent to the Senate on April 6, 2020. **Page S5793**

Messages from the House: **Pages S5782–83**

Measures Referred: **Pages S5783–84**

Measures Placed on the Calendar: **Page S5784**

Measures Read the First Time: **Page S5770**

Executive Communications: Pages S5784–85

Executive Reports of Committees: Pages S5785–87

Additional Cosponsors: Pages S5788–89

Statements on Introduced Bills/Resolutions: Pages S5790–92

Additional Statements: Pages S5781–82

Record Votes: Five record votes were taken today. (Total—189) Pages S5739–40, S5749

Adjournment: Senate convened at 10 a.m. and adjourned at 11:22 p.m., until 10 a.m. on Wednesday, September 23, 2020. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S5751.)

Committee Meetings

(Committees not listed did not meet)

OFFSHORE AND MARINE ENERGY TECHNOLOGIES

Committee on Energy and Natural Resources: Committee concluded a hearing to examine emerging offshore and marine energy technologies in the United States, including offshore wind, marine and hydrokinetic energy, and alternative fuels for maritime shipping, after receiving testimony from Daniel R. Simmons, Assistant Secretary of Energy for Energy Efficiency and Renewable Energy; Walter Cruickshank, Acting Director, Bureau of Ocean Energy Management, Department of the Interior; Stuart Davies, ORPC, Inc., Portland, Maine; Siri Kindem, Equinor Wind U.S., Stamford, Connecticut; and Jonathan F. Lewis, Clean Air Task Force, Boston, Massachusetts.

BUSINESS MEETING

Committee on Foreign Relations: Committee ordered favorably reported the nominations of Erik Paul Bethel, of Florida, to be Ambassador to the Republic of Panama, Keith W. Dayton, of Washington, to be Ambassador to Ukraine, William A. Douglass, of Florida, to be Ambassador to the Commonwealth of The Bahamas, Julie D. Fisher, of Tennessee, to be Ambassador to the Republic of Belarus, Melanie Harris Higgins, of Georgia, to be Ambassador to the Republic of Burundi, Jeanne Marie Maloney, of Virginia, to be Ambassador to the Kingdom of Eswatini, Michael A. McCarthy, of Virginia, to be Ambassador to the Republic of Liberia, Jonathan Pratt, of California, to be Ambassador to the Republic of Djibouti, Manisha Singh, of Florida, to be Representative of the United States of America to the Organization for Economic Cooperation and Development, with the rank of Ambassador, James Broward Story, of South Carolina, to be Ambassador to the Bolivarian Republic of Venezuela, Barbera Hale Thornhill, of California, to be Ambassador to the Republic of Singapore, Thomas Laszlo Vajda, of Arizona, to be Ambassador to the Union of Burma, Kenneth R. Weinstein, of the District of Columbia, to be Ambassador to Japan, and Alex Nelson Wong, of New Jersey, to be Alternate Representative of the United States of America for Special Political Affairs in the United Nations, with the rank of Ambassador, and to be an Alternate Representative of the United States of America to the Sessions of the General Assembly of the United Nations during his tenure of service as Alternate Representative of the United States of America for Special Political Affairs in the United Nations, all of the Department of State, and Edward A. Burrier, of the District of Columbia, to be Deputy Chief Executive Officer of the United States International Development Finance Corporation.

NOMINATIONS

Committee on Foreign Relations: Committee concluded a hearing to examine the nominations of Ashok Michael Pinto, of Illinois, to be United States Alternate Executive Director of the International Bank for Reconstruction and Development, who was introduced by Senator Thune, and William E. Todd, of Virginia, to be Ambassador to the Islamic Republic of Pakistan, and Eric M. Ueland, of Oregon, to be an Under Secretary (Civilian Security, Democracy, and Human Rights), both of the Department of State, after the nominees testified and answered questions in their own behalf.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 17 public bills, H.R. 8333–8349; and 7 resolutions, H. Res. 1135–1141 were introduced. Pages H4715–16

Additional Cosponsors: Pages H4716–17

Reports Filed: Reports were filed today as follows:

H.R. 3798, to amend title 38, United States Code, to provide for limitations on copayments for

contraception furnished by the Department of Veterans Affairs, and for other purposes, with an amendment (H. Rept. 116–529); and

H.R. 2468, to amend the Public Health Service Act to increase the preference given, in awarding certain allergies and asthma-related grants, to States that require certain public schools to have allergies and asthma management programs, and for other purposes, with an amendment (H. Rept. 116–530). **Pages H4714–15**

Speaker: Read a letter from the Speaker wherein she appointed Representative Cuellar to act as Speaker pro tempore for today. **Page H4643**

Recess: The House recessed at 10:05 a.m. and reconvened at 11 a.m. **Page H4651**

Recess: The House recessed at 11:50 a.m. and reconvened at 11:59 a.m. **Page H4657**

Committee Resignation: Read a letter from Representative Richmond wherein he resigned from the Committee on the Judiciary and the Committee on Homeland Security. **Pages H4666–67**

Committee Election: The House agreed to H. Res. 1135, electing certain Members to certain standing committees of the House of Representatives. **Page H4671**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Extension of the Caribbean Basin Economic Recovery Act: H.R. 991, amended, to extend certain provisions of the Caribbean Basin Economic Recovery Act until September 30, 2030; **Pages H4654–57**

Uyghur Forced Labor Prevention Act: H.R. 6210, amended, ensuring that goods made with forced labor in the Xinjiang Uyghur Autonomous Region of the People's Republic of China do not enter the United States market, by a ⅔ yea-and-nay vote of 406 yeas to 3 nays, Roll No. 196; **Pages H4657–66, H4687–88**

Global Health Security Act: H.R. 2166, amended, to authorize a comprehensive, strategic approach for United States foreign assistance to developing countries to strengthen global health security; **Pages H4667–71**

Global Child Thrive Act: H.R. 4864, amended, to develop and implement policies to advance early childhood development, to provide assistance for orphans and other vulnerable children in developing countries; **Pages H4671–74**

Leveraging Information on Foreign Traffickers Act: H.R. 5664, amended, To amend the Trafficking Victims Protection Act of 2000 to ensure adequate time for the preparation of the annual Trafficking in Persons Report, require the timely provision of information to the Office to Monitor and Combat Trafficking in Persons and the Bureau of Diplomatic Security of the Department of State regarding the number and location of visa denials based, in whole or in part, on grounds related to human trafficking, by a ⅔ yea-and-nay vote of 414 yeas with none voting "nay", Roll No. 197; **Pages H4674–77, H4688**

Honoring All Veterans Act: H.R. 3010, amended, to amend title 38, United States Code, to establish a mission statement of the Department of Veterans Affairs; **Pages H4677–78**

Native American Veteran Parity in Access to Care Today Act: H.R. 4908, amended, to amend title 38, United States Code, to prohibit the collection of a health care copayment by the Secretary of Veterans Affairs from a veteran who is a member of an Indian tribe; **Pages H4678–79**

CFO Authority and Collaboration Act of 2020: H.R. 6589, amended, to direct the Secretary of Veterans Affairs to develop and submit to Congress a plan to address the material weakness of the Department of Veterans Affairs; **Pages H4679–80**

VA Mission Telehealth Clarification Act: H.R. 3228, amended, to amend title 38, United States Code, to authorize health professional trainees to provide treatment via telemedicine; **Pages H4680–82**

Veteran's Prostate Cancer Treatment and Research Act: H.R. 6092, amended, to direct the Secretary of Veterans Affairs to establish a national clinical pathway for prostate cancer, access to life-saving extending precision clinical trials and research; **Pages H4682–85**

Veterans Benefits Fairness and Transparency Act of 2020: H.R. 7795, to amend title 38, United States Code, to improve the ability of veterans to access and submit disability benefit questionnaire forms of the Department of Veterans Affairs; and **Pages H4685–87**

Making continuing appropriations for fiscal year 2021: H.R. 8337, making continuing appropriations for fiscal year 2021, by a ⅔ yea-and-nay vote of 359 yeas to 57 nays with one answering "present", Roll No. 198. **Pages H4689–H4705**

Moment of Silence: The House observed a moment of silence in remembrance of the over 200,000 Americans who have passed away from the COVID–19 virus. **Page H4688**

Recess: The House recessed at 3:38 p.m. and reconvened at 3:51 p.m. **Page H4688**

Recess: The House recessed at 4:33 p.m. and reconvened at 7:03 p.m. **Pages H4688–89**

Authorizing the President to posthumously award the Medal of Honor to Alwyn C. Cashe for acts of valor during Operation Iraqi Freedom: The House agreed to discharge from committee and pass H.R. 8276, to authorize the President to posthumously award the Medal of Honor to Alwyn C. Cashe for acts of valor during Operation Iraqi Freedom. **Page H4705**

Women's History and Nineteenth Amendment Centennial Quarter Dollar Coin Program Act: The House agreed to discharge from committee and pass H.R. 1923, to amend title 31, United States Code, to require the Secretary of the Treasury to mint and issue quarter dollars in commemoration of the Nineteenth Amendment, as amended by Representative Cleaver. **Pages H4705–09**

Agreed to amend the title so as to read: "To amend title 31, United States Code, to require the Secretary of the Treasury to mint and issue certain circulating collectible coins, and for other purposes.". **Page H4708**

Negro Leagues Baseball Centennial Commemorative Coin Act: The House agreed to discharge from committee and pass H.R. 4104, to require the Secretary of the Treasury to mint a coin in commemoration of the 100th anniversary of the establishment of the Negro Leagues baseball, as amended by Representative Cleaver. **Pages H4709–11**

1921 Silver Dollar Coin Anniversary Act: The House agreed to discharge from committee and pass H.R. 6192, to require the Secretary of the Treasury to honor the 100th anniversary of completion of coinage of the "Morgan Dollar" and the 100th anniversary of commencement of coinage of the "Peace Dollar", as amended by Representative Cleaver. **Pages H4711–12**

Merrill's Marauders Congressional Gold Medal Act: The House agreed to discharge from committee and pass S. 743, to award a Congressional Gold Medal to the soldiers of the 5307th Composite Unit (Provisional), commonly known as "Merrill's Marauders", in recognition of their bravery and outstanding service in the jungles of Burma during World War II. **Page H4712**

Senate Referrals: S. 924 was held at the desk. S. 1160 was held at the desk. S. 1646 was held at the desk. S. 4072 was held at the desk. S. Con. Res. 45 was held at the desk. **Page H4650**

Senate Message: Message received from the Senate today appears on page H4650.

Quorum Calls—Votes: Three yea-and-nay votes developed during the proceedings of today and appear on pages H4687–88, H4688, and H4704–05.

Adjournment: The House met at 9 a.m. and adjourned at 8:30 p.m.

Committee Meetings

MODERNIZATION OF THE CONVENTIONAL AMMUNITION PRODUCTION INDUSTRIAL BASE

Committee on Armed Services: Subcommittee on Tactical Air and Land Forces held a hearing entitled "Modernization of the Conventional Ammunition Production Industrial Base". Testimony was heard from Bruce Jette, Assistant Secretary of the Army for Acquisition, Logistics and Technology, Department of the Army; and General Edward M. Daly, U.S. Army, Commanding General, Army Materiel Command.

OVERSIGHT OF THE TREASURY DEPARTMENT'S AND FEDERAL RESERVE'S PANDEMIC RESPONSE

Committee on Financial Services: Full Committee held a hearing entitled "Oversight of the Treasury Department's and Federal Reserve's Pandemic Response". Testimony was heard from Steven Mnuchin, Secretary, Department of the Treasury; and Jerome Powell, Chair, Board of Governors of the Federal Reserve System.

STEMMING A RECEDING TIDE: HUMAN RIGHTS AND DEMOCRATIC VALUES IN ASIA

Committee on Foreign Affairs: Subcommittee on Asia, the Pacific, and Nonproliferation held a hearing entitled "Stemming a Receding Tide: Human Rights and Democratic Values in Asia". Testimony was heard from public witnesses.

DIVERSITY AND DIPLOMACY: ASSESSING THE STATE DEPARTMENT'S RECORD IN PROMOTING DIVERSITY AND INCLUSION

Committee on Foreign Affairs: Subcommittee on Oversight and Investigations held a hearing entitled "Diversity and Diplomacy: Assessing the State Department's Record in Promoting Diversity and Inclusion". Testimony was heard from Carol Z. Perez, Director General of the Foreign Service and Director of Global Talent, Department of State; and Gregory B. Smith, Director and Chief Diversity Officer, Office of Civil Rights, Department of State.

MAINTAINING JUDICIAL INDEPENDENCE AND THE RULE OF LAW: EXAMINING THE CAUSES AND CONSEQUENCES OF COURT CAPTURE

Committee on the Judiciary: Subcommittee on Courts, Intellectual Property, and the Internet held a hearing

entitled "Maintaining Judicial Independence and the Rule of Law: Examining the Causes and Consequences of Court Capture". Testimony was heard from Senator Whitehouse and public witnesses.

TRUMP ADMINISTRATION BROKEN PROMISES ON RENEWABLE ENERGY

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled "Trump Administration Broken Promises on Renewable Energy". Testimony was heard from public witnesses.

EXAMINING THE TRUMP ADMINISTRATION'S AFGHANISTAN STRATEGY, PART 2

Committee on Oversight and Reform: Subcommittee on National Security held a hearing entitled "Examining the Trump Administration's Afghanistan Strategy, Part 2". Testimony was heard from Zalmay Khalilzad, Special Representative for Afghanistan Reconciliation, Department of State; and David F. Helvey, Performing the Duties of Assistant Secretary of Defense for Indo-Pacific Security Affairs, Department of Defense.

Joint Meetings

CORONAVIRUS

Joint Economic Committee: Committee concluded a hearing to examine the economic impact of America's failure to contain the Coronavirus, after receiving testimony from Ashish K. Jha, Brown University School of Public Health, Providence, Rhode Island; Austan D. Goolsbee, University of Chicago Booth School of Business, Chicago, Illinois; and Adam Michel, The Heritage Foundation, and Jeffrey A. Singer, Cato Institute, both of Washington, D.C.

COMMITTEE MEETINGS FOR WEDNESDAY, SEPTEMBER 23, 2020

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Commerce, Justice, Science, and Related Agencies, to hold hearings to examine proposed budget estimates and justification for fiscal year 2021 for the National Aeronautics and Space Administration, 2 p.m., SR–325.

Committee on Armed Services: to receive a closed briefing on Department of Defense cyber operations in support of efforts to protect the integrity of U.S. national elections from malign actors, 2:30 p.m., SVC–217.

Committee on the Budget: to hold hearings to examine the Congressional Budget Office's updated budget outlook, 2:30 p.m., SD–608.

Committee on Commerce, Science, and Transportation: to hold hearings to examine the need for federal data privacy legislation, 10 a.m., SR–253.

Committee on Environment and Public Works: to hold hearings to examine the Endangered Species Act Amendments of 2020, focusing on modernizing the Endangered Species Act, 10 a.m., SD–106.

Committee on Health, Education, Labor, and Pensions: to hold hearings to examine COVID–19, focusing on an update on the federal response, 10 a.m., SD–G50.

Committee on Homeland Security and Governmental Affairs: to hold hearings to examine the nomination of Chad F. Wolf, of Virginia, to be Secretary of Homeland Security, 10 a.m., SD–342.

Committee on Indian Affairs: to hold hearings to examine S. 3126, to amend the Public Health Service Act to authorize a special behavioral health program for Indians, S. 3264, to expedite and streamline the deployment of affordable broadband service on Tribal land, S. 3937, to amend section 330C of the Public Health Service Act to reauthorize special programs for Indians for providing services for the prevention and treatment of diabetes, S. 4079, to authorize the Seminole Tribe of Florida to lease or transfer certain land, and S. 4556, to authorize the Secretary of Health and Human Services, acting through the Director of the Indian Health Service, to acquire private land to facilitate access to the Desert Sage Youth Wellness Center in Hemet, California, 2:30 p.m., SD–628.

Committee on Veterans' Affairs: business meeting to consider S. 4393, to improve the provision of health care and other benefits from the Department of Veterans Affairs for veterans who were exposed to toxic substances, and S. 4511, to make certain improvements in the laws administered by the Secretary of Veterans Affairs relating to education, burial benefits, and other matters, 11:40 a.m., S–211, Capitol.

Select Committee on Intelligence: to hold closed hearings to examine certain intelligence matters, 2 p.m., SH–219.

House

Committee on Armed Services, Full Committee, hearing entitled "The Role of Allies and Partners in U.S. Military Strategy and Operations", 12 p.m., CVC and Webex.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled "Health Care Lifeline: The Affordable Care Act and the COVID–19 Pandemic", 10 a.m., Webex.

Committee on Foreign Affairs, Subcommittee on Europe, Eurasia, Energy, and the Environment, hearing entitled "Green Recovery Plans for the COVID–19 Crisis", 10 a.m., Webex.

Committee on the Judiciary, Subcommittee on Immigration and Citizenship, hearing entitled "Immigrants as Essential Workers During COVID–19", 2 p.m., 2141 Rayburn and Webex.

Committee on Oversight and Reform, Select Subcommittee on the Coronavirus Crisis, hearing entitled "Hybrid Hearing with Federal Reserve Chair Jerome H. Powell", 10 a.m., 2154 Rayburn and Webex.

Committee on Science, Space, and Technology, Subcommittee on Investigation and Oversight, hearing entitled ''Data for Decision-Making: Responsible Management of Data during COVID–19 and Beyond'', 11 a.m., Webex.

Committee on Transportation and Infrastructure, Full Committee, hearing entitled ''Driving Equity: The U.S. Department of Transportation's Disadvantaged Business Enterprise Program'', 10 a.m., 2167 Rayburn and Webex.

Committee on Veterans' Affairs, Subcommittee on Disability Assistance and Memorial Affairs, hearing entitled ''Toxic Exposures: Examining Airborne Hazards in the Southwest Asia Theater of Military Operations'', 10 a.m., HVC–210 and Webex.

Next Meeting of the **SENATE**

10 a.m., Wednesday, September 23

Senate Chamber

Program for Wednesday: Senate will resume consideration of the nomination of John Charles Hinderaker, of Arizona, to be United States District Judge for the District of Arizona, and vote on the motion to invoke cloture thereon at 11:45 a.m. If cloture is invoked on the nomination, Senate will vote on confirmation of the nomination at 4 p.m.

Following disposition of the nomination of John Charles Hinderaker, Senate will vote on the motion to invoke cloture on the nomination of Roderick C. Young, of Virginia, to be United States District Judge for the Eastern District of Virginia, and on confirmation of the nomination of Jocelyn Samuels, of Maryland, to be a Member of the Equal Employment Opportunity Commission.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Wednesday, September 23

House Chamber

Program for Wednesday: Consideration of measures under suspension of the Rules. Consideration of H.R. 4447—Clean Economy Jobs and Innovation Act (Subject to a Rule).

Extensions of Remarks, as inserted in this issue

HOUSE

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